# 1973

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# Fidahussein & Co v Mohamedally & Co
[1973] 1 EA 1 (CAM)

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|---|---|
| **Division:** | Court of Appeal at Mombasa |
| **Date of judgment:** | 15 March 1972 |
| **Case Number:** | 52/1971 (67/72) |
| **Before:** | Sir William Duffus P, Law and Mustafa JJA |
| **Sourced by:** | LawAfrica |
| **Appeal from:** | The High Court of Kenya – Mosdell, J. |

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*[1] Contract – Date of performance – Unilateral extension – Not possible.*

*[2] Sale of goods – Damages – Measure of – Market price at date of breach – Whether price established – Whether direct loss from breach acceptable alternative – Sale of Goods Act* (*Cap. 31*), *s. 51* (*K.*).

**Editor's Summary**

The appellants agreed to sell 6 tons of cloves to the respondents at £875 a ton and the consignment was due to be shipped on 8 February 1969. On 22 February 1969 the appellants wrote repudiating the contract. The respondents refused to accept the repudiation and extended their letter of credit to 31 March 1969. On 10 March 1969 the respondents reiterated their repudiation, and on 1 April 1969 the respondents had to buy in Singapore at £1,660 a ton. The judge awarded the respondents the difference between the contract price and the purchase on 1 April.

The appellants appealed, contending that the goods ought to have been delivered on 8 February, 1969, or alternatively when the shipping documents could have reached the respondents, about 15 February 1969. There was no evidence of the market price in Singapore on those dates.

The respondents contended that the shipment date had been extended to 31 March 1969, and they showed that they had resold in Singapore on 27 January 1969 at £962 a ton.

**Held –**

(i) the act of one party without the concurrence of the other cannot extend the date for the performance of a contract;

(ii) (Sir William Duffus, P., dissenting) the date of the breach of the contract was 15 February 1969 when the documents would have been received;

(iii) (Law, J.A. dissenting) the market price on 15 February 1969 had not been established and the respondents were only entitled to nominal damages;

(by Law, J.A.) the buyer of goods may show the damage directly resulting from the breach and this was the difference between the purchase price and the resale price;

(iv) the respondents would be allowed their costs in the High Court.

Appeal allowed in part.

**Cases referred to in judgment:**

(1) *Melachrino v. Nickoll*, [1920] 1 K.B. 693 [1918-19] All E.R. Rep. 857.

(2) *Anglo-Cyprian Trade Agencies v. Paphos Wine Industries*, [1951] 1 All E.R. 873.

(3) *C. Sharpe & Co. v. Nosawa & Co.*, [1917] 2 K.B. 815.

**Judgment**

The following considered judgments were read. **Law JA:** This appeal arises out of a suit tried in the High Court of Kenya. The plaintiffs, who are the respondents in this appeal, are merchants carrying on business in Singapore. They claimed damages, for breach of a contract to deliver six tons of cloves, from the defendants, who are merchants trading in Mombasa. The judge found that there had been a breach of contract on the part of the defendants, and awarded damages against them which he assessed at Shs. 80,797/40, together with interest and costs. From this judgment the defendants have appealed, and I shall refer to them henceforth as the appellants.

The memorandum of appeal fell into two main parts. First, it challenged the finding that there ever was a concluded contract between the parties and secondly, it disputed the quantum of damages awarded.

When the appeal opened before us, Mr. A. A. Lakha for the appellants began by informing us that he no longer contended that the judge had erred in finding that a binding contract had been concluded between the parties. This was conceded, and the appeal was confined to the measure of damages awarded.

The contract price for the cloves was agreed at £875 per ton, to include carriage, insurance and freight (C.I.F.). The cloves were to have been shipped on the m.v. “Madras Maru”, which according to the plaint was due to sail on 8 February 1969. On the 22 February, 1969, the appellants wrote to the respondents repudiating the contract. This letter would in the normal course of events have reached the respondents by the 1 March 1969. The respondents refused to accept this repudiation, and insisted, by letter dated 1 March 1969, that the cloves be shipped by 15 March. They also extended their relevant letter of credit to 31 March 1969, in order, as they said, to give the appellants a further opportunity of fulfilling their contract. By a letter dated 10 March, 1969 the appellants made it clear that they adhered to their view that there was no binding contract, and that they had no intention of shipping the cloves. On 1 April 1969, in order to fulfil contracts entered into by them for the resale of the undelivered cloves, the respondents had to buy, in Singapore, 6 tons of cloves at £1,660-10-7 a ton. The judge awarded them damages on the basis of the difference between £1,660-10-7 and the contract price of £875 per ton.

The relevant statutory provision regulating the measure of damages for non-delivery of goods under a contract is to be found in s. 51 of the Sale of Goods Act (Cap. 31), which reads:

> “51(1) Where the seller wrongfully neglects or refuses to deliver the goods to the buyer, the buyer may maintain an action against the seller for damages for non-delivery.
>
> (2) The measure of damages is the estimated loss directly and naturally resulting, in the ordinary course of events, from the seller’s breach of contract.
>
> (3) Where there is an available market for the goods in question the measure of damages is prima facie to be ascertained by the difference between

> the contract price and the current or market price of goods at the time or times when they ought to have been delivered, or, if no time was fixed, then at the time of the refusal to deliver."

Mr. Lakha, relying on sub-s. (3), which appears to apply to this case, submitted that the material "time or times" when the goods ought to have been delivered was 8 February 1969, the date confirmed by the appellants as being the sailing date of the m.v. "Madras Maru", the named vessel on which the cloves were to be shipped in accordance with the contract. In support of this proposition, Mr. Lakha cited the case of *Melachrino v. Nickoll*, [1920] 1 K.B. 693, in which it was held that where the time for delivery is fixed by reference to the happening of an event, it is "fixed" within the meaning of s. 51 (3) of the Sale of Goods Act, 1893, which is identical with s. 51 (3) of the Kenya Act. The event, in Mr. Lakha's submission, was the sailing of the m.v. "Madras Maru". Alternatively, relying on *C. Sharpe and Co. v. Nosawa and Co.*, [1917] 2 K.B. 815, Mr. Lakha submitted that the material date was the date on which the shipping documents relative to the cloves could reasonably have been expected to have reached the respondents, say 15 February 1969, had the cloves been shipped on the m.v. "Madras Maru". Whichever of these dates applied, there was no evidence as to the market price of cloves on these dates in Singapore, although he had specifically cross-examined the respondents' witness on this point. In these circumstances, Mr. Lakha submitted that although the respondents might have satisfied the court that the appellants' breach of contract had caused them a loss, the amount of that loss had not been proved, and only nominal damages should be awarded. He relied in this respect on Mayne and McGregor on Damages, 12th Ed., p. 202, para. 203, where the following appears:

> "Nominal damages may also be awarded where the fact of a loss is shown but the necessary evidence as to its amount is not given."

Mr. Satchu for the respondents supported the judge's choice of 1 April 1969, as the material date for the assessment of damages, and he pointed to paragraph 9 of the defence, in which the appellants had pleaded, as an alternative ground of defence based on impossibility of performance, that the shipment date of the contract goods had been extended to 31 March 1969. This ground of defence, which was specifically withdrawn at the outset of the proceedings in the court below, was based on the respondents' unilateral act in extending the relevant letter of credit to 31 March. This unilateral act would clearly not, in my view, have had the effect of extending a contract of which the appellants were already in breach, without the concurrence of the appellants, which was neither sought nor obtained. As regards the alternative material dates propounded by Mr. Lakha, Mr. Satchu complained with some justification that this aspect of the case was not properly canvassed at the trial, which was mainly concerned with the issue as to whether a binding contract had ever been concluded. I have some sympathy for Mr. Satchu in this appeal. The main ground of appeal, relating to the finding that a contract had been concluded, was dropped at the last minute, and the appeal was confined to the issue of damage which played a relatively minor part at the trial, and the grounds argued by Mr. Lakha on appeal were stated in very general terms in the memorandum of appeal. Mr. Satchu was clearly taken by surprise at the turn of events on the hearing of the appeal.

The view I have formed as a result of the arguments addressed to us is that there is merit in Mr. Lakha's submissions. In a case such as this, where a seller in Kenya contracts, on the basis of an exchange of cables, to sell goods C.I.F. to a buyer in a foreign country, the goods to be shipped on a named ship, the material date for the assessment of damages for non-delivery should, in my opinion, be related to the probable date of constructive delivery by tender of

the shipping documents after shipment under the contract. I accept as the material date for this purpose the date suggested by Mr. Lakha, that is to say 15 February 1969. The judge found that the date of the breach of contract was the date of the appellants' letter of repudiation, 22 February 1969. Even if that was the correct material date, which I doubt, there was no evidence as to the market price of cloves on that date. In any event, with respect, I do not think the judge was right in taking the market price in force on 1 April 1969 as the basis for his assessment of damages, as on any view the appellants were already in breach of the contract on some date in February.

The question now arises, to what damages are the respondents entitled on the basis of a breach of contract by the appellants for non-delivery on 15 February 1969. Mr. Lakha submitted that there was no evidence at all as to the current or market price of cloves on that date, and the burden of proof being on the respondents as plaintiffs, they were entitled to nominal damages only. With respect, I consider this argument to be an over-simplification of the position. There was evidence by the respondent's witness that, relying on the contract, they re-sold the cloves in Singapore on 27 January 1969, at £961-19-3 a ton. The same witness deposed that in order to meet this commitment, the respondents were forced to buy cloves in the open market in Singapore on 1 April 1969, at £1,660-10-7. It is true that this witness also deposed that during this period the price of cloves fluctuated, but in view of the sharp rise in price it seems to me to be safe, on a balance of probabilities, to assume that any fluctuations downwards must have been minimal, and that the general trend of fluctuations must necessarily have been upwards. On 3 March 1969, the State Trading Corporation in Zanzibar were quoting £1,643 per ton C.I.F. Singapore, and on 8 March another Mombasa merchant quoted £2,000 per ton. Bearing in mind that it was for the respondents to prove their loss, and their complete failure to adduce evidence as to the actual market price of cloves on 15 February 1969, I am nevertheless satisfied that on that date the price cannot have been less than £961-19-3 a ton, and I would assess the damages to which the respondents are entitled on that basis.

In any event, s. 51 (3) of the Sale of Goods Act only provides a prima-facie, or rebuttable, method for the measurement of damages in cases where there is an available market. It does not purport to provide the exclusive method, and it is open to a plaintiff to rely, if he prefers, on sub-s. (2) and prove the loss which directly and naturally resulted from the breach. In this case the respondents fully proved a loss of profit on the re-sale of the cloves of £521-15-6, and they are in my view clearly entitled to recover this sum, but not the sum claimed by them on the basis of what they had to pay for cloves, six weeks after the breach of contract.

It follows that in my view this appeal succeeds. I would amend the judgment and decree appealed from by reducing the damages awarded from Shs. 80,797/- to Shs. 10,435/50, with interest at 8% from 14 July 1969, to 19 August 1971, together with the costs of the suit. I would give the appellants the costs of this appeal.

**Sir William Duffus P:** The facts have been fully set out in the judgment of Law, J.A. There was admittedly a breach of contract and the main issue on appeal was whether there was sufficient evidence on which the court could assess the damages. S. 51 of the Sale of Goods Act (Cap. 31), applies. [The judge set out the section and continued.]

It is agreed that there was an available market for the goods in question but the appellants aver (i) that the time at which the market price of the goods should have been fixed has not been ascertained and (ii) that there is no evidence of the

market price of the goods at such time. The market price is fixed in accordance with s. 51 (3) at the time when the goods ought to have been delivered, or if no time was fixed, then at the time of the refusal to deliver.

Mr. Lakha for the appellants submitted that a definite time for the delivery had in fact been fixed but that no evidence had been given which could enable the court to fix that time. He referred to the appellants' cable to the respondents of 31 January 1969 stating "arranging ship 'Madras Maru'". This arrangement was accepted by the respondents and formed part of the contract. This was a C.I.F. contract, and delivery under this contract would have been effected after shipment of the goods on the "Madras Maru" by delivery of the bill of lading and other relevant documents to the respondents. There is no evidence to show when the "Madras Maru" sailed and again no evidence when these documents of title would have been delivered to the respondents in the due course of post. The judge in considering damages said inter alia:

> "All that the plaintiffs are entitled to is the difference between the contract price and the market price at the time of the defendants' refusal to deliver which would appear to be 22.2.69, vide Ex. IA5. We know the contract price was £B 875 per ton. I think the market price may be taken as £B 1,660.10.7 per ton. The price of cloves at the material time was rising."

The trial judge fixed the market price as at the time of the appellants' refusal to deliver and in doing so he accepted this time as the date of the letter written by the appellants and not as the date at which the letter was received by the respondents. The letter was dated and apparently written by the appellants on 22 February 1969 but was not received by the respondents until 1 March, 1969. On this question Law, J.A. agrees with Mr. Lakha's submission that the correct date for ascertaining the market price would be the date when the shipping documents should have been delivered to the respondents. Mr. Lakha then further suggested that this date should be 15 February 1969. With respect I can find no evidence to establish this date. It is the date mentioned in the letter of credit dated 24 January 1969 as the latest date by which shipment should have been effected, but there is in fact no evidence to show when the "Madras Maru" sailed and no evidence to show when the shipping documents would have been received by the respondents.

Both parties agree that there was considerable fluctuation in the price of cloves around this time. The respondents' witness Mr. Moiz Abbasbhoy in the course of the examination said this:

> "We re-sold the cloves on 27.1.69. On 15.2.69 I don't know what the price of cloves was in Singapore. Nor on 1.3.69. The price of cloves in Singapore fluctuates considerably from day to day."

There was very little evidence given on this aspect of the case but we do know that the price of cloves in the first contract between the parties on 22 January 1969, was £800 per ton. On the following day, 23 January 1969 the appellants sent off a cable offering the six tons the subject of this contract at £875 per ton. A rise of £75 in one day and then in another four days the respondents re-sold these cloves at a price of £961 19s. 3d. and then that on 3 April 1969 the respondents purchased the cloves in the local market at £1,660 10s. 7d. per ton. There is also in evidence a cable from the State Trading Corporation Zanzibar of 6 March 1969 quoting £1,643 cost and freight Singapore and also a letter from other exporters in Mombasa, Hasanali Lakhani & Brothers Ltd. dated 8 March 1969 quoting £2,000 per ton C.I.F. Singapore. The market was said to be a rising market and the prices I have quoted show very great variations in the prices. The amount of damages to be calculated in accordance with the method laid down in s. 51 (3) would depend on the exact date of the breach and the then

market price of cloves. There is in my opinion no definite evidence on either of these two matters.

I agree that clearly the respondents have suffered damage but with great respect I find difficulty in agreeing with Law, J.A. on this matter. He calculates the damages by taking the figure of £961 19s. 3d. as being the minimum market price for cloves which must have existed at the time that the cloves should have been delivered under the contract but there is in my opinion no evidence to support this proposition. This figure £961 19s. 3d. is the amount that the respondents re-sold the cloves for. I do not know how this figure was arrived at, whether it included an amount for the payment of import duty or other expenses of landing the cloves and having them ready for sale in Singapore but apparently it included all these expenses as the delivery was to take place in the buyer's store in Singapore. Another criticism of this figure is that this price is the arranged price of the cloves on the date of the ship's arrival in Singapore and not the date of the delivery of the shipping documents. Presumably the shipping documents would have been sent by air mail and although we have no evidence as to the duration either of the voyage by sea or of the time that would be taken by air mail, this Court must, I think, take judicial notice of the fact that Singapore is a considerable distance from Mombasa and that the arrival of the shipping documents by air mail must precede the arrival of the ship by several days. Two points arise here (*a*) that with the admitted fluctuation of prices, the difference of even a day might have considerably affected the market price and this might have been an increase or decrease in price and (*b*) in any event the market price was that of the cloves on a C.I.F. contract and not that of cloves already in Singapore. It would, therefore, in my view be unsafe and wrong to accept the figure set out in the contract as being the market price obtained on the day that the cloves should have been delivered.

Another aspect here is that this proposition was never the respondents' case. The respondents did use the re-sale price of the cloves as the basis to claim for the loss of the profits, i.e. the difference between the contract price and the re-sale price, but the judge specifically disallowed this item of damages and there has been no cross-appeal. The judge only allowed the respondents the first part of their claim seeking damages on the basis of the difference between the market price and that of the contract price.

The respondents called no evidence at all to show the market price of cloves at the relevant time.

The appellants never had to meet a case which even suggested that the figure of £961 19s. 3d. was the market price of cloves on 15 February 1969 nor was it the respondents' case that this was the relevant date. If this had been the respondents' case or even if there had been any evidence to this effect the appellants would then have been able to call evidence in rebuttal. The price might in fact have been considerably less, and it would in my view be quite unfair to now condemn the appellants on evidence that they were never given the opportunity to answer and especially when their case always was that the respondents had never proved the date of the breach or the market price on such date. The onus is on the plaintiffs to establish their damage. The evidence shows that they could have obtained the necessary evidence and could have proved what would have been the due date of delivery and what was the market or current price of cloves on that date. The appellants would then have had the opportunity to meet this case. The court cannot guess at the figure to be awarded and with respect this would be the case here. There is in fact no evidence fixing the date on which the damages should have been ascertained, and further no evidence to establish what was the market or current price of cloves on that day.

I would therefore only have awarded the respondents nominal damages, which I would in this case fix at Shs. 100/-.

I have carefully considered Mr. Lakha's submission on the question of the costs in the trial court in the event of our reducing the damages to nominal damages. He relied to some extent on the judgment of Devlin, J. in the *Anglo-Cyprian Trade Agencies v. Paphos Wine Industries*, [1951] 1 All E.R. at 873 but the facts of that case were different. Costs are in the discretion of the court although this discretion must be exercised judicially and each case must be considered in its own particular circumstances. In this case the respondents were fully justified in bringing this action to enforce their legal rights. They were entitled to damages for breach of contract and the fact that we have only awarded nominal damages is due to what was in our view a defect in the evidence on admittedly difficult legal questions. The fact that they obtained full damages in the trial court and that there is a difference of opinion in our court illustrates this difficulty. I would therefore award the respondents their costs in the High Court. In this appeal the appellants have succeeded in having the damages reduced to nominal damages but they had also appealed on the substantive question as to whether there was a breach of contract and only withdrew this ground at the hearing, I would therefore only award the appellants three quarters of the costs of this appeal.

As Mustafa, J.A. agrees, the order of this court is that this appeal is allowed to the extent that the amount of the judgment is reduced to Shs. 100/-. The respondents will have the costs of the trial in the High Court and the appellants will have three quarters of the costs in this appeal.

**Mustafa JA:** The only question on appeal was with regard to damages. The issue was: on what date did the breach occur and what was the market or current price of cloves on that date. The contract provided that the cloves were to have been shipped from Mombasa C.I.F. to Singapore on the m.v. "Madras Maru" which was due to sail on 8 February 1969 from Mombasa. The appellants had on 22 February 1969 written a letter to the respondents denying that there was any contract between them. That letter would normally have been received by the respondents on or about 1 March 1969. There was also the letter of credit opened by the respondents which expired on 15 February 1969. Or if the material date was to be the date when the documents in respect of the cloves could reasonably be expected to have been delivered to the respondents, assuming the cloves were shipped on the "Madras Maru" as contracted for, the date would probably be 15 February 1969.

However Mr. Lakha for the appellants has submitted that the respondents had not put the court in a position to determine the date of breach nor had they adduced evidence of the market or current price of cloves on any of these dates. In such circumstances the court would be unable to select any date nor determine what the market price was. The court would have no legal basis of assessment to guide it and it could only therefore award nominal damages.

I have read the judgment prepared by Law, J.A. in which he selected 15 February 1969 as the date of breach and concluded that the price of cloves could not have been less than £961 19s. 3d. a ton on that date as despite daily fluctuations the price of cloves at that period was generally on the upward trend. With respect I have considerable sympathy with the point of view that a court should, from whatever evidence there may be in a case, seek to assess the damages suffered. It seems to me that on the evidence before the court the date of breach was 15 February 1969, the date when the documents in respect of the cloves could reasonably be expected to have been delivered to the respondents; I appreciate that this date, 15 February 1969, was based on the submission of Mr. Lakha for the appellants and was not in fact relied on by the respondents, nevertheless I think, with some hesitation, that it is open to a court to select this

date as the date of breach. However in this case the respondents had failed to establish what the market or current price of cloves was on that date. This was a suit between two apparently well established firms of merchants and I am not persuaded in this case that the court was justified to infer, of its own motion, what the minimum market price of cloves would be on that date.

I therefore agree with the President that only nominal damages should be awarded to the respondents for the breach. I concur in the order proposed by the President.

*Appeal allowed in part.*

For the appellants:
*A. A. Lakha* and *S. N. Mehta* (instructed by *D. D. Doshi*, Mombasa)

For the respondents:
*M. Satchu* (instructed by Atkinson *Cleasby & Satchu*, Mombasa)

## Githuchi Farmers Co Ltd v Gichamba and another
[1973] 1 EA 8 (HCK)

| | |
|---|---|
| **Division:** | High Court of Kenya at Nairobi |
| **Date of judgment:** | 23 March 1972 |
| **Case Number:** | 1160/1971 (156/72) |
| **Before:** | Harris J |
| **Sourced by:** | LawAfrica |

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*[1] Land – Agricultural – Control – Trust – Subject to consent by land control board – Land Control Act* (*Cap. 302*), *s. 6* (*K.*).

**Editor's Summary**

The plaintiff sued for a declaration that the defendants held certain agricultural land in trust for the plaintiff. Although not stated in the judgment title to the land was registered under the Registration of Titles Act (Cap. 281).

The defendant objected that in the absence of consent by the land control board to the creation of a trust the transaction was void.

**Held** –

(i) the creation of trust is a controlled transaction for which consent of a land control board is required;

(ii) in the absence of such consent the claim must fail.

Case dismissed.

**Cases referred to in judgment:**

(1) *Ayoub v. Standard Bank*, [1961] E.A. 743.

(2) *Chemilil Sisal Estate v. Makongi*, [1967] E.A. 166.

[*Editorial note:* Certain statutory provisions bearing on the issue in this case were not referred to.

The Registration of Titles Act (Cap. 281), s. 32 (1) provides that "No instrument, until registered in manner hereinbefore described, shall be effectual to pass any land or any interest therein. . . ."

S. 80 (1) of the Registration of Titles Act provides that ". . . the registrar shall not enter in the register particulars of any such trust or register any instrument setting out the terms of a trust".]

**Judgment**

**Harris J:** The plaintiff company claims a declaration that certain lands at Nanyuki known as L.R. 6875/1 are held by the registered owners upon trust (presumably for the company) and an order that the defendants, who are two of the six registered owners, should sign all documents and papers necessary to effect a transfer of the lands to the company.

In the plaint it is stated that in the year 1969 the defendants, together with some fifty other persons, formed an "organisation" for the purpose of purchasing the lands, after which they were purchased for Shs. 55,000/- and the transfer registered in the names of the six registered owners. It would appear from the plaint that this registration was effected with the approval of all fifty persons but upon the "express agreement and understanding" that the six should hold the land in trust for the entire organisation pending the incorporation of a company limited by shares and that when it was incorporated (as it has been) all the fifty persons would be shareholders. It is said that, apart from the defendants, each of the registered owners is prepared to execute the required documents.

The defence tells a different story, denies that any such "organisation" was ever formed and that the defendants are shareholders in the company, and says that all six registered owners are tenants in common of the property and in no way trustees for the company.

It is conceded that the lands are agricultural land and come within the purview of the Land Control Act (Cap. 302) and, on it being pointed out to Mr. Njugi, who appeared for the company, that s. 6 (2) of the Act necessitated that the consent of the local land control board should have been obtained to the suggested agreement, he did not press his prayer for an order requiring the execution of the papers leading to the transfer. This part of the claim need not be further considered.

Mr. Akram, for the defendant, raises as a preliminary objection to the suit in limine the provisions of s. 6 (1) of the Act, which declares that:

> "(*a*) the sale, transfer, lease, mortgage, exchange, partition or other disposal of or dealing with any agricultural land which is situated within a land control area
>
> (*b*) . . . .
>
> (*c*) . . . .
>
> is void for all purposes unless the land control board for the land control area or division in which the land is situated has given its consent in respect of that transaction in accordance with this Act."

This sub-section, he contends, precludes the company from seeking to enforce any trust relating to the lands unless it can show that the local land control board has given its consent to the transaction. Mr. Njugi, on the other hand, submits that the subsection has no application to a transaction such as the present which consists, not of a sale, but of the creation of a trust. It applies, he says, only to dealings which effect a physical change in the land.

No reported decision bearing directly upon the matter was referred to on either side nor have my researches revealed one, but Mr. Njugi mentioned *Chemilil Sisal Estate v. Makongi*, [1967] E.A. 166, and *Ayoub v. Standard Bank*, [1961] E.A. 743. The *Chemilil* case, as he pointed out, is distinguishable from the present since it dealt with a lease of land and not the purported creation of a trust, but he said that from the report in *Ayoub's* case it appeared as if there a transfer of land by trustees to beneficiaries had been completed without land control consent having been obtained and that no objection was raised to this dealing.

I have perused the judgments in the Court of Appeal in *Ayoub's* case, where a

question as to the existence of a trusteeship was a material issue, but I am not satisfied that the facts there necessarily involved the absence of land control board consent or the waiving of objection to such absence. Both Gould, J.A. and Newbold, J.A. felt that, while the question of land control board consent had been raised, it was not possible to say conclusively whether such consent had been effectively obtained as was required by law, and O'Connor, P. said, at p. 763, that, in the absence of evidence as to what facts had been put before the land Control board he was dubious as to the legality of the transaction.

In the circumstances I cannot treat these judgments as supporting the proposition that the land control legislation does not apply to transactions effecting the vesting of trust property by trustees in the cestuis que trustent. Indeed, the inference is quite to the contrary.

In the absence of authority the correctness of Mr. Akram's contention can best be tested by a consideration of the legislation itself. The Act, which came into force in the year 1967 and replaces legislation which had existed in a somewhat different form for many years, is described in its title as "an Act of Parliament to provide for controlling transactions in agricultural land".

"Agricultural land" is defined in s. 2 as

"(*a*) land that is not within –

(i) a municipality or a township; or

(ii) an area which was, on or at any time after the 1st July 1952, a township under the Townships Act (now repealed); or

(iii) an area which was, on or at any time after the 1st July 1952, a trading centre under the Trading Centres Act (now repealed); or

(iv) a market;

(*b*) land in the Nairobi Area or the municipality of Mombasa that is declared by the Minister, by notice in the Gazette, to be agricultural land for the purposes of this Act,

other than land which, by reason of any condition or covenant in the title thereto or any limitation imposed by law, is subject to the restriction that it may not be used for agriculture or to the requirement that it shall be used for a non-agricultural purpose."

The expression "controlled transaction" is defined as one of the transactions specified in s. 6 (1) (*b*) and (*c*) other than those specified in s. 6 (3).

S. 6 (3) is in the following terms:

"(3) This section does not apply to –

(*a*) the transmission of land by virtue of the will or intestacy of a deceased person, unless that transmission would result in the division of the land into two or more parcels to be held under separate titles; or

(*b*) a transaction to which the Government or the Settlement Fund Trustees or (in respect of Trust land) a county council is a party."

It is apparent therefore that the Act contemplates a very wide measure of control of dealings in land. Can it be said that an exception is intended in favour of transactions effected by way of the creation of trusts?

Clearly the creation of equitable interests as such is not excluded from the Act, whether or not the legal estate passes, for by definition in s. 2 the term "mortgage" includes "charge". This renders it difficult to accept Mr. Njugi's argument that only dealings effecting a "physical change" in the land are caught. Furthermore if Mr. Njugi were right would not the creation of trusts provide so effective a means of circumventing the widely drawn prohibition regarding

sales, transfers, leases, exchanges and partitions as to defeat almost completely the purpose of the Act? Again, what construction other than the literal is to be given to the expression in s. 6 (1) (*a*) "or other disposal of or dealing with any agricultural land" if it is not to be so construed as to evade the very object of the legislation? If a mortgage or charge is within the Act why not also an express trust?

Having considered the matter carefully I am satisfied that Mr. Akram's objection is well taken and must succeed. In the absence of evidence of consent of the appropriate land control board the claim for a declaration therefore fails.

Mr. Njugi, as I have stated, did not press his claim for an order for the signing of documents and papers to effect a transfer of the lands to the company. The averment in the plaint that there was an "express agreement and understanding" that the six registered proprietors should hold the lands upon trust for the "organisation" pending incorporation of the company, and thereafter presumably for the company itself, immediately attracts the application of s. 6 (2) of the Act which provides that an agreement to be a party to a "controlled transaction" becomes void for all purposes if the requirements of the subsection shall not have been complied with within the time thereby limited. It is conceded that there has not been such compliance and that the stipulated time has now expired, with the result that the subsection takes effect in regard to this agreement and understanding.

The action accordingly fails and is dismissed with costs.

*Order accordingly.*

For the plaintiff:
*T. N. Njugi* (instructed by *Njugi & Gichukia*, Nairobi)

For the defendant:
*S. M. Akram*

## Fiat Kenya Ltd v Roble
[1973] 1 EA 11 (CAN)

| | |
|---|---|
| **Division:** | Court of Appeal at Nairobi |
| **Date of judgment:** | 13 October 1972 |
| **Case Number:** | 32/1972 (168/72) |
| **Before:** | Spry Ag P, Lutta Ag VP and Mustafa JA |
| **Sourced by:** | LawAfrica |
| **Appeal from:** | The High Court of Kenya – Chanan Singh, J. |

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*[1] Sale of goods – Specific goods – Bus identified in contract by chassis number is specific.*

*[2] Specific performance – Sale of goods – Goods must be still available and damages not adequate remedy – Sale of Goods Act* (*Cap. 31*), *s. 52* (*K.*).

*[3] Specific performance – Decree for – Not proper to include order for assessment of damages if specific performance impossible.*

**Editor's Summary**

The appellant agreed to sell to the respondent a new bus identified by chassis number and to take his old one in part-exchange.

The contract was repudiated by the appellant on grounds which the High Court found were unjustified. The judge then ordered specific performance of the agreement to sell and granted the parties liberty to apply for assessment of damages if specific performances were impossible. No evidence had been led on whether the specific bus was still available.

The appellant appealed contending that specific performance should not have been ordered without proof that the bus was still available and that damages were a sufficient remedy, that liberty to apply for assessment of damages should not have been given in a specific performance case, and that the respondent had a duty to mitigate his damages.

**Held –**

(i) the bus was specific property being identified in the contract;

(ii) the specific goods must be still available for specific performance to be ordered, but the onus was on the appellant to show that the bus was not available and it had not done so;

(iii) (Spry, Ag. P., dissenting) the judge had not misdirected himself in awarding specific performance;

(by Spry, Ag. P.) the evidence failed to show any reason why damages would not afford an adequate remedy;

(iv) no order for assessment of damages if specific performance proved impossible should have been made.

Appeal dismissed, but decree amended.

**Cases referred to in judgment:**

(1) *Clarnigbould v. Curtis*, (1852) 21 L.J. 541.

(2) *Holroyd v. Marshall,* (1861) 11 E.R. 999. [1861-73] All E.R. Rep. 414.

(3) *Hart v. Herwig* (1873) 8 Ch. App. 860.

(4) *Holliday v. Lockwood*, [1917] 2 Ch. 47 [1916-17] All E.R. Rep. 232.

(5) *In re Wait*, [1927] 1 Ch. 606.

(6) *Cohen v. Roche*, [1927] 1 K.B. 169.

(7) *Behnke v. Bede Shipping Co. Ltd*., [1927] 1 K.B. 649 [1927] All E.R. Rep. 689.

(8) *Heyman v. Darwins*, [1942] A.C. 356.

(9) *Selle v. Associated Motor Boat Co*., [1968] E.A. 123.

**Judgment**

The following considered judgments were read. **Lutta Ag VP:** This appeal arises out of an action for specific performance brought by the plaintiff against the defendant. The plaint alleged that by a contract in writing dated 4 July 1969 made between the plaintiff and the defendant at Nairobi, the defendant, inter alia, agreed to sell the plaintiff a new Fiat 650/EL 52 passenger capacity bus at a price of Shs. 92,500/- and further agreed to accept the plaintiff's secondhand Austin bus as trade-in or in part exchange and agreed to set off Shs. 37,000/- against the purchase price for the said secondhand bus. The plaintiff, according to the plaint paid to the defendant Shs. 9,250/- in consideration of the said agreement and as a cash element of the transaction. The plaint further alleged that the defendant by a letter dated 17 September 1969 repudiated the contract and refused to deliver a new Fiat bus as contracted for on the ground that the plaintiff was a resident of Tanzania and that the contract should have been entered into by Fiat Tanzania Ltd. The defendant, in its statement of defence, inter alia, stated that the contract was expressly subject to the approval of a director of the defendant or a person authorised by the defendant to approve contracts and that the contract was never approved on behalf

of the defendant by a director or other authorised person. At the hearing of the action the following agreed issues were framed:

> "1. Would there be any agreement binding on the defendant if Clause 13 thereof had not been complied with?

2. Was it necessary to bring Clause 13 to the notice of the plaintiff? If so, was it done?
3. Has Clause 13 been waived by subsequent conduct of the defendant?
4. Has Clause 13 of the agreement been complied with? If not, does it go to the root of the agreement entitling the defendant to rescind it?
5. Was there any duty on the defendant to obtain or apply for a loan for the balance of the purchase price from National Industrial Credit (E.A.) Ltd.?
6. If the answer to (5) is yes, has the defendant carried out all that was required of it in this respect?
7. If the defendant is liable under the agreement, is the plaintiff entitled to specific performance?
8. Quantum of damages due to the plaintiff."

The judge answered the agreed issues as follows:

"*Issue 1*. No, there would be no binding contract unless it was signed or countersigned as required by clause 13.

*Issue 2*. I accept as correct the law quoted by Mr. Fraser. It was not necessary to bring clause 13 to the notice of the plaintiff. It was not brought to his notice.

*Issue 3*. Clause 13 has not been waived.

*Issue 4*. Clause 13 has been complied with by giving ostensible authority to Mr. Reid.

*Issue 5*. No legal duty. The defendant undertook to help by completing an application form and, impliedly, to tell the plaintiff the result of the application.

*Issue 6*. The defendant carried out its undertaking.

*Issue 7*. The defendant is liable to complete its own side of the contract. As regards specific performance, courts do not usually order this in the case of ordinary chattels readily available in the market – see *Cohen v. Roche* [1927] 1 K.B. 169 at p. 181. The power is discretionary under s. 52 of the Sales of Goods Act which applies to `specific or ascertained goods': in the present case, the agreement mentions the Chassis Number and the Engine number which shows, I think, that the `goods': in the present case were specific or ascertained. In any case the vehicle mentioned would appear to have been appropriated to this contract by the defendant. This is therefore, a proper case in which specific performance may be ordered in terms of clause 1 of the agreement.

*Issue 8*. I think the `damages' referred to in this issue are for loss of profit. Damages in lieu of specific performance would, in my opinion come under the previous issue. Three matters fall for decision here. First, can damages for loss of profit be recovered. I think they can be. The use of the vehicle as a bus for carrying passengers for profit was known to both sides. Loss caused to the plaintiff by undue delay in the delivery of the vehicle can be properly claimed as damages. Secondly, from what date are such damages due? The plaintiff claims them from 1.8.69. The agreement was made on 4.7.69 and it was expected that the bus would be ready for delivery in four or five weeks. But no term for delivery was fixed and I think this meant that delivery had to be within a reasonable time. Either party was free to fix by notice a reasonable time for the performance of the contract. A factor to be taken into account is that by agreeing to try to take a bus in Arusha the plaintiff agreed to excuse part of the delay. In his advocate's letter of 25.2.70 the plaintiff fixed three weeks

> for the delivery of the bus. I think this was less than reasonable. A period of five weeks would have been reasonable in view of evidence given in this case to allow for the body to be built on the chassis. Thereafter, the defendant had to give to the plaintiff `notification' under clause 1 and the plaintiff had to be given a further reasonable time to find finance. A further three weeks may be allowed for this, so that a total period of eight weeks would be regarded as excusable delay. Therefore, damages for loss of profit are due from 1.5.70. Thirdly, at what rate are damages due under this head? The plaintiff claims Shs. 6,000/- a month. Mr. Fraser thinks this an exaggerated figure. He draws attention to the Income Tax assessments produced by the plaintiff. These show that the gross income of the plaintiff in 1968 (when his bus given to the defendant in part-exchange and his other vehicles were in operation) was £2,224 and in 1970 (when only the other vehicles were operating) £1,135. What he has lost, argues Mr. Fraser, is the difference between these two figures i.e. £1,089 a year or £90 a month. The only point against this agreement is that the earnings in 1969 were at a much higher level (£2,894) although the old bus in question was in operation for only half the year. This is true, but it seems the increase in earnings in 1969 was due to some temporary cause because in 1970, in spite of switching the second bus from a less remunerative route to a more remunerative one the earnings fall to £1,135. I think the comparison between 1968 and 1970 will give a more reliable basis for estimation. Therefore, I assess the loss of profit at Shs. 1800/- a month."

The judge then ordered, inter alia, that- the defendant do deliver to the plaintiff a new Fiat 650/EL 53 passenger bus in specific performance of the contract; that either party be at liberty to apply for assessment of damages if specific performance is not possible, and that the defendant pay to the plaintiff damages for the loss of profit at the rate of Shs. 60/- per day from 1 May 1970 to the date a new bus is delivered to the plaintiff or to the date of the payment of damages in lieu of specific performance. The defendant now appeals against the decision on three grounds, viz:

(*a*) that the judge erred in ordering the defendant to deliver a new Fiat 650/EL 52 passenger bus in specific performance of the contract in failing to hold that damages were a sufficient remedy and that the plaintiff could have obtained a similar vehicle from another source;

(*b*) that the judge erred in granting the parties liberty to apply for the assessment of damages if specific performance were not possible; and

(*c*) that the judge erred in awarding damages for the loss of profit in failing to consider the plaintiff's failure to mitigate such damage, by not taking back his old vehicle as soon as he had notice of repudiation of the contract for sale of a new vehicle.

Mr. Fraser, for the defendant, did not challenge the judge's findings in respect of the first six framed issues. However, he attacked the findings in regard to the seventh and eighth issues. He argued that under s. 52 of the Sale of Goods Act (Cap. 31) the judge had discretion to award specific performance but that discretion can only be exercised in favour of the plaintiff where damages are not a sufficient relief or where hardship will be caused to the plaintiff if specific performance is not granted. He relied, for this proposition, on the cases of *Holliday v. Lockwood*, [1917] 2 Ch. 47 and *In re Wait*, [1927] 1 Ch. 606, and Schmitthoff's The Sale of Goods, 2nd Ed., p. 192. He submitted that the judge should have satisfied himself not only that the goods were specific but also that they were still available and could be delivered and that in any case, s. 52 of the Sale of Goods Act can be invoked only in special circumstances and that in

view of the plaintiff's delay in this matter the judge exercised his discretion wrongly. Against Mr. Fraser's argument Mr. Nazareth, for the plaintiff, submitted that the judge had power to order specific performance in view of s. 52 of the Sale of Goods Act and that this was a proper case for ordering specific performance and that the judge was right in making the order. Relying on the cases of *Holroyd v. Marshall* (1861), 11 E.R. 999, *Hart v. Herwig* (1873), 8 Ch. App. 860, *Clarnigbould v. Curtis* (1852), 21 L.J. 541 and *Behnke v. Bede Shipping Co. Ltd*., [1927] 1 K.B. 649 he argued that this was a contract relating to specific property (the bus could be identified by chassis and engine numbers) which would be specifically performed unless the defendant pleaded and proved impossibility of delivery and that as the defendant did not plead or prove that it was impossible to deliver the bus, the judge properly exercised his discretion under s. 52 in awarding specific performance to the plaintiff. He submitted that the defendant in view of the correspondence between it and the plaintiff was able to carry out the contract. On the question of delay he argued it was never pleaded by the defendant; he submitted that there was no delay. Mr. Nazareth further submitted that under s. 52 of the Sale of Goods Act it is not necessary that there must be some special reason why specific performance should be awarded; the discretion must be exercised judicially but there is otherwise no control of the exercise of the discretion. Mr. Fraser complained that the judge ought not to have given an alternative remedy to specific performance if the latter was not possible as this amounted to giving an option to the parties and as such it would give rise to further arguments between the parties as to what their duties and obligations were. Mr. Nazareth contended that in giving liberty to either side to apply for assessment of damages if specific performance was not possible the judge was not giving any new alternative remedy as liberty to apply is understood to be available in a case where the court's order is impossible to comply with. Mr. Fraser finally argued that as soon as the plaintiff realised the breach of the contract or repudiation thereof by the defendant on 17 September 1969 he should have taken back his old bus and gone elsewhere for purchase of a new vehicle, thereby mitigating damages by way of loss of user of the old bus; the plaintiff would then have filed a suit against the defendant under s. 51 of the Sale of Goods Act for damages for nondelivery of the bus. Mr. Fraser submitted that failure by the plaintiff to mitigate the loss consequent upon breach disentitled him from claiming damages. Against this argument Mr. Nazareth submitted that there was no obligation on the plaintiff to take back his old bus in the circumstances of this case, particularly in view of the inconsistencies of the defendant in his conduct with regard to the question whether or not there was a contract. He argued, relying on the proposition in Cheshire and Fifoot's Law of Contract, 6th ed. p. 505, that the innocent party is not bound "to accept repudiation" of the contract "and treat himself as free from further liability", and that as the plaintiff wanted the contract to be performed he was justified in electing not to accept repudiation and thus the question of mitigation did not arise.

In this appeal liability is not in dispute. What is at issue is the kind and nature of the relief to which the plaintiff is entitled. S. 52 of the Sale of Goods Act, which gives the right to specific performance, is as follows:

> "52(1) In any action for breach of contract to deliver specific or ascertained goods the court may, if it thinks fit, on the application of the plaintiff, by its judgment or decree direct that the contract shall be performed specifically, without giving the defendant the option of retaining the goods on payment of the damages.
>
> (2) The judgment or decree may be unconditional, or upon such terms and conditions as to damages, payment of the price, and otherwise, as to

> the court may seem just, and the application by the plaintiff may be made at any time before judgment or decree."

This section does not indicate what considerations, if any, the judge should take into account in his exercise of discretion. It is identical to s. 52 of the English Sale of Goods Act 1893, and as can be observed, it gives the court very wide discretion. There is no local decision on this section and I have not been able to find an English decision on s. 52 of the 1893 Act regarding the factors to be taken into consideration when exercising discretion under the section. It seems to me that the judge can only award specific performance where damages are not a sufficient relief and if a refusal to award the same would cause hardship to the plaintiff (*Cohen v. Roche*, [1927] 1 K.B. 169). The judge in answering the agreed issue No. 7 stated that it was not usual for the court to order specific performance in the case of ordinary chattels readily available on the market. However, he said:

> ". . . in the present case, the agreement mentions the Chassis Number and the Engine Number which show, I think, that the 'goods' in the present case were specific or ascertained. In any case the vehicle mentioned would appeal to have been appropriated to this contract by the defendant. This is therefore, a proper case in which specific performance may be ordered in terms of clause 1 of the agreement."

The judge was fully aware of his wide discretion under s. 52 and the question is whether this court should interfere with the exercise of that discretion. As this is a first appeal this court is entitled to "reconsider the evidence, evaluate it itself and draw its own conclusions" – *Selle v. Associated Motor Boat Co.*, [1968] E.A. 123 at p. 126. In other words, this court is entitled, after reviewing the evidence, to decide whether the award of specific performance could properly be made. The plaintiff gave evidence and said, inter alia, that he "needed the bus badly". He did not say whether Fiat 650/EL 52 had any special features or whether his customers prefer to travel in that type of bus or whether it was "tougher", on the road than other makes. He did not say whether he could buy a similar vehicle on the market. On the other hand the defendant did not raise, as its defence, impossibility of delivery of the bus although it stated that the plaintiff could buy a similar vehicle on the market. Fiat 650/EL 52 is only available from the defendant and nowhere else. There was no evidence as to whether the plaintiff could obtain, for his old bus, the same trade-in value and the same discount from other dealers on the market. It is to be noted from the evidence that a sister company of the defendant offered the plaintiff Shs. 2,000/-less than the defendant had offered him for his old bus. The subject-matter of the contract was the Fiat 650/EL 52 bus with specific chassis and engine numbers; in other words, it was specific and ascertainable or identifiable. As the judge said "the vehicle mentioned would appear to have been appropriated to this contract by the defendant". I find considerable difficulty in regard to the judge's exercise of discretion. I think he should have given reasons for granting specific performance. There is really no serious dispute about specific facts and no dispute in respect of the credibility of the witnesses. This court, however, is entitled to reconsider the evidence, evaluate it itself and come to its own independent conclusion but, in my view, before this court can interfere it must be shown that unjudicial or unreasonable exercise of discretion has occurred. In view of the wide discretion given to the judge under s. 52 of the Sale of Goods Act, it has not been shown to me satisfactorily that the judge misdirected himself on any material particular in exercising discretion to grant specific performance. Accordingly the first ground of appeal must fail.

With regard to the second ground of appeal, in my view the judge did not give any option to the parties. He said:

> "The chassis selected for the plaintiff may no longer be available and a new chassis of this size may also not be available. A third possibility that has to be taken into account is that the plaintiff may find some legal obstacle in the way of his remitting money from Tanzania."

I am satisfied that he was merely providing for a contingency which may very well arise.

Finally, Mr. Fraser submitted that the plaintiff should have taken all reasonable steps to mitigate his loss as a result of the breach of contract by the defendant. Mr. Nazareth contended that the plaintiff wanted the contract to be performed. He referred to the plaintiff's letter to the defendant dated 25 February 1970 in which Mr. Pabary, acting for the plaintiff said, inter alia:

> "I understand Mr. Roble that he had made arrangements with the Arusha branch of National Bank of Commerce for the payment of the balance of the purchase price. . . . You are legally not entitled to repudiate the contract unilaterally and Mr. Roble holds you liable to fulfill your side of the contract by delivering to him a new Fiat 52 passenger bus as specified in the contract and unless you do so within the next three weeks, he intends to resort to legal proceedings to enforce his rights under the contract."

It would appear that the plaintiff did not accept the defendant's letter of 17 September 1969 as a repudiation of the contract. He insisted on the contract being performed. It seems to me that in view of the attitude taken by the plaintiff the contract was still subsisting. As was said by Viscount Simon, L.C in *Heyman v. Darwins* Ltd., [1942] A.C. 356 at p. 361:

> ". . . repudiation by one party standing alone does not terminate the contract. It takes two to end it, by repudiation, on the one side and acceptance of the repudiation, on the other."

In my opinion the plaintiff must be deemed to have affirmed the contract, in which case there was no question of the plaintiff taking all reasonable steps to mitigate his loss. In my view the plaintiff is not debarred from claiming damages consequent upon the defendant's breach of contract. Accordingly this ground of appeal must fail.

For these reasons I would dismiss the appeal with costs. I do not consider that a certificate for two advocates would be justified.

I would order that the defendant do deliver to the plaintiff the new Fiat 650/EL 52 passenger bus bearing the specific chassis and engine numbers in specific performance of the contract No. 4741 of 4 July 1969. As this was a suit for specific performance I think the order and decree made by the judge need some amendments. I would amend the order and decree by deleting therefrom paragraph 2, which reads:

> "That either party be and is hereby at liberty to apply for the assessment of damages if specific performance be not possible."

I would also amend the order and decree by deleting the words:

> "or to the date of the payment of damages in lieu of specific performance."

which appear in paragraph 3 thereof.

**Spry Ag P:** The facts out of which this appeal arises appear fully in the judgment of Lutta, Ag. V.-P. It is not in dispute that the trial judge had the power to order specific performance but the main question for decision is whether he was right to do so.

The judge said:

> "As regards specific performance, courts do not usually order this in the case of ordinary chattels readily available in the market."

He went on to say that the power is discretionary under s. 52 of the Sale of Goods Act and he held that the power could be exercised in the present case because the vehicle contracted to be sold constituted "specific ascertained goods", since the engine and chassis numbers were set out in the contract. (I may remark in passing that on the generally accepted interpretation of these words, the vehicle constituted specific, not ascertained, goods, since goods are "specific" when they are identified at the time of the contract and "ascertained" when they are subsequently identified or appropriated.)

After dealing with the question of damages for loss of profits, the judge reverted to the question of specific performance. He said:

> "Assessment of damages in lieu of specific performance remains to be done. There is little evidence on this. The chassis selected for the plaintiff may no longer be available and a new chassis of this size may also not be available. A third possibility that has to be taken into account is that the plaintiff may find some legal obstacle in the way of his remitting money from Tanzania. If specific performance becomes impossible due to any of these causes, then it will be necessary to assess damages.
>
> In the result, I order the specific performance of the contract and give liberty to either side to apply for the assessment of damages if specific performance be not possible."

Mr. Fraser, for the appellant company, attacked these passages on four grounds: first, he submitted, the judge had given no reason for granting specific performance, although it should only be granted for some special reason and should not be granted where damages are a sufficient remedy; secondly, he claimed that the respondent had been guilty of inordinate delay, which disentitled him to seek an equitable relief; thirdly, he claimed that a court should only order specific performance where it is satisfied that it can be performed and here the judge clearly had doubts on the subject; fourthly, he claimed that the judge had, in effect, given the respondent an option to take either specific performance or damages and he submitted that this is not allowed by s. 52.

Mr. Nazareth, for the respondent, submitted that there is no requirement of law that there should be any special reason for awarding specific performance – the matter is one entirely in the discretion of the judge; secondly, he claimed that as delay had neither been pleaded nor included in the agreed issues, it was not open to Mr. Fraser to argue it in this Court; thirdly, he claimed that it was for the appellant company to plead and prove that performance was impossible and since it had made no attempt to do so, the judge could only proceed on the assumption that it was not impossible; fourthly, he claimed that the judge had not in any sense given the respondent an option but had merely provided for a contingency that might or might not arise.

I think that as a general rule whenever a judicial discretion is exercised, reasons should be given as otherwise it is impossible for an appellate court to know whether or not there has been any error of principle.

It is quite clear that where a vendor is in breach of a contract for the sale of goods, the purchaser has the right, under s. 51 of the Sale of Goods Act, to sue for damages. He has no right, under s. 52, to demand specific performance but it is in the discretion of the court to grant it. Clearly that is a discretion which has to be exercised judicially.

The section gives no indication as to the factors which should influence a judge in exercising that discretion and, so far as I am aware, there has been no East African decision on the question. Even in England, the position is not as clear as might be expected. The rule in equity was that specific performance would not be granted unless the remedy at common law would not do justice in the matter, which meant that specific performance would not be granted if an award of damages would sufficiently compensate the aggrieved party. Under s. 52, the court now has a wider discretion but I think normally tends to follow the same principle. Moreover, a court will not order specific performance where performance is impossible or where the court cannot ensure compliance with its order.

The Kenya section is an exact reproduction of the English section and I think we should regard the decisions of the English courts on it with great respect, as is, I believe, done in other common law countries.

Since the judge gave no reasons for granting specific performance, I think that we, as a first appellate court, must review the evidence and decide whether it is such that the award could properly have been made, although we should only interfere with the exercise of judicial discretion if we are convinced that it was wrong.

The evidence on both sides was unsatisfactory. In the first place, the respondent, as a person seeking specific performance, should have given his reasons for regarding the delivery of this particular vehicle as essential. He made no attempt to do so. His only relevant evidence, given in cross-examination was when he said:

> "I was concerned only with getting a bus. I needed a bus."

He is not recorded anywhere as saying that he needed the particular vehicle contracted for, or even that he preferred Fiat buses, or that they were the most suitable for his purpose or that other makes were not available. A bare statement by a defence witness that:

> "he would have been able to get a similar bus from Leyland"

was not challenged in cross-examination. Mr. Nazareth submitted that it could not be said that there is a market in buses, but I think that this is a matter which should have been established by evidence. It may be, for all we know, that buses are freely available in East Africa to purchasers with the means to pay for them.

Another extraordinary feature of the evidence is that neither side sought to establish that the vehicle contracted to be sold was or was not available for delivery. Here, I am inclined to agree with Mr. Nazareth that the onus was on the appellant company, since the fact was one especially within the knowledge of the servants of the company.

In this connection, I would observe that the judge decided, and, with respect, I think rightly, that the vehicle was "specific goods" because the engine and chassis number were specified in the contract, yet he appears, in the passage I have quoted above, to have contemplated the supply of another, similar, vehicle by way of specific performance, and when he awarded damages, he directed that they should run until the date when "a new bus" was delivered. This error stems from the plaint itself. Specific performance can only be ordered, under s. 52, if the goods are either specific or ascertained. In the present case, the contract was for the sale of a specific vehicle, because the engine and chassis numbers were included in the contract. That being so, an order for specific performance could, in my opinion, only be in respect of that particular vehicle: it was not open to the court to order the delivery of an equivalent or similar vehicle.

Another difficulty is that the judge expressed doubts whether either the appellant company or the respondent would be in a position to perform the contract, the former because the vehicle might not be available and the latter as there might be legal difficulties in the way of his remitting money from Tanzania to Kenya. This led him to:

> "give liberty to either side to apply for the assessment of damages if specific performance be not possible".

This appears to mean that in a suit brought by the respondent for specific performance of a contract, the end result might be an award of damages to the appellant company for breach of contract. This cannot, in my view, be right.

The court never awards specific performance when it is incapable of enforcing its order. By parity of reasoning, I do not think it should ever award specific performance if it entertains any serious doubt that the contract is capable of performance.

In my view, the evidence failed to show any reason why damages would not afford a sufficient remedy. That alone would afford a sufficient reason for refusing specific performance. When there is added to that the fact that the judge had grave doubts whether either party was in a position to perform the contract, I think that specific performance should have been refused, and damages awarded for the breach of contract.

For these reasons, I would have allowed the appeal but as the other members of the Court are of a different view, there will be an order in the terms proposed by Lutta, J.A.

**Mustafa JA:** The facts of this appeal have been fully set out in the judgment of Lutta, J.A. and I need not repeat them. The main issue is whether the trial judge was right to have ordered specific performance of the contract.

The appellant had entered into an agreement to sell a Fiat passenger bus to the respondent. The bus was "specific goods", its engine and chassis numbers were known; in fact it had been appropriated to the contract. A deposit or part payment by cash and by a trade-in of an old vehicle was made and accepted by the appellants. For some obscure reasons, the appellant was most reluctant to complete the transaction. It claimed that the person who signed on their behalf had no authority to do so. In fact that was the main ground relied on by the appellant at the trial of the suit.

In dealing with the issue of specific performance, the trial judge said:

> "As regards specific performance, courts do not usually order this in the case of ordinary chattels readily available in the market – see *Cohen v. Roche*, [1927] 1 K.B. 169 at 181. The power is discretionary under section 52 of the Sale of Goods Act which applies to 'specific or ascertained goods'. . . ."

It is clear that the trial judge addressed himself correctly on the law. However, having found that this was "a proper case in which specific performance may be ordered" he proceeded to do so, without giving any reasons why he adopted that course instead of awarding damages in lieu. There is no doubt that the trial judge had a judicial discretion; the question remains whether he exercised the discretion properly. And it is only in exceptional cases that an appeal Court will interfere with the exercise of a trial judge's discretion.

The order for specific performance is rather unusual. The trial judge said:

> "Assessment of damages in lieu of specific performance remains to be done. There is little evidence of this. The chassis selected for this plaintiff

> may no longer be available and a new chassis of this size may also not be available. A third possibility . . . is that the plaintiff may find some legal obstacle in the way of his remitting money from Tanzania. If specific performance becomes impossible due to any of these causes, then it will be necessary to assess damages.
>
> In the result, I order the specific performance of the contract and give liberty to either side to apply for the assessment of damages if specific performance is not possible."

I think it is usual for reasons to be given as to why an order for specific performance in relation to chattels or goods is made. But if none are given, and if the trial judge had correctly directed himself on the law, the presumption must be that the trial judge had properly taken into account the relevant factors and circumstances in making such an order, in the absence of any evidence to the contrary. In this case the evidence adduced was vague and unsatisfactory. There is insufficient evidence as to whether the goods are special in any way, or whether the same or similar goods are readily available in the market. There is some vague passage in the respondent's evidence, "I wanted the new bus very badly", and it is not in dispute that the respondents are the sole agents and distributors of Fiat vehicles in Kenya. However there is the conduct of the parties which the trial judge would have been entitled to take account of, and he can, in the words of s. 52 of the Sale of Goods Act "if it (he) thinks fit", order specific performance. I am inclined to the view, when, as in this case, no reasons have been given, that the trial judge, an experienced judge, has exercised his discretion properly, rather than improperly, in granting specific performance, especially if, as here, he has directed himself correctly on the law.

I have referred to the terms of the order made by the trial judge. He referred to three possible obstacles to the order for specific performance:

(1) Chassis selected may no longer be available.

(2) a new chassis of the size may not be available.

(3) possible legal obstacle in remitting money from Tanzania.

Because of these possible obstacles he gave liberty to either side to apply for assessment of damages if specific performance he had ordered be not possible.

With respect the trial judge erred here. The contract could either be specifically performed, or could not be. No defence of impossibility of performance was raised or canvassed at the trial, and in my view, such a defence has to be raised by the appellant. Neither party had raised any of the three obstacles referred to by the judge at the trial; it seems the trial judge brought them out on his own in his judgment. The trial proceeded on the basis that the passenger bus, the subject of the claim, was available. If later developments establish that the subject matter is no longer available, then an appropriate application can be made. It was not for the trial judge speculatively as it were, to anticipate future or contingent possibilities. I am of opinion that the possible obstacles the trial judge referred to are extraneous and irrelevant to the matter before him and can be treated as surplusage and redundant. I do not think that the trial judge had any doubts that specific performance could be ordered in this case; it seems to me that he was attempting to look into the future and prepare for all possible contingencies. With great respect, that was not his task. For the same reason I do not think that the trial judge had, in effect, given the respondent an option to take either specific performance or damages.

For these reasons I agree with Lutta, Ag. V.-P. that the appeal be dismissed. I concur in the order proposed by Lutta, Ag. V.-P.

*Appeal dismissed.*

For the appellant:

*K. A. Fraser* (instructed by Hamilton, Harrison & Matthews, Nairobi)

For the respondent:
*J. N. Nazareth, Q.C.* and *M. R. Pabary*

# Stephen v Republic
## [1973] 1 EA 22 (HCK)

| | |
|---|---|
| **Division:** | High Court of Kenya at Mombasa |
| **Date of judgment:** | 13 October 1972 |
| **Case Number:** | 97/1972 (188/72) |
| **Before:** | Sir Dermot Sheridan J |
| **Sourced by:** | LawAfrica |

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*[1] Criminal Practice and Procedure – Visit to scene – Proper – But magistrate should not investigate offence.*

*[2] Drugs – Dangerous drugs – Identity of – No burden on accused to disprove identity – Dangerous Drugs Act* (*Cap.* 245), *s.* 22 (*K.*).

*[3] Drugs – Dangerous drugs – Possession of – Penal Code s.* 4 *definition does not apply – Common law of possession applicable.*

*[4] Criminal Law – Possession – General definition – Not applicable to offences not under the Penal Code.*

*[5] Criminal Law – Possession – Constructive possession at Common law – Right to possession necessary.*

*[6] Evidence – Expert – Drugs – Statement of knowledge of substance by policeman not sufficient.*

**Editor's Summary**

The appellant was charged with seven other young persons with being jointly in possession of cannabis contrary to s. 10 (*e*) of the Dangerous Drugs Act (Cap. 245), when sitting round a camp fire in the dark. A policeman testified that he picked up the drug near the fire and another testified that he knew the drug. The alleged confessions of the accused were repudiated.

The magistrate visited the scene which was in a public place and himself picked up further butts. None of the other accused were given an opportunity of cross-examining the accused who gave sworn evidence.

The magistrate stated that no objection to the identification of the exhibit was made by the accused, and he relied on the definition of possession in s. 4 Penal Code in convicting the accused.

**Held** –

(i) While a magistrate may visit the scene he should not act as an investigator (*Kuyate v. Republic* (5) followed);

(ii) in a joint trial all accused have the right to hear all evidence and cross-examine all witnesses (*R. v. Suke Samwe* (1) followed);

(iii) the burden of proof that a substance is within the Act does not shift to the accused and the words “or other matter of exception or defence” in the Dangerous Drugs Act, s. 22 refer back to “licence, authority”;

(iv) the statement of a policeman that he knows a drug is not sufficient to constitute him an expert (*Mynagatwa v. R.* (4) considered);

(v) the definition of possession in the Penal Code, s. 4 applies only to offences under the Penal Code;

(vi) mere knowledge of the existence of a thing is insufficient to constitute constructive possession of it at common law; there would have had to have been a common pool from which all the accused had a right to draw (*R. v. Searle* (6) followed).

Appeal allowed.

**Cases referred to in judgment:**

(1) *R. v. Suke Samwe* (1947), 14 E.A.C.A. 134.

(2) *Kamau Njoroge v. R.* (1954), 21 E.A.C.A. 257.

(3) *Kimari v. R.* (1955), 22 E.A.C.A. 472.

(4) *Mynagatwa v. R.*, [1960] E.A. 218.

(5) *Kuyate v. Republic*, [1967] E.A. 815.

(6) *R. v. Searle*, [1971] Crim. L.R. 592.

**Judgment**

**Sir Dermot Sheridan J:** On 13 April 1972, in the District Magistrate's Court at Malindi the appellant, a minor aged 13, and seven other youths were convicted on a charge of being jointly in possession of cannabis sativa contrary to s. 10 (*e*) of the Dangerous Drugs Act (Cap. 245). They were each fined Shs. 500/- or two months' imprisonment in default of payment.

The particulars of offence alleged that at 9.30 p.m. on 10 April 1972 at Silversands, Malindi they were all jointly found in possession "of cannabis sativa bhang to wit 50 grammes". There was no evidence as to how the amount of 50 grammes was arrived at.

The prosecution case depended on the evidence of P.C. Mutonga, a dog handler, and P.C. Ogola, who were on patrol at Silversands. There is nothing on the record to show that Ogola gave evidence on oath as is required by s. 151 of the Criminal Procedure Code but I think I can assume that the court administered the usual oath.

The witnesses stated that their attention was drawn by the smell of bhang. They saw the eight accused sitting round a fire near a pile of stones. Mutonga saw each of them holding a cigarette in his hand. They put them out and destroyed them when they saw the police approach. Ogola picked up some bhang wrapped in paper about 6 inches from the fire. Ogola asked each of them in turn to whom the bhang belonged and they each replied "ours". There was no clear evidence whether the accusations and replies were made in Kiswahili or English. Further the 2nd, 4th, 5th and 6th accused had foreign sounding names. Mutonga had been in the police force for 17 years and he came to know bhang when he joined.

The accused were taken to the police station and their trial began with unusual expedition next day. They were all unrepresented.

At the conclusion of Mutonga's evidence the court visited the scene. On the record there is this observation "Court picked up under a stone put there another bhang wrapped up in a piece of paper, 2 burnt white rolls of cigarettes at the place where bhang was found and drew a sketch plan". The hearing was then adjourned to 12 April when Ogola gave similar evidence. Presumably he handed over the bhang which he found, to Mutonga who he had said handed it over to P.C. Mburugu. Mburugu was not called as a witness, nor were the two pieces of bhang ever properly produced in court and marked as exhibits. There is the further point made by Mr. Georgiadis, for the appellant, that this alleged bhang was found on a camping site, a public place, to which other people had access. There was no satisfactory evidence that the accused could not have failed to see the bhang, as was held by the magistrate.

In an unsworn statement the appellant said that he was invited to join the group who were drinking spiced tea. As he was about to leave the police arrived. One of them picked up something and asked

some questions in Swahili. They did not ask him anything. The defence version is set out in more detail in the sworn testimony of Robert Durham, the 8th accused, who stated:

> "On the particular evening in question I had returned from Malindi Market. I arrived at a cooking site, the fire site. I made a second wall as

> a wind break. My baggage was located between the two windbreaks. I made a fire to make the eggs I had brought. After they were cooked, we shared with the people around. And at the main fire site they started to cook curry and rice. When this was done we then shared in the pots wash. We made a tangawizi tea with sugar and pepper. Nicholas left between the first part. After the first part Nicholas came with two others, Swiss friends. We made the second part of tea with the same ingredients. After it was done, the cups were passed around. Shortly thereafter two policemen arrived. Inquired what we were doing there. We replied, cooking tea and drinking. We were sitting around the fire. They searched the site, cooking utensils for some time then they went to the main fire place and they looked around there and found some wrapped up matter which I did not see the contents. The English speaking man said he had found bhang. He enquired as to who owned it. Those of us including me who replied stated we do not know the the ownership of it and it was not ours. Shortly thereafter the police asked if we would walk to the police station. During that time two people were attempting to sleep Dick accused No. 1 and Gerrad. No one said "Yes we would walk'. The policeman talked amongst themselves. One of them went to call the police. The one with the dog stood a guard with the rifle. Shortly thereafter I proceeded to pack my belongings. The police van arrived and we got in and drove to the police station. It was at the police station where I first saw the bhang. I was asked if I smoked bhang and I said, 'NO'. Now I am here."
>
> Cross-examined by Prosecution. "They were wearing long coats and caps. They did not identify themselves as such. I took their word as such. There were people smoking cigarettes. At some point further out, the fire was low the police found something and I saw it in his hand. The police officers did not examine the cigarettes being smoked."

It will be seen that none of the other accused were given an opportunity of cross-examining him. This was important as they were all charged with joint possession of the bhang. A similar state of affairs arose in regard to the sworn evidence of the 2nd accused. In *R. v. Suke Samwe* (1947) 14 E.A.C.A. 134 it was held that in joint trials all the accused have a right to hear all the witnesses for the defence and to cross examine all such witnesses. This was another irregularity in the trial.

In his judgment the magistrate stated that none of the accused objected that the exhibit brought to court was not bhang. Here as appears later in the judgment he was relying on the provisions of s. 22 of the Act which reads:

> "22. In any proceedings against any person for an offence under this Act or under any rules made thereunder, it shall not be necessary to negative by evidence any licence, authority or other matter of exception or defence, and the burden of proving any such matter shall lie on the person seeking to avail himself thereof."

Here I agree with the submission of Mr. Georgiadis that the ejusdem generis rule must apply. The words "other matter" refer back to the words "licence, authority" and do not create a general exception to the rule that the onus of proving that the substance in question is bhang rests on the prosecution. The magistrate misdirected himself in shifting the onus of proof on to the defence. That left only the evidence of the two police witnesses that from their knowledge and experience the substance was bhang – a matter to which the magistrate did not direct his mind.

In *Mynagatwa v. R.*, [1960] E.A. 218 the general proposition that when a police witness states that he knows bhang when he sees it is insufficient is not

contradicted but in that case the appellant admitted that the substance was bhang. The most satisfactory way of establishing that the substance was bhang would be to submit it to the Government Chemist for his report.

Mutunga's bald statement that he had come to know what was bhang since he joined the police is insufficient to make him an expert witness – compare *Kimari v. R.* (1955), 22 E.A.C.A. 472 where the police officer concerned had been shown to be an expert in relation to home-made guns.

There are appellate judgments of the High Court of Uganda, which are not available to me here, that it is dangerous to base convictions for the illegal possession of waragi on the ipse dixit of a police officer that he has experience of drinking waragi and can identify it by its taste.

With regard to the court's visit to the scene there was nothing objectionable in that but the magistrate should not have descended into the arena and made himself an investigating officer by picking up the alleged butt of bhang: *Kuyate v. Republic*, [1967] E.A. 815.

On the question of "possession" the magistrate adopted the definition in s. 4 of the Penal Code, which he set out in his judgment, where the test is the knowledge and consent, of other persons that one or more of them has something in his possession. The magistrate overlooked the governing words of s. 4 that the definition was confined to the Penal Code: see *Kamau Njoroge v. R.* (1954), 21 E.A.C.A. 257. The common law definition of "possession" applied. In order to establish constructive possession there had to be evidence that the person not in actual possession has a power of control over the person in actual possession. Even if the magistrate thought that the accused were joint offenders in the prosecution of the common purpose of smoking bhang under s. 21 of the Code the mere contiguity of the accused in the dark with only the firelight as illumination was insufficient evidence to saddle all of them with joint possession of the bhang even if one or more of them were in possession of bhang. Mere knowledge of the existence of bhang is not enough. There must be joint control. There had to be a common pool of drugs from which all the accused had a right to draw at will: *R. v. Searle*, [1971] Criminal L.R. 592.

There remains only the global confessions of each accused that the bhang was "ours". These confessions were repudiated. There is no other independent admissible evidence implicating the appellant. On the face of it is it inherently improbable that these bare confessions would have been made in the manner described by the two police witnesses.

For the above reasons I allow the appeal and set aside the conviction and sentence. I order the fine, if paid, to be refunded to the appellant.

*Order accordingly.*

## Baigumamu v Uganda
[1973] 1 EA 26 (HCU)

| | |
|---|---|
| **Division:** | High Court of Uganda at Kampala |
| **Date of judgment:** | 16 August 1972 |
| **Case Number:** | 70/1972 (190/72) |
| **Before:** | Russell Ag J |
| **Sourced by:** | LawAfrica |

*[1] Criminal Law – Forgery – False document – Falsity must be of the purport of document not contents.*

*[2] Criminal Law – Forgery – Intent to defraud or deceive – Duplicate receipt altered – Original correct – No defrauding of recipient – Penal Code, s.* 322 (*U.*).

*[3] Criminal Law – Theft – Difference between amount received and amount accounted for – Penal Code, s.* 252 (*U.*).

**Editor's Summary**

The appellant was charged with forgery, uttering a false document and with theft. He was convicted on all three counts.

He had received Shs. 30/- and had issued a receipt in that sum. He had filled in the duplicate of the receipt with the figure of Shs. 15/-. The difference of Shs. 15/- had not been accounted for.

**Held –**

(i) The appellant was not guilty of forgery as the falsity must be of the purport of the document, not its contents. The document must tell a lie about itself;

(ii) There was no defrauding or deceiving of the recipient of the receipt;

(iii) The appellant had stolen Shs. 15/- out of sum given him.

Appeal on first two counts allowed.

**Judgment**

**Russell Ag J:** The appellant was charged on the first count with forgery contrary to s. 326 of the Penal Code and the particulars of offence were stated as follows:

> "DAVID BAIGUMAMU on 18 September 1969 at Rwamucucu Gomb. Headquarters in the Kigezi District forged General Receipt No. C 703867 CR purporting to show that the sum of Shs. 30/- had been received that day in payment of judgment proceedings cost to the same amount as No. C 703867 drawn by the REPUBLIC OF UGANDA on JACKSON KOMUNDA."

On the second count he was charged with uttering a false document contrary to s. 330 of the Penal Code in relation to the same alleged General Receipt No. C 703867. On the third count he was charged with theft contrary to s. 252 of the Penal Code being the difference between the original receipt for Shs. 30/- and the Shs. 15/- shown on the duplicate and for which the appellant was bound to account.

The appellant was duly tried before a chief magistrate, convicted on all three counts and on 27 March 1972 sentenced to 9 months' imprisonment on the first count, 6 months' imprisonment on the second count and 9 months' imprisonment on the third count, such sentences to run concurrently. He has now appealed against the convictions and sentences.

It is quite clear from the evidence on record that the appellant received Shs. 30/- from Jackson Komunda on 18 September 1969 and issued the receipt

No. C 703867 for the same. Forgery consists in the making of a false document with intent to defraud or deceive. As Jackson Komunda had in fact paid Shs. 30/- and had received the said receipt for that sum he was in no way defrauded or deceived even though the appellant filled in what purported to be a duplicate copy of the receipt with the figure Shs. 15/- for which he would be accountable and converted the balance of Shs. 15/- to his own use. As far as Jackson Komunda was concerned he had paid what he believed to be the proper fee for a copy of the proceedings and judgment in a civil suit and if he had been overcharged he could have demanded a refund of any excess he had paid.

The appellant may have been guilty of the offence of fraudulent false accounting contrary to s. 305 of the Penal Code but he was certainly not guilty of forgery contrary to s. 362 of the Penal Code as the falsity must be of the purport of the document, not its contents. In other words, the document must tell a lie about itself (vide para. 2150 Archbold's 37th Edition p. 653 and *Re Windsor*, 10 Cox 118 at p. 123).

For these reasons the convictions on the first two counts are quashed and the sentences set aside. It is however apparent from the record and the findings of fact by the magistrate that the appellant received Shs. 30/- from Jackson Komunda by way of court fees and has failed to account for Shs. 15/- out of that sum. It is clear that he had not the slightest intention of paying the balance of Shs. 15/- to the court and I have no hesitation in dismissing the appeal against the conviction for theft of that sum on the third count.

In his reasons for imposing a sentence of 9 months' imprisonment on the third count the magistrate has commented:

> "The accused being a public servant at the time in this case cheated innocent people had known with how many people he must have done this during his office as Court clerk."

This was of course a serious misdirection as the offence was for stealing Shs. 15/- only and the magistrate should not have taken into consideration other speculative offences.

The appellant had served one month in prison prior to being released on bail. The offence was committed about 3 years ago and, as far as the record goes, he has conducted himself honestly and properly since then. He is also a sick man and has had this matter hanging over his head for several years. Under these circumstances the sentence on the third count is reduced to such term as would have resulted in the appellant's release at the time he was released on bail.

*Order accordingly.*

For appellant:
*J. N. Mulenga* (instructed by *Ibingira & Mulenga*, Kampala)

For the respondent:
*P. S. Ayigihugu* (Principal State Attorney)

## Multiholdings Ltd v Uganda Commercial Bank
[1973] 1 EA 28 (HCU)

| | |
|---|---|
| **Division:** | High Court of Uganda at Kampala |
| **Date of judgment:** | 2 August 1972 |
| **Case Number:** | 459/1970 (191/72) |
| **Before:** | Russell Ag J |

**Sourced by:** LawAfrica

*[1] Costs – Successful party deprived of costs – Unnecessary refusal to admit facts – Pleading false facts subsequently withdrawn – Only part of costs awarded – Civil Procedure Code, s.* 27 (*U.*).

**Editor's Summary**

The defendant successfully defended the case brought by the plaintiffs. However a considerable amount of time was wasted in disposing of completely irrelevant issues raised for the defendant who refused to admit facts which should have been admitted. The issue was that of costs.

**Held –**

(i) A successful defendant can only be deprived costs of the action for good reason;

(ii) Costs incurred completely unnecessarily would be disallowed, and the defendant would be allowed one quarter of his costs.

**Judgment**

**Russell Ag J:** Having heard counsel for both parties on the issue of costs I must now decide on whom the burden must fall and to what extent.

S. 27 (1) of the Civil Procedure Code reads:

> "27(1) Subject to such conditions and limitations as may be prescribed, and to the provisions of any law for the time being in force, the costs of an incident to all suits shall be in the discretion of the court or judge and the court or judge shall have full power to determine by whom and out of what property and to what extent such costs are to be paid, and to give all necessary directions for the purposes aforesaid. The fact that the court or judge has no jurisdiction to try the suit shall be no bar to the exercise of such powers:
>
> Provided that the costs of any action, cause or other matter or issue shall follow the event unless the court or judge shall for good reason otherwise order."

As the defendant succeeded in the suit it may only be deprived wholly or partially of the costs of the action for good reason. It appears to me that any costs incurred completely unnecessarily by the successful party owing to its refusal to admit facts which it obviously should have admitted and pleading facts which were patently false and were subsequently withdrawn should not be entitled to burden the unsuccessful party with the costs incurred in disposing of those issues.

The primary issues in this suit were finally resolved as stated in the judgment as follows:

> "Issues eleven and twelve therefore resolve themselves into the straight

> issue of whether the Bank lawfully demanded repayment of the monies secured by the debentures pursuant to the plaintiffs' covenants in that behalf in the debentures. If the demand was lawful then the Bank was entitled under the said Clause seven to appoint the receiver and managers on the failure of the plaintiffs to satisfy the demand."

The plaintiff was therefore not only successful in ten out of the twelve agreed issues but a considerable amount of time was wasted in disposing of completely irrelevant issues raised by counsel for the defence owing to a failure to appreciate the import of his own pleadings in the defence. As an instance the defence attempted during the course of the trial to contend the defendant was entitled to appoint receivers owing to a breach of a covenant in the debentures by the plaintiffs in that they had failed to carry on their business in a proper and efficient manner.

These errors and omissions on the part of the defence have in my opinion not only tended to confuse the issues and waste the time of the court but also constitute good reason for granting it such costs only as would reasonably and properly have been incurred if it had admitted facts which should have been admitted and restricted the issues to those which, in the event, resolved themselves into a short straightforward issue of law on simple facts.

I do not propose to deal with the agreed issues in detail or to act as a taxing officer and can only grant to the defendant such part of the costs as could reasonably have been claimed from the plaintiff if the defence had been properly drafted and the issues properly joined.

I consider the defendant is entitled to one quarter of the costs and order accordingly.

For the plaintiffs:
*P. J. Wilkinson, Q.C., Janjua* and *Dalal* (Instructed by *Singh & Treon*, Kampala)

For defendant:
*G. L. Binaisa, Q.C.*, and *Miss Pradhan* (instructed by *Binaisa & Co*. Kampala)

## Republic v Omari and another
[1973] 1 EA 29 (HCT)

| | |
|---|---|
| **Division:** | High Court of Tanzania at Dar es Salaam |
| **Date of judgment:** | 16 June 1972 |
| **Case Number:** | 43/1972 (193/72) |
| **Before:** | Mfalila Ag J |
| **Sourced by:** | LawAfrica |

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*[1] Criminal Practice and Procedure – Charge – Defect – Section repealed and replaced – No prejudice to accused.*

*[2] Criminal Practice and Procedure – Sentence – Minimum Sentence – Replacement of Minimum Sentences Act after improper order – Does not affect power of court – Minimum Sentences Act* 1972, *s.* 12 (*T.*).

**Editor's Summary**

On 20 October 1971 the accused were convicted of corrupt transactions with agents contrary to section 3 (2) of the Prevention of Corruption Ordinance (Cap. 400) and probation orders were made.

At that time the Ordinance had been repealed and replaced by the Prevention of Corruption Act 1971 which reenacted the offence concerned in identical words.

After sentence but before the matter came before the High Court the Minimum Sentences Act 1963 had been repealed and replaced by the Minimum Sentences Act 1972.

The Republic asked that the charge be amended and that the accused be sentenced to the minimum sentence provided by the 1972 Act as they had not been sentenced before the Act came into force.

**Held –**

(i) no prejudice had been caused to the accused by being charged under the repealed Act as the offence had been reenacted in identical terms (*Matu Gichumu v. R.* (2) followed);

(ii) it is only where an accused has not been sentenced by the trial court that the 1972 Act applies;

(iii) the sentence was being substituted for the improper one actually passed and would be under the 1963 Act.

Sentence varied.

**Cases referred to in judgment:**

(1) *R. v. Tuttle,* (1929), 45 T.L.R. 357.

(2) *Matu Gichumu v. R.* (1951), 18 E.A.C.A. 311.

**Judgment**

**Mfalila Ag J:** Notices of enhancement of sentence were issued against both accused because it was clear that the 12 months' probation orders made against them were illegal in view of the provisions of s. 5 (2) (*c*) of the Minimum Sentences Act 1963.

Both accused were charged with and found guilty of corrupt transactions with agents contrary to s. 3 (2) of the Prevention of Corruption Ordinance (Cap. 400).

Mr. Mwaipopo who appeared for the Republic argued that this court should make the revisional order under the Minimum Sentences Act 1972 because by virtue of s. 12 (2) of that Act the accused have to be sentenced under the new Act as they were not sentenced before the coming into force of this Act, and that since this type of offence is not covered by the discretion given under s. 6 (1) by virtue of sub.-s. (3) of the same section, the accused should be sentenced to a term not less than the minimum provided of three years.

With respect to the State Attorney, the Minimum Sentences Act 1972 is not applicable to this case. S. 12 (2) of this Act is only applicable to courts of first instance where no sentence had been passed. Clearly this section does not apply to appellate or revisional courts dealing with a situation where a sentence had been passed albeit an irregular sentence for were this so it would amount to these courts applying legislation which was not in force at the time the finding or sentence under review was passed. Such a situation is clearly undesirable and the framers of s. 12 (2) of the Act could not have intended such a result especially where as in this case it would put the accused at a greater disadvantage than when they were first sentenced. Therefore in determining the legality, correctness, propriety or regularity of any finding or sentence an appellate or revisional court should apply the law that existed at the time such finding or sentence was passed and any finding or sentence passed in substitution thereof must be the finding or sentence which could have been passed then. It follows from this that the law which this court will apply in making any revisional order in this case is the Minimum Sentences Act 1963 in force on 2 October 1971 when the lower court made these probation orders.

But before making any order I will deal with the difficulty arising from the manner in which the charges were made in the court below. It is noted that the accused were charged under repealed legislation. The Prevention of Corruption Act 1971 came into force on 7 May 1971. The accused were

charged with

this offence on 1 October 1971. Therefore they should not have been charged under Cap. 400 as this had already been repealed by s. 20 of the 1971 Act. The question therefore for consideration is what effect this had on the trial. If the accused were prejudiced by this oversight, the proceedings in the lower court must be declared a nullity.

However, a closer examination of the repealed s. 3 (2) of and the new s. 3 (2) of the Prevention of Corruption Act, 1971 reveals that apart from very minor details, they are identical. In these circumstances it cannot be suggested that the accused were in any way prejudiced by charging them under the repealed legislation. The English Court of Appeal dealing with the same problem in *R. v. Tuttle* (1929), 45 T.L.R. 357 held:

> "When it appears as it does that the offence under the earlier Act of 1861 was in the same words as the offence under the consolidation Act of 1916, it is clear that the appellant could not have been prejudiced and that no injustice could have been done to any defence which he had by this amendment . . . ."

These observations were quoted with approval by the Court of Appeal for Eastern Africa in *Matu Gichumu v. R.* (1951), 18 E.A.C.A. 311, where the appellants had been charged and convicted under a repealed rule, holding that the appellant was in no way prejudiced by the citation of the repealed rule since the prohibition was re-enacted in identical words in the current rules and that therefore the necessary amendment could have been made. Since I have held that the accused were not prejudiced by the citation of repealed law, the defect in the charge is curable by amending the charge to read s. 3 (2) of the Prevention of Corruption Act 1971 and to regard the accused persons as having been charged and convicted under that Act. The charge is amended accordingly.

I will now deal with the sentences imposed. It is clear that the trial magistrate had no power to make probation orders under s. 5 (2) as only one sentence is provided under that section, a prison term. The probation orders are accordingly set aside.

The trial magistrate found that the accused persons qualified to be dealt with under the discretionary provisions given under s. 5 (2) because the value of consideration they offered was less than Shs. 100/-, they were both first offenders and as to special circumstances he found that their ages and stresses of being out of employment for so long was too much temptation for them to try any methods to obtain employment. The letter which they wrote to Mr. Rashid confirms their foolish innocence. With these I am in full agreement, but having so found the accused persons should have been sentenced under s. 5 (2) to such terms of imprisonment as the court thought appropriate.

The accused are 45 years old with large families to look after; sending them to jail for a long spell would not only make them more destitute for what appears to have been an unfortunate foolish momentary lapse caused by unemployment hardships, and the lot of their families would be infinitely worse. Both accused surrendered to this temptation purely for the sake of their families. This is clear from their letter to Mr. Rashid.

For these reasons nominal sentences would serve the interests of justice in the peculiar facts of this case. The accused therefore are sentenced to imprisonment for one day.

*Order accordingly.*

The accused appeared in person.

For the Republic:
*E. L. K. Mwaipopo* (State Attorney)

## Bwogi v Republic

# [1973] 1 EA 32 (HCT)

| | |
|---|---|
| **Division:** | High Court of Tanzania at Mwanza |
| **Date of judgment:** | 14 January 1972 |
| **Case Number:** | 846/1970 (194/72) |
| **Before:** | Kisanga Ag J |
| **Sourced by:** | LawAfrica |

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*[1] Criminal Law – Theft – By public servant – Servant of company wholly owned by Government not a public servant.*

**Editor's Summary**

The appellant was convicted of theft by a public servant, having stolen money of the Tanzania Electricity Supply Co. Ltd., a limited liability company wholly owned by the government. In support of the sentence imposed under the Minimum Sentences Act it was argued that the money necessarily belonged to government and that the appellant was a public servant.

**Held –** The company has a separate legal existence and is therefore separate from government.

Appeal allowed. Conviction of theft substituted.

**No cases referred to in judgment.**

**Judgment**

**Kisanga Ag J:** The appellant January Bwogi was convicted of stealing by public servant contrary to section 270 of the Penal Code and was sentenced under the Minimum Sentences Act to four years' imprisonment with 24 strokes of corporal punishment. He now appeals against both conviction and sentence.

Briefly the facts were that the appellant was employed at Bukoba by the Tanzania Electric Supply Company Ltd., commonly known as TANESCO, and his duties were those of a typist and telephone operator. He demanded and received sums of money from various customers of the Company purporting to be payments for the electricity supplied to them by the company. According to the charge sheet the sums so received and misappropriated by the appellant amounted to Shs. 367/50. In his sworn evidence the appellant completely denied the charge. He contended that he could not have received the money on behalf of the company because his duties as a typist and telephone operator did not involve handling of any money.

[The judge upheld the conviction and continued.]

The trial magistrate sentenced the appellant under the Minimum Sentences Act, and the question is whether the offence with which the appellant was convicted was a scheduled offence. There is no doubt that the money stolen belonged to TANESCO because the appellant received it on behalf of the Company but instead of remitting it to the Company he misappropriated it. The Engineer in charge of TANESCO, Bukoba, testified that TANESCO is entirely the property of the Government. Thus although the learned trial magistrate does not give reasons for invoking the Minimum Sentences Act, he would appear to have reasoned that since TANESCO is wholly owned by the Government then the appellant was an employee of the Government and that any money belonging to TANESCO

necessarily belonged to the Government, so that the offence proved fell within the Minimum Sentences Act. With this view, however, I am unable to agree. TANESCO is a registered company and as such it has a separate legal existence of its own. As a legal person it has

power to own property, power to sue and be sued and power to enter into contract with its employees, quite independently of the Government. Although TANESCO is wholly owned by the Government this could not warrant the conclusion that the appellant was an employee of the Government so that the monies belonging to the Company were Government money. On the evidence before the court, the true position would be that the Government was merely a shareholder enjoying the rights of a shareholder including the right to participate in dividends and profits while the assets and the incomes accruing from various sources remain vested in the company as its property, and the company retains its power to enter into contracts with its own employees. I am therefore of the opinion that an employee of TANESCO is not a public servant for the purpose of the Minimum Sentences Act.

It is clear on the facts that the correct charge should have been one of stealing by servant. But the appellant was not charged with that offence. I am therefore unable to enter an alternative conviction for theft by servant and I think that only a conviction for simple theft would be proper. Accordingly the conviction for theft by public servant is set aside and one for simple theft substituted therefor. It follows that the provisions of the Minimum Sentences Act do not apply because TANESCO is not one of those institutions specified under paragraph 3 of Part I of the Schedule to the Minimum Sentences Act and therefore the order for 24 strokes of corporal punishment is set aside. The appellant admitted three previous convictions. In the circumstances I set aside the order for four years' imprisonment and substitute therefore a prison term of 2 1/2 years. The appeal is therefore partly allowed.

*Order accordingly.*

The appellant was unrepresented.

For the respondent:
*W. J. Butambala* (State Attorney)

## Zuberi v Returning Officer and another
[1973] 1 EA 33 (HCT)

| | |
|---|---|
| **Division:** | High Court of Tanzania at Arusha |
| **Date of judgment:** | 8 July 1972 |
| **Case Number:** | 10/1970 (198/72) |
| **Before:** | Patel Ag J |
| **Sourced by:** | LawAfrica |

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*[1] Costs – Indemnity to Party – Where no liability on party no instruction fee chargeable.*

*[2] Costs – State attorney – Whether state attorney can charge instruction fee.*

**Editor's Summary**

The returning officer, a respondent to an election petition was represented at the hearing by a state attorney, and was awarded costs.

The bill as filed claimed an instruction fee, and travelling expenses which were neither itemised nor supported by bills or vouchers.

The petitioner objected to the allowance of these items, contending as regards the instruction fee that a state attorney was not an advocate within the definition in the Advocates Ordinance (Cap. 341).

**Held –**

(i) a state attorney is entitled to practise as an advocate;

(ii) the respondent had incurred no liability to the state attorney and costs are an indemnity to the party;

(iii) accordingly no instruction fee was chargeable;

(iv) disbursements must be vouched for.

Bill remitted for retaxation of disbursements.

**Cases referred to in judgment:**

(1) *Republic v. Michael Mhuto*, [1970] H.C.D. (unreported).

**Judgment**

**Patel Ag J:** The applicant objects to the decision of the taxing master and has now referred his objection for the decision of this Court. In the affidavit following are the grounds of objection:

2. The taxing master erred in allowing the other items of the respondent's bill of costs in addition to item 1 for:
   - (*a*) The Respondents did not secure a certificate from the judge for fees of more than one advocate.
   - (*b*) The order awarding to respondents half of the sum in item No. 2 (*b*) (ii) was erroneous in view of the reason given in 2 (*a*) above.
   - (*c*) The taxing master was further in error in awarding the expenses for Mr. Warioba who did not even conduct the case for the respondents as the record would reveal.
   - (*d*) The taxing master likewise erred in awarding expenses incurred by Mr. Osman as a witness, when the latter never gave any testimony, as the record shows.
3. The record would further reveal that the other state attorneys to wit Messrs. Y. Mwakasendo and N. King did not at all appear in the Petition.

In order to have a clear idea of the matter it is necessary to refer to the successful respondent's bill of costs. For the sake of convenience I quote it:

*Respondent's Bill of Costs*

| *Items* | *Particulars* | *Charge* (Shs.) |
|---|---|---|
| 1. | Instructions to defend the petition and conduct the hearing of the petition. | 2,000/- |
| | *Disbursement* | |
| 2. | (*a*) Expenses on witnesses transport from Babati to Arusha and back plus subsistence allowances and hotel accommodation on 1st June, 1971 to 4th June, 1971 plus returning Officer's (Saidi Roberts) travel from Utete to Arusha – Babati on investigation and back and hiring of a vehicle from Babati to Arusha to carry exhibits. | 3,169/60 |
| | (*b*) Travel expenses incurred on the State Attorneys and director of Elections from Dsm. to Arusha and Moshi to carry out investigation and conducting the case before the High Court Arusha plus hotel accommodation in Febr. May/June, 1971; | |
| | (i) State Attorney Arusha, travel expenses from Arusha to Babati and back on investigation 5.2.71 and 6.2.71 | 538/25 |
| | (ii) Payment in respect of travel expenses – Mr. N. King (Senior State Attorney) Mr. Mwakasendo (Ass. Attorney General), Mr. Warioba (State Attorney) and Y. Osman (Director of Elections) from Dsm. to Arusha and back plus hotel accommodation. | 3,602/05 |
| | Total charges = | 8,309/90 |

The taxing master after hearing both Mr. Lubuva for the successful respondent and Mr. Kirrita for the unsuccessful petitioner taxed the said bill of costs at Shs. 5,970/65. It is made up as follows:

| *Item* | *Taxed Off* (Shs.) | *Allowed* (Shs.) |
|---|---|---|
| No. 1 | — | 2,000/- |
| No. 2 (*a*) | 500/- | 2,669/- |
| No. 2 (*b*) (i) | 538/25 | — |
| No. 2 (*b*) (ii) | 1,301/- | 1,301/05 |
| | | 5,970/65 |

The matter concerns an election petition when the unsuccessful candidate petitioned to the court where originally the returning officer was the respondent. Later the successful candidate was joined as the second respondent. The petitioner having lost the respondents filed this bill of costs. Mr. Kirrita for the unsuccessful petitioner said there are many errors made by taxing masters in allowing bill of costs as he did. He said the bill of costs is filed under the Advocates Ordinance (Cap. 341) and also The Advocates' Remuneration and Taxation of Costs Rules. He said under s. 2 of The Advocates Ordinance the word "advocate" is defined as follows:

> "advocate" means any person whose name is duly entered as an advocate upon the Roll."

Mr. Kirrita submitted that a "State Attorney" is not an advocate and as such the whole of Bill of costs could not be entertained. He said the respondents are the returning officer and the successful candidate and the bill of costs must be for the benefit of the respondents for actual money spent on litigation and to compensate them for expenses incurred. He said the state attorney represents the Republic and not a parliamentary candidate who is the respondent. Have the respondents paid anything to the state attorney as fees or is the state attorney paid a salary by the Republic? As for item No. 1 which is instruction fee of Shs. 2,000/- Mr. Kirrita said if it is allowed, would it go to the respondents or Mr. Lubuva or the Republic? If respondent gets it, it will be a gain for something never spent. If Republic get it, why should they when the Republic is not a party? Mr. Lubuva in reply said under s. 3 of The Advocates Ordinance as a state attorney is also an advocate. He said they are entitled to practice as advocates, so if they function as advocates it would follow by implication that they are advocates and as such they could claim instruction fees, even if a state attorney does not appear in the roll of advocates as defined. Mr. Lubuva after saying this asked for adjournment to enable him to carry out research in law and consult authorities concerned at Dar es Salaam as the matter as he said is very important. Request was granted and later Mr. Lubuva said there is no clear precedent on this point that costs when awarded should go to the Republic. He went on to say that costs were awarded to the successful party which in this case is Republic of Tanzania as the Attorney General was a party on behalf of the Returning Officer and successful candidate and Government can claim *costs incurred* in this case.

The petition is made under the Election Act 1970. S. 132 of the said Act states:

> "132. The Chief Justice may make Rules of Court regulating the procedure and practice to be followed and prescribing the fees to be paid on and in relation to petitions and applications under this Part."

These Rules of Court are the Elections (Election Petitions) Rules, 1971. R. 26 reads as follows:

> "26(1) Subject to the provisions of the Act and of these Rules, the practice and procedure in respect of a petition shall be regulated, as nearly as may be, by the Rules regulating the practice and procedure in a civil suit.
>
> (2) Without prejudice to the generality of the provisions of paragraph (1) of this rule, the provisions of section 45 of the First Schedule to the Civil Procedure Code, 1966 which relate to discovery and inspection of documents, admissions, production, impounding and retaining of documents, transfer of proceedings, settlement of issues and determination of suits, summoning of witnesses, admissibility of affidavits, awarding of costs, judgments and execution of a decree, shall mutatis mutandis to the proceedings on a trial of a petition and to the enforcement of an order for costs made by the Court;
>
> Provided that no order for costs made against the Attorney-General may be executed or enforced against the Attorney-General or the Government of the United Republic."

This rule clearly applies to the order for costs made by Kwikima, J. in the present petition.

As for Mr. Kirrita's submission that a State Attorney is not an "advocate" as he is not on the roll of advocates under s. 2 of Advocates Ordinance, with due respect he is not quite correct. As rightly pointed out by Mr. Lubuva a state attorney is an advocate under s. 3 of the Advocates Ordinance as he is entitled to practice as an advocate in the High Court or any court subordinate thereto provided he does so in connection with the duties of his Office. Mr. Lubuva appeared and argued the matter in connection with the duties of his office and filing a bill of costs in pursuance of Court's Order which granted costs to the respondent is a continuation of the work in hand and in continuation of his duties. Mr. Kirrita fails on this submission. As for instruction fees Mr. Kirrita submitted that Mr. Lubuva as a State Attorney is paid a salary and he was not paid by the respondent any fees and as such no instruction fees should be allowed. But Kwikima, J. awarded costs to the successful respondent under s. 26 of the Elections (Election Petitions) Rules 1971. Award of costs is at the discretion of Court. As a general rule costs follow the event and the direction of the Election Court in dealing with costs is absolute and cannot be reviewed by the High Court.

The question arises whether instruction fees are included in the order of court when it awarded costs to the respondent who in the present bill of costs is the returning officer and not the successful candidate. Mr. Kirrita submitted it does not while Mr. Lubuva said it does. It is a fact that neither of the respondents paid any fees to the State Attorney who represented them at the hearing of the petition, who again is paid salary by the Republic and he represented Attorney-General and normally represents the Attorney-General in court. If it is so, can the respondent get any instruction fee? Is the Attorney-General or the Republic entitled to instruction fees amounting to Shs. 2,000/- when in fact this sum is not shown to have been spent by anyone or paid by anyone to anybody? Or did the state attorney argue the petition as part of his normal duties? I refer to para. 585 of Halsbury's Laws of England, 3rd ed. Vol. 14, on page 320. It says:

> "The Director of Public Prosecutions and his assistant or representatives are to be paid such allowances as the Treasury may approve for *expenses* for the purposes of Part III of the Representation of the Peoples Act 1949 *other than his general duties* of making inquiries into corrupt or illegal practices which he is informed have occurred and of instituting prosecutions which

> appear to be required. The *costs incurred* in defraying the expenses of the Director of Public Prosecutions incurred for those purposes including the remuneration of his representatives are in the first instance, to be paid by the Treasury."

The operative words have been underlined by me which are "expenses" "other than his general duties" and "costs incurred". The word "expenses" suggest money actually spent and not "instruction fees". As for "other than his general duties" are not instructions to the state attorney who is a representative of the Attorney General to defend the petition and conduct the hearing of the petition a part of his general duties, as a state attorney? The words "costs incurred" would mean money actually spent and not instruction fees.

I tried to look for a precedent which would apply to the present matter on all fours but as Mr. Lubuva said there is not one. However, nearest to it is the following case in which Georges, C.J. made certain observations. It is: *Republic v. Michael Mhuto*, [1970] H.C.D. (unreported).

In this matter the advocate for the defence failed to appear on the hearing date which had originally been agreed between the prosecutor and himself. He sent no message explaining his absence. The prosecution witnesses all appeared and waited a day in court as a result. They were all government servants working in Dar es Salaam, so that no specific costs were incurred.

It was held by Georges, C.J. that:

> "Costs are expenses incurred by a party to an action and that if the Republic had incurred no costs then none could be awarded."

For these reasons though the petition was dismissed with costs this order for costs does not and cannot include instruction fees as claimed by the respondent. The taxing master erred in law when he awarded the sum of Shs. 2,000/- claimed by the respondent towards instruction fees.

Now I will deal with the second leg of Mr. Kirrita's arguments which is on disbursements claimed. The main point is that no bills or vouchers to support the disbursements claimed were attached to the bill of costs as required by r. 53 of the Advocates Remuneration and Taxation of Costs Rules. R. 53 reads:

> "53. Receipts or vouchers for all disbursements charged in a bill of costs together with all documents or drafts or copies thereof shall be produced on taxation."

Mr. Kirrita submitted that no bill or voucher to support the disbursements claimed was produced by Mr. Lubuva. He went on to say this is fatal and the taxing master was wrong to allow such disbursements as he did. Mr. Lubuva conceded that none of the bills or vouchers were produced in Court but this was an oversight on the part of the respondent. He said the court should invoke the provisions of r. 46 of the Remuneration Rules and refer the matter back to taxing master when the respondent be allowed to present his bill of costs duly supported by documents as required by r. 53.

Going through the bill of costs it can be seen that not only has the respondent failed to submit supporting bills and vouchers but the amount claimed as disbursements is not correctly itemised. Different sums are claimed for transport charges, for witnesses who travelled from Babati and Dar es Salaam to Arusha, and their hotel expenses all lumped together. This is against the prescribed Rules. The taxing master disallowed 2 (*b*) (i) but went on to allow items 2 (*a*) (i) and 2 (*b*) (ii) after reducing them. He did so arbitrarily and without having any material or details as to how he arrived at the figures he allowed. In this he erred and his conclusions are against the Rules. He had no basis to grant what

he did. Moreover under r. 60 of the Remuneration Rules it is mandatory for an advocate to make a signed statement when claiming witnesses expenses containing many details. It reads as follows:

> "60. When taxing costs witnesses expenses shall be supported by a statement signed by the advocates and filed with the bill of costs stating the place of abode and condition, quality, occupation or rank in life of witnesses or intended witnesses charged for. The distance they have to travel, the mode of travel, and if by rail the class in which the witness travelled for the purpose of attending the trial, also whether to the knowledge or belief of the deponents they attended as witnesses in any other cause or come upon any other business; also that they were material and necessary witnesses for the party on the trial of the cause, and notes of their evidence must be produced on taxation."

A statement as required by r. 60 of the Remuneration Rules is not filed together with the bill of costs, in the present bill a sum of Shs. 6,309/05 is claimed towards disbursements. This is a very large sum indeed. Ironically it is not itemised as it ought to have been and is not supported by a single bill or voucher. There is in addition no statement of Mr. Lubuva as regards witnesses expenses as required by r. 60. All this when put together make a mockery of a bill of costs. In view of the Kwikima J.'s order on costs, the respondent can successfully claim disbursements but certainly not on a bill of costs presented as in this case. The taxing master just did not have sufficient material before him to enable him to decide which disbursements to allow and how much and in respect of whom. The taxing master in his ruling conceded that he agreed with Mr. Kirrita that the manner in which item 2 (*a*) (1) is claimed is not satisfactory and it was necessary to show clearly what was the amount paid as subsistence allowance to the witnesses, and the cost of hiring a vehicle to Babati but in spite of that he went on to allow Shs. 2,259/60 out of Shs. 3,169/60 though he had no material to calculate disbursements. As for item 2 (*b*) (ii) under which a sum of Shs. 2,602/05 is claimed in respect of travel expenses for three state attorneys and one witness from Dar to Arusha and their hotel expenses the taxing master conceded that judge's certificate for claiming costs of two advocates has not been obtained as it should have been and that a substantial amount spent and claimed was incurred without reasonable cause and, yet he allowed 50 per cent, of the sum claimed. But he had no material to grant what he did as no bills, vouchers, receipts or air tickets were produced before him and he did not take into account matters that he should have considered; his reasoning is correct but his conclusion is wrong.

This Court as a rule does not interfere with the decision of the taxing master on a question of fact or amount but where the taxing master has not had reasonably sufficient material before him or has not taken into account matters that he should have considered, this court can order a review.

For these reasons I order that a review of respondents bill of costs as regards disbursements only be conducted before another taxing master.

*Order accordingly.*

For the petitioner:
*J. W. Kiritta*

For the respondent.
*D. Z. Lubuva* (state attorney)

## Jaffer v Republic
[1973] 1 EA 39 (HCT)

**Division:** High Court of Tanzania at Dodoma

**Date of judgment:** 25 February 1972

**Case Number:** 1/1972 (199/72)

**Before:** Mnzavas J

**Sourced by:** LawAfrica

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*[1] Criminal Practice and Procedure – Bail – Offences subject to Minimum sentence – Bailable.*

*[2] Criminal Practice and Procedure – Bail – Principles of granting – Allegation of tampering with witnesses – Must be supported by facts.*

**Editor's Summary**

The applicant was charged before a magistrate with an offence carrying a minimum sentence. His application for bail was refused, the magistrate implying that he had committed the offence. Further the magistrate stated that the applicant was neither a citizen nor a member of T.A.N.U.

Without facts in support the magistrate accepted the submission that the applicant was likely to interfere with witnesses or abscond.

On appeal:

**Held –**

(i) offences falling under the Minimum Sentences Act are bailable;

(ii) it should not have been suggested that the applicant had committed the offence;

(iii) the applicant's citizenship and membership or otherwise of the political party were totally irrelevant;

(iv) where the allegation of tampering with witnesses is made it should be supported by facts showing reasonable cause for the belief (*Bhagwanji Kakubhai v. R.* (1) followed).

Appeal allowed.

**Case referred to in judgment:**

(1) *Bhagwanji Kakubhai v. R.*, 1 T.L.R. 143.

**Judgment**

**Mnzavas J:** The accused Abdul Mohamed Jaffer was brought before the Dodoma district court and charged with corrupt transaction contrary to s. 3 (2) and (3) of the Prevention of Corruption Act 1971.

He pleaded not guilty to the offence and soon after the prosecutor pleaded to the court that he was opposing bail on the grounds that:

(i) that the accused was an influential person in the town;

(ii) that the prosecution had still to interview three prosecution witnesses and that it was feared that if the accused was released on bail he would interfere with these witnesses;

(iii) that there was a possibility that the accused would abscond if released on bail.

It was further argued that even if the accused was to surrender his passport to the court, that would not be a guarantee that he could not abscond as there were possibilities that the accused had more than

one passport.

Counsel for the accused in his submission told the lower court that there was

no evidence to support the prosecutor's allegation that the accused would not attend his trial and offered to surrender to the police accused's passport as well as production of substantial and reliable sureties but the district magistrate ruled against him and remanded the accused in custody for 7 days as asked by the prosecution.

Dissatisfied with the district magistrate's order the accused has come to this court.

Before this court the applicant's counsel has vigorously attacked the magistrate's ruling. It was argued that the magistrate in arriving at his decision, took into account irrelevant matters such as to whether the accused was a citizen of this country and a member of TANU.

It was with equal force submitted that the ruling was discriminatory and that the magistrate's language showed that he had come to the conclusion that the applicant had in fact given the alleged bribe whereas there was no evidence entitling him to come to that conclusion at that stage.

The state attorney who appeared on behalf of the Republic was of the view that the district magistrate misdirected himself as to the considerations which had to be taken into account when deciding whether bail should be granted or refused. With respect, I agree with the views expressed by counsel.

At this juncture I would like to refer to the most relevant parts of the ruling of the district magistrate pointing to his misdirections:

> "I agree with submission made by the advocate for defence but it must be remembered that such offences are under the M.S.A.; and that such offences are almost involving civil servants, and in this case Mr. Kipindura, being a civil servant though very careful not to accept the bribe, but to bring the culprit before the law . . . and if accused person is really citizen of Tanzania, he should have not offered the bribe as alleged, because it is said by the TANU Party and I hope, the accused is also a member of TANU, that 'I will not give or receive bribe'. So therefore this should have been remembered before committing such an alleged offence".

The magistrate then proceeded and upheld the prosecution's case in opposing bail and remanded the applicant in custody for 7 days.

This was by any standards gross misdirection by the district magistrate.

For the district magistrate to imply in his ruling that he was not prepared to grant bail to the applicant because the alleged offence fell under the Minimum Sentences Act and because such offences involve civil servants is, to say the least, beyond my comprehension. Offences falling under the Minimum Sentences Act are bailable offences. When dealing with the question of bail where a scheduled offence is involved, as was in this case, the usual considerations whether to grant or refuse bail should apply. The fact that an alleged offence is one under the Minimum Sentences Act should not form the basis of a court's ruling on the question of whether to grant or refuse bail.

The magistrate is saying . . . "and if the accused person is really citizen of Tanzania, he should have not offered the bribe as alleged, because it is said by the TANU party, and I hope, the accused is also a member of TANU, that 'I will not give or receive bribe'. So this should have been remembered before committing such an alleged offence."

The primary object of remanding an accused in custody is to ensure that he will appear to take his trial and not seek to evade justice by leaving the jurisdiction of the court. This is, in my view, the main and most important consideration to be examined before an application for bail pending trial is granted or refused.

Then there are such less important considerations as the nature and seriousness of the alleged offence, the severity of punishment involved and if available at the time of application for bail the strength of evidence in support of the charge.

These are the considerations the district magistrate should have taken into account before coming to his decision. The district magistrate should know, that it is not part of our law to keep a man in gaol because he is not a citizen of Tanzania or for that matter a member of TANU. To do so would be going counter to the very principles enshrined by TANU as well as the country's Constitutions.

What the prosecutor alleged (the magistrate did not examine the allegations) was that the applicant would, if released on bail, tamper with three prosecution witnesses who had not been contacted by the prosecution, and that there was a possibility that the accused would leave the jurisdiction of the court if allowed bail.

Time and again this court has said that the true test of a bail application is whether the granting of the application will be detrimental to the interest of justice. It is for the prosecution to satisfy the court that this would be so if bail was granted. Dealing with the question of tampering with witnesses Wilson, Ag. C.J. (as he then was) said in *Bhagwanji Kakubhai v. R.*, 1 T.L.R. p. 143 . . . "The tests laid down (in English cases) were that there should be a definite allegation of tampering or attempted tampering with witnesses supported by proved or admitted facts showing reasonable cause for the belief that such interference with the cause of justice was likely to occur if the accused was released".

In the present case there was no more than mere assertion by the prosecutor that the applicant would interfere with prosecution witnesses if released on bail. There were also fears that he would abscond. There was no evidence whatsoever to support these hypothetical fears.

The district magistrate was clearly wrong in his ruling. Like the state attorney I agree that the applicant should be granted bail pending his trial.

I accordingly order that the accused be admitted to bail on his furnishing bail of Shs. 5,000/- cash and two substantial and independent sureties in like sum as suggested by the state attorney. The court further orders the accused to surrender his passport to the police. The resident magistrate should see that the above orders are complied with before the accused is allowed bail.

*Order accordingly*.

For the applicant.
*N. S. Mangat*

For the respondent.
*G. Somi* (State Attorney)

## Republic v Kimanga and another
[1973] 1 EA 42 (HCT)

| | |
|---|---|
| **Division:** | High Court of Tanzania at Dodoma |
| **Date of judgment:** | 15 June 1972 |
| **Case Number:** | 35/1972 (201/72) |
| **Before:** | Mnzavas J |
| **Sourced by:** | LawAfrica |

*[1] Criminal Law – Breach of the peace – Obscene language – Only police officers present – No possibility of breach of peace.*

**Editor's Summary**

The two accused were alone at a beer shop when three police officers arrived with news of the death of the First Vice-President. The accused then uttered obscene and abusive remarks about the deceased, and were charged and convicted of using obscene language in a manner likely to cause a breach of the peace.

On revision:

**Held –** the language could not be likely to cause a breach of the peace by the police officers (*Republic v. John Augustino*) (1) followed).

Appeal allowed.

**Cases referred to in judgment:**

(1) *Republic v. John Augustino*, [1967] H.C.D. 61 (unreported).

(2) *Volter Hopp v. Republic*, [1967] H.C.D. 91 (unreported).

(3) *Salim Sefu v. Republic*, [1969] H.C.D. 177 (unreported).

(4) *Mdeha v. Republic*, [1970] H.C.D. 310 (unreported).

**Judgment**

**Mnzavas J:** The accused were, on their own pleas of guilty, convicted of using obscene language in such a manner as was likely to cause a breach of the peace c/s 89 (1) (*a*) of the Penal Code and each sentenced to six months' imprisonment.

Bearing in mind the technicality of s. 89 (1) (*a*) the record was called for inspection.

The facts leading to the charge of the accused are as follows:

On 8 April 1972 the first accused, a post-master at Chunya, and the second accused, a health inspector, were at a beer-shop when they heard about the death of the late First Vice-President of Tanzania. The facts alleged that on hearing the sad news, they uttered derogatory remarks about the late First Vice-President in the presence of three police officers, one Mwita, Antony and another, Andrew; who had gone there to order the closure of the pombe-shop on hearing of the sad news.

That the remarks uttered by the two accused about the late Sheikh Karume were obscene and abusive, there can be no doubt. But the vital question which had to be decided by the trial court was whether the remarks were, on the facts of this case, likely to cause a breach of the peace.

As rightly mentioned by the state attorney High Court decisions on the interpretation of s. 89 (1) (*a*) and (*b*) of the Penal Code are conflicting.

One view of the interpretation of s. 89 (1) (*a*) is that by Hamlyn, J. in *Republic v. John Augustino* (1967), H.C.D. 61. The facts in that case were that the accused, while under the influence of alcohol verbally deprecated the President

of Tanzania, and said that he would burn down the house of anyone who disagreed with him.

The judge in his judgment held:

> "The statute is aimed at preventing incitements to physical violence. Mere annoyance or displeasure among the listeners is not sufficient . . . . the breach of the peace referred to by the statute contemplates only action by the listeners."

Directly contradicting this decision is the decision in *Volter Hopp v. Republic* (1967), H.C.D. 91 in which Mustafa, J. (as he then was) said when interpreting the provisions of s. 89 (1) (*a*):

> "Since the purpose of the statute is to prevent public disturbances as a result of hearing offensive language, it is immaterial that the person to whom the remarks are directed does not testify, or is himself not incited."

The Republic argued that the interpretation by Hamlyn, J. was the right interpretation as it has since been supported by subsequent judgments. In *Salum Sefu v. Republic* (1969), H.C.D. 177 four accused were, among other offences, convicted of brawling and creating disturbance in such a manner as likely to cause a breach of the peace c/s 89 (1) (*b*). The facts showed that the accused did in fact create disturbances in the police station in the presence of police officers. The question was whether their behaviour in the presence of police officers was likely to cause a breach of the peace. Duff, J., in allowing the appeal said:

> "The persons present who could have been provoked were the police, and it could not be suggested that they could act with anything but due professional restraint. A few years ago it was held that experienced police officers are clad in a 'spiritual asbestos' when it comes to the likelihood of corruption by obscene literature, and it could be equally argued that they are, by virtue of their occupation, less likely to be provoked by brawls or disturbances . . . and it follows that in all the circumstances of this case it was most unlikely that there was a threat to the peace."

Another decision in support of the interpretation of s. 89 (1) (*a*) of the Penal Code by Hamlyn L. is the decision in *Mdeha v. Republic* (1970), H.C.D. 310 where one of the charges was that of using abusive language likely to cause a breach of the Peace c/s 89 (1) (*a*) of the Penal Code. Here the accused was alleged to have used abusive language against and in the presence of a primary court magistrate.

Biron, J. in interpreting s. 89 (1) (*a*) said:

> "It is an indispensable ingredient of the offence that the abusive language uttered by the accused, in this case the appellant, was likely to cause a breach of the peace."

The judge quoted and followed *R. v. John* above.

In the present case the facts clearly show that the obscene utterances were made by the accused in the presence of police officers. The record does not show that there were other people apart from the three police officers. This being the position and the facts being similar to the two decisions by Hamlyn and Biron, JJ. above; it is most unlikely, indeed inconceivable, that the three police officers would have, on hearing the utterances of the accused, resorted to physical violence and thereby created a breach of the peace.

The convictions which are not supported by the Republic are hereby quashed and the sentences are set aside.

The accused are to be released forthwith unless they are in lawful custody in connection with another matter.

*Order accordingly.*

The accused were unrepresented.

For the Republic:
*J. K. De Souza* (State Attorney)

# Piru v Republic
## [1973] 1 EA 44 (HCT)

| | |
|---|---|
| **Division:** | High Court of Tanzania at Dar es Salaam |
| **Date of judgment:** | 12 April 1972 |
| **Case Number:** | 56/1972 (203/72) |
| **Before:** | Mwakasendo Ag J |
| **Sourced by:** | LawAfrica |

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*[1] Criminal Practice and Procedure – Charge – Duplicity – Failure to pay wages – Each months' failure a separate offence.*

*[2] Criminal Practice and Procedure – Charge – Duplicity – Failure to prepare or cause to be prepared and maintained a record of oral contract of service – Charge duplex.*

**Editor's Summary**

The appellant was charged in a single charge with failing to pay wages to a particular employee for 15 months, and with failing to prepare or cause to be prepared and maintained a record of an oral contract of service in another charge.

On appeal:

**Held –** both charges were duplex, containing several offences.

Appeal allowed.

**Cases referred to in judgment:**

(1) *D.P.P. v. Gymkhana Club Arusha*, Cr. A. 411 of 1964 (unreported).

(2) *D.P.P. v. Fazal Nazerali & Co. Ltd.*, Cr. A. 479 of 1964 (unreported).

(3) *Mambo Shoo Bar v. Republic*, Cr. A.926 of 1970 (unreported).

**Judgment**

**Mwakasendo Ag J:** The appellant in this case appeals against the conviction and sentence on four of

five counts preferred against him under various provisions of Labour enactments.

The four counts on which the appellant was found guilty and sentenced were framed as follows:

*First Count*: Failure to pay wages to an employee c/s 149 (*a*) and 154 of Cap. 366.

Particulars of Offence: That the accused person did fail to pay wages due to his employee, Levi William, who worked for him from January 1970 to 23rd March 1971, amounting to Shs. 1,772/-, calculated at a rate of Shs. 120/- per month, without reasonable and probable cause for thinking that such wages were in fact not due.

*Second Count*: Failure to pay minimum wages to an employee c/s 12 (2) of Cap. 300.

Particulars of Offence: That the person charged did on 31st December 1969 fail to pay minimum wages to the said employee Levi William who worked for him from 9th October 1965 to 31st December 1969; on which the employer managed to pay Shs. 500/- only, hence the arrears amounting to Shs. 4,144/- i.e.

| | | | |
|---|---|---|---|
| From 9.10.65 to 30.10.65 | = | Shs. | 84/- |
| From 1.11.65 to 31.12.65 | = | Shs. | 240/- |
| From 1.1.66 to 31.12.69 | = | Shs. | 4,320/- |
| | | Shs. | 4,644/- |
| From Amount already paid | = | Shs. | 500/- |
| Total amount now due | = | Shs. | 4,144/- |

*Third Count*: Failure to pay Severance Allowance to an employee c/s 12 (*a*) & (*b*) of Cap. 487 as amended by Act 57/62.

Particulars of Offence: That the accused person did on 23rd March 1971 fail to pay severance allowance to his employee, Levi William, amounting to Shs. 360/- after terminating him.

*Fifth Count*: Failure to prepare or cause to be prepared and maintained a record of Oral Contract of Service in respect of his employee c/s 35 (1), (2) & (3) of Cap. 366 as amended by Act 62/64.

Particulars of Offence: That the accused person did between 9th October 1965 to 31st March 1971 fail to prepare or cause to be prepared and maintained records of Oral Contract of Service in respect of his employee, Levi William."

To start with, I should like to say that I have found the conduct of this case unsatisfactory in the extreme. Apart from the charges which are so badly drafted as to be almost incomprehensible, the prosecutor who conducted the case so mismanaged the case as to leave the court with the barest of evidence on which to make its findings. I do not think a court properly directing itself would have dared to reach the conclusions that were arrived at in this case. But that is the least of the features I find unsatisfactory in this case.

To deal with the more serious defects one by one, let us first direct our attention to count three, which alleges that the accused failed to pay severance allowance to Levi William, his employee. To succeed in establishing their case on this count, assuming that the relationship between the accused and Levi William was that of employer and employee, the prosecution would have to lead evidence relating to the circumstances under which that relationship of employer/employee was terminated. The prosecution, I am sad to say, totally failed to place before the Court any evidence in respect of the third Count. There being no evidence before the Court, the Court could not properly make any finding on it. What it did was a gross error which cannot be perpetuated and appellant must succeed on this Count. The conviction thereon is quashed and the sentence is set aside.

Then I turn to the fifth count. This alleges failure to prepare or cause to be prepared and maintained a record of oral contract of service in respect of an employee contrary to s. 35 (1), (2) and (3) of the Employment Ordinance (Cap. 366). Mr. Raithatha, for the appellant has contended on appellant's behalf that this Count is bad for duplicity. Counsel has cited, in support of his argument, a case decided by this Court in March last year – see *Mambo Shoo Bar v. Republic*, Dar es Salaam, H.C. Cr. A. 926 of 1970. In that case Onyiuke, J. said at p. 3 of his judgment:

> "Coming to Count 1 of the charge there appears to be a case of duplicity. 3 separate offences were lumped together in one count. Failure to prepare or maintain or issue a copy of an oral contract is each a separate offence. The charge as it stood must have gravely embarrassed the appellant. Furthermore, there was not sufficient evidence to support the charge."

With respect, I entirely agree with Onyiuke, J. that the section under which the appellant in this case was charged creates not one but three separate offences which must be preferred separately if the prosecution wish to prosecute an accused person on all three, although the need for this course of action would rarely arise in practice. As in the *Mambo Shoo Bar* case, I fail to see any sufficient evidence on record to justify appellant's conviction for this offence. I will therefore allow appellant's appeal on this Count, quash the conviction and set aside the sentence imposed.

With regard to the first and second Counts, counsel for the appellant argued that it was an error in law for the prosecution to lay charges both under the Employment Ordinance (Cap. 366) and The Regulation of Wages and Terms of Employment Ordinance (Cap. 300) in respect of the same period of employment. While I do not consider it necessary for me to make any definite finding on this point in view of the conclusion I have formed in this case, to which I will revert presently, I can well conceive a situation where the prosecution are possessed of evidence indicating that an accused has committed offences both under the Employment Ordinance and The Regulation of Wages and Terms of Employment Ordinance in respect of the same period of employment. Though when such a situation can arise must be rare indeed, I believe it would be wrong to dismiss such a possibility altogether.

However, the issue on Counts 1 and 2 does not turn on the argument advanced by counsel for the appellant. There is the more important question, to which the attention of both Counsel was drawn but none was brave enough to argue the point, which is whether or not the two counts are bad for duplicity. This question has been considered by this court in two cases which came before it by way of case stated, the only way then open to the prosecution to appeal to this Court against an acquittal. The first of these cases is *D.P.P. v. Gymkhana Club, Arusha*, Cr. A. 411 of 1964, which arose out of a charge similar to the second count in the present case, alleging failure to pay statutory minimum wages, contrary to s. 12 (2) of The Regulations of Wages and Terms of Employment Ordinance. In that case Weston, J., held that the whole charge was a nullity and not curable under s. 346 of the Criminal Procedure Code, because it was wrongly framed so as to charge the accused, in a single count, with failure to pay the minimum wages over a period of twelve months, whereas there ought either to have been twelve separate counts, one for each month, or one count in respect of one month only with a "notice of intention" under s. 12 (3) in respect of the remaining months. He held that the charge as framed disclosed no offence against s. 12 (2) at all, and that the whole proceedings were accordingly a nullity. The second case is *D.P.P. v. Fazal Nazerali & Co. Ltd., Dar es Salaam*, Cr. A. 479 of 1964. Windham, C.J. said in that case:

> "It is conceded that the present case is on all fours with that (i.e. the Gymkhana Club case), in respect of the form of the charge; for here, as there, the offence alleged under one single count was a failure to pay the prescribed minimum wages over a period of many months, in the present case seventeen. I agree that there is nothing to distinguish the two cases on this point, and in the light of the decision of my brother Weston, J., with which I respectfully agree, I must declare, and I do declare, that the whole proceedings in the present case were a nullity."

Looking at the facts of the present case I cannot see that there is anything to

distinguish the present case from the two cases cited above. In this case, as in the two earlier cases, the offence alleged under one single count was a failure to pay the prescribed minimum wages over a period of many months, in fact thirty-nine months. If the Republic wished to proceed against the accused in respect of all thirty-nine months, there were two courses open to them. One, the most cumbersome of the two, would have been for them to frame a charge in respect of each alleged failure, making a total of thirty-nine counts altogether. The other method which is simpler and neater than the first, would be for the prosecution to frame one charge in respect of one alleged failure to pay the minimum wages and then give "notice of intention" to the accused that on his being found guilty on the preferred charge, evidence of any like contravention on the part of the accused shall be given before the Court in respect of any period during the twelve months immediately preceding the date of the offence – vide s. 12 (3) of the Regulation of Wages and Terms of Employment Ordinance. The prosecution in this case followed none of these methods but instead lumped all the offences committed over a period of thirty-nine months in one single count. And in the light of what was decided by this Court in the *Gymkhana* and *Fazal Nazerali* cases, decisions with which I am in entire agreement, I can see no alternative to declaring the proceedings on count 2 a complete nullity, which I accordingly do.

The only count now left to be considered, is count 1 which alleged failure to pay wages to an employee contrary to ss. 194 (*a*) and 154 of the Employment Ordinance. In this count, as in count 2, the prosecution charged the accused with the failure to pay wages to an employee, in one single count, what ought properly to have been fifteen separate counts. There can be no dispute that this count, like count 2, is bad for duplicity. And for this reason I have to declare and do declare the trial of the appellant on the first count a nullity. The conviction and sentence imposed on this Count shall accordingly be quashed and set aside.

In the result this appeal succeeds in its entirety.

*Order accordingly.*

For the appellant:
*M. J. Raithatha*

For the respondent:
*M. Ismail* (State Attorney)

## Re Licalsi Ex P City Painters
[1973] 1 EA 48 (HCT)

| | |
|---|---|
| **Division:** | High Court of Tanzania at Dar es Salaam |
| **Date of judgment:** | 6 June 1972 |
| **Case Number:** | 1/1971 (204/72) |
| **Before:** | Biron J |
| **Sourced by:** | LawAfrica |

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*[1] Bankruptcy – Receiving order – Review – Time limit – May be made at any time – Bankruptcy Ordinance* (*Cap.* 25), *s.* 103 (*T.*), *Law of Limitation Act* 1971, *s.* 43 (*T.*).

*[2] Bankruptcy – Proceeding – Petition – Unattested – Leave to attest given after receiving order – Bankruptcy Ordinance* (*Cap*. 25), *s*. 104 (*T*.).

*[3] Bankruptcy – Proceedings – Formal defect – Statement of affairs filed prematurely – Proceedings not invalidated – Bankruptcy Ordinance* (*Cap*. 25), *s. 132* (*T*.).

**Editor's Summary**

On 8 November 1971 the debtor filed a statement of affairs and on 13 November 1971 he filed a petition praying that he be made bankrupt. A receiving order was made on 16 November 1971. The petition was neither signed nor attested.

The applicant applied to set aside the receiving order on the grounds that the statement of affairs had been submitted more than 3 days before the presentation of the petition contrary to s. 16 (2) of the Bankruptcy Ordinance (Cap. 25) and that attestation of the petition was mandatory under the Bankruptcy Rules, r. 109, and that the applicant suffered hardship by reason of the discharge by the receiving order of a security given to it.

For the debtor it was contended that the application was barred by effluxion of time under the Law of Limitation Act 1971, 1st. Sch. Art. 21, that any proceeding in bankruptcy can be amended by court, that no proceeding may be invalidated by any formal defect, and that any loss to the applicant did not arise out of the defects.

**Held** –

(i) review, rescission or variation can be applied for at any time;

(ii) there is therefore a period of limitation prescribed by another written law and the Law of Limitation Act does not apply (*Re John Zavellas* (1) and *Re Cohen* (2) distinguished);

(iii) the proceedings would be amended by giving the debtor leave to attest his petition;

(iv) the premature filing of the statement of affairs was a formal defect which could not invalidate the proceedings;

(v) any loss to the applicant was not caused by the defects.

Application dismissed.

**Cases referred to in judgment:**

(1) *Re John Zavellas,* 1 T.L.R. 495.

(2) *Re Cohen*, *[1952]* 2 All E.R. 36.

**Judgment**

**Biron J:** On 13 November 1971, the debtor filed in this Court a petition praying that a receiving order be made in respect of his estate and that he be adjudged bankrupt on the grounds that he was unable to pay his

debts. And on 16 November 1971 I made a receiving order and appointed the official receiver as the receiver of the debtor's estate.

On 10 February 1972, the applicant creditor filed a chamber application praying that the receiving order made against the debtor be rescinded on the grounds of the debtor's failure to comply with certain formalities laid down in the Bankruptcy Ordinance (Cap. 25) hereinafter referred to as the Ordinance.

Before, however, I deal with the substance of the application, I must first of all deal with a submission made by Mr. Raithatha for the debtor, that the application is time-barred, as if such submission is upheld it would naturally dispose of the application as a whole without further ado.

By s. 103 of the Ordinance:

> "103 (1) The court may at any time review, rescind or vary any order made by it.
>
> (2) Orders of the court in bankruptcy matters shall, at the instance of the person aggrieved, be subject to appeal but no appeal shall be entertained except in conformity with such general rules as may for the time being be in force in relation to the appeal.
>
> (3) Where by this Ordinance an appeal to the court is given against any decision of the official receiver, the appeal shall be brought within twenty-one days from the time when the decision appealed against is pronounced or made."

Mr. Raithatha submits that, as no time limit is prescribed in the section for the Court reviewing, rescinding or varying any order made by it, Article 21 of the Third Part of the First Schedule to the Law of Limitation Act, 1971, and s. 43 of the Act would apply. They respectively read:

> "Article 21. Application under the Civil Procedure Code, 1966, the Magistrates' Courts Act, 1963 or other written law for which no period of limitation is provided in this Act or any other written law . . . sixty days."
>
> "S. 43. This Act shall not apply to:
>
> (*a*) criminal proceedings;
>
> (*b*) applications and appeals to the Court of Appeal for East Africa;
>
> (*c*) proceedings by the Government to recover possession of any public land or to recover any tax or the interest on any tax or any penalty for non-payment or late payment of any tax or any costs or expense in connection with any such recovery;
>
> (*d*) forfeiture proceedings under the East African Customs and Transfer Tax (Management) Act, 1952 or the East African Excise (Management) Act, 1952;
>
> (*e*) proceedings in respect of the forfeiture of a ship or an aircraft;
>
> (*f*) any proceeding for which a period of limitation is prescribed by any other written law, save to extent provided for in section 46."

Mr. Raithatha called in aid the case of *Re John Zavellas*, 1 T.L.R. 495, the headnote to which reads.:

> "On the hearing of an application on behalf of the Official Receiver for an order under section 100 of the Bankruptcy Ordinance, 1931, to review and rescind an order made by the Court in 1933 it was objected that the application was barred by Article 162 (Schedule) of the Indian Act.
>
> HELD – That Article 162 governs applications for review under the Civil

> Procedure Code and that the present application being governed by Article 181 was not barred by limitation."

And it is also pertinent to quote from the judgment of Hearne, J., on the same page:

> "I am assuming that as the Bankruptcy Ordinance prescribes no period of limitation for an application for review under section 100, the time during which such an application may be made is controlled by the Indian Limitation Act as applied to this Territory – vide section 29 thereof – but I am of the opinion that in the present matter neither Article 162 nor Article 173 has any application, as these Articles are restricted to applications for review under the Civil Procedure Code and that it is necessary to fall back on Article 181."

Mr. Rahim for the official receiver, who incidentally supported the application, cited the English case of *Re Cohen* (*A Bankrupt*). *Ex parte The Bankrupt v. Inland Revenue Commissioners and Another*, [1952] 2 All E.R. 36, where it was held, and I quote from the headnote:

> "HELD – although the jurisdiction of the court under s. 108 (1) to rescind, review or vary its orders was not limited in point of time, nevertheless, if the application under s. 108 (1) was in substance to be regarded as an appeal against the original order and was preferred at a date when, if it had been an appeal under s. 108 (2), it would have been out of time, the court would not exercise its jurisdiction unless it was satisfied that there were special circumstances in the case which would make it proper to hear it, treating it as an appeal out of time. Even assuming in favour of the bankrupt that the court ought to exercise its jurisdiction in the present case, although it might well be that the fact that a foreigner had left England would not by itself be sufficient to raise the inference that he intended to defeat or delay his creditors, the evidence properly before the court in October, 1949, coupled with the additional evidence adduced, left no doubt that the bankrupt had that intention in March, 1949, and, therefore, the application ought to be dismissed."

However, I do not consider either case to the point, or even of any assistance in resolving this present issue. To take the local case first, *Re John Zavellas*, that case was decided under s. 100 of the Bankruptcy Ordinance, 1930, the date 1931 incidentally given in the report of the case, being no doubt a mistake. S. 100 of the Ordinance reads:

> "100 (1) The court may review, rescind or vary any order made by it.
>
> (2) Orders of the Court in bankruptcy matters shall, at the instance of the person aggrieved, be subject to appeal but no appeal shall be entertained except in conformity with such general rules as may for the time being be in force in relation to the appeal.
>
> (3) Where by this Ordinance an appeal to the court is given against any decision of the official receiver, the appeal shall be brought within twenty-one days from the time when the decision appealed against is pronounced or made."

This section was amended by the Bankruptcy (Amendment) Ordinance, 1958, s. 17, which reads:

> "17. Section 100 of the principal Ordinance is hereby amended by inserting immediately after the words 'The Court may' in subsection (1) thereof the words 'at any time'."

Likewise, the English case is of no assistance, as it was decided under s. 108 of the Bankruptcy Act, 1914, which reads:

"108 (1) Every court having jurisdiction in bankruptcy under this Act may review, rescind or vary any order made by it under its bankruptcy jurisdiction.

(2) Orders in bankruptcy matters shall, at the instance of any person aggrieved, be subject to appeal as follows:

(*a*) Where the order is made by a county court, an appeal shall lie to a divisional court of the High Court, of which the judge to whom bankruptcy business is for the time being assigned shall, for the purpose of hearing any such appeal, be a member. The decision of the divisional court upon any such appeal shall be final and conclusive, unless in any case the divisional court or the Court of Appeal sees fit to give special leave to appeal therefrom to the Court of Appeal whose decision in such case shall be final and conclusive;

(*b*) Where the order (not being an order on appeal from a county court) is made by the High Court, an appeal shall lie to the Court of Appeal, and an appeal shall, with the leave of the Court of Appeal but not otherwise, lie from the order of that court to the House of Lords;

(*c*) No appeal shall be entertained except in conformity with such general rules as may for the time being be in force in relation to the appeal.

(3) Where by this Act an appeal to the High Court is given against any decision of the Board of Trade, or of the official receiver, the appeal shall be brought within twenty-one days from the time when the decision appealed against is pronounced or made."

As noted, neither s. 100 of the Bankruptcy Ordinance, 1930 nor the English Bankruptcy Act, 1914 contain the words "at any time", which were added to the section by the Bankruptcy (Amendment) Ordinance, 1958. Pausing there, if it were held that s. 103 of the Bankruptcy Ordinance does not provide any time for the bringing of an application to review, rescind or vary an order made by it, the words "at any time" would not only be superfluous but meaningless. And it is not irrelevant, in fact extremely material, to point out that the legislature went out of its way and expressly amended the old section by the addition of the words "at any time". I must confess I have consulted the Bill of the Amendment Act to ascertain whether any reason was given in the Bill for the amendment, but although reasons are given for the various other amendments, no reason at all has been given for the amendment provided for in s. 17. adding the words "at any time", probably because the reason is self-evident that the words "at any time" mean at any time and therefore no reason is required for the making of such amendment. I therefore have not the slightest hesitation in holding that s. 103 prescribes a period for the review, rescission or variation by the court of an order made by it, and the period provided is unlimited in time. Article 21 of Part III of the First Schedule to the Law of Limitation Act, 1971, and s. 43 of the same Act, therefore have no application to s. 103 of the Ordinance, for as I think, sufficiently demonstrated, the very section itself prescribes a period, though such period is in fact unlimited.

The submission that the application is time-barred is therefore rejected, I hold that the application is not time-barred and now propose to deal with it on its merits.

Mr. Lakha bases his application for the rescission of the receiving order on two grounds. The first is that the statement of affairs was filed on 8 November 1971 and the petition was filed on 13 November 1971, and this offends s. 16 (2) of the Ordinance, which reads:

"16(2) The statement shall be so submitted –

(*a*) prior to, but not more than three days before, the date of the presentation of the debtor's petition,

and, upon such submission, the official receiver shall certify to the court under his hand that such statement has been duly submitted to him,

(*b*) within fourteen days of the date of the receiving order made on the petition of a creditor, but the official receiver may, for special reasons, extend the time."

The second is that the petition when filed was neither signed nor attested by the debtor and this is not disputed, he was apparently away at the time. Moreover, the petition has not as yet been attested, and this offends r. 109 of the Bankruptcy Rules, which reads:

"109. Every bankruptcy petition shall be attested. If it be attested in the Territory the witness must be an advocate or justice of the peace or the receiver or the registrar. If it be attested out of the Territory the witness must be a judge or magistrate or a British consul or vice-consul or a notary public."

Mr. Lakha submits that these formalities are mandatory and because of the debtor's failure to observe them, the receiving order should be rescinded.

Even accepting that these provisions are mandatory, by s. 104 (3) of the Ordinance:

"The court may at any time amend any written process or proceeding under this Ordinance upon such terms, if any, as it may think fit to impose."

And by s. 132 (1):

"No proceedings in bankruptcy shall be invalidated by any formal defect or by any irregularity, unless the court before which an objection is made to the proceeding is of opinion that substantial injustice has been caused by the defect or irregularity, and that the injustice cannot be remedied by any order of the court."

This section is mandatory, that the Court shall not invalidate any proceeding on account of any formal defect or irregularity, unless the Court is of the opinion that substantial injustice has been caused by the defect or irregularity. The question that immediately poses itself is "has any substantial injustice been caused by the failure to observe the formal provisions on which the application is grounded"?

It is submitted by Mr. Lakha that if the application for rescission is rejected the applicant creditor would suffer, for if the receiving order is upheld, it would have the effect of releasing the surety entered into by the debtor's wife and so cause injustice to the applicant. Although this allegation is not supported by any affidavit, I am quite prepared to accept that that would be the position, that the creditor would suffer by the release of the surety, that loss however is only a side effect of the receiving order made. It cannot, therefore, be said that the loss has been or would be, occasioned by any defect or irregularity set up in the application. To my mind, therefore, the Court has no discretion in the matter, for as sufficiently demonstrated, it can only rescind the order if the irregularities complained of have occasioned or will occasion any injustice, and that is by no means the case here.

The application is accordingly rejected, and leave is granted to the debtor to attest his petition, although it has already been filed.

I do not consider this to be a fit case for making any order as to costs, and accordingly make no such order.

*Order accordingly.*

For the applicant:
*M. A. Lakha*

For the debtor:

*M. J. Raithatha*

For the Official Receiver:
*M. Rahim* (State Attorney)

# Jager v Cordura Ltd
## [1973] 1 EA 53 (HCT)

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|---|---|
| **Division:** | High Court of Tanzania at Dar es Salaam |
| **Date of judgment:** | 1 June 1972 |
| **Case Number:** | 120/1971 (205/72) |
| **Before:** | Onyiuke J |
| **Sourced by:** | LawAfrica |

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*[1] Master and Servant – Summary dismissal – Jurisdiction – Claim for dismissal during contract – Claim in contract not tort – Court without jurisdiction – Security of Employment Act* (*Cap*. 574), *s.* 28 (1).

*[2] Master and Servant – Summary dismissal – Employee – Whether engaged in management of employer's business – To be decided by labour officer – Security of Employment Act* (*Cap*. 574), *s.* 4 (*T*.).

**Editor's Summary**

The plaintiff was employed as a restaurant manager and was dismissed during his contract. He sued for damages and contended that the court could hear the case as his claim was not for summary dismissal but for wrongful termination and was in tort and not in contract and that he was engaged in the management of his employer's business and so not an employee for the purposes of the Security of Employment Act (Cap. 574).

**Held –**

(i) the dismissal was summary (*Kitundu Sisal Estate v. Shingo* (1) followed);

(ii) the claim was in contract not tort;

(iii) whether the plaintiff was engaged in the management of the defendant's business had to be decided by a labour officer.

Suit stayed.

**Cases referred to in judgment:**

(1) *Kitundu Sisal Estate v. Shingo*, [1970] E.A. 557.

(2) *Ally Mohamed v. Kunduchi Sisal Estate*, Misc. C.A. 25 of 1971 (unreported).

**Judgment**

**Onyiuke J:** The plaintiff is Austrian national residing in Dar es Salaam. The defendant is a limited

liability company incorporated in Bermuda but registered as a foreign company in Tanzania. It carries on business in Tanzania and runs a hotel in Dar es Salaam in the name and style of Oyster Bay Hotel. The plaintiff was employed as a restaurant manager of the Oyster Bay Hotel. He brings this action against the defendant claiming special and general damages for wrongful dismissal.

A point has arisen as to the jurisdiction of this court to entertain this suit. Mr. Jussa for the defendant, submitted that it was clear on the pleadings that the defendant's action was for summary dismissal, and in that event s. 28 of the Security of Employment Act (Cap. 574) ousts the jurisdiction of this court to entertain the suit. The plaintiff's remedy, he submitted, was to refer the matter to a conciliation board under s. 23 of the Act.

S. 28 (1) of the Security of Employment Act provides as follows: "no suit or other civil proceeding (other than proceedings to enforce a decision of the Minister or the Board on a reference under this part) shall be entertained in any civil court with regard to summary dismissal or proposed summary dismissal or a

deduction by way of disciplinary penalty from the wages, of an employee." S. 23 (1) of the Act provides as follows; "where an employee

(*a*) is summarily dismissed; or

(*b*) is informed by his employer that the employer proposes to dismiss him summarily; or

(*c*) suffers a deduction by way of a disciplinary penalty from the wages due to him from his employer;

he may within the time specified in Sub-section 2 refer the matter to the board and the board shall, so far as is reasonably practicable, hear the reference and give decision thereon within seven days (excluding Sundays and Public Holidays) of the reference being received by it."

Mr. Jussa finally submitted that since the contract was entered into in Tanzania, was to be performed in Tanzania and was terminated in Tanzania the laws of Tanzania should apply and these laws have ousted the jurisdiction of a civil court to entertain actions for summary dismissal of an employee. These laws, he maintained, have prescribed an alternative remedy, procedure and forum to which an aggrieved employee may resort.

Mr. Versi, for the plaintiff, in reply made two submissions:

(*a*) that s. 28 did not apply in as much as the present claim was not based on summary dismissal but was based on the wrongful termination of a contract the terms of which were set out in paragraph 3 of the plaint.

The contract of service was for two years and the defendant had committed a breach of that contract by terminating it before the two years had expired and the plaintiff was claiming the consequences of that breach. The claim, he maintained, was based on contract and should not be put in the category of summary dismissal which was a tort.

(*b*) He submitted, in the alternative, that s. 28 did not apply because the plaintiff did not come within the definition of employee as used in that Act.

I will now deal with these submissions. I accept Mr. Jussa's submission that this case has to be decided according to the laws of Tanzania. Although the contract of service was between a foreign national and a foreign company, it was made in Tanzania to be performed in Tanzania and the alleged breach occurred in Tanzania. The jurisdiction of this court to entertain this suit is governed by the laws of Tanzania. I am unable to accept the first arm of Mr. Versi's submission, namely, that s. 28 did not apply because the present action was based on contract for wrongful dismissal and was not an action for summary dismissal as contemplated by the Security of Employment Act. The term "summary dismissal" is not defined by the Act but has been judicially defined. I refer to the case of *Kitundu Sisal Estate v. Shingo*, [1970] E.A. 557. In that case the plaintiffs alleged that their services were wrongfully terminated without notice and they brought an action in the District Court claiming Shs. 47,030/- being the total of their one month's wages in lieu of notice. An objection was raised to the jurisdiction of the Court to entertain the action. The magistrate held that he had jurisdiction to try the case on the ground that he was not dealing with a case of summary dismissal as the plaintiffs had not alleged it but that he was only called upon to decide whether the plaintiffs' services were terminated in circumstances entitling them to claim one month's pay in lieu of notice. The Court of Appeal rejected this approach. Law, J. A. stated at p. 558 of the report:

> "With respect I cannot agree. Summary dismissal means dismissal without notice and the plaintiffs' contention that their services were wrongly terminated without notice can only, in my view, be constructed as a contention

> that they were summarily dismissed. This being so, and the summary dismissal having taken place, after 1st May, 1965 (the date when the Security of Employment Act came into operation) s. 28 of that Act had the effect, in my opinion, of excluding the suit from the jurisdiction of the courts."

See also the decision of this Court in *Ally Mohamed v. Kunduchi Sisal Estate*, Misc. C.A. 25 of 1971 (unreported).

The decision of the Court of Appeal referred to above established that dismissal without notice was summary dismissal. Does the fact that the plaintiff in the instant case was alleging, not that the contract was terminated without notice, but that it was terminated before the two years had run out, make any difference? In my view it does not. To terminate a contract of service before it has run its course is as much a summary dismissal as to terminate a contract of service without notice when notice was provided for in the contract. The complaint in both cases is the breach of contract. The argument which sought to distinguish the present case from case of summary dismissal on the ground that in the latter case the remedy was only to sue for wages in lieu of notice is unsound. The remedy for summary dismissal is an action for damages which may be general and/or special. The important thing is the cause of action and not the remedy sought. Finally, to argue that summary dismissal is based on tort and not on contract is equally unsound. Every action for summary dismissal is based on a contract of service. An action for summary dismissal is not an action in tort but is an action for breach of contract of service.

I now consider the second arm of Mr. Versi's submission. I accept the argument that s. 28 of the Security of Employment Act does not apply to this case if the plaintiff does not fall within the category of employees to which the Act applies. S. 4 (2) of the Act provides that the Act shall be read as one with the Employment Ordinance (Cap. 336). S. 4 (1) of the Act provides that the term "employee" shall have the meaning assigned to it by the Employment Ordinance subject to certain exceptions which will be considered later in this ruling. S. 2 of the Employment Ordinance defines an employee as "any person who has entered into or works under a contract of service with an employer whether by way of manual labour, clerical work or otherwise and whether the contract is expressed or implied or is oral or in writing". S. 1 (3) of the Employment Ordinance provides that the President may by order in the Gazette exempt any person or class of persons from the operation of the Employment Ordinance or any provision thereof or of any regulation or order made thereunder. By G.N. 26 of 1961 the provisions of the Employment Ordinance including s. 37 which governs summary dismissal were made inapplicable to persons in receipt of wages exceeding Shs. 80,000/- p.a. or the equivalent monthly rate. This means that a person in receipt of such wages is not an employee for the purposes of s. 28 of the Security of Employment Act so that the jurisdiction of civil courts to entertain a suit for summary dismissal instituted by such a person is preserved. S. 4 of the Security of Employment Act (which is a definition section) provides that the term "employee" shall have the meaning prescribed to it by the Employment Ordinance except that it shall not include, inter alia, "any person for the time being exempted as an employee from the operation of the Employment Ordinance by an order made under s. 1 (3) of that Ordinance". This section would have saved the present suit. The attention of this Court has however been directed to an amendment to that section (section 4) introduced by the Security of Employment (Amendment) Act 1969. It adds a new sub-s. 4 (*e*). The effect of this amendment is that the amount of wage received is not now the criterion. S. 4 (*e*) provides that "Any employee who, in the opinion of the labour officer, is employed in the management of the business of his employer", is not an employee for the purposes of the Security of Employment Act. This

amendment has introduced some uncertainty in this case because the question whether the plaintiff, as the restaurant manager of the Oyster Bay Hotel, comes under s. 38 of the Security of Employment Act does not now depend on any objective standard but on the subjective opinion of the labour officer as to whether or not he is to be regarded as being employed in the management of the business of his employer. The result is that the plaintiff may or may not be an "employee" within the meaning of s. 28 of the Security of Employment Act depending on the opinion of the labour officer. This can hardly be regarded as a healthy or satisfactory state for the law to be in. The jurisdiction of this Court to entertain the present suit has been put in issue and in view of the present state of the law remains in issue. I think the proper order to make in the circumstances is to stay the suit leaving it open to either party to obtain the opinion of the labour officer under s. 4 (*e*) of the Security of Employment Act as amended by the Security of Employment (Amendment) Act, 1969.

*Order accordingly.*

For the plaintiff:
*B.A. Versi* (instructed by *George N. Houry & Co*. Dar es Salaam)

For the defendant:
*R. N. Jussa* (instructed by *Donaldson & Wood* Dar es Salaam)

## Ngaire v National Insce Corp of Tanzania Ltd
[1973] 1 EA 56 (HCT)

| | |
|---|---|
| **Division:** | High Court of Tanzania |
| **Date of judgment:** | 5 June 1972 |
| **Case Number:** | 130/1970 (206/72) |
| **Before:** | Biron J |
| **Sourced by:** | LawAfrica |

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*[1] Negligence – Duty of care – Statement – Insurance Company – Duty to person enquiring whether a vehicle insured.*

*[2] Estoppel – By conduct – Statement – That vehicle insured by company – Company estopped – Evidence Act* 1967, *s*. 123 (*T*.).

*[3] Master and servant – Vicarious liability – Course of employment – Officer in charge of motor claims department of insurance company – Authority to bind employer.*

**Editor's Summary**

The advocate then acting for the plaintiff, who had been injured in a motor accident, telephoned the defendant company and was put through to the motor claims department the officer in charge of which informed him that the vehicle concerned was insured with the defendant. This was confirmed by an exchange of correspondence.

This information was in fact incorrect and by the time this was discovered, the claim against the

insurance company in fact involved was barred.

The plaintiff sued the defendant to recover his damages.

The defendant denied making the statements, denied that it was under any duty to the plaintiff, and denied the authority of the officer in charge of the motor claims department to make any statement.

**Held –**

(i) the defendant was under a duty to give correct information to the plaintiff (*Hedley Byrne v. Heller & Partners* (2) followed);

(ii) the defendant had caused the appellant to believe the truth of the statement and to act on it, and was therefore estopped from denying its truth;

(iii) the officer was acting in the course of his employer's business, and he was the person to whom the plaintiff was referred by the defendant company;

(iv) accordingly he had authority to make the statements.

**Cases referred to in judgment:**

(1) *Donoghue v. Stevenson*, [1932] A.C. 562; [1932] All E.R. Rep. 1.

(2) *Hedley Byrne v. Heller & Partners*, [1964] A.C. 465; [1963] 2 All E.R. 575.

**Judgment**

**Biron J:** On 15 April 1968, the plaintiff, who has been variously described as a driver and a mechanic, was sitting in his motor vehicle, which was parked on its correct side of the road, actually, I think, off the road, when a vehicle, a landrover, owned by a Mr. James Mushi and driven by his driver, Mr. Khalfani Mohamedi, coming from the opposite direction, left its own side of the road and collided with the plaintiff's vehicle, and the plaintiff as a result of the accident lost his right arm. The driver, Khalfani Mohamedi, was subsequently charged and convicted on counts of careless driving, failing to stop after an accident, failing to report an accident, driving a motor vehicle on the public road with defective steering and with defective brakes. The plaintiff duly filed an action in this Court against Mr. James Mushi and his driver, Mr. Khalfani Mohamedi, and not being possessed of sufficient means, was granted leave to sue in forma pauperis. He was also granted legal aid by the Tanganyika Law Society's Legal Aid Committee and was assigned Mr. Chakera, who was then a member of the firm of Messrs. Mahmud N. Rattansey & Co., to conduct his case.

Mr. Chakera, so he testified in his evidence, which will be subsequently considered, on being informed by the plaintiff, who in turn had been informed by the police officer who investigated the criminal aspects of the accident, that the vehicle owned by Mr. Mushi was insured with the National Insurance Corporation of Tanzania Ltd., hereinafter referred to as the Corporation, telephoned the offices of the Corporation, and after being put through to the motor claims department, was informed by a clerk in charge of the department, that Mr. Mushi's vehicle was in fact insured by the Corporation. There then followed an exchange of correspondence between the Corporation and Mr. Chakera, and subsequently the plaintiff filed a claim against the owner, Mr. Mushi, and the driver, Mr. Mohamedi. Whilst the owner, in his defence denied liability, the driver, admitted that he was at fault, that he was solely responsible for the accident and that he had in fact been prosecuted and convicted on a number of charges arising out of the accident. He also, it should be noted, admitted that at the time, he was engaged in the performance of his duties. The suit came up for hearing before Georges, C.J. on 5 September 1969, when the two defendants were not represented by counsel. On 13 September 1969, the Chief Justice gave judgment allowing the plaintiff's claim and awarded him Shs. 50,000/- damages. Mr. Chakera consequently attempted to recover these damages awarded from the Corporation, and after an exchange of correspondence with Messrs. Fraser Murray, Roden & Co., who were then acting for the Corporation, and who attempted, but unsuccessfully, to get the plaintiff to agree to a reduction in the damages awarded, the Corporation repudiated all liability. The plaintiff duly filed this action in tort, again in forma pauperis, against the Corporation, claiming damages for the negligence of the Corporation in wrongly informing him by their employee that the vehicle owned by Mr. Mushi was insured by the Corporation, as the plaintiff's claim against the British India General Insurance Co., with which Mr. Mushi's vehicle was actually at the time of the accident insured, was time-barred.

As in the original case, the plaintiff was granted legal aid by the Tanganyika Law Society, and this time he was assigned Mr. Lakha to pursue his claim.

It is averred in the plaint that:

"3. On or about 15 April 1968 as the Plaintiff had lawfully parked his Car on the Morogoro Road one Khalfani Mohamedi driving a Car as servant or agent of and in the course of employment with one Mr. James Mushi so negligently drove the said vehicle that it collided with the said car of the plaintiff causing the plaintiff personal injuries and resulting in the loss to the plaintiff of his right arm.

4. On 14 April 1969 the plaintiff instituted a Civil Case in the High Court of Dar es Salaam against the said James Mushi and the said Khalfani Mohamedi and the said proceedings were determined by the judgment dated and delivered on 13 September 1969 by the Georges, C.J. in favour of the plaintiff and his damages were assessed in the sum of Shs. 50,000/-.

5. Prior to the institution of the said proceedings, namely on or about 6 March 1969, the advocate for the Plaintiff one M. M. Chakera, did contact one Mr. Mwaikambo of the claims department of the defendant company who were then the sole company permitted by law to undertake in Tanzania insurance of vehicles against third party risks to inquire if the said James Mushi was insured by the Defendant in respect of his said vehicle TDN 518 against third party risks on the material date and the said Mr. Mwaikambo acting on behalf of and in the course of his employment with the Defendant did represent to the said advocate that the said James Mushi was insured in respect of the said vehicle on the material date.

6. Acting on the said representation, the said advocate immediately after the institution of the proceedings mentioned in paragraph four above did notify the defendant of the institution of the proceedings by a letter dated 15 April 1969 and did not notify any other company.

7. Contrary to the representation referred to in paragraph 5 thereof, the defendant company by their letter dated 15 December, 1969 to the advocate of the plaintiff have denied that the said vehicle was insured with them on the material date and have refused to satisfy the judgment pleaded in paragraph 4 above.

8. Further and in the alternative after the said verbal representation made on 6 March 1970, by their letter dated 3 June 1969 addressed to the advocate for the plaintiff in reply to the letter of 15 April 1969 referred to in paragraph 6 above the defendant further represented that the said James Mushi was their insured in respect of his vehicle TDN 518 on 15 April 1968.

9. The plaintiff states that the defendant company were under a duty to the plaintiff to make the statements and/or representations referred to (in) paragraph 5 and/or 6 hereof with care but in breach of the duty the statements were made negligently in view of the matter contained in paragraph 7 hereof and the plaintiff has hereby suffered loss and damage in that the judgment in Civil Case No. 39 of 1969 pleaded in paragraph 4 above has remained unsatisfied."

By its defence the Corporation averred, inter alia:

"4. The defendant denies that at the time of the accident, namely 15 April 1968, it was the sole company permitted by law to undertake in Tanzania insurance of vehicles against third party risks. It is further denied that the advocate for the plaintiff contacted Mr. Mwaikambo of the defendant company to make the alleged inquiry as stated in paragraph 5 of the plaint or at all. It is further denied that Mr. Mwaikambo represented to the said advocate that the said James Mushi was insured in respect of the said vehicle on the material date as alleged in paragraph 5 of the plaint or at all.

5. The said advocate did notify the defendant of the institution of the said proceedings by a letter dated 15 April, 1969. Save as aforesaid paragraph 6 of the plaint is denied.

6. The company by its letter dated 15 December, 1969, addressed to the plaintiff's advocate had denied that the said vehicle was insured with it on the material date and has refused to satisfy the judgment. Save as aforesaid paragraph 7 of the plaint is denied.

7. It is denied that by its letter of 3 June 1969, the defendant made any representation to the plaintiff as alleged in paragraph 8 of the plaint or at all. In particular, the defendant refers to its letter of 17 March 1969, addressed to the plaintiff's then advocate which clearly put the plaintiff on inquiry as to the company with which the said vehicle was insured at the material time. Save as aforesaid, paragraph 8 of the plaint is denied.

8. The defendant denies that it was under any duty to the plaintiff to make the alleged or any statement or representations and further denies that it was in breach of any duty as alleged in paragraph 9 of the plaint or at all. It is further denied that the defendant was guilty of the alleged or any negligence in making the said or any statement (which is denied) or that the matters complained of were caused as alleged in the plaint or at all."

At the commencement of the hearing the agreed issues were framed as follows:

*AGREED ISSUES*

"1. Did Mr. Mwaikambo of the defendant company verbally represent to Mr. Chakera, advocate, that Mr. James Mushi was insured with the defendant company in respect of motor vehicle registration number TDN 518 on the date of the accident, i.e., on 15 April 1968, as alleged in paragraph 5 of the plaint?

2. Did the defendant company in their letter dated 3 June 1969 addressed to the plaintiff's advocate represent that Mr. James Mushi was their insured in respect of motor vehicle registration number TDN 518 on 15 April 1968, as alleged in paragraph 8 of the plaint?

3. Did the defendant company by their letter dated 17 March, 1969 addressed to the plaintiff's then advocates, Messrs. Mahmud N. Rattansey & Company, put the plaintiff on inquiry as to the company with which the motor vehicle registration number TDN 518 was insured on the date of the accident as alleged in paragraph 7 of the written statement of defence?

4. If the answer to issue No. 1 or 2 is in the affirmative, was the defendant company under a duty to the plaintiff to make the representations with care?

5. If the answer to issue No. 4 is in the affirmative, did the defendant company make the said representations negligently and thereby commit a breach of the duty as alleged in paragraph 9 of the plaint?

6. If the answer to issue No. 5 is in the affirmative, has the plaintiff suffered loss and damage as a result of such negligence?

7. If the answer to issue No. 6 is in the affirmative, to what relief is the plaintiff entitled?"

With regard to the first issue, it is common ground that Mr. Chakera telephoned to the offices of the Corporation on 6 March 1969, and was put through to Mr. Mwaikambo, who, in his evidence, admitted that he was the clerk in charge of the motor claims department at the material time.

Before this telephone conversation between Mr. Chakera and Mr. Mwaikambo,

Mr. Chakera had on 4 March 1969, written to the Corporation a letter, which is set out in full:

"4 March 1969.

The Manager,

(Motor Claim Department),

National Insurance Corporation,

*Dar es Salaam*.

Dear Sir,

This is to inform you that we intend to claim damages of Shs. 60,000/- on behalf of our client MR. FRANCIS NGAIRE who was involved in a car accident on 15 April 1968 which resulted in him losing his right arm.

The car in question was T.D.N. 518 which was then owned by Mr. James Mushi of Post Box No. 20386, Dar es Salaam.

Yours faithfully,

Sgd. Chakera

MAHMUD N. RATTANSEY & Co."

Mr. Chakera's version of the telephone conversation, he actually telephoned when the plaintiff called at his office enquiring the progress of the case, was that he first of all referred to his letter of 4 March above set out, and enquired from Mr. Mwaikambo whether the vehicle in question was insured by the Corporation. Mr. Mwaikambo not only confirmed that it was, but asked rhetorically "who else could have insured the vehicle". Mr. Mwaikambo also asked Mr. Chakera whether the claim was not time-barred, and Mr. Chakera informed him that he had time until the middle of April in which to file the suit. Mr. Mwaikambo then asked him if he had a police report which he could let him have, so that they could negotiate a settlement. Mr. Chakera replied that he had and he promised to sent it on to him. Then, so Mr. Chakera stated, on the very same day, he sent a photostat copy of the police report under cover of a letter, which reads:

"6 March 1969.

The Manager,

(Motor Claim Department),

National Insurance Corporation,

*Dar es Salaam*.

Dear Sir,

With reference to our telephonic conversation (with your Mr. Mwaikambo) we enclose herewith the photostat copy of police report for your ready reference.

Yours faithfully,

MAHMUD N. RATTANSEY & CO.

*Enc*: *Photostat copy*."

Mr. Chakera then received a letter from the Corporation dated 17 March 1969, which reads:

"NATIONAL INSURANCE CORPORATION OF TANZANIA LTD.

17 March 1969.

Mahmud N. Rattansey & Co.,

Advocates,

P.O. Box 1325,

*Dar es Salaam*.

Dear Sirs,

RE: OUR CLAIM NO. M/3137/68

ACCIDENT BETWEEN DSR. 839 AND

TDN. 518 ON 15 APRIL 1968

We refer to your letters dated 4th and 6th instant regarding your client Mr. Francis Ngaire who was involved in a car accident on the date shown above.

As no information received by this office regarding the accident, we would suggest if you could contact the owner of the vehicle who will in turn if at all the vehicle was insured with us at the date of accident will report to us.

At the moment, we regret, we are unable to confirm anything.

Yours faithfully,

Sgd.

(for) J. M. MWAKALYELYE,

CLAIMS MANAGER."

In compliance with the request contained in this letter Mr. Chakera wrote to the officer in charge of the Traffic Police Station, Dar es Salaam, requesting him to contact Mr. James Mushi and persuade him to report the accident to the Corporation. A copy of this letter was produced by Mr. Chakera, which reads:

"2 April 1969.

The Officer-in-Charge,

Traffic Police Station,

*Dar es Salaam*.

Dear Sir,

We are acting on behalf of Mr. Francis Ngaire, who was involved in a car accident on the 15th day of April, 1968. Your reference No. of that accident is T/DK/A/520/68.

We intend to claim damages on behalf of Mr. Francis Ngaire, who lost his right arm in the said accident.

The owner of the Car TDN 518 which caused the accident was Mr. James Mushi of Mikumi Street, House No. 35, he has so far not reported the accident to the Insurance Company. We would be obliged if the police can persuade Mr. Mushi to inform of the said accident to the Insurance Company which would facilitate the recovery of damages on behalf of Mr. Francis.

Yours faithfully,

MAHMUD N. RATTANSEY & CO."

There then followed further correspondence between Mr. Chakera and the Corporation, with which it is however, not necessary to deal at this stage.

Mr. Mwaikambo's version of his telephone conversation with Mr. Chakera was briefly, that Mr. Chakera asked him whether vehicle number TDN.518 was insured with the Corporation. He asked Mr. Chakera to hold on whilst he, to use his expression, could trace out the file of that vehicle. After taking out the file, he, and I quote him: "I noticed that the vehicle was insured with the N.I.C.". And he accordingly told Mr. Chakera that the vehicle was insured with the Corporation. Mr. Chakera replied "O.K." and hung up. He denied having said to Mr. Chakera "who else could have insured it", nor did he ask him whether the claim was time-barred. The witness even asserted that he did not even know the meaning of the expression "time-barred", not ever having heard such expression. The witness asked for verification of the accident and he admitted asking for a copy of the police report.

Mr. Kinariwalla, who appeared for the Corporation, submitted that Mr. Mwaikambo never told Mr. Chakera that the vehicle owned by Mr. Mushi was in fact insured by the Corporation at the time of the accident.

I do not propose to spend a great deal of time in disposing of this submission as being completely groundless and contrary even to the evidence of Mr. Mwaikambo himself.

It is abundantly clear from Mr. Mwaikambo's evidence that when having obtained the file referred to by him, which he himself said was a motor claims file, there was, I would say beyond a shadow of doubt, only one letter on that file, and that was Mr. Chakera's letter, which specifically stated that the accident occurred on 15 April 1968, gave the number of the vehicle and stated it belonged to Mr. James Mushi giving his Post Office box number. As this was the only letter on the file which Mr. Mwaikambo consulted, he must have known, or at very least, should have known, as it so explicitly stated, that the accident occurred on 15 April, and Mr. Chakera's query was in respect of that accident, as Mr. Mwaikambo himself admitted that there had been no other claim brought against the vehicle. Further, although Mr. Mwaikambo stated that enquiries in respect of motor claims were usually made by the insurers themselves, in this he was given the lie by the Corporation witness, Mr. Firoz Gulamali Salehmohamed, who described himself as the manager understudy and also as legal secretary of the Corporation, having legal qualifications. He stated that enquiries are made to the Corporation by people who have sustained injury or damage from vehicles insured by the Corporation, as of necessity they must, as will hereinafter appear in due and proper course. To revert to Mr. Mwaikambo, he himself testified that having consulted the file which, as noted contained the letter, he, and I quote: "told Mr. Chakera that the vehicle was insured with the N.I.C.". I therefore have not the slightest hesitation in finding it established beyond a shadow of doubt, that Mr. Mwaikambo categorically told, or at very lowest, led Mr. Chakera to believe beyond any doubt, that Mr. Mushi's vehicle was insured with the Corporation at the date of the accident, that is 15 April 1968. The first issue is therefore answered in the affirmative.

The second issue is concerned with the Corporation's letter of 3 June 1968, which reads as follows:

"NATIONAL INSURANCE CORPORATION OF TANZANIA LTD.

3 June 1969.

Mohsin M. Chakera, LL.B.,

Advocate,

P.O. Box 1725,

*Dar es Salaam*.

Dear Sir,

RE: OUR CLAIM NO. M/3137/68

ACCIDENT BETWEEN DSR.839 AND

TDN.518 ON 15 APRIL 1968

We refer to your letter dated 15 April, 1969 regarding the above.

Kindly send us copies of letters you claimed in your above letter to have written earlier for our attention.

Should it be the case previously dealt with by M/S. Mahmud N. Rattansey & Co., we would advise you that to-date we do not have any intimation from our insured and we are unable to confirm anything.

Yours faithfully,

NATIONAL INSURANCE CORPORATION (T) LTD.

Sgd.

(for) J. M. MWAKALYELYE,

CLAIMS MANAGER."

First of all, I cannot forbear from remarking that the quibble in the letter is less than honest. As noted, in the first letter written by Mr. Chakera, his name appears, though as a rubber stamped addendum, as a member of the firm of Mahmud N. Rattansey & Co., to enquire, therefore, whether the claim was in respect of the same case dealt with by Messrs. Mahmud N. Rattansey & Co., when there was no other letter from Messrs. Mahmud N. Rattansey & Co. than that, which as noted, not only bore Mr. Chakera's name as a member of the firm, but was also signed by him, and what is possibly of even greater significance, the heading of the letter gives the same claim number and particulars as in the heading to the Corporation's letter of 17 March, is less than honest.

I do not consider it necessary to spend much time on this issue, as in my view, the letter Exhibit "F", categorically confirms, despite the dishonest quibble, that Mr. James Mushi was, and I quote, "our insured". And, as I think, sufficiently demonstrated, the sole question was whether Mr. Mushi's vehicle was insured with the Corporation at the time of the accident, the letter, to my mind, confirmed that it was. The second issue is therefore, answered in the affirmative.

The third issue presents little difficulty.

It is submitted by Mr. Kinariwalla for the Corporation that the letter of 17 March 1969 should have put the plaintiff's legal adviser Mr. Chakera, on guard, to quote his expression, or conversely, should have raised doubts in his mind as to whether the vehicle was in fact insured by the Corporation at the material time.

The letter cannot be considered in isolation, but in the context of the previous communications, both oral and written, between the Corporation and Mr. Chakera. First of all, there was the letter from Mr. Chakera, which specifically referred to the date of the accident in which Mr. Mushi's vehicle was involved. This was followed by the telephone conversation with Mr. Mwaikambo wherein he confirmed that the vehicle was so insured with the Corporation, and in answer to his request for a police report, the Corporation was furnished with such a report, which is extremely comprehensive

and sets out in detail the accident which occurred on that specific date, 15 April 1968. Therefore Mr. Kinariwalla's

submission that this letter should have put Mr. Chakera on his guard as to whether the vehicle was insured at the material date, does not hold water. Any reasonable person reading that letter in its context, could only construe it in one way, and that is, not that the Corporation was unable to confirm that the vehicle was insured at the material date, which as I think, sufficiently demonstrated, had already been confirmed by the Corporation, but that the Corporation could not confirm its liability for the accident, that is, in respect as to whether the accident was due to the negligence of their insured or rather his employee, in the course of his employment. I therefore answer the third issue in the negative.

I think it would be convenient to take issues numbers four and five together.

As remarked by Lord Macmillan in *Donoghue v. Stevenson*, [1932] A.C. 562 the categories of negligence are never closed. Although authorities have distinguished between injury or damage resulting from statements whether oral or written, and physical acts, in this respect, I think, there is a divergence of view and attitude adopted by Australian courts, and the American courts are much more liberal than are the English ones, I must confess my inability to distinguish between statements and other physical acts, as after all, a statement is a physical act, whether oral or written, and to quote the old adage, the pen is mightier than the sword, to which I would add, that the tongue could be equally as mischievous as the pen. However, in England the matter has now, I think, been finally settled by the House of Lords case of *Hedley Byrne v. Heller & Partners*, [1963] 2 All E.R. 575. Although Mr. Kinariwalla has quoted in extenso from this case, I think it is sufficient to quote from the headnote as follows:

> "If, in the ordinary course of business or professional affairs, a person seeks information or advice from another, who is not under contractual or fiduciary obligation to give the information or advice, in circumstances in which a reasonable man so asked would know that he was being trusted, or that his skill or judgment was being relied on, and the person asked chooses to give the information or advice without clearly so qualifying his answer as to show that he does not accept responsibility, then the person replying accepts a legal duty to exercise such care as the circumstances require in making his reply; and for a failure to exercise that care an action for negligence will lie if damage results."

For the record I ought to add that, although English authorities are no longer binding on this Court, I see no reason for holding that the law as laid down by the House of Lords, is any different in this country, but on the contrary, I have not the slightest hesitation in holding that it is the same.

There is even statutory authority to the point. By s. 123 of the Evidence Act, 1967:

> "When one person has, by his declaration, act or omission, intentionally caused or permitted another person to believe a thing to be true and to act upon such belief, neither he nor his representative shall be allowed, in any suit or proceeding between himself and such person or his representative,. to deny the truth of that thing."

And to that I would add, that when that declaration is made by an employee in the ordinary course of his duties, his employer is liable for such declaration.

It cannot be gainsaid that Mr. Mwaikambo was acting in the ordinary course of his principal's business or affairs when he gave the false information to Mr. Chakera, which was confirmed by the Corporation's letter of 17 March 1969. It therefore cannot be gainsaid that having accepted Mr. Chakera's question and taken it upon himself to reply to it, naturally on behalf of the Corporation, he was under a duty to take care to ensure that the information he gave was true

and correct. I would go even further. As an owner or a driver of a vehicle is compelled by law to take out a policy of third party insurance, as laid down in the Motor Vehicles Insurance Ordinance (Revised) (Cap. 169), and it constitutes a criminal offence for an owner or a driver of a vehicle to use the vehicle on a public road without there being in force a policy of third party insurance, and as this legislation is obviously intended for the benefit of any member of the public who may sustain injury or damage caused by a motor vehicle driven on the road, there is, to my mind, conversely an obligation cast on insurance companies to ensure that when such member of the public inquires from an insurance company as to whether the particular vehicle which caused the damage, is insured with it, to exercise the utmost care and diligence in giving correct information. I would go even further still that, in view of the wording of s. 10 (2) (*a*) of the Ordinance referred to, that:

> "10(2) No sum shall be payable by an insurer under the foregoing provisions of this section –
>
> (*a*) in respect of any judgment, unless before or within fourteen days after the commencement of the proceedings in which the judgment was given, the insurer had notice of the bringing of the proceedings;",

there is a duty cast on an insurance company from whom an inquiry is made as to whether a certain vehicle is covered by that company, to exercise the utmost care and diligence to give the correct information, as a failure to do so would occasion loss and damage to the inquirer. I would even go as far as to say that the law has established a relationship between the public and insurance companies and laid a fiduciary obligation on the part of insurance companies, to exercise all due care and diligence in giving proper and true information.

Therefore I have not the slightest hesitation in holding that the Corporation was under a duty to exercise due care and diligence in giving Mr. Chakera a true answer to his inquiry, as to whether the vehicle which was involved in the accident, which caused so much damage and injury to the plaintiff, was insured with the Corporation at the material time. And it cannot be gainsaid that Mr. Mwaikambo was extremely negligent in giving the false information he did, for according to Mr. Salehmohamed, all he had to do was to look up the policy file wherein it would have shown that the vehicle was insured by the Corporation only as from 20 April 1968 to 19 April 1969. Incidentally, this evidence of Mr. Salehmohamed that only the policy file would show the date the vehicle was insured with the Corporation, reflects very adversely on the veracity of the evidence of Mr. Mwaikambo, for he categorically stated that he consulted the claims file and that file showed that the vehicle was insured from 20 April, 1968 to 19 April, 1969. If he is to be believed on this, his negligence is all the more aggravated. Be that as it may, it is possible that Mr. Mwaikambo failed to consult the policy file and assumed that the vehicle must have been insured with the Corporation, because by the Insurance (Vesting of Interests and Regulation) Act, 1967, Part V, s. 13, the Corporation was granted the monopoly in this country for handling such insurance. That incidentally, would confirm Mr. Chakera's evidence that Mr. Mwaikambo remarked "who else could have insured the vehicle". Although this could explain Mr. Mwaikambo's negligence, it does not excuse it.

As for the submission that Mr. Mwaikambo did not have the authority of the Corporation to give such information, which according to Mr. Salehmohamed, lay in the motor manager, with all due respect to Mr. Kinariwalla, I regard this submission as fatuous, as it is not disputed that Mr. Mwaikambo was in charge of the motor claims department, and when Mr. Chakera telephoned to inquire as to whether the vehicle belonging to Mr. Mushi was insured with the Corporation

at the material time, he was put through to him by the Corporation's officers I therefore answer issues number four and five in the affirmative.

With regard to issue number six, as to whether the plaintiff suffered loss and damage as a result of such negligence, as already noted, his claim against the British India General Insurance Co. had become time-barred. Mr. Kinariwalla sought to raise a defence to this issue that the plaintiff could and should have applied for execution of the judgment he obtained, against Mr. Mushi and his driver, Mr. Mohamedi, and having failed to do so, he cannot claim from the Corporation.

First of all, I doubt whether it is open to Mr. Kinariwalla to set up such a defence at all, in view of the provisions of O. 7, rr. 2 and 3 of the Civil Procedure Code, 1966, which reads:

> "2. The defendant must raise by his pleading all matters which show the suit not to be maintainable, or that the transaction is either void or voidable in point of law, and all such grounds of defence as, if not raised, would be likely to take the opposite party by surprise, or would raise issues of fact not arising out of the plaint, as, for instance, fraud, limitation, release, payment, performance, or facts showing illegality.
>
> 3. It shall not be sufficient for a defendant in his written statement to deny generally the grounds alleged by the plaintiff, but the defendant must deal specifically with each allegation of fact of which he does not admit the truth, except damages."

I doubt very much whether this defence is at all open to the Corporation, and if necessary I would rule to the contrary. Further, as submitted by Mr. Lakha, if such defence had been raised, he could easily have led evidence that not only the driver but the owner of the vehicle, Mr. Mushi, was also a man of straw, his assets being apparently limited to the vehicle involved in the accident, which vehicle as a result of the accident, was a write-off. Therefore, it would have been a waste of time and money to have proceeded to execution of the judgment against the defendants, Mr. Mushi and his driver, Mr. Mohamedi. I therefore reject such defence, and accordingly answer issue number six in the affirmative.

Issue number seven presents no difficulty at all, as the relief the plaintiff is entitled to, is the Shs. 50,000/-, he was awarded as damages by the Chief Justice, which award I would remark with respect, is by no means over-generous in view of the gravity of the injury and the serious life-long disability sustained by the plaintiff, as well as the costs of that original suit.

In the result, judgment is entered for the plaintiff.

*Order accordingly.*

For the plaintiff:
*M. A. Lakha*

For the defendant:
*A. G. Kinariwalla* (instructed by the Legal Corporation of Tanzania)

## M'kanake v Republic
[1973] 1 EA 67 (CAN)

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|---|---|
| **Division:** | Court of Appeal at Nairobi |
| **Date of judgment:** | 8 December 1972 |
| **Case Number:** | 35/1972 (1/73) |

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| **Before:** | Sir William Duffus P, Law and Lutta JJA |
| **Sourced by:** | LawAfrica |
| **Appeal from:** | The High Court of Kenya – Waiyaki, J. |

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*[1] Criminal Practice and Procedure – Irregularity – Of confession, reception of evidence of children – Trial a nullity.*

*[2] Evidence – Criminal trial – Inconsistent statement by witness – Must be dealt with.*

*[3] Criminal Practice and Procedure – Retrial – Trial nullity not by fault of prosecution – Retrial ordered.*

**Editor's Summary**

The evidence at the appellant's trial for murder consisted of an alleged confession, the evidence of an adult eye witness and of five small children. The appellant was not informed of his right to give evidence or call witnesses on the admissibility of the confession, the adult witness had made a statement to the police that she had not seen the deceased on the day of her death, and the judge had not recorded that the children were of sufficient intelligence and understood the duty of speaking the truth.

Counsel for the respondent asked for an order for a retrial.

**Held** –

(i) the admission of the confession was improper;

(ii) the inconsistency in the evidence of the adult witness should have been dealt with;

(iii) the evidence of the children was improperly admitted;

(iv) the retrial was not asked for to fill gaps in the evidence nor to rectify faults of the prosecution, and a retrial would be ordered (*Fatehali Manji v. Republic* (2) considered).

Appeal allowed. Retrial ordered.

**Cases referred to in judgment:**

(1) *Bichana v. R.*, [1958] E.A. 190.

(2) *Fatehali Manji v. Republic*, [1966] E.A. 343.

**Judgment**

The considered judgment of the court was read by **Law JA:** The appellant was convicted of murder by the High Court. The case for the prosecution was that on 29 October 1970, the appellant killed a small girl called Kaibacha by slashing her with a panga. The evidence against him consisted, firstly, of an alleged confession; secondly, of the evidence of a young woman Cionabea who deposed that she saw the appellant chase Kaibacha with a panga in his hand; and thirdly, of the evidence of five small children of the apparent ages of 7 to 9 years.

Mr. Gatimu for the appellant has pointed to many apparent irregularities which occurred in the course of the trial. For instance, a trial within a trial was held to decide upon the admissibility of the alleged confession. The interpreter and the recording officer gave evidence before any objection was

taken to the admissibility of the confession. This was improper. Before any

evidence is adduced relating to a statement, which is sought to be produced by the prosecution, the judge should first ascertain from defence counsel whether objection is going to be taken to its production. If the answer is yes, the trial within a trial should begin at once in the absence of the assessors. In this case, all that happened in the trial within a trial was that defence counsel cross-examined the recording officer, the interpreter was re-called and cross-examined, and the judge ruled that the statement was admissible. The appellant did not make a statement or give evidence, nor does he appear to have been informed of his right to do so, or to call witnesses, on the issue of admissibility. Quite clearly the trial within a trial was a complete nullity.

As regards the witness Cionabea, she had made a statement to the police on 6 January 1971, in which she said that she had not seen Kaibacha on the day of her death. This conflict with her evidence at the trial does not seem to have been brought to the attention of the assessors and is not dealt with in the judgment. As regards the young children, they were all allowed to give unsworn evidence without the provisions of s. 19 of the Oaths and Statutory Declarations Act (Cap. 15) being observed. That section requires that before the evidence of a young child is received, not upon oath, the court must be satisfied that he is possessed of sufficient intelligence to justify the reception of the evidence, and understands the duty of speaking the truth. In *Bichana v. R.*, [1958] E.A. 190 this Court laid down that a trial judge must before the reception of the unsworn evidence of a child record in his notes that the child is possessed of sufficient intelligence to justify the reception of the evidence and understands the duty of speaking the truth.

For these reasons Mr. Gatimu submitted that the appeal should be allowed, the conviction quashed and the appellant acquitted.

The State Attorney acknowledged the validity of all the points made by Mr. Gatimu, but submitted that this was a proper case for ordering a re-trial. In his submission, the trial was defective as the result of the irregularities complained of by Mr. Gatimu. A re-trial was not sought for the purpose of enabling the prosecution to fill up gaps in the evidence adduced at the first trial or to enable the prosecution to correct mistakes for which it was to blame, and he referred to *Fatehali Manji v. Republic*, [1966] E.A. 343. We agree with Mr. Kibuchi on this point. In our opinion the defects in the original trial were in no way the fault of the prosecution and the interests of justice require that the appellant be retried. We accordingly allow this appeal, quash the conviction for murder and set aside the sentence of death, and order that the appellant be re-tried on the same charge before another judge.

Incidentally, the assessors at the first trial were all of the opinion that by reason of having smoked bhang the appellant was in no state to form the specific intention to kill or do grievous bodily harm requisite to constitute the offence of murder. Indeed, this is the substance of the appellant's main grounds of appeal. We hope that this aspect of the case will receive close attention at the re-trial, including, if possible expert evidence on the subject.

*Appeal allowed. Retrial ordered.*

For the appellant:
*P. S. Gatimu* (instructed by *Odhiambo & Gatimu*, Nairobi)

For the respondent:
*D. N. Kibuchi* (State Counsel)

## Zambia Tanzania Road Services Ltd v Mutua

[1973] 1 EA 69 (CAD)

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| **Division:** | Court of Appeal at Dar es Salaam |
| **Date of judgment:** | 5 December 1972 |
| **Case Number:** | 19/1972 (2/73) |
| **Before:** | Spry Ag P, Law Ag VP and Lutta JA |
| **Sourced by:** | LawAfrica |
| **Appeal From:** | The High Court of Tanzania – Saidi, C.J. |

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*[1] Workmen's Compensation – Agreement – With dependants – May be made when all of full age – Workmen's Compensation Ordinance* (*Cap.* 263), *s.* 15 (*T.*).

*[2] Workmen's Compensation – Agreement – With dependants some under age – Whole agreement void.*

**Editor's Summary**

Upon the death of its workman the first appellant entered into agreements with his widow, four children, father, mother and brother for the payment of compensation under the Workmen's Compensation Ordinance (Cap. 263). The children were under age and their mother only executed the agreements on their behalf.

The widow thereafter filed action for damages and the appellants claimed that the action was barred by the agreements. On the dismissal of this plea the appellants appealed, contending that the agreements with the dependants who were of full age were valid and barred their right to claim. The respondent contended that s. 15 of the Ordinance relating to agreements applied only to living workmen.

**Held –**

(i) agreement on the amount of compensation may be made between the employer and the dependants of a deceased workman when these are all of full age (*Harnam Kaur v. Champion Motor Spares Ltd.* (1) considered);

(ii) where some of the dependants are under age, no agreement with them is possible;

(iii) the agreements purported to deal with all the compensation and were all void.

Appeal and cross-appeal dismissed.

**Case referred to in judgment:**

(1) *Harnam Kaur v. Champion Motor Spares Ltd.*, [1971] E.A. 29.

**Judgment**

The following considered judgments were read. **Spry Ag P:** Mutua Kyumba was killed in February 1969, when a vehicle in which he was travelling overturned. The vehicle was owned by Zambia Tanzania Road Services Ltd., the first appellant, and was being driven by one of its servants, the second appellant. At the time of his death the deceased was employed by the appellant company.

In October 1969, the appellant company entered into eight separate agreements, purporting to be made under s. 16 (an obvious mistake for s. 15) of the Workmen's Compensation Ordinance (Cap.

263), with the widow, four children, father, mother and brother respectively of the deceased, under which the widow and each of the children received Shs. 5,087/70, the father and mother Shs. 1,017/55 each and the brother Shs. 1,526/40, a total of Shs. 20,000/- the amount prescribed under s. 6 of the Ordinance.

In January 1971, the widow of the deceased filed a suit, on her own behalf and on behalf of the children, the father and the mother of the deceased, against the appellants, claiming damages under the Law Reform (Fatal Accidents and Miscellaneous Provisions) Ordinance. From this it appears that the children are all of tender years, and it would seem that their mother thumb-printed the agreements to which they were expressed to be parties. The plaint was not expressed to be presented on behalf of the brother of the deceased and he is not a party to the proceedings.

The appellants filed a written statement of defence in which they claimed, inter alia, that the suit was barred by an agreement between the appellant company and the dependants of the deceased. This is clearly a reference collectively to the agreements mentioned above. When the suit came on for hearing, this question was taken as a preliminary point of law. The Chief Justice dismissed the objection and directed that the hearing should proceed, with liberty to the appellants to set off, under s. 24 (1) (*d*) of the Workmen's Compensation Ordinance, what had already been paid. It is from that decision that the present appeal is brought. The respondent has cross-appealed, asking that the decision be affirmed on the ground that an agreement can only be entered into under s. 15 with a living workman.

Mr. Versi, for the appellants, conceded that the agreements which purported to have been made with the infant children were invalid but submitted that the agreements made with those of the dependants who were sui juris were valid and operated to bar the suit so far as they were concerned. He submitted that the Chief Justice should have dismissed the claim so far as it related to them and should have ordered that the plaint be amended accordingly.

Mr. Uzanda, for the respondent, sought to support the decision of the Chief Justice and also argued, by way of cross-appeal, that the decision ought to be affirmed on the ground that s. 15 of the Workmen's Compensation Ordinance only applies to living workmen.

Much of the argument, both in the High Court and this Court, turned on a decision of this Court in a Uganda case, *Harnam Kaur v. Champion Motor Spares Ltd.*, [1971] E.A. 29. That was a case where the administrator of the estate of a deceased workman signed an agreement on behalf of the dependants, one of whom was sui juris and one an infant. It was held that the agreement was void. Mr. Versi argued that the present case could be distinguished, because here there were separate agreements signed by the parties to them, whereas in *Harnam's* case there was only a single agreement relating to both dependants and signed by neither.

In *Harnam's* case, Mustafa, J.A., in the leading judgment, said at p. 33:

> "I am of the opinion that s. 16 [which corresponds with s. 15 of the Tanganyika Ordinance] deals with compensation to a workman who has been injured but who is still alive, while s. 12 deals with the case of a workman who has died from his injuries. In the case of a workman who has died payment of compensation money into court and its apportionment by the court are essential, and if payment is not so made, it cannot be payment in terms of s. 12 of the said Act."

I remarked at p. 35:

> "I am not convinced that s. 12 of the Workmen's Compensation Act, which is not expressed to relate to the assessment of compensation, necessarily excludes the provisions of s. 16 where a workman has died of his injuries. The latter section could, however, only apply when all the dependants of the deceased are sui juris, which is not the case here."

Sir William Duffus, P., expressed no opinion on this question, which is therefore still open.

Mr. Uzanda based his submission that s. 15 cannot apply where a workman has died on four arguments, which may briefly be summarised as follows:

(*a*) that there is no provision for apportionment in s. 15, as there is in s. 12;

(*b*) that s. 6 (*b*) provides that where there are dependants partly dependent and no dependants wholly dependent on the deceased, the court has to assess the compensation, which precludes any agreement;

(*c*) that s. 11 (*c*), which provides for the death of a dependant before an order for compensation has been made, can only refer to an order of the court; and

(*d*) that s. 28 (1) (*d*) only applies where the workman's earnings were below a figure less than that of the deceased's earnings in the present case.

Mr. Versi relied on s. 2 (3) which provides that, unless the context otherwise requires, a reference to a workman who has been injured includes, when the workman is dead, a reference to his legal personal representative or to his dependants or any of them.

With respect, I am not persuaded by Mr. Uzanda's arguments. As regards (*a*), there is no need for a provision for apportionment in s. 15 if the dependants, being sui juris, reach agreement with the employers, because the agreement will cover the matter of apportionment. As regards (*b*), I think this is reading something into the paragraph that is not there; I cannot see that it precludes agreement. As regards (*c*), if an agreement has been concluded before the dependant dies, the matter would appear to be one of contract; if not, the paragraph applies. As regards (*d*), I read this as expressly recognising the fact that where a workman has died, an agreement may be entered into under s. 15.

I think it is a complete misconception to regard ss. 12 and 15 as mutually exclusive. There is an orderly pattern in the Ordinance. S. 5 creates the right to compensation. Ss. 6, 7, 8 and 9 provide for the amount of the compensation, which is in most cases a fixed sum. S. 10 relates to the assessment of the amount and s. 11 to the persons entitled to receive it.

S. 12 provides that the compensation (except when it takes the form of periodical payments) is to be paid into court, and empowers the court, where the workman is dead, to apportion the amount between the dependants and, where the workman is alive, to decide whether it should be paid to him directly or invested on his behalf. I would stress two points, first, that s. 12 has nothing whatever to do with the amount or the assessment of the compensation and, secondly, that it applies as much to living as to dead workmen.

S. 15, on the other hand, permits agreements as to the amount of the compensation, provided that the amount so agreed is not less than the amount payable under the provisions of the Ordinance, and such agreements may on application be made orders of court. As I have said, the amount of the compensation is in most cases fixed by the Ordinance and the main reasons for entering into an agreement under s. 15 would appear to be to achieve finality and to preclude a subsequent common law action. On the face of it, there is no reason why s. 15 should not be interpreted on the basis of s. 2 (3). Moreover, s. 28 (1) (*d*), to which Mr. Uzanda referred us, does not make special provision for an agreement in the case of the death of a lowly paid workman but merely regulates any agreement that may be made under s. 15. In my opinion, there is nothing to prevent the making of an agreement under s. 15 between an employer

and the dependants of a deceased workman where those dependants are sui juris.

That is sufficient to dispose of the cross-appeal, but not of the appeal, because in this case four of the dependants are infants. Clearly the agreements purporting to be made with them are void but the question is whether those agreements that were made with the widow, the father and the mother of the deceased are binding on them so as to debar them, under s. 24 (1), proviso (*c*), from pursuing a remedy under the fatal accidents legislation. This is not governed by *Harnam's* case because, as Mr. Versi pointed out, there was a single agreement in that case, which was held to be void, whereas here there were individual agreements.

I have not found this an easy question to decide but I think the answer is to be found by looking at the general pattern of the Ordinance. This is that when a workman is injured in the course of his employment, a sum of money becomes payable by way of compensation. If he dies of his injuries, the amount is divisible among his dependants. It is calculated in relation to his earnings, subject to a maximum, not to the loss sustained by the dependants or any of them. No one dependant has any specific entitlement, except, of course, where there is a sole dependant who was wholly dependant on the deceased, but no agreement under s. 15 may provide for compensation less than the statutory amount. It follows, I think, that an employer cannot enter into a settlement under the Ordinance with an individual dependant, except where he is a sole dependant. He can enter into an agreement with all the dependants collectively, where they are all sui juris and are in agreement as to the proportions in which the compensation is to be shared, but if one is an infant, the apportionment must be made by the court. In my opinion, the agreements in the present case were not in compliance with s. 15 and so did not, under s. 24, bar the subsequent proceedings. I think, with respect, that the Chief Justice was right and that the appeal must fail.

I would dismiss the appeal, with costs, and I would dismiss the cross-appeal, also with costs. As the other members of the Court agree, it is so ordered.

**Law Ag VP:** The facts leading up to this appeal are fully set out in the judgment of the Acting President and do not need to be repeated.

So far as the cross-appeal is concerned, it is based on a dictum in the leading judgment of this Court in *Harnam Kaur v. Champion Motor Spares Ltd.*, [1971] E.A. 29, where Mustafa, J.A. expressed the view that s. 16 of the Workman's Compensation Act of Uganda (which corresponds with s. 15 of the Workmen's Compensation Ordinance of Tanzania) deals only with compensation to a workman who has been injured but who is still alive. With respect, I share the doubts expressed by Spry, Ag. P. in his judgment in that case as to the correctness of that view. S. 28 (1) (*d*) of the Tanzania Ordinance reads as follows –

> "(*d*) in the case of the death of a workman, any agreement made in pursuance of subsection (1) of section 15 of this Ordinance shall be between the employer and any dependant or dependants. . . ."

This indicates that s. 15 envisages the making of agreements between an employer and the dependants of a dead workman. It is difficult to reconcile this with the apparently mandatory provisions of s. 12 (1) of the Ordinance, which lays down that compensation payable where the death of a workman has resulted from an injury shall be paid into Court. Presumably if all the dependants are sui juris they can agree with the employer and among themselves as to allocation of such compensation, and the Court will give effect to such agreement. But where any dependant is a minor, there can be no question of agreement, if only because of s. 11 of the Law of Contract Act (Cap. 433) which declares that a contract

entered into by a minor is void. For these reasons, I consider that the cross-appeal fails.

As regards the appeal, I agree with the judgment of the Chief Justice in the Court below. Once the agreements entered into on behalf of the minor children are disregarded, and being void they must be disregarded, one is left with the agreements entered into by the adult dependants and the employer. I do not see how some of the agreements can be valid if the remainder are not, as they purport to allocate the whole of the available compensation. They must stand or fall together. That being so, clearly the suit should go to trial in respect of all dependants. I consider that the appeal fails, and I concur in the order proposed by the Acting President.

**Lutta JA:** I agree with the Acting President that both the appeal and the cross-appeal should be dismissed. Under s. 15 of the Workmen's Compensation Ordinance, an employer and a workman may enter into an agreement in respect of the compensation to be paid to the workman after the injury in regard to which the claim for compensation has arisen. Reference to a workman who has been injured, and where such workman is dead, includes a reference to his legal personal representatives – s. 2 (3). In other words, the legal personal representatives or the dependants of a workman who is dead are permitted to enter into an agreement with an employer in respect of the compensation to be paid by the latter provided that the legal personal representatives or the dependants are not incapacitated, either by reason of age or of unsound mind, to enter into an agreement. With respect, I do not agree with Mr. Uzanda that by reason of s. 28 none of the dependants, in this suit, could legally enter into an agreement under s. 15 because the dead workman was receiving a salary far in excess of amount prescribed under r. 4 of the Workmen's Compensation Regulations 1957. S. 28 does not prohibit an agreement being entered into between an employer and a workman; it provides for a procedure to be followed only in cases where the dead workman's earnings do not exceed the prescribed monthly wages. In this case, the dead workman was earning a monthly salary of Shs. 700/- and therefore s. 28 does not apply as r. 4 of the Workmen's Compensation Regulations 1957 prescribed Shs. 400/- for the purpose of that section. In my view an employer is permitted to enter into an agreement with a dependant by virtue of s. 15 provided the latter has capacity to enter into an agreement. S. 12 deals with distribution or apportionment of compensation between dependants. I agree with the Acting President that it has nothing to do with assessment of compensation. With regard to s. 24 (1) (*c*) clearly the agreements with the dependants who were minors are void – s. 11 of the Law of Contract Act (Cap. 433). With regard to the agreements with the father, mother and the widow, who are sui juris, they would not as such be void. However, all the agreements, including those with the minors, deal with apportionment or distribution of the whole compensation. There is, however, some difficulty here in that the proportions to be apportioned to the minors would be in the discretion of the Court. The Court's exercise of its discretion under s. 12 is made difficult because of the purported apportionment of the whole amount between the seven dependants by reason of the agreements between the appellants and the dependants. It cannot be said that the minors agreed or had capacity to agree in regard to the proportions in which the whole compensation was to be distributed. In my opinion, had all the dependants been sui juris, all the agreements would have been effective and the Court would not be required to make apportionment. It seems to me that because these agreements not only relate to the whole compensation to be paid by the employer but also purport to apportion compensation even in those cases where the Court should make apportionment, it is proper that the suit should go for trial. I would accordingly dismiss the appeal and the cross-appeal. I concur with the order proposed by the Acting President.

*Appeal and cross-appeal dismissed.*

For the appellants:
*B. A. S. Versi* (instructed by *George N. Houry & Co.* Dar es Salaam)

For the respondent:
*F. H. Uzanda* (instructed by *Donaldson & Wood* Dar es Salaam)

# Yusufali v Riaziddin
## [1973] 1 EA 74 (CAD)

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| **Division:** | Court of Appeal at Dar es Salaam |
| **Date of judgment:** | 5 December 1972 |
| **Case Number:** | 53/1972 (3/73) |
| **Before:** | Spry Ag P, Law Ag VP and Lutta JA |
| **Sourced by:** | LawAfrica |
| **Appeal From:** | The High Court of Tanzania – Bramble, J. |

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*[1] Land – Buildings – Acquisition of – Registrar of buildings substituted only for owner – Relationship of tenant and subtenant unaffected – Acquisition of Buildings Act* 1971, *s.* 11 (*T.*).

*[2] Rent Restriction – Possession – Application by landlord for possession – Applies to residential and commercial premises – Rent Restriction Act* (*Cap.* 479), *s.* 19 (*T.*).

*[3] Rent Restriction – Possession – Application by landlord for possession – Expired lease is for term certain.*

**Editor's Summary**

A building was let by the owner to the respondent who sublet two floors to the appellant for 2 years 6 months for the purpose of a lodging house. While this situation subsisted the building was compulsorily acquired under the Acquisition of Buildings Act 1971. Upon notice under the Act the registrar is substituted for the owner as a party to the instruments set out in s. 11 (1) of the Act which includes sub-lease.

The respondent applied for an order for possession against the appellant on the grounds that he required the premises for his own occupation and that reasonably equivalent alternative accommodation was available.

The appellant contended that the respondent had no interest in the building as it had vested in the registrar, that the Rent Restriction Act (Cap. 479), s. 19 (1) (*j*) (ii) refers only to residential premises, and that the period of the lease having expired the tenancy was not for a term certain.

**Held –**

(i) The registrar is only substituted for the owner as a party to any document, and the owner is not generally a party to a sublease;

(ii) the tenant remains entitled to collect rent from his sub-tenant;

(iii) "premises" refers to both residential and commercial premises (dictum of Duff, J. in *Tanzania Exhibitors v. Jariwalla* (1) disapproved);

(iv) that the term had expired did not alter the fact that the sub-lease was for a term certain.

Appeal dismissed.

**Case referred to in judgment:**

(1) *Tanzania Exhibitors v. Jariwalla*, H.C.C.C. 22 of 1968 (unreported).

**Judgment**

The following considered judgments were read. **Law Ag VP:** This appeal involves consideration of the Acquisition of Buildings Act, 1971, hereinafter referred to as the Act, which empowers the President to acquire any building, on issuing an acquisition notice, other than a building which cost less than Shs. 100,000/- to build or a building wholly occupied by the

owner (be he a natural person or a body corporate) for residential, commercial or industrial purposes. The building, the subject of this appeal, is a house in Arusha, consisting of three floors. The whole building was let by the owners to the respondent, who in turn sub-let the first and second floors to the appellant, retaining possession of the ground floor. The sub-lease was expressed to be for a term of three years and six months but also contained a covenant by the respondent to allow the appellant to remain in occupation "as long as the main lease exists and tenant pays rent regularly". Whilst the main lease was still in existence, the building was compulsorily acquired under the Act, by notice duly published in the Gazette dated 21 May 1971. Upon such acquisition, various legal consequences ensued, and it will be necessary to try to unravel these consequences and in particular their effect upon the parties in their capacities as tenant and sub-tenant, both occupying part of the building. Upon the issue of an acquisition notice, the building vests in the registrar appointed under the Act (s. 4 (2)), and in relation to various defined instruments entered into by the owner in connection with that building, the registrar is substituted for the owner as a party thereto (s. 11 (2) (*a*)). These defined instruments (s. 11 (1)) include:

> "contracts, right of occupancy, leases, sub-leases, tenancy agreements, mortgages, charges or other securities . . .".

The first difficulty arises here. The owner of a building, which he has let, and which his tenant has sub-let, is not usually a party to the sub-lease. Why, then, is a sub-lease referred to at all? The owner is not a party thereto, and the registrar cannot therefore be substituted for the owner under s. 11 (2) (*a*). By paragraph (*b*) of that subsection, the registrar shall:

> "be entitled to receive, and to enforce payment of, any rent, fee, interest or other moneys payable thereunder."

This raises the second difficulty. To whom does a sub-tenant of part of an acquired building pay the rent reserved by the sub-lease? As I have already pointed out, the owner is not, so far as I am aware, usually a party to a sub-lease, and he was not a party to the sub-lease the subject of this appeal, so that the sub-lease in this case was not a document in relation to which the registrar was substituted for the owner "as a party thereto". The rent reserved under the sub-lease therefore continued to be payable, in my opinion, to the tenant by the sub-tenant. The tenant, who by virtue of his lease entered into with the owner as a party, must pay the rent reserved by the lease to the registrar, who has been substituted by the Act for the owner. It follows that I cannot accept the submission made by Mr. M. A. Lakha for the appellant, that the registrar becomes substituted for the owner in relation to every person in occupation of an acquired building, be he tenant or sub-tenant or, presumably licensee or trespasser. If the Act had intended this to be so, it could so easily have said so. Instead, the Act only substitutes the registrar for the owner in respect of instruments to which the owner was a party. Any other interpretation would lead to this absurdity: the registrar would collect the rents reserved both by the lease and the sub-lease, and thus be in a far better position than the owner, for whom he has been substituted. The tenant, on the other hand, would be in a far worse position than before. He is clearly liable, under the Act, to pay the rent reserved by the lease to the registrar, but if Mr. Lakha's submission is correct, he is not entitled after acquisition to receive rent from his sub-tenant. Again, had the Act intended to interfere so drastically with the relationship of tenant and sub-tenant, to the tenant's detriment, it would surely have so provided specifically.

The third and to my mind greatest difficulty arising out of the interpretation of the Act is s. 13, which creates criminal offences, and which must therefore be strictly construed. Sub-section (2) of that section reads:

> "Where any building has been acquired under the provisions of this Act, any person who being a tenant in respect of the building or any portion thereof fails to pay to the Registrar the rent within fourteen days of the date upon which the rent became due under the lease, sub-lease or the tenancy agreement, he shall be guilty of an offence and shall be liable on conviction to imprisonment for a term not exceeding twelve months."

The expression "tenant" in the Act has the same meaning as in the Rent Restriction Act (Cap. 479) and includes a sub-tenant, so that on a superficial reading of s. 13 (2) it would appear that a sub-tenant must pay his rent directly to the registrar, or go to prison. But s. 13 (2) must be read with s. 11, which makes it clear that a sub-lease in the Act means only a sub-lease to which the owner was a party. I doubt if there is such a thing, but the Act involves penal consequences, and must be construed strictly in favour of the subject.

To sum up, the sub-lease the subject of this appeal was a document to which the owner was not a party. The registrar thus acquired no rights under it, and the appellant's relationship as sub-tenant to the respondent was unaffected by the acquisition of the building. In my view the appellant's obligation to pay the rent reserved by the sub-lease was unaffected by the Act, and such rent can be paid to the respondent without fear of penal consequences, as it is payable under a sub-lease to which the owner was not a party, and is therefore a document not covered by the use of the word "sub-lease" in s. 13 (2) of the Act.

It follows that I agree with Bramble, J. in the Court below that the Act does not interfere with the relationship between the parties in this case. The respondent is accountable to the registrar for the rent of the whole premises, and he is entitled to receive the rent payable by his sub-tenant. The position might be different in the case of a sub-lease to which the owner is a party, if such a state of affairs can exist, but that is not the position in the case now under consideration.

This disposes of the first ground of appeal which contended that the respondent had no cause of action as a result of the provisions of the Act.

The other grounds of appeal argued by Mr. Lakha were to the effect that even if the respondent had a cause of action, he was not entitled to an order for possession, by reason of the provisions of s. 19 (1) of the Rent Restriction Act, and particularly paragraph (*j*) (ii) thereof, which provides that no order for possession shall be made unless the tenancy is for a term certain, and the landlord requires the premises at the expiry of the said tenancy for his own occupation or for the occupation of his wife or children or for some person in his whole time employment. Also relevant are paragraph (*e*) (ii) of s. 19 (i) which requires proof of the availability of reasonably equivalent alternative accommodation before an order is made, and subsection (2) of s. 19 which lays down that no order shall be made unless it is reasonable.

Paragraph (*j*) (ii) aforesaid refers to "premises". As originally enacted, the Act related solely to dwelling houses. By an amendment in 1966, the definition of premises was enlarged to include commercial premises. The premises the subject of this appeal are undoubtedly commercial, being used for the purposes of a lodging house.

Mr. Lakha submitted that the word "premises" in paragraph (*j*) (ii) aforesaid should be construed as referring solely to dwelling houses, and he relied for this on a dictum to this effect by Duff, J., *Tanzania Exhibitors v. Jariwalla,* H.C.C.C. 22 of 1968 (unreported). The trial magistrate and the judge refused to follow this authority, and I think they were right. Where, after the 1966 amendment, the legislature intended residential and commercial premises to be treated differently, it made provision accordingly, see for instance paragraphs (*e*)

and (*h*) of s. 19 (1). In my view, the word "premises" in paragraph (*j*) (ii) aforesaid includes both residential and commercial premises. Mr. Lakha also submitted that the covenant to allow the sub-tenant to remain in occupation so long as the main lease was in force and rent was paid resulted in the sub-lease not being for a term certain, so that the respondent could not claim possession under paragraph (*j*) (ii) aforesaid. The sub-lease was, by clause 1 thereof, expressed to be for the term of three years and six months from 1 October 1967. That is a term certain. I do not consider that the covenant altered this position. Notice was served terminating the tenancy at the end of the term certain, that is to say 31 March 1971. The effect of the covenant may have been to turn the sub-tenancy into a tenancy at will after that date, but it did not in my view have the effect of making the sub-lease other than for a term certain.

There remain for consideration the grounds of appeal challenging the reasonableness of making an order for possession in the suit, the subject of this appeal. The judge on first appeal did not address his mind to this aspect of the matter. Mr. N. S. Patel for the respondent submitted that whether or not to make an order for possession represents an exercise of discretion, and that no reason had been shown for interfering with the magistrate's discretion in this case. The three relevant matters in this connection are:

(1) does the landlord require the premises for his own occupation?

(2) is reasonably equivalent alternative accommodation available?

(3) is it reasonable to make the order for possession?

The trial magistrate was satisfied as to (1) and (3) and there was material to justify his conclusions. The difficulty arises with regard to the question of alternative accommodation. No oral evidence was led on this point, although both parties gave evidence. The respondent did however put in evidence his advocate's letter giving notice to quit. In this letter the following appears:

> "My client states that you have already acquired alternative accommodation on plot No. 25, Block 'C' Area 'F' Arusha."

No questions were put to the respondent challenging this very specific assertion that alternative accommodation existed, nor did the appellant when he subsequently gave evidence suggest in any way that the assertion was inaccurate. The magistrate relied on the letter as evidence that reasonably equivalent alternative accommodation existed. It was admitted without objection, and the respondent testified that no reply was received to it. I do not see how, in these circumstances, it can be said that there was no material before the magistrate enabling him to find that reasonably equivalent alternative accommodation existed.

For these reasons, I consider that this appeal fails, and I would dismiss it with costs.

**Spry Ag P:** I am in complete agreement with the judgment of Law, Ag. V.-P., and I am only adding a few words because of what we were told from the bar is the current practice where there were sub-leases of buildings which are acquired under the Acquisition of Buildings Act, 1971.

I am quite satisfied that the only interest which passes to the registrar when a building is acquired under the Act is that of the owner, that is to say, the holder of the right of occupancy. I think this emerges clearly from ss. 2, 5, and 8. I confess that I do not understand the reference to sub-leases in s. 11, but in any case that section does not purport to affect a sub-lessee and only affects a lessee as regards his obligations towards the registrar as the successor in title of the owner. S. 13 is somewhat ambiguous but in the light of the other sections of the

Act, and having regard to the fact that it is a penal section, I do not think it can properly be interpreted as applying to a lessee in relation to his sub-lessee.

It follows that in my opinion, where a building is acquired which has an owner, a lessee and a sub-lessee, the registrar steps into the shoes of the owner and the relationship of lessee and sub-lessee remains unchanged.

As Lutta, J.A., also agrees, there will be an order in the terms proposed by Law, Ag. V.-P.

**Lutta JA:** I have read in draft the judgments prepared by the Ag. V.-P. and Ag. President. I agree with them and with the order proposed.

*Appeal dismissed.*

For the appellant:
*M. A. Lakha* and *D. N. Kappor* (instructed by *M. A. Lakha & Co.* Dar es Salaam)

For the respondent:
*N. S. Patel* and *M. Behal*

## Standard Bank Ltd v Mehotoro Farm Ltd and others
[1973] 1 EA 78 (CAN)

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|---|---|
| **Division:** | Court of Appeal at Nairobi |
| **Date of judgment:** | 20 December 1972 |
| **Case Number:** | 54/1972 (4/73) |
| **Before:** | Spry Ag P, Law Ag VP and Lutta JA |
| **Sourced by:** | LawAfrica |
| **Appeal From:** | The High Court of Kenya – Madan, J. |

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*[1] Company – Shares – Purchase of – With financial assistance of Company – Whether transactions void – Companies Act* (*Cap.* 486), *s.* 56 (*K.*).

*[2] Civil Practice and Procedure – Pleading – Cause of action – Advances – Not necessary to plead every advance.*

*[3] Guarantee – Advance – Of money paid to company for purchase of its own shares – Consideration illegal and guarantee void.*

**Editor's Summary**

The first respondent owed money to the appellant and this was secured by equitable mortgages over the first respondent's land. The second and third respondents agreed to buy the shares in the first respondent for a price which took into account the amount of that indebtedness. The appellant agreed to lend to the first respondent the money necessary to enable the second and third respondents to buy the shares. The equitable mortgages were varied to secure the total sum lent to the first respondent and

the second and third respondents signed guarantees guaranteeing the total amount due to the appellant.

In the High Court it was held that the existing debt was incorporated in the purchase price and indirectly paid and that the total purchase price was irrecoverable by the appellant, and that the second and third respondents were also discharged from liability.

On appeal the appellant contended that the old debt and the securities for it could not be invalidated by the subsequent illegality of the loan to the company for assistance in the purchase of its shares.

The respondents contended that each item of the debt had not been pleaded and that therefore the plaint disclosed no cause of action.

**Held –**

(i) There is no necessity to plead every advance made by a creditor;

(ii) the guarantees were given for an illegal consideration and were void; (Lutta, J.A. dissenting).

(iii) there was no notional payment of the old debt;

(iv) the assistance given by the appellant for the purchase of the shares was the amount of the subsequent advance;

(v) the first respondent remained liable for the old debt.

Appeal allowed against first respondent.

**No cases referred to in judgment.**

**Cases cited to the court:**

(1) *Re V.H.M. Holdings*, [1942] Ch. 235; [1942] 1 All E.R. 224.

(2) *Victor Battery Co. v. Curry's*, [1946] Ch. 242; [1946] 1 All E.R. 519.

(3) *Steen v. Law*, [1964] A.C. 287; [1963] 3 All E.R. 770.

(4) *Selangor United Rubber Estates v. Cradock* (*No.* 3), [1968] 2 All E.R. 1073.

(5) *Heald v. O'Connor*, [1971] 2 All E.R. 1105.

**Judgment**

The following considered judgments were read. **Lutta JA:** This is an appeal from a judgment of the High Court relating to a claim made by the appellant against Mehotoro Farm Ltd. (to whom, for convenience, I shall refer as "the Company") and Mr. and Mrs. Kamau – for the recovery of Shs. 841,051/85 alleged to be due from the Company to the appellant; Shs. 660,000/- severally from Mr. and Mrs. Kamau under guarantees and indemnities signed by them in favour of the appellant; a declaration that two farms are severally mortgaged to the appellant in the sum of Shs. 660,000/- each; and for an order, in default of payment by the Company and Mr. and Mrs. Kamau of the total amount due, for sale of the two farms. The judge dismissed the claim against the Company and Mr. and Mrs. Kamau and held that the memorandum of equitable mortgage by deposit of titles relating to the two farms and the instruments of variation thereto were void. He declared the two farms freed and discharged from the memorandum and the instruments of variation.

The Company was incorporated with limited liability, its share capital was Shs. 400,000/- divided into 20,000 ordinary shares of Shs. 20/- each. It owned the two farms and on 25 January 1964 by two memoranda of charge by deposit of title documents it charged its immovable properties in favour of the appellant by way of equitable mortgage each to secure an unspecified sum. However, each of the memoranda was stamped for revenue as security for Shs. 320,000/-. On 5 September, 1967 Mr. and Mrs. Kamau agreed with the directors of the Company to purchase the shareholding at the price of Shs. 660,000/- on the terms and conditions set out in a letter dated 4 September 1967 from Mr. and Mrs. Kamau's advocates to the advocates of the Company. The following parts of the said letter are relevant:

> "1. The price to be paid for the total shareholding will be the balance of Kenya shillings six hundred and sixty thousand (K. Shs. 660,000/-) after deducting therefrom the liability of the Company to the Standard Bank Limited as at the date of completion. The price will be payable as follows:
>
> (*a*) The sum of shillings sixty six thousand (Shs. 66,000/-) forthwith by way of deposit to you as stakeholders and you shall release the same

to the vendor on receipt of Divisional Board consent to the transaction.

(*b*) The balance on completion.

2. It is an implied warranty of the agreement that the company owns L.R. No's 1713/3 and 7538 Ruiru Township (hereinafter referred to as 'Komina Estate') for a freehold estate or for a long leasehold estate and will deduce good titles thereto to the Standard Bank Limited) and that there are no outstanding breaches of the terms and conditions of the titles or of any bylaws, agricultural orders or other legal, government or local government instructions or regulations."

According to the statement of agreed facts, the liability of the Company to the appellant as at the date of completion was Shs. 203,309/95 which was the amount of overdraft in the Company's account at Nakuru. Mr. and Mrs. Kamau were advanced Shs. 66,000/- by the appellant on or about 11 November 1967 for the purpose of paying the deposit on account of the purchase price of the shares. The appellant then closed Mr. Kamau's account, which had a debit of Shs. 66,000/-, by transferring it to the Company's account in the Kiambu branch, which was indebted to the appellant, by way of an overdraft, in the sum of Shs. 203,309/95; the latter was secured by the two memoranda of charge and the guarantees of the directors of the Company. Mr. and Mrs. Kamau were advanced Shs. 660,000/- through this account for the purchase of the Company's shares; this amount was secured by upstamping the two memoranda of charge by two instruments of variation under which the Company agreed that the amount so secured was to be increased to Shs. 660,000/- in each case. Mr. and Mrs. Kamau each executed guarantees and indemnities dated 20 November 1967 and 5 January 1968 respectively in favour of the appellant to secure the sum of Shs. 660,000/-. In the statement of agreed facts, paragraphs 12, 13, 14 and 15 read as follows:

"12. To enable the second and the third defendants to purchase the shareholdings on the said terms and conditions the plaintiff advanced to the Company a sum of money (hereinafter called 'the loan') to the intent and with prior consent and knowledge of the plaintiff that the Company applies the loan directly towards payment of the said purchase price for the purchase of the shareholding by the second and third defendants. It was further agreed between the plaintiff on the one hand and the Company the second and the third defendants the other that the re-payment of the loan together with interest thereon was to be safeguarded by the securities and guarantees referred to in Clauses 14 and 15 below.

13. The plaintiff advanced the loan to the Company so that the same may be utilised by the Company towards payment of the said purchase price as agreed for the purchase of the shareholding by the second and third defendants and loan was so utilised. The Company opened a new account with the plaintiff in Kiambu, in which it was debited with monies lent and to which the outstanding debt in Nakuru was transferred.

14. In performance of the agreement referred to in Clause 12 above the Charges were upstamped by two Instruments of variation each dated 1 November 1968 to secure as therein stated the repayment of the total liabilities not exceeding Shs. 660,000/- with interest thereon.

15. In further performance of the agreement referred to in Clause 12 above the second and the third defendants each executed in favour of the plaintiff the two instruments of guarantee respectively dated 20 November 1967 and 5 January 1968 to secure the repayment of the liabilities of the Company not exceeding Shs. 660,000/- together with interest thereon."

The judge held that the transaction was one for the sale and purchase of shares at the agreed price of Shs. 660,000/- and that the existing debt, that is, Shs. 203,309/95, was incorporated in the purchase price and indirectly paid notionally by releasing the previous guarantees by the directors of the Company, for which Mr. and Mrs. Kamau were substituted and thus the existing debt became tainted by being merged in the total purchase price and therefore irrecoverable. He further held that there was no consideration for Mr. and Mrs. Kamau to guarantee repayment of the existing overdraft and in that context, the guarantees executed by them were unenforceable to the extent of the amount of the existing overdraft.

The appellant, at the trial of the suit in the High Court, conceded that it had no valid claim against the Company for money which was lent to the latter for the purpose of assisting Mr. and Mrs. Kamau to buy shares on the ground that it was rendered void by s. 56 of the Companies Act and consequently the guarantees executed by Mr. and Mrs. Kamau to secure the existing overdraft were to that extent also invalid. However, Mr. Slade, for the appellant, argued before us, as he did in the High Court, that the old debt, that is, Shs. 203,309/95, and securities thereof could not be invalidated by any subsequent illegality of the loan to the Company for the purpose of assisting Mr. and Mrs. Kamau to purchase shares in the Company. He submitted firstly, that it was not illegal for the appellant to allow the old debt to continue or to accept Mr. and Mrs. Kamau as new guarantors in respect of the old debt. Secondly, he submitted that the old debt was not extraneous to the transaction as it was directly brought in to calculate the purchase price of the shares; and thirdly, that the old debt did not represent assistance by the Company to Mr. and Mrs. Kamau and therefore there was no contravention of s. 56 of the Companies Act. Mr. da Gama Rose, for the Company and Mr. and Mrs. Kamau, contended that the old debt formed part of the overdraft and an integral part of the transaction for the purchase of the shares at the agreed price of Shs. 660,000/-, the price having been agreed between the directors of the Company and Mr. and Mrs. Kamau with the knowledge of the appellant. He submitted that as the directors of the Company were paid Shs. 660,000/- through the Company, the cash price of Shs. 456,690/05 directly as cash payment and the balance of the purchase price being paid by releasing the directors from their joint and several liability from the guarantees of the old debt, the transaction offended s. 56. Mr. da Gama Rose further contended that there was no consideration for Mr. and Mrs. Kamau to pay the old debt. He submitted that if the old debt did not form an integral part of the transaction, the consideration pleaded in the plaint was not proved. He also contended that the cause of action in respect of the old debt was not pleaded in the plaint and that it arose from the reply to the defence and that this constituted a departure from the practice governing pleadings and amendment thereof; thus the appellant would not in this case, be entitled to succeed because of the inconsistency between the reply and the plaint. He submitted also that if the old debt does not form an integral part of the transaction then the charges as well as the guarantees are severable. Mr. Slade objected to the latter point being raised in support of the judgment on the ground that there was no cross-appeal. We heard judgment de bene esse on the appeal. As regards pleadings, Shs. 841,051/85 is claimed in the plaint as the total amount owing as at 27 February 1970, to the appellant by the Company which the appellant had advanced to the Company from time to time. The reply to the defence alleged in paragraphs 3 (*b*) and (*c*) and 4 (*a*) that:

> "3 (*b*) the amount owing to the plaintiff by the first defendant on the security of the said Charges at that date was Shs. 203,309/95;
>
> (*c*) no payment made by the first defendant to the plaintiff after that

date was ever appropriated by either party towards payment of that debt of Shs. 203,309/95.

4.(*a*) the advance which the plaintiff agreed to make the second and third defendants was Shs. 456,690/05 only, being the difference between the sum of Shs. 660,000/- and Shs. 203,309/95 then owing by the first defendant as aforesaid."

The essence of Mr. da Gama Rose's contention is that there is no cause of action pleaded in the plaint on which the claim for Shs. 203,309/95 can be grounded. The cause of action in respect of this amount, that is, the old debt, was raised in the reply to the defence and since there are a series of causes of action or a series of contracts, each cause of action or contract must be separately pleaded. As I understand it the plaint alleges that the cause of action is advances amounting to Shs. 841,051/85, made to the Company over a number of years. In other words, the amount in respect of financial assistance given to the Company over a period of years (that is, since 1964 up to 1968), including that relating to the purchase of shares of the Company by Mr. and Mrs. Kamau. In my view, it is not necessary to plead separately each advance as a separate cause of action. In any event, the Court has power under O. 6, r. 18 of the Civil Procedure (Revised) Rules 1948 to allow a party, at any stage of the proceedings, to alter or amend his pleadings in such manner and on such terms as may be just. This rule also requires that "all such amendments shall be made as may be necessary for the purpose of determining the real question in controversy between the parties". There is also the inherent jurisdiction of the court to allow such amendments to the pleadings as may be necessary for the ends of justice – see s. 97 of the Civil Procedure Act. In my view there is no reason why the inherent jurisdiction of the court would not be invoked in this case or why this practice would not be followed if the appellant were to apply to amend his pleadings. I think that it is open to the court to hold, in a claim of this kind, that only so much of the claim is proved or conversely, so much of the claim is void by reason of prohibition by statute. I do not see any inconsistency between the plaint and the reply to the defence.

The question in this appeal is whether the old debt, that is Shs. 203,309/95, was tainted by s. 56 of the Companies Act which reads as follows:

"56(1) Subject as provided in this section, it shall not be lawful for a company to give, whether directly or indirectly, and whether by means of a loan, guarantee, the provision of security or otherwise, any financial assistance for the purpose of or in connexion with a purchase or subscription made or to be made by any person of or for any share in the company, or, where the company is a subsidiary company, in its holding company:

Provided that nothing in this section shall be taken to prohibit –

(i) where the lending of money is part of the ordinary business of a company in the ordinary course of its business.

(ii) the provision by a company, in accordance with any scheme for the time being in force, of money for the purchase of, or subscription for, fully-paid shares in the company or its holding company, being a purchase or subscription by trustees of or for shares to be held by or for the benefit of employees of the company, including any director holding a salaried employment or office in the company.

(iii) the making by a company of loans to persons, other than directors, bona fide in the employment of the company with a view to enabling those persons to purchase or subscribe for fully-paid shares in the

company or its holding company to be held by themselves by way of beneficial ownership.

(2) If a company acts in contravention of this section, the company and every officer of the company who is in default shall be liable to a fine not exceeding twenty thousand shillings."

The kind of transaction this section is aimed at is the one whereby a company provides financial assistance for the purchase of its shares. Mr. Slade argued that financial assistance provided by the company to Mr. and Mrs. Kamau was in the sum of Shs. 456,690/05 and that the guarantees of the old debt and the release of the directors from the previous guarantees by obtaining fresh guarantees from Mr. and Mrs. Kamau did not involve financial assistance from the Company. The question that arises is, what is the meaning of the expression "financial assistance"? It seems to me that it covers any transaction where not only money but also security or guarantee and indemnity, is provided by a company in order to enable a person to purchase or acquire its shares. Mr. Slade submitted that the old debt was unrelated to the new one, presumably he meant that the old debt was not included or involved in the purchase price of Shs. 660,000/-. The nature of the transaction was essentially the provision of financial assistance to Mr. and Mrs. Kamau to purchase or acquire the Company's shareholding, whose value was Shs. 660,000/-. According to paragraphs 12, 13, 14 and 15 of the statement of agreed facts, set out above, a loan of Shs. 660,000/- was provided by the appellant to the Company in order to enable Mr. and Mrs. Kamau to purchase the Company's shares. This was done by the payment of the cash price, that is, Shs. 456,690/05 to the directors through the Company and by the release of the directors from their joint and several guarantees in respect of Shs. 203,309/96, which is the difference between Shs. 660,000/- and the cash price, that is, the old debt, and obtaining from Mr. and Mrs. Kamau guarantees in respect of the consolidated figure of Shs. 660,000/- and upstamping the charges by instruments of variation to secure the repayment of that amount. Thus the old debt, in my view, was merged in the purchase price of the shareholding of the Company and as the Company charged its immovable assets to secure the loan of Shs. 660,000/- by upstamping the charges to that extent, in my opinion, the conclusion that it provided financial assistance in the sum of Shs. 660,000/- to Mr. and Mrs. Kamau to purchase its shares is inescapable. Mr. and Mrs. Kamau's guarantee extended to Shs. 203,309/95 because this amount formed part of the total purchase price of the Company's shares otherwise they would not have been connected with it in any way nor would the directors have been released from their guarantees in respect of that amount unless some arrangement by them was made to repay it. Similarly, the Company, as at the date of completion, became liable for Shs. 203,309/95 because this amount formed part of the value of the total shareholding, which was being purchased or acquired by Mr. and Mrs. Kamau otherwise the guarantees of the directors would have continued. In my view the Company gave financial assistance within the meaning of s. 56 of the Companies Act and therefore the charges upstamped by the two instruments of variation each dated 1 November 1968 to secure the repayment of Shs. 660,000/- (which included Shs. 203,309/95) and the instruments of guarantee executed by Mr. and Mrs. Kamau, are void for illegality. Whether or not the parties were innocent is not material because public policy requires that a company shall not provide any form of financial assistance for the purpose of the purchase of its shares. I have no doubt that the parties here were all acting innocently and in good faith. However, the Act has prohibited this kind of transaction, and I am unable to see how the courts can fail to enforce the prohibition even though the transaction was innocent. As regards the question whether or not there was consideration for guarantees executed by Mr. and Mrs. Kamau, Mr. Slade submitted that there was the

consideration of forbearance to sue, that is, the appellant forbore to call in the old debt. I am unable to agree. The sum of Shs. 203,309/95 was a pre-existing debt and it was not incurred by reason of executing the guarantees. There was no undertaking to forbear nor was there an actual forbearance. In my view there was no consideration for the guarantees executed by Mr. and Mrs. Kamau. In the circumstances I would dismiss the appeal.

**Spry Ag P:** The facts out of which this appeal arises, the judgment appealed from and the arguments of counsel are fully set out in the judgment of Lutta, J.A.

The main issue may be stated very simply. The company borrowed money from the bank on a secured overdraft: that was a normal, valid and enforceable transaction. Subsequently, the bank lent money to the company to enable the company to provide financial assistance to the Kamaus for the purchase of shares in the company, in contravention of s. 56 of the Companies Act. The securities given were varied and up-stamped to cover the total amount advanced. The Kamaus were buying all the shares in the company and the additional advance by the bank, which may be described as the net price of the shares, represented the value of the assets of the company less the outstanding debt to the bank. The judge held that as the indebtedness of the company to the bank was taken into account in the calculation of the purchase price, it became tainted with the illegality of the subsequent advance, so that the bank could recover nothing. The main ground of appeal is against that decision.

S. 56 is a provision which was introduced as a matter of public policy to prevent fraud and accordingly it was drafted in very wide terms. It is expressed to prohibit companies from giving financial assistance, by loan, guarantee, the provision of security or otherwise, for the purchase of their shares. It renders offending companies liable to penalties which, in relation to the present value of money, are hardly more than nominal, but by making the transactions illegal, it may make very large sums of money irrecoverable. In some circumstances, such as the present, it may operate most harshly, heavily penalizing persons who have acted in all innocence and giving undeserved windfalls to the persons whose debts are irrecoverable. For this reason, s. 56 ought, in my opinion, to be interpreted very strictly and should not be extended to apply to any transaction which is not expressly covered by it.

The present transaction, so far as the section is concerned, was the giving of additional security by the company to the bank, the loan of Shs. 456,690/05 by the bank to the company and the payment by the company of that sum, on behalf of the Kamaus, to the former shareholders of the company. It is conceded that that transaction was unlawful.

I can see no justification for saying that there was a “notional” payment of the outstanding debt of Shs. 203,309/95. If that debt had been owing to some third party, and the purchase price of the shares had been calculated by taking the value of the assets of the company less its debt, it could not possibly have been argued that the debt was tainted by the subsequent transaction and I can see no reason why the position should be any different merely because the original debt was due to the bank.

Mr. da Gama Rose, for the respondent, argued that the transaction should be looked at as a whole. With respect I cannot agree. There was nothing illegal in the purchase of the shares by the Kamaus, or in the financing of the purchase by the bank: the only illegality lay in the financial assistance given by the company to the Kamaus and the bank is only prejudiced to the extent that it was a party to that assistance. The assistance that the company gave the Kamaus was,

first in giving additional security to the bank and, secondly, in paying the sum of Shs. 456,690/05 to the former shareholders and some incidental expenses.

We heard a great deal of argument on what was really the purchase price of the shares, but it seems to me, for the reasons I have given, that it was largely irrelevant. I have no doubt that while the gross price was Shs. 660,000/-, the amount actually paid was less, because of the indebtedness of the company. What we are concerned with is not the price paid but the assistance given.

Mr. da Gama Rose also argued that the transaction was substantially the same as if the old debt had been discharged and a new loan given by the Bank for Shs. 660,000/-. It seems to me, with respect, that that is only introducing the concept of a notional payment in a different form. It is equally true that if the transaction had taken the form of a sale of assets, as opposed to a sale of shares, the entire debt, amounting almost to a million shillings, would have been recoverable. All that we are concerned with is how the transaction was in fact carried out: the application of s. 56 depends on financial assistance given by the company and that was limited to the net, not the gross, purchase price.

Mr. da Gama Rose also argued that once the memoranda that secured the company's overdraft were varied, it was not permissible to look at the original documents. Again, with respect, I cannot agree. If the instruments of variation were void for illegality, as has been conceded, it seems to me that one can only properly look at the original instruments since the purported variation of them was a nullity. The upstamping of them is of no significance: any creditor may up-stamp a security at any time to cover possible additional advances.

For these reasons, I have no doubt that the appeal must succeed as against the company.

The position is different as regards the other respondents, because they had no antecedent debt to the bank. They gave guarantees to the bank in the full amount of Shs. 660,000/-. Mr. Slade argued that although these are obviously unenforceable as regards such part of the company's debt as is irrecoverable for illegality, they are enforceable as regards the earlier debt. Mr. da Gama Rose argued that as these guarantees covered the gross amount of the purchase price, they must be wholly void. Here again, he was relying on the proposition that the transaction had to be looked at as a whole. In this context, I think that argument must prevail. If the giving of the guarantees had been to induce the bank to make a direct advance to the Kamaus, no exception could have been taken to it, but quite clearly the object was to induce the bank to lend money to the company for a purpose known both to the Kamaus and to the bank, which purpose was illegal. I think therefore that the guarantees were given for a consideration which was illegal and that they are consequently unenforceable.

In the result, I would allow the appeal as against the company but dismiss it as against the Kamaus personally. I would set aside the judgment and decree so far as they dismiss the suit against the company and substitute an order giving judgment for the bank against the company for Shs. 203,309/95, with interest calculated as agreed at the hearing of the suit up to the date of payment in full. I would award the declaration sought that the immovable properties referred to in the plaint are charged in favour of the bank but I think it would be more appropriate for the application for an order for sale to be dealt with by the High Court, and I would remit the proceedings for that purpose. As Law, Ag. V.-P., agrees, it is so ordered.

**Law Ag VP:** I have read the judgments prepared by Lutta, J.A. and Spry, Ag. P. I have formed the view that there has been a degree of confusion in this case between the agreed gross purchase price for the company's shares, that is to say the value of its unencumbered assets which was Shs. 660,000/- and the

actual assistance given by the company to Mr. and Mrs. Kamau to purchase the interest of the former shareholders. That actual assistance, I am satisfied, came to Shs. 456,690/05, the balance of Shs. 203,309/95 representing the Company's outstanding debt to the bank. The only payment made to the former shareholders was Shs. 456,690/05, and this sum represents the only assistance received by the Kamaus from the company. The debt remained in existence on completion, the only difference in relation to it being that the former shareholders were discharged from their guarantees and their responsibilities assumed by the Kamaus. This was not "assistance" given to the Kamaus. On the other hand, the security given by the Kamaus was given in consideration for the loan by the bank to the company of sufficient money to enable the Kamaus to pay the net purchase price of the shares. As it transpires, this was an unlawful transaction under s. 56 of the Companies Act, and the security cannot accordingly be enforced against the Kamaus. I do not see how it can be argued that the Company's debt to the bank, which existed before the Kamaus came on to the scene at all, and the security given to secure that debt by the company, are affected in any way by the subsequent transaction with the Kamaus.

For these reasons, I agree with the Acting President that this appeal succeeds against the company, but fails against Mr. and Mrs. Kamau. I concur in the order proposed by the Acting President.

*Appeal allowed against first respondent.*

For the appellants:
*H. Slade* and *J. N. Desai* (instructed by *Hamilton Harrison & Mathews*, Nairobi)

For the respondent:
*M. da Gama Rose* and *S. Thanawalla* (instructed by *Shapley Barret Ennion Marsh & Co*., Nairobi)

## Muiruri v Republic
[1973] 1 EA 86 (HCK)

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| **Division:** | High Court of Kenya at Nairobi |
| **Date of judgment:** | 23 November 1972 |
| **Case Number:** | 768/1972 (5/73) |
| **Before:** | Trevelyan and Hancox JJ |
| **Sourced by:** | LawAfrica |

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*[1] Criminal Practice and Procedure – Double jeopardy – Same act an offence under two laws – Accused can be neither convicted nor sentenced under both laws – Interpretation and General Provisions Act* (*Cap*. 2), *s*. 63 (*K*.).

*[2] Criminal Practice and Procedure – Sentence – Minimum sentence – More than minimum imposed for robbery – Sentence reduced.*

*[3] Criminal Practice and Procedure – Sentence – Corporal punishment* – 35 *strokes – Manifestly excessive.*

**Editor's Summary**

The appellant was charged with shopbreaking and theft and with robbery with violence in respect of the same incident and was convicted on both charges. He was sentenced to 5 years' and 18 years' imprisonment to be served concurrently and to a total of 35 strokes.

On appeal:

**Held –**

(i) theft is a constituent of both the offences charged;

(ii) the accused can neither be convicted nor sentenced on two charges where the same act is an offence under different laws;

(iii) the combined award of corporal punishment was manifestly excessive;

(iv) the robbery sentence was excessive and would be reduced to the minimum sentence.

Appeal against first count allowed. Sentence on second count reduced to 14 years.

**Cases referred to in judgment:**

(1) *R. v. Dobbs* (1951), 18 E.A.C.A. 319.

(2) *Njeroge Nganga*, E.A.C.A. Cr. A. 115 of 1954 (unreported).

(3) *Cosma Nyadago v. R.* (1955), 22 E.A.C.A. 450.

(4) *Turon v. Republic*, [1967] E.A. 789.

**Judgment**

The considered judgment of the court was read by **Trevelyan J:** The appellant was charged with shopbreaking and theft contra s. 306 (*a*) of the Penal Code. Part way through the evidence of the first prosecution witness, a second count of robbery with violence under s. 296 (2) of the Code was added. The appellant was convicted on both counts and sentenced to five years' imprisonment and to receive fifteen strokes on the original charge, and to undergo eighteen years' imprisonment and to receive twenty strokes on the others. The sentences of imprisonment were ordered to be served concurrently, but the awards of corporal punishment had, of course, to be ordered to be received in their totality. The magistrate had said that he reduced the number of strokes on each of the counts so that the total awarded should not be more than he would have awarded on the second charge had it stood alone, but the aggregate of the awards was massive and manifestly excessive and we would not have supported it even had we resolved to uphold both convictions which, we will at once say, we shall not.

The facts of the case can be stated simply and shortly. The appellant and another man having broken into the complainant's shop and stolen a radio set and some money in it, were seen coming out of the premises. The other man ran away, but the appellant, who was holding the set, stood his ground brandishing a knife, but was overpowered and arrested. On the evidence, he committed both of the offences charged against him, but he can, nonetheless, as we see it not be punished except for having committed one of them.

The maxims *nemo debet bis vexari pro una et eadem causa and nemo debet bis puniri pro uno delicto* have received statutory recognition in s. 63 of the Interpretation and General Provisions Act (Cap. 2) which provides that:

> "63. Where an act or omission constitutes an offence under two or more written laws, the offender shall, unless a contrary intention appears, be liable to be prosecuted and punished under any of such laws, but shall not be liable to be punished twice for the same offence."

In *R. v. Dobbs*, (1951), 18 E.A.C.A. 319, the accused, a district officer, was convicted of stealing, by conversion, some game trophies and also of being in unlawful possession of them and was sentenced on both charges. The Court of Appeal upheld both convictions but set one of the sentences aside because the two offences flowed from the same act and the accused could not twice be punished for it. But then, in *Cosma Nyadago v. R.* (1955), 22 E.A.C.A. 450 where the accused was charged with, and convicted of, robbery with violence and two counts of assault occasioning actual bodily harm, the court not only set aside the sentences on those two counts but quashed the conviction on them as well, saying:

> "Our reason for quashing the convictions on counts (*c*) and (*d*) was that,

> since the violence alleged in these counts was the same as that alleged and proved in count (*b*) and since that violence had formed a constituent of the offence for which the appellant was convicted on that count, he could not be punished a second time in respect of these same acts of violence. . . .”

In the instant appeal, theft is a constituent of both charges against the appellant and, on the authority of the two cases which we have cited, one of the sentences imposed by the trial magistrate must be set aside. But should we also quash one of the convictions?

There was a difference of view between judges who were called upon, under certain regulations, to try capital and non-capital cases together as to whether, having sentenced on the former, they needed or had to do so on the latter. Then, in *Njeroge Nganga v. R.*, E.A.C.A. Cr. A. 115 of 1954 (unreported) where there was a conviction and sentence of death on the capital charge, but no sentence, just a conviction, on the other, the court said:

> “As matters stand, it appears probable that the omission to sentence the appellants on the second count was an illegality. . . .”

That comment was obiter, but when, in *Turon v. Republic*, [1967] E.A. 789, the accused was sentenced on both the capital and non-capital charges, the Court of Appeal, as appears on pp. 795 and 796 of the composite report, approved of what was done. Accordingly, as it is wrong to enter a conviction on a charge and to leave it at that, if we are not to support both sentences, we cannot support both convictions. It seems to us that, though the words “convicted and” do not precede the word “punished” in s. 63, the section can only be interpreted as though those words are there. It follows that one or other of the convictions must be quashed.

The prosecution initially laid the charge of shopbreaking. During the evidence of the first prosecution witness the prosecution applied to add the charge of robbery. In view of what we have said above, this should have been done by way of substitution, as State Counsel before us agreed. But we accept that if it became clear during the course of the prosecution that the evidence justifies the bringing of a more serious charge, it is their duty to apply to do so. So long as the provisions of s. 214 of the Criminal Procedure Code are complied with, and no prejudice is occasioned, a convicted person can make no justifiable complaint.

On the evidence we consider robbery with violence was the correct charge in this case and that the conviction thereon was justified. We therefore dismiss the appeal against conviction on the second count, but allow the appeal on the first count. It follows that the concurrent sentence on that count of 5 years and 15 strokes must be set aside. We consider that the sentence of imprisonment on the second count was too much and we reduce it to 14 years.

The result is that the appellant will serve a term of 14 years’ imprisonment and suffer 20 strokes corporal punishment.

*Order accordingly.*

The appellant appeared in person.

For the respondent:
*E. K. Muttu* (State Counsel)

## Mavuta v Republic
## [1973] 1 EA 89 (HCK)

**Division:** High Court of Kenya at Nairobi

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|---|---|
| **Date of judgment:** | 22 December 1972 |
| **Case Number:** | 1007/1972 (6/73) |
| **Before:** | Sir James Wicks CJ and Simpson J |
| **Sourced by:** | LawAfrica |

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*[1] Criminal law – Conspiracy to defraud – Proof that a person defrauded – Judicial notice that bank a corporation.*

*[2] Criminal Practice and Procedure – Sentence – Maximum on first offender – Not usually proper, but maximum inadequate.*

**Editor's Summary**

The appellant was convicted of conspiracy to defraud a bank on evidence which was upheld on appeal. For the appellant it was contended that it had not been proved that the bank was a person, and that the appellant as a first offender should not have been sentenced to the maximum of 3 years' imprisonment.

**Held –**

(i) it had been proved that the bank was a corporation and judicial notice could have been taken to the fact;

(ii) generally the maximum sentence should not be imposed on a first offender but having regard to the amount involved and the prevalence of banking frauds the maximum sentence is inadequate.

Appeal dismissed.

**No cases referred to in judgment.**

**Judgment**

The considered judgment of the court was read by **Simpson J:** The appellant was convicted of conspiracy to defraud contrary to s. 317 of the Penal Code and was sentenced to three years' imprisonment.

The particulars of the charge read as follows:

> "*Jacob Mbutu Mavuta*: Between 20 December, 1971 and 30 December, 1971 at Nairobi conspired together with other persons unknown to defraud Standard Bank, Kenyatta Avenue, of K. Shs. 230,103/- by false representations and other false and fraudulent devices."

According to the evidence accepted by the magistrate it was discovered by the Standard Bank, Kenyatta Avenue, that the proceeds of a sterling bill deposited by a customer amounting in local currency to Shs. 230,103/- had not been credited to that customer's account. Investigations revealed that the bill was missing as well as the ledger card and statement of account of the appellant, another customer, and a number of journal sheets. With some difficulty the account of the appellant was reconstructed. It was then found that the proceeds of the bill were credited to the appellant's account and that within two weeks the whole of the sum of Shs. 230,103/- and the sum of Shs. 8/85 which had been lying in the appellant's account before the proceeds of the bill were credited to it had been withdrawn by means of five cheques which also were missing. Investigations further revealed that the

missing documents must have been extracted after the last withdrawal on 30 December 1971. [The judge considered the evidence and continued.]

The magistrate concluded that three of the five cheques viz. cheques for Shs. 92,000/-, Shs. 75,800/- and Shs. 52,200/- were definitely presented and cashed by the appellant. We have expressed certain reservations as to his findings with regard to the cheque for Shs. 75,800/-. As far as the other two cheques are concerned however we cannot see how he could properly come to any other conclusion.

Mr. R. K. Shah for the appellant submitted that for the purposes of a conviction under s. 317 of the Penal Code the prosecution had to prove that "Standard Bank, Kenyatta Avenue" was a person and had failed to do so.

> "Person" is defined in the Interpretation and General Provisions Act (Cap. 2) as including "any company or association or body of persons corporate or unincorporate".

Mr. Dowling said he was the accountant for Standard Bank Limited, Kenyatta Avenue, a statement which was not disputed. It is difficult to see what other proof is required that the Standard Bank is a corporate body of persons. We think moreover it was a matter of which the court could properly take judicial notice.

There is no merit in this ground of appeal.

Mr. Shah also submitted that the appellant being a first offender should not have been given the maximum sentence. In principle we agree that the maximum sentence should not normally be imposed upon a first offender but in this case the maximum sentence of three years' imprisonment is, having regard to the amount involved and the prevalence of such conspiracies and frauds which are undermining the whole structure of banking in this country, manifestly inadequate.

The appeals against conviction and sentence are dismissed.

*Order accordingly.*

For the appellant:
*R. K. Shah* (instructed by *Makhecha & Co.* Nairobi)

For the respondent:
*Miss P. Rattansi* (State Counsel)

## Nzioka v Republic
[1973] 1 EA 91 (HCK)

| | |
|---|---|
| **Division:** | High Court of Kenya at Nairobi |
| **Date of judgment:** | 14 August 1972 |
| **Case Number:** | 429/1972 (7/73) |
| **Before:** | Chanan Singh and Nyarangi JJ |
| **Sourced by:** | LawAfrica |

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*[1] Criminal Practice and Procedure – Charge – Defect – Lack of particulars – Facts constituting dangerous driving – How required – Traffic Act* (*Cap. 403*), *s. 46* (*K.*).

*[2] Criminal Practice and Procedure – Visit to scene – To understand evidence, not for court to form*

*own opinions.*

**Editor's Summary**

The appellant was convicted of causing death by dangerous driving. On appeal it was contended for him that the charge was defective in not specifying the facts which constituted dangerous driving, that the prosecution had put forward one case and the magistrate found another case proved, and that the magistrate had formed his own conclusions from a visit to the scene of the accident.

**Held –**

(i) the facts constituting dangerous driving need not be stated otherwise than in terms of the law (*Seidi v. Republic* (2) considered);

(ii) the magistrate merely found on the basis of the evidence before him;

(iii) a visit to the scene is purely to enable the court to understand evidence given in court and not to form its own opinions. The error had occasioned no injustice.

Appeal dismissed.

**Cases referred to in judgment:**

(1) *Image v. R.*, [1954] E.A. 94.

(2) *Seidi v. Republic*, [1969] E.A. 280.

**Judgment**

The considered judgment of the court was read by **Chanan Singh J:** The appellant in this case was convicted of causing death by dangerous driving contrary to s. 46 of the Traffic Act (Cap. 403). Mr. D. N. Khanna who appeared for the appellant argued that the charge was defective in that it did not specify the facts which constituted dangerous driving. He quoted in his support the Tanzania case of *Seidi v. Republic*, [1969] E.A. 280. At p. 283 of the judgment Seaton, J., stated:

> "The State Attorney has conceded that the charge was defective. It did not set out clearly the particulars of the charge and the facts on which the prosecution relied as constituting reckless or dangerous driving. It joined in one count the charge of causing the death of three separate persons and the injuries of twelve others. However, the State Attorney has urged these defects of the charge do not seem to have prejudiced the appellant. He was defended by counsel and the prosecution did make clear at the trial the acts and omissions on which they relied.
>
> "With respect, I would agree with the State Attorney that the joinder of the three deaths and injuries to other persons in one court was not prejudicial to the appellant in the circumstances of this case. It is a matter for regret

> that the charge was so indifferently worded. For while the particulars in the charge on the first count only refer to the reckless and dangerous manner of the appellant's driving, it would seem from the conduct of the case by the prosecution and the evidence, that at least equally important facts relied on as constituting the liability of the appellant were the condition of the vehicle and the speed at which it was driven – and these were omitted from the charge.
>
> "However, it does appear from the record of the proceedings that the appellant was fully aware of the substance of the case he had to meet and the defects in the charge have not in fact occasioned a failure of justice. The defects are therefore curable under s. 346 of the Criminal Procedure Code."

We have set out a longish extract from the judgment because we feel it is necessary to read the whole extract in order to appreciate the point made by the judge. As we read it, the judge was dealing with the special facts of that case and was not laying down the general proposition urged on us by Mr. Khanna. The Tanzania law refers to driving a motor vehicle:

> "at a speed or in a manner or in such a condition which is dangerous."

The Particulars of Charge in that case alleged driving

> "recklessly and in a manner that was dangerous."

The charge made no reference to either the condition of the vehicle or the speed of it, although, as the judge pointed out, there were "at least equally important facts relied on as constituting the liability of the appellant".

In this, we respectfully agree with the judge, who did not say anywhere that facts constituting dangerous driving should be stated otherwise than in terms of the law in question.

The particulars of Charge in the present case allege driving

> "at a speed and in a manner which is dangerous to the public having regard to all the circumstances of the case."

The Tanzania law is slightly differently worded from our own law. Our s. 46 reads as follows:

> "46. Any person who causes death of another by driving a motor vehicle on a road recklessly or at a speed or manner which is dangerous to the public, or by leaving any vehicle on a road in such a position or manner or in such a condition as to be dangerous to the public, having regard to all the circumstances of the case, including the nature, condition and use of the road and the amount of traffic which is actually at the time or which might reasonably be expected to be on the road, shall be guilty of an offence and liable to imprisonment for a term not exceeding 5 years."

Under this section it is an offence to cause death of a person by driving a motor vehicle either "recklessly" or "at a speed which is dangerous to the public", or "in a manner which is dangerous to the public". In deciding whether an offence has been committed, the court is to have regard "to all the circumstances of the case". These circumstances are "the nature, condition and use of the road and the amount of traffic" which is on the road at the time or which might reasonably be expected to be on the road.

We think there is nothing wrong with the charge in this case. It charges against the accused two of the three things each of which can constitute an offence, namely, "a speed" and "a manner" dangerous to the public. "Recklessness"

is not alleged. The charge does, however, make it clear that regard is to be had to "all the circumstances of the case".

Having disposed of the general question of the correctness or otherwise of the charge as laid, we turn to another aspect of the same matter raised by Mr. Khanna on the basis of *Image v. R.*, [1957] E.A. 94. In that case the appellant was charged with manslaughter and the act of negligence relied on by the prosecution was that he attempted to pass a lorry in the dust thrown by the lorry. It was held that, from the direction to the jury it was not possible to ascertain whether the verdict was arrived at on the basis of a deliberate attempt to pass the lorry or on the basis of driving dangerously close to it. There was evidence that the appellant was driving as much as 80 yards behind the lorry and there was also evidence that at the relevant time there was an unexpected spurt of dust which might have resulted in the appellant's losing his sense of position on the road. The relevant point that the appellant had to meet was that he attempted to pass the lorry in the dust, and that he was driving dangerously close to the lorry. Briggs, J.A. said this at p. 95:

> "There remains the question whether the learned judge should have instructed the jury that they might convict on the basis of negligence by driving too close to the lorry. We do not wish to lay down any general rule that only those kinds of negligence expressly alleged by the prosecution may be put to a jury. The varieties of negligence and the circumstances in which they may arise are too numerous and too different to allow of such a generalization. But in this case the Crown had not merely confined itself to a single hypothesis as regards the facts constituting negligence; it had expressly rejected the alternative hypothesis which the learned judge invited the jury to consider. We think the practical effect of this was to divert the attention of the defence from this aspect of the case in such a way that the appellant was in effect induced not to attempt to defend himself against a conviction on that basis. We therefore think that it was unfair to him that the court should put the alternative hypothesis to the jury, at least without warning the defence that that aspect of the case must be considered."

Mr. Khanna argued that the prosecution case was that the lorry was travelling close to its near side. On the other hand the magistrate found that the impact had taken place in the middle of the road. In so concluding the magistrate was, Mr. Khanna contended, making out a new case which the appellant had never been required to meet.

The magistrate had before him the evidence given by both sides. He had the sketch map drawn by the police investigating officer. This showed that there was a heap of glass lying more or less in the middle of the road. The sketch map which is not to scale shows that the glass might have been just across the midline. The skid marks of the lorry which were 142 feet long commenced on the lorry's correct side although the marks seem to have made a curve. The sketch map also suggested that before the impact the lorry was probably travelling closer to its own edge of the road than to the midline of the road. We do not think therefore the magistrate was putting forward his own theory; he was merely making a finding on the basis of the evidence before him.

Mr. Khanna also drew attention to the vehicle examiner's remarks on his certificate of examination which say that the cause of the accident could not be determined. All the examiner meant in our opinion was that an examination of the vehicles did not enable him to say what the cause of the accident was.

We do not agree with Mr. Khanna that his client did not know what case he had to meet. The charge was clearly worded and the evidence was given in open court and the appellant was represented throughout by Mr. Khanna.

One other point of Mr. Khanna is we feel a good one. The magistrate makes an endorsement on the court record headed “notes on inspection on 7 March 1972”. He gives a list of the persons who were present and then makes the following notes: “P.W.3 pointed out the skid marks. There were clearly caused by the chassis, or some other under-part of the lorry which made contact with the road surface, and gouged tracks in the tarmacadam. The tracks, at the point of commencement, are nearer to the centre of the road than the plan indicates. At the commencement point of the more northerly track there is a considerable hole in the tarmacadam. This is not a pot-hole. The tarmacadam appears to have been scraped out. I formed no conclusions as to what had caused this.”

The magistrate should not have made those endorsements in those terms. The purpose of a visit to the scene is to enable the court to understand evidence that is given in court. If what the witnesses stated at the scene is to be part of the evidence, it must be repeated in court. The purpose of the visit is not to enable the court to form its own opinions.

We are satisfied that the conclusions of the magistrate would not have been different if he had not made the aforesaid remarks on the file and if he had not formed any opinions of his own as a result of inspection of the scene. No injustice was done to the appellant by this irregularity.

Another of Mr. Khanna’s points is that after inspecting the scene and making on the file the endorsement to which we have referred, the magistrate allowed the prosecution to recall Inspector Daniel Kama “to give evidence of distance of skid marks from side of road”. Mr. Khanna contends that this evidence was needed to fill a gap which was shown up by the visit to the scene. It does not appear he expressed himself sufficiently vehemently in the trial court because the magistrate noted “Khanna objects but not seriously”.

Inspector Daniel’s further evidence in chief was this: “I was present when court visited scene. I look at the sketch plan. I measured distance of point of impact as I recollected it to edge of tarmac immediately after court’s inspection 8’ 2’’.” It does appear from this that the need to recall this witness arose from the visit. Mr. Khanna’s criticism is justified. The real question we think is: Did this result in injustice?

Inspector Daniel is here speaking of the “point of impact” as though it were something beyond dispute. He should have defined what he regarded as the point of impact and then given the distance of it from the edge of the road. Even in the Legend accompanying his sketch plan of the scene, the Inspector mentions the distance “From fix point to place of impact”. This sort of description should not be permitted and the witness should have been asked to delete all reference to the “point of impact” before the document was accepted as an exhibit.

“E” is obviously the place where a heap of broken glass was lying. It should have been described as “glass” (which was undisputed) rather than as the “point of impact” (which was to be determined by the Court).

In any case, this is sufficient answer to Mr. Khanna’s point that the prosecution was saying that the lorry was travelling on its nearside but that the magistrate found that the accident took place near the middle of the road. The broken glass is not lying on the edge of the road but near the middle.

We do not think the irregularities to which attention has been drawn caused any injustice to the appellant. We think the magistrate was, on the evidence as a whole, entitled to come to the conclusion to which he did come. And if the collision took place near the middle of the road, both vehicles must have been

there. The magistrate was correct in saying that "The lorry may have been similarly at fault".

In the result, we dismiss the appeal against conviction. The sentence cannot be regarded as excessive and we dismiss the appeal against sentence also.

*Order accordingly.*

For the appellant:
*D. N. Khanna* (instructed by *Khanna & Co*. Nairobi)

For the respondent:
*A. R. Rebelo* (State Counsel)

## Mboche and another v Republic
[1973] 1 EA 95 (HCK)

| | |
|---|---|
| **Division:** | High Court of Kenya at Nairobi |
| **Date of judgment:** | 30 March 1972 |
| **Case Number:** | 14/1972 (8/73) |
| **Before:** | Simpson & Muli JJ |
| **Sourced by:** | LawAfrica |

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*[1] Evidence – Identification – Identification parade – More suspects than one in eight persons – Evidence valueless.*

*[2] Evidence – Burden of proof – Sworn evidence for defence – Whether doubt of guilt raised by evidence.*

**Editor's Summary**

The appellants were convicted of robbery with violence, having been identified at a parade consisting of seventeen persons, six of whom were suspects. The magistrate stated that he believed the evidence of the witness for the prosecution and therefore disbelieved the sworn evidence for the appellants.

**Held –**

(i) as the ordinary rule of one suspect to eight other persons was disregarded the identification parade could not be relied upon;

(ii) the magistrate should have considered whether the evidence for the appellants raised any doubt about their guilt.

Appeal allowed.

**No cases referred to in judgment.**

**Judgment**

The considered judgment of the court was read by **Simpson J:** The appellants were convicted of robbery with violence contrary to s. 296 (2) of the Penal Code and were sentenced to 16 years' imprisonment and 12 strokes.

They now appeal against both conviction and sentence.

The particulars of the offence read as follows:

> "1. KAMAU MBOCHE, 2. KANYI MWANGI: On the 17th day of August, 1971 at Panafric Hotel in the Nairobi Area jointly with others not before Court robbed Solomon Njenga of cash Shs. 3,381/- and Travellers cheques valued at 4,600/- and at or immediately before or immediately after the time of such robbery used personal violence to the said Solomon Njenga."

The magistrate was not satisfied that personal violence had been used again

Solomon Njenga. Mr. Kamau accordingly submitted that the prosecution had failed to prove an essential ingredient of the offence.

The charge however alleges robbery "jointly with others not before the Court". If this is proved, or even if it is proved that the appellants alone were acting jointly, all the essential ingredients of the offence are proved and it is unnecessary to prove in addition the use of personal violence.

Robbery is defined in s. 295 of the Penal Code which reads as follows:

> "295. Any person who steals anything, and, at or immediately before or immediately after the time of stealing it, uses or threatens to use actual violence to any person or property in order to obtain or retain the thing stolen or to prevent or overcome resistance to its being stolen or retained, is guilty of the felony termed robbery."

In a charge under s. 296 (2) it is sufficient to use the word "robbed" without further specification together with the particulars which bring the offence within the provisions of s. 296 (2). (See Form 8 in the Second Schedule to the Criminal Procedure Code). The ingredients of robbery as set out in s. 295 were fully and properly considered by the magistrate who found that actual violence to property had been used. He might also on the evidence have found that actual violence to persons had been threatened.

The appellants were in our opinion in no way embarrassed in their defence by the inclusion in the particulars of the offence of the unnecessary words "and at or immediately before or immediately after the time of such robbery used personal violence to the said Solomon Njenga."

The appellants were convicted on the evidence of one identifying witness only. There was no corroboration of his evidence. The magistrate showed himself fully aware of the danger of convicting on the uncorroborated evidence of one witness as to identification referring to it several times in the course of his judgment. He gave careful consideration both to the witnesses' opportunity to observe the intruders at the Panafric Hotel and to the holding of the subsequent identification parade.

The witness, Gabriel, was a porter on duty at the hotel lobby near the main door which was about 7 feet high and made of glass. It was locked. The time was 1.00 a.m. but there was bright fluorescent lighting both inside and outside. Gabriel was about 3 yards from the door when he saw a person (whom he subsequently identified as the second appellant) approach and knock at the door. As he went to the door to open it he saw that this man had a brick in his hand and that another person (whom he subsequently identified as the first appellant) was behind him with a tyre-lever. This man ordered him to open the door. When he failed to do so the 1st appellant smashed the glass with the tyre-lever. Gabriel then ran away. He estimated the time during which he had the robbers under observation as 10 minutes, obviously a wildly inaccurate estimate.

We doubt with respect, if the magistrate gave sufficient consideration to the difficulty of accurate observation through a glass door on which there would normally be a certain amount of reflected light, the effect of sudden fright on the witness's powers of observation and the short time which must have elapsed before the door was shattered and the witness fled. Determined robbers such as these turned out to be, would waste little time in demanding admittance.

The identification parade was held only six days later. The fact that Gabriel gave the wrong date the magistrate thought to be immaterial and we agree. Gabriel said in evidence that he was "positively sure" that the two appellants were the two persons whom he had seen outside the hotel and he remained unshaken throughout a lengthy cross-examination. The inspector who conducted

the identification parade said that the witness identified the appellants without any hesitation whatsoever.

The identification parade the magistrate found to have been held scrupulously fairly and completely in accordance with police standing orders on identification parades. The appellants voiced no complaints either at the parade or in court.

The magistrate seems however to have failed to observe that although there were 17 persons on the parade 6 of these were suspects. The parade was therefore not in accordance with standing orders which require an identification parade to consist of one suspect and at least 8 other persons.

There was one suspect to every 2 non-suspects on parade. The suspects had been arrested on information received which apparently was such as to lead the police to suspect them of having taken part in one or more of a number of robberies. If the two appellants had been the only two persons on the parade suspected of having taken part in this particular robbery, we think the parade would have been unobjectionable although the number on parade was in fact one short of that required by standing orders. It is however clear that any of these six suspects would have been charged with this offence if pointed out by one of the witnesses to this robbery. The possibility of pointing out a suspect by chance or by guess was very much higher than in a properly constituted parade of 8 persons to 1 suspect.

As the magistrate fully appreciated, if a conviction is to be based on the uncorroborated identification of the accused by one witness that identification must be unimpeachable. Had the magistrate realised that there had been a serious contravention of Force Standing Orders we very much doubt that he would have convicted either of the appellants.

Mr. Kamau further submitted that the magistrate misdirected himself on the onus of proof.

The first appellant gave evidence on oath and called five witnesses to prove he could not have been at the Panafric Hotel at the time of the crime. The second appellant gave evidence on affirmation and called one witness to the like effect. With regard to the defence of the first appellant the magistrate said:

> "However I do not believe the evidence of P.W.4 Gabriel especially in regard to his identification of the accused No. 1 as being in the Panafric Hotel that night the 17.8.71 at about 1.00 a.m.
>
> I accordingly do not believe the evidence of the defence witnesses where it endeavours to discredit Gabriel P.W.4 in his identification of the accused No. 1."

The insertion of the word "accordingly" is unfortunate. The magistrate appears to have rejected the defence because he believed Gabriel. This is a serious misdirection. Miss Barros D'Sa submitted that an examination of the judgment as a whole indicated that the magistrate properly weighed the whole of the evidence and had the burden of proof clearly in mind. We have given anxious consideration to the whole judgment in the light of her submissions but observe that in addition to the foregoing misdirection no clear reason is given for disbelieving the sworn evidence of the first appellant and that of his five witnesses.

With respect to the defence of the second appellant he said:

> "As regards the Accused No. 2 he has linked his evidence with that of D.W.6 which I disbelieve and reject. I accordingly disbelieve and reject the evidence of the accused No. 2."

Thus instead of considering whether the second appellant raised any doubt in his mind as to whether he was one of the robbers at the Panafric Hotel the magistrate appears to reject the evidence of the second appellant because he disbelieved that of his witness.

In view of the defective nature of the identification parade coupled with these misdirections we feel we have no alternative but to allow these appeals.

We accordingly allow the appeals, quash the convictions and set aside the sentences.

*Order accordingly.*

For the first appellant:
*P. N. K. Kamau*

The second appellant appeared in person.

For the respondent:
*Miss M. A. A. Barros D'Sa* (State Counsel)

## Saidere v Republic
## [1973] 1 EA 98 (CAN)

| | |
|---|---|
| **Division:** | Court of Appeal at Nairobi |
| **Date of judgment:** | 16 January 1973 |
| **Case Number:** | 66/1972 (9/73) |
| **Before:** | Sir William Duffus P, Law and Lutta JJA |
| **Sourced by:** | LawAfrica |
| **Appeal from:** | The High Court of Kenya – Sir James Wicks, C.J. and Simpson, J. |

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*[1] Criminal Practice and Procedure – Charge – Joinder of charges – Handling by receiving joined with theft – Committed in course of same transaction – Joinder proper – Criminal Procedure Code* (*Cap. 75*), *s. 136* (*K.*), *Penal Code* (*Cap. 24*), *s. 322* (*K.*).

**Editor's Summary**

The appellant was charged with theft and also handling stolen goods by receiving them, and was convicted on the handling charge.

For the appellant it was contended that the joinder of the handling charge was wrong in law on the ground that a new offence of handling stolen property had been created which did not fall within the words "receiving or retaining property" in the Criminal Procedure Code (Cap. 75), s. 136.

**Held –** (Lutta, J.A. dissenting)

(i) the offence of receiving may be joined to one of theft, and the change of name to handling by way of receiving does not alter the position;

(ii) the theft and the handling were different offences committed in the course of the same transaction and could also be joined for that reason.

Appeal dismissed.

**Case referred to in judgment:**

(1) *Ratilal v. Republic*, [1971] E.A. 575.

**Judgment**

The considered majority judgment of the court was read by **Sir William Duffus P:** This is a second appeal against the appellant's conviction for handling stolen property contrary to s. 322 (1) of the Penal Code. The particulars of the charge aver that the appellant "handled 82 bags of cement valued at Shs. 1,230/- the property of the Mowlem Construction Company i.e. received 82 bags of cement knowing or having reason to believe them to be

stolen property or unlawfully obtained". The trial magistrate amended the charge to read 50 bags instead of 82.

The appellant was tried along with four other accused who were charged in a separate count with the theft of 50 bags of cement. The appellant was convicted by the trial magistrate and sentenced to seven years' imprisonment and strokes. On appeal to the High Court the appellant's conviction and sentence of imprisonment were sustained but the order for corporal punishment set aside.

Mr. Kapila who appeared for the appellant ably argued several grounds of appeal. His main submissions were (*a*) that the first and second prosecution witnesses were accomplices and that the trial magistrate and the first appeal court erred in not so holding, (*b*) that the identification of the cement had not been established and in particular that it had not been proved that the cement found with the appellant and claimed by him had been stolen from the Mowlem Construction Company and (*c*) that the joinder of the second count of handling, on which the appellant was convicted, with the first count of stealing was wrong in law. [The judgment is reported only on the final ground.]

We will now consider the legal question as to whether there was a misjoinder. This objection was, as Mr. Kapila rightly points out never taken before the trial court nor before the first appellate court.

A joinder of offenders in one charge is dealt with in s. 136 of the Criminal Procedure Code (Cap. 75) the relevant portion of which states:

> "136. The following persons may be joined in one charge or information and may be tried together, namely . . .
>
> (*d*) persons accused of different offences committed in the course of the same transaction;
>
> (*e*) persons accused of any offence under Chapters XXVI to XXX, inclusive, of the Penal Code, and persons accused of receiving or retaining property, possession of which is alleged to have been transferred by any such offence committed by the first-named persons, or of abetment of or attempting to commit either of such last-named offences; . . ."

Sub-section (*e*) in particular applies in this case. The offence of receiving or retaining stolen property is provided for by s. 322 of the Penal Code. This section was repealed and a new section enacted in substitution therefor by the Criminal Law Amendment Act 1969. Mr. Kapila's main submission on this question is that a new offence was created by Criminal Law Amendment Act 1969 and that the provisions of sub-s. (*e*) of s. 136 would not apply. It will be necessary to consider the old enactment and the new Act in some detail and in doing so to bear in mind the provisions of s. 23 (2) of the Interpretation and General Provisions Act (Cap. 2) which states:

> "2. Where a written law repeals and re-enacts, with or without modification, any provision of a former written law, references in any other written law to the provisions so repealed shall, unless a contrary intention appears, be construed as references to the provision so re-enacted."

The preamble to the 1969 Act sets out the purpose of the new legislation and the material portion states:

> "An Act of Parliament to make amendments to certain laws so as to introduce statutory minimum sentences for certain crimes of violence and for receiving stolen property; to provide for the introduction of imprisonment with hard labour in respect of these and other grave crimes; to alter the basis of the offence of receiving stolen property; to increase the powers

of Resident Magistrates in relation to crimes of violence and receiving stolen property;"

The relevant portion of that preamble is that stating "to alter the basis of the offence of receiving stolen property".

S. 5 of the Act is the section bringing the new s. 322 into effect and this states:

"5. The Penal Code is hereby amended by the repeal of section 322 and the substitution therefor of the following" –

and then follows the new provisions.

We would here first quote the relevant portion of the former s. 322:

"322 (1) Any person who receives or retains any chattel, money, valuable security or other property whatsoever, knowing or having reason to believe the same to have been feloniously stolen, taken, extorted, obtained or disposed of, is guilty of a felony and is liable to imprisonment for seven years.

(2) Any person who receives or retains any chattel, money, valuable security or other property whatsoever, knowing or having reason to believe the same to have been unlawfully taken, obtained, converted or disposed of in a manner which constitutes a misdemeanour, is guilty of a misdemeanour and is liable to the same punishment as the offender by whom the property was unlawfully obtained, converted or disposed of.

(3) Any person who assists in concealing or disposing of or making away with any property which he knows or has reason to believe to have been stolen or obtained in any way whatsoever under circumstances which amount to felony or misdemeanour, is guilty of a misdemeanour and is liable to imprisonment for three years."

The relevant portion of the new and existing s. 322 states:

"322 (1) A person handles stolen goods if (otherwise than in the course of the stealing) knowing or having reason to believe them to be stolen goods he dishonestly receives the goods, or dishonestly undertakes, or assists in, their retention, removal, disposal or realization by or for the benefit of another person, or if he arranges to do so.

(2) A person who handles stolen goods is guilty of a felony and is liable to imprisonment with hard labour for a term of not less than seven years or more than fourteen years.

(3) For the purposes of this section –

(*a*) goods shall be deemed to be stolen goods if they have been obtained in any way whatever under circumstances which amount to felony or misdemeanour, and 'steal' means so to obtain;"

The new sub-s. (1) first creates the new name of "handling" to cover all offences relating to the receiving or retention or the removal, disposal or realization of stolen goods. The main ingredients of the offence of receiving stolen goods remain the same except that there is a new sub-s. 3 (*a*) which includes in the definition "stolen goods" those goods unlawfully obtained as set out in sub-s. (2) of the former section. The principles of the offence of receiving are the same in both sections, that is, the receipt of stolen goods knowing or having reason to believe them to be stolen. The offence however by way of retention, removal, disposal or realization has in the new section been considerably cut down in its extent, as the offence is only now committed if the particular act is done by or

for the benefit of another person. This difference was dealt with in our judgment in the case of *Ratilal v. Republic*, [1971] E.A. 575.

Sub-s. (1) of the existing s. 322 also now combines all the offences set out in sub-ss. (1), (2) and (3) of the former section. There are other differences between those sections. Thus, the name of the offence "handling" is new, as also are the provisions in sub-s. (4) of the new section on evidence necessary to prove the offences, and, of course, the provision for a minimum sentence of seven years' imprisonment.

The actual offence of receiving as we have already stated however remains basically the same. S. 136 of the Criminal Procedure Code, sub-s. (*e*) appears to exactly fit the facts of this case and authorize the addition of the second count for receiving to the first count for stealing. Thus, we have the fact that the four other accused persons were all charged with theft, an offence under Chapter XXVI of the Penal Code and the appellant is charged with receiving the property possession of which was alleged to have been transferred by the theft committed by the first four accused as set out in count one. With respect, we do not consider that the fact that the offence of receiving is now classed under the name of handling would make any difference to the provisions of the sub-s. (*e*). By retaining this sub-section the legislature clearly intended that the offence of receiving could still be added as an additional count in accordance with the provisions of that sub-section. Mr. Kapila submitted that the offence of retaining was different in both sections. This is so in that new section appears to now restrict the offence to a retaining on behalf of another person; further, it includes in the definition of "handling" the offences contained in the former sub-s. (3) of assisting in concealing or disposing etc., which were formerly misdemeanours but are now felonies, also punishable with the minimum sentence of seven years. His submission was that if the provisions of sub-s. (*e*) of s. 136 did not apply to the offence of retaining and all the other various methods of committing the offence of handling, then it could not apply to handling committed by way of receiving. We do not agree that this is necessarily so. The legislature did not amend s. 136 (*e*) but allowed it to remain and this Court has to interpret the law as it now stands and this sub-section expressly allows a joinder of the offence of receiving and this could only apply to the offence of handling by way of receiving as set out in s. 322 of the Penal Code. The law must be interpreted and applied to the circumstances of each individual case and in this case were are satisfied that s. 136 (*e*) expressly allows the joinder of a second count for handling by way of receiving. In our opinion there has been no misjoinder.

It appears to us that sub-s. (*d*) of s. 136 would also apply to the facts of this case. The offences of theft and of handling do appear to have been different offences committed in the course of the same transaction. The theft appears to have been carried out in order to hand over the bags of cement to the appellant, and all this was in the course of one continuous transaction. This aspect of the section was not however argued before us.

We would therefore dismiss the appeal and order accordingly.

For the appellant:
*A. R. Kapila* (instructed by *A. R. Kapila & Co.* Nairobi)

For the respondent:
*D. N. Kibuchi* (State Counsel)

## Nkalubo v Kibirige
[1973] 1 EA 102 (CAK)

| | |
|---|---|
| **Division:** | Court of Appeal at Kampala |
| **Date of judgment:** | 4 January 1973 |
| **Case Number:** | 38/1972 (11/73) |
| **Before:** | Sir William Duffus P, Spry VP and Law JA |
| **Sourced by:** | LawAfrica |
| **Appeal from:** | The High Court of Uganda – Musoke, J. |

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*[1] Defamation – Libel – In language other than English – Must be set out in plaint in that language with literal translation into English.*

*[2] Defamation – Privilege – Qualified – Interest of District Commissioner in disputes likely to cause a breach of the peace.*

*[3] Civil Practice and Procedure – Pleading – Unpleaded issue – Left for decision of court – Whether new cause of action can be allowed.*

**Editor's Summary**

The respondent sued the appellant for damages for libel and slander. The libel complained of was a letter written in Luganda by the appellant to the District Commissioner of the area about a dispute in the Church of Uganda in the area. The words of the letter in Luganda were not set out in the plaint.

The appellant contended that the letter was written on an occasion of qualified privilege as the District Commissioner was properly interested in any dispute which might lead to a breach of the peace.

On the allegation of slander the judge found that the appellant had accused the respondent of witchcraft and that this was actionable without proof of special damage as a criminal offence.

The alleged slander was not set out in the pleadings, although it was mentioned in the opening address of counsel for the respondent, and all the witnesses were cross-examined.

The appellant appealed against the judgment awarding damages for both libel and slander.

**Held –**

(i) Where the alleged libel is in any language other than English it must be set out in that language followed by a literal translation into English (*De Souza v. Zenith Printing Works* (2) followed);

(ii) the respondent had an interest in informing the District Commissioner of the dispute, and he had an interest in any dispute which might lead to a breach of the peace;

(iii) accordingly the letter was written on an occasion of qualified privilege;

(iv) (Spry, V.-P. dissenting) the allegation of witchcraft had by the course followed at the trial been left for the decision of the court;

(by Spry, V.-P.) the introduction of a new cause of action should not be allowed without pleading.

Appeal allowed in part.

**Cases referred to in judgment:**

(1) *Gandy v. Caspair* (1956), 23 E.A.C.A. 139.

(2) *De Souza v. Zenith Printing Works*, Kenya C.C. 149 of 1959 (unreported).

(3) *Odd Jobs v. Mubia*, [1970] E.A. 476.

**Judgment**

The following considered judgments were read. **Spry VP:** The respondent sued the appellant, claiming damages for libel and slander. The trial judge found for the respondent on both claims and awarded damages of Shs. 9,000/- of which Shs. 3,000/- was in respect of the libel and Shs. 6,000/-in respect of the slander. The appellant appeals against both findings and against the quantum of damages awarded.

Before the hearing, we gave notice to both advocates concerned, that we should require them to address us on whether the judge was entitled to make the findings he did, having regard to the pleadings.

The respondent was at one time a dean of the Church of Uganda, posted at Bamusuta in the County of Singo. In February 1967, he was requested by the Bishop to move to Kabala Ssanje, but refused for personal reasons. This led to proceedings in the consistory court, which are apparently still not finally resolved. The respondent refused to vacate the pastoral house at Bamusuta, or to hand over certain books of account. He also retained certain moneys which he had received on behalf of the Church.

The appellant is a school teacher and was in 1967 appointed as a lay leader of the Bamusuta church by the Archdeacon following a local election. On 10 October 1967, he addressed a letter to the District Commissioner, and sent a copy of it to the Bishop and a copy to the new incumbent of Bamusuta. It was this letter that was alleged to be libellous of the respondent.

On 31 December 1967, it is alleged that a meeting was held at the Bamusuta Parish Church. The respondent claimed that at this meeting the appellant made certain remarks defamatory of him; the appellant denied that he was present at the meeting. It was also alleged that he repeated these remarks on a subsequent occasion. This was the basis of the action for slander.

I shall deal separately with the questions of libel and slander, and I shall deal first with the alleged libel. This was raised in the plaint in the following paragraph:

> "5. That some time in September, or October, 1967, the defendant wrote a letter to District Commissioner of Mubende, and some of the contents in the said letter are that the plaintiff does not allow Auditors to look at his Account. And a translated copy of the letter is herewith attached as Exhibit."

This is a gravely defective pleading. In all suits for libel the actual words complained of must be set out in the plaint. It was said by Lord Coleridge, C.J., in *Harris v. Warre* (1879), 4 C.P.D. 125 at p. 128:

> "In libel and slander the very words compained of are the facts on which the action is grounded. It is not the fact of the defendant having used defamatory expressions, but the fact of his having used *those* defamatory expressions alleged, which is the fact on which the case depends."

Those words have often since been cited with approval. This is not a mere technicality, because justice can only be done if the defendant knows exactly what words are complained of, so that he can prepare his defence.

Moreover, the letter was written in Luganda: that being so, the particular words complained of should have appeared in the plaint in that language, followed by a literal translation into English (*De Souza v. Zenith Printing Works*, C.C. 1491 of 1959 of Kenya, (unreported).

In my opinion, paragraph 5 should have been struck out, unless leave was given to amend. However, no objection was taken and the case proceeded on that pleading.

Mr. Kityo, for the respondent, submitted that as a copy of the letter was annexed to the plaint, the whole of the letter was incorporated in the plaint. That is so, but I think the only reasonable reading of paragraph 5 is that the complaint was directed to the statement that the respondent would not allow auditors to look at his accounts. No issues were framed, as required by O. 13, r. 1 (5) and, as a result, it would appear that the judge lost sight of the complaint. In holding that the respondent had been defamed by the letter, he based his decision on a finding that it had been alleged that the respondent had been dishonest, collecting money ostensibly for the Church but spending it on himself. This might have been justified had other parts of the letter been complained of or possibly if an innuendo had been pleaded. As it was, the words complained of appear to have been capable of an innocent explanation. Unfortunately, this aspect of the matter received no consideration. In the circumstances, I do not think the decision can be upheld.

The main defence to the allegation of libel was that the occasion was one of qualified privilege. On this question, the judge said:

> "In my judgment on the evidence before the court the defendant has failed to establish that the occasion was privileged. The Defendant's contention that in writing to the District Commissioner he did no more than seek for effective assistance from the person who could give it to throw the plaintiff out of the pastoral house and remove him from the parish and thus enforce the order of the Bishop of West Buganda, is in my opinion insufficient to justify his action."

On this question, Mr. Kityo stressed that the Church of Uganda is not an established church, as is the Church of England. He submitted that the dispute was an internal matter for the Church to settle and that the District Commissioner had no concern with it. Mr. Mayanja-Nkangi for the appellant asked us to take judicial notice of the fact that in Uganda the Government has always concerned itself with religious affairs, which I accept as a fact, and argued that the District Commissioner was properly interested in any dispute that might reasonably be thought likely to lead to a breach of the peace. In this connection, it is not irrelevant to note that the evidence suggests that there was at least an element of party politics in the dispute.

I am inclined to think that the judge was wrong and that the occasion was one of qualified privilege. A District Commissioner has very wide duties within his district and needs to keep himself informed of all that is going on, particularly factional differences which might lead to breaches of the peace. The appellant had an interest in communicating with the District Commissioner as a lay leader who wished to see the respondent ousted and the Bishop's nominee established as the pastor of Bamusuta.

If the occasion was one of qualified privilege, the action for libel must fail, because there is no evidence to indicate that when the letter was written, the appellant was actuated by malice and the terms of the letter itself are not so intemperate as to raise any presumption of malice.

I turn now to the allegation of slander, and again I would begin by referring to the plaint. Paragraph 4 complains that:

> "On or about 31 December 1967, at Bamusuta Mission the Church of Uganda defendant falsely and maliciously spoke and published of the plaintiff and of him in the way of his business as a Minister of the Church Bamusuta the following words:
>
> (*a*) That the work of the plaintiff is scandalously badly done.
>
> (*b*) That plaintiff came to Bamusuta Mission to steal land from people.

(*c*) That the plaintiff is not fit to become their Minister.

(*d*) And that the plaintiff has been dismissed from the Church."

Paragraph 7 alleges:

"That the same words referred to in para 4 and 5, were uttered again by the defendant."

Paragraph 9 alleges:

"That what was said by the defendant against the plaintiff meant and was understood to mean thereby that the plaintiff was a dishonest, scandalous and fraudulent person and that he (plaintiff) claims money from people to which he is not entitled, and that the plaintiff is incompetent and not fit to be trusted or employed to carry out public work as a Minister of the Church."

The judge found that the appellant had been present at the meeting on 31 December 1967, and that he had said of the respondent that he had gone to Bamusuta to steal people's land and that he was a practising witchdoctor. He disregarded the allegation concerning the stealing of land "as land cannot be the subject of stealing": I am doubtful if that justified dismissing the claim but there has been no cross-appeal. He held, however, that the allegation of practising witchcraft was actionable without proof of special damage, since on conviction for it the respondent might have been sentenced to imprisonment. Again, through not framing issues, the judge had lost sight of the fact that the allegation of witchcraft was not one of the matters complained of in the plaint.

It is true that this Court has said, more often than once, that while the general rule is that "relief not founded on the pleadings will not be given" (per Sinclair, V.-P., in *Gandy v. Caspair*, (1956) 23 E.A.C.A. 139 at p. 140), a court "may allow evidence to be called, and may base its decision, on an unpleaded issue if it appears from the course followed at the trial that the unpleaded issue has in fact been left to the court for decision" (*per* Law, J.A., in Odd *Jobs v. Mubia*, [1970] E.A. 476 at p. 478). I accept that as a general statement but I do not think it can be invoked to allow the introduction of what amounts to a new cause of action. The essence of a suit for defamation is that certain specific words used by the defendant were defamatory of the plaintiff. Where one is dealing with spoken words, it may, of course, transpire in the course of the evidence that the words used were not exactly what the plaintiff believed them to have been, but if they are to the same effect, he can still recover, although an application for leave to amend would be prudent. If, however, a suit were founded on an allegation that certain words were used and then, without any amendment of the pleadings, the plaintiff were awarded damages on evidence that substantially different words were used, no defendant would know how to prepare his case and injustice rather than justice would result.

Of the words actually complained of, there has been no finding at all regarding (*a*) or (*c*) and (*b*) has been held, rightly or wrongly, to be incapable of supporting an award of damages. As regards (*d*), it has been held that the words were uttered but there has been no evidence of special damage, and the words would not have been actionable without proof of special damage. I think, therefore that this part of the suit also fails.

I would only add that I think the judge, in weighing the conflicting evidence, might have considered, as one factor to be taken into account, the improbability that the respondent, in bringing a suit for libel and slander, would have omitted any mention of the allegation of witchcraft, if that allegation had in fact been made.

I would allow the appeal.

**Law JA:** I have had the advantage of reading in draft the judgment prepared by the Vice-President. So far as the element of libel is concerned, I am in full agreement with the Vice-President's conclusions. I have no doubt that the letter by the appellant to the District Commissioner, which contained allegedly libellous matter, was written on an occasion of qualified privilege, and I agree that there is no evidence of malice such as to destroy that privilege. It is with regard to the element of slander that I find it difficult to agree with the Vice-President. The judge found as a fact that, some three months after writing the allegedly libellous letter, the appellant, at a meeting attended by some two hundred regular members of the Bamusuta Mission, said of the respondent that he had come to Bamusuta to steal peoples' land, and that he was a witchdoctor. With regard to the first allegation, the judge held it was not defamatory because land cannot be the subject of stealing. With respect, I do not agree with this reasoning. A man may not physically be able to steal land, but title deeds can be stolen, and people can be cheated in relation to their land by being fraudulently ousted from rightful possession thereof. In either case it would not be an abuse of language, on the part of a layman, to say that the offender had stolen land. However, there has been no cross-appeal on this point. As regards the allegations of witchcraft, this was a very grave charge to make against the respondent, an ordained clergyman, and the learned judge rightly took a serious view of the appellant's behaviour in this regard. But this matter was never pleaded. The word witchcraft does not appear anywhere in the plaint. As the Vice-President has pointed out, the actual defamatory words allegedly spoken must be specifically pleaded, so that a defendant knows exactly what case he has to meet. However the respondent and four witnesses called by him were allowed to testify about the allegations of witchcraft, without objection from appellant's counsel, and without comment from the court. It may be that all concerned took the view that the allegations of witchcraft were covered by the allegation pleaded in paragraph 4 (*c*) of the plaint, that the following words had been spoken by the appellant of the respondent:

> ". . . . that the plaintiff is not fit to become their Minister."

Be that as it may, the allegations of witchcraft were introduced without objection and formed the principal ground of complaint against the appellant. Whether these allegations were made or not became the main issue, or one of the main issues, at the trial, and could not have been more of an issue if it had been pleaded. The conduct of the trial shows that the parties allowed, and intended, these allegations to become an issue, although unpleaded. This is, I think, one of those cases where an unpleaded issue was, from the course followed at the trial, left to the judge for decision. It is material, too, that the important part played at the trial in the consideration of the allegations of witchcraft was not made a ground of appeal. The judge was left in no doubt that the words relating to witchcraft were in fact spoken by the appellant, and that they were highly defamatory of the respondent in his capacity as a Minister of the Church. He showed his disapproval of the appellant's conduct by awarding the substantial sum of Shs. 6,000/- as damages for slander. I would not interfere with this part of the judgment in the court below. I would alter the judgment and decree appealed from by deleting the award of Shs. 3,000/- damages for libel. I would leave untouched the award of Shs. 6,000/- for slander, and the order for costs. I would give the appellant half the costs of this appeal.

**Sir William Duffus P:** I have had the advantage of reading the judgment of the Vice-President and of Law, J.A.

The present general standard of pleadings and the conduct of trials are matters of concern to the courts as so often no regard is taken of the practice and procedure as laid down by law and especially by the rules of court. This is

primarily a matter for the trial courts and in this case with respect, the trial judge wrongly allowed the parties to proceed with the trial on issues not pleaded or not properly pleaded and without any amendments being made or sought. The main duty of this Court, as is indeed the case in all courts, is to see that justice is done between the parties, and this Court will, if possible, not allow an appeal on procedural defects or mistakes if in fact there has been no miscarriage of justice or failure of jurisdiction. It must, however, be borne in mind that rules of court are drafted to aid the efficient administration of justice and that failure of one party to observe these rules can result in a failure of justice to the other. It all depends on the particular facts and circumstances of each case.

The issue here concerns the allegation that the plaintiff was practising witchcraft. This defamatory statement was not specifically pleaded in the plaint as it should have been. Four various slanders are set out in the plaint but no mention is made of the practice of witchcraft and the nearest approach could be in the somewhat general words in paragraph 4 (*c*), although in the plaint this purports to be a quotation of the actual words used:

> "That the plaintiff is not fit to become their Minister."

It is, however clear from the record that this question of witchcraft was always an issue at the trial. Thus in his opening address, the advocate for the plaintiff, then a Mr. Lukeera, stated that the slander was based, inter alia on the charge that the defendant is a sorcerer, then this charge is fully explored in the examination of the witnesses. The defendant and four witnesses all gave evidence on this allegation that the appellant charged him of practising witchcraft and all were cross-examined. And then the appellant gave evidence in denial of the allegation. This is done without any objection being at any time raised. In his final address the defendant's advocate further addressed on the facts as to the witchcraft charge. Then in his judgment the judge accepts, without comment, that the question of witchcraft is one of the issues before him and he allows the appellant substantial damages in this respect.

In short, all the parties and the advocates and the judge accepted that the charge of witchcraft was one of the issues at the trial and the trial proceeded on this basis. I would note here that the defendant had different advocates acting for him at different times and all these advocates have accepted that the accusation of witchcraft was properly before the court, even Mr. Mayanja-Nkangi who appeared for the appellant before us did not complain about this issue in his grounds of appeal and this matter was only raised at the instance of the court. If the defendant had at any time objected, a simple amendment might have been made to the pleadings perhaps by adding a few words to paragraph 4 (*c*) of the plaint including the witchcraft charge. This however, would have been a matter entirely in the trial court's discretion.

In these circumstances, I agree with the view expressed by Law, J.A. that this accusation of witchcraft became an issue on the trial and the judge was justified on the evidence in coming to the decision that he did. This is a case on which I am satisfied that there has been no miscarriage of justice and that on the contrary it would be unjust to now allow the appellant to succeed on this issue. I also agree with Law, J.A. that the award of Shs. 6,000/- for slander was justified and should be maintained. I entirely agree with Spry, V.-P. on the libel issue, and I also agree with Law, J.A. on the issue as to the costs of this appeal.

The appeal therefore would be allowed in accordance with the order set out in Law, J.A.'s judgment. That is, that the judgment and decision of the trial court will be altered by striking out the award for Shs. 3,000/- for damages for libel, but maintaining the award for Shs. 6,000/- for slander with costs for the defendant in the court below. The appellant will have half the costs of this appeal.

*Order accordingly*

For the appellant:

*J. S. Mayanja-Nkangi* (instructed by *Mayanja-Nkangi & Shah* Kampala)

For the respondent:
*J. F. Kityo* (instructed by *Kityo & Co.*, Kampala)

# Oluoch v Robinson
## [1973] 1 EA 108 (CAN)

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| **Division:** | Court of Appeal at Nairobi |
| **Date of judgment:** | 1 February 1973 |
| **Case Number:** | 60/1972 (12/73) |
| **Before:** | Sir William Duffus P, Law and Mustafa JJA |
| **Sourced by:** | LawAfrica |
| **Appeal from:** | The High Court of Kenya – Miller, J. |

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*[1] Negligence – Collision – Cross-roads – Duty of driver to take precautions – Whether complied with.*

*[2] Damages – Personal injuries – Quantum – Brain and leg injury –* £14,000 *reduced to* £11,000.

*[3] Damages – Personal injuries – Loss of salary – Salary paid by employer and agreed to be refunded – Recoverable.*

*[4] Damages – Personal injuries – Treatment – Cost of transport to hospital for treatment – Recoverable.*

**Editor's Summary**

The appellant drove his car across a cross roads without giving way in accordance with the sign. The respondent, who was riding his motor scooter along the major road, saw the appellant's car, thought it might not stop, and slowed down. He was nevertheless unable to avoid colliding with the rear of the appellant's car. The judge found the appellant totally to blame for the accident.

The respondent suffered a leg injury resulting in some deformity and arthritis in the knee, and brain injury resulting in epilepsy, blackouts, lack of concentration and poor memory. His employer valued his service at Shs. 500/- p.m. less than before the accident. He had been paid his full salary on an undertaking to refund part when successful in the action.

In awarding general damages of £14,000 the judge stated that the respondent had totally lost the capacity to earn and that his general condition was that of a cabbage. He refused to award as special damages the amount paid to the respondent by his employer, and the expense of the employer's transporting the respondent to hospital for treatment.

The appellant appealed against the finding that he alone was negligent, and against the general damages, and the respondent appealed against the refusal to allow the special damages.

**Held –**

(i) a driver on a major road is not entitled to assume that a driver on a minor road will comply with traffic signs (*Lang v. London Transport Executive* (3) and *Zarina Shariff v. Sethna* (4)

considered);

(ii) the respondent had taken precautions, and was therefore not negligent although he could not avoid hitting the appellant's car;

(iii) the judge's findings about the respondent's condition and unemployability were contrary to the proved and uncontroverted facts;

(iv) the general damages would be reduced to £11,000;

(v) the sums paid by the employer which the respondent had agreed to refund should have been allowed as special damages (*Dennis v. London Passenger Transport Board* (1), *Wooland v. Majorhazi* (2), and *Gilliss v. Breau* (5), followed);

(vi) the cost of the employer's car for taking the respondent to hospital should have been allowed.

Appeal allowed in part. Cross appeal allowed.

**Cases referred to in judgment:**

(1) *Dennis v. London Passenger Transport Board*, [1948] 1 All E.R. 779.

(2) *Wooland v. Majorhazi*, [1958] N.Z.L.R. 433.

(3) *Lang v. London Transport Executive*, [1959] 3 All E.R. 609.

(4) *Zarina Shariff v. Sethna*, [1963] E.A. 239.

(5) *Gilliss v. Breau* (1971), 19 D.L.R. 615.

**Judgment**

The following considered judgments were read. **Law JA:** This appeal arises out of a collision which occurred on 16 August 1968, at the junction of Mbagathi Road and Ngong Road in Nairobi, between a car driven by the appellant and a motor scooter ridden by the respondent. The respondent was seriously injured, and was awarded general damages of £14,000 by the High Court of Kenya, the judge holding that the appellant's negligence was the sole cause of the accident. From that decision the appellant has appealed, the appeal being argued on his behalf by Mr. Wilkinson on two main grounds, firstly, that the judge should have found contributory negligence on the part of the respondent, and secondly, that the damages awarded were manifestly excessive. The respondent, represented by Mr. Clive Salter, has cross-appealed against the judge's refusal to allow certain items of special damage, and against his failure to include a certificate for two counsel in his award of costs in favour of the respondent.

I will deal first with the appeal. The first point for consideration is whether the respondent, on the evidence, was shown to have contributed to the accident by his own negligence. The facts are reasonably clear. The accident took place at about 6.30 p.m., in daylight, about a quarter of an hour before lighting-up time. The appellant, a doctor, was driving his car along Mbagathi Road, from Kenyatta Hospital, towards Ngong Road, with the intention of turning to his right down Ngong Road. The respondent was riding his motor scooter up Ngong Road towards its junction with Mbagathi Road. Mbagathi Road is a minor road in relation to Ngong Road, and some 15 yards from the junction, in Mbagathi Road, is a "Yield" sign, which according to the Kenya Highway Code and Traffic Regulations represents an order to a driver approaching the sign to give way to traffic on the major road ahead. On the facts as found by the trial judge, which are not challenged by Mr. Wilkinson, the appellant did not give way. He drove across Ngong Road, without stopping at the junction and ensuring that there was no on-coming traffic entitled to precedence, with the result that the respondent's motor-scooter collided with the off-side rear portion of the appellant's car. There can be no doubt that the appellant drove his car in a grossly negligent manner, and Mr. Wilkinson does not dispute this; his submission is that the respondent's own evidence, which was believed by the trial judge, establishes a degree of contributory negligence on his part which Mr. Wilkinson invited us to assess at about one-third. The respondent's evidence was to this effect – he was familiar with the junction, and he knew there was a "Yield" sign in Mbagathi Road. He noticed the appellant's car coming along Mbagathi Road when he was still some distance from the junction. At a visit to the scene in the course of the trial he indicated that he was 39 yards from the junction when he first saw the car. He slowed down to about 20 m.p.h. because, from the speed of the car, he suspected it might not stop at the junction. When it did not stop, but started crossing the main road in front of him, he applied his brakes and tried to swerve behind the car, but was unable to avoid colliding with its rear portion. Mr. Wilkinson submitted that in these circumstances, having

seen the car and having no confidence that it would stop, the respondent was not entitled to rely on his precedence. He could have and should have stopped, or slowed down sufficiently to avoid the collision. He was admittedly aware of reasonably anticipated danger. Mr. Wilkinson cited several cases in support of his proposition that a driver on a main road is not entitled to assume that a driver on a minor road will comply with traffic signs, including *Zarina Shariff v. Sethna*, [1963] E.A. 239, and *Lang v. London Transport Executive*, [1959] 3 All E.R. 609, and in particular he asked us to approve and apply the principle enunciated by Lord Dunedin in a Scottish case cited at p. 617 in *Lang's* case as follows:

> "If the possibility of the danger emerging is reasonably apparent, then to take no precautions is negligence; but if the possibility of danger emerging is only a mere possibility which would never occur to the mind of a reasonable man, then there is no negligence in not having taken extraordinary precautions."

In this case I agree that the possibility of danger emerging was reasonably apparent to the respondent; he himself says so. But can it be said he took no precautions? I do not think so. He was keeping a proper look-out, as he saw the appellant's car on the minor road before it reached the junction. Anticipating the possibility that it might disobey the "Yield" sign and not stop, he slowed down. Nevertheless he was unable to avoid contact with the rear of the car. The judge, after a careful review of the evidence, concluded that "without the shadow of a doubt" the accident was caused solely by the appellant's negligence. I see no reason to differ from this conclusion. The respondent took such precautions to avoid the reasonably apparent danger as, in my view, could be expected of a reasonably careful driver in the emergency suddenly created by the appellant's grossly negligent driving. I would dismiss the ground of appeal alleging that the respondent should be held contributorily negligent.

The second main ground of appeal is to the effect that the sum awarded by way of general damages was manifestly excessive and should be considerably reduced. The judge awarded £14,000, and in arriving at this figure had two principal factors in mind – the respondent's loss of future earning capacity, and the injuries suffered by him. Unfortunately the judgment is silent as to what sum the judge considered appropriate under each head. The respondent at the time of the trial was 62 years of age, and the judge assessed his probable useful working life at a further 6 years, a figure which has not been challenged as unreasonable in this Court. Before the accident, the respondent was earning Shs. 2,000/- a month, with prospects of increments; after the accident his employer valued his services at not more than Shs. 1,500/- a month. The respondent suffered a fracture of the upper tibia in the region of the right knee, and an injury to the left side of the skull involving four fractures, with considerable associated bruising of and damage to the brain. The leg injury has resulted in slight deformity; osteo-arthritis has developed in the knee, a condition which will become worse with the passage of time, and expert medical opinion with which the judge agreed was that the respondent has a 20 per cent permanent disability in his right knee, which condition is bound to degenerate further. As a result the respondent, formerly an active man, can no longer do the work to which he was accustomed which involved, amongst other things, inspecting unfinished buildings and climbing on roofs, and he has had to give up such recreational activities as trout fishing, and tennis. It is, however, the head injuries which are the more serious. There can be no doubt, and the judge has so found, that he suffered severe injury to the brain, with resulting epilepsy and blackouts. This condition will affect him for the rest of his life, and will deteriorate and not improve. Several medical specialists gave evidence at the trial. All agreed that there had been organic damage to the brain, with post-traumatic

epilepsy, blackouts, lack of concentration and poor memory. The respondent's intelligence fortunately does not seem to have been affected; for instance he was able to give evidence in a manner which favourably impressed the learned judge. There can however be no doubt that the respondent suffered severe and painful injuries, which will affect him permanently to some degree, and he will require to be under regular medical supervision in respect of the brain damage for the rest of his life. The judge had all these matters in mind in considering the question of damages; unfortunately he misdirected himself in two respects, in my opinion, and as a result awarded a greater sum by way of general damages than should properly have been awarded. The first of these misdirections relates the respondent's future earning power. With regard to this, the judge said that the respondent:

> ". . . . has forever lost the ability to perform the duties which earned him that salary (that is to say Shs. 2,000/- a month) or at all. . . ."

This finding ignores the unchallenged evidence of Mr. Ronsky the respondent's employer that at the time of the trial, more than 3 1/2 years after the accident, the respondent was still working for Mr. Ronsky. This is a long way from the judge's finding that the respondent had forever lost the ability of earning his former salary or any part thereof. The second misdirection relates to the respondent's general physical condition, as contained in the following extract from the judgment:

> "On a total assessment of the injuries sustained and their results as accepted by the Court, although rejecting the proposition that the plaintiff is a 'cabbage' the Court leans heavily towards Dr. Ruberti's view that the plaintiff cannot now perform the duties of an efficient messenger and that it might be better to have him put on a beach at Mombasa where he can be away from most things."

Dr. Ruberti's views were not shared by the other medical specialists who testified as to the respondent's present condition, and are not supported by the proved and uncontroverted facts of this case. A man who is not fit to be a messenger could not perform office duties such as those the respondent was performing for Mr. Ronsky. The respondent's intelligence, as I have already commented, does not seem to have been affected. It is also material that although much importance was attached in the judgment to considerations such as epilepsy and blackouts, none of these matters were referred to in the plaint, which was filed a year after the accident occurred. According to Dr. Mustafa, the epilepsy is of the milder type. It has only been manifesting itself at fairly infrequent intervals. Had the judge not taken what I consider to be an unduly pessimistic view of the respondent's prospects and condition, I think he would have awarded a considerably smaller sum by way of general damages. Doing the best I can in the circumstances, I would deduct £3,000 from the general damages awarded and reduce them from £14,000 to £11,000. I would allow the appeal to this limited extent, and order that the appellant receive one-half of the costs of the appeal, and certify for two counsel.

I now turn to the cross-appeal. The third ground was not pressed. It related to the judge's failure to award to the respondent the costs of two counsel. Such an order was asked for, but this was not dealt with in the judgment. Whether the judge intended to refuse a certificate for two counsel, or whether he forgot to deal with the matter through inadvertence, it is impossible to say. Costs are essentially a matter within the discretion of the trial judge, and s. 99 of the Civil Procedure Act may provide a means of ascertaining his intentions in the matter. The grounds of cross-appeal which were pressed by Mr. Salter for the respondent were directed against the judge's refusal to allow three claimed items

of special damage, and in not allowing loss of wages as special damages from 11 August 1969 till judgment at the rate of "at least Shs. 1,000/- a month". In fact these special damages had been claimed in the plaint at the rate of Shs. 1,500/- a month.

In order to understand this aspect of the case, it is necessary to set out in some detail the relationship of employer and employee existing between the respondent and R. A. Ronsky Ltd. both before and after the accident.

The respondent was originally engaged on terms set out in a letter dated 5 February 1968 offering him, inter alia, a three year contract at a commencing salary of Shs. 2,000/- a month, with salary increases to be considered at yearly intervals, subject to a 3 months' probationary period. The respondent accepted these terms and took up the employment, and satisfactorily completed the probationary period. No formal contract was drawn up, but it is common ground that as from 5 May 1968 he was entitled in equity to such a contract, and neither leading counsel appearing in this appeal could support the judge's holding that, at the time of the accident in August 1968, "there was no legally recognizable contract of service set up between the plaintiff and his employers . . .", this is a clear misdirection. In pursuance of their contractual liability, the employers continued to pay the respondent his full salary while he was incapacitated from working by reason of the injuries sustained in the accident, that is to say from 17 August 1968 to 10 January 1969, a sum of Shs. 9,667/-, the first item sought to be recovered as special damages. As to this, Mr. Salter's argument is that the contract of service between the parties was frustrated by reason of the respondent's inability to carry out his duties, so that the payments during this period should be regarded as gratuitous. I cannot accept this submission. It may be that the employers could have treated the contract as having been ended by frustration, but they did not do so; they continued to pay the respondent unconditionally, and when he was able to return to work they continued to employ him, but on altered terms, as to payment, as evidenced by the employers' letters of 11 January 1969, and 15 August 1969, the terms whereof were accepted by the respondent. In the first letter, the employers stated that the respondent's services, by reason of his reduced efficiency, were worth no more than Shs. 500/- a month, but that they would continue to pay him the balance of Shs. 1,500/- on an ex-gratia basis, such balance to be returned in full in the event of being recovered in subsequent litigation as special damages. By the second letter the value of the respondent's services was raised to Shs. 1,500/- a month, and the value of the refundable ex-gratia element reduced to Shs. 500/- a month. Mr. Salter submitted that these refundable ex-gratia payments should have been allowed as special damages. He relied on *Dennis v. London Passenger Transport Board*, [1948] 1 All E.R. 779 in which Denning, J. (as he then was) said:

> "The cardinal point to remember is that it is the defendants who are responsible for what occurred. In my opinion, a wrong-doer is not to be allowed to reduce damages by the fact that other persons have made up to the plaintiff his wages."

This principle has been followed, and extended to cases in which the wages have been made up by the employer in circumstances in which the employee incurred a liability to repay the made-up or gratuitous payments, and Mr. Salter referred to two Commonwealth cases in this connection. The first is the New Zealand case of *Wooland v. Majorhazi*, [1958] N.Z.L.R. 433, in which it was held that where an injured employee accepted wages paid during incapacity, and promised to repay them to the employer in the event of recovering them from a third party, this liability was a head of special damage properly incurred as a direct consequence of the wrong-doer's fault. The second case comes from Canada, and is *Gilliss v. Breau* (1971), 19 D.L.R. 615. in which it was held that

a wrong-doer is not entitled to the benefit of a gratuitous payment made to his victim by the latter's employer in lieu of wages. I did not understand Mr. Wilkinson to dispute the principle flowing from those cases; what he objected to was the claim for special damages in this respect being based on a partial loss of wages of Shs. 1,500/- a month for the whole period from 11 January 1969 until judgment. Mr. Salter sought to justify this claim for the period 15 August 1969, onwards, on the basis that if the respondent had not been injured, he would have received increments of salary as stipulated in his original letter of appointment. I cannot personally accept that submission. The respondent had no right to automatic increments, but only to the grant of increments being considered. It cannot be said with certainty that increments would have been granted, or if granted, at what rate. In my view, the respondent is not entitled to recover loss of wages for the period 17 August 1968 to 10 January 1969, when he was paid his full contractual wages without giving any undertaking as to repayment. I am however satisfied, on the principles enunciated in the last three cited cases as I understand them, that he is entitled to recover, as special damages, the ex-gratia payments made to him by his employers which he has undertaken to refund. I would award him in this respect special damages at the rate of Shs. 1,500/- a month from 11 January 1969 to 15 August 1969, say Shs. 10,500/- and at the rate of Shs. 500/- a month from 15 August 1969, to 16 May 1972, say Shs. 16,500/-, or Shs. 27,000/- in all for loss of wages. My arithmetic is subject to correction, and the parties should have liberty to apply in this respect. This leaves one item of special damage for consideration. The respondent had to attend hospital on many occasions for treatment in connection with his injuries. According to the plaint, he attended 79 times, involving 44 miles travel each time. His employers provided a car, and have debited him with the cost at Shs. 1/50 a mile, making a total of Shs. 5,214/-. The accuracy or reasonableness of these figures was not challenged in cross-examination of either the respondent or his employers' representative, and in my view the provision of this transport represents another item of gratuitous assistance from the employers which the respondent is under an obligation to repay and which he is entitled to recover from the appellant as special damages.

It follows then that in my view the cross-appeal succeeds substantially and that the respondent is entitled to judgment by way of special damages in the additional sum of Shs. 32,214/-, with interest as prayed in the plaint. I would allow the cross-appeal, with costs, and certify for two counsel.

**Sir William Duffus P:** I have read and entirely agree with the judgment of Law, J.A. and as Mustafa, J.A. also agrees, there will be an order in accordance with his judgment in both the appeal and cross-appeal.

**Mustafa JA:** For the reasons as stated by Law, J.A. I agree with his conclusions and concur in the order proposed by him.

*Appeal and cross-appeal allowed.*

For the appellant:
*P. J. Wilkinson, Q.C.* and *T. G. Bakrania* (instructed by *Veljee Devshi & Bakrania*, Nairobi)

For the respondent:
*C. Salter, Q.C., S. C. Gautama* and *M. G. Sharma*

## Moya Drift Farm Ltd v Theuri
[1973] 1 EA 114 (CAN)

**Division:** Court of Appeal at Nairobi

**Date of judgment:** 15 January 1973

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|---|---|
| **Case Number:** | 44/1972 (13/73) |
| **Before:** | Sir William Duffus P, Spry VP and Lutta JA |
| **Sourced by:** | LawAfrica |
| **Appeal From:** | The High Court of Kenya – Miller, J. |

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*[1] Land – Owner – Absolute and indefeasible – Can take proceedings in trespass – Possession irrelevant – Registration of Titles Act* (*Cap. 281*), *s. 23* (*K.*).

*[2] Injunction – Perpetual – Discretionary – Principles of granting in trespass cases.*

**Editor's Summary**

The appellant sued the respondent claiming that it was the registered owner of certain land on which the respondent was trespassing and who had refused the appellant entry. It claimed eviction and a perpetual injunction restraining trespass by the respondent. The judge found that the appellant was the registered owner of the land but that as it had no possession it could not claim in trespass.

The appellant appealed, contending that possession was unnecessary in view of the Registration of Titles Act.

**Held** –

(i) the appellant was the absolute and indefeasible owner of the land and was entitled to take proceedings in trespass;

(ii) in the context of a dispute between neighbouring landowners a perpetual injunction would be granted.

Appeal allowed.

**Case referred to in judgment:**

(1) *Wuta-Ofei v. Danquah,* [1961] 3 All E.R. 596.

**Judgment**

The following considered judgments were read. **Spry VP:** The appellant company sued the respondent in the High Court, claiming that the appellant company was the registered proprietor of certain land and that the respondent had trespassed on it, cultivating it and grazing cattle on it, and refused entry to the appellant company and its servants. The appellant company sought a declaration that it was entitled to the land, an order for eviction of the respondent, a perpetual injunction restraining the respondent from trespassing on the land, mesne profits, damages and costs. The respondent in his defence denied any wrongful entry on the land. He claimed that he had occupied certain land as the manager for his brother, who held the land under a Temporary Occupation Licence. In the alternative, he claimed that he and his brother had at all material times been in lawful occupation of 91 acres of the land under the Licence. He also asserted that the registration of the appellant company as owner of the land could not prejudice any rights acquired under the Licence.

No issues were framed as required by O. 14, r. 1, of the Civil Procedure (Revised) Rules 1948.

The judge made certain findings of fact, which largely dispose of what appear to be the issues arising on the pleadings. He certainly found as a fact that the appellant company was entitled to the

land in dispute. He appears to have found,

although this is not quite so clear, that the Licence granted to the respondent's brother related to other land adjoining that in dispute. After saying that he believed the respondent had entered on to land not covered by his Licence, the judge went on:

> "In this respect the way appears clear to find trespass but counsel for the defendant urged and in my view rightly so, that for trespass to lie there must be an invasion on possession and the plaintiff could not contend being in possession at the time of the defendant's entry upon the area in question . . .
>
> Pressing his client's claim with respect to trespass counsel for the plaintiff pointed out that the defendant did not plead the lack of possession in the plaintiff; that the defendant should have expressly pleaded that the Company had no possession in 1966. This observation on the defendant's pleading is true but it has turned out that in fact as well as in law the plaintiff had neither actual possession nor a legal right to same in 1966. . . ."

These remarks appear to have arisen from a submission by the advocate for the respondent in the High Court before evidence was called, that no cause of action was shown in the plaint as amended, because the appellant company had to show that at the time of the "alleged act" it was in lawful occupation, which was not the case, as according to the plaint the alleged wrong was in August 1966, while the appellant company obtained title to the land in October 1967. This submission was allowed to stand over, and no ruling was given on it prior to the judgment.

With respect, I think that this submission and the judge's eventual decision on it, were misconceived. The plaint recites the respondent's entry on the land in 1966, but it is quite clear, reading the plaint as a whole, that it is complaining of a continuing trespass and relates to the period from 25 October 1967, when the appellant company informed the respondent that it was the registered owner of the land and ordered him to vacate it, to the filing of the suit. As regards the present proceedings, the date of the respondent's entry on the land is immaterial, since it was before the appellant company had any interest in it, but if the appellant company is correct in its submission that the respondent entered as a trespasser, he continued to be such, since it is not suggested that he acquired any lawful title or right to the land. Obviously, the appellant company could not recover in respect of a trespass committed before it had any right of possession and I do not think that on a fair reading of the plaint, any such claim can be inferred.

Shortly after the passage I quoted earlier, the judge said:

> "As indicated earlier I incline to the view of counsel for the defendant that a mere right to possession without actual possession cannot in this case support a claim for trespass."

This is the passage to which Mr. Hewitt, who appeared for the appellant company, took most strong exception. His main argument was based on s. 23 of the Registration of Titles Act (Cap. 281). This section begins as follows:

> "(1) The certificate of title issued by the registrar to any purchaser of land upon a transfer or transmission by the proprietor thereof shall be taken by all courts as conclusive evidence that the person named therein as proprietor of the land is the absolute and indefeasible owner thereof. . . ."

Mr. Hewitt conceded that it was formerly the law in England that a person had to have taken possession of land before he could take proceedings in trespass, but he submitted that this cannot be the law of Kenya, as it would make nonsense of s. 23. I find this argument irresistible and I do not think it

necessary to examine the law of England. I cannot see how a person could possibly be described as "the absolute and indefeasible owner" of land if he could not cause a trespasser on it to be evicted. The Act gives a registered proprietor his title on registration and, unless there is any other person lawfully in possession, such as a tenant, I think that title carries with it legal possession: there is nothing in the Act to say or even suggest that his title is imperfect until he has taken physical possession.

That is, I think, sufficient to dispose of the main issue in this appeal. The judge, having decided that the appellant company was the registered proprietor of the land and having also decided that the respondent had entered on it without right, allowed the first of the appellant company's prayers, that is to say, he awarded a declaration that the appellant company was entitled to the land and he gave the appellant company the costs of the suit, but he refused all the other reliefs sought. The appellant company now seeks those other reliefs, except that it has not pursued the claim to damages.

In my opinion, the appellant company is clearly entitled to an order for eviction. It has proved its title to the land in dispute and the defendant has failed to show that he has any right to be there.

Mr. Hewitt concedes that he cannot claim a perpetual injunction as of right, but he submits that this is a case of a long-standing dispute between neighbouring landowners where such an injunction would serve a useful purpose by making it quite clear to the respondent that after eviction he may not attempt again to take possession of the land. I think this is reasonable and I can see no objection to the grant of such an injunction.

Mr. Hewitt asked for mesne profits from January 1968 to December 1972, a period of 60 months, at Shs. 347/33 per month; say Shs. 20,800/-. These figures are based on evidence, which was uncontroverted, of a director of the appellant company. There is, therefore no need for an inquiry as to the quantum of the mesne profits under O. 20, r. 12. The opening date is not unreasonable, as the allegation in the plaint that the respondent was called on to vacate the land in October 1967, was not denied. I do not think, however, that we can order mesne profits until the end of December, because of the possibility that possession may have been yielded up before that time. We have power to order mesne profits until the delivery of possession or three years from the date of the decree, whichever is earlier, but Mr. Hewitt asked for an ascertained period and in those circumstances I think the mesne profits should be assessed up to the end of November, a period of 59 months, which I calculate to the nearest shilling at Shs. 20,455/-.

To conclude, I would allow the appeal. I would set aside the judgment and decree of the High Court, so far as they refuse the prayers shown as (*b*), (*c*) and (*d*) in the plaint, and substitute an order

(i) for the eviction from the land of the respondent and his agents, servants and livestock and for delivery of the land to the appellant company;

(ii) for a perpetual injunction restraining the respondent or any person on his behalf from re-entering on the land in dispute or trespassing thereon;

(iii) awarding the appellant company mesne profits in the sum of Shs. 20,455/-, representing the period from January 1968 to November 1972, inclusive.

I would award the appellant company the costs of the appeal.

**Sir William Duffus P:** I have read and I agree with the judgment of the Vice-President.

The evidence clearly established and the trial judge found that the appellant

was the absolute and indefeasible owner of the land under a certificate of title issued under the Registration of Titles Act (Cap. 281). The evidence also established that the respondent was in possession of this land and refuses to give up possession and further that he is a trespasser without any right, title or interest in the land.

In these circumstances the appellant was undoubtedly entitled to an order for possession of the land, and I also agree that this is a proper case to order a perpetual injunction to issue against the respondent. A suit to recover possession is the proper and legal method to recover land by an action in court from a person wrongly in possession and refusing to leave.

The law relating to damages for trespass to land has always been based on possession of the land both in England and in East Africa. The following passage from the judgment of the Privy Council delivered by Lord Guest in the case from Ghana of *Wuta-Ofei v. Danquah*, [1961] 3 All E.R. 596 at p. 600 sets out in general terms the possession necessary to maintain the action:

> "Their Lordships do not consider that, in order to establish possession, it is necessary for a claimant to take some active step in relation to the land such as enclosing the land or cultivating it. The type of conduct which indicates possession must vary with the type of land. In the case of vacant and unenclosed land which is not being cultivated, there is little which can be done on the land to indicate possession. Moreover, the possession which the respondent seeks to maintain is against the appellant who never had any title to the land. In these circumstances, the slightest amount of possession would be sufficient."

The learned trial judge did not consider that the appellant had established sufficient possession to support the action for trespass but with respect I cannot agree. The evidence established that the appellant company through its first witness Mr. Elliot demanded possession of the farm from the respondent. This was admitted by the respondent in his evidence. The evidence also showed that several other demands for possession had been made and in my opinion this evidence in view of the appellant's absolute and indefeasible title to the land and also the fact that the respondent was a trespasser with no right or title to be on the land, saw sufficient to establish the appellant's legal possession.

In any event I agree with the Vice-President that the fact that the appellant was the registered proprietor as owner in fee simple under the Registration of Titles Act, and as such vested with the absolute and indefeasible ownership of the land, was sufficient to vest the legal possession of the land in the appellant, and that this possession would be sufficient to support the action of trespass against a trespasser wrongly on the land. I would therefore agree with the Vice-President that this appeal be allowed in the terms of the order set out in his judgment and as Lutta, J.A. also agrees it is so ordered.

**Lutta JA:** I agree with the judgment prepared by the Vice-President, and with the order proposed by him.

*Appeal allowed.*

For the appellant:
*P. J. S. Hewett* (instructed by *Daly & Figgis*, Nairobi)

For the respondent:
*M. Z. A. Malik* (instructed by *A. H. Malik & Co*., Nairobi)

## Ibrahim v Sheikh Bros Investment Ltd
[1973] 1 EA 118 (CAN)

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|---|---|
| **Division:** | Court of Appeal at Nairobi |
| **Date of judgment:** | 15 January 1973 |
| **Case Number:** | 43/1972 (14/73) |
| **Before:** | Sir William Duffus P, Law and Lutta JJA |
| **Sourced by:** | LawAfrica |
| **Appeal From:** | The High Court of Kenya – Chanan Singh, J. |

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*[1] Injunction – Interim injunction – Damages an adequate remedy – Uncontroverted breach of contract not ground for injunction.*

*[2] Injunction – Interim injunction – Discharge of – Damages to be assessed on hearing of suit.*

*[3] Civil Practice and Procedure – Stay of suit – Pending payment of costs – Stay not ordered.*

*[4] Civil Practice and Procedure – Affidavit – Sworn before suit filed – Does not affect jurisdiction and may be resworn.*

**Editor's Summary**

The respondent had been appointed by the appellant and his co-owner as their agents to collect rents payable by their tenants. The respondent alleged in the High Court that the appellant had broken the agreement and threatened to collect rents to the exclusion of the respondent. It applied for and obtained an interim injunction restraining the appellant from collecting the rents. The affidavit on which the application was based was sworn before the suit was filed.

The judge found that there was an uncontradicted allegation of breach of contract but that this could be compensated for by damages.

On appeal the appellant also asked that the suit be stayed pending the payment of all costs and that there be an enquiry as to damages.

**Held** –

(i) the premature swearing of the affidavit did not go to jurisdiction;

(ii) where damages would be an adequate remedy, the fact that the breach of contract is uncontroverted is not normally ground for the grant of an injunction;

(iii) there was no express covenant not to collect rent and this had not been implied by the judge;

(iv) there would be no stay of the suit pending the payment of costs;

(v) the question of damages should be dealt with at the trial of the suit.

Appeal allowed.

**Case referred to in judgment:**

(1) *Devani v. Bhadresa*, [1972] E.A. 22.

**Judgment**

The following considered judgments were read. **Law JA:** The appellant was the defendant in the civil

suit which has given rise to this appeal. The respondent, a limited liability company, was the plaintiff. I shall refer to the respondent hereinafter as “the plaintiff” and to the appellant as “the defendant”. In its plaint, the plaintiff alleged that the defendant and another company were the landlords of certain property, hereinafter referred to as the suit premises, which was let to a number of tenants. The plaintiff went on to

allege that it had been appointed by the landlords to collect the rents payable by the said tenants, both verbally and subsequently by a letter dated 28 February 1972, on the following conditions which are set out in paragraph 4 of the plaint in these words:

> "(*a*) That the appointment shall be irrevocable for a period of three and a half years and thereafter it shall be terminable by either side giving to the other one calendar month's written notice.
>
> (*b*) That the plaintiff shall charge the landlords 10 per cent. commission of the rent actually collected by it.
>
> (*c*) That after deduction of its commission, the plaintiff shall pay the net rent equally to each landlord.
>
> (*d*) That the appointment shall be subject to the plaintiff paying the rent regularly.
>
> (*e*) That in case of default of payment on the due date, the plaintiff's appointment may be cancelled by either landlord notifying the plaintiff to that effect."

By paragraph 5 of the plaint:

> "It was agreed and it is at any rate implied that the plaintiff shall have the exclusive right to collect the said rent and that neither any landlord nor their servants or agents shall collect the rent or any part thereof nor in any way interfere with the collection of the rent by the plaintiff."

The plaint goes on to allege that in breach of the agreement the defendant collected part of the rent from the tenants of the suit premises in May and June 1972, and that notwithstanding the plaintiff's objections the defendant "threatens and intends to collect rent from the tenants to the exclusion of the plaintiff", and that the plaintiff in consequence has suffered and is still suffering damage. The plaintiff prayed for:

> (*a*) a declaration that the agreement is binding on the defendant;
>
> (*b*) an injunction to restrain the defendant from collecting rent or (I quote) "depriving the plaintiff its servants or agents from collecting the said rent and from interfering with the plaintiff's said rights under the said agreement or otherwise of collecting the rent";
>
> (*c*) an order that the defendant do forthwith give an account of the rent so far received by him;
>
> (*d*) damages;

The plaint is dated 15 June 1972. On the same day the plaintiff issued a chamber summons under O. 39, r. 2 applying to the Court for a temporary injunction restraining the defendant from committing any breach "of the letter of 28 February 1972" and particularly that the defendant be restrained from:

> "(*a*) collecting rent from any tenant or occupier of the said property,
>
> (*b*) or in any way preventing or instigating or instructing any tenant or occupier of the said premises from paying his monthly rent to the plaintiff or in any manner whatsoever,
>
> (*c*) interfering with the plaintiff's right to collect rent of the said property under the said letter of the 28th February, 1972."

The summons was supported by an affidavit sworn by a director of the plaintiff and dated 10 June 1972. This date is important, in view of the doubts I expressed in my judgment in *Devani v. Bhadresa*, [1972] E.A. 22 as to the admissibility

of an affidavit which has been sworn before the institution of the proceedings to which it relates. No objection was taken to its reception in the court below, nor was its reception made a ground of appeal. However, as Mr. D. N. Khanna for the appellant submitted that the point went to jurisdiction, we allowed him to argue it de bene esse. I do not personally think that a premature affidavit does go to jurisdiction, as a court can always allow it to be re-sworn and re-dated on objection being taken in time, as should have happened. I have no reason to think that leave to reswear would have been refused in the circumstances of this case, as the affidavit being only 5 days premature was reasonably contemporaneous. No counter-affidavit was filed. A copy of the letter of 28 February was annexed to the affidavit. The contents of this letter have accurately been summarized in paragraph 4 of the plaint to which I have already made reference.

After consideration of the material before him, and after hearing counsel for both parties, the judge granted the temporary injunction prayed for. In the course of his ruling, the judge commented that it was quite true that the plaintiff's loss was only a sum of money and was not irreparable and could always be compensated for by damages. He nevertheless granted a temporary injunction because in his view, "there are here uncontradicted allegations of breach of contract and instigation of tenants not to pay rent to the applicant".

This reasoning forms the basis of Mr. Khanna's main attack against the judge's decision. Having found a prima facie case of breach of contract, not causing irreparable loss and capable of compensation by damages, it was in Mr. Khanna's submission the judge's duty to refuse to grant a temporary injunction. The object of a temporary injunction is to preserve the status quo and prevent a plaintiff being deprived for ever of his rights. This, Mr. Khanna argued, is not the position here. The plaintiff, on the judge's own findings, is not in danger of being deprived of his rights, as a monetary award will always compensate him for any loss or injury he may be able to prove at the trial of his suit. As regards the reference by the judge to uncontradicted allegations of instigation of tenants not to pay rent to the plaintiff, Mr. Khanna pointed out that no such allegations are made in the plaint, and he submitted that it is irregular to allow an application on a chamber summons to range over a wider field than that covered by the plaint.

Mr. Gautama, for the respondent plaintiff, submitted that on any view of the matter the judge had exercised a discretion, with which exercise this Court will not normally interfere. The principles applicable are well known, an exercise of discretion will not be upset unless shown to be manifestly erroneous or based on the application of wrong principles. So far as the grant of a temporary injunction for breach of contract is concerned, the first reason given by the judge "that there are here uncontradicted allegations of breach of contract" – is not normally a reason for granting a temporary injunction, especially in view of the judge's finding that the plaintiff's loss was not irreparable and could always be compensated for by damages. Mr. Gautama's answer to this was to point to the second reason given by the judge for granting the injunction, the uncontradicted allegations of "instigation of tenants not to pay rent" to the plaintiff. Mr. Gautama submitted that what the judge had in effect found was that the defendant had been prime facie shown to be guilty of the breach of express negative covenants not to collect rents personally and not to instigate tenants not to pay rent to the plaintiff. Two objections are immediately apparent to this submission; firstly, the judge said nothing about restraining the breach of any express negative covenant, and secondly no such covenant is to be found in the agreement relied on by the plaintiff. There is no promise by the defendant, contained in the agreement, to refrain from collecting rent personally during its currency. True, such a promise is capable of being implied from the agreement, but the judge has not implied it, and I am unable to agree with Mr. Gautama that the circumstances

of this case are such as to demand the implication, or reading into the agreement, of a negative covenant not to act inconsistently with the agreement in the manner complained of. All that the plaintiff has established, in my view, is a prima facie case of breach of contract against the defendant. He has not established any prospect of irreparable harm being suffered by him if the status quo is not preserved. Any loss he may have suffered, or may suffer in future, is susceptible of pecuniary compensation. He has not been able to point to any express negative covenant of which the defendant is in breach, and even if such a covenant can be implied in the circumstances of this case, it is not in my view of such a nature as to demand preservation of the status quo by the issue of a temporary injunction. With respect, I think the judge was wrong in granting an injunction in this case.

For these reasons I would allow this appeal with costs, set aside the decision and order appealed from, and dismiss the application; and I would give the appellant the costs directly attributable to the application. I would not grant the appellant's prayer that the suit be stayed until all costs to date have been paid, a prayer for which I can see no justification. Nor would I grant the prayer for an inquiry as to damages: this is a matter that can best be dealt with when the general question of damages is decided at the trial of the suit. Nor do I think it necessary, notwithstanding Mr. Khanna's pressing, to deal with ground 9 of appeal, which complained that the Deputy Registrar was wrong, under O. 20, r. 7 (2), in refusing to submit the draft order to the judge, before signing and sealing it, at the request of one of the parties. That rule has since been repealed and replaced, and a discussion of the rights and wrongs of the Deputy Registrar's action would be a purely hypothetical exercise, and one which is not necessary, in my view, for the decision of this appeal.

**Sir William Duffus P:** I have read the judgment of Law, J.A. and I agree that for the reasons he has stated this appeal be allowed and the order for a temporary injunction set aside.

This action relates to a contract set out in a letter signed by the parties dated 28 February 1972. The respondent, a limited liability company, claimed that it was appointed the sole rent collector of the premises in question and it sought for and obtained a temporary injunction to prevent the appellant, Mr. Ibrahim Habib Makii, joint landlord of the property, from collecting any rent from the tenants or occupiers, or in any way preventing, instigating or instructing any of the tenants from paying rent to the respondent, or from interfering with the respondent's right to collect rent. The judge was satisfied that any loss that would ensue was not irreparable and could always be compensated by damages but no doubt having in mind the provisions of O. 39, r. 2, of Civil Procedure (Revised Rules) 1948 he granted the injunction to prevent what he termed to be uncontradicted allegations of breach of contract.

With respect though, the terms of the contract as set out in the letter of 28 February 1972 are not altogether clear. Thus it has not been clearly set out whether the respondent was the sole agent for the purpose of collecting rent nor that the landlords had deprived themselves of their own right to collect the rents and control the tenancies. In any event, the tenants were not parties to the contract appointing the respondent as rent collector and it does appear that the tenants would have a right to tender their rent to the landlords, or to either of them. If this occurred, then the question would arise as to whether the respondent as landlord would be legally justified in refusing to accept this rent and this is just what the temporary injunction would force him to do.

In my view this is not a fit or proper case for the grant of a temporary injunction and I agree with Law, J.A. that this appeal be allowed with costs in accordance

with the order set out in his judgment and as Lutta, J.A. also agrees it is so ordered.

**Lutta JA:** I agree.

*Appeal allowed.*

For the appellant:
*D. N. Khanna* (instructed by *Khanna & Co.*, Nairobi)

For the respondent:
*S. C. Gautama*

## Nandra v Chane & Co
[1973] 1 EA 122 (CAK)

| | |
|---|---|
| **Division:** | Court of Appeal at Kampala |
| **Date of judgment:** | 4 January 1973 |
| **Case Number:** | 47/1972 (15/73) |
| **Before:** | Sir William Duffus P, Spry VP and Law JA |
| **Sourced by:** | LawAfrica |
| **Appeal from:** | The High Court of Uganda – Fuad, J. |

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*[1] Limitation of Actions – Judgment – Execution – Over 12 years – Whether fresh application.*

**Editor's Summary**

The appellant applied before the expiry of 12 years from judgment for execution by the attachment and sale of land and movables including a motor car. The house was withdrawn and the goods excluding the car sold. After 12 years from judgment a further application was made for the attachment of the respondent's salary and of the car.

The High Court held that the application was a fresh application and therefore barred by effluxion of time. The appellant appealed.

**Held –**

(i) an application can be a continuation of a previous application if the previous application is pending and if the subsequent application is similar in scope and ancillary to the previous application (*Bazirio Kivumbi v. Ibrahim Ismail* (1) followed);

(ii) the application for the attachment of the car was not a fresh application and was not barred.

Appeal allowed in part.

**Case referred to in judgment:**

(1) *Bazirio Kivumbi v. Ibrahim Ismail*, Uganda C.C. 48 of 1957 (unreported).

**Judgment**

The following considered judgments were read. **Law JA:** This is an appeal by a decree holder against an order of the High Court of Uganda striking out two applications for execution as being barred by s. 36 (1) of the Civil Procedure Act. These applications were presented more than 12 years from the date of the decree, and by s. 36 (1) aforesaid, no order for the execution of a decree shall be made upon any fresh application presented after the expiration of 12 years from the date of the decree sought to be executed. The judge held that the two applications, the subject of this appeal, were fresh applications within the meaning of s. 36, and that they were accordingly null and void, and that attachments made under them were improperly made.

The history of the matter is that the appellant obtained judgment against the respondent, the resulting decree being dated 23 July 1959. For reasons immaterial to this appeal, no steps were taken to execute the decree until April 1971. The first step was an unsuccessful attempt to obtain a warrant of execution without service of the application. Then another application for execution of the decree was made, dated 28 April 1971, and duly served, under O. 19, r. 8 of the Civil Procedure Rules. The mode in which the assistance of the court was required in realising the decretal amount of Shs. 20,103/30 was stated in the following terms:

> "By attachment and sale of judgment debtor's house built on Mailo land and movable properties such as Mercedes Benz (Diesel) USB 790, furniture, fixtures, refrigerator, sewing machine and other attachable properties lying at his residence and store behind Sulemani Serwat and Bros., Ruhaga Road, Kampala, in execution of decree herein."

On the strength of this application a warrant of attachment and sale was issued by the court, directing the attachment and sale of the house, car and property described in the application. In due course a sale was held. The house was withdrawn from the sale "by consent of parties" to quote from the Court Broker's endorsement on the warrant; the car for some unknown reason was not sold; and the remaining items fetched a net sum of Shs. 544/- which was remitted to the Court.

On 16 September 1971, the judgment creditor applied for further execution of the decree by attachment of one moiety of the judgment debtor's salary. A warrant of attachment was issued and we were informed that Shs. 4,087/85 has been collected thereunder and is being held by the Court.

This application of 16 September 1971, made more than 12 years after the date of the decree, was one of the two applications held by Fuad, J. to be null and void. The second is an application dated 30 December 1971, asking for the Court's assistance:

(1) by attachment and sale of the debtor's house;

(2) by attachment of one moiety of the debtor's salary. The employment in respect of which the application of 16th September was made terminated, and the debtor was in other employment;

(3) by attachment and sale of the same car as that mentioned in the application of 28 April 1971.

The only question in this appeal is whether Fuad, J. was right, in the circumstances of this case, in holding that the applications of 16 September and 30 December 1971, were null and void as being fresh applications, within the meaning of s. 36 (1) of the Civil Procedure Act.

Mr. Mayanja-Nkangi for the appellant submitted that the learned judge was wrong, and that he ought to have held that the two applications in question were continuations of, and related back to, the original application of 28 April 1971, and should not be regarded as fresh applications. The word "fresh", he submitted, should be construed as meaning new, different from, not previously known and involving something different in character. In Mr. Mayanja-Nkangi's submission, the two applications held to be null and void by the judge were closely connected with the timeous application of 28 April 1971, and all sought the same relief although by different modes, so that it was wrong to describe the two later applications as "fresh".

Mr. Carrasco, supporting the decision appealed from, submitted that the applications of 16 September and 30 December 1971 commenced new proceedings

and were not ancillary or incidental to the application of 28 April 1971. They were substantive applications which did not arise out of the original one and were properly described as “fresh”.

There seems to be no East African authority relevant to this appeal, but the matter did receive consideration very recently in the High Court of Uganda in *Bazirio Kivumbi v. Ibrahim Ismail*, C.C. 48 of 1957 (unreported). After reviewing Indian authorities and commentators, the judge came to the following conclusion on the general principles to be applied:

> “It is my view that in order to entitle a decree-holder to claim that an application should be regarded as a continuation of the previous application, two conditions must be satisfied: firstly, that the previous application is pending and has not come to an end, and secondly, that the present application is similar in scope and character to the previous application. It is only if these two conditions are satisfied that a court would regard the present application as a continuation of the previous one.”

If I may respectfully say so, I consider that this dictum of Phadke, J. correctly lays down the general principles, except that I would prefer to substitute the words “is ancillary” for the word “character”. It must of course be borne in mind that each case must be decided in the light of its own peculiar facts.

Turning to the facts of this appeal, it seems clear to me that the application of 28 April 1971, is still pending and has not come to an end. Only the furniture and fittings referred to in that application have been sold; the house and car are as yet unsold. Dealing first with the application of 16 September 1971, can it be said that it is similar in scope, and ancillary, to the application of 28 April 1971? I think not. It asks for relief not asked for in the earlier application, that is to say attachment of salary, in respect of a form of property not mentioned in the earlier application, that is to say the debtor’s salary. The application of 16 September 1971, was in my view clearly a “fresh” application, and Fuad, J. was in my opinion right in so holding. I would dismiss the appeal insofar as this application is concerned.

The position with regard to the application of 30 December 1971, is to my mind different. The application asks for three modes of relief relating to the house, car and salary. The first two of these were included in the relief sought in the earlier application, only the relief sought by way of attachment of salary is new. The body of the later application makes two references to “earlier applications”, this is at least an indication that the application of 30 December was intended to be ancillary to, and a continuation of, the earlier application of 28 April. In my view, the later application is “fresh” only insofar as it relates to attachment of the debtor’s salary, but should otherwise be regarded as a perfectly valid continuation of the first application, which is still pending. The question arises, can the application be served in this way into good and bad? I see no reason why not. The threefold relief sought could have been sought in three separate applications, in which case quite clearly a court could have held one to be null and void and the others to be valid. The fact that the three modes of relief were sought in one and the same application does not, in my opinion, preclude the court from giving effect to the one and nullifying the other. I am accordingly of the view that this appeal succeeds, in relation to the application of 30 December 1971, to the extent that it is not null and void so far as it relates to the applications for attachment and sale of the debtor’s house and car.

I would accordingly allow this appeal to the limited extent of altering Fuad, J.’s order appealed from by adding after the date “31/12/1971” the words “insofar as the latter applies for attachment of the debtor’s salary only”. I would not alter the order as to costs in the court below. I would give the appellant half

the costs of this appeal. The debtor's car can now be sold on the assumption that it is still in the possession of the broker, as we have been informed from the bar is the case, and the proceeds of sale paid to the appellant. I gather the question of selling the house no longer arises. If any difficulty arises from the implementation of this judgment, the parties are given liberty to apply to this Court for directions.

**Spry VP:** I agree with the judgment of Law, J.A. The main question on this appeal concerns the interpretation of s. 36 (1) of the Civil Procedure Act. So far as is relevant, this reads as follows:

> "36(1) Where an application to execute a decree . . . has been made, no order for the execution of the same decree shall be made upon any fresh application presented after the expiration of twelve years from –
>
> (*a*) the date of the decree sought to be executed. . . ."

The question for determination is as to the meaning of the words "fresh application". I may say at once that I think the word "application" in this context can only mean an application for execution.

The manner in which an application for execution is to be made is set out in O. 19, r. 8 (2) of the Civil Procedure Rules and a form of application is prescribed in Appendix D as Form 5. If the application is admitted by the court, the usual procedure is for a warrant to be issued to the court bailiff in one of the prescribed forms directing him to take the appropriate action and commanding him to return the warrant on or before a date fixed by the court, certifying the manner in which it has been executed or the reason why it has not been executed.

Where an application is for attachment and sale of property and the property is duly seized and sold, the application is satisfied even though the decretal amount is not realised. In such a case, the application is dead and any subsequent application for execution must, in my opinion, be a "fresh" application. I cannot accept Mr. Mayanja-Nkangi's submission that the word "fresh" relates to the character of the application and consequently that an application within time to attach and sell one chattel is sufficient to allow any number of applications out of time for the attachment and sale of other chattels.

The position is not so simple where the warrant is returned unexecuted or only partly executed. There is, I think, nothing to prevent the extension, under O. 47, r. 6, of the time for returning a warrant but there appears to be no provision permitting the re-issue of a warrant or (as was in fact done in this case) the issue of a new warrant without a further application. There is no express provision saying that an application lapses after a certain time, but I do not think this was necessary, as clearly a court will not issue a warrant for execution except on application and, in the absence of any alternative provision, the form of an application is governed by O. 19, r. 8 (2). Moreover, that sub-rule requires an application to show, not only the decretal amount, interest and costs, but also any payments made on account and any sums realised on previous executions: these are matters on which the court must have up-to-date information at the time when it issues a warrant and I do not think the court could properly act on an application which did not contain that information. It could, on this basis, be argued that every application for execution is a "fresh" application, but that would make the word "fresh" redundant, and some meaning must if possible be given to it.

The only reasonable interpretation to overcome those difficulties is, I think, to hold that an application for execution is a "fresh" application if it seeks a different mode of execution or if, being an application for the attachment and

sale of property, it relates to assets of the debtor which have not been included in a previous application, while an application is not a "fresh application" if it is substantially the renewal of a previous application which proved wholly or partially ineffectual and which is still outstanding on the record.

I agree also with Law, J.A., and for the reasons he has given, that where an application for execution made more than twelve years from the date of the decree includes some assets which were the subject of a timeous application and some which were not, a warrant may properly be issued in respect of those assets which were included in the earlier application, although I think the proper course where objection is taken is for an application to be made for leave to amend, by deletion of such items as are inappropriate.

I agree with the order proposed.

**Sir William Duffus P:** I have read the judgments of Law, J.A. and of the Vice-President. I agree that this appeal be allowed in accordance with the order set out in Law, J.A.'s judgment and as Spry, V.-P. also agrees it is so ordered.

*Order accordingly.*

For the appellant:
*J. S. Mayanja-Nkangi* (instructed by *Mayanja-Nkangi & Shah*, Kampala)

For the respondent:
*P. Carrasco* (instructed by *M. C. Ghelani*, Kampala)

## Coffee Marketing Board v Harbours Corporation
[1973] 1 EA 126 (CAM)

| | |
|---|---|
| **Division:** | Court of Appeal at Mombasa |
| **Date of judgment:** | 7 December 1972 |
| **Case Number:** | 57/1972 (16/73) |
| **Before:** | Spry Ag P, Law Ag VP and Lutta JA |
| **Sourced by:** | LawAfrica |
| **Appeal from:** | The High Court of Kenya – Simpson, J. |

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*[1] Shipping – Limitation of liability – Port authority liable in negligence – Entitled to limit liability as ship-owner – Merchant Shipping Act* (*Cap. 389*), *s. 273* (*K.*).

*[2] Judicial precedent – Stare decisis – Admiralty jurisdiction – Importance of international uniformity and the following of long established decisions.*

*[3] Costs – Liability not admitted – Plaintiff entitled to costs.*

**Editor's Summary**

Coffee belonging to the appellant was damaged by sea-water when a lighter owned by the respondent was holed by an underwater obstruction. The respondent denied liability to the appellant and also claimed to limit its liability as a ship-owner.

In the High Court the judge held that the respondent was liable in its capacity as port authority for negligent maintenance of the harbour, and that it could limit its liability as a ship-owner. Costs of the suit were awarded to the respondent.

The appellant appealed, contending that the limitation of liability given by the Merchant Shipping Act (Cap. 389), s. 276 as a port authority superseded any right to limit liability as a ship-owner, and that it should have been awarded costs.

**Held –**

(i) the English cases are entitled to very great respect for the following reasons:

(*a*) admiralty jurisdiction is to be exercised in the same manner and to the same extent as in the High Court in England:

(*b*) the desirability of international uniformity in matters concerning shipping: and

(*c*) the leading decision had stood for 40 years before the enactment of the Kenya Act;

(ii) where a party can bring itself within a provision limiting its liability it is immaterial that its negligence was in a different capacity (*The Ruapehu* (2) followed);

(iii) that a different limitation of liability applied to a port authority was irrelevant;

(iv) the respondent was entitled to limit its liability as a ship-owner;

(v) the appellant was entitled to the costs of the suit as liability had not been admitted.

Appeal allowed in part.

**Cases referred to in judgment:**

(1) *London & South Western Ry. Co. v. James* (1872), L.R. 8 Ch. 241.

(2) *The Ruapehu*, [1927] A.C. 523; [1927] All E.R. Rep. 564.

(3) *The Radiant*, [1958] 2 L1. Rep. 596.

(4) *The Alletta* (No. 2), [1972] 2 All E.R. 414.

[*Editorial note*: The provisions of ss. 273 and 276 of the Merchant Shipping Act (Cap. 389) are as follows:

273 (1) In this sub-part –

"ship" includes any structure launched and intended for use in navigation as a ship or as a part of a ship;

and "gold franc" means a unit consisting of 65 1/2 milligrams of gold of millessimal fineness 900.

(2) where any of the following events occur without the actual fault or privity of the owner of a ship, whether registered in Kenya or not –

(*a*) loss of life or personal injury is caused to any person on board the ship;

(*b*) damage or loss is caused to any goods, merchandise or other things whatsoever on board the ship;

(*c*) loss of life or personal injury is caused to any person not on board the ship through –

(i) the act or omission of any person, whether on board the ship or not, in the navigation or management of the ship, in the loading, carriage or discharge of its cargo or in the embarkation, carriage or disembarkation of its passengers; or

(ii) any other act or omission of any person on board the ship; or

(*d*) loss or damage is caused to any property, other than property described in paragraph (*b*) of this sub-section, or any rights are infringed, through –

(i) the act or omission of any person, whether on board the ship or not, in the navigation or management of the ship, in the loading, carriage or discharge of its cargo or in the embarkation, carriage or disembarkation of its passengers; or

(ii) any other act or omission of any person on board that ship;

such owner shall not be liable for damages beyond the following amounts namely –

(*e*) in respect of loss of life or personal injury, either alone or together with loss or damage to property, or any infringement of any rights mentioned in paragraph (*d*) of this subsection, an aggregate amount equivalent to 3,100 gold francs for each ton of that ships' tonnage; and

(*f*) in respect of loss or damage to property or infringement of any rights mentioned in paragraph (*d*) of this section, an aggregate amount equivalent to 1,000 gold francs for each ton of that ship's tonnage.

(3) The limits on the liability of an owner of a ship set by this section shall apply in respect of each distinct occasion on which any of the events mentioned in paragraphs (*a*) and (*d*) of subsection (2) of this section occur without that owner's actual fault or privity, and without regard to any liability incurred by that owner in respect of that ship or any other occasion.

(4) This section does not limit the liability of an owner of a ship in respect of any loss of life or personal injury caused to, or any loss of or damage to property of, or any infringement of any right of, a person who is employed on board or in connexion with a ship under a contract of service, if that contract is governed by the law of any country other than Kenya and that law does not set any limit to that liability, or sets a limit exceeding that set by this section.

276 (1) Where without the actual fault or privity of the owners of any dock or canal or any harbour or port authority any loss or damage is caused to any vessel or vessels or to any goods, merchandise or other things whatsoever on board any vessel or vessels, such owners shall not be liable to damages beyond an aggregate amount equivalent to 1,000 gold francs for each ton of the tonnage of the largest registered Kenya ship that at the time of such loss or damage occurring is or has within the preceding five years been within the area over which such dock or canal owner or port or harbour authority performs any duty or exercises any power.

(2) For the purposes of this section, a ship shall not be taken to have been within the area over which a port or harbour authority performs any duty or exercises any power by reason only that it has been built or fitted out within such area, or that it has taken shelter within or passed through such area on a voyage between two places both situated outside that area, or that it has loaded or unloaded mails or passengers within that area.

(3) This section does not impose any liability in respect of any loss or damage on any such owners or authority in any case where no such liability exists apart from this Act.

(4) In this section, "owners of any dock or canal" includes any person or authority having the control and management of any dock or canal, and any ship using the same, as the case may be.]

**Judgment**

The following considered judgments were read. **Spry AG P:** Part of a consignment of coffee belonging to the Coffee Marketing Board of Uganda, the present appellant, was damaged by sea water while in a lighter belonging to East African Harbours Corporation, the present respondent, in the port of Mombasa for transfer to an ocean-going ship. The lighter, which had previously been in good condition, was holed when, on a falling tide, it struck an underwater obstruction, the existence of which was not known. The Board filed a suit, claiming damages amounting to Shs. 214,584/75. The Corporation filed a defence, denying liability. An amended plaint was filed: the record does

not show when, but that is not material. On 29 August 1970, the Corporation, by letter, admitted liability. Two days later, an amended defence was filed: liability was still denied but there was added a counterclaim asking for a declaration that any liability of the Corporation was limited, under s. 273 of the Merchant Shipping Act (Cap. 389), to the sum of Shs. 142,787/90. At the hearing, the facts and figures were agreed and only two issues were argued. The first was whether the damage to the coffee occurred without the actual fault or privity of the Corporation. The judge held that there had been no actual fault or privity and there has been no appeal against that decision. The Corporation was sued in negligence or, in the alternative, for breach of contract: the judge held that the Corporation was liable in its capacity as a port authority for the negligence of its officers or servants in relation to the maintenance of the harbour.

The substantial issue was as to the extent of liability. The Corporation claimed that it was entitled to limit its liability to that of a ship-owner as prescribed in s. 273. The Board claimed that the Corporation should be held liable as a port authority in which case the limit to its liability, under s. 276, was such that the Board would be able to recover its loss in full.

The judge held:

> "The principle adopted in England appears to be that provided a party can bring himself within the framework of the relevant legislative provisions whether as owner of a dock or as owner of a ship the capacity in which he was acting and any other activities and businesses carried on are irrelevant.
>
> In the instant case although the defendant is a dock owner, it is also within the meaning of s. 273 of the Merchant Shipping Act the owner of the ship in which the coffee was damaged. The defendant claims to be entitled to limit its liability as a ship owner. I can see no justification for finding that it must accept the higher liability of a dock-owner which in this case would result in the payment of the plaintiff's claim in full.
>
> I think it is entitled to choose to limit its liability as ship owner despite the fact that it is also owner of the dock in which the damage occurred."

It is against that decision that this appeal is brought.

Mr. Wilkinson, who appeared for the Board, submitted that s. 276 created a liability in a port authority separate from that of a ship-owner; he submitted that there is nothing in the Act to justify saying that the liability of the Corporation is any less because it was the owner of the lighter than it would have been had the lighter belonged to a third party.

He also referred to the history of the English provisions from which the Kenya sections were derived. S. 273 was derived from s. 503 of the Merchant Shipping Act 1894, while s. 276 was derived from s. 2 of the Merchant Shipping (Liability of Shipowners and Others) Act 1900. Port authorities as such could claim no limitation prior to 1900, and it was Mr. Wilkinson's submission that when they were given a general right to limitation, they must be assumed to have lost the limited right they had previously enjoyed if they were shipowners.

Mr. Bishota, for the Corporation, submitted that s. 276 limits liability but does not impose any liability, and it cannot therefore take away any right of limitation that may exist. All the conditions were satisfied that were necessary to enable the Corporation to exercise the right of limitation conferred by s. 273. The right to claim limitation is that of the Corporation and it cannot be forced to limit its liability under one section if it prefers, and has the right, to limit it under another.

Mr. Bishota went further and submitted that s. 276 cannot apply where a

port authority is also a shipowner, because the section is a protection against claims by shipowners and although there might be claims made directly against a port authority by the owners of cargo, they would normally seek to recover from the shipowner, who in turn would seek to recover from the port authority. Although this may well be the normal course of events, I am not persuaded that it is any reason for restricting the interpretation of the section.

I agree with Mr. Bishota that s. 276 does not create any liability: indeed this is made clear by sub-s. (3), which expressly states that the section does not impose any liability where no such liability exists apart from the Act.

The question before us is one that does not appear to have been decided in any East African or in any English case. Reference was made in the High Court and before us to several English cases, of which by far the most important is *The Ruapehu*, [1927] A.C. 523. In that case, the defendants who were dock owners and also repairers of ships, were held to be entitled to invoke the limitation available to dock owners, although the act which gave rise to liability was done by them in their capacity of ship repairers. Viscount Haldane, after saying that the matter had to be determined by the words used in the section, continued:

> "I cannot find any ambiguity in the language. It declares that the owner of a dry dock is not to be liable in excess of the statutory limit, and the conditions defining the limit are to be sought for within the area over which the dock owner performs any duty or exercises any power. There is not a word about the capacity in which the dock owner has acted."

Again, Viscount Sumner said:

> "The respondents fall within the description of those persons on whom the right of limitation is conferred. What is there in the words to restrict this description, so as to exclude them?"

This was the view that prevailed by a majority, the minority view being that the section should be read as if it contained the words "as such".

T*he Ruapehu* followed, and affirmed, the decision of the Court of Appeal in *London & South Western Ry. Co. v. James* (1872), L.R. 8 Ch. 241, in which it was held that a railway company which was also a shipowner was entitled to limitation of liability as a shipowner, although it may have been acting as a carrier of persons and goods. The effect of the decision was summed up in *The Ruapehu* by Viscount Haldane, when he said of it:

> "The Court refused to entertain a distinction founded on the capacities in which the railway company contracted."

Both Mr. Wilkinson and, surprisingly, Mr. Bishota, sought to distinguish the present case from *The Ruapehu* and the railway company case, on the ground that they were concerned with a question of limitation or no limitation, whereas we are concerned with alternative rights of limitation, and Mr. Bishota argued, as he had argued in the court below, that in the present circumstances the test should be the capacity in which the Corporation was working.

With respect, I do not think the English cases can be so lightly dismissed. The reasoning behind them is that if a party can bring himself fairly and squarely within the words of a section conferring a right of limitation, he is entitled to avail himself of it, even though he may have been acting in a capacity other than that which gives him the right of limitation. Lord Sumner said, in *The Ruapehu*:

> "There is no absurdity, no repugnance, no inconsistency produced by reading the words in their plain grammatical sense. . . ."

I think also that one may properly take note that in these cases the different

capacities were complementary: ownership of a dry dock and ship-repairing; shipowning and the carriage of people and goods. So in the present case, the ownership and operation of lighters might be regarded as ancillary to the operations of a port authority and it is within the statutory powers of the Corporation. It may be that a different view would require to be taken if the separate capacities were entirely unconnected one with the other, but it is unnecessary to consider that now.

The English cases are not, of course, binding on us, but I think we should treat them with very great respect, for three reasons. First, because it is provided in s. 4 of the Judicature Act (Cap. 8) that the admiralty jurisdiction of the High Court is to be exercisable in the same manner and to the same extent as in the High Court in England. Secondly, because of the desirability of international uniformity in matters concerning shipping, a desirability which is recognised in s. 4. I am not aware of any conflicting decision of any Commonwealth court. Thirdly, because the decision in *The Ruapehu* had been established law for forty years when the Kenya Act was passed and if there had been any wish to depart from it, two additional words would have sufficed to effect it.

In *The Ruapehu*, the defendants were acting as ship repairers and in that capacity their liability was unlimited but because they were dock owners and the negligence occurred within their docks, they were able to limit their liability. Here, by parity of reasoning, the Corporation was liable for negligence in its capacity as a port authority, but because it is a shipowner and the damage was caused to goods on board one of its ships (a lighter is a ship for this purpose), it seems to me that it is entitled to claim the limitation available to a ship-owner. If the Corporation is entitled to the limitation conferred by s. 273, then it is, in my view, immaterial that it may have had available an alternative limitation. I think the judge was right in his decision and that the appeal as regards limitation must fail.

There was a second ground of appeal. The judge awarded the Corporation its costs of the suit. Mr. Wilkinson attacked this order on two grounds. First, he submitted that the normal Admiralty practice where a declaration limiting liability is sought, is for the party seeking the declaration to be the plaintiff and to be liable for the costs of obtaining it. He relied on *The Alletta* (*No. 2*), [1972] 2 All E.R. 414. Mr. Bishota, while agreeing that the usual practice is for the party seeking a declaration to be the plaintiff in a suit for a declaration, submitted that there is an alternative course, where liability is disputed, for the declaration to be sought by way of counterclaim. For this proposition, he relied on *The Radiant*, [1958] 2 LI. Rep. 596. He also relied on *The Alletta* (*No. 2*) for a statement by Dunn, J., that the question of costs is in the discretion of the court. The judge went on:

> "I fully accept that a plaintiff in a limitation action, being a wrongdoer should pay the ordinary costs of obtaining a limitation decree, but if a defendant raises and persists in an issue on which he fails, I find great force in the argument, and I accept it, that the costs of that issue should be governed by the ordinary rule that costs follow the event."

Secondly, Mr. Wilkinson argued that it was not until after the suit had been filed that the Corporation admitted liability. The Board had to go to court to recover anything at all. Mr. Bishota conceded that the Board was entitled to the costs of filing the suit but submitted that the Corporation should have the costs of the counterclaim, which had been contested and in which the Corporation has succeeded.

The judge, having held that the Corporation succeeded on both the issues that had been framed, proceeded to dismiss the suit. This was clearly a mistake, as

the Board had succeeded to the extent that limited liability had been admitted and this mistake led to his order as to costs, which in my opinion cannot stand. The only difficulty is as to the costs of the counterclaim.

I do not propose to refer to the English cases which deal with costs in limitation actions because, so far as I am aware, none of them concerns the costs where the application for a declaration was by way of counterclaim and it seems to me that different considerations must then apply. It would seem that a declaration on a counterclaim is merely a defence against the other party or parties to the suit and not, like a declaration obtained by a suit, a protection against all the world. (See Atkin's Court Forms, 2nd Edition, Vol. 3, p. 50, paragraph 46.) I think therefore that the question ought to be approached on the basis that the Corporation succeeded on two issues raised in the defence.

It is not usual to make a distributive order for costs where a party has succeeded on issues which do not substantially affect the outcome of the suit, but here the Corporation has succeeded on issues which had the effect of reducing its liability by one third. I think that must be reflected in the order for costs.

The appropriate result might be achieved in different ways but I think the simplest order would be that the Board be given the costs of the suit and the Corporation the costs of the counterclaim.

I would allow the appeal to this extent, that I would set aside the judgment and decree so far as they dismiss the suit and substitute an order giving judgment in favour of the Board for Shs. 141,787/90, together with interest at 6 per cent per annum from 30 August 1969, and I would set aside the order for costs in the High Court and substitute an order giving the Board the costs of the suit and the Corporation the costs of the counterclaim. I would give the Board one-third of its costs of the appeal, with a certificate for two advocates. As the other members of the Court agree, it is so ordered.

**Law Ag VP:** I agree with the judgment prepared by the Acting President and with the order proposed by him.

**Lutta JA:** I also agree.

*Appeal allowed in part.*

For the appellant:
*P. J. Wilkinson, Q.C.* and *B. T. Parkar*

For the respondent:
*D. M. K. Bishota* (Principal Assistant Counsel)

## Thakkar and another v Jeram and others
[1973] 1 EA 133 (HCK)

| | |
|---|---|
| **Division:** | High Court of Kenya at Nairobi |
| **Date of judgment:** | 8 December 1972 |
| **Case Number:** | 79/1972 (19/73) |
| **Before:** | Sir James Wicks CJ, Simpson and Waiyaki JJ |
| **Sourced by:** | LawAfrica |

*[1] Rent Restriction – Standard rent – Reassessment – Uneconomic return – Factor personal to landlord – Assessable only on purchase price when landlord has bought – Rent Restriction Act* (*Cap. 296*), *s. 4* (*2*) (*K.*).

*[2] Rent Restriction – Tribunal – Death of chairman – Part heard matter properly dealt with de novo – Rent Restriction Act* (*Cap. 296*), *s. 4 A* (*K.*).

**Editor's Summary**

A tribunal appointed under the Rent Restriction Act (Cap. 296) ordered an assessment officer to assess the rent of certain flats and to submit his assessment to the tribunal. Before the report could be considered the chairman died and the matter was heard de novo before a differently constituted tribunal.

The tribunal found that the flats had been let on 1 January 1965 and on the facts this was upheld in the High Court. The appellants bought the flats in 1969 and contended before the tribunal and in the High Court that they were entitled to have the rents increased since they did not give a fair return on the capital investment. They contended that they could elect to base this either on the cost of construction of the premises or on the purchase price paid by the landlord.

On appeal:

**Held** –

(i) the proceedings were part heard before the first tribunal which ceased to have jurisdiction on the death of the chairman;

(ii) that the standard rent would yield an uneconomic return to the landlord is personal to him;

(iii) where a landlord has bought the only factor which can be considered is whether he receives a fair return based on the purchase price paid by him.

Appeal dismissed.

**No cases referred to in judgment.**

**Judgment**

The following considered judgments were read. **Sir James Wicks CJ:** This is an appeal from the decision of the Rent Restriction Tribunal at Nairobi.

The application first came before a tribunal on 28 December 1971; it was adjourned to 3 February 1972, when the Chairman, not having heard addresses or evidence, recorded:

> "There is no proof, that the flats were let on 1.1.65 and the rents set out in the notice of motion are not standard rents. Under section 5 (1) (*a*) of the act the rents of the flats in the premises L.R. 209/419/17 Nicobar Close, Off Juja Road, are to be assessed by the Assessment Officer, to the Tribunal, when the assessment has been completed, it will be listed for hearing for the Tribunal for approval or otherwise.
>
> The assessment officer is to submit his opinion as to the apportionment of the rents for the flats."

The assessment officer made his report on 27 March 1972. Unfortunately Mr. T. A. Dennison, the Chairman of the tribunal, died on 14 May 1972, before any further hearing, and the members of the tribunal sitting with him took no further part in the proceedings. The case came before another tribunal, differently constituted, on 5 June 1972. This tribunal heard the case and gave their decision on 14 June 1972. Mr. Khanna, who appears for the appellants, submits that the proceedings before the first tribunal were concluded and, the matter being res judicata, the second tribunal had no jurisdiction. As the appeal is against the decision of the second tribunal I propose to consider this ground of appeal first.

S. 5 (2) (*a*) of the Rent Restriction Act (Cap. 296), which I will refer to as the Act, makes provision for a tribunal to delegate its powers to an administrative officer to assess standard rent. S. 5 (2) (*c*) of the Act provides that such a delegation shall not prejudice or affect the powers of the tribunal itself to exercise any of its powers under the Act and s. 25 provides:

> "25. Where for the purpose of determining the standard rent, an estimate of the cost of construction or market value has been made by order of the tribunal, the tribunal shall forthwith send written notification to the landlord and the tenant, or their representatives, that the details of such estimate are available for their information and that before the standard rent is determined any such party or his representative may appear before the tribunal on a date to be specified in the notification and object to the estimate."

The assessment officer's report shows that the assessment of standard rent was made on the basis of the cost of construction of the building and land value, the figures being set out, and that a standard rent of Shs. 2,200/- a month is arrived at. All of that is handwritten in ink. On the back of one sheet of the assessment an apportionment of the standard rent to each flat is set out. This is based on floor areas and is handwritten in pencil.

There is nothing to show that the tribunal complied with any of the requirements of s. 25 of the Act and there is no note whether or not the tribunal accepted the assessment officer's report. The Chairman of the Tribunal merely called for the assessment officer's report. Had the proceedings before the tribunal continued, copies of the report must have been served on the parties and a hearing date fixed when the tribunal would have heard the application in the normal way and given its decision. That there was no further hearing resulted in the application being part heard and the Tribunal made no decision.

S. 4 A (5) of the Act provides that a tribunal shall be composed of a Chairman and two members selected from a panel and s. 4 A (7) provides that any matter considered by a tribunal shall be decided by the votes of the majority of the persons constituting the tribunal. The effect of these provisions is that on the death of the Chairman, or a member, the tribunal ceases to be lawfully constituted and the remaining members cease to have any jurisdiction. The case being part heard before the first tribunal, whose jurisdiction terminated, it was properly heard de novo by another tribunal properly constituted. I can find nothing in Mr. Khanna's submission.

The property comprises a block of 6 flats, which the appellants purchased in 1969 for Shs. 105,000/-, the legal costs amounting to Shs. 5,000/-. In their decision the second tribunal found that the flats were let on 1 January 1965, that the existing return on the property exceeded that which the tribunal would have allowed on the purchase price and costs of Shs. 110,000/-, and dismissed the application.

The appellants contend that there was no evidence that five of the flats were

let on 1 January 1965, that the rents of these five flats should have been assessed on the cost of construction under the provisions of s. 4 (1) (*a*) (iii) of the Act and the appellants, having a choice between two alternatives set out in s. 4 (2) (*a*) (iv) of the Act, had elected to adopt that of cost of construction, whereas the tribunal had adopted the other alternative of the purchase price, which was less beneficial to the appellants.

The evidence relating to whether or not the flats were let on 1 January 1965, was that of Mr. Gurdial Singh who said that his flat has two rooms and a store and that he paid 225/- a month on 1 January 1965, which was increased when the applicant purchased the property, and Mr. Javaid Ahmed who said that he moved into his flat five years before and paid a rent of Shs. 310/- a month, which rent was also increased when the appellants purchased the property. No oral evidence was heard relating to the rents of the other four flats. Mr. Javaid Ahmed moved into his flat after 1 January 1965, and Mr. Khanna submits that the tribunal's finding of the rents of this flat and the four other flats as on 1 January 1965, was a wild guess. In their application the appellants set out the present monthly rents of the flats. Mr. Gurdial Singh Shs. 250/-, the three other two roomed flats Shs. 225/- each, Mr. Javaid Ahmed Shs. 350/- and the other three roomed flats Shs. 400/- a month. In their ruling the tribunal found that the rents of the two roomed flats on 1 January 1965, was Shs. 225/- and of the three roomed flats Shs. 310/-. In view of the evidence of Mr. Gurdial Singh and Mr. Javaid Ahmed that the appellants had increased their rents from these amounts and the close proximation of the rents of these two flats to the level of the present rents I am satisfied that the finding of the tribunal was reasonable and correct.

The definition of standard rent is to be found in s. 4 of the Act and, if the unfurnished dwelling was let on 1 January 1965, it is the rent at that date. If it was not let on that date it is a rent to be assessed by the tribunal on the basis of the cost of construction and the market value of the land. Mr. Khanna, as I have said, contends that under s. 4 (2) (*a*) (iv) of the Act the landlord has an option and the relevant part of sub-section (2) is:

> "(*a*) where the tribunal is satisfied that the standard rent would yield an uneconomic return to the landlord because of –
>
> (iv) the fact it does not yield a fair capital return on the cost of construction and market value of the land as at 1 January, 1965, or that, in the absence of any indication that the purchase price paid by the landlord was excessive, it does not yield a fair capital return on that purchase price,
>
> the tribunal may determine the standard rent to be such amount as, in all the circumstances of the case, it considers fair;"

If a dwelling was not let on 1 January 1965, section 4 (1) (*a*) (iii) of the Act applies and the relevant factor is the cost of construction and market value of the land and there is the same factor contained in the first part of s. 4 (2) (*a*) (iv) (above). Mr. Shem Bafura Bageni of Messrs. Tysons, giving evidence on behalf of the appellants made a valuation of the premises in which he stated that the building was erected in 1956 when an estimate of costs of construction was submitted to the City Council of Shs. 139,975/- or about Shs. 140,000/-, and details of how this sum was arrived at is given. This results in a cost of Shs. 29/73 per square foot. Mr. Bageni says that this figure is "clearly lower than the average cost of construction of similar buildings of this type at that date which was about Shs. 32/05 per square foot". Mr. Bageni then proceeded to make a valuation on the latter basis and arrived at a figure of Shs. 151,723/-. The appellants

adopt this figure in their appeal. The words in both provisions are “the cost of construction” and that term is defined in s. 4 (1) of the Act to mean “the cost of constructing the premises at the time of construction”. In this case an estimate of the cost of construction was submitted to the City Council at the time of construction. This related to the actual buildings and it is reasonable to assume that this was an honest return. Be it high or low, it cannot be displaced by a sum calculated on “the average cost of construction of similar buildings”, a method of valuation which is relevant only when the cost of construction is not known and, such an estimate has been made pursuant to order of the tribunal under s. 5 (2) (*a*) and 25 of the Act. It is of interest to note that the basis on which the assessment officer calculated the standard rents was an estimated cost of construction of Shs. 30/- a square foot resulting in a figure of Shs. 141,120/-, a cost per square foot and total, which is very close to that of the developer’s return to the City Council.

Referring to s. 4 (2) (*a*) (iv) of the Act the tribunal decided that a landlord is entitled to get a fair return on his capital investment and in this case his investment is the price paid by him and not the cost of construction. Looking at the provision the tribunal must be satisfied “that the standard rent would yield an uneconomic return to the landlord”. The factor is personal to the landlord. Three instances are then given which are not personal to the landlord in this case, and we come to the fourth. In this instance, two classes of landlord are provided for, the first is the developer whose capital was “the cost of construction and market value of the land as at 1 January 1965”. This does not apply to the landlord in the case before us for the reason that he did not bear the capital expenditure which was the cost of construction, nor was the land his at the time of construction. The second is the return on the purchase price. This does apply to the landlord in the case before us for the reason that he did pay a purchase price, and this is his capital on which he is entitled to a fair return. Looked at another way it would not be “fair” that a landlord should receive a return based on the cost of construction which cost he did not bear and on the value of the land at the time when he did not own it; it is “fair” that, as a purchaser, he should receive a return based on the purchase price that he in fact paid.

Mr. Khanna submits that where the landlord has purchased a property regard must be paid to the possibility that it was a sale, for instance, between relatives at an undervalue, that the value in the open market at the time must be ascertained, and that is the “purchase price”. The fourth instance contains the proviso relating to the purchase price “in the absence of any indication that the purchase price paid by the landlord was excessive”. Undervalue is not dealt with and, if this was intended to be a factor, provision would have been made for it. In my view, if the sale is at an undervalue the landlord must bear the consequences of it, the factor being the actual purchase price. It is not suggested that in this case the sale was at an undervalue.

I agree with the conclusion of the tribunal that the basis is the purchase price and costs, and that the present yield from the flats exceeds a fair capital return on that capital.

The final ground of appeal is that the assessment of costs by the tribunal was in excess of that calculated on the subordinate court scale, or that might have been taxed under the High Court Scale. There was no evidence of the amount of the costs calculated on the subordinate court scale or under the High Court Scale. However a calculation made at the hearing showed that the total of fixed items left very little for a reasonable instruction fee and advocates fee and the amount of Shs. 1,000/- awarded was less than that likely to have been

assessed under either of the two scales mentioned and this ground of appeal must fail.

I can find no substance in the appeal which I would dismiss with costs.

**Simpson J:** The appellants who are the landlords of premises consisting of 6 flats at Nicobar Close off Juja Road, Nairobi, applied to the Rent Restriction Tribunal for a revision of the rents:

> "so as to make them fair rents, on the grounds that the standard rent yields an uneconomic return to the landlords."

The tribunal found the return to be "fair and more than economic" and dismissed the application with costs assessed at Shs. 1,000/-.

It is against this decision that the appellants now appeal. Mr. D. N. Khanna for the appellants was granted leave to argue an additional ground not included in his memorandum of appeal namely that the decision of the Tribunal was a nullity owing to lack of jurisdiction.

The tribunal he said had assessed the rent on the basis of the purchase price paid by the appellants but prior to this another tribunal differently constituted had decided that the rent should be assessed on the basis of the cost of construction. The second tribunal he submitted on principles of res judicata and natural justice had no jurisdiction to alter this decision and could only apportion the rent among the six flats after considering the opinion of the assessment officer which the first tribunal had adjourned to obtain. That tribunal's order had been signed by the Chairman only. This Mr. Khanna suggested did not affect the validity of the decision as under the proviso to s. 4A (7) of the Act any point of law arising in any proceedings before the tribunal is reserved exclusively to the person presiding.

I see no substance in this ground of appeal. It is I think quite clear that the order signed by the chairman of the first tribunal on 3 February 1972 is not a decision of the tribunal whether interim on a point of law or otherwise. The matter was part-heard and the chairman having died the second tribunal quite properly and without any objection from Mr. Khanna or counsel for the defendants decided to hear the case de novo.

The remaining grounds of appeal (other than the final two which are in respect of costs) can I think be summarised as follows.

The landlords were entitled to and did elect to base their application on the estimated cost of construction and the value of the land on 1 January 1965, and the tribunal was not entitled to disregard that basis and refuse the application on the ground that the rent represented a fair return on the landlord's actual investment i.e. the purchase price.

There was evidence that the purchase price paid by the appellants in 1969 including legal costs was Shs. 110,000/-.

The tribunal's assessment officer estimated the cost of construction and land value as at 1 January 1965 at Shs. 184,344/- while a firm of estate agents and valuers put it at Shs. 197,068/-. The flats were built in 1956.

The appellants' application was made under s. 4 (2) (*a*) (iv) of the Act which so far as material provides as follows:

> "(*a*) where the tribunal is satisfied that the standard rent would yield an uneconomic return to the landlord because of –
>
> (iv) the fact it does not yield a fair capital return on the cost of construction and market value of the land as at 1 January, 1965, or that,

> in the absence of any indication that the purchase price paid by the landlord was excessive, it does not yield a fair capital return on that purchase price,
>
> the tribunal may determine the standard rent to be such amount as in all the circumstances of the case it considers fair;"

The application accordingly presupposes the existence of a standard rent.

It was not therefore open to Mr. Khanna to contend as he did that there was no evidence on which the tribunal might make their finding that the flats were let on 1 January 1965 and that there was in existence for each flat a standard rent.

Be that as it may having examined the evidence adduced before the tribunal I agree with the Chief Justice's view that there was sufficient evidence to support the tribunal's finding in that respect.

Under the provisions of s. 4 (1) the standard rent of premises let unfurnished as these were is the rent at which they were lawfully let on 1 January 1965 or if not let:

> "(iii) a rent to be assessed by the tribunal at a monthly rate of one and one-quarter per cent of the cost of construction and the market value of the land, the landlord paying all outgoings."

As appears from the appellants' affidavit and the evidence adduced by them before the tribunal it was in accordance with this provision that the appellants sought to have the rent assessed but this was an application not for assessment of the standard rent but for an increase on the ground that the standard rent yielded an uneconomic return.

The expression "standard rent" occurring in s. 4 (2) (*a*) (iv) is I think loosely used and must be taken to mean the current lawful rent. The tribunal's first task is to determine whether the current lawful rent yields a fair capital return on the cost of construction and market value of the land as at 1 January 1965, or on the purchase price. I think having regard in particular to the words "uneconomic return to the landlord" occurring earlier in the paragraph that the expression "fair capital return" must refer to the return on the landlord's capital investment. If the landlord has paid for the construction of the premises his capital investment is the cost of construction adjusted to 1 January 1965. Since he has not paid a purchase price the tribunal obviously cannot consider whether the rent yields a fair return on the purchase price.

On the other hand if the landlord has purchased the premises the tribunal will consider whether or not the standard rent yields a fair return on the purchase price taking account of any indication that the purchase price was excessive. If the purchase price appears to them to have been excessive they may then in their discretion despite the fact that a fair return on that purchase price is not yielded refuse the application.

No provision is made for an abnormally low purchase price or gift presumably because the legislature considered that in such cases no question of hardship based on an uneconomic return arises.

I cannot accept Mr. Khanna's contention that this paragraph confers on the landlord alternative causes of action. It is clearly not for the landlord to select the test which he would prefer.

If the tribunal is not satisfied that the standard rent would yield an uneconomic return there is obviously no need to go further and determine a new fair rent.

The tribunal in the instant case could have disregarded the appellants' return on the cost of construction basis. They considered the appellants' return under

both bases however and concluded that the existing return exceeded the return they would have allowed on the lower figure, the purchase price, and was more than fair. There was no evidence that the purchase price was an undervalue and the tribunal did not appear to think it was.

I agree with their conclusion.

With regard to the final two grounds of appeal it was contended by Mr. Khanna that punitive costs had been awarded. The tribunal in their judgment said:

> "There was no need to drag the tenants into court on the instant case."

While I am not out of sympathy with this view it might have been better left unspoken on a consideration of costs.

However the point at issue is whether or not the amount awarded was in fact punitive. When one adds up the items which would have appeared in a bill of costs an amount of less than Shs. 500/- is left to cover the instruction fee which in my opinion is not so excessive as to be punitive.

Under s. 31 of the Act the Tribunal may fix the costs, alternatively, they may order the costs to be taxed by the taxing officer of the High Court either on the High Court scale or on the subordinate court scale. In practice I think it is desirable that they should fix the costs only where this can be done by consent. Otherwise they should be taxed.

I see no reason to hold as Mr. Khanna contended that the Tribunal cannot fix costs in excess of the subordinate court scale. I agree with the Chief Justice that these two grounds of appeal also must fail.

I would dismiss the appeal with costs to the respondents.

**Waiyaki J:** I concur and have nothing to add.

*Appeal dismissed.*

For the appellants:
*D. N. Khanna* (instructed by *Khanna & Co*., Nairobi)

For the respondents:
*R. Kapila* (instructed by *L. Vadgama*, Nairobi)

## Choitram v Mystery Model Hair Saloon
[1973] 1 EA 140 (HCK)

| | |
|---|---|
| **Division:** | High Court of Kenya at Nairobi |
| **Date of judgment:** | 12 January 1973 |
| **Case Number:** | 38/1972 (20/73) |
| **Before:** | Sir James Wicks CJ and Simpson J |
| **Sourced by:** | LawAfrica |

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*[1] Rent restriction – Possession – Application for – Non-payment of rent – Some rent must be two months in arrear – Landlord and Tenant* (*Shops Hotels & Catering Establishments*) *Act* (*Cap. 301*), *s. 7* (*1*) (*b*) (*K.*).

*[2] Rent restriction – Possession – Application for – Persistent delay in payment of rent – What constitutes – Disputes with landlord no excuse – Landlord & Tenant* (*Shops Hotels & Catering Establishments*) *Act* (*Cap. 301*), *s. 7* (*K.*).

**Editor's Summary**

The appellant sought to terminate the respondent's tenancy on the grounds that the respondent had defaulted in the payment of rent and that the respondent had persistently delayed in paying rent. The notice was served 2 months less one day after the payment of rent had become due. Late payment of nine months' rent was proved, and at the date of the tribunal's order 9 months' rent was due.

The tribunal refused to terminate the respondent's tenancy and the appellant appealed, contending that the circumstances at the date of the tribunal hearing must be considered.

**Held –**

(i) some rent must be in arrear for two months before a notice can be issued (*Janmohamed Investments v. African Gramophone Stores* (3) followed).

(ii) the condition must be satisfied at the date of service of the notice;

(iii) disputes between the parties were no reason for late payment of rent;

(iv) the delays in payment were persistent;

(v) the tribunal has a discretion whether or not to terminate a tenancy on the ground of persistent delay in payment;

(vi) properly directed the tribunal must have terminated the tenancy, and an order for possession would be made.

Appeal allowed.

**Cases referred to in judgment:**

(1) *King v. Taylor*, [1955] 1 Q.B. 150.

(2) *Sevenarts v. Busvine*, [1969] 1 All E.R. 392.

(3) *Janmohamed Investments v. African Gramophone Stores*, [1972] E.A. 451.

**Judgment**

The following considered judgments were read. **Sir James Wicks CJ:** This is an appeal from the decision of the Business Premises Rent Tribunal Nairobi who found that the respondent had not defaulted in the payment of two months' rent, nor had the respondent persistently delayed in paying his rent after it became due and payable.

At the hearing before the tribunal there was a conflict whether or not certain rent had been paid on particular dates, but this was resolved when the respondent conceded that the statement of account put in evidence by the appellant was correct. The content of this statement was amply supported by other documentary

evidence. A notice was served by the appellant on the respondent dated 31 July 1970 and in their judgment the tribunal found that "by the time the notice was sent, rent for June had been paid, the rent for July, and August, 1970 was paid on 21 August 1970", and that a dispute as to the payment of the May rent was not resolved. These findings were not supported by the evidence from which it is clear that the rent for May 1970 was paid on 24 July 1970, that for June 1970 on 14 September 1970 and that for July and August 1970 on 16 September 1970. The relevant dates when rent was due, when it was paid, and the delay in payment was:

| *Due* | *Paid* | *Delay* |
|---|---|---|
| December 1969 | 19 November 1969 | None |
| 1 January 1970 | 15 January 1970 | 14 days |
| 1 February 1970 | 25 February 1970 | 24 days |
| 1 March 1970 | 6 April 1970 | 1 month 5 days |
| 1 April 1970 | 7 May 1970 | 1 month 6 days |
| 1 May 1970 | 24 July 1970 | 2 months 23 days |
| 1 June 1970 | 14 September 1970 | 3 months 13 days |
| 1 July 1970 | 16 September 1970 | 3 months 15 days |
| 1 August 1970 | 16 September 1970 | 2 months 15 days |

Late payment of rent then continued until 30 March 1972 when the judgment of the tribunal was delivered. At that time 9 months' rent, amounting to Shs. 9,000/-, was overdue and the parties are agreed that today 14 months' rent, including that due on 1 January 1972, amounting to Shs. 14,000/- is overdue.

The relevant part of s. 7 of the Landlord and Tenant (Shops, Hotels and Catering Establishments) Act (Cap. 301) which I will refer to as the Act, is:

> "7.(1) Where under section 4 of this Act a landlord has served a notice of termination of a controlled tenancy on the tenant, the grounds on which the landlord seeks to terminate such tenancy may be such of the following grounds as are stated in the aforesaid notice –
>
> (*b*) that the tenant has defaulted in paying rent for a period of two months after such rent has become due or payable or has persistently delayed in paying rent which has become due or payable."

The grounds relied on by the appellant in the notice served on the respondent were:

> "(*a*) That you have defaulted in paying rent for the months of June and July, 1970 after they had become due and payable.
>
> (*b*) That you have in the past persistently delayed in paying rent which had become due and payable."

Ground (*a*) comes within the first part of s. 7 (1) (*b*) of the Act and the allegation is that the respondent "has defaulted in paying rent (for June and July 1970) for a period of two months after such rent has become due or payable". The notice is dated 31 July 1970 and on the face of it the notice appears to be bad, for the reason that the June rent became due on 1 June and by 31 July there is default for a period of one month and 30 days only. Mr. Khanna, who appears for the appellant, in a lengthy and persuasive argument refers us to a number of authorities and relying on dicta in the case of *King v. Taylor*, [1955] 1 Q.B. 150 submits that the court, in this case the tribunal, must take into consideration the circumstances as they were before it. Here the rent was not paid on 1 July 1970 and the circumstances before the tribunal were that the respondent defaulted in paying the June and July

1970 rent for a period of two months after it became due and payable. With respect I cannot agree. In *King v. Taylor* reference

was made to the necessity of complying with the imperative language of a legislative provision, and in my view that applies in the case before us. S. 4 of the Act requires that a landlord, who wishes to terminate a controlled tenancy, “shall give notice in that behalf to the tenant in the prescribed form”. S. 7 requires prescribed grounds to be “stated” in the “notice” and one of the grounds is that the tenant has defaulted in paying rent “for a period of two months”. The wording of the Act is certain and allows of no variation – “two months” means two months and one month and 30 days of a month containing 31 days is less than two months with the result that the notice in respect of this ground is bad on the face of it.

Considering the second ground, that of persistent delay in paying rent which has become due or payable, I am satisfied that the term persistent delay involving an act or series of acts in relation to a requirement or series of requirements, each and every act is a matter of degree which must be considered by the court, with regard to the relevant circumstances, before it can be decided whether delay is persistent or not. That is, in determining whether or not delay is persistent, the court has a discretion.

Considering the ground of persistent delay in their judgment the tribunal found first that the dispute concerning the May 1970 rent was not resolved, second that in 1970 rent was paid on due months except the months of March, April, May and June when it was paid one month in arrears, third that there was a sum of Shs. 1,300/- which the respondent deducted without authority of the appellant, and fourth that the delay was due to constant quarrels between the parties. With respect to the tribunal the first three of these findings are not consistent with the evidence nor are any of them relevant circumstances resulting in delay not being persistent. The first finding, as I have said, is not supported by the evidence, which was that the May 1970 rent was paid on 24 July 1970, that is after a delay of two months and 23 days. The second finding also is not supported by the evidence which was that in addition to the delay resulting from the rents being paid in arrear, the March rent was paid after a delay of 5 days, the April rent 6 days, the May rent one month and 23 days and the June rent two months and 13 days. Far from the rent for the other months of 1970 being paid when due, the January rent was paid after a delay of 14 days, the February rent, 24 days and the July rent, 3 months and 15 days delay. The third finding that, the Shs. 1,300/- was deducted without authority was not a relevant circumstance excusing delay. Then the fourth finding of consistent quarrels between the parties, which were an untenable claim by the respondent that the rent was payable in arrear, that the tenant had expended sums of money on repairs, that he demanded that the appellant carry out improvements such as fitting security bars to the windows, that the respondent’s right of access to the premises had been interrupted and that the rent charged was excessive, were all matters regarding which, looked at in the most favourable light to the respondent, resulted from his being under a misapprehension that he was entitled to delay or withhold the payment of rent and none of them were relevant circumstances excusing delay. I am forced to the conclusion that had the tribunal properly found the facts and excluded from their consideration irrelevant circumstances they must have come to the decision that the respondent has persistently delayed in paying rent which has become due or payable. For these reasons the appeal must be allowed.

I would make the following orders against the respondent:

An unconditional order for possession of the premises against the respondent and any other persons whether or not they are tenants who are in occupation of the premises.

An order for the payment of arrears of rent and mesne profits in the amount

agreed by the parties to be owing up to 1 January 1973, that is Shs. 13,000/-, together with mesne profits at the rate of Shs. 1,000/- a month from the 1 January 1973 until possession given.

Costs of the proceedings before the tribunal and this court together with interest at court rates on the amount of rent owing, mesne profits and costs.

**Simpson J:** This is an appeal from a decision of the Business Premises Rent Tribunal ordering a notice of termination issued by the landlord to have no effect.

The notice issued under the provisions of s. 4 of the Landlord and Tenant (Shops, Hotels and Catering Establishments) Act (Cap. 301) sets out the following grounds on which termination is sought:

> "(*a*) That you have defaulted in paying rents for the months of June and July 1970 after they had become due and payable.
>
> (*b*) That you have in the past persistently delayed in paying rent which had become due and payable."

The notice is dated 31 July 1970.

The tribunal found on the evidence of the tenant that the first ground for determination failed. Mr. Khanna for the appellant contended that default in paying rent for a period of two months after it became due had incontrovertibly been established.

The landlord was relying upon s. 7 (1) (*b*) of the Act which provides:

> "Where under s. 4 of this Act a landlord has served a notice of termination of a controlled tenancy on the tenant, the grounds on which the landlord seeks to terminate such tenancy may be such of the following grounds as are stated in the aforesaid notice . . .
>
> (*b*) that the tenant has defaulted in paying rent for a period of two months after such rent has become due or payable or has persistently delayed in paying rent which has become due or payable."

The first of these two alternative grounds in paragraph (*b*) is failure to pay the rent due for any period within two months of the date on which such rent became due or payable.

The tribunal appears to have interpreted this paragraph otherwise but no other interpretation appears to me to be possible. It is quite clear from the judgment of Trevelyan and Muli, JJ. in *Janmohamed Investments v. African Gramophone Stores*, [1972] E.A. 451 that they were of the same view.

Default occurs when a payment is not made on the due date. If a tenant is one day late he has defaulted. It is obviously necessary to specify the period of the default which will entitle the landlord to seek termination of the tenancy. Two months is that period. The tenant does not have to be in default in payment of the rent for two separate months although in practice if a tenant is 2 months in arrears with rent for one month he will usually be in default in respect of the rent for the succeeding month since the landlord would appropriate the next payment to the earlier period.

If the default were in payment of two separate months' rent the landlord would be entitled to serve a notice of termination on the second day of the second month which I feel sure was not the intention of the legislature.

A notice of termination is good if it indicates with sufficient clarity the case which the tenant has to meet. (See *Sevenarts v. Busvine*, [1969] 1 All E.R. 392.) However even if one were to disregard the reference to July rent and the default

were to be taken to be failure to pay June rent for two months after it became due and payable two months had not elapsed by 31 July. The tenant could still have paid the June rent within the two months by paying it that day.

Mr. Khanna submitted that the proper date on which to consider the period of default is the date of hearing. He referred to a number of English authorities none of which however was relevant to default in payment of rent.

If a landlord seeks to terminate a tenancy on this ground the default must obviously have occurred before the date of his notice of termination. The expression used in the Act is “has defaulted” not “is about to default” and the tribunal regarding the matter at the date of hearing cannot disregard the notice and find that although the default alleged by the landlord had not occurred at the date of his notice it occurred subsequently and that therefore he is entitled to termination of the tenancy. Thus the first ground on which the landlord sought to terminate the tenancy is not a valid one.

Mr. Khanna, sensing in the course of his argument that the court was tending towards this view changed his ground and submitted that since the case had proceeded on the basis that the notice was valid in the absence of a cross-appeal we were not entitled to consider the validity of the notice. It would however be absurd to consider the evidence relating to the notice and conclude that, the tribunal having misdirected itself thereon, default had been established if the notice was patently invalid.

The second ground on which termination was sought was founded on a statement of account produced by the landlord. Rent which was payable in advance was paid consistently late for the months of January to July 1970 inclusive. January rent was paid on 15 January, February rent on 25 February, March rent on 6 April, April rent on 7 May, May rent on 24 July, June rent on 14 September and July rent on 16 September.

This account was admitted by the tenant to be correct. Even if the alternative account put in by the tenant had been correct, as the tribunal seemed to think in spite of the tenant’s admission, payment of rent for each of these six months is shown thereon to have been considerably delayed.

The tribunal seemed to be of the impression that as long as rent was paid during the current month no delay had occurred and while finding that delays had occurred in the months of March, April, May and June continued in their judgment:

> “The delay in payment of rent can be explained by the dispute as to May 1970 rent and also the tenants deciding to withhold Shs. 1,300/- awarded in case No. 226/70. Further in evidence, the tenant stated that the delay was due to constant quarrels with the landlord which is evident by the number of cases between the same parties which have been and are before the Tribunal.”

It is clear from the correspondence that the dispute as to May 1970 rent arose some 2 months after payment was due and that the allegations of payment made by the tenant’s advocate were in any event false.

Rent is payable free from deductions or set-off and the tenant was not entitled to withhold Shs. 1,300/- awarded to him by the tribunal. Indeed before the date of their judgment this award had already been set aside by the High Court.

Constant quarrels with the landlord cannot justify delays in payment of rent. On the contrary the fact that the tenant laid the blame for delayed payment on these quarrels serves to emphasize the deliberate nature of the delays.

I am unable to accept the view canvassed by Mr. Khanna that the tribunal

has no discretion. The tribunal must have discretion to determine whether or not having regard to all the relevant circumstances the periods of delay and the number of delayed payments amount to persistent delay.

In my opinion the delays in this case quite clearly came within the meaning of the word "persistent". There was ample and indeed overwhelming evidence that the respondent had persistently delayed in paying rent which was due and payable. The tribunal misdirected themselves not only on the facts but also as to the circumstances which might properly be taken into account. I would allow the appeal and I agree with the orders proposed by the Chief Justice.

*Appeal allowed.*

For the appellant:
*D. N. Khanna* (instructed by *Khanna & Co.*, Nairobi)

For the respondent:
*Kamau* (instructed by *Kamau & Co.*, Nairobi)

## Virji and others v Sood
[1973] 1 EA 145 (HCK)

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| **Division:** | High Court of Kenya at Nairobi |
| **Date of judgment:** | 10 July 1972 |
| **Case Number:** | 1536/1970 (22/73) |
| **Before:** | Trevelyan J |
| **Sourced by:** | LawAfrica |

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*[1] Advocate – Privilege – Professional communication – Confidential & for purpose of obtaining advice – Evidence Act* (*Cap. 80*), *s. 134* (*K.*).

**Editor's Summary**

Objection was taken to an advocate giving evidence that he had been instructed by the defendant to communicate with the advocate for the plaintiff.

**Held –**

(i) only communications between a client and an advocate confidentially and with a view to obtaining advice are privileged;

(ii) that the advocate had been instructed to communicate with the other side could not be privileged.

Order accordingly.

**No cases referred to in judgment.**

[The Evidence Act (Cap. 80), s. 134 is as follows:

134 (1) No advocate shall at any time be permitted, unless with his client's express consent, to disclose any communication made to him in the course and for the purpose of his employment as such advocate, by or on behalf of his client, or to state the contents or condition of any document with which he has become acquainted in the course and for the purpose of his professional employment, or to disclose any advice given by him to his client in the course and for the purpose of such employment:

Provided that nothing in this section shall protect from disclosure:

(*a*) any communication made in furtherance of any illegal purpose;

(*b*) any fact observed by any advocate in the course of his employment as such, showing that any crime or fraud has been committed since the

commencement of his employment, whether the attention of such advocate was or was not directed to the fact by or on behalf of his client.

(2) The protection given by subsection (1) of this section shall continue after the employment of the advocate has ceased.]

**Judgment**

**Trevelyan J:** One of the questions in this case is whether an advocate Mr. R. D. Patel was, or was not, acting for the defendant Mrs. Sood, in connection with a letter of demand which she received from the plaintiffs' advocates. He says that he was, and she says that he was not. When Mr. Patel went into the witness box, Mr. Khanna, representing Mrs. Sood, said that he objected to him giving any evidence at all because it would be unethical of him to do so. Mr. Khanna took his stand on s. 134 of the Evidence Act and I asked whence it derived. I was told that except for the word "advocate" for "barrister, attorney, pleader or vakil" it was the same as s. 126 of the Indian Evidence Act.

Our section provides that an advocate is not permitted, without his client's express consent, to disclose any communication made to him in the course and for the purpose of his employment as such by or on behalf of his client, or to state the contents or condition of any document with which he has become acquainted in the course and for the purpose of his professional employment, or to disclose any advice given by him to his client in the course and for the purpose of such employment. As I said, our section derives from India, but the "law relating to professional communications" says Sarkar On The Law of Evidence (10th ed.) on p. 1080 "is the same in India as in England. S. 126 is taken from Taylor s. 832 and in interpreting it, the court may refer to English cases". I have read what Phipson on Evidence, (11th ed.) has to say about "Facts excluded by privilege" beginning on p. 247 in relation to the law in England but feel that I need say nothing more about it, for the decisions and views which have for very many years been given and expressed about the Indian re-statement of the law are in line therewith and are sufficient for my purpose. And, having referred thereto, Mr. Khanna's interpretation of our section is unacceptable to me.

I do not doubt that not every communication made by a client to his advocate is privileged. Ratanlal and Thakore on the Law of Evidence (11th ed.) says, on p. 257, that the "word 'disclose' shows that the privileged communication must be of a confidential or private nature. . . . The privilege extends only to communications made to him confidentially, and with a view to obtaining professional advice" and Sarkar, on p. 184, says the same thing. He says that to be privileged the communication must be of a confidential or private nature and that the section has no application where the statement is made not confidentially but for the purpose of communication.

What is the case here? We are concerned to know whether or not Mr. Patel was instructed by Mrs. Sood to act for her and to agree to an arbitration, and there is nothing private or confidential about that. Mr. Patel says that she brought him a letter of demand, he got the background of the case, and he telephoned Mr. da Gama Rose in Mrs. Sood's presence to indicate that the matter could be settled. Whatever else could be disputed, that communication cannot as I think, be challenged on the ground of privilege. But, we are not concerned with any communication made by Mrs. Sood to Mr. Patel confidentially and with a view to obtaining professional advice, and so no question of privilege arises.

It was put to me that as Mr. Patel says that he was Mrs. Sood's advocate, then, even if he were not, his evidence must be treated on the basis that the section applies to his evidence. But it was also put to me that as Mrs. Sood says that Mr. Patel was not her advocate, the section does not apply. It sounds

complicated but it is not. At the appropriate time and to the extent that may be required, I shall decide this question. Then, if it is my view that Mr. Patel was not Mrs. Sood's advocate, the section will be inapplicable for anything she said to him will not have been "in the course and for the purpose of his employment" as her advocate. On the other hand if he was her advocate then the section will apply.

*Order accordingly.*

For the plaintiffs:
*M. da Gama Rose* (instructed by *Shapley Barret Ennion Marsh & Co*., Nairobi)

For the defendant:
*D. N. Khanna* (instructed by *Khanna & Co*., Nairobi)

## Income Tax v Rasiklal
[1973] 1 EA 147 (CAD)

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| **Division:** | Court of Appeal at Dar es Salaam |
| **Date of judgment:** | 18 July 1972 |
| **Case Number:** | 17/1972 (115/72) |
| **Before:** | Sir William Duffus P, Spry VP and Mustafa JA |
| **Sourced by:** | LawAfrica |
| **Appeal from:** | The High Court of Tanzania – Biron, J. |

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*[1] Income Tax – Allowance – Child allowance – Taxpayer maintaining brother and sisters in India – Brother and sisters in custody of tax payer – East African Income Tax Management Act* (*Cap. 24*), *s. 44.*

**Editor's Summary**

The High Court held that the respondent was entitled to child allowance in respect of his brother and sisters maintained by him the responsibility for whom had been delegated to him by his parents.

The appellant appealed, contending that the respondent was not maintaining his brother and sisters, and they were not in his custody.

**Held –**

(i) the judge found as a fact that the respondent was maintaining his relatives and this could not be challenged on appeal;

(ii) the evidence sufficiently showed that the respondent had custody of his relatives.

Appeal dismissed.

**No cases referred to in judgment.**

[Decision of the High Court [1972] E.A. 150 upheld.]

**Judgment**

The following considered judgments were read. **Spry VP:** This is an appeal from a judgment of the High Court, dismissing an appeal by the Commissioner General of Income Tax against the decision of a Local Committee.

The facts are simple. The respondent has a brother and three sisters who live with his parents in India. They are attending full time education. The brother and two of the sisters were over 19 years of age and the other sister below 19 for the year of income with which we are concerned. During that year, the respondent

remitted Shs. 500/- a month for the maintenance of his parents and his brother and sisters. The respondent's father is elderly, blind and unwell.

The respondent claimed to be entitled to child allowances under s. 44 of the East African Income Tax Management Act. In support of his claim, he produced evidence to prove his remittances, a certificate by the Honorary General Secretary of the Shree Hindu Mandal of Dar es Salaam that the children were "under the custody and maintenance" of the respondent and an affidavit by the respondent's parents that on account of their age, ill-health and lack of means they had "fully delegated . . . the full responsibility of care, maintenance, brought up and welfare" of the children to the respondent.

The judge held that although the respondent "cannot be said to have physical custody of the children", they were "according to the custom of the community to which they belong" in his custody and he was entitled to the child allowances in respect of them.

Mr. Khaminwa, for the Commissioner-General, has attacked this decision on three grounds.

In the first place, Mr. Khaminwa argued that the respondent was not really maintaining his brother and sisters. What he was doing, was maintaining his parents, a duty imposed on him by Hindu law, and they were maintaining their children, again in accordance with Hindu law. With respect, I do not think this argument can be sustained. The judge found as fact that the respondent was maintaining his brother and sister and there was evidence on which he could reach that conclusion. It seems to me that this is a matter of fact and therefore that the judge's decision on it is final, as an appeal only lies to us on questions of law and mixed fact and law.

Secondly, Mr. Khaminwa attacked the certificate by the Secretary of Shree Hindu Mandal. He submitted that what the Secretary ought to have done, was to testify to the existence of a particular custom. It would then have been for the respondent to prove as fact that such custom applied in the circumstances. Mr. Khaminwa claimed that by certifying that the children were in the custody of the respondent, the Secretary has usurped the function of the court, since that was the question that had to be decided, and that by accepting and relying on that certificate, the judge had abdicated his responsibility. Academically, I think there is merit in argument, but in fact the certificate seems to have been treated merely as evidence of the existence of a custom under which the respondent had custody. As such it was never challenged and, indeed, seems to have been put in by consent.

Thirdly, and this was, I think, his main ground, Mr. Khaminwa argued that the established facts pointed to maintenance but not to custody. He submitted that custody must be more physical, must involve a concern with day-to-day needs and matters such as morality and physical health. He pointed out that prior to 1965, the Act only required proof of maintenance and that in that year the Act was amended to introduce the element of custody.

The respondent, who was unrepresented throughout, informed the Local Committee that he had gone to India to organise the schooling of his brother and sister and that he had brought one of his sisters to this country to arrange for her marriage. In the High Court, he added that under the customs of his community, the responsibilities of his parents devolved on him as the eldest son, when through age and ill-health they became incapable of performing them.

I think Mr. Khaminwa is correct when he argues that the payment of money alone is not enough to entitle a taxpayer to the child allowance provided for. It would have been enough before 1965 but now something more is necessary to satisfy the requirement of custody. I do not propose any definition of "custody"

in this connection: I think each case must be decided on its own particular facts. Here, we are told that the "children" in question ranged in age at the relevant time from 25 to 18 years. It seems to me that when you are dealing with young persons of that age, you must apply rather different criteria from those commonly applied in matrimonial proceedings to much younger children.

The evidence in the present case falls short of what is desirable, but there is the affidavit of the parents that they had delegated their responsibilities to their eldest son, the respondent, and the certificate of the Secretary of the Shree Hindu Mandal, from which it is reasonable to infer that such a delegation was recognised by the Hindu Community. It is admitted that the respondent made regular payments to support his parents and his brother and sister and to pay for the education of the latter. There is no suggestion that the parents had any other source of income. It is not disputed that the respondent arranged for that education and for the marriage of one of his sisters. This last fact, in particular, seems to me to be the act of a person having custody.

Mr. Khaminwa has argued persuasively and very fairly, but for my part I am not persuaded that the judge was wrong. There was, in my opinion, evidence on which he could find that the respondent had custody of his brother and sisters and I do not think there is anything in the record that would justify our interfering. I would dismiss the appeal.

**Mustafa JA:** I agree.

**Sir William Duffus P:** I also agree. The appeal is accordingly dismissed.

For the appellant:
*J. M. Khaminwa* (Deputy Counsel to the Community) and *G. H. Kaunda* (Assistant Counsel)

The respondent appeared in person.

## Aggarwal and others v Patel and others
[1973] 1 EA 149 (HCK)

| | |
|---|---|
| **Division:** | High Court of Kenya at Nairobi |
| **Date of judgment:** | 24 May 1972 |
| **Case Number:** | 1074/1970 (29/73) |
| **Before:** | Miller J |
| **Sourced by:** | LawAfrica |

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*[1] Limitation of Actions – Defamation – Transitional provisions – Cause of action prior to enactment of Act – When proceedings barred – Limitation of Actions Act* (*Cap.* 22) (*K.*), *Defamation Act* 1970, *ss.* 19, 20 (*K.*).

**Editor's Summary**

An alleged libel was published on 9 October 1969. On 16 June 1970 the Defamation Act 1970 was assented to, but its date of commencement was 1 January 1970. By s. 20, the Limitation of Actions Act was amended to reduce the period of limitation to one year and by s. 19 (1) it was provided that

the Act applied to all proceedings begun after its commencement whenever the cause of action arose.

The suit was filed on 13 November 1970 and the defendants contended that it was barred by effluxion of time.

**Held –**

(i) The Defamation Act 1970 and the Limitation of Actions Act have to be read together;

(ii) the combined effect of the Acts was to bar the proceedings one year after the alleged cause of action had arisen.

Suit dismissed.

**Cases referred to in judgment:**

(1) *R. v. Loxdale* (1758), 1 Burr 445.

(2) *Goldsmiths Co. v. Wyatt*, [1907] 1 K.B. 95; [1904-7] All E.R. Rep. 542.

(3) *Attorney-General v. Prince Ernest Augustus of Hanover*, [1957] A.C. 436; [1957] 1 All E.R. 49.

(4) *Robinson v. Unicos Property Corporation*, [1962] 2 All E.R. 24.

**Judgment**

**Miller J:** The three plaintiffs sued the defendants for libel and/or slander praying damages and costs of the suit. The filed defence having raised a point of law, by consent of the parties and under the provisions of O. 6, rr. 27 and 18 the following question has been set down for hearing and disposal before the hearing of the suit:

> "Whether the Plaintiff's cause of action, if any, which arose on 9 October 1969 and which had accrued to them before 17 June 1970, the date of commencement of the Defamation Act, 1970 and then the subject of a limitation period of three years, under Section 4 (2) of the Limitation of Actions Act, 1968, expiring on 8 October 1972, became barred by limitation on 8 October 1970, under and by virtue of Section 20 of the Defamation Act, 1970, which commenced on the 1 January 1970 and which was not assented to until 16 June 1970, or published until the 17 June 1970."

The two immediately relevant statutory provisions are:

S. 4 (2) Limitation of Actions Act:

> "An action founded on tort may not be brought after the end of three years from the date on which the cause of action accrued."

S. 20, Defamation Act 1970:

> "Subsection (2) of Section 4 of the Limitation of Actions Act, is hereby amended by the addition thereto of the following:
>
> Provided that an action for libel or slander may not be brought after the end of twelve months from such date."

In the suit the alleged cause of action took place on October 1969 and action was filed on 13 November 1970, the Defamation Act 1970 having been already published on 17 June 1970. It would therefore appear that with respect to the publication of the Defamation Act the plaintiffs were given roughly five months within which time to bring themselves within the purported intendment of the amendment created by the Defamation Act. It would be observed that the amendment by the Defamation Act apart, the plaintiffs' suit was filed thirteen months after the date of the alleged cause of action, the very situation which the amendment under consideration seeks to avert or stamp out. If I correctly understand the contention of counsel for the plaintiffs he is saying that despite the purported amendment by the Defamation Act the plaintiffs still have until 8 October 1972 before their action can be statute-barred. He puts it this way:

> "The cause of action is governed by the Limitation Act unaffected by the amendment of 1970."

In support he pointed to s. 19 (1) of the Defamation Act and submitted that –

> "The Limitation Act as amended could not come within the phrase 'This Act'."

S. 19(1) provides:

> "This Act applies for the purposes of any proceedings begun after the commencement of this Act, wherever the cause of action arose, but does not affect proceedings begun before such commencement."

For some reason which with due diligence and with respect I have been unable to discern, counsel for the plaintiffs in support of the submission immediately above or with respect to his other submissions on this matter cited the case *Robinson v. Unicos Property Corporation*, [1962] 2 All E.R. 24. He however went on to conclude the first limb of his submissions by saying: "The basis on which the claim is made is the cause of action hence s. 19 (1) (above) must be looked at." The Court is in perfect agreement with this precatory suggestion and will proceed to comply. In the first place however, and looking at the context of s. 19 (1), I would prefer for purposes of simplicity and guidance to extend the phrase "This Act" by including the next following word i.e. "applies" and it is not in my view difficult to see in the verbiage of the subsection after the said word "applies", that "any" which includes "all" proceedings begun after the commencement of the Act "whenever" their causes of action arose have been limited and controlled by the date of the commencement of the Defamation Act 1970. Counsel for the plaintiffs stressed the importance of distinguishing "cause of action" from "procedure" and rightly so; but I find that s. 19 (1) of the Defamation Act reproduced above contemplates both the particular cause of action as well as the proceedings consequent thereon. Counsel for the plaintiffs also adduced a wealth of profound and scholarly submissions treating principally of questions of retrospective and retroactive legislation, the powers of Parliament, with respect to the same within and under the provisions of the Constitution and the fact that the date of commencement of the Defamation Act 1970 was 1 January 1970 when the date of assent was 16 June 1970.

In this latter regard I am one with the plaintiffs' counsel that in those circumstances there is at least much prima facie ground for a second look in order to ascertain how the rights of the subject might be affected. It is perfectly clear that despite the omnipotence of Parliament retrospective or retroactive legislation must be matters of positive legislative intendment and enactment. I am however not convinced that the instant case evokes these considerations as counsel for the plaintiffs would have the Court believe. He laid much and laudible stress on a series of aspects of legislative powers and the provisions of the Constitution; a very heartening exercise if I might say so; but I am not convinced that he was saying that at least from the date of the publication of the Defamation Act i.e. 17 June 1970 the Act and its amending purports constituted ineffective law either on the basis of legislative authority in the Act per se or under the Constitution. I must digress for a moment yet keeping in mind the valid request of counsel for the plaintiffs that s. 19 (1) of the Defamation Act be looked at as a matter of necessity, direction or compulsion. I crave to adopt the words of Viscount Simonds in *Attorney-General v. Prince Ernest Augustus of Hanover*, [1957] A.C. 436 at p. 461:

> "I conceive it to be my right and duty to examine every word of a statute in its context, and I use the word 'context' in its widest sense . . . as including not only the enacting provisions of the same statute, but its preamble, the existing state of the law, other statutes in pari materia, and the mischief which I can, by those and other legitimate means, discern the statute was intended to remedy."

To a lesser degree yet relevant, I also crave to adopt the dictum of Lord Mansfield in *R. v. Loxdale* (1758), 1 Burr, 445, adopted in *Goldsmiths Co. v. Wyatt*, [1907] 1 K.B. 95 even if counsel sought to distinguish ambiguity from mere inconsistency:

> "Where there are different statutes in pari materia, though made at different times, or even expired and not referring to each other, they shall be taken and construed together, as one system and as explanatory of each other."

Lastly I wish to draw attention to the following comment in Maxwell on Interpretation of Statutes, Eleventh Ed.: p. 308 under the hearing "Alteration of Law Intended":

> "In all these cases, no reference unnecessarily arose that the legislature intended to alter the law and to make it as it was alleged to be. A different effect, however, would be given to an Act which showed, *whether by recital or enactment that it intended to effect a change*. If the intention is manifested in words competent to make the law in future, there is no principle which can deny them this effect."

I feel myself compelled to refer to the preamble of the Defamation Act, 1970 which even though perhaps of limited aid did escape the attention of counsel on both sides. It recites:

> "An Act of Parliament to consolidate and amend the statute law relating to libel, other than criminal libel, slander and other malicious falsehoods."

In my view the phrase "consolidate and amend" must also be looked at. True it is that upon examination of several of our statutes the use of the same phrase has not been followed up by the drafting exactitudes as can be seen in the statutory "consolidating" enactments of some other jurisdiction; it is nevertheless in my view correct to say, that the preamble above adequately portrays the intention of the legislature. The words "to consolidate" are self-explanatory and must relate to some of the delicate arguments of the plaintiffs' counsel which with respect, attacked form rather than substance when the two Acts under review are examined. I am of the humble opinion that at least for purposes of the instant inquiry the Limitation Act 1968 and the Defamation Act 1970 must be read together as if they were one and the same Act.

I have seriously contemplated probabilities arising from the fact that the date of assent of the Defamation Act is roughly five and one half months later than the date of commencement of the Act itself thereby following in the footsteps of the Limitation Act 1968 by a difference of about a month and a half in the two signal dates of the respective Acts. There is no doubt, understandable reasons for this with which the Court is not immediately concerned. It remains a fact in this inquiry, that alleged departure from formal sequences in legislative precision accepted as having reasonably been shown, the legal efficacy of the relevant amending purports of the Defamation Act 1970 were clearly and fully operative as from 17 June 1970. The plaintiffs if I may use a common saying, had roughly five months in which "to put their house in order" and they apparently failed to do so and now come to Court insisting upon what they understand or what the legislature ought to have done to cater for laches and the like by would-be litigants within the ambit of the laws of defamation and limitation of actions. Be that as it may, my decision is based largely on principles of interpretation of the relevant statutes and the guiding principles and expositions above; and the Court rules that – the plaintiffs' cause of action became barred by limitation on 8 October 1970 by virtue of the provisions of the Defamation Act 1970 in conjunction with the relevant provisions of the Limitation Act 1968.

*Order accordingly.*

For the plaintiffs:
*D. N. Khanna* (instructed by *Khanna & Co*., Nairobi)

For the defendants:
*J. A. Couldrey* (instructed by *Kaplan & Stratton*, Nairobi)

## Republic v Kadhi, Kisumu Ex Parte Nasreen

# [1973] 1 EA 153 (HCK)

| | |
|---|---|
| **Division:** | High Court of Kenya at Nairobi |
| **Date of judgment:** | 9 December 1971 |
| **Case Number:** | 353/1970 (30/73) |
| **Before:** | Harris J |
| **Sourced by:** | LawAfrica |

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*[1] Constitutional Law – Fundamental rights – Personal liberty – Order of court to secure fulfilment of legal obligation – No legal obligation of wife to remain with husband – Constitution, s.* 72 (*K.*).

*[2] Constitutional Law – Fundamental rights – Freedom of movement – Infringed by order on wife to return to husband – Constitution, s.* 81 (*K.*).

*[3] Constitutional Law – Fundamental rights – Servitude – Constituted by order on wife to return to husband – Constitution, s.* 73 (*K.*).

*[4] Jurisdiction – Kadhi's Court – Judgment, enforcement of – Court has powers of enforcement – Kadhi's Courts Act* (*Cap.* 11), *s.* 8 (*K.*). *Civil Procedure* (*Revised*) *Rules* 1948, *O.* 21 (*K.*).

**Editor's Summary**

The interested party and the applicant were muslims and husband and wife.

The interested party applied in the Kadhi's Court for an order for restitution of conjugal rights which was granted. Thereafter on his application the applicant was arrested and brought before the resident magistrate.

The applicant then applied for an order for certiorari to quash the order of the Kadhi's court on the grounds, firstly that the Kadhi's courts have no powers of enforcement, that there is no power to order the return of a wife to her husband, that the order infringed the applicant's constitutional right to personal liberty and freedom of movement and finally had the effect of unconstitutionally holding her in servitude.

**Held** –

(i) the powers of enforcement of an order given in the Civil Procedure Rules apply to Kadhi's Courts;

(ii) a person may be deprived of his personal liberty in the execution of the order of a court made to secure the fulfilment of an obligation imposed by law;

(iii) there is no obligation on a wife to remain with her husband (*The Queen v. Jackson* (1) followed);

(iv) accordingly the order unconstitutionally deprived the applicant of her liberty;

(v) the applicant's right of freedom of movement was in this case coterminous with her right to liberty and was also infringed by the order;

(vi) the effect of the order was to hold the applicant in servitude.

Judgment for the applicant.

**Cases referred to in judgment:**

(1) *The Queen v. Jackson*, [1891] 1 Q.B. 671.

(2) *Sheriff Abdulla bin Mohamed v. Zuena binti Abedi* (1912), 4. E.A.L.R. 86.

(3) *Place v. Searle*, [1932] 2 K.B. 492.

(4) *Farmers Bus Service v. Transport Licensing Appeal Tribunal*, [1959] E.A. 779.

**Judgment**

**Harris J:** This is an application by motion for an order of certiorari to remove into this court and quash a judgment and decree given and issued by the Kadhi's Court at Kisumu in Civil Case 62 of 1969 in that court.

The suit purports to be framed on the lines indicated by the Court of Appeal for Eastern Africa in *Farmers Bus Service v. Transport Licensing Appeal Tribunal*, [1959] E.A. 779, by naming the Republic as the appellant, the Kadhi as the respondent, the person in whose favour the judgment and decree under challenge were made as the "interested party", and the challenger as the applicant. This entailed no inconvenience in the initial stages of the proceedings when the respondent was represented by an independent advocate, but subsequently the Attorney-General agreed to grant him legal aid which has led to the position that, despite the Republic being named as appellant, the respondent is represented by State Counsel. This situation is both unreal and undesirable. As these proceedings progressed, however, the appellant as such took no part, and the matter developed into a contest between the applicant on the one hand and the Kadhi (represented by State Counsel) and the "interested party" on the other hand. In the result the questions at issue had been adequately dealt with in argument and the Court has been enabled with the assistance of counsel to arrive at a decision, but nevertheless the procedural position which developed was unsatisfactory and I would invite the Rules Committee to give the matter its consideration.

The proceedings in the Kadhi's Court were brought by the "interested party" as plaintiff (to whom for convenience I will refer by that description) against the applicant's uncle, as the first defendant, her mother as the second defendant, and the applicant herself (who is the plaintiff's wife) as the third defendant. In that suit the plaintiff sought an order of the Kadhi's Court requiring that the applicant be returned to him together with the child of the marriage and certain gold ornaments.

There is clearly a long and controversial story behind these proceedings but it is sufficient for present purposes to commence with a document dated 20 April 1969, drawn up by the plaintiff in his own handwriting, signed by the applicant and countersigned by the plaintiff. This document, which was apparently executed shortly before the applicant gave birth to the child of the marriage, is in the following terms:

Promissory Note

An Agreement on 20 April 1969

Nasreen Almas w/o N. H. Khan

1. Ten days after giving birth I will come back to my husband NAZIR HUSSEIN KHAN.
2. I will stay wherever my husband will stay.
3. I will not listen to any things against my husband from my mother and my uncle.
4. I cannot blame my husband ever.
5. I will 100% come back to my husband.
6. I cannot brake this agreement.

Name in full:

Nasreen Almas Khan

20/4/69 (Sgd)

Nasreen Almas

(Sgd) N. H. Khan

7. If brake this agreement my husband can take me by force can file suit against me.

Nasreen Almas Khan

20/4/69 (Sgd) Nasreen Almas

(Sgd) N. H. Khan

8. Any child (boy or girl) my husband can take "on demand" even if the child is under age of six month and also my husband can claim all expenses from me.

Nasreen Almas Khan

20/4/69 (Sgd) Nasreen Almas

(Sgd) N. H. Khan.

Although this document is not specifically referred to in the judgment of the Kadhi's Court the plaintiff admitted in this court that, having drawn it up himself and having had it signed by the applicant, he handed it into the Kadhi's Court after the conclusion of the evidence of the applicant and the other witnesses in that Court but before judgment was delivered and that the Kadhi placed it on his file. The irregularity of such a course, if in fact it was adopted, needs no emphasis.

Furthermore the very authenticity of the document is open to question for it appears from what has been disclosed in this Court that the explanation of its peculiar tripartite form may be that the plaintiff induced the applicant to sign her name in three places on a piece of blank paper and then himself wrote out above and between her three signatures the terms of the agreement, subsequently adding his own signatures. Since, however, the evidence on this point was not entirely conclusive I make no finding thereon.

Whatever may have been the nature and effect of the arrangement made in April 1969 the difficulties between the parties remained unsolved, and in this court the plaintiff said that he filed the proceedings in the Kadhi's Court because of certain correspondence which he had received including a letter dated 16 September 1969 from the Kadhi himself. This letter, which was put in evidence, was addressed to the first defendant with a copy to the plaintiff and is in these terms, the applicant being referred to therein, inadvertently it would seem, as the first defendant's daughter:

> "Mr. Nazir Hussein of Malakisi has approached me complaining that in the month of April, 1969, you together with four others went to Malakisi and requested Mr. Nazir to allow you take to his wife with you and promised him to take his wife soon after she had delivered. On the 8th day of June, 1969, the said Nazir came to Nairobi just to see his wife who had delivered and prepared to take away his wife with him on 25/6/69, but you refused to allow him to do so and up to now, you do not want him to take his wife in her lawful domicile.
>
> According to the Marriage Certificate No. 154 of 1968, your daughter was married to the complainant on 18/8/68, and as such, you should not have detained the wife without any reasonable cause.
>
> I therefore instruct you to return the said Nasrin to her husband within the period of 14 days from the date of this letter or I will allow the complainant to file his Suit which may result with a number of inconveniences."

Since this letter clearly indicates that it was written in response to an approach made to the respondent by the plaintiff it is unfortunate that the claim when subsequently filed should have come for hearing before the respondent personally

and the better course would have been for the respondent either to have declined to intervene between the parties in the first instance or, having intervened, to have arranged that the suit be heard by some other Kadhi.

In his plaint, which was filed on 11 November 1969, the plaintiff made assertions and claimed relief to the following effect:

(1) that he is the lawful husband of the applicant, they having been married in accordance with Muslim law;

(2) that the first and second defendants had jointly prevented the applicant from returning to the plaintiff with the latter's child and his golden ornaments, contrary to Muslim law;

(3) that the applicant had been taken from the plaintiff's house and that a promise by the first and second defendants to return her had not been honoured;

(4) that the plaintiff now sought that the applicant, the child and the golden ornaments should be returned to him.

In a joint statement of defence filed in December 1969 the first and second defendants said that the applicant was an adult woman, capable of making her own decisions, and they denied having prevented her from joining the plaintiff.

The applicant in her statement of defence, also filed in December 1969, raised three matters:

(*a*) that having been married to the plaintiff in accordance with Muslim law and the latter having failed to pay an agreed dowry of Shs. 10,000/-, she was entitled in law to refuse cohabitation with him until payment;

(*b*) that on 8 August 1968 the plaintiff had divorced her in accordance with Muslim law and therefore she was no longer his wife; and

(*c*) that he had been guilty of persistent cruelty to her and that cohabitation by her with him would be prejudicial or dangerous to her health and safety.

The Kadhi, having heard evidence on both sides, gave judgment on 20 January 1970, holding that the marriage was subsisting, directing the applicant to return to the plaintiff with their child and the jewellery and gold which he had sent to her, and ordering that, since the first defendant had played a great part in preventing the applicant from returning to the plaintiff, all the costs of the suit should be borne by him. The decree issued in respect of this judgment, however, directed instead that the costs of the proceedings, assessed at the substantial sum of Shs. 2,895/-, should be paid by the applicant, and the decree would appear to be to that extent irregular.

Some weeks after the hearing the plaintiff, on 23 February 1970, applied to the Kadhi's Court for a direction that the applicant be requested to "accompany" him and that the first defendant be instructed to pay all the plaintiff's costs in accordance with the judgment amounting to Shs. 2,895/-. This application resulted in a curious order being made provisionally fixing the costs at that sum and directing that decrees therefor be served upon both the applicant and the first defendant. On the same day there was signed a decree ordering the applicant to return to the plaintiff and to "pay" to him "his jewellery and a child" and also to pay him the sum of Shs. 2,895/- for costs.

The subsequent proceedings are to some extent enshrouded in doubt but it appears that a warrant was issued for the arrest of the applicant which resulted in her being brought under arrest before the resident magistrate at Nairobi on 15 March 1970. The magistrate directed that she be released on bond and subsequently this court, on 19 March, gave her leave to bring the present proceedings.

In the meantime, with a view to appealing against the decision of the Kadhi's Court, she applied to that court through her advocates on 23 January 1970 for a certified copy of the judgment and an uncertified copy of the proceedings. By the end of February, however, the only paper received by them was an uncertified copy of the decree which they later returned for certification in accordance with the Evidence Act. As a result of this delay they decided to seek a remedy in certiorari and the relief now sought by the applicant is, as already stated, an order of certiorari to remove into this court and quash the judgment and decree of the Kadhi's Court ordering her return to the plaintiff.

The grounds upon which this relief is sought, as set out in the applicant's statement filed pursuant to O. 53, r. 1 (2) are:

"(*a*) that the applicant is of full age and left her husband because of his cruelty to her;

(*b*) that the applicant has at all times refused to return to her husband;

(*c*) that the parties are Sunni muslims;

(*d*) that an order for the return by force of any woman to her husband is unconstitutional as being contrary to the provisions guaranteeing the freedom of the individual;

(*e*) that the orders for the return of the child of the marriage and the parties' ornaments were consequential on the improper order for the return of the applicant and were not made after any finding on the welfare of the child or the ownership of the ornaments;

(*f*) that there was no finding by the Kadhi on the allegation by the applicant that the Shs. 10,000/- prompt dower had not been paid by the husband, and that there was no obligation to cohabitation on the part of the applicant."

These grounds were supported by an affidavit of the applicant in which she stated as follows:

"(1) I am the wife of Nazir Hussein Khan of Malakisi, Bungoma.

(2) I am 23 years old. I left my husband because of his cruelty to me.

(3) This is the reason I refuse to return to my husband.

(4) The hearing of the case in Kisumu was fixed for a date when my then advocate Mr. Akram could not be present.

(5) I attended and explained matters to the Kadhi.

(6) I believe he gave judgment forcing me to return to my husband although I have never seen the judgment or a record of the proceedings.

(7) On Saturday, 15 March 1970 I was arrested and brought before the resident magistrate, Nairobi, on a warrant issued by the Kadhi's Court.

(8) I refuse to return to my husband and I have committed no crime justifying interference with my liberty."

For the applicant it was conceded that both she and the plaintiff confess the Muslim religion and that under s. 5 of the Kadhi's Courts Act (Cap. 11) the Kadhi's direction that the marriage subsisted is valid. It was also conceded for the purpose of the case that the Muslim law in its ancient form may have permitted the issue of an effective direction to a wife to return to her husband but it was contended that the law of Kenya does not allow of this.

Counsel for the applicant bases his case upon three main propositions, namely:

(1) that the jurisdiction conferred by the Kadhi's Courts Act for the determination of rights does not in general include powers of enforcement;

(2) that in view of the rights of a wife in relation to her husband at common law a Kadhi's Court has no jurisdiction enabling it to direct that a wife should return to her husband; and

(3) that any law which might purport to confer such jurisdiction would be contrary to the provisions of the Constitution and therefore invalid.

S. 66 (5) of the Constitution and s. 5 of the Kadhi's Courts Act declare that the jurisdiction of a Kadhi's Court shall be "the determination of questions of Muslim law relating to personal status, marriage, divorce or inheritance in proceedings in which all the parties profess the Muslim religion." S. 8 of the Act empowers the Chief Justice to make rules of court providing for the procedure and practice to be followed in Kadhi's Courts and declares that until such rules are made, and so far as such rules when made do not extend, the procedure and practice in a Kadhi's Court shall be in accordance with those prescribed for subordinate courts by and under the Civil Procedure Act. The procedure and practice so prescribed are to be found in the Civil Procedure (Revised) Rules, 1948, O. 21 of which provides for the execution of decrees and orders both of subordinate courts and of the High Court. Unless the functions of Kadhi's Courts were to be confined strictly to the expression of opinions on questions raised before them without power to enforce or give effect to such opinions, which would constitute an improbable construction of the Act, it seems to me that the provisions of that Order may properly be availed of for the purpose of enforcing the decisions of a Kadhi's Court.

Rr. 28 (1) and 29 (1) of O. 21 expressly provide that, subject to the discretion of the court, a decree for the restitution of conjugal rights may be enforced by detention in prison or attachment of property or by both, provisions which would appear to fall within the contemplation of s. 38 of the Act. No doubt it may be said that by s. 21 (1) of the Matrimonial Causes Act (Cap. 152) it is expressly provided that, in the exercise of its jurisdiction under that Act, the Court shall not by attachment enforce a decree for restitution of conjugal rights, but this relates only to proceedings in the High Court under that Act and therefore does not apply to proceedings in the Kadhi's Court independently of the Act.

For these reasons I am not satisfied that, insofar as relates to the present case, the first contention can succeed.

The applicant's next submission, based on the position at common law, gains support from the judgments delivered in the Court of Appeal in England in *The Queen v. Jackson*, [1891] 1 Q.B. 671, where it was held, on a return to a writ of habeas corpus sued out by the wife, that, notwithstanding her refusal to live in the same house as her husband, he was not entitled to keep her in confinement for the purpose of enforcing a decree for the restitution by her of his conjugal rights. There, apart from the decree for restitution, no order had been made for its enforcement and, as a general statement of the common law position in this country what was said may well be correct. If this be so, however, it may have to give way, if necessary, to the express provisions of the statute law (including the Civil Procedure Act and Rules to which I have referred and which, taken by themselves and without regard to the provisions of the Constitution, would seem to permit of the Kadhi's Court granting a decree for the restitution of conjugal rights enforceable by imprisonment and attachment of property. The problem is one of difficulty and, as I do not find it necessary to do so, I should prefer not to express an opinion thereon without further deliberation.

What appeared to be the principal ground relied upon by the applicant is that the judgment and decree of the Kadhi's Court constituted in relation to her

an infringement of the rights conferred by the Constitution and that that court had no power to enforce her return to the plaintiff. A number of sections of the Constitution, all falling within chapter V which deals with "the protection of fundamental rights and freedoms of the individual", were referred to in argument and must now be considered.

The scope and ambit of chapter V are indicated by way of recital in s. 70, which is as follows:

> "Whereas every person in Kenya is entitled to the fundamental rights and freedoms of the individual, that is to say, the right, whatever his race, tribe, place of origin or residence or other local connexion, political opinions, colour, creed or sex, but subject to respect for the rights and freedoms of others and for the public interest, to each and all of the following namely:
>
> (*a*) life, liberty, security of the person and the protection of the law;
>
> (*b*) freedom of conscience, of expression and of assembly and association; and
>
> (*c*) protection for the privacy of his home and other property and from deprivation of property without compensation,
>
> the provisions of this Chapter shall have effect for the purpose of affording protection to those rights and freedoms subject to such limitations of that protection as are contained in those provisions, being limitations designed to ensure that the enjoyment of the said rights and freedoms by any individual does not prejudice the rights and freedoms of others or the public interest."

There then follows s. 72 which, by subsection (1) (*c*), declares that "no person shall be deprived of his personal liberty save as may be authorised by law" in any of the cases there enumerated. In the present context it would seem that the only case material to the matter is that described in the section as that of the execution of the order of a court "made to secure the fulfilment of any obligation" imposed by law. This terminology indicates that, apart from the order of the court, there must be a pre-existing legal obligation which the order seeks to enforce. Was there then, apart from the judgment and decree of the Kadhi's Court, an obligation imposed by law on the applicant to return to her husband?

It is to be observed that the reference to "law" is not here confined, as is frequently the case elsewhere, to the written law. From this I think that, under s. 3 (1) of the Judicature Act (Cap. 8), reference may properly be made, subject to the Constitution and the statute law, to the substance of the common law, the doctrines of equity and the procedure and practice observed in courts of justice in England on 12 August 1897. This brings in the principle in *Jackson's* case, which was decided in the year 1891, and I consider that, while the Kadhi's Court may have been within its rights in formally pronouncing that the marriage was subsisting, its direction to the applicant to return to the plaintiff, the implementation of which would be analogous in essence to the physical enforcement of a decree for the restitution of conjugal rights, must inevitably constitute in the present instance a deprivation on the part of the applicant of her personal liberty. Such a direction can therefore be upheld only if it be shown to have been granted for the purpose of securing the fulfilment of an obligation already imposed by law.

In view of the fundamental importance and pre-eminence accorded by the Constitution to the liberty of the subject it is reasonable that the onus should be placed on those seeking to support the Kadhi's order to satisfy this court that, without recourse to the terms of that order, there exists aliunde an obligation imposed by law on the applicant, despite her expressed fear of cruelty, to return to the plaintiff's house and resume residence with him. In my opinion neither

the plaintiff nor the respondent, notwithstanding the industry of their counsel, has done so, with the result that I must hold that the Kadhi's Court acted in excess of jurisdiction in endeavouring to supplement its decision as to the validity of the marriage by directing the return of the applicant in person to the plaintiff.

In reaching this conclusion I have not overlooked the argument addressed to me by counsel for the respondent to the effect that, since the parties to the marriage are Muslims, Mohammedan law must apply and that under its provisions the Kadhi's judgment should be upheld. This submission was said to be supported by a passage cited from the fourteenth edition of *Mulla's Principles of Mohammedan Law*, where at p. 246, it is stated that where a wife without lawful cause ceases to cohabit with her husband, the latter may sue her for restitution of conjugal rights. I see no reason to doubt that statement of the law is correct but nowhere does the learned author in the passage say or suggest that such an order of restitution can be enforced in the manner sought to be justified in the present case. Reliance was also placed upon the passage at p. 20 of Professor Anderson's invaluable work *Islamic Law in Africa*, published by the Colonial Office, where the author states that, in questions of marriage, ordinary Shafi'i principles are followed regarding the father's or grandfather's right compulsorily to marry a virgin girl of any age to any socially eligible suitor even if blind or decrepit, from which, it would seem, I was being invited to assess the extent to which under those principles a Muslim woman's personal freedom is restricted. This statement relates, however, to the law in the former Protectorate of Aden and not to Kenya where the position is stated (at p. 105 of the volume) to be that "decrees of obedience", as they were termed, "are now no longer executed by the courts, whether by dragging the wife back to the matrimonial home (as under the pure Shari'a) or by sentences of imprisonment on recalcitrant wives".

No doubt it would seem from the early case of *Sheriff Abdulla bin Mohamed v. Zuena binti Abedi* (1912), 4 E.A.L.R. 86, that in a suit for restitution of conjugal rights brought in Nairobi in the year 1909 a native born Mohammedan woman had been ordered to return to her husband (who was also a Mohammedan) and had suffered six months' imprisonment for failure to obey the order. At that time the exercise of jurisdiction by all the courts of justice in this country was governed by the East Africa Order in Council 1902, which by article 20 enjoined such courts to be "guided by native law so far as it is applicable and is not repugnant to justice and morality or inconsistent with any Order in Council or Ordinance", and Barth, J. held in that case that since the parties were "native and Mohammedans" article 20 applied. This Order in Council, however, has since been revoked and has in effect been replaced by s. 3 of the Judicature Act. Subsection (1) of that section declares that the jurisdiction of this Court and of all subordinate courts shall be exercised in conformity with inter alia the Constitution, and sub-s. (2) provides that all courts "shall be guided by African customary law in civil cases in which one or more of the parties is subject to it or affected by it, so far as it is applicable and is not repugnant to justice and morality or inconsistent with any written law".

If for the purpose of the Order of 1902 Muslim law was to be regarded as part of the "native law" referred to in article 20, as may have been correct, this position would seem not to obtain under either the Constitution or the Judicature Act 1967, and the position accorded by the last mentioned Act to "African customary law" has not been shown to extend to Muslim law as such. I should perhaps add that I have not been referred to nor have I found it necessary to consider the effect of the Mohammedan Marriage, Divorce and Succession Act (Cap. 156) in relation to the present problem.

If the foregoing conclusion that the Kadhi's Court acted without or in excess

of jurisdiction be correct the applicant is entitled to succeed. In the alternative, lest the conclusion be mistaken, the applicant relies, being a citizen of this country, upon the provisions of s. 81 of the Constitution which declares that, save as is provided by or under subsections (2) to (6) thereof, "no citizen of Kenya shall be deprived of his freedom of movement, that is to say, the right to move freely throughout Kenya, the right to reside in any part of Kenya, the right to enter Kenya, the right to leave Kenya and immunity from expulsion from Kenya". Subsection (2) of this section, however declares that any restriction on a person's freedom of movement that is involved in his lawful detention shall not be held to be inconsistent with or in contravention of the section, and this saving has the effect in the present case of leaving unanswered the problem as before, namely, whether the applicant's detention by the plaintiff as her husband would be lawful. The resultant position would seem to be that her rights under s. 81 are coterminous with those under s. 72 but that, in the circumstances of the present case, they put the matter no further.

The applicant relies lastly upon s. 73 (1) of the Constitution which declares that "no person shall be held in slavery or servitude", and she contends that the effect of the Kadhi's decision, if implemented, would be to restrict her personal freedom to such an extent as to constitute her being held in a form of servitude.

The term "servitude" currently enjoys, according to the 1933 edition (which is the most recent available to the Court) of the *Oxford English Dictionary*, a reasonably comprehensive meaning, ranging from the condition of being a serf or the property of another to the absence of personal freedom.

In the field of domestic relations the result of *Jackson's* case was stated by McCardie, J. in *Place v. Searle*, [1932] 2 K.B. 492 at p. 500, as being that from the date of that decision "the shackles of servitude fell from the limbs of married women and they were free to come and go at their own will. Their high moral obligation, as wives, remained and their social obligations were unimpaired, but their physical freedom of movement was recognised and established by law". Although the decision of the judge in that case was reversed on appeal no exception was taken to the foregoing passage in his judgment, and indeed it receives some support from the words of Scrutton, L.J. in the Court of Appeal in the same case where, at p. 513 of the volume he said that since *Jackson's* case "it is clear that whatever rights the husband may possess he cannot enforce them by the physical confinement of his wife; he cannot seize her if she attempts to leave the consortium and lock her up".

In my opinion, bearing in mind the degree to which in this country a husband can enforce compliance by his wife with his physical demands without his being made amenable to a charge under the criminal law, the implementation of the Kadhi's order would in the circumstances of this case subject the applicant to the effective dominion of the plaintiff to an extent constituting "servitude" within the contemplation of *Jackson's* case and inconsistent with the intendment of s. 73 (1) of the Constitution.

On the several grounds which I have indicated I am satisfied and so find that the judgment of the Kadhi's Court at Kisumu pronounced on 20 January 1970 in Civil Case 62 of 1969, together with the decree issued thereon, whereby the Kadhi gave judgment ordering the return of the applicant to the plaintiff constitute an infringement of both s. 72 (1) (*c*) and s. 73 (1) of the Constitution and are for that reason void and of no effect.

*Judgment for the applicant.*

For the applicant:
*P. Le Pelley* (instructed by *Hamilton Harrison & Mathews*, Nairobi)

For the respondent:

*J. F. Shields* (Senior State Counsel)

For the interested party:
*S. P. Vaid*

# Maluki v Oriental Fire & General Insce
[1973] 1 EA 162 (CAN)

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|---|---|
| **Division:** | Court of Appeal at Nairobi |
| **Date of judgment:** | 13 March 1973 |
| **Case Number:** | 65/1972 (31/73) |
| **Before:** | Sir William Duffus P, Law and Mustafa JJA |
| **Sourced by:** | LawAfrica |
| **Appeal from:** | The High Court of Kenya – Nyarangi, J. |

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*[1] Arbitration – Stay of proceedings – Contract containing arbitration clause – Defence filed before hearing of application – No stay – Arbitration Act* (*Cap. 49*), *s. 6* (*K.*).

*[2] Arbitration – Stay of proceedings – Costs – Proper order for costs on stay.*

*[3] Civil Practice and Procedure-Application – When made – On oral argument in court.*

**Editor's Summary**

The appellant sued the respondent under an agreement which contained an arbitration clause. The respondent filed an application for the stay of the suit. Before the application was heard the respondent filed a defence joining issue with the plaint on the merits.

The judge made the order for stay, and the appellant appealed.

**Held** –

(i) the application was not made until it was orally argued (*Osongo v. Republic* (3) followed);

(ii) as the application was made after the filing of the defence a stay should not have been granted.

*Observations* by the court on

(*a*) whether the filing of the defence waived the application for stay;

(*b*) whether costs of the suit should be awarded on the grant of a stay of proceedings.

Appeal allowed.

**Cases referred to in judgment:**

(1) *R.R. & Co. v. Sakur*, [1957] E.A. 471.

(2) *Mukisa Biscuit Co. v. West End Distributors*, [1969] E.A. 696.

(3) *Osongo v. Republic*, [1972] E.A. 170.

**Judgment**

The following considered judgments were read. **Law JA:** This is an appeal by the plaintiff from the decision on an application made by the defendant by motion under s. 6 (1) (*a*) of the Arbitration Act (Cap. 49) for the proceedings to be stayed. The judge ordered that the suit be stayed, and that the costs of the application and of the suit be paid by the plaintiff. From that decision the plaintiff has appealed to this court. I shall refer to him henceforth as the appellant, and to the defendant as the respondent.

The facts relating to this appeal are as follows: the respondent is an insurance company, which by a policy of insurance dated 10 February 1969, in consideration of a premium of Shs. 1,957/- paid by the appellant, agreed to indemnify the appellant against loss of or damage to his car caused by accidental collision, fire, theft or malicious act. It is common ground that during the currency of the

policy the car was involved in an accident on 20 October 1969. The only dispute between the parties is as to the extent of the loss suffered by the appellant; he claims that his car was a complete loss, but this is not admitted by the respondent. One would have thought that this simple issue of fact would have been speedily resolved, but unfortunately it has not been, and on 10 December 1971, the appellant instituted a suit by filing a plaint in which he claimed Shs. 26,000/-being the value of his car, together with general damages, for alleged breach of the contract of insurance. The respondent entered an appearance on 15 January 1972, and on 31 January filed a notice of motion for the suit to be stayed. The application was duly supported by an affidavit by a director of the respondent, in which it was stated inter alia:

> (*a*) that it was a condition of the policy of insurance that all differences arising out of the said policy shall be referred to arbitration, as in condition No. 9 thereof provided, and
>
> (*b*) that the respondent has at all material times been, and still is, ready and willing to do all things necessary to the proper conduct of the arbitration.

Unfortunately the matter was allowed to lapse, with the apparent concurrence of both parties, and the motion was not heard until 28 September 1972. In the meantime the respondent, out of time and without leave, filed its defence on 7 February 1972. By this defence, issue was joined as to whether the appellant had suffered the alleged or any loss or damage, and the respondent further contended that the suit was premature in that the appellant had not complied with the condition in the policy that all differences arising out of it should be referred to arbitration. No reference was made to the pending application for the suit to be stayed.

In his ruling ordering a stay of the suit the judge is recorded as having said "The applicant/defendant entered appearance. No other pleadings were delivered on his behalf". On the face of it, this was a misdirection, as a defence was filed. I think however that he must have meant that no other pleading was delivered on the applicant's behalf before the motion for a stay was filed, which represents the correct position.

The substantial point for decision in this appeal is whether, by filing a defence, the respondent took a step in the proceedings such as to disqualify it from applying for the proceedings to be stayed. In deciding this point it is necessary to consider the effect of s. 6 (1) (*a*) of the Arbitration Act in relation to the facts of this appeal. The relevant provision is as follows:

> "6(1) If a party to an arbitration agreement or a person claiming through or under him, commences any legal proceedings in any court against any other party to the agreement, or against a person claiming through or under him, in respect of a matter agreed to be referred
>
> (*a*) any party to those proceedings may at any time after appearance and before delivering any pleadings or taking any other steps in the proceedings, apply to that court to stay the proceedings; . . ."

The most important words to be interpreted are the words "apply to that court". What exactly do they mean? If the respondent, when it filed its defence on 7 February, had not yet applied to the court for a stay, then having filed a pleading it was not entitled to the order for a stay of proceedings the subject of this appeal.

Mr. Daine, for the appellant, submitted that having filed its defence before its application for a stay was heard and decided by the court, the respondent was not entitled to an order of stay. He submitted that an application for a stay involved two elements, the taking out and filing of the notice of motion and

the oral hearing of the motion in court, and that until both those events were completed, no application had been made within s. 6 (1) (*a*) aforesaid, and that by filing a defence before the application was heard orally in court the respondent had disqualified itself from obtaining an order for the stay of the proceedings. Mr. Daine relied in this respect on the judgment of this Court in *Osongo v. Republic*, [1972] E.A. 170, in which the following appears:

> "We think that a motion is an oral application and therefore that it is made at the time when the applicant addresses the court or judge, not when the notice of motion is filed."

Mr. Gautama for the respondent, submitted that *Osongo's* case was not relevant to this appeal and should not be followed. He pointed out that it was a criminal case, and that the decision was based to some extent on the wording of the form of notice of motion prescribed in the First Schedule to the Rules of this Court, which differs in some respects from the corresponding form used in civil proceedings. Mr. Gautama submitted that in promptly filing its notice of motion for an order of stay on 31 January 1972, the respondent had complied with the provisions of s. 6 (1) (*a*) aforesaid in that it had applied for a stay within the meaning of that provision, so that the subsequent filing of a defence was immaterial.

In deciding which of these contentions is correct, it is desirable to set out the relevant parts of rr. 12 and 13 of the Arbitration Rules, which read as follows:

> "12. An application for stay of proceedings under section 18 of the Act shall be by motion with notice to the party commencing legal proceedings supported by affidavit."

I interpose at this stage to point out that the reference to section 18 is an obvious drafting error; the reference should be to section 6.

> "13. If on the hearing of the motion the court orders the proceedings to be stayed, it may etc. etc. . . ."

It is clear to my mind that an application for a stay under s. 6 involves not only the filing of the motion and the giving of notice to the other party, but the oral hearing in court as well. It is only when all these matters take place that the application is made. It follows that after careful consideration of the relevant statutory provisions, and of the authorities cited to us, and of the arguments of counsel, I find myself in agreement with Mr. Daine's submissions. In my view, the application for stay was not made, within the meaning of s. 6, until the motion was orally argued on 28 September 1972. That date was long after the filing of the defence by the respondent, and accordingly in my opinion the respondent was not entitled to the order of stay made in his favour by the judge. I would allow this appeal, set aside the order appealed from and substitute an order dismissing the application for stay. I would give the appellant the costs of this appeal, and the costs of the proceedings in the court below.

Before closing this judgment, there are three matters I would like to mention. Firstly, a motion should be heard as soon as possible after it is filed. The delay of over 8 months in this case is quite inexcusable. Mr. Gautama pointed out that the many adjournments in the High Court were granted "by consent". To my mind, this does not help the respondent, who had the conduct of the proceedings for stay and whose duty it was to prosecute those proceedings expeditiously. I draw attention to what Sir Charles Newbold, P. had to say in this connection in *Mukisa Biscuit Co. v. West End Distributors*, [1969] E.A. 696, at p. 701. Secondly, it is at least arguable that in filing a defence which inter alia joined issue on the merits, while an application for stay was pending,

the respondent should be taken to have waived that application. This point was not, however, made on a ground of appeal and does not have to be decided in this appeal. Thirdly, it was a ground of appeal that the judge erred in awarding the respondent not only the costs of the application for a stay, but also the costs of the suit. In view of the conclusion I have reached, that the appeal must succeed, this ground no longer falls to be decided. It will be sufficient if I say that Mr. Gautama has satisfied me that the order was correct; see also the judgment of this Court in *R.R. & Co. v. Sakur*, [1957] E.A. 471, in the first paragraph on p. 472.

**Sir William Duffus P:** I have read and agree with the judgment of Law, J.A. and as Mustafa, J.A. also agrees, the appeal is allowed in accordance with the order set out in Law, J.A.'s judgment.

**Mustafa JA:** I agree with the judgment of Law, J.A. and concur in the order proposed by him.

*Appeal allowed.*

For the appellant:
*H. S. Daine* (instructed by *Daine & Wariithi*, Nairobi)

For the respondent:
*S. C. Gautama* and *S. S. Jowhal*

## Dick v Koinange
[1973] 1 EA 165 (CAN)

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|---|---|
| **Division:** | Court of Appeal at Nairobi |
| **Date of judgment:** | 13 February 1973 |
| **Case Number:** | 66/1972 (32/73) |
| **Before:** | Spry VP |
| **Sourced by:** | LawAfrica |
| **Appeal from:** | The High Court of Kenya – Muli, J. |

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*[1] Appeal – Fresh evidence – Basic assumption falsified – Condition not reasonably to be known – Fresh evidence admissible.*

**Editor's Summary**

The appellant had been awarded damages for injuries suffered in a motor accident. She appealed against the award of damages and applied for leave to adduce fresh evidence on the ground that she had to lose her leg after the High Court hearing.

**Held** –

(i) a basic assumption common to both sides had been falsified by subsequent events (*Mulholland v. Mitchell* (3) followed);

(ii) the condition could not reasonably have been known at the time of the judgment and the

evidence will probably affect the quantum (*Ladd. v. Marshall* (1) and *Tarmohamed v. Lakhani & Co*. (2) followed).

Leave granted.

**Cases referred to in judgment:**

(1) *Ladd v. Marshall*, [1954] 1 W.L.R. 1489; [1954] 3 All E.R. 745.

(2) *Tarmohamed v. Lakhani & Co*., [1958] E.A. 567.

(3) *Mulholland v. Mitchell*, [1971] A.C. 666; [1971] 1 All E.R. 307.

**Judgment**

**Spry VP:** This is an application by an appellant for leave to adduce additional evidence. She was awarded by the High Court damages for personal injuries and is appealing against the quantum awarded and there is a cross-appeal as to liability.

The basis of the application is that the appellant had, after the date of the High Court decision, to undergo an operation for the amputation of a leg, an operation which had not been in contemplation at the time of the decision, although a lesser operation had been contemplated.

I was at first doubtful, having regard to the provisions of r. 74 (2) of the Eastern African Court of Appeal Rules 1954, whether leave was required, as the operation itself is a matter which has occurred after the date of the decision, but Mr. Fraser, for the appellant, argued that he had in prudence to seek leave, as it might be held that the operation was only the consequence of a condition which, though then unknown, existed at the time of the decision.

I was also at first inclined to adjourn the matter to a full bench but Mr. Fraser submitted that this would substantially increase the costs and I decided that this should, if possible, be avoided.

There appears to be no East African decision as to the circumstances in which leave to call additional evidence should be given. Mr. Fraser urged that this Court should follow the principles laid down in *Mulholland v. Mitchell*, [1971] A.C. 666, which, although not binding on this Court, is highly persuasive, since our rule is substantially similar to the English rule. It was said in that case that fresh evidence might be admitted if some basic assumption, common to both sides, has clearly been falsified by subsequent events. It was said also, that it might be expected that fresh evidence would be allowed when to refuse it would affront common sense or a sense of justice. These are exceptional circumstances, and it has always been held that there must be exceptional circumstances to justify the reception of fresh evidence.

I accept that these principles should be followed by this Court.

Secondly, Mr. Fraser argued, and I accept, that the conditions laid down in *Ladd v. Marshall*, [1954] 1 W.L.R. 1489, which have previously been followed by this Court in *Tarmohamed v. Lakhani & Co*., [1958] E.A. 567 are satisfied. The condition which necessitated the amputation was not known at the time of the judgment, and could not reasonably have been known, since reports from five medical experts were available, none of whom realised the condition. The evidence, if accepted, will probably materially affect the quantum of damages and the evidence is apparently credible.

Mr. Hime, very properly in my opinion, did not seek to oppose the application.

The trial judge had to make the best assessment he could of the damages on the evidence before him. We have, on the appeal, to review that assessment but we now know that the assumption on which the judge relied, and which was common to both sides, was in fact incorrect. I think that this is a case where leave to adduce additional evidence may properly be granted.

The application is allowed, as prayed.

For the appellant:
*K. A. Fraser* (instructed by *Hamilton Harrison & Mathews*, Nairobi)

For the respondent:
*P. J. Hime* (instructed by *Kaplan & Stratton*, Nairobi)

# Lehmann's (East Africa) Ltd v R Lehmann & Co Ltd
[1973] 1 EA 167 (CAD)

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|---|---|
| **Division:** | Court of Appeal at Dar es Salaam |
| **Date of judgment:** | 24 January 1970 |
| **Case Number:** | 42/1969 (37/70) |
| **Before:** | Sir Charles Newbold P, Duffus VP and Spry JA |
| **Sourced by:** | LawAfrica |
| **Appeal From:** | The High Court of Tanzania – Hamlyn, J. |

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*[1] Contract – Settled account – Essentials agreement, consideration, mutuality of dealings.*

*[2] Contract – Settled account – Reopening of – Only reopened on specific allegations.*

*[3] Civil Practice and Procedure – Decree or order – Interlocutory procedure – Treated by parties as interlocutory – Not a decree.*

**Editor's Summary**

The respondent was the London buying agent of the appellant. The appellant sued the respondent alleging that it had received secret discounts and requested an account. The respondent filed a defence, denying receipt of such discounts, alleging that it had already accounted to the appellant. Prior to the hearing the respondent filed a chamber application asking that the hearing be confined to the preliminary issue that as a matter of law the suit was misconceived. The application was supported by an affidavit on information and belief that the yearly balance sheets of the appellant (which had been sent to the respondent as a shareholder of the company) showed the London company to be always owed money by the appellant company. The application was granted with leave to the appellant to file a counter-affidavit. At the hearing the respondent maintained that accounts had been settled between the parties, and the appellant responded that there was no evidence before the court upon which such a finding could be made and that such a submission was incompetent, since settled accounts had not been pleaded. The judge made a ruling which found that there were settled accounts but refused to dismiss the suit pending further steps by the appellant. The decision was not appealed from. At the hearing the respondent requested that the case be dismissed since there was a finding that there were settled accounts and the plaint failed to request re-opening of accounts or to particularise irregularities. The appellant responded that the alleged discounts were outside the settled accounts. The judge ruled that the plaint must be construed as a claim to re-open the accounts, but since no particulars of fraud or irregularities were pleaded, and no prayer was made for the re-opening of accounts, the plaint failed to disclose a cause of action.

The appellant appealed contending that the accounts were not settled accounts as they were sent to a shareholder and not as between debtor and creditor, and that the appellant was seeking a special account, and that there were no mutual dealings.

The respondent contended that the appellant could not challenge the finding that there were settled accounts as it had not appealed from the first ruling.

**Held** –

(i) (Sir Charles Newbold, P. dissenting) the first ruling was not a decree and could be challenged;

(ii) (Spry, J.A. dissenting) the accounts were settled accounts;

(iii) where accounts have been settled they cannot be re-opened on general allegations of impropriety.

*Observations* by Spry, J.A. on the requirements for the proof of special accounts.

Appeal and cross-appeal dismissed.

**Cases referred to in judgment:**

(1) *Anglo-American Asphalt Co. v. Crowley Russell & Co.*, [1945] 2 All E.R. 324.

(2) *Commissioner for Transport v. Kenya Cooperative Creameries* (1954), 21 E.A.C.A. 70.

(3) *Baker v. Rush*, [1964] E.A. 602.

(4) *Mandavia v. Rattan Singh*, [1965] E.A. 118.

The following considered judgments were read.

**Judgment**

**Spry JA:** In 1950, the appellant company (to which, for convenience, I shall refer as the Dar es Salaam company) appointed the respondent company (to which I shall refer as the London company) as its buying agent in London. It appears from the record that this relationship continued at least until 1965 and we understood from the Bar that in fact it is still in existence.

In November 1964, the Dar es Salaam company instituted a suit against the London company, alleging that the latter had received secret discounts in breach of its duty as an agent and praying that an account be directed. In July 1965, the London company filed a Written Statement of Defence, in which it denied having received any such discount, with alternative defences, and a counterclaim for money due and owing. The defence includes an allegation that the London company had accounted to the Dar es Salaam company for all moneys received on its behalf.

On 8 December 1965, an order for discovery was made by consent but no application was made for further and better particulars. From time to time various hearing dates were fixed, only for the case to be taken out of the list. However, eventually it was set down for 13 and 14 December 1966. Before the hearing, a chamber application was filed on behalf of the London company asking that the hearing on those dates be confined to a preliminary issue, that as a matter of law the suit as filed was misconceived and ought to be dismissed. The application was not made under O. 14, r. 2, but invoked the inherent powers of the court. The application was supported by an affidavit by Mr. N. M. Patel, the advocate for the London company, who deponed to his belief that the amount owing by the Dar es Salaam company had been shown each year in the balance sheet of the Dar es Salaam company, a copy of which had been sent to the London company as a shareholder in the Dar es Salaam company. It was alleged that these figures had been accepted as correct by the London company. Copies of these balance sheets were annexed to the affidavit. The application was not opposed by the Dar es Salaam company, although application was made for leave to file a counter-affidavit, and it was accordingly allowed and an order made that the hearing on 13 and 14 December be limited to the “preliminary points”. The Dar es Salaam company was given leave to file an affidavit, if it so desired, and the London company to file an affidavit in reply. In fact, no further affidavit was filed.

With respect, I do not think that the application should have been allowed in the form in which it was presented. I think the court should first have framed the issues. Had this been done, I do not think any of the subsequent difficulties would have arisen. I confess that I still do not understand what was the issue to be tried. It appears from the affidavit that it was intended to raise an issue of law, but a preliminary issue of law is appropriate where one party asserts that, on the facts as agreed (where an agreed statement of facts is put in) or (in any

other case) on the facts as alleged by the other party, he is entitled to succeed as a matter of law. That was not the position here. There was, on the pleadings, clearly an issue of fact, that is, whether or not accounts had been rendered. This went to the very root of the matter and required to be decided on evidence.

The preliminary issue might, although not brought under O. 7, r. 11, be regarded as a submission that the plaint did not disclose a cause of action, but it is curious that although the affidavit submits that the suit should be dismissed, it goes on to express the belief that "whatever may be the result of such issue" further interlocutory work would be required before the suit could come on for trial. It would seem that the London company was not really expecting the suit to be dismissed.

It is, of course, perfectly proper, by consent, to try any issue or issues separately; for example, it is not unusual in suits where damages are claimed for the issue of liability to be tried before that of the measure of damage, *Baker v. Rush*, [1964] E.A. 602. That is a matter of procedure in the trial of a suit, after the issues have been settled. Here the issues had not been settled.

Moreover, it was inappropriate to give leave to file additional affidavits, when the chamber application had already been disposed of. This fact seems to have been overlooked both when the chamber application was allowed and when the hearing of the suit began on 13 December. I am unable to avoid the conclusion that the judge misunderstood the nature of the proceedings on that date, as indeed did Mr. N. M. Patel, who was appearing for the London company and said, in his reply:

> "This is an interlocutory matter, and does not determine the final rights of the parties."

That was clearly wrong, as the trial of an issue in a suit is not interlocutory.

Although, as I have said, the preliminary issue appeared to raise an issue of law that the plaint was misconceived, the argument at the hearing developed along entirely different lines. Mr. Patel's submission was that accounts had been settled between the parties, an allegation which had not been pleaded. He argued that it was not open to the Dar es Salaam company to ask that the accounts be re-opened and he asked that the suit be dismissed. What had begun as an issue of law arising out of the plaint had developed into an issue of fact on the defence. This appears to have taken Mr. Lakha, who appeared for the Dar es Salaam company in the High Court and before us, by surprise and he applied for, and was granted, an adjournment. On the resumption, he submitted that there was no evidence before the court on which a decision on the merits could be reached. The affidavit which had supported the chamber application was based on information and belief: this is permitted by Order 19, rule 3, for interlocutory applications only. Moreover, he submitted that the argument that accounts had been settled was incompetent because it was not founded on the pleadings.

On 8 February 1968, the judge gave what is described as a "Ruling"; I shall have later to consider what was the true nature of this decision, to which I shall refer as "the first decision". He expressed the opinion that the matters which had been canvassed had not been raised in the pleadings, or at least not explicitly, and remarked that he might well have dismissed "the application" on that ground had he formally been so requested at the appropriate time. He appears to have overlooked the question that had been raised regarding the admissibility of the evidence. The substance of his decision was an express finding that the balance sheets constituted settled account. This must, I think, be regarded as a finding of mixed fact and law. The judge went on to say that

> "equitable considerations would permit the re-opening of such accounts

> should there be proof of the allegations contained in paragraphs 7 and 8 of the plaint."

He held that he must dismiss the application so far as it asked for the dismissal of the suit and observed that the proceedings

> "must await any subsequent steps which the plaintiff seeks to take."

It is not clear what subsequent steps the judge had in mind: Mr. Riegels, who appeared for the London company at the subsequent hearing and before us, understood it to mean application for leave to amend the plaint; Mr. Lakha, to mean the production of proof of the allegations in the plaint.

The London company applied for leave to appeal against this decision and leave was granted, but no appeal was ever lodged. No formal decree or order was extracted.

In January 1969, judgment was given, by consent, on the counterclaim, with a stay of execution.

After various negotiations, which included an unsuccessful attempt to agree a statement of facts, the hearing was resumed on 18 June 1969, when Mr. Riegels, for the London company, made a preliminary submission that the case should be dismissed, on the ground that in view of the finding that there were settled accounts, the Dar es Salaam company's only course was to seek the re-opening of those accounts. This would entail the amendment of the plaint, both to include a prayer for that relief and to particularise irregularities which would justify such re-opening. The Dar es Salaam company had, however, refused to amend its plaint. Mr. Lakha, for the Dar es Salaam company, argued that the alleged discounts were outside the scope of the settled accounts, that there had been no account of such discounts and therefore that what he was seeking was an account, not the re-opening of accounts. I cannot but think that this course was extremely imprudent: Mr. Lakha might well have maintained his attitude but still, as an alternative, sought leave either to amend his plaint or, which I think would have been the more normal course, to file a reply.

The judge gave his decision on 8 July 1969 – I shall refer to this as "the second decision". He considered that, in view of his earlier decision, the plaint had to be looked at as a claim for the accounts to be re-opened. As such, he found it defective since liberty was not sought to surcharge and falsify any item on the ground of fraud and error nor was there any prayer for the re-opening of the accounts. No application had been made for leave to amend the plaint and the judge held "upon further consideration" that even if such an application had been made, he would have had to refuse it, since it would completely change the nature of the suit from a claim on open accounts to one for the re-opening of settled accounts. He held that the plaint as it stood did not disclose a cause of action and he dismissed the suit, observing that the Dar es Salaam company's only remedy was to file a fresh suit.

I would observe in passing that to hold, for the reason he did, that the plaint did not disclose a cause of action was a misdirection. The question whether a plaint discloses a cause of action is one that has to be decided from a perusal of the plaint itself. It cannot be held that a plaint discloses no cause of action after and because an issue in the suit has been decided against the plaintiff.

I think the conduct of the defence was at least partly to blame for this. The Dar es Salaam company had alleged that no accounts had been rendered and had asked for an order for accounts. If accounts had been settled, all that the London company had to do was to plead them and in due course to prove them. Instead of pleading settled accounts as a defence to the suit, however, the London company sought to use the alleged existence of settled accounts as the basis of a submission that the plaint was misconceived. This attempt to take a short cut was probably actuated by the commendable desire to minimise costs, but it was

in my opinion, a wrong course. A defendant may argue that the plaint as drawn does not disclose a cause of action or he may argue that he has a good defence to it, but he is not entitled to argue, as a preliminary objection, that because of facts which he alleges in defence, the plaintiff ought to have brought a suit of a different nature.

Against the second decision and the decree based on it, the Dar es Salaam company has appealed and the London company has cross-appealed. The main submission in the cross-appeal was that the Dar es Salaam company, having failed to appeal against the first decision, was now precluded from challenging the findings in it. There were eleven grounds of appeal, the main ground being that the judge had erred in holding that the accounts exhibited were settled accounts, both because there was no evidence before him on which he could so hold and as a matter of law.

As regards the cross-appeal, Mr. Riegels submitted that the first decision with its finding that there was a settled account between the parties, conclusively determined one of the issues between the parties and one directly related to the principal relief sought. It was therefore a judgment giving rise to a preliminary decree and since there had been no appeal against it, the finding could not now be challenged, having regard to the provisions of s. 71 of the Civil Procedure Code, 1966. Mr. Lakha, on the other hand, contended that the decision was no more than an order made in interlocutory proceedings, and he pointed out that the London company itself had obtained leave to appeal on that basis. Therefore, under s. 75 of the Code, he was entitled to appeal against it. It may be noted that the parties had now reversed their positions: on 14 December 1967, it had been Mr. Patel who had argued that the proceedings were interlocutory and Mr. Lakha who had contended that they were not.

Mr. Lakha sought to rely on the decision in *Mandavia v. Rattan Singh*, [1965] E.A. 118 as authority for saying that while the decision would have determined the rights of the parties had the suit been dismissed, the refusal to dismiss it left the issues open. With respect, I am not persuaded by that argument because I think the decision in *Mandavia v. Rattan Singh* is only relevant to submissions of misjoinder, limitation, jurisdiction and res judicata and these must be regarded as in a special category. A case which might seem more in point is *Commissioner for Transport v. Kenya Cooperative Creameries* (1954), 21 E.A.C.A. 70, where a decision on an issue of law decided under Order 14, rule 2 (Kenya) was held to be a judgment giving rise to a decree. I think, however, that the present case can be distinguished.

I was at first attracted by Mr. Riegel’s argument, but on further consideration I would reject it, although not for the reasons advanced by Mr. Lakha. The decision was headed “Ruling” but this Court has, of course, repeatedly said that it will look at the substance, not the description, of a decision in deciding whether or not it gives rise to a decree. I accept that a decision on an issue will normally be a judgment giving rise to a decree, subject to the qualification that “matters in controversy” in the definition of a decree in s. 3 of the Civil Procedure Code, 1966, has, I think, a wider meaning than issues in the suit: several issues may relate to one matter and in such a case the decision of one issue will only give rise to a decree where it can properly be dealt with independently of the others. In the present case, however, there are extraordinary features. I have already referred to the fact that Mr. Patel described the proceedings as interlocutory and, when the judge had given his decision, asked for leave to appeal, which would not have been necessary in respect of a judgment giving rise to a decree. The judge himself, possibly influenced by Mr. Patel’s remark, appears to have thought of the proceedings as interlocutory, both because he relied, without comment, on Mr. Patel’s affidavit as evidence and because he gave leave to appeal. It seems to me that if a matter which ought to have been dealt with

as part of the hearing of the suit was in fact dealt with as interlocutory and decided on evidence only appropriate to an interlocutory application, the decision cannot have been a judgment giving rise to a decree. For this reason, I would dismiss the cross-appeal.

I turn now to the appeal itself. The first ground that was argued was that the accounts exhibited were not settled accounts. For the purpose of this argument, Mr. Lakha appeared to assume that the balance sheets were properly before the court. He argued that since the balance sheets were sent to the London company as a shareholder, they could not give rise to a plea of settled accounts: for this, it was necessary for accounts to have been rendered on a debtor/creditor basis. I am not persuaded by this argument. I do not consider that there is any question here of different capacities: I think the interests of the London company as creditor and as shareholder were substantially the same.

Under the same general head, Mr. Lakha argued what was really an entirely different proposition: this was, that the Dar es Salaam company was seeking not a general account but only a special account of discounts received, as regards which the London company was the accounting party. Again I am not persuaded: I accept that there may be cases where parties have separate relationships with each other which call for separate accounts. Here, however, if discounts were received, they were in respect of the transactions which were the basis of the accounts and clearly such discounts, if there were any, should have been included in the accounts. Therefore, if an account had been settled, the ordering of a separate account could not be appropriate.

Mr. Lakha also argued, relying on the reasoning in the English case of *Anglo-American Asphalt Co. v. Crowley Russell & Co.*, [1945] 2 All E.R. 324, that the theory of settled accounts only applies where there is mutuality of dealings and not where one party only is liable to account. I would accept that that represents the law of Tanganyika also. We do not know, in the absence of evidence or admission, whether or not there were in the present case mutual debits and credits but after perusing the Agreement annexed to the Plaint, which is admitted, I think there may well have been.

What has occasioned me some difficulty is that although the lack of admissible evidence was one of the grounds of appeal, the matter was barely touched on by counsel. I have, however, already dealt with it, as it appears to me to be of fundamental importance.

Mr. Riegels, in a most persuasive and carefully prepared argument, sought to support the judge’s finding of settled accounts, if, which he did not admit, it could now be challenged. His argument, however, depended on the acceptance as evidence of the affidavit which supported the chamber application, but that affidavit was not, and being a belief affidavit, could not have been evidence in the suit and the hearing on 13 December was the first hearing of the suit itself, not the hearing of an interlocutory application. It was not proved, or admitted, that accounts had been rendered or that they had been accepted or that there had been mutuality of dealings or that the acknowledgement of debt had been supported by consideration. It was, therefore, in my opinion, not open to the judge to find that settled accounts had been proved. I would therefore allow the appeal, set aside both decisions and remit the proceedings to the High Court for issues to be framed and tried.

I would add a few words on the substance of the submissions, assuming that the balance sheets could properly have been looked at. I am prepared to accept that an item in a signed balance sheet may constitute an admission of debt as at the date of the balance sheet. I doubt, however, if such an item can ever, by itself prove a settled account. It may be a very material piece of evidence, but it will

normally need to be supported either by evidence of mutuality or of consideration, as well as of agreement, express or implied. In the present case there is a particular reason for doubting if the balance sheet does even reveal an account stated. In the early years of the agency, the amount shown as owing from the Dar es Salaam to the London company varied considerably from year to year, but for the last seven years it remained constant at £6,788. This is, to the nearest pound, the amount claimed in the counterclaim and appears to relate to a particular transaction. Since we are told that the two companies continued to do business over this period, we are left in doubt whether, for those seven years, all transactions were for cash, whether, unlikely as it seems, they happened each year to be in balance or whether separate accounts were struck. In these circumstances, I do not think it could properly have been held without further evidence that the balance sheets prove an account stated. I would add that the coincidence of this constant figure in the balance sheets with the amount claimed in the counterclaim was not drawn to the attention of the trial judge and, indeed, only emerged at a late stage in the hearing of the appeal. I have little doubt that had this been drawn to the attention of the judge, his decision would have been different.

I would also remark that it is curious that although the defence contained an allegation that the London company had rendered accounts to the Dar es Salaam company, no further mention was made of these, but instead reliance was placed entirely on the acceptance of the latter company's accounts.

**Sir Charles Newbold P:** This appeal comes before us in a most confused and unsatisfactory condition. The pleadings are unsatisfactory; indeed, we allowed an amendment to the defence so as to enable the decision given by the High Court to be related to an issue raised in the pleadings. The evidence on which the issue of settled accounts was determined was also most unsatisfactory. Finally, the procedure adopted by consent by the parties and permitted by the judge was even more unsatisfactory. I cannot emphasise too strongly that these supposed short-cuts almost always confuse and obscure the true issues and almost always result in prolonged litigation and an unsatisfactory decision. Whatever decision this Court may now give in this appeal will, in my view, be unsatisfactory. If it goes one way the true issue will not have been examined in the manner in which it should have been; if it goes the other way the issue which the parties quite clearly agreed to have heard and determined in one form of procedure will, after such determination, be re-opened with the result that six years after the suit was filed nothing will have been achieved. However, if the parties to a civil suit agree to adopt a certain procedure and the judge, however wrongly, permits such a course, then there is little that a Court of Appeal can do other than to seek to make the best of an unsatisfactory position.

The detailed facts relating to this appeal are set out in the judgment of Spry, J.A., and I shall only refer to those facts in broad outline. The plaintiff company filed a suit as long ago as 1964 claiming that secret profits had been improperly made by the defendant company, a company closely associated with the plaintiff company and acting as its agent, in the course of mutual dealings since 1950. The plaint did not allege that the defendant company had not accounted during this lengthy period in respect of these mutual dealings, but merely that it had not accounted for these secret profits. The plaint gave no particulars in relation to the general allegations and it claimed an account in respect of the entire period. The defence, which was certainly not a model of how a defence should be drafted, set out, inter alia, that the defendant company had duly accounted to the plaintiff company in respect of all monies received on its behalf, but did not specifically plead settled accounts as a defence to the claim for an account. The

matter then hung fire until 1967 when a Chamber application was taken out by the defendant company for an order that "the hearing of this suit fixed for (particular days) be confined to the preliminary issue referred to in paragraph 4 of the affidavit connected hereto". That affidavit set out in paragraphs 2 and 3 that over the years from 1950 to 1965 the accounts of the plaintiff company had been audited by chartered accountants, that the balance sheet of the plaintiff company for each of those years, which balance sheet had been prepared by the chartered accountants, contained the balance due for the year on the dealings between the plaintiff company and the defendant company which balance was true and correct, and that each of those balance sheets had been communicated to the defendant company by the plaintiff company and accepted by the defendant company as correct. Paragraph 4 then set out ". . . that in view of what is stated above the present suit as prayed is misconceived and must be dismissed with costs and that this issue be tried as a preliminary issue . . .". Quite clearly this raised the issue that the suit claiming an account should be dismissed on the grounds that the accounts between the parties had already been settled. It is true that paragraph 5 of the affidavit seems to envisage further proceedings whatever the result of the determination of the issue in paragraph 4, but I think that paragraph 5 is merely an argument with confused phraseology in support of the application – a practice which is becoming common in Tanzania and which I have recently condemned.

The plaintiff company consented to the application asked for and obtained leave to file a counter-affidavit and the judge made an order accordingly. No counter-affidavit was in fact filed and the issue raised in the application was determined by the judge on the basis of the pleadings and the evidence contained in the affidavit in support of the application. The argument presented by the applicant was that the evidence showed that the accounts between the periods were settled accounts and that the plaintiff company could not succeed in an action for an account unless it pleaded, and subsequently proved by evidence, particulars which would justify the re-opening in one form or another of the settled accounts. The advocate for the plaintiff company, having stated that he was taken by surprise by the argument – though I cannot see why he should have been – asked for, and obtained, an adjournment to meet the argument. When the hearing was resumed the advocate clearly envisaged that if the application succeeded the suit might be dismissed. The judge ruled that the accounts were settled accounts but that he would not at that stage dismiss the suit and stated that the plaintiff company's claims were "at large and must await any subsequent steps which the plaintiff seeks to take". Subsequently, in spite of suggestions by the defendant company that in view of the judge's ruling, the plaint should be amended or particulars given, the plaintiff company did nothing and the suit came on for hearing. The advocate for the defendant company then submitted that, in view of the previous decision and the fact that the plaintiff company had taken no action to amend its plaint or to supply particulars of the allegations, the plaintiff company was not entitled to proceed with its claim for an account. The trial judge stated that he was not surprised by this submission and he accepted the arguments for the defendant company and dismissed the suit. From that decision the plaintiff company has appealed and Mr. Lakha on its behalf has urged the following points.

First, that the judge erred in holding in his first decision that the accounts were settled accounts. The defendant company filed a cross-appeal which was, in effect, a submission that it was not open to the plaintiff company to raise this issue on this appeal as it had not appealed from the first decision. With some hesitation I have come to the conclusion that the first decision gave rise to a preliminary decree which could not be challenged at the subsequent hearing, nor before us on appeal from that subsequent decision. The first decision contained

all the elements set out in *Baker v. Rush*, [1964] E.A. 602, as essential to a preliminary decree, and the decision given in accordance with the procedure selected by the parties was one which, in the words of the judgment at p. 605, was given "on the rights with regard to which relief is sought".

The second point urged was that even if the accounts were settled accounts the judge was wrong in not allowing the plaintiff company to give evidence of the general allegations contained in its plaint. The law is that if the accounts between the parties are settled then they cannot be re-opened merely on general allegations of some impropriety or merely because the relationship of the parties is that of principal and agent. In this case the parties are companies and the accounts of the plaintiff company were audited by chartered accountants and communicated to the public in the balance sheet which was signed on behalf of the board of directors. There is nothing which would, prima facie, give any reason for a court to re-open the accounts over a period of fourteen years when in each of those years the accounts have been settled in the circumstances set out.

Next it was urged that the judge, having refused to dismiss the suit in the first decision, was not entitled to do so in the second decision when there had been no change in the position. The first decision gave the plaintiff company an opportunity to put its house in order. It refused to do so and it was precisely because there was no change in the position that the judge dismissed the suit when the matter again came before him.

Finally, it was urged that the procedure adopted was incorrect and unsatisfactory. I entirely agree. But this erroneous procedure was adopted with the consent of the parties and accepted by the judge and it does not lie in the mouth of one of those parties now to challenge the form of procedure which, however erroneous it may have been, was accepted by it.

For these reasons I would dismiss the appeal with costs. As DUFFUS, V.-P., agrees it is so ordered. I would also allow the cross-appeal, but as the other members of the Court are of a different view the order of the Court is that the cross-appeal is dismissed with costs. In the view of the Court the complexity of the appeal and cross-appeal was caused by improper procedure assented to by both parties, so no certificate for two advocates will be granted.

**Duffus VP:** The facts have been fully stated in the judgment of Spry, J.A.

The pleadings and procedure in this case have been both prolonged and unfortunately confused. The action started with the filing of a plaint in 1964, and in effect, the plaintiff company sought to recover from the defendant company secret profits it alleged the defendants had made while acting as its agents for a period of some fifteen years starting from 1950. The plaintiff gave no details of these alleged secret profits except that they were special discounts given to the defendants whilst acting as purchasing agents for the plaintiff company in London.

The plaint did not mention any particular item of the alleged special discounts but only averred in the most general terms that these secret discounts had been obtained over a period ranging from 1950 up to 1964. The plaintiff company stated that it could give no details of these special discounts until after discovery.

The defence was filed and was a denial of the receipt of any special discount to which the plaintiff would be entitled and averred that the defendant had duly accounted to the plaintiff for all money received on the plaintiff's behalf.

An order for discovery was made against each party on the 8 November 1965 and in November 1967 followed the rather peculiar proceedings which have been

criticised both by the trial judge and Spry, J.A., in his judgment. The procedure was, however, carried through with the consent of both parties and it is a bit late now for the plaintiff-appellant to complain. In short, what occurred was that the judge heard a preliminary objection to the effect that the plaint was defective and should be dismissed as the accounts between the parties were settled accounts and that the plaintiff had not alleged in its pleadings the errors on which it relied and had not indeed even referred to any single specific error.

The trial judge found that the accounts were in fact settled accounts, but he dismissed the defendant's application to dismiss the suit as he said:

> "The claims (including the defendant's counter claim) are, therefore, at large and must await any subsequent steps which the plaintiff seeks to take."

With great respect to the learned judge his ruling is not clear or definite; apparently the judge was at this stage satisfied that the plaint was defective in that it did not specify the special discounts received by the defendant which the plaintiff now sought to recover, but he desired to allow the plaintiff an opportunity to remedy this defect.

Anyway, the proceedings dragged on until June 1969. In the meantime the plaintiff's advocate had definitely stated that he did not intend to amend his plaint, and on the case again coming on for hearing the defendant's advocate again applied for the plaint to be dismissed as the court having found that these were settled accounts between the parties that the plaintiff had to plead and show that the accounts were in some way incorrect.

The matter was again fully argued, and it is to be noted here that the appellant's advocate did not apply to amend his plaint nor apparently did he apply to call in the witnesses. His stand appears to have been that the plaint as it stood was in order and that his application for an order against the defendant to account and to give details of the various discounts that he had received should be granted and then the case could proceed. The trial judge ruled against the plaintiff; he held that the plaint as it stood disclosed no real cause of action and dismissed the suit.

There are two real issues in this appeal:

(*a*) Was the trial judge correct in finding that there had been settled accounts between the parties –

(*b*) If so, did the plaint disclose any cause of action.

On the first question I agree with Spry, J.A., for the reasons he has stated that this question as to whether there was a settled account can be raised on this appeal and that the cross-appeal should be dismissed. The question of a settled account must be considered on the background of all the facts. It is agreed that the parties had dealings over a period of fifteen years and that their relationship continued. The affidavit filed by Mr. Patel of the advocates for defendants is admittedly based on hearsay evidence and the balance sheets filed are admittedly those of the plaintiff company and not of the defendant company; but although the plaintiff applied for and obtained permission to file a counter affidavit, it did not do so. There can be no doubt that the balance sheets do show that the defendant company were over the years always in credit with the plaintiff company and these balance sheets were strong confirmative evidence that the defendants did account to the plaintiff company and that the account between the parties were settled accounts from year to year. This is in fact borne out by the plaint itself. The plaintiff company does not seek a general account from the defendant; what it complains of are the secret profits and this is what it seeks an account of. It appears to me that the plaintiff had no real knowledge of these secret profits but only suspected their existence and was really attempting to

place the onus on the defendants to prove their existence. I am of the view that the trial judge was justified in finding that the accounts between the parties were settled accounts.

The second question then arises, if these accounts were settled accounts does the plaint sufficiently aver the plaintiff's case?

I agree with the trial judge that generally the law is that if there is a settled account between the parties that the onus is on a plaintiff to prove some specific errors in the accounts. The particular facts in each case must be considered. In this case the plaintiff is seeking to recover special discounts that were made to the defendants on the goods purchased for them. The judge has, in my view, correctly held that the defendant has from year to year accounted to the plaintiff and that the accounts were mutually accepted by each party. The plaintiff is in this case seeking not only to re-open the accounts, but to have the defendant in effect prove his case. In these circumstances the onus must be on the plaintiff to both plead and prove the facts on which he seeks to recover a judgment. This the plaintiff has not done, although he was given every opportunity to do so.

I am of the view, therefore, that the learned trial judge was correct in dismissing the plaintiff's claim.

I would, therefore, dismiss the appeal with costs and I would also dismiss the cross-appeal with costs. I would not allow a certificate for two counsel.

For the appellant:
*A. A. Lakha* and *D. K. Barot* (instructed by *Fraser Murray, Roden & Co.*, Dar es Salaam)

For the respondent:
*N. M. Patel* and *M. D. Riegels* (instructed by *Donaldson & Wood*, Dar es Salaam).

## Bariu v Attorney-General
[1973] 1 EA 177 (HCK)

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|---|---|
| **Division:** | High Court of Kenya at Nairobi |
| **Date of judgment:** | 26 October 1971 |
| **Case Number:** | 1370/1970 (157/72) |
| **Before:** | Miller J |
| **Sourced by:** | LawAfrica |

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*[1] Criminal Law – Miraa – Prohibition of possession – Permit – Allows possession only by permit-holder – Delivery to servant unlawful – Miraa Prohibition Act* (*Cap.* 339), *s.* 4 (*K.*).

*[2] Police – Seizure – Duty to take seized property forthwith before magistrate – Complied with by taking during working hours – Police Act* (*Cap.* 84), *s.* 20 (*K.*).

**Editor's Summary**

Two servants of the plaintiff were arrested by the police in the Kirinyaga district with a consignment of miraa which was also seized. The permit produced to the police allowed the possession of the miraa

by the plaintiff and not by his servants.

Before the miraa was brought before a magistrate it had become worthless.

The plaintiff sued the Attorney-General in negligence and breach of duty alleging that it was the duty of the police to produce the miraa to a magistrate forthwith and that they were in breach of their duty to ensure that it did not perish.

**Held** –

(i) the permit only permitted the plaintiff to be in possession of the miraa and did not allow its delivery to anyone other than another permit holder;

(ii) the plaintiff's servants had no permit and their possession was unlawful;

(iii) the duty of the police to take anything seized before a magistrate forthwith is complied with if this is done in working hours.

Claim dismissed.

**No cases referred to in judgment.**

**Judgment**

**Miller J:** The plaintiff, a trader, has sued the Attorney-General for the sum of Shs. 11,550/- the cost of a consignment of miraa bound for Nairobi from Meru alleging that by reason of "the negligence and/or breach of duty on the part of the police officers at Kerugoya Police Station the miraa perished and became useless and of no value." The plaint alleges as follows:

> "3. On or about 26 March 1970, 46,200 bundles of fresh miraa the property of the plaintiff were being transported by the plaintiff's employees John Murungi and Nkondu M'Muthuri from Meru to Nairobi when near Kutus, on the Embu-Sagana Road, in Kirinyaga District, two police constables the servants of the Government of Kenya arrested the said employees and took possession of the said miraa.
>
> 4. The said two employees of the plaintiff were later charged by the police under Miraa Produce Act (Chapter 339) prosecuted in the District Magistrate's Court at Kerugoya and acquitted.
>
> 5. Miraa is a commodity of a highly perishable nature and perishes and becomes useless and of no value within 24 to 36 hours. The said miraa was not produced before the Magistrate at Kerugoya forthwith and no directions were obtained from him for its disposal, sale or return to the plaintiff or his said employees. The said miraa was produced before the Magistrate only on 20 May 1970 when it had perished and had become useless and of no value."

It is common ground that on 26 March 1970 the two named servants of the plaintiff were challenged by two traffic policemen of Kerugoya police station on the Meru/Nairobi route within the Kirinyaga district and together with their Peugeot station wagon which contained the miraa they were taken to the Kerugoya police station where they were charged, prosecuted and acquitted. The defence denies negligence or breach of duty on the part of the Kerugoya Police and alleged damage suffered by the plaintiff and makes the following counter-allegations: (1) that miraa is not a commodity of a highly perishable nature and that it does not become useless within 24 to 36 hours; (2) that the number of bundles of miraa in the possession of the plaintiff's employees at the time of the arrest was 50 only and not 46,200 as alleged and (3) the servants of the plaintiff were on 28 March 1970 advised by the officer in charge of the police station to collect their miraa from the police station, but they declined and/or neglected to do so. As to the alleged perishable or non-perishable nature of miraa most of the plaintiff's witnesses maintained that it perishes within two days and there was no evidence from the defence to lead the court to conclude to the contrary. Counsel for the defence by his cross-examination of some of the plaintiff's witnesses asked the court to consider that since miraa is gathered as in this case in the Meru District and transported to such places as Mombasa and far-off Tanga and Dar es Salaam via Nairobi it is incorrect to say as in the plaint that the commodity perishes and becomes of no use within 36 hours having regard to the transportation time involved. Plaintiff's witnesses said that they and other miraa dealers usually make certain of ready air transportation from Nairobi before dispatching a consignment from such distant places as Meru. Under the Miraa Prohibition Act "miraa" means the shrub catha edulis and includes any tree, plant, leaf, stem, shoot or any derivative or alkaloid thereof. On the opening day of the trial the plaintiff tendered a few undoubted fresh parcels of miraa alleging that they were in the accustomed exportation marketing units. These

were seen to be each made up as follows: two stems of the shrub of about 8 to 14 inches long tied together either by soft string or the tender bark of a tree and then 10 of these parcels of two stems each are grouped into one parcel and completely wrapped in green banana leaf. As said in evidence for the plaintiff and believed by the court, the object of wrapping the ten unit bundles in green banana leaves is to retain the moisture of the leaves and stems of the miraa and I dare say in the absence of refrigeration. One witness for the plaintiff, a miraa dealer for some 40 years, informed the court as well as demonstrated that miraa is used by removing the bark and leaves from the stem and the bark and leaves are then chewed. Like others of plaintiff's witnesses he pointed out that the miraa must therefore be in its freshest possible state to lend itself to that, the accustomed mode of consumption. The court was not assisted by professional opinion evidence, but one witness said that miraa keeps one awake on long journeys, while another said that he takes it because he does not use alcohol. This caused the court to reflect upon the meaning of the phrase "or alkaloid thereof" in the definition when it was vehemently stressed for the plaintiff that the shrub is absolutely of no value after 24 to 36 hours. Apart from suggestions to the contrary counsel for the defence when cross-examining the plaintiff's witnesses, appeared to be probably satisfied that miraa is perhaps not like tea and similar herbs and the court literally saw the exhibited fresh miraa stems and leaves wither and become somewhat rigid and discoloured by 4 p.m. of the second day of the trial. I am therefore prepared to find on the evidence that for purpose of this particular case the miraa was perishable and of no commercial value "to the plaintiff" if 36 hours elapsed before its arrival at its destination. [The judge then considered the evidence concerning the amount of miraa seized and continued.] I find that the miraa actually seized by the police cost the plaintiff Shs. 2000/-. I now turn to the question of the alleged negligence on the part of the police. It was not and could not have been contended that the police had no authority to seize the miraa because s. 6 of the Miraa Prohibition Act (Cap. 339) provides that "all offences under the Act are cognisable by the Police". I say with respect that it appears to me that not enough attention was paid to the Miraa Prohibition Act in the preparation of the plaintiff's case. I am aware that the Kerugoya District Magistrate acquitted the two employees of the plaintiff when they were charged for being in possession of miraa without a permit. Whatever the reasons for the acquittal it is a matter quite apart from the proving of claim in this court. I propose to examine the alleged negligence on the part of the police against the provisions of the Miraa Prohibition Act. S. 3 (1) (*c*) of the Act provides that it is an offence punishable by a fine not exceeding two thousand shillings or imprisonment for a term not exceeding twelve months for any person to consume, use or be in possession of miraa unless he is permit holder. These provisions are highly prohibitory and it appears that there are thousands of offences being committed daily in relation to the consuming of the shrub. S. 3 (2) of the Act provides that it is also an offence to depart from such conditions as may be endorsed on a permit or to deliver or part with possession of any miraa to any person other than a permit holder authorised to purchase or possess miraa. There has been a direct conflict between the evidence for the plaintiff and that of the defence on the question of the production of permit and licence. The two employees of the plaintiff said that they produced the permit and licence as soon as they were taken to the police station on 26 March 1970, whereas the police witnesses and in particular the Inspector in charge said that having released the men on bond on 27 March 1970 under instructions to fetch and produce the licence and permit they produced them on 28 March 1970. Specific reference will be made to this exhibit later. Returning to the provisions of the Act, s. 4 deals with permits and provides:

> 4(1) The Provincial Commissioner may issue a permit, subject to such conditions, to be specified in the permit as he may see fit to impose, to any

person resident in the area specified in the Schedule to this Act authorising such person to sell, purchase, consume, use or possess miraa.

(2) No permit issued under the provisions of subsection (1) of this section shall authorise any permit holder to sell, deliver or part with possession of miraa to any person other than a permit holder authorised to purchase or possess miraa.

It is clear that the plaintiff is saying that the miraa found in the possession of his two employees being his property any licence or permit issued to him also authorised the two men to possess the miraa. In my view nothing could be more incorrect. If the provisions of ss. 3 (2) and 4 (2) of the Act are examined carefully it would be seen that the phrase "deliver or part with possession of miraa to any person" is of particular significance. The phrase means precisely what it says and in my opinion this is so within the purpose and intendment of the Act because the mere consuming of miraa without a permit is an offence. A man found in possession of miraa at Kerugoya cannot plead that he is in such possession on behalf of his master in Meru even if the master has a permit; he must in his own right produce his own lawful permit to possess the shrub. Exhibit 1 is a Trade and Occupation Licence issued by the Meru County Council and it was issued to Julius & Kobra Maute, whereas the plaintiff's name is Julius Bariu. What is more the stated scope of the licence is "Trading in Miraa at Meru District", and Kerugoya unlike Meru is not one of the scheduled areas with respect to which the Provincial Commissioner may issue permits to possess miraa. Indeed, in the light of my interpretation of the strict prohibitory provisions of the Act I am led to wonder what is the position with respect to distribution of miraa in Mombasa, Kisumu and other places not yet included in the Schedule to the Act. I find that the plaintiff not having shown that he parted with the consignment of miraa in accordance with the provisions of s. 4 (2) of the Act the alleged handing over to his two employees for transportation to Nairobi was illegal. I also find that unless and until either of the plaintiff's two employees produced a valid permit in his own name entitling him to possess miraa the possession of the two employees at Kerugoya was prima facie illegal and further that the miraa having been illegally dispatched and seized in a district outside the scheduled miraa areas the illegality of the dispatching and the illegal presence of the miraa per se at Kerugoya left the miraa a legally unprotected thing in a statute-prohibited place. If I correctly understand the provisions of the Act I would liken them to those in Acts dealing for example with explosive substances and devices where the manufacturer, carrier, warehouse-keeper and ultimate recipient must all be holders of some form of authority to deal with such goods. Returning to exhibit 1 I find that the plaintiff has not shown that the name on the trading licence for Meru District is his or that of either of his two employees. The Police Inspector said he became suspicious when he observed that the licence did not bear the name of either of the two transporters who nevertheless insisted that the miraa was their property; and I consider that in the circumstances he was correct. Whatever the procedure adopted by dealers in miraa over the past 20 years it appears to me that in order to ensure the unhindered transporting of miraa from one permitted area to another the transporter must be in possession of at least two documents, i.e. (1) his own authority to be in possession of the shrub and (2) a copy of the authority of the intended recipient where he intends to part with the possession of the shrub. The court has seen in the latter regard, although it was claimed by the plaintiff that the consignment was destined for Nairobi for further or final distribution. The gist of the evidence of alleged negligence on the part of the police is that although the two men gave the relevant licence and permit to the police when apprehended they were locked up and never taken before a magistrate until 31 March 1970, by which time the miraa had become useless.

The police claim that the men were released on 27 March 1970 and sent off for the permit and licence and that they returned on 28 March 1970 with exhibit 1 when they were first taken to court, and that after their apprehension on the 26th they were locked up for the night because they were creating a disturbance at the station demanding the release of the miraa. It is not in dispute that the men were taken to the police station at about 5 p.m. on the 26th. It is in evidence and noticed that 27 March 1970 was a public holiday, the next following day being a Saturday when the magistrate's court Kerugoya, was only open for business for half a day. It is the plaintiff's pleading and this court's finding that miraa perishes and becomes useless within 24 to 36 hours. The plaintiff said that he purchased the miraa at Kangeta Market, Meru, at about 8 a.m. on 26 March 1970. I therefore find that the commodity shall have become useless and of no value to the plaintiff by 8 p.m. on 27 March 1970, the said 27th being dies non. Plaintiff's counsel contended that on the evidence of the plaintiff's witness the police were in breach of a statutory duty to ensure that the miraa did not perish and he referred to the second proviso of s. 20 of the Police Act (Cap. 84):

> "if anything is seized as aforesaid he shall forthwith take or cause it to be taken before a magistrate within whose jurisdiction the thing was found to be dealt with according to law."

I am very doubtful and hesitate to conclude that the phrase "before a magistrate" except in special circumstances includes after normal working hours, his sitting room or club and dies non wherever he might be; and at all events I am not prepared to divorce this proviso from the intention of s. 20, i.e. "Power to search in special circumstances". On the pleadings and evidence in this case I prefer to remind myself of s.25 of the Act which provides:

> 25(1) "Any police officer in uniform and any police officer not in uniform, who, on being required to do so, produces his certificate of appointment, may stop and detain any person whom he:
>
> (*a*) sees doing any act or thing, or
>
> (*b*) sees in possession of any thing, or
>
> (*c*) suspects of doing any act or things or of being in possession of any thing for which a licence is required under any written law, and may require such person to produce such licence, and may when in uniform, stop and search any vehicle which he has reasonable grounds for suspecting is being used in the commission of an offence against any written law."

The section proceeds to authorise the police to arrest any person who fails to produce such licence without warrant and to satisfy the police that he will duly answer ensuing proceedings against him. I therefore find that the miraa came into the possession of the police by virtue of subsection (1) (*b*) and (*c*) above and as stated earlier I have found that the miraa itself was a legally unprotected thing in a statute-prohibited area when the police took possession of it; and by my interpretation of the Miraa Prohibition Act both the police and the Kerugoya magistrate would have had themselves to thank had they released the miraa contrary to the provisions of that Act. In my view the statutory duty cast upon the police to protect and avoid negligence to the plaintiff's goods is a duty which the plaintiff must show was owed to him. In the matter of showing the amount of the miraa purchased at Meru the plaintiff and his witnesses said that no receipts are issued in the Kangeta Market, but he nevertheless secured the production of a photo copy of the duplicate cess receipt in relation to the purchase. I am therefore of the opinion that if in fact either of the plaintiff's employees was the holder of a permit to possess miraa similar evidence would have been adduced in proof thereof. Lack of such proof in the circumstances of the case is a vital matter in order to bring the consignment of miraa within the

scope of legal protection by the police. Indeed, consequent upon my findings in relation to the miraa being statutorily unprotected in the hands of the police within a prohibited district I am forcefully inclined to think that it is contrary to the intention of the legislature that miraa found in a prohibited area should be protected except from authorised use. I do not consider that I am called upon to examine other aspects of the evidence led in the case having found on the evidence as a whole that the plaintiff has failed to prove that he is personally licensed to deal in miraa and that with respect to the consignment of miraa involved in the case he has failed to prove that either on behalf of himself or at least one of the transporters there was in existence a valid permit and other necessary document or documents casting upon the police a duty of care of the miraa within a prohibited district. The court therefore finds that the plaintiff has failed to prove his case. The suit is accordingly dismissed with costs to the defendant.

*Order accordingly.*

For the plaintiff:
*O. Kapila* (instructed by *D. V. Kapila & Co.*)

For the defendant:
*A. A. Mulla* (State Counsel)

## Wainaina and others v Republic
[1973] 1 EA 182 (HCK)

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|---|---|
| **Division:** | High Court of Kenya at Nairobi |
| **Date of judgment:** | 29 October 1972 |
| **Case Number:** | 589/1972 (175/72) |
| **Before:** | Madan Ag CJ and Hancox J |
| **Sourced by:** | LawAfrica |

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*[1] Criminal Law – Incitement to violence – Crowd throwing stones and shouting – Offence established – Penal Code, s.* 96 (*K.*).

*[2] Criminal Practice and Procedure – Charge – Alternative charge – No finding to be made on alternative charge when conviction on first charge.*

*[3] Evidence – Accused – Right of co-accused to cross-examine – Not complied with – No failure of justice as evidence not adverse to co-accused.*

*[4] Evidence – Corroboration – Of police evidence – Not required by law.*

**Editor's Summary**

The appellants were charged with incitement to violence and in the alternative with creating a disturbance in a manner likely to cause a breach of the peace. It was proved that they had been part of a hostile crowd of hundreds and all of the appellants had thrown stones at the police while speaking or shouting, although only in respect of three of them were the words identified. The magistrate found

that the throwing of stones in these circumstances amounted to incitement to violence and also the lesser offence which he said was merged in the greater.

On appeal it was contended that his finding was wrong and that corroboration of the evidence of the police was required.

**Held –**

(i) the throwing of stones and the uttering of words indicated to other persons that it was desirable to do other acts calculated to do physical injury to the police;

(ii) there is no requirement that the evidence of police witnesses be corroborated;

(iii) the magistrate should have made no finding on the alternative charge;

(iv) the other accused should have had the opportunity of cross-examining the

accused who gave evidence, but as none of his evidence was adverse to them, there had been no failure of justice;

(v) the magistrate should not have commented adversely on a sentence passed by another magistrate.

Appeals dismissed.

**Cases referred to in judgment:**

(1) *R. v. M'Carthy*, [1903] 2 I.R. 155.

(2) *Ondimu v. R.*, [1952] 19 E.A.C.A. 239.

**Judgment**

The considered judgment of the court was read by **Madan Ag CJ:** The appellants were charged first under s. 96 (*a*) of the Penal Code with the offence of incitement to violence, the particulars of which were that they:

> " . . . On 23 April 1972 at Mathare Valley, in Ndururu Village, within the Nairobi Area, jointly with others not before the court, without lawful excuse, threw stones and sticks at a body of Police Officers on duty, indicating that it was desirable to bring physical injury to the said officers, an act which was calculated to bring physical injury to the said body of Police Officers."

In the alternative they were charged with creating a disturbance in a manner likely to cause a breach of the peace contrary to s. 95 (1) (*b*) of the Penal Code.

Both these charges arose out of an incident which took place in Mathare Valley on Sunday 23 April last. Corporal Godana and four other police officers went to Mathare Valley at about 5.30 p.m. and purported to arrest some six persons (including the first appellant) for illegal possession of liquor. However, there was a struggle which attracted many people from nearby and in the result the police were forced to release the persons whom they had arrested and they went to Muthaiga police station for assistance. Two vehicles, a police van and a 999 car, returned to the scene with reinforcement to find a crowd of some two to three hundred people who were clearly hostile to them. Both these charges arise out of what transpired on this second occasion when the police visited Mathare Valley. The magistrate set out very clearly and succinctly the facts of the case and there is no need for us to repeat them here. Suffice it to say that all 16 appellants were arrested and each of them was positively identified by the arresting officer concerned as having thrown a stone or stones at the police. However the police witnesses were only able to swear positively that three of the appellants uttered discernible words. In the case of the other appellants the evidence was to the effect that their lips could be seen to be moving, or that they were heard to speak words in a language which the witness in question could not understand, and it is this which has occasioned us some difficulty in this case, inasmuch as we shall have to decide whether there was sufficient evidence for the magistrate to reach a finding of guilt on the more serious charge. We will return to this aspect later. So far as the evidence was concerned we are satisfied that the magistrate accurately summarised the defence of each appellant in his judgment. He considered these defences, and after consideration rejected them. He believed the evidence of the prosecution witnesses and made a finding adverse to each appellant. In their respective appeals all the appellants, inter alia, repeated the substance of what they had said before the lower court.

Mr. Onyango Otieno, for the first appellant, complains that his client was not

properly identified and that there were discrepancies which should have indicated to the magistrate that the identification of his client was, at the very least, mistaken. In particular he refers to the evidence of inspector of police Kirure, who stated that when he and his party arrived at the scene in the police van there were no other police present but that some came immediately in a 999 car. It is urged that if the 999 car had in fact arrived first (as P.C. Kinyanjui testified) then the other police would necessarily have been at the scene. In this connection P.C. Kinyanjui testified that Corporal Godana, the inspector, and the rest of that party arrived in a van some 3 to 5 minutes later. We were also invited to consider the fact that Juia Road and Mathare Valley were almost one and the same place and it was urged in these circumstances that it was quite unsafe to allow the conviction of the first appellant to stand.

We have considered this matter carefully but we do not feel that these differences in any way affected the credibility of the prosecution witnesses concerned. It is quite clear that the police had to deal with an extremely hazardous situation and we consider that it is only to be expected that differences of this kind will occur. Indeed some indication of the reliability of the police witnesses is to be found in the fact that, except in the case of the three appellants we have already mentioned, none of them was prepared to swear that any of the other persons concerned had used particular or specific words.

Mr. Njau in his argument before us submitted that there should have been corroboration of the police witnesses and that it was essential for the magistrate to have considered the time factor. He further submitted that the exhibits, in particular a log which was said to have been held by the 13th appellant, should have been produced. We do not agree that it was necessary, and probably it was not even possible, for the police to bring such exhibits to the court. As to the other matters we think that the magistrate adequately considered the question of time in view of the fact that the events flowed closely into one another. We do not agree that there is any legal requirement for corroboration of any of the police witnesses, and neither do we think the circumstances of this case made it necessary for the magistrate to look for corroboration. Insofar as the evidence of the police officers overlaps, their general account of the pattern of events is the same. As to the legal position we deal with this below.

We think that the magistrate gave careful consideration to all the evidence and we are quite unable to say that he was wrong in accepting the prosecution evidence and in rejecting the respective defences of the appellants. In the case of Alex Mukira, who gave evidence on oath, we think perhaps the magistrate should not have compressed his evidence quite as much as he did, but equally in the case of this appellant we are quite unable to say that he was wrong in rejecting his defence and in accepting the prosecution evidence applicable to him.

It follows from what we have said above that we consider the magistrate came to a correct finding on the facts and it only remains for us to consider what the facts, as the magistrate found them to be, amount to in law.

We have no doubt that the magistrate’s finding in respect of each appellant that he threw a stone or stones at the police amounts to the offence of creating a disturbance contrary to s. 95 (1) (*b*) of the Penal Code. We do not quite understand the magistrate’s method of dealing with this charge, holding as he did that it was merged in the greater offence under s. 96 (*a*) of the Penal Code. Clearly what he should have done is to have made no finding on the second and alternative charge. However, be that as it may we have to ask ourselves whether the actions of those appellants who are proved to have thrown stones at the police amount to the offence of incitement to violence.

Mr. Njau particularly attacked the magistrate's direction in law in which he stated as follows:

> "In my opinion if a person who is a member of a mob throws a stone at an identifiable body of persons he clearly performs an act. The throwing of a stone by such a person is an indication (in my view) to the other members of the assembly that it was desirable to repeat the exercise. If one member of a violently disposed and angry crowd throws a stone, clearly other persons in the crowd are quite likely to follow the example. Thus the original act of stone throwing (and any subsequent examples of the same act), in my view indicates that stone throwing is desirable. With regard to stone throwing I can only say that such missiles propelled in such a manner are notoriously inaccurate. Stone throwing is however a dangerous exercise, a frightening spectacle, and a contagious activity. Thus a person who throws a stone in a mob is in my opinion caught by s. 96 of the Penal Code. I leave open the question of whether an individual act of stone throwing by a lone person at an identifiable body of persons is within the section because in my opinion this situation does not arise on the evidence submitted to the court in this case. I am satisfied that all the accused people in this case were members of an excited and violently inclined assembly of persons."

What the magistrate is saying there in effect is that while it may not be sufficient for this offence to be established if one person throws a stone, if that person does so as a member or in the presence of an excited and hostile crowd it can amount in law to the offence of incitement because other persons are likely to follow his example. We agree that in a charge of this nature, even, and perhaps particularly, in the case of an excited and hostile crowd, it is incumbent upon the prosecution to prove that the accused person, or persons, either uttered words or did acts which unequivocally and beyond reasonable doubt demonstrated that that person or those persons indicated or implied to other persons that it was or might be desirable to do the acts complained of. We have looked at the case of *Ondimu v. R.*, [1952] 19 E.A.C.A. 239 at p. 240. This was a case of verbal instigation to murder in which the Court of Appeal said:

> "We think a trial Judge should, before convicting on verbal incitement alone, be abundantly satisfied that the words used can bear only one implication."

After careful consideration we think that the magistrate's direction, in which he took into account the particular circumstances of this case, was right. We do not wish to widen or stretch unduly the words of this section, which is a penal enactment, to cover other sets of circumstances. But we think that given the situation that existed in this case, the acts of each of the accused persons in throwing one or more stones at the police, as they were proved to have done, amounted to the offence as defined in the section. Moreover, each one of the appellants was proved to have been shouting (although, save in the case of three of them, no evidence was given as to exactly what was uttered). While we do not think that the words chanted generally by the crowd such as "Kill them" and "We want to kill two or five police to show that the country is ours" and "Do not arrest these people . . . or we shall beat you up" can necessarily be imputed to any of the respective appellants, nevertheless we take the view that the evidence sufficiently shows that each one of them was taking an active part in the hostile actions of the crowd towards the police and indicated that it was desirable for others to do so. Some suggestion was made in the course of the hearing of these appeals that the words uttered by some of the crowd might have been favourable to the police, such as urging the crowd to desist from attacking the police. We do not think such a conclusion is reasonable in the circumstances.

While the marginal note to s. 96, and the statement of the offence in the

charge sheet, refers specifically to incitement, the actual wording of the section requires that the words or acts complained of shall indicate or imply that it is or might be desirable to do a further act calculated to bring death or physical injury to, inter alia, any class or body of persons – in this case the police. The marginal note is of assistance in an exercise of construction but it cannot control the enacted words. Thus, tested by the plain wording of this section, we think that by throwing stones and uttering words (never mind that the words could not be distinguished) the appellants (and each of them) did indicate to the persons there assembled that it was desirable to do other acts calculated at the very least to bring physical injury to the police officers. But the very word "incitement" is defined in the Shorter Oxford Dictionary as follows:

> "to put in motion, to urge, to spur on, to stir up, to instigate, to stimulate."

This definition must of course be considered in conjunction with the following passage from the judgment of O'Brien, C.J., in *R. v. M'Carthy*, [1903] 2 I.R. 155 as follows: "to incite a person to do an act naturally means that the incitement reached to the persons alleged to be incited."

This leaves the ejusdem generis point raised by Mr. Onyango Otieno. He submitted that the words "or does any act or thing" in s. 96 of the Penal Code should be construed ejusdem generis with the preceding words in this section. We do not agree and we would observe that before this rule of construction can apply it must be shown that the words concerned comprised a definite genus or class, which is not the case here.

What we have said above applies a fortiori in the case of the 1st, 11th and 15th appellants. The 1st appellant, Stanley Wainaina, was proved (so the magistrate found) to have shouted "Beat them, beat them". Alex Mukira was proved to have uttered the words "Kill, kill". John Mwangi was proved to have shouted "Kill them, kill them". It is obvious that such words would indicate not only to members of an excited and hostile crowd, but also to any reasonable person, that it would be desirable to do an act calculated to bring death or physical injury, as the case may be, to the police officers who were present.

The result is that we are of the opinion that the magistrate correctly stated the law in his judgment, dealing as he was with the particular circumstances of this case. We therefore uphold the convictions of all the appellants and dismiss the appeals accordingly.

This leaves the question of sentence. The magistrate gave what were in our view adequate reasons for differentiating between the respective appellants when he passed sentence. We have borne in mind the earlier sentence passed on the first accused, but we are unable to say he erred in principle in the case of any of the appellants. Indeed we think he went to great pains to reach a correct decision on sentence.

There are one or two other matters to which we desire to call attention. The first of these is that when Alex Mukira gave evidence on oath the other accused persons should have been given an opportunity to cross-examine him. This was not done in the instant case, but since the evidence given by Mukira was not in any way adverse to the other appellants no prejudice could possibly have been occasioned by this omission. The second matter is that we think it would have been desirable in a serious case of this kind for the prosecution to have been given an opportunity to have stated the antecedents and/or previous convictions of the accused persons before sentence was passed. There is no record that this was one, but in view of what we have said above this cannot in any way affect the result of these appeals. The third and most serious matter to which we desire to call attention is the passage at the end of his reasons for sentencing in which

the magistrate severely criticised the sentence passed on the first accused by the senior resident magistrate, Mr. Sachdeva. The magistrate so far forgot himself as to cast aspersions on the senior resident magistrate's proper understanding of the position and upon the sentence passed. It was not his function to do this and indeed we would have thought it quite unethical to make such remarks. We desire to make it crystal clear that this kind of thing will not be tolerated and we hope that it will not occur again.

*Appeals dismissed.*

For the first appellant:
*J. W. Onyango-Otieno*

For the fourteenth appellant:
*N. K. Njau*

The other appellants unrepresented.

For the respondent:
*K. A. Amoo-Adare* (State Counsel)

## W v Income Tax
[1973] 1 EA 187 (HCT)

| | |
|---|---|
| **Division:** | High Court of Tanzania at Dar es Salaam |
| **Date of judgment:** | 12 July 1972 |
| **Case Number:** | 34/1971 (192/72) |
| **Before:** | Mwakasendo Ag J |
| **Sourced by:** | LawAfrica |

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*[1] Advocate – Audience – Tanzania Legal Corporation – For appellant appointed by parastatal body – No right of audience – Tanzania Legal Corporation* (*Establishment*) *Order* 1970, (*T.*).

**Editor's Summary**

The respondent objected to the appellant being represented by the Tanzania Legal Corporation. For the appellant it was contended that the Tanzania Legal Corporation was bound to safeguard the interests of the parastatal body which had appointed the appellant as a receiver.

**Held –**

(i) the interest of a parastatal body did not make it the client;

(ii) the appellant was not properly represented.

Order accordingly.

**No cases referred to in judgment.**

**Judgment**

**Mwakasendo Ag J:** These six appeals, which by consent have been consolidated, are brought under s. 101 (1) (*b*) (ii) of the East African Income Tax Management Act (Cap. 24). Mr. D. M. Bishota, for the Commissioner-General, has taken a preliminary point which has been argued at some length on both sides. Put shortly, the point taken is that the Tanzania Legal Corporation, a body corporate purporting to act for the appellant, has no "locus standi" in prosecuting this appeal on behalf of the appellant.

Rules governing income tax appeals coming before this court are the Income Tax (Appeal to the Tanzania High Court) Rules. Rule 17 of the Rules prescribes the procedure to be followed in these appeals and it provides as follows:

> "17. The rules determining procedure in civil suits before the Court in so far as such rules relate to recognised agents and advocates . . . and to the enlargement of time shall, to the extent to which such rules are not inconsistent with the Act or these Rules, apply to an appeal to a judge under the Act as if such appeal were a civil suit but, save as provided in these Rules, the procedure relating to civil suits before the Court shall not apply to any such appeal."

O. 3 r. 1 of the Civil Procedure Code prescribes the mode of appearance of parties before this Court. It reads:

> "1. Any appearance, application or act in or to any Court, required or authorized by law to be made or done by a party in such Court, may, except where otherwise expressly provided by any law for the time being in force, be made or done by the party in person or by his recognized agent or by an advocate duly appointed to act on his behalf.
>
> Provided that any such appearance shall, if the Court so directs, be made by the party in person."

It seems to me that O. 3 r. 1, is inconsistent with paragraph (***a***) of s. 103 of the East African Income Tax Management Act in so far as the former provision permits a party to appear, apply or do any act before this court by his recognised agent. It follows therefore that in accordance with r. 17 of the Income Tax (Appeal to the Tanzania High Court) Rules, r. 1 of O. 3 of the Civil Procedure Code will govern the appearance of the parties in this case to the extent which it does not conflict with the express provision of paragraph (*a*) of s. 103 of the E.A. Income Tax Management Act.

It is in the light of these provisions of the law that I must now turn to respondent's preliminary point.

It is not disputed that the Tanzania Legal Corporation makes an appearance in this matter by virtue of paragraph 4 (1) (*a*) of the Tanzania Legal Corporation (Establishment) Order, 1970, which enjoins it "to provide legal services to parastatal organisations on such terms and conditions as may be agreed upon between the Corporation and the parastatal Organisations". It is, however, contended by the respondent that the appellant, in his capacity as receiver or otherwise, is not such a parastatal organisation as may properly avail itself of the services of the Tanzania Corporation in terms of the aforesaid Order. The aforesaid Order, as rightly pointed out by Mr. Bishota, envisaged only body corporates as the proper entities which could utilise the legal services provided by the Tanzania Legal Corporation. In cases where the entity concerned is a body of persons whether corporate or unincorporated, sub-paragraph (*c*) of paragraph 2 of the Order provides that such a body of persons must be designated by the Minister responsible for legal affairs by Notice in the Gazette to be a parastatal organisation for the purposes of the Order.

With respect, I find it difficult to resist the force of Mr. Bishota's arguments on this matter. But Mr. Mukami of the Tanzania Legal Corporation argues equally forcefully that the construction of the order as canvassed by the respondent is the wrong one. It is submitted by him that the Tanzania Legal Corporation, who are advocates by virtue of the aforesaid Order, are duty bound to safeguard the interests of their clients, in this case the Permanent Housing Finance Company (T.), Ltd., which as commonly admitted, is a parastatal organisation in terms of sub-paragraph (*b*) of paragraph 2 of the Tanzania Legal Corporation (Establishment) Order, 1970. Developing this argument a step further, Mr. Mukami argues that as the sums of money which would be paid to the Commissioner-General of Income Tax by the appellant, in the event of this appeal failing, are the same sums as would be paid by him in his capacity as receiver to the Permanent Housing Finance Company (T.) Ltd., the Tanzania Legal Corporation as legal counsel to this parastatal organisation are entitled to appear in this matter in order to see that their client's interests in the matter are not adversely affected. It would appear, if I have rightly understood Mr. Mukami's argument on the point, that this is the only ground on which the Tanzania Legal Corporation asserts a right to appear for the appellant.

I must clearly confess my inability to understand how a client-advocate

relationship is created between the appellant and the Tanzania Legal Corporation. While it is understandable that the Permanent Housing Finance Company (T.) Ltd. should be most interested in the result of these proceedings, I cannot see how their interest in the matter would entitle them to appear before this court by advocate or otherwise. Least of all, can I comprehend how these same advocates while claiming to act for the Permanent Housing Finance Company (T.) Ltd. can at the same time act for or appear on behalf of the appellant. It is abundantly clear, in my opinion, that if one puts a proper and reasonable construction on the relevant provisions of the Tanzania Legal Corporation (Establishment) Order, 1970, one would inevitably reach the conclusion advocated by Mr. Bishota for the respondent. This conclusion is clearly this, that the appellant in this case is not and cannot be an entity which can avail itself of the services rendered by the Tanzania Legal Corporation. Nothing in the documents of appeal filed in this court or in the points raised in argument by Mr. Mukami would disclose any client-advocate relationship between the appellant and the Tanzania Legal Corporation. That being so, I do not think it would be correct to say that the Tanzania Legal Corporation appears in these proceedings as the advocates of the appellant. I would accordingly uphold Mr. Bishota's submission on the preliminary point and rule that the Tanzania Legal Corporation has no "locus standi" in prosecuting this appeal on behalf of the appellant.

Before I conclude this ruling, however, I should like to deal with only one other point raised by Mr. Mukami, which though it strictly relates to matters in dispute in the appeal itself, was a point taken up by Mr. Mukami as the basis of their claim to be the proper advocates of the appellant in this case. Mr. Mukami briefly argued that as their client, the Permanent Housing Corporation, would suffer financially if this appeal were lost, they, as their advocates, were entitled to appear and safeguard their clients' interest in the proceedings. I do not think there can be any doubt that if this appeal fails, the Permanent Housing Finance Company (T.) Ltd. stand to lose a considerable amount of money to the Commissioner-General of Income Tax. But what I cannot see is how this argument can make the Permanent Housing Finance Company (T.) Ltd. a party to these proceedings in terms of the Income Tax (Appeal to the High Court of Tanzania) Rules whereby the only persons who could appeal against a decision of the Commissioner-General of Income Tax are the Commissioner-General of Income Tax and any persons who under s. 101 or s. 105 (1) of the E.A. Income Tax Management Act have rights of appeal to a judge. It is inconceivable how under other of these sections the Permanent Housing Finance Co. (T.) Ltd. could properly be considered as an "appellant" in the context of the Income Tax (Appeal to the High Court of Tanzania) Rules.

Furthermore, it would appear to me that Mr. Mukami's arguments in this connection are grounded on a misapprehension of the facts of the case. Although at this stage I need not go into the facts of the case, it is clear from a perusal of the Order of this Court dated 8 August 1965, appointing the appellant receiver of the immovable property comprised in the certificate of Title No. 186023/8, that all the arguments advanced on this particular point are based on a false premise. Be that as it may, I can find nothing on the facts as are disclosed in the appeal documents to commend any of his arguments on this aspect of the matter to the attention of this court.

Finally, it seems to me that as I have upheld respondent's preliminary point, this appeal cannot continue until and unless the appellant either personally appears to prosecute the appeal or is represented by a competent counsel in terms of s. 103 of the East African Income Tax Management Act.

*Order accordingly.*

For the appellant:
*J. M. Mukami* (instructed by the Legal Corporation of Tanzania)

For the respondent:

*D. M. K. Bishota* (Principal Assistant Counsel)

# Kasana Produce Store v Kato
[1973] 1 EA 190 (CAK)

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|---|---|
| **Division:** | Court of Appeal at Kampala |
| **Date of judgment:** | 23 June 1969 |
| **Case Number:** | 29/1969 (220/70) |
| **Before:** | Sir Charles Newbold P, Duffus VP and Law JA |
| **Sourced by:** | LawAfrica |
| **Appeal from:** | The High Court of Uganda – Sheridan, Ag. C.J. |

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*[1] False imprisonment – Essentials of – Imprisonment without order of court.*

*[2] Malicious prosecution – Essentials of – Imprisonment by order of court following prosecution – Malicious prosecution the proper remedy.*

*[3] Civil Practice and Procedure – Pleading – Against firm – Manner of.*

**Editor's Summary**

The respondent sued the appellant for damages for false imprisonment and malicious prosecution and succeeded on both, being awarded Shs 4,000/- damages. The facts are set out in the judgment of Duffus, V.-P.

The appellant appealed, contending that the torts had not been proved.

**Held –**

(i) an action for false imprisonment lies when there has been an imprisonment without any order of a court;

(ii) where the imprisonment is by order of a court following on a prosecution the appropriate action is for malicious prosecution;

(iii) on the facts the action for false imprisonment was not made out;

(iv) the award of damages would be reduced by Shs. 500/-.

*Observations* by Sir Charles Newbold, P., on the manner of drafting claims against businesses sued in firm names.

Appeal allowed.

**No cases referred to in judgment.**

**Judgment**

The following considered judgments were read. **Duffus VP:** This is a claim by the respondent Henry Kato, an African trader of Kisoga Village, against the appellant, the Kasana Produce Store, described

in the plaint as “a firm of African Traders whose place of business and address for service in this suit is Plot No. 20 South Street, Kampala”.

The real identity of the defendant appellant remains anonymous throughout the trial and the appeal, and we still do not know whether this is a partnership of several persons, or one individual trading under this name – all that does emerge, and I will consider this further, is that the firm has on this occasion acted through a Mr. “Kintu”. No issue was, however, made about the firm’s identity, the respondent was content to accept a judgment against the “Kasana Produce Store” and the appellant, the “Kasana Produce Store”, satisfied to remain anonymous in appeal.

The plaintiff claims:

> “1. The defendant on or about the 29 November 1962, falsely and maliciously and without any reasonable or probable cause, made a false complaint of theft against the plaintiff and caused the plaintiff to be arrested by an officer of the Buganda Government (H.H. The Kabaka’s

Government) on the 29th November 1962 and imprisoned from 29th November 1962 to 3rd December 1962.

2. On 3rd December 1962 the plaintiff was released on bail and was brought before a magistrate of H.H. The Kabaka's Government, Bombo, on 13th December 1962 who having heard the complaint and charge dismissed the same and discharged the plaintiff out of custody.

3. By reasons of the matters hereinbefore complained of the plaintiff was deprived of his liberty as aforesaid and suffered damage."

The defence is a general denial of the claim, and the only new issue raised was jurisdiction, but this was abandoned at the trial.

The respondent gave evidence and called two witnesses. The appellant called no evidence but relied on the legal submissions of his advocate on the evidence called by the respondent.

The facts as established show that the respondent, a trader and a farmer, rented a store to the appellant firm in 1962. The lease expired on 24 November 1962, and the appellant firm refused to give up possession of the store. The respondent dealt with a Mr. Kintu acting on behalf of the appellant firm. He wrote to and saw Mr. Kintu, but he still refused to give up possession. He sought the aid of the police, and on the appellant firm still refusing, the police sent an askari, detective constable Mumurach, who cut off a lock and entered the store. The store was empty except for a coffee machine and an iron bar. Then followed the acts the subject of this action. The appellant charged that the respondent stole Shs. 9,000/- worth of coffee from the store.

The respondent was then either arrested and taken or was summoned before the Gombolola Chief. There he was charged by Mr. Kintu acting for the appellant firm before the deputy Gombolola Chief, Mr. Walusimbi, and was remanded in custody for three days, and then bailed, and sent to the magistrate for trial, where he was tried and acquitted of the charge on the 13 December 1962.

The defence called no witnesses. Both advocates addressed the Court. In the course of his address Mr. Dave, who appeared for the respondent, made it clear that his claim for damages was based both on a false imprisonment and on malicious prosecution.

In a considered judgment the acting Chief Justice held that the wording of the plaint was sufficient to cover both a claim for false imprisonment and for malicious prosecution and after considering the judgment, he held:

"There is no answer to the claim for false imprisonment. I also think that the necessary ingredients to support a claim for malicious prosecution are present:

(1) The plaintiff was prosecuted by the defendant in that the law was set in motion against him by the defendant on a criminal charge. The test is not whether the criminal proceedings have reached a stage at which they may be correctly described as a prosecution, but whether they have reached a stage at which damage to the plaintiff results. (*Mohammed Amin v. Bannerjee*, [1949] A.C. 322.) In the context of African Local Government Walusimbi had the necessary judicial authority to entertain the complaint;

(2) the prosecution was determined in the plaintiff's favour;

(3) it was without reasonable or probable cause. On the evidence the defendant did not believe in the justice of his own cause (Clerk & Lindsell on Torts (12th Edn.), p. 902);

(4) it was malicious. The defendant had improper and indirect motives in bringing this false charge against the plaintiff."

The judge then went on to award Shs. 200/- special damages and Shs. 4,000/- general damages. He awarded one set of damages and did not distinguish between the two claims of false imprisonment and malicious prosecution.

In this court the appellant relies on four grounds of appeal. I quote:

> "1. The trial judge misdirected himself by holding that plaintiff's claim disclosed a cause of action both for false imprisonment and malicious prosecution.
>
> 2. The trial judge erred in not assessing the general damages for false imprisonment and malicious prosecution separately.
>
> 3. The trial judge misdirected himself by holding that on the evidence before him the torts of malicious prosecution and false imprisonment were committed by the defendants and/or its servants or agents.
>
> 4. The trial judge erred in holding that on the evidence before him criminal proceedings were instituted against the plaintiff at the instance of the defendant without reasonable or probable cause and maliciously with a 'view of taking advantage'."

I do not propose to deal with these grounds of appeal separately but will take them into account in considering generally whether the respondent has established his claim to damages on either the tort of false imprisonment, or for malicious prosecution and whether the Chief Justice's award has been correctly made.

The main difference between the torts of false imprisonment and malicious prosecution in cases where there has been an unlawful imprisonment depends on whether the imprisonment follows as the result of a judicial order. If the arrest is effected by a ministerial officer, such as by a constable acting at the request of or on the authority of a defendant then broadly speaking an action for false imprisonment lies, but if the imprisonment is by an order of the court following on a prosecution, then the appropriate action would be one for malicious prosecution. I would here separately consider the established facts as applied to these two causes of action.

The facts as established here are divided into two periods. First the question whether there was an arrest before the respondent was taken before the Gombolola Chief. The cause of action here would be that of false imprisonment. Then the second period follows the charge before the Gombolola Chief and then the subsequent remand and trial and acquittal. Here the cause of action is one of malicious prosecution.

On the false imprisonment claim the respondent must first establish that he was arrested and that the defendant authorised the arrest. The evidence on this question is extremely vague, and his arrest has not in my opinion been satisfactorily established. Thus at one stage the respondent said that he went before the Gombolola Chief because he was asked to go there. He said he was arrested by the Mulaka Chief and taken to prison, but this was after he had been before the court of the Gombolola. The Mulaka Chief was not called. It has not, in my view, been established that he was arrested before he went to the Court of the Gombolola Chief, or that if this was done, that it was on the authority of the appellant. The three-day remand was as the result of a judicial order. In my view the finding that there was a false imprisonment cannot be sustained.

The claim for malicious prosecution is quite different. Here in my view the respondent has clearly established that he was prosecuted by the appellant, acting through Mr. Kintu. All three witnesses gave evidence to this effect. The respondent in his evidence said:

> "Then the defendants came and said I had stolen things from the store.

> . . . Kintu made the complaint at the Gombolola. At the Gombolola Kintu said I had stolen coffee worth Shs. 9,600/- and the weighing machine."

Then the 2 P.W. said:

> "Kintu was there as a complainant."

and the 3 P.W. said:

> "The coffee belonged to Kasana Produce Store. Kintu came in their name. He confirmed the allegation. I charged the plaintiff."

and later:

> "Kintu made the charges."

Then there was the evidence of all three witnesses that the respondent was tried and acquitted. He was charged with stealing coffee that never existed. There was evidence that the charge was that he stole the coffee when he broke the lock and entered the store and the evidence established the fact that there was at that time no coffee in the store.

In my view the Chief Justice was fully justified when he found:

> "I am satisfied that, in the absence of any explanation by the defendant, he sought to take advantage of the possibly high-handed action of the plaintiff and Mumurach, in breaking the padlock on the store, by inventing the theft of a large and nonexistent quantity of coffee. The defendant, through its agents, must have known that there was no foundation for this charge. It tried to turn the tables on the plaintiff for dispossessing it of the store."

There was ample evidence to support the finding that the prosecution was done without reasonable or probable cause.

Three other points arose. There was first the question of Mr. Kintu's relationship with the appellant firm. In my view it was clearly established that Mr. Kintu was the person with whom the respondent dealt with in the renting of the store, and indeed the only person conducting the various proceedings on behalf of the appellant firm, and in fact if Mr. Kintu was not a partner in Kasana Produce Store, then he was clearly a person of considerable authority in that firm and acting on their behalf in these proceedings and the Chief Justice was justified in his finding that the appellant firm was responsible for his actions. Then there was the question as to whether Mr. Walusimbi, the Deputy Gombolola Chief, was a judicial authority. The Chief Justice held that he was and this finding is in my view established by statute law. The third point was that the record of the proceedings should have been put in to establish a malicious prosecution. I agree that this should ordinarily be done but in my view this is not essential where there was other sufficient evidence, as there was in this case, to establish that there had been a malicious prosecution, and where no evidence has been called to contradict any of their facts.

A question was also raised as to the wording of the plaint. I do not think that this needs to be further considered, but I would point out that the form used here is clearly that of a claim for malicious prosecution.

I am of the view therefore that while the claim for false imprisonment fails, that the claim for malicious prosecution was established and that the Chief Justice was fully justified in his findings on this part of the claim.

On the question of damages the Chief Justice must have taken into account some element of there having been a false imprisonment before the respondent was brought before the Gombolola Court, though the far greater damage was caused by the malicious prosecution and the subsequent imprisonment and trial, but still there has to be some reduction in the damages. I would accordingly reduce the general damages to Shs. 3,500/- but I would not interfere with the

award of special damages, and I would also maintain the order awarding the respondent interest and the costs of the action.

**Law JA:** I need not repeat the facts.

On the first ground of appeal, I consider that the plaint was adequately expressed in the sense that sufficient facts were pleaded to enable the causes of action both of false imprisonment and malicious prosecution to be put forward. However, it transpired in the course of evidence that the period of imprisonment pleaded as constituting the false imprisonment, from 29 November to 3 December 1962, resulted from commitment to prison pending trial on the orders of the Gombolola Deputy Chief, who was on the judge's finding acting in a judicial capacity and this period could not, therefore, constitute false imprisonment. It is not clear whether the respondent was ever under restraint before his committal; although he claims to have been arrested by the Muluka Chief, he also says "he asked me to go there", that is to say, to the Gombolola headquarters, so he may have gone there voluntarily. I agree therefore with the Vice-President that the evidence on the cause of action relating to false imprisonment fell short of establishing that cause of action, and I consider that the appeal must succeed to that extent. I have no such doubts in relation to the cause of action relating to malicious prosecution which was amply supported by the evidence. Mr. Clerk has argued that there was no evidence that the defendant – a firm sued under its firm name – was shown to have committed the tort of malicious prosecution, either through a partner or responsible officer having authority to bind the firm. As to that, there was evidence that the false charge of stealing coffee belonging to the appellant was laid by a Mr. Kintu, who also gave evidence in support of the false charge. Mr. Kintu, according to the respondent, was the person whom he saw and to whom he wrote when dealing in matters of business with the appellant firm. This was not challenged at the trial, and in my view the judge was fully justified in describing him as an official of the firm. Mr. Clark also submitted that the judge was not justified in finding that the proceedings against the respondent were instigated maliciously and without reasonable cause, and he pointed to what the judge referred to as the respondent's "high-handed" action in breaking the appellant's padlock as an indication of reasonable cause on its part. As to this, I doubt if it was any more high-handed than a distress for rent. The respondent had consulted the authorities and was provided with a policeman who actually cut the padlock. He was entitled to possession of the premises. The building was entered in the presence of representatives of the appellant, who were able to see that it was empty. Nevertheless, the respondent was charged with stealing coffee from the building. There was ample evidence of malice and absence of reasonable cause on the part of the appellant. Nor can I agree that it was essential for the respondent to have produced the court record of the trial. I do not know what sort of records were kept in Buganda Local Courts in 1962, or whether their production would have been of any use. What happened at the trial was sufficiently proved by the respondent and the Deputy Gombolola Chief and their evidence was not challenged. Mr. Clerk was right in my view in submitting that as these were two distinct causes of action, damages should have been apportioned and not awarded as a lump sum. The appellant has succeeded in showing that no damage was proved in respect of false imprisonment. What effect does this have on the Shs. 4,000/- awarded as general damages? In my opinion very little. The greater part of these damages must have related to the malicious prosecution, which included the three days' imprisonment before trial. At the most I consider the appellant entitled to Shs. 500/- deduction from the general damages for its success in relation to the cause of action alleging false imprisonment. I would award the respondent Shs. 3,500/- damages for malicious prosecution and Shs. 200/- special damages. This appeal has partly succeeded,

but with little material benefit to the appellant and we should I think hear argument as to the costs of this appeal – I would not alter the order of costs made in the court below.

**Sir Charles Newbold P:** The appellant on his appeal has based his attack on the judgment on the submission that the plaintiff, both in his pleading and in the evidence which he led in support, was not entitled to the judgment which he had obtained in respect of either claim.

There can be no doubt that the pleadings, and by that I include the defence, are not a model of what pleadings should be. In the first place, it is not clear who the defendant is. It is a duty of a plaintiff to set out in his plaint who the defendant is and how the defendant becomes liable on the cause of action contained in the plaint. It is quite true that under O. 27 persons carrying on business as partners in a firm may be sued in the firm's name, but it is the individuals who are the defendants. The power to sue in the firm's name is merely a procedural provision enabling ease in the description of the parties to the claim. As has been pointed out by the Vice-President, there is nowhere set out in this plaint who the defendants were. The plaint sets out in the heading that the defendant is the Kasana Produce Store and the plaintiff is Henry Kato. That is perfectly permissible. It is permitted to some extent under the Business Names Registration Act and it is also permitted under the provisions of O. 27. But while there is no requirement to this effect, it is, at least, advisable and it is proper pleading that the plaint should then contain a paragraph that the defendants are Mr. A and Mr. B, who are sued in their firm's name. Furthermore, the plaint should set out clearly how the defendant comes to be liable or responsible on the cause of action contained in the plaint. If certain acts are done by a person, then it should be set out that those acts were done by the defendant or, if this is not the position, that they were done by a specified person who was acting as the agent or servant as the case may be, of the defendant, and that the defendant was liable for those acts. None of this was done in this case.

It was, therefore, open to the defendant to take steps either by asking for particulars or by serving a notice under O. 27 to ascertain who, in fact, was being sued and how that person or persons came to be liable. It would, indeed, in my view also have been better to apply to strike out the plaint. None of this was done. The defendant, in the terms of an old pleading phrase, "pleaded over" and merely denied the facts set out. At the trial, except for one or two references in the record to which Mr. Clerk has drawn attention – and it is by no means clear precisely what the submissions were in this respect – the points at issue were not clearly stated. On appeal before us the matter has been more fully covered than was covered in the court below, but, in my view, it was too late. The defendant had pleaded over and thus finds himself in the position in which he cannot, in my view, rely upon the factors to which I have drawn attention.

He can, however, raise the question whether the plaint in the form in which it is, whoever may have been the defendant, had disclosed sufficiently the causes of action of false imprisonment and malicious prosecution which it now seems the plaintiff had sought to place before the court and whether these causes of action had been supported by the evidence below. The wording of the plaint has already been given by the Vice-President. I agree that there was not sufficient evidence to support the claim for false imprisonment if it did exist and in my view the trial judge was wrong in coming to a contrary conclusion. For my part, I take a somewhat different view of the pleadings and the plaint from that taken by my brother, Law, J.A. In my view, this plaint has not set out sufficiently the facts which would amount to a cause of action for false imprisonment. The nature and wording of the plaint are such, in my view, as could only support a

cause of action based on malicious prosecution. But the matter is of no importance because we consider that in any event, even if the pleadings set out such facts as would support such a cause of action, the evidence does not support it. To this extent, therefore, we are all in agreement that the appeal succeeds and that the judgment of the trial judge, in so far as he held that the plaintiff had proved that the defendant had falsely imprisoned him and that he was entitled to damages, is incorrect and the appeal to that extent therefore must be allowed.

Coming now to the question of malicious prosecution, the defence was based upon purely technical factors, that is, that the pleadings did not sufficiently disclose the liability of the defendant on a charge of malicious prosecution and that the evidence for the plaintiff did not sufficiently support any such cause of action. Now, as I have said, the defendant made no positive defence whatsoever. This form of defence is one which, of course, is perfectly open to a defendant. But it is a very dangerous course of action if there is any real merit in the defence. If it succeeds, well and good. If it fails, as it has failed in this second cause of action, that is for malicious prosecution, the result is that the court is left with no answer whatsoever to the plaintiff's case, no matter how thin that case may have been and no matter how many technical defects it may have, so long as there is just sufficient evidence to call upon the defence. That is precisely what has happened. As I have already said, we do not really know who the defendants are. We do not with certainty know the relationship of Mr. Kintu to the defendants. But for the reasons given by my Lords, I agree that the pleadings and the evidence produced by the plaintiff was just sufficient to maintain the case for the plaintiff and in the result we have nothing before the court for the defence. It is, in my view, only too common a practice of advocates throughout East Africa to attempt to place the burden for doing everything on the other side. It is an attitude that is open to a party, but it is an attitude which, as I have pointed out, is usually bad advocacy. As I have said, although the pleadings and the evidence are not as satisfactory as I should like them to have been, nevertheless, I agree with what has been said by my Lords that a sufficient case has been pleaded and proved. It seems to me that there is no alternative but to dismiss the appeal in so far as it relates to malicious prosecution.

As regards damages, the judge, having found two causes of action sufficiently pleaded and maintained by the evidence and having awarded damages for both causes of action, should have specified the amount of damages he awarded on each such cause. If what he awarded was the correct sum allowable in respect of both causes of action, though I agree with the Vice-President that the vast proportion of the damages must have related to the cause of action of malicious prosecution, some, at least, must have related to the cause of action of false imprisonment. Accordingly, there must be some deduction and I agree with my brethren that that deduction should be a sum of Shs. 500/-. I also agree with the order proposed by the Vice-President in relation to the costs below. Accordingly, the order of the court is that the appeal succeeds in so far as it related to the judgment and decree to the effect that the defendant had falsely imprisoned the plaintiff, for which false imprisonment he was entitled to damages, and to that extent the decree must be amended. But the appeal fails in other respects. The order of the court is therefore that the judgment and decree of the High Court is amended by substituting for the figure of Shs. 4,000/- general damages a figure of Shs. 3,500/- general damages, but in all other respects it remains the same.

*Order accordingly.*

For the appellant:
*A. Clerk* (instructed by *Clerk & Co.*, Kampala)

For the respondent:
*R. S. Dave* (instructed by *Patel & Dave*, Kampala)

# Mohamedi and another v Republic
[1973] 1 EA 197 (CAD)

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| **Division:** | Court of Appeal at Dar es Salaam |
| **Date of judgment:** | 9 February 1973 |
| **Case Number:** | 139/1972 (33/73) |
| **Before:** | Sir William Duffus P, Lutta and Mustafa JJA |
| **Sourced by:** | LawAfrica |
| **Appeal from:** | The High Court of Tanzania – Saidi, C.J. |

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*[1] Criminal Practice and Procedure – Trial – Assessors – Absence of two assessors – Trial a nullity – Criminal Procedure Code, s.* 270 (2) (*T.*).

**Editor's Summary**

The appellants were convicted of murder at a trial during part of which two of the original four assessors were absent. It was contended that the trial was a nullity.

**Held –** It is mandatory that a new trial be held if two or more of the assessors are absent, and the trial was a nullity.

Appeal allowed: retrial ordered.

**No cases referred to in judgment.**

**Judgment**

The considered judgment of the court was read by **Mustafa JA:** The appellants were convicted of murder and sentenced to death. Mr. Raithatha for both the appellants has submitted that the Chief Justice misdirected himself on facts and law in finding the appellants guilty of murder. However, Mr. Mohamed Ismail for the Republic submitted that the trial was a nullity and that a re-trial should be ordered. The trial commenced with four assessors on 29 January 1972, and was then adjourned to 20 October 1972, some nine months later. At the adjourned hearing, two of the original four assessors were absent, and the trial proceeded with only two assessors. Mr. Ismail referred the court to s. 270 (2) of the Criminal Procedure Code which reads:

> "If two or more of the assessors are prevented from attending, or absent themselves, the proceedings shall be stayed and a new trial shall be held with the aid of fresh assessors."

On 20 October 1972 the Chief Justice, in the absence of two of the assessors, should have stayed the proceedings and arranged for a new trial with fresh assessors. We agree with Mr. Ismail that the provisions of s. 270 (2) of the Criminal Procedure Code are mandatory, and the proceedings subsequent to 20 October 1972 are a nullity.

We declare the trial a nullity, quash the conviction and set aside the sentence imposed on the appellants, and order a re-trial.

*Order accordingly.*

For the appellants:
*M. J. Raithatha*

For the respondent:
*M. Ismail* (State Counsel)

# Ntanda and another v Republic
[1973] 1 EA 198 (HCK)

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| **Division:** | High Court of Kenya at Nairobi |
| **Date of judgment:** | 23 March 1973 |
| **Case Number:** | 1090/1972 (35/73) |
| **Before:** | Sir James Wicks CJ and Muli J |
| **Sourced by:** | LawAfrica |

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*[1] Evidence – Accused – Explanation by – Possibly true – Not considered by magistrate – Appeal allowed.*

*[2] Criminal Practice and Procedure – Conviction – Section under which conviction recorded set out – Criminal Procedure Code, s.* 169 (2) (*K.*).

*[3] Criminal Practice and Procedure – Trial – Cross-examination – Record of whether accused wishes to cross-examine – Only necessary when accused unrepresented.*

*[4] Evidence – Confession – Voluntariness – Allegation of beating not dealt with – Effect of.*

**Editor's Summary**

The appellants were convicted of handling a motor car. On appeal it was contended that they had given an explanation which could have been true and which the magistrate failed to consider, that the magistrate had failed to set out the offence of which he convicted the appellants, that each appellant should have been asked whether he wished to cross-examine a prosecution witness, and that the evidence concerning the allegation that one appellant had been beaten to procure a confession had not been adequately controverted by the prosecution.

**Held** –

(i) the story of the appellants could have been true and therefore the conviction could not be supported;

(ii) the section was set out by magistrate;

(iii) the charge was properly laid as dishonestly receiving stolen goods;

(iv) it is necessary to ask an accused whether he wishes to cross-examine and to record the answer only when he is not represented by an advocate;

(v) the allegation that the confession was not voluntary had not been adequately controverted, and it should have been excluded.

Appeal allowed.

**Cases referred to in judgment:**

(1) *Seriken v. Republic*, H.C. Cr. A. 1178 of 1971 (unreported).

**Judgment**

The considered judgment of the court was read by **Sir James Wicks CJ:** The appellants were convicted by the resident magistrate, Kisumu, on a charge of handling stolen property contrary to s. 322 (2) of the Penal Code and each sentenced to serve a term of imprisonment of seven years and to be subject to police supervision for five years after release from prison. They appealed against their convictions and sentences. State Counsel did not support the conviction of either appellant. We agreed that the convictions could not be supported and quashed them and set aside the sentences and orders. We reserved our reasons for so doing, which we now give.

The subject matter of the charge was a car. The appellants were apprehended by the police, one being the driver and the other a passenger in it. It was established that the car had been stolen. Each appellant gave an explanation of his presence in the car which State Counsel concedes could be true and which

would not support any criminal complaint. We agree that this is so. In his judgment the magistrate failed to consider the explanations of the appellants and so failed to consider and weigh the evidence as a whole. We cannot say that the magistrate would have come to the same conclusion had he considered the explanations and for this reason we allowed the appeal.

Two matters were raised by Mr. Otieno, who appeared for the appellants, and which we must refer to.

Mr. Otieno submits that the magistrate in his judgment has failed to comply with the provisions of s. 169 (2) of the Criminal Procedure Code, which is:

> "In the case of a conviction, the judgement shall specify the offence of which, and the section of the Penal Code or other law under which, the accused person is convicted, and the punishment to which he is sentenced."

In his judgment the magistrate is recorded as saying:

> "These two accused stand charged with, first stealing a motor vehicle on 21st April last, and in the alternative with handling that vehicle, contrary to section 322 of the Penal Code, on the following day."

Concluding, the magistrate is recorded as saying as far as the first appellant is concerned:

> "I record his conviction on the alternative charge of handling stolen goods contrary to s. 322 of the Penal Code."

and as far as the 2nd appellant is concerned,

> "The second accused's conviction as charged under the alternative count is accordingly recorded also."

Mr. Otieno relies on the judgment of this Court, similarly constituted, of *Seriken v. Republic* Cr. A. 1178 of 1971 (unreported). In that case the appellant had been "convicted of handling" by the magistrate. In our judgment we said:

> "In his judgment the magistrate stated that he made no finding on the charge of stealing stock, and, considering the charge of handling, convicted him 'of handling'. Section 169 (2) of the Criminal Procedure Code provides that in the case of a conviction the judgment 'shall specify the offence of which, and the section of the Penal Code or other law under which, the accused person is convicted'. The Magistrate has failed to comply with the second part of this provision."

If reference is made to the magistrate's judgment in that case it will be seen that he did not mention s. 322 of the Penal Code at all. Further it will be found that the charge and particulars were:

> "*CHARGE*:
>
> Handling Stolen Property contrary to Section 322 (2) of the Penal Code.
>
> *PARTICULARS OF OFFENCE:*
>
> *SIKIREN OLE KURK*: On the 15th day of October 1971 at Ngolika location in Kajiado District of the Rift Valley Province handled eight goats the property of the personal representatives of William Malu knowing or having reason to believe it to have been unlawfully obtained."

The charge is clearly bad; "handling" is the general description. It is necessary to specify in the particulars of the charge the offence with which the accused person is convicted, that is, that "he dishonestly receives the goods", which is one offence, or that he "dishonestly undertakes their retention for the benefit of another", which is another offence. Our meaning was clear. Nowhere in his

judgment did the magistrate mention s. 322 of the Criminal Procedure Code, nor was a specific offence alleged in the particulars of the charge. In the case before us, as we have set out above, the magistrate did in his judgment mention s. 322 of the Criminal Procedure Code and the particulars of the charge stating that the appellant "dishonestly received" the car, a specific offence was alleged in the particulars of the charge. We can find nothing in Mr. Otieno's submission.

Mr. Otieno's other point is this. The record shows after the evidence in chief of the first prosecution witness, "No cross-examination". Mr. Otieno refers us to s. 208 (3) of the Criminal Procedure Code and submits that it is mandatory that the magistrate ask each accused person whether he wishes to put any question to the witness and record the answer. Mr. Otieno further contends that the requirement being mandatory, s. 382 of the Criminal Procedure Code cannot be invoked. Mr. Otieno cannot refer us to any authority for his proposition and we can find no substance in it. Where requirements are discretionary the magistrate is free, and always has been free, to exercise his powers, and having exercised them, of course judicially, he has acted within his jurisdiction, and there is no necessity of invoking the provision. It is only when the defect relates to a mandatory provision, or to one of the other matters covered by the provision, that it can have any application. In any event, in this case the magistrate appears to have complied with the provisions of the sub-section. The opening words of the sub-section are: "If the accused person does not employ an advocate". Here Mr. J. S. Behan, advocate, appeared for the first appellant. This being so it was not necessary to make any record in respect of this appellant and it is a reasonable assumption that the record "No cross-examination" is the answer of the second appellant.

There is one matter that we must mention and it is this. One of the appellants, having disputed a statement allegedly made by him, a trial within a trial was properly held. During the cross-examination of a witness there was this:

> "I did not burn the accused on his right hand or otherwise (court, at request of counsel, inspects the 1st accused's right hand and finds the thumb is apparently discoloured with dried blood under the nail)."

In his unsworn evidence the appellant said that he had not put the bruises on his thumb nail personally. The matter was taken no further and the magistrate did not mention it in his ruling. The onus was on the prosecution to disprove the allegation beyond reasonable doubt, and having failed to do so the statement should not have been admitted. The allegation was of a most serious nature, however, in this case cogent rebuttal evidence seems to have been available to the prosecution. The statement was alleged to have been made on 22 April 1972. The appellant was charged before the magistrate on 24 April when he made no complaint. He appeared before the magistrate again on 30 April, this time represented by Mr. Fernandes, advocate, and neither the appellant nor Mr. Fernandes made any complaint. The appellant was again before the magistrate on 8 May, represented by Mr. Miruka, another advocate, and again no complaint was made. The hearing commenced on 24 May, when the appellant was represented by Mr. J. S. Behan and again no complaint was made. The allegation was made at the hearing on 8 June, when the magistrate noted "thumb is apparently discoloured with dried blood under the nail". Was it reasonable that, if there had been an assault, no complaint was made, the complaint having been represented by no less than three advocates? Could dried blood remain under a nail for 6 1/2 weeks? Would a bruise heal within this time? Was there no growth of the nail over the period? These questions remained unanswered and it was for the prosecution to dispose of them.

*For these reasons we allowed the appeal of the appellants.*

For the appellants:
*S. M. Otieno*

For the respondent:

*Mrs. M. A. A. Daurado* (State Counsel)

# Kinyua v Republic
## [1973] 1 EA 201 (HCK)

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|---|---|
| **Division:** | High Court of Kenya at Nairobi |
| **Date of judgment:** | 23 March 1973 |
| **Case Number:** | 743/1972 (36/73) |
| **Before:** | Sir James Wicks CJ and Muli J |
| **Sourced by:** | LawAfrica |

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*[1] Criminal Practice and Procedure – Plea of guilty – Change of – Not allowed.*

**Editor's Summary**

The appellant wished to change his plea after it had been recorded but before he had been sentenced. The magistrate refused on the ground that the plea was unequivocal.

On appeal it was argued that *Maumba v. R.* (2) should not be followed, as the decision on which it was based, *R. v. Guest* (1), had been overruled.

**Held** –

(i) the court was functus officio once the conviction had been recorded. (*Maumba v. R.* (2) followed; S. (*an infant*) *v. Manchester City Recorder* (3) not followed);

(ii) a plea should not be taken until the prosecution can be heard on the facts.

Appeal dismissed.

**Cases referred to in judgment:**

(1) *R. v. Guest*, [1964] 3 All E.R. 385.

(2) *Maumba v. R.*, [1966] E.A. 167.

(3) *S.* (*an infant*) *v. Manchester City Recorder*, [1969] 3 All E.R. 1230.

(4) *Kibilo v. Republic*, [1971] E.A. 101.

[*Editorial Note.* For the different view adopted by the High Court of Tanzania see *Mwakera v. Republic*, [1972] E.A. 366.]

**Judgment**

The considered judgment of the court was read by **Sir James Wicks CJ:** The appellant was charged with three counts of robbery with violence contrary to s. 296 (2) of the Penal Code. He pleaded guilty and was sentenced to serve a term of 18 years' imprisonment with hard labour and 12 strokes of the cane on each charge, the sentence on the second and third charge to be served concurrently and to be consecutive with that on the first charge. He appeals against the convictions and the sentences.

The first grounds of appeal against conviction are that the appellant's plea was not a true plea in

fact, that the magistrate erred in construing the pleas of the appellant to the counts against him as unequivocal pleas of guilty and that the magistrate erred in convicting the appellant before recording and considering the allocutus.

It is not suggested that the charges or the particulars are in any way defective and we are satisfied there can be no complaint against them. On the first charge the record shows that “the substance of the charge and every element of it has been stated by the court to the accused person (the appellant), who on being asked whether he admits or denies the truth of every element of the charge” replied, “It is all true”. It is then recorded that the appellant said:

> “I have understood the charge. I wish to admit it. I and others being armed with a sten gun and pistols robbed the cashier of that sum of money and also used violence.”

It is then recorded that the words of the plea are read back to the accused (the appellant) in Kikuyu language through the court interpreter and confirmed by him to be correct. Charged with the second count it is recorded that the appellant said, "I admit this also. I have understood it". The answer to the third charge was similar to that to the second. The magistrate then recorded, "Guilty on plea and convicted on all three counts". It is clear that the magistrate took the care that he should in reading and explaining the first charge to the appellant. We are satisfied and find that the appellant's plea was clear and unequivocal. The details of the second and third charges being similar in nature to the first charge, we are satisfied and find that the appellant's answer to them was also clear and unequivocal. There is no requirement that the allocutus be heard and considered before a conviction is recorded. We can find nothing in these grounds of appeal.

The last ground of appeal against conviction is that the magistrate, having found that the appellant wished to retract his plea, erred in failing to do so on the basis that his plea on the 7 April 1972 was clear and unequivocal.

Mr. Makhecha, who appears for the appellant, concedes that as the law at present stands the magistrate, having convicted the appellant, was then functus officio and could not follow a change of plea. Further after conviction the magistrate has no jurisdiction to even amend the charge and should he purport to do so the proceedings which follow the first conviction are a nullity. See *Maumba v. R.*, [1966] E.A. 167. There at p. 167, Spry, J.A. (as he then was), observed that the case of *R. v. Guest*, [1964] 3 All E.R. 385 shows that in England a court which has convicted an accused person is functus officio, except as regards the power to pass sentence.

In *Kibilo v. Republic*, [1971] E.A. 101, Mosdell, J., at p. 102, observed that the decision in *R. v. Guest* (above) which operated as a persuasive authority in the Court of Appeal's decision in *Maumba's* case was overruled by the House of Lords in *S.* (*an infant*) *v. Manchester City Recorder*, [1969] 3 All E.R. 1230 and that if the matter were again canvassed before the Court of Appeal it would reach a conclusion different from that reached in *Maumba's* case. Mr. Makhecha submits that the Court of Appeal, considering English authorities as being persuasive, should recognise the rejection of the rule in *R. v. Guest*. This we decline to do. Mosdell, J., also at p. 102, observed that it is the better and desirable practice for the magistrate not to record a conviction on a purported plea of guilty until both the prosecutor and the accused have been heard on the facts. With this we agree but we would go further and suggest that practice would be improved by not taking the plea until the prosecution are in a position to be heard on the facts. The fact of an adjournment between the taking of the plea and hearing the prosecution on the facts can be the only reason for any difficulty that the magistrate later finds himself in.

The appellant was involved in the armed robbery of two banks, the offences being separated by five months. It cannot be said that the sentences passed were manifestly excessive.

*The appeals against convictions and the sentences are dismissed.*

For the appellant.
*H. P. Makhecha* (instructed by *Makhecha & Co.*, Nairobi)

For the respondent.
*J. B. Shilenje* (State Counsel)

## Kanti & Co Ltd v Oriental Fire & General Insce Co Ltd
[1973] 1 EA 203 (CAN)

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| **Division:** | Court of Appeal at Nairobi |
| **Date of judgment:** | 23 March 1973 |
| **Case Number:** | 56/1973 (38/73) |
| **Before:** | Sir William Duffus P, Spry VP and Mustafa JA |
| **Sourced by:** | LawAfrica |
| **Appeal from:** | The High Court of Kenya – Chanan Singh, J. |

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*[1] Insurance – Marine Insurance – Damage – Notice to agent – Interpretation of clause.*

*[2] Company – Foreign – No place of business in Kenya – Whether company exists.*

**Editor's Summary**

The appellant insured certain goods with the respondent under a contract which required notice to be given of any damage to the respondent's agents or branch and, where the respondent had no agents, to Lloyd's. After this the name E.A. Underwriters Ltd. was typed in.

When damage occurred it was reported to Lloyd's and the report when received was sent to E.A. Underwriters Ltd.

This company was no longer registered with a place of business in Kenya, and a local company had been formed to take over its business.

The respondent repudiated liability on the ground of non-compliance with the requirement of notice and the High Court found in its favour.

The appellant appealed, contending that the clause did not require notice to E.A. Underwriters Ltd., and that if it did, compliance was impossible, as that company did not exist after it ceased to have a place of business in Kenya.

**Held** –

(i) A foreign company can continue to exist when it has no place of business here, and can do business through agents;

(ii) there was no evidence that the company did not exist;

(iii) the name typed in was of the respondent's agent and report should have been made to that company.

Appeal dismissed.

**No cases referred to in judgment.**

**Judgment**

The following considered judgments were read. **Spry VP:** The appellant company, to which I shall refer as "the importer", entered into a contract of marine insurance with the respondent company, to which I shall refer as "the insurer", to cover a consignment of suitcases from Hong Kong to Nairobi via Mombasa.

The policy included the following clause:

SURVEY CLAUSE

In the event of damage to the interest hereby insured immediate notice should be given to the Company's Agents or Branch (in cases when the Company has no Agents, to Lloyd's Agents)

East African Underwriters Ltd.,

Nairobi, Kenya

and the Survey Report signed by them

obtained without which Survey Report no claim for loss will
be paid.

The words I have underlined were typed in a blank space on the printed form.

When the suitcases reached Mombasa, it was apparent that they had suffered damage and the local representative of the importer immediately approached Lloyd's Agents, who appointed a surveyor. As the port was congested, the packages were removed to the importer's go-down, where the surveyor inspected them, and after discussions with the representative of the importer, issued a survey report. This was over three months after the goods had reached Mombasa. Nearly three weeks later, the importer sent the survey report and other papers to support its claim, by hand, to East African Underwriters Ltd. This was the first intimation to the insurers that a claim was being made. By this time, the suitcases had been sent from Mombasa to Nairobi and some of them had been sold. The importer received an acknowledgement of its claim purporting to be signed on behalf of East African Underwriters (K.) Ltd., for the insurer. Later, a further letter was sent, repudiating liability on the ground of non-compliance with the survey clause. The importer then sued the insurer in the High Court, but the suit was dismissed with costs. The importer now appeals against the judgment and decree dismissing the suit.

At the hearing of the appeal, two matters were in issue; the first, the interpretation of the survey clause and the second a submission that if that clause required the giving of notice to East African Underwriters Ltd., it was impossible of compliance, because that company was not in existence at the material time.

I propose to deal first with the second of these issues, because once the question of fact is decided, the question of interpretation can be dealt with on that basis, instead of on the basis of alternative possibilities.

In the memorandum of appeal, the importer claimed, on the balance of probability, that the evidence indicated that East African Underwriters Ltd. did not exist at the material time. That was not, however, what had been pleaded in the reply to the defence: there, impossibility of performance had been pleaded "because no company by the name of 'East African Underwriters Ltd.' was in existence in Kenya at the relevant time". The difference may seem small, but I think it is of considerable importance. Obviously, as a matter of law, notice cannot be served on a non-existent body, but if the body exists, the question whether service on it is possible or impossible is one of fact.

The difference is of particular importance, because the insurer chose to call no evidence. All the evidence was that of the importer and it showed that East African Underwriters Ltd. was registered in Kenya on 20 November 1954 as a foreign company having a place of business here, that its last return was filed on 30 January 1967, and that its name was struck off the register on 17 February 1969. There was also evidence that a company named East African Underwriters (Kenya) Ltd. was incorporated in Kenya on 27 April 1966, and that its objects included carrying on insurance and other business "on instructions of and on behalf of" East African Underwriters Ltd. It is clear from the record that the Kenya Company was carrying on insurance business at the material time. On the face of it, I would have thought the balance of probability on that evidence was that East African Underwriters Ltd. was in existence in 1968 but may have ceased to have a place of business here. It is perhaps not without significance that a director of the importer said that he knew East African Underwriters Ltd. were agents of the insurers, but he thought they were settling agents only.

Mr. Shah, for the importer, submitted that for a foreign company to cease to

have a place of business was equivalent to ceasing to exist, but with respect I cannot agree. The question whether a foreign company has a place of business is primarily of importance as determining whether it is subject to the provisions of the Companies Act, and it may affect liability to taxation and other matters. But there is nothing to prevent a foreign company which has no place of business in Kenya carrying on business here. Indeed, it is an everyday matter for such companies to do business through agents or by direct postal contacts and there is nothing to prevent such companies suing or, in certain circumstances, being sued in the Kenya courts. In the present case, we know from the importer's evidence that East African Underwriters (Kenya) Ltd. was formed expressly to act as the agent here of East African Underwriters Ltd.

Mr. Shah also argued that an inference that East African Underwriters Ltd. did not exist was to be drawn from the fact that East African Underwriters (Kenya) Ltd. was formed to take over its business. With respect, there is no merit in that argument, which ignores the terms of the Memorandum of Association of the latter company.

The judge held that there was no substance in the submission that East African Underwriters Ltd. did not exist and I think he was right.

I turn now to the interpretation of the survey clause. The judge began by looking at the printed clause and held that it meant that notice was to be given to and a survey report obtained from the insurers' own agent or branch, but that if there were no agent or branch, Lloyd's Agents were to be approached. He then went on to consider the effect of the insertion of the words I have underlined, and held that they meant that East African Underwriters Ltd. was the agent of the insurer and that if that company existed, there was no need or justification for going to Lloyd's Agents.

Mr. Shah, for the importer, attacked these findings. He argued at length that the only way to resolve all difficulties of interpretation was to read the word "or" into the clause immediately before the underlined words. This would give the importer the alternatives of going to an agent or branch (or if there were none, to Lloyd's Agents) or to East African Underwriters Ltd. I may say at once that I can see no justification for such an interpolation.

Mr. Deverell, for the insurer, went to the opposite extreme. He submitted that while the name "East African Underwriters Ltd." was that of an agent, the duty on the importer was to ascertain whether or not there was an agent or branch, whether East African Underwriters Ltd. or some other, and only if there were none could an approach be made to Lloyd's Agents.

On this question, I think the judge was right, both in his approach and in his conclusion. I think the printed form was prepared so that the name of an agent could be inserted and that in the present case the name of an agent was inserted. The duty of the importer was, therefore, to give notice to that agent. There is no need, therefore, to consider what the effect of the clause would have been in other circumstances.

We heard a great deal of argument on the meaning of the words "in cases where the Company has no Agents", but, with respect, I can see no need to consider that question.

The only other matter that calls for consideration is whether the survey clause was, as a matter of fact, impossible of performance and there the answer is simple. When the importer put in his claim, he addressed it to East African Underwriters Ltd. and sent it to an office he knew and it elicited a reply from East African Underwriters (Kenya) Ltd., the agent of East African Underwriters Ltd., expressed to be written on behalf of the insurer. It is abundantly clear that

there was nothing to prevent the importer complying with the survey clause, but it made no attempt to do so. As a result, the insurer had no opportunity to inspect the goods or investigate the claim.

I would dismiss the appeal, with costs.

**Sir William Duffus P:** I have read the judgment of the Vice-President and I agree that this appeal should be dismissed.

The dispute in this case arose over the interpretation of a clause in the insurance policy. The goods covered by the policy were found damaged on the arrival of the ship in Mombasa and the appellant acting under the Survey Clause gave the notice of the damage to Lloyd's Agents in Mombasa and had the goods surveyed. The issue here is whether this was a sufficient compliance with the terms of the Survey Clause. I agree with the simple interpretation of the judge when he said:

> "The intention here is, in my opinion, quite clear. Notice was to be given to, and survey report obtained from, the Company's own agents or branch. If the company had no agents or branch, then the Lloyd's Agents had to be approached."

I am, however, further of the view that the words "in cases where the company has no agent" in the clause must mean agents in the place where the damage was discovered and the survey has to take place. The question arises whether the company's agent had to be, in this particular case, in Mombasa or in Nairobi. Mr. Deverell for the respondent submitted that in the circumstances here it was sufficient if the agent was in the country and not necessarily in the port or city where the damage was discovered. I agree with him that this must be a question of degree in each case, but I would have been inclined to have agreed with Mr. Shah for the appellant that in the circumstances here his clients would have been justified in going to Lloyd's Agents if the respondent company had no agent or branch in Mombasa. It does however appear from the evidence called by the appellant company that its employee in Mombasa knew that the respondent company had an agent and or possibly a branch in Mombasa; the telephone number, box number and actual physical address of both the respondent company and of its agent were listed in the telephone book that he produced in court. The appellant company could only justify going to Lloyd's Agents if in fact the respondent company had no agent or branch in Mombasa. In my opinion the onus would be on the appellant company to establish this as a fact but as I have pointed out the evidence shows to the contrary.

I would therefore dismiss the appeal and as Mustafa, J.A., agrees with the judgment of the Vice-President the appeal is dismissed with costs.

**Mustafa JA:** For the reasons as stated by Spry, V.-P., I agree that the appeal be dismissed with costs.

*Order accordingly.*

For the appellant:
*R. K. D. Shah*

For the respondent:
*W. S. Deverell* (instructed by *Kaplan & Stratton*, Nairobi)

## Shanti v Hindocha and others
[1973] 1 EA 207 (CAN)

**Division:** Court of Appeal at Nairobi

**Date of judgment:** 9 April 1973

**Case Number:** 34/1972 (41/73)

**Before:** Sir William Duffus P, Spry VP and Mustafa JA

**Sourced by:** LawAfrica

(Reference from Law, J.A.)

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*[1] Appeal – Out of time – Application for – Properly made to single judge.*

*[2] Appeal – Out of time – Application may be granted after record filed.*

*[3] Appeal – Out of time – Application – Where granted is given unconditionally and not confined to particular issues.*

**Editor's Summary**

The appellant filed his appeal out of time and the respondents gave notice that it would be argued that the appeal was incompetent.

The appellant applied for an extension of time for filing the record. A single judge granted the application. The respondents referred the application to a full court. They argued that because of the objection the single judge had no jurisdiction to grant an extension, that an extension of time could only be granted before the record of appeal was lodged, that if a question of jurisdiction were involved the leave should exclude an appeal on any other ground, and that the substance of the appeal was spent.

**Held** –

(i) the judge had jurisdiction to hear an application for extension of time;

(ii) an extension of time may be granted even where the record has been lodged out of time and before the application;

(iii) where an extension of time is granted it is given unconditionally and the appellant may advance what grounds of appeal he wishes;

(iv) there were still live issues in the suit (*Jivraj v. Raniga* (3) distinguished).

Reference dismissed.

**Cases referred to in judgment:**

(1) *Shah v. Jamnadas & Co*., [1959] E.A. 838.

(2) *Bhatt v. Tejwant Singh*, [1962] E.A. 497.

(3) *Jivraj v. Raniga*, C.A. 7 of 1964 (unreported).

**Judgment**

The considered judgment of the court was read by **Spry VP:** On 5 March 1973 we heard and dismissed a reference from a single judge of this court (Law, J.A.). Application had been made to the judge for an extension of time within which to file the record of appeal in an intended appeal, and he had granted an extension. The applicant for the extension was the defendant in the suit and for convenience we shall refer to him as such, and to the respondents as the plaintiffs.

Before the notice of motion was lodged, Mr. D. N. Khanna, on behalf of the plaintiffs, had notified

the court that at the hearing of the appeal he proposed to raise a preliminary objection that the appeal, having been filed out of time, was incompetent. At the hearing of the application, Mr. Khanna made a preliminary objection, submitting that as this notice was on the record and was to be considered by the court at the hearing of the appeal it was not open to a single judge to grant an extension of time. The judge rejected this submission.

Mr. Khanna raised the same point before us, but with respect we think the judge was right. No application had been made to the full court; all that was on the record was a notice of intention to raise an objection, an intention which might or might not eventually have been pursued. We do not think that notice could possibly have deprived the single judge of jurisdiction to hear an application, even though the outcome of the application might be the removal of the ground of objection.

Secondly, the record of appeal had already been lodged when an extension of time for lodging it was sought. Mr. Khanna submitted, both before the judge and before us, that r. 9 of the Eastern African Court of Appeal Rules, 1954, only empowers a judge to authorise a future act, not to validate a past one. This submission was rejected by the judge and again we think he was right. We think that when the time for lodging a document is extended, the document is duly lodged if lodged within the time as so extended, whether the actual lodging is before or after the order of extension. To hold otherwise would serve no purpose and would merely result in further costs being incurred. It is not irrelevant in this connection to note that under r. 11 the registrar has no power to refuse to accept an appeal on the ground that it is out of time, which clearly implies that the delivery of the appeal out of time may be excused or validated.

The judge held that the failure of the defendant to lodge the record of appeal in time was entirely due to the inability of the High Court registry to supply copies of the documents necessary to complete the record and therefore that the application before him fell squarely within the decision in *Bhatt v. Tejwant Singh,* [1962] E.A. 497. Mr. Khanna attacked this finding, submitting that *Bhatt's* case should not be interpreted as allowing the extension of time for an appeal that is "frivolous" or "scandalous". It is unnecessary to consider this proposition, as we are not persuaded that either epithet is appropriate to the intended appeal with which we are concerned.

The judge continued:

> "It is therefore not strictly necessary for me to be satisfied that the applicant has shown sufficient prospects of success for being allowed to appeal out of time. In my opinion, however, he has."

He proceeded to set out an issue which in his opinion raised a substantial question of law for decision. This was whether the trial judge was entitled, in a suit between landlord and tenant for possession of the leased premises, to give summary judgment. Mr. Khanna submitted that this had not been raised in the trial court, did not go to jurisdiction and should not therefore be entertained on appeal. He further contended that if a question of jurisdiction were involved, the application should only be granted as to that question and any other grounds should be excluded.

We think, with respect, that this is a complete misconception of the functions of a judge on an application for extension of time to file a record of appeal. In *Shah v. Jamnadas & Co.*, [1959] E.A. 838, Sir Owen Corrie, Ag. J.A., said that it was in his view essential for an applicant to:

> "support his application by sufficient statement of the nature of the judgment and of his reasons for desiring to appeal against it to enable the court to determine whether or not a refusal of the application would appear to cause injustice."

That passage has frequently been quoted with approval. It has never been suggested that an applicant has, at that stage, to formulate grounds of appeal: indeed the most frequent reason for seeking an extension is that the intending appellant is not in a position to do so, because the record of appeal is not available

to him. Nor has it ever been suggested that an applicant who is granted an extension of time is restricted in any way in the preparation of his memorandum of appeal to matters raised in the affidavit supporting his notice of motion. A close study of the record of appeal may show that what he first thought were valid objections to the judgment are in fact unarguable and that there are other objections, which he had not at first appreciated but which are valid grounds for attacking the judgment.

The position of an applicant for an extension of time is entirely different from that of an applicant for leave to appeal. He is concerned with showing "sufficient reason" why he should be given more time and the most persuasive reason that he can show, as in *Bhatt's* case, is that the delay has not been caused or contributed to by dilatory conduct on his part. But there may be other reasons and these are all matters of degree. He does not necessarily have to show that his appeal has a reasonable prospect of success or even that he has an arguable case but his application is likely to be viewed more sympathetically if he can do so and if he fails to comply with the requirement set out above he does so at his peril.

There is, therefore, no question of leave being given only in respect of certain arguments. Leave is either given or refused, and where it is given, the applicant is free to advance what grounds he thinks fit in his memorandum.

The judge was satisfied in the present case that there were arguable grounds of appeal and since there seems to have been some difference of judicial opinion in the High Courts of East Africa on the question when summary judgment may be granted, we think he is right. This is a question which goes to jurisdiction, which disposes of the objection that the point was not taken in the lower court, but in any case, while the court does not normally entertain points of law which have not been raised in the court below, it has a discretion to do so.

Mr.Khanna also argued that the application should have been refused because the substance of the appeal was spent. The suit was one between landlord and tenant for the recovery of possession of certain premises and for mesne profits. The landlord applied for and obtained summary judgment. The tenant, that is, the defendant, obtained a stay of execution pending appeal, conditional on his giving security. He failed to do so and the landlord obtained possession. Mr.Khanna relied on a decision of this court, in *Jivraj v. Raniga*, C.A. 7 of 1964 (unreported), but, with respect, the facts there were different. That was an application for leave to appeal to the Judicial Committee and the question was whether "the matter in dispute on the appeal" was of the minimum value of £1,000. It, also, arose out of a dispute between landlord and tenant, but in that case by the time the application was heard, the lease enjoyed by the tenant had expired and all rents and mesne profits had been paid. The only relief which the intending appellant might have derived from his appeal was a reversal of the orders for costs in the lower courts. The decision is only authority for saying that costs are not part of "the matter in dispute".

In the present case, the facts are different and it would appear that possession of the premises and the payment of rent or mesne profits are still live issues, according to whether or not the Rent Restriction Act applies.

We have thought it proper to comment on these matters, because they were argued at length by Mr. Khanna, but we would stress that the reason the application was granted by the single judge was because the delay in the lodging of the appeal was caused by delay in the High Court registry and not by any dilatoriness on the part of the defendant. We see no reason to disagree and it was for that reason that we dismissed the reference.

*Order accordingly.*

For the appellant:
*S. C. Gautama*

For the respondents:
*D. N. Khanna* (instructed by *Khanna & Co.*, Nairobi)

# South British Insce Co Ltd v Mohamedali Taibji Ltd
[1973] 1 EA 210 (CAM)

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|---|---|
| **Division:** | Court of Appeal at Mombasa |
| **Date of judgment:** | 24 March 1973 |
| **Case Number:** | 2/1973 (42/73) |
| **Before:** | Sir William Duffus P, Lutta and Mustafa JJA |
| **Sourced by:** | LawAfrica |
| **Appeal from:** | The High Court of Kenya – Sir Dermot Sheridan, J. |

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*[1] Civil Practice and Procedure – Decree or order – Finally deciding rights of parties a decree – Civil Procedure Act* (*Cap.*5), *s.* 2.

*[2] Civil Practice and Procedure – Pleading – Striking out – No cause of action – Claim on bond or on contract of indemnity.*

**Editor's Summary**

The appellant by its plaint pleaded that it had at the first respondent's request given a bond to the Harbours Corporation and that the respondent contracted to indemnify the appellant against any claim under the bond, and that thereafter it had to make payment under the bond and it claimed repayment by the respondents.

The judge struck out the plaint as showing no cause of action, as there was no allegation that the debt had been assigned.

The respondent contended that the finding of the judge resulted in a decree and not an order and that therefore the appeal against the "order" was in-competent notwithstanding that leave to appeal had been given.

**Held** –

(i) the decision of the judge was a decree, since it conclusively determined the rights of the parties;

(ii) the appeal was competent;

(iii) the claim by the appellant was on the contract of indemnity and not on the bond and showed a good cause of action.

**Case referred to in judgment:**

(1) *Collector v. Bhimji*, [1959] E.A. 1063.

**Judgment**

The following considered judgments were read. **Mustafa JA:** The appellant filed an action in the High Court at Mombasa against the respondents for the recovery of Shs. 280,000/-. The trial judge made an order striking out the plaint on the ground that it disclosed no reasonable cause of action. From that decision the appellant appeals. The respondents have submitted, as a preliminary objection, that the appeal is incompetent.

We reserved our ruling on the preliminary objection. I will now deal with it. After the pleadings were completed the respondents by notice of motion under O.6,r.29 of the Civil Procedure (Revised) Rules 1948 moved the court for an order that the plaint be struck out on the ground that it disclosed no cause of action.

R.29 reads:

> "The Court may, upon application order any pleading to be struck out on the ground that it discloses no reasonable cause of action or answer, and, in any such case, or in the case of the suit or defence being shown by the pleadings to be frivolous or vexatious, may order the suit to be stayed or

> dismissed or judgement to be entered accordingly as may be just. All orders made in pursuance of this rule shall be appealable as of right."

The trial judge heard the motion and made an "order" Striking out the plaint for not disclosing a cause of action. A formal "order" was extracted in which it was stated that the suit was struck out and dismissed with costs.

Mr.Lakha in arguing the preliminary objection submitted that the decision of the trial judge was a "decree" as defined in s.2 of the Civil Procedure Act. S.2 reads:

> " 'decree' means the formal expression of an adjudication which, so far as regards the Court expressing it, conclusively determines the rights of the parties with regard to all or any of the matter in controversy in the suit and may be either preliminary or final. It shall be deemed to include the rejection of a plaint. . . ."

Mr. Lakha submitted that the decision of the trial judge was a "decree" as it was a rejection of the plaint. Since decrees and orders are mutually exclusive, the decision could not be an order. In the circumstances no "order" was made by the trial judge and no formal order could be extracted. In fact, no "order" came into existence; all that came into existence was a "decree". The appellant purported to appeal from an "order" of the High Court, and since there was no "order", no appeal against a non-existent order can lie. The appeal was there-fore incompetent.

I agree with Mr.Lakha that what emerged from the decision of the trial judge was a "decree". The trial judge struck out the plaint and dismissed the suit with costs. That conclusively determined the rights of the parties. Again a rejection of the plaint would be deemed a "decree"; see s. 2 of the Civil Procedure Ordinance. Mr. Salter for the appellant relied on the wording of O.6, r.29 and submitted that the striking out of a plaint would be an order under that rule, and such an order was appealable as of right.

I think r. 29 provides for both orders and decrees. If the decision conclusively determines the rights of the parties, then it would be a decree, otherwise it would be an order. If for instance portions of a plaint are struck out as being frivolous or vexatious, or if a suit is stayed, such a decision would be an order, whereas if a suit is dismissed with costs, that would be a decree. A decree is appealable as of right, and an order made in terms of O. 6, r. 29 is made appeal-able as of right also.

Accepting, as I do, that the decision of the trial judge was in fact a decree and not an order, is the appeal then incompetent? I do not think so. Although the formal document extracted was termed and headed "order", in substance the document is for all practical purposes the same as a decree. In this connection I refer to *Collector v. Bhimji*, [1959] E.A. 1063 at p. 1070. No prejudice could have been caused to the respondents by this misdescription, who knew exactly what the trial judge decided. Despite Mr. Salter's submissions to the contrary, I will treat the formal order as a decree and the appeal as against the decree and dismiss the preliminary objection.

I now turn to the appeal. The appellant is a limited liability company carrying on an insurance business. The appellant, at the request of the first respondent, in consideration of a premium, provided a bond on behalf of the first respondent in respect of the first respondent's liability to the East African Harbours Corporation in a sum of money which eventually amounted to Shs. 280,000/- The second and third respondents had in writing requested the appellant to give the said guarantee and bond and undertook to pay back and indemnify the appellant any sum the appellant may be obliged to pay under the said bond.

The appellant alleged that the first respondent made default in payment due by it to the Corporation with the result that the appellant had to pay and did pay the Corporation the sum of Shs.280,000/-. The appellant claimed the said sum of Shs. 280,000/-from the respondents jointly and severally.

It will be necessary, at this stage, to set out the relevant portions of the plaint.

> "5. The plaintiff company states that in the month of March 1970 the plaintiff company at the request of the defendant company provided a bond on behalf of the defendant company to the East African Harbours Corporation in respect of the defendant company's liability to the Corporation in a sum not to exceed Kenya Shs. 30,000/- in consideration of the defendant company paying to the plaintiff company a premium in respect of the same. The defendant company further undertook to indemnify and keep indemnified the plaintiff company against any loss, costs and expenses which the plaintiff company may sustain or incur by reason of such bond and further undertook to repay the plaintiff company any sum or sums of money which the plaintiff company was obliged to pay under the said bond.
>
> 6. From time to time and finally in the month of November 1971 the amount of the said bond was increased to the sum of Kenya Shs.280,000/-.
>
> 7. In the month of February 1972 the first defendant made default in payment due by it to the Harbours Corporation and the Harbours Corporation required the plaintiff company herein to pay to it the amount of Kenya Shs.280,000/-which was the amount, or part thereof, owing at the time by the first defendant to the said Harbours Corporation.
>
> 8. In compliance of this demand the plaintiff company has paid to the Harbours Corporation a sum of Shs.280,000/-.
>
> 9. The plaintiff therefore claims from the first defendant a sum of Shs.280,000/-.
>
> 10. The said guarantee was given by the plaintiff company to the Harbours Corporation in March 1970 at the written request of the second and the third defendants who at the same time undertook to repay to the company on demand any sum or sums of money the plaintiff may be obliged to pay under the said bond . . . and thirdly to indemnify and keep indemnified the company against any loss, costs, charges and expenses whatsoever which they may suffer or incur or be put to in consequence of their being entered into the said bond."

The respondents applied for an order that "the plaint be struck out on the ground that it discloses no reasonable cause of action in the absence of any allegation therein of an assignment of the guaranteed debt, subject matter of the suit, to the plaintiff."

The trial judge held that in terms of the plaint the appellant was suing on the bond, for the recovery of money paid under the bond, and not under any guarantee or indemnity.

The bond was given by the appellant to the Corporation in consideration of a premium paid by the first respondent. The first respondent defaulted in payment to the Corporation. The appellant, as surety, paid the debt to the Corporation. When a surety pays a debt to a creditor on behalf of a debtor, then he may sue the principal debtor in the creditor's name or, if the debt is assigned to him, in his own name. There was no assignment of the debt to the appellant, nor was the suit filed in the name of the creditor, and the trial judge found that no reasonable cause of action was disclosed. He accordingly struck out plaint and dismissed the suit.

The main point in the appeal was whether the appellant sued on the bond or under the contract of indemnity. Mr.Lakha for the respondents conceded that

if the appellant was suing on the bond then the trial judge was right, but that if the appellant was suing on a contract of indemnity then the trial judge was wrong to have dismissed the suit.

On my reading of the plaint, I am satisfied that what the appellant stated was that it had to pay the Harbours Corporation because of the bond it had entered into, but was claiming repayment from the respondents on the basis of the contract of indemnity between it and the respondents.

Paragraph 5 of the plaint recites:

> ". . . The defendant company further undertook to indemnify and keep indemnified the plaintiff company against any loss . . . which the plaintiff company may sustain or incur by reason of such bond . . ."

In my view that was a sufficient express averment of a contract of indemnity. The same applies to the second and third defendants. The appellant was suing the respondents at least alternatively, on a contract of indemnity, and the plaint, in my view, disclosed a cause of action.

I would allow the appeal, set aside the order and judgment of the High Court and in lieu thereof substitute an order dismissing the application to strike out the plaint with costs to the appellant and remit the case to the High Court to be dealt with according to law. I would allow costs of the appeal to the appellant. I would also award the costs of the preliminary objection to the appellant. I would not certify for two advocates.

**Sir William Duffus P:** I have had the advantage of reading the judgment of Mustafa, J.A. The respondents raised a preliminary objection that the appeal was incompetent. The objection was based on that much-argued question as to whether the judge's decision was a decree or an order. Mr.Lakha for the respondents contended that it was a decree but that the formal order had been drawn up and signed by the judge as an order and appealed from as an order and that therefore the appeal was wrongly brought and incompetent. Mr. Salter's answer was that this was an appeal against an order made under O.6, r.29 of the Civil Procedure Rules and therefore appealable as of right. Mustafa, J.A., fully considered the matter and decided, and I agree with him, that the judge's decision in this case was in fact a decree and further that although the formal document was contained in a document headed "order" it was in substance and in fact a decree and that therefore the appeal was properly brought.

This appeal is yet another example of the difficulty that so often occurs both with practitioners and the courts in deciding what is a "decree" and what is an "order". The judge rejected the application sought and struck out the plaint on the ground that it disclosed no cause of action.

In the decision in this case the trial judge finally determined the rights in the suit as it was brought; he struck the suit out and this put an end over the matters in controversy in that suit. The decision here clearly appears to come within the meaning of the definition of a decree that I have already set out, but to make it even clearer, the definition section goes on to say that a decree "shall be deemed to include the rejection of the plaint or writ", which is exactly the position here.

The confusion here might have arisen because the definition of decree specifically excludes "any adjudication from which an appeal lies as an appeal from an order", and Mr. Salter, in his submissions, not unreasonably points out that O. 6, r. 29 under which the application now on appeal was specifically made states:

> "All orders made in pursuance of this rule shall be appealable as of right."

Here I entirely agree with Mustafa, J.A., that the real explanation of the apparent inconsistency between the definition section and r. 29 lies in the fact that under r. 29 the court's decision can be either a decree or an order. If for instance the suit was finally disposed of either by way of being dismissed or by a judgment being given, the decision in that case would be a decree, but if the decision did not amount to a final disposal of the suit, as for instance if only a part of the pleading was struck out or the suit was stayed, then this would only amount to an order, not to a decision from which a decree could be extracted.

In deciding appeals this court endeavours not to allow technicalities to cause a failure of justice, but rather looks to the substance of the matter. In this case I agree with Mustafa, J.A., that the document although headed as an order was in fact and in substance a decree and should be dealt with as such. In any event this preliminary objection was bound to fail, for if the document was a decree, then the appeal was properly brought as of right (s. 66 of the Civil Procedure Act); if, however, it was an order it is still appealable as of right.

On the issue of the appeal I agree with Mustafa, J.A., and with Lutta, J.A., that this is a claim to recover monies due under an express indemnity. The indemnity is set out and recited in paragraphs 5 and 10 of the plaint; although I agree that the actual claim could have been more clearly set out, yet it does appear to me, with respect to the trial judge, that the bond was only recited in the plaint as being part of the relevant facts but that the claim itself appears to be based on the express indemnity given by the respondents as set out in the plaint.

I agree therefore with Mustafa, J.A., that this appeal be allowed, and as Lutta, J.A., also agrees the appeal is allowed, the decision of the High Court striking out the plaint and dismissing the suit will be set aside and in lieu thereof an order made dismissing the application to strike out the plaint with costs to the appellant, and the matter remitted to the High Court to be dealt with according to law. The appellant will have the costs of this appeal and of the preliminary objection. We do not allow a certificate for two counsel.

**Lutta JA:** The facts in this case have been fully set out in the judgement of Mustafa, J.A., and it is not necessary to repeat them here.

The defendants, in their amended defence, did not specifically deny the pleading in paragraph 5 of the plaintiff with regard to the allegation of indemnity, although they denied the same allegation in paragraph 10. It seems to me that on a careful perusal of the pleadings the conclusion that the allegation that the defendants undertook to indemnify the plaintiff company against any loss, costs, charges and expenses which the plaintiff company may suffer or incur by reason of the said bond is irresistible. In other words, the express allegation of fact in the plaint in regard to indemnity is assumed to be correct. In my opinion, the plaint disclosed a cause of action to sue on the basis of indemnity. The plaintiff company thus has a right to require the defendants to make payment of their debt on their indemnity should the plaintiff company have to pay it to the East African Harbours Corporation. In my view the plaintiff company has a right to elect to recover monies incurred by reason of the said bond under indemnity and the judge was wrong to hold that the plaintiff company was suing for money paid under the bond and not under any guarantee or indemnity. I would therefore allow this appeal with costs and set aside the judgment and the order of the High Court. I would award costs in the High Court to the plaintiff company.

*Appeal allowed.*

For the appellant:
*C. Salter, Q.C.*, and *M. Satchu* (instructed by *Atkinson Cleasby & Satchu*, Mombasa)

For the respondent:
*A. A. Lakha* and *D. D. Doshi*

# Municipal Council of Mombasa and others v Canham
[1973] 1 EA 215 (CAM)

| | |
|---|---|
| **Division:** | Court of Appeal at Mombasa |
| **Date of judgment:** | 24 March 1973 |
| **Case Number:** | 63/1972 (43/72) |
| **Before:** | Spry VP, Lutta and Mustafa JJA |
| **Sourced by:** | LawAfrica |
| **Appeal from:** | The High Court of Kenya – Sir Dermot Sheridan, J. |

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*[1] False imprisonment – Arrest – Officer of municipality, by – Name not given – Whether arrest justified – Local Government Regulations* 1963, *reg.* 259 (*K.*).

*[2] Damages – False imprisonment – Quantum – Award of Shs.* 4,000/- *upheld.*

**Editor's Summary**

The first appellant employed the other appellants as sub-inspectors, and they alleged that the respondent had obstructed them in the performance of their duties and the trial judge apparently so found. The respondent did not give his name to the sub-inspectors and they arrested him. The trial judge found that there was no evidence that there were reasonable grounds for believing that the respondent might not be found without unreasonable delay, trouble or expense. He awarded damages of Shs. 4,000/- for false imprisonment.

The appellants appealed against the finding and the respondent cross-appealed against the quantum of damages.

**Held** –

(i) (Spry, V.-P., dissenting) when a person not known to an officer refuses to give his name and address there is no further duty of enquiry, and an arrest may be made;

(ii) (by Spry, V.-P.) the award of damages was proper and should not be interfered with.

Appeal allowed.

**Cases referred to in judgment:**

(1) *Dumbell v. Roberts*, [1944] 1 All E.R. 326.

(2) *Ilanga v. Manyoka*, [1961] E.A. 705.

(3) *Selle v. Associated Motor Boat Co.*, [1968] E.A. 123.

**Judgment**

The following considered judgments were read. **Spry VP:** These proceedings arose out of an incident

which occurred at Kilindini Road, Mombasa, on 26 August 1970. Three Municipal sub-inspectors were concerned that certain cartons had been deposited on the pavement, which they considered constituted an obstruction. They took the matter up with one Gulamali, the owner of the cartons. At some point and in some way the respondent became involved. The culmination of the matter was that the sub-inspectors arrested the respondent, alleging that he had obstructed them in the course of their duties. Subsequently, the respondent sued the Municipal Council and the sub-inspectors, claiming damages for assault, false imprisonment and malicious prosecution. The judge held that the allegation of malicious prosecution failed, but he awarded Shs. 4,000/- as general damages for false imprisonment. Against that decision, the Municipal Council and the sub-inspectors have

appealed. The respondent has cross-appealed, claiming that the award of damages is unduly low.

I have expressed these facts in neutral terms, because there were wide divergencies in the evidence and the judge has made very few findings of fact. On the credibility of the witnesses, he said that he doubted whether the respondent was as blameless as he maintained and thought that he had "played down" his part in the affair, but he did not reject his evidence in its entirety. He made no comment on the credibility of the other witnesses.

What is not in dispute is that the respondent was arrested by the sub-inspectors. He claimed that this was without any justification. The sub-inspectors claimed that he had obstructed them in the execution of their duty. It is an offence under reg. 266 (1) (*a*) of the Local Government Regulations, 1963, wilfully to obstruct an officer of a local authority in the execution of his duty as such. In the light of their own evidence, it would seem open to argument whether the sub-inspectors were acting strictly in accordance with their duty, but no issue was made of this. Similarly, there seems to have been very little argument whether the conduct of the respondent amounted to obstruction and there is no express finding on this. On balance, I think, it must be assumed that the judge considered that there had been obstruction, although it is possible that he merely proceeded on that hypothesis.

The substantial issue, and the one on which the case was decided, was whether, on the assumption that an offence was committed, the sub-inspectors had the power to arrest the respondent without warrant. Reg. 259 of the Local Government Regulations, 1963, reads as follows:

> "Any police officer may arrest, without a warrant, any person whom he suspects upon reasonable grounds of having committed any offence under these Regulations or any by-laws made under these Regulations or any other written law, and any officer of a local authority who at the time is in uniform or is wearing a visible badge of office and authorised thereto in writing by the local authority, may arrest, without warrant, any person who in his presence commits any such offence and may detain such person until he can be delivered into the custody of a police officer to be dealt with according to law:
>
> Provided that no person shall be arrested or detained without warrant unless reasonable grounds exist for believing that, except by the arrest of such person, he may not be found or made answerable to justice without unreasonable delay, trouble or expense."

It is not disputed that the sub-inspectors were in uniform and that they had authorisations in writing, although unfortunately those authorisations, while setting out the substance of the power of arrest without warrant, omitted any reference to the proviso to reg. 259. The question was whether there had been sufficient compliance with that proviso.

It may be remarked in passing that it is quite clear from their evidence that the sub-inspectors did not know or understand their powers of arrest without warrant and believed them to be far wider than they are.

It may be convenient here to dispose of one matter raised on the appeal. In his judgment, the judge quoted at length from certain observations made by Scott, L.J., in the English case of *Dumbell v. Roberts*, [1944] 1 All E.R. 326. Mr. Talati, for the Municipal Council, submitted that the judge had misdirected himself in relying on these observations, since Scott, L.J., had been dealing with arrest on suspicion that the person arrested has been guilty of an offence, not with the question whether he can otherwise be brought before a court. With respect, I do not think there is any real substance in this criticism. I think the

point that the judge was seeking to make, and it is a very important point, is that a power to arrest without warrant, which is a grave invasion on the liberty of the individual, is one that must be exercised circumspectly and only when it is essential.

The basis of the appeal was that the respondent had refused to furnish his name and address and in those circumstances the sub-inspectors were not called on to make any further enquiries. Mr. Satchu, for the respondent, argued that even if the respondent had withheld his name and address, that alone did not justify the arrest. At the very least, the sub-inspectors could have enquired of Gulamali, whom they knew, as to the identity of the respondent. Further, Mr. Satchu submitted that there was a doubt whether the respondent was asked for his name and address and an even stronger doubt if he refused it. The burden of proof in this respect was on the appellants.

The judge made no definite finding on these questions. He appears to have disbelieved the respondent, who said that he was not asked for his name. He did not deal with the question whether the respondent refused to give his name or did not reply, on which even the sub-inspectors were not consistent. He said that “even assuming” that the respondent refused to give his name, the arrest without warrant was not justified in terms of the proviso, because there was no evidence that unreasonable delay, trouble or expense would have been involved in discovering it. In particular, he thought the sub-inspectors should have enquired of Gulamali, whom they knew and whom they had seen talking with the respondent. He remarked also that the respondent had offered to take the sub-inspectors to the police station in his car, which “should have given them some clue as to his identity”. There was no question of the respondent trying to escape.

It is impossible to lay down any general rule as to what constitutes sufficient compliance with the proviso. It must depend on the circumstances of each particular case. Clearly, an arrest must not be arbitrary: the proviso, brief as it is, contains two references to reasonableness.

In my view, the judge was right in his interpretation of the proviso, which is expressed in the clearest terms. To justify arrest without warrant there must be reasonable grounds for believing that otherwise to bring the accused person before a court will involve unreasonable delay, trouble or expense: in other words, it is a last resort. In the present case, to have made some further enquiries would have involved no expense and negligible delay or trouble. There is, on the facts of this case, no reason to suppose that such enquiries would not have elicited the required information, but that is not the point: the point is that some enquiries could and should have been made. Moreover, the respondent appears to have been perfectly willing to go to the police station. I would dismiss the appeals.

As regards the cross-appeal, Mr. Satchu submitted that the judge had misdirected himself when, in assessing the damages, he had remarked that in his opinion the respondent had not been entirely blameless. He claimed that this was not based on any findings of fact, in a matter where the onus was on the appellants. He asked for aggravated or exemplary damages.

I think the judge must be held to have found that the respondent was asked for his name and did not give it. There was evidence on which such a finding could be made and I can see no reason to interfere with it. To that extent, the respondent was at fault. For that reason, I do not think this a proper case either for aggravated or for exemplary damages, even though I have no doubt, on their own evidence, that the sub-inspectors acted in a high-handed and improper manner. The judge directed himself as to the indignity to which the respondent

was subjected and I do not think this court would, in the circumstances, be justified in interfering with his award of damages. I would dismiss the cross-appeal.

The other members of the court are, however, of a different opinion, and accordingly both appeals are allowed, with costs; the judgment and decree of the High Court are set aside and there is substituted an order that the suit be dismissed with costs. The cross-appeal is dismissed with costs.

**Lutta JA:** The respondent claimed damages for assault, false imprisonment and malicious prosecution against the appellant, and the inspectors jointly and severally. The incident which gave rise to the claim took place on 26 August 1970 at about 11 a.m. on the pavement outside the shop owned by one Gulamali in Kilindini Road, Mombasa. According to the respondent's evidence, he saw one Gulamali on the pavement outside his shop, with the inspectors who were in uniform. They were complaining about an obstruction caused by cartons on the pavement. The respondent said to Gulamali: "I presume they are going to charge you for obstruction, but what about those bicycles outside the cosy cafe taking up 50 per cent of a 6 ft. path?" The inspectors rushed to and surrounded him saying "What did you say to him? You are obstructing us in our duty. We can arrest you." They poked their identity cards at him saying "Read this, read this, we can arrest you". He told them that he could not read their cards without his glasses and that he did not question their authority but wanted reasons for their actions. A crowd was gathering and he suggested that they move into Gulamali's shop; this suggestion was rejected. They said they were arresting him and taking him to the Central Police Station. He rejected this suggestion. He further suggested that they should go by his car, but this was also rejected. He was marched to the police station, at which he was pushed through a door at the side of a reception desk into a "cage", locking the door. He saw Inspector Setati and Inspector Oriema, who expressed doubts as to whether any charge could be brought against him. At 12.15-12.30 p.m. he was released. A few days later Sikimyi visited him in his office with a view to settling the matter and with an apology from the appellant, but it proved abortive. He was prosecuted for wilfully obstructing an officer in the execution of his duty contrary to reg. 226 (1) of the Local Government Regulations 1963. The charge was subsequently withdrawn.

Obado, Bangu and Julam in their evidence stated that Gulamali was admitting his mistake when the respondent arrived brusquely and intervened, and after the respondent pushed Gulamali into the shop Obado produced his identity card and said he was arresting him for obstructing them in the performance of their duties and for refusing to give his name. The respondent was arrested and taken to the police station. Julam was left behind to guard the goods. The judge dismissed the claim for malicious prosecution. He held, on the question of false imprisonment, that the respondent had been arrested and marched through the town to the Central Police Station in full view of passers-by, detained for over an hour, and subjected to indignity. He awarded the respondent Shs. 4,000/- general damages. The appellant, Obado, Bangu and Julam have now appealed against that part of the judgment which decides that the claim for false imprisonment succeeded. The respondent cross-appealed on the grounds inter alia that the judge erred in holding that there was intervention by the respondent in the dispute between Gulamali and Obado, Bangu and Julam and that the award of Shs. 4,000/- was so low as to be manifestly wrong. Mr. Talati for the appellant argued that there was compliance with the proviso to reg. 259 of the Local Government Regulations 1963 as the respondent refused to give his name and address, and that the arrest was justified. He submitted that the inspectors had reasonable grounds to believe that the respondent might not be traced

without difficulty. Mr. Waruhiu, for the inspectors, submitted that there was sufficient evidence that the respondent refused to give his name and address and consequently the inspectors had good reason to arrest him. Mr. Satchu, for the respondent, argued that it was not the inspector's intention only to take the name and address of the respondent. He submitted that there was no evidence to show that had the respondent not been arrested he might not have been found or that there would have been unreasonable delay or trouble or expense in trying to trace him. On the cross-appeal, Mr. Satchu argued that there was no evidence to support the judge's finding that the respondent intervened in the dispute between the inspectors and Gulamali. He submitted that the damages awarded to the respondent are extremely low and that the inspectors' behaviour was arbitrary and oppressive and should therefore be punished by awarding exemplary damages to the respondent.

Reg. 259 gives power to any officer of a local authority who at the time is in uniform and authorised in writing by the local authority to arrest, without warrant, any person who in his presence commits any offence provided that there are reasonable grounds to believe that, except by the arrest of such person, he may not be found or appear before the court without unreasonable delay or trouble or expense. The inspectors had this power and the judge so found. He also found that in terms of their identity cards the inspectors were acting within their rights. Under reg. 259 and the proviso thereto a police officer or any officer of a local authority can only effect an arrest without warrant if he is unable to ascertain the name and address of such person and if he reasonably believes that such person may be found only after considerable expense or unreasonable delay or trouble. On the evidence the inspectors asked the respondent to give his name and address, although the judge did not expressly make a finding to this effect. It appears that by implication he found that the respondent refused to give his name and address. However, he held that there was no evidence that there would have been unreasonable delay, trouble or expense if the respondent was not arrested and that the offer by him to go to the police station with the inspectors in his car would have given them a clue as to his identity. The judge also did not make an express finding as to whether the inspectors intended to arrest Gulamali and whether Gulamali had caused an obstruction on the pavement and thus committed an offence. This court, however, is entitled to reconsider the evidence, evaluate it itself and draw its own conclusions as this is a first appeal – *Selle v. Associated Motor Boat Co*., [1968] E.A. 123, and *Ilanga v. Manyoka*, [1961] E.A. 705. There was evidence that inspectors were carrying out investigations into an obstruction of the pavement by cartons outside Gulamali's shop. According to the inspectors' evidence they were going to arrest Gulamali for obstruction when the respondent intervened. The judge impliedly found that the respondent refused to give his name and the question is whether the inspectors, in those circumstances, were entitled to arrest him. Mr. Satchu has submitted that when the respondent refused to give his name and address the inspectors should have made enquiries from Gulamali. With respect, I am unable to agree. In my view, reg. 259 and the proviso thereto clearly means that an officer of a local authority in uniform and authorised thereto in writing by the local authority is entitled to arrest without warrant any person he suspects upon reasonable grounds of having committed an offence against the regulations if he reasonably believes that such person may not be made answerable to justice without unreasonable delay, trouble or expense. The inspectors did not know the respondent nor did any person, including Gulamali, tell them his name and address at the material time. In my opinion, if such person refuses to give his name and address, there is good reason for arresting him and the proviso to reg. 259 would have been complied with. In these circumstances the inspectors were entitled to arrest the respondent. Accordingly I would allow this appeal with costs and set aside the judgment

and decree of the High Court. I would dismiss the cross-appeal with costs.

**Mustafa JA:** The facts, such as they were, have been set out by the Vice-President in his judgment, and I do not propose to repeat them.

The municipal sub-inspectors arrested the respondent on the ground that he had obstructed them in the due execution of their duty. It is not in dispute that it is an offence to do so under reg. 266 (1) (*a*) of the Local Government Regulations 1963. There was a serious conflict of evidence as to the circumstances and facts leading up to the arrest, but unfortunately no definite and clear findings of fact were made by the trial judge. In his judgment the nearest the trial judge came to a finding of fact was to be found in the following passages:

> "On the evidence I doubt whether the plaintiff's attitude was as passive and reasonable as he maintains. Otherwise why should the defendants have flared up as he says they did when he arrived? I think he did intervene in their dispute with Gulamali and that they resented it. I am left with the impression that the plaintiff was playing down his part in the fracas. He denies that he was asked for his name and address but Mr. Butt, his witness, heard him being asked. It would have been the obvious question for the defendants to ask. . . ."

And again:

> "In the terms of their identity cards the defendants were acting within their rights."

In view of the above passages it is fair to assume that the trial judge in fact found or inclined to the view that the respondent had obstructed the municipal sub-inspectors in the discharge of their duty; that the respondent was asked his name and address by the sub-inspectors and did not supply them, and that he was then arrested.

The short point before us was this. Had the sub-inspectors the power to arrest the respondent without warrant in the circumstances?

It is common ground that the sub-inspectors were in uniform and had authority in writing. The issue was whether they had sufficiently complied with the proviso to reg. 259.

In this connection the trial judge said:

> "Even assuming that the plaintiff did refuse to give his name and address there was no evidence that there would have been unreasonable delay, trouble or expense if he were not arrested."

He went on to say that the sub-inspectors should have enquired about the particulars from one Gulamali whose alleged obstruction on the pavement triggered off these incidents. He also thought that the sub-inspectors should have accepted the respondent's offer to take them to the police station in his car and that "should have given them some clue as to his identity". It is clear that there was no question of the respondent trying to escape. The trial judge concluded that the sub-inspectors had failed to adhere to the provisions of the proviso and awarded the respondent damages for false imprisonment.

Accepting, as I do, for the purpose of the appeal, that despite being asked, the respondent did not give his name and address, had the sub-inspectors a duty to make further enquiries to find out the respondent's name and address? I appreciate that the power to arrest without warrant must be exercised with great circumspection, and the balance between public duty and personal freedom is a fine and delicate one. The trial judge suggested that enquiries should have been made of Gulamali. In view of Gulamali's part in the affair I do not think that was reasonable. Gulamali was being accused of having caused an obstruction

on a pavement which amounted to an offence against Local Government Regulations. There apparently had been some exchange between Gulamali and the sub-inspectors before the respondent came on the scene. I do not understand why the sub-inspectors should have been expected to travel in the respondent's car to the police station, nor if they did so, how they could have obtained "some clue to his (respondent's) identity".

In any case, on the evidence it was obvious that the sub-inspectors did not know the respondent. They had accused the respondent of having committed an offence. They had told him of their power of arrest, and asked him for his name and address. The respondent, to use a neutral term, did not give that information. I believe that this incident must have taken place in a heated atmosphere, and both the parties must have been agitated. When the respondent either refused to or did not supply his name and address when so asked, were the sub-inspectors in those circumstances entitled to arrest him without warrant? I find this difficult to decide; but on reflection I think, in the circumstances of this case, the sub-inspectors were entitled to arrest the respondent without warrant. I do not think they were under any further duty to make enquiries of the respondent's identity. The respondent was a stranger to the sub-inspectors, and the respondent was given an opportunity of telling the sub-inspectors who he was. For all they knew, the respondent might have been a resident of another town, or perhaps even a tourist. The sub-inspectors, at that moment, could have thought that, if the respondent was not arrested, he may not "be found or made answerable to justice without unreasonable delay, trouble or expense". The decision had to be made on the spot, with no time for calm reflection, and in all the circumstances I cannot say that the decision to arrest without warrant was unreasonable or offended the proviso to reg. 259.

I would allow the appeals and set aside the award of Shs. 4000/- as damages for false imprisonment. It follows that I would dismiss the cross-appeal.

*Order accordingly.*

For the first appellant:
*P. Talati*, *N. Adembesa* and *D. A. Obhrai*

For the second, third and fourth appellants:
*S. N. Waruhiu* (instructed by *Waruhiu & Waruhiu*, Nairobi)

For the respondent:
*M. Satchu* (instructed by *Atkinson, Cleasby & Satchu*, Mombasa)

## Asoka v Republic
[1973] 1 EA 222 (CAD)

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| **Division:** | Court of Appeal at Dar es Salaam |
| **Date of judgment:** | 22 March 1973 |
| **Case Number:** | 156/1972 (44/73) |
| **Before:** | Sir William Duffus P, Lutta and Mustafa JJA |
| **Sourced by:** | LawAfrica |
| **Appeal from:** | The High Court of Tanzania – Makame, J. |

*[1] Statute – Criminal procedure and evidence – Amendment between date of crime and trial – Amendment properly applied at trial – Evidence Act, s.* 33 (*T*.).

*[2] Evidence – Confession – Admissibility – Against co-accused in joint trial – Admissible only as evidence of weakest kind adding to weight of other evidence against co-accused – Evidence Act, s.* 33 (*T*.).

**Editor's Summary**

The appellant was convicted of robbery in circumstances set out in the judgment of the court. The trial judge stated that he would have founded the conviction on the confession of the appellant's co-accused which implicated the appellant even without supporting evidence. The amendment allowing a confession to be considered against a co-accused came into force between the date of the crime and the trial.

**Held** –

(i) the amendment affected procedure and evidence and was properly applied at the trial;

(ii) a confession by a co-accused is accomplice evidence and evidence of the weakest kind and can only lend assurance to other evidence against the accused (*Anyango v. Republic* (1) followed);

(iii) there was overwhelming evidence against the appellant and the misdirection had occasioned no failure of justice.

Appeal dismissed.

**Cases referred to in judgment:**

(1) *Anyango v. Republic*, [1968] E. A. 239.

**Judgment**

The considered judgment of the court was read by **Sir William Duffus P:** This was a daring and well-planned robbery that nearly succeeded and would have deprived the Bank of Tanzania of some Shs. 2,540,000/-. The thieves did get away with Shs. 700,000/-, and there would also appear to be at least two members of the gang of thieves at large. Shortly the Kenya Commercial Bank at Kisumu shipped Shs. 2,540,000/- in Tanzania notes by the "M.V.Victoria" to go across Lake Victoria and to be delivered to the Bank of Tanzania in Mwanza. Two metal trunks securely locked and sealed were placed inside a container and put in the hold of the ship, which was then securely battened down. There was, or rather should have been, no one in the hold; there was an armed constable placed as a guard on the ship, but he remained on deck. The ship sailed from Kisumu at about 1 p.m. on 15 February 1971 and after a stop at Musoma in Tanzania reached Mwanza at 9 a.m. next morning. The hatch covering the hold was removed and the container containing the two metal trunks unloaded. The container was opened and it was then discovered that the two trunks had been broken into, the seals cut and all the money had disappeared and either sand or some type of soil placed inside. However, before reaching Mwanza, the ship had made a stop at Musoma. Three taxi cabs belonging to one Job Martin Ondego and driven by the second,

third and fourth accused persons were shipped at Kisumu and also loaded in the hold along with the trunks of money. These taxi cabs had allegedly been shipped to Musoma to assist in the wedding party of the first accused, who was also in the ship. The taxis were strangely loaded with mattresses and some empty cases and it is the prosecution's case, and the most probable explanation of the theft, that the actual thief was concealed in one of the taxis, and after the hold had been battened down came out and forced open the two trunks with the money, transferred the money to the empty cases in the taxis and refilled the trunks with dirt. The taxi cabs were unloaded at Musoma. Fortunately for the banks the custom officials and police at Musoma were intelligent and on the alert. They suspected three cases, which quite clearly came out of one or more of the taxi cabs, and on seizing these discovered that each contained a quantity of the missing bank notes amounting to Shs. 1,840,000/-. Six prosecution witnesses alleged that they saw the appellant carrying one of the cases with the bank notes. The appellant when challenged and after talking to some of the witnesses left the case and walked away. At that time, of course, it was not known that the case contained the bank notes and he left apparently to get his other luggage. We will be dealing with the evidence against this appellant in full, but suffice to say here that the appellant was not apparently the man concealed in one of the cars who was seen by one witness to get out of the car and who apparently got away unchallenged, but it is the prosecution's case that the appellant was in Musoma before the ship arrived and that he met the ship was then seen taking away one of the cases full of the missing money. The appellant and the other man disappeared from the scene but the first, second, third and fourth accused were arrested. The first accused who was eventually convicted made a full confession of his guilt and in his confession also involved this appellant and the owner of the three taxi cabs, Job Martin Ondego, as being the originators of the plan.

The prosecution called evidence and proved positively that the appellant and Job Martin Ondego, his brother, arrived together at Musoma on 15 February 1971 and were in Musoma or in the vicinity when the "M.V. Victoria" arrived. Later the appellant disappeared from Musoma with his car, registration No. UUB698, but he was arrested again at Musoma on the following night; meantime his car had broken down in vicinity of Tarime, which is on the way back to Kenya. The man, Job Martin Ondego, disappeared and as far as we know has not yet been prosecuted.

A long and full trial was held by the High Court sitting at Mwanza and at the conclusion the trial judge convicted the first accused and the appellant but acquitted the second, third and fourth accused, the three taxi drivers, whom the judge, in our opinion quite rightly, held were only carrying out their duties and went along as drivers and were innocent of the crime itself. The first accused has not appealed.

There was ample evidence against this appellant but unfortunately the trial judge misdirected himself on the value to be placed on a confession by one co-accused involving another accused as evidence to be considered in convicting that other accused person. He has also, with respect, not been very clear in his finding on the eye-witness evidence and to have misdirected himself on the facts this time in favour of the appellant. We have to consider and decide whether on all the facts of this case we are satisfied that the appellant was guilty and that the misdirection has not caused a failure of justice and whether we should apply the provisions of s. 346 of the Criminal Procedure Code. This court is the first court of appeal and in order to arrive at the correct decision we have to ourselves consider and fully evaluate all the evidence and the different aspects of the case to arrive at a conclusion whether the conviction of the appellant should be maintained.

The evidence against this appellant may be divided into three parts, first the eye-witness account that the appellant was seen removing a case filled with some of the stolen bank notes at the wharf premises, secondly the evidence of his movements along with those of Job Martin Ondego at Musoma on the day of theft, and then the evidence of the confession of the first accused in so far as it involved the appellant.

We will first consider the evidence contained in the confession of the first accused as used by the court against the appellant. This confession can only be considered due to the recent amendment to s. 33 of the Evidence Act. This amendment was enacted by the Administration of Justice (Miscellaneous Amendments) Act 1971 and only came to force on 29 October 1971. This crime was committed between 15 and 16 February 1971, but it did not come to trial until June 1972. The amendment to s. 33 was a matter affecting procedure and evidence and was in force at the time of the trial. There can be no doubt but that the amended s. 33 did apply and that the confession of the first accused was properly considered as against the appellant. The amended s.33 (1) reads as follows:

> "33(1) When two or more persons are being tried jointly for the same offence or for different offences arising out of the same transaction, and a confession made by one of such persons affecting himself and some other of such persons is proved, the court may take into consideration such confession as against such other person.
>
> (2) In this section 'offence' includes the abetment of or attempt to commit the offence."

There were two confessions made by the first accused which were both admitted in evidence and these confessions clearly involve the first accused himself, the missing character Job Martin Ondego, and the appellant. The judge was correct in considering this statement as evidence against the appellant, and we agree that the weight to be placed on such a confession must vary with the circumstances of each case, but the judge clearly misdirected himself and placed far too much reliance to these confessions when he said:

> "I would rely on it to found a conviction even without the supporting circumstantial evidence on record."

This apparent misdirection rose apparently because the judge used the confession of the co-accused as he would that of a confession by the appellant himself. These words are similar to the words of s. 32 of the Kenya Evidence Act. The Kenya section was considered by this court in the case of *Anyango v. Republic*, [1968] E.A. 239 and this court said at p. 322:

> "If it is a confession and implicates a co-accused it may, in a joint trial, be 'taken into consideration' against that co-accused. It is, however, not only accomplice evidence but evidence of the 'weakest kind' (*Anyuna s/o Omolo v. R.* (1953), 20 E.A.C.A. 218); and can only be used as lending assurance to other evidence against the co-accused (*Gopa s/o Gidamebanya v. R.* (1953), 20 E.A.C.A. 318)."

This section was also similar to s. 30 of the Indian Evidence Act which formerly applied to Tanganyika and in the judgment of this court in the *Gopa* case this court also dealt fully with the section and after approving various quotations from Sarkar on Evidence, 9th ed., and of Monir's Evidence, 3rd ed., said at p. 322:

> "Returning now to the submission by the appellant's counsel that the learned trial judge misdirected himself in treating the confession as the basis

> of evidence against a co-accused and thus looking for corroboration, we are abundantly satisfied from the authorities cited above that that approach is the wrong one and that a confession can only be used as lending assurance to other evidence against the co-accused, evidence which only falls short by a very narrow margin of the standard of proof necessary for a conviction."

It is correct to say that each case must be considered in the different circumstances of that case, and the weight to be placed on the involvement of an accused person by his co-accused's confession will differ in each case. The judge in his judgment does point out the various circumstances in the making of confession and the details which were confirmed by other evidence, but there can be no doubt that he does place far too much reliance on the co-accused's confession.

There was, however, a great deal of further evidence against the appellant in this case which we will now consider to determine whether the judge himself would have, in any event, convicted the appellant. [The judge considered the evidence and continued.] There was in our opinion overwhelming evidence establishing the guilt of the appellant, and in our opinion the judge must inevitably have come to that conclusion. We find that the misdirection of the judge has not caused a failure of justice, and that the appellant was correctly convicted.

We dismiss the appeal.

The appellant appeared in person.

For the respondent:
*K. R. K. Tampi* (Senior State Attorney)

## Khanna v Samuel
[1973] 1 EA 225 (HCK)

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| **Division:** | High Court of Kenya at Nairobi |
| **Date of judgment:** | 3 February 1973 |
| **Case Number:** | 94/1971 (45/73) |
| **Before:** | Harris J |
| **Sourced by:** | LawAfrica |

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*[1] Damages – Negligence – Motor accident – Assessor's fees, towing charges, loss of use, loss of insurance premium, purchase tax on replacement vehicle, cost of police abstract, loss of no-claim bonus, considered.*

*[2] Damages – Remoteness – Motor accident – Loss of no-claim bonus – Res inter alios acta.*

**Editor's Summary**

The plaintiff claimed as damages the items set out in the judgment of the court in his suit for negligence arising out of a car accident.

**Held** –

(i) The damage to the car should be reduced by the extra amount for which the wreck had been

sold;

(ii) the assessor's fee had not been paid by the plaintiff and was not recoverable;

(iii) the charges for towing the car to the police headquarters and to a garage were recoverable;

(iv) the loss of the portion of the insurance premium covering the period subsequent to the accident was recoverable;

(v) as the plaintiff had not paid, and did not consider himself bound to pay, anything to the person who had lent him a car, nothing was recoverable in respect of the loan;

(vi) purchase tax and transfer fee on the replacement vehicle was recoverable;

(vii) the cost of the police abstract was recoverable;

(viii) the loss of the plaintiff's no-claim bonus was res inter alios acta, and not recoverable.

Judgment accordingly.

**Cases referred to in judgment:**

(1) *Bradburn v. Great Western Ry. Co.* (1874), L.R. 10, Ex. 1.

(2) *Berrill v. Road Haulage Executive*, [1952] 2 Lloyds Rep. 490.

**Judgment**

**Harris J:** The plaintiff claims damages from the defendant arising out of a collision on a public highway in Nairobi between their respective motor vehicles. At a late stage of the proceedings before me the defendant admitted liability in negligence for the collision with the result that the only issue remaining is as to the quantum of damages.

Fortunately the plaintiff appears not to have suffered physical injury in the accident and his claim is as follows:

| | | |
|---|---|---|
| (*a*) Damage to his car | Shs. | 3,800/- |
| (*b*) Assessor's fees | Shs. | 84/- |
| (*c*) Towing charges | Shs. | 105/- |
| (*d*) Loss of insurance premium paid on car | Shs. | 518/- |
| (*e*) Loss of use of car from 1st July 1970 to 24th July 1970 at Shs. 50/- per day | Shs. | 1,200/- |
| (*f*) Purchase tax and transfer fee paid on replacement vehicle | Shs. | 205/- |
| (*g*) Cost of police abstract | Shs. | 5/- |
| (*h*) Loss of "no claim bonus" | Shs. | 840/- |
| | Shs. | 6,757/- |

The figures at items (*b*) and (*c*) were accepted by the defendant as correct in amount but without admission of liability. In regard to item (*e*) the defendant conceded, again without admission of liability, that the prevailing hiring charges for a vehicle equivalent to the plaintiff's car is Shs. 40/- per day with no free petrol. Counsel for the plaintiff conceded that the sum of Shs. 840/- at item (*h*) should be Shs. 726/10, thereby in effect reducing the total claim to Shs. 6,643/10.

The plaintiff tendered in evidence a report of an automobile assessor, the figures in which counsel for the defendant accepted as correct but without admission of liability. This report described the plaintiff's vehicle as having been seven years of age at the date of accident and having at the time a value of Shs. 4,600/-. It found that the damage to the vehicle was so extensive as to render unjustified any attempt to repair it and placed its salvage value, on the basis of treating it as a total loss, at Shs. 800/-.

The plaintiff was insured with the Phoenix of East Africa Assurance Company Ltd. and the company paid him this sum of Shs. 4,600/-, taking over the car from him, which it later sold for Shs. 900/-, that is, Shs. 100/- more than the estimated salvage value. In the absence of evidence to the

contrary, I am satisfied that the value of the car immediately prior to the accident was Shs. 4,600/-. In regard to its salvage value, however, while the assessor's

estimate of Shs. 800/- was, I have no doubt, perfectly bona fide, the fact that the remains of the vehicle realised Shs. 900/- instead of only Shs. 800/- and that no evidence was led to suggest that its condition when sold was in any way different from that immediately after the accident, I must hold that its market value as salvage immediately after the accident was Shs. 900/-. From this it follows that the sum to be awarded at item (*a*) is Shs. 3,700/-.

With respect to item (*b*), namely, the assessor's fee of Shs. 84/- which was paid by the insurance company and does not appear to have been passed on to or paid by the plaintiff, no sufficient basis has been shown for awarding it to the plaintiff as damages. As to whether, if paid, it would properly be included by the plaintiff in his costs as against the defendant I express no opinion.

The charge of Shs. 105/- at item (*c*) for towing the vehicle is divisible into two parts, namely, Shs. 80/- being the charge raised by the police for towing it from the scene of the accident to police headquarters and the balance, viz. Shs. 25/-, for towing it to a garage for the purpose of obtaining the estimate of the cost of repairs. I consider that each of these is properly chargeable against the plaintiff and is therefore allowable to him as against the defendant.

Item (*d*) concerns the loss suffered by the plaintiff in respect of the portion of the current premium already paid by him to the insurance company and attributable to the period from the date of the accident, 30 June 1970, to what would have been the date of expiration of the premium on 26 May 1971, that is, nearly eleven months later. Two officials of the company gave evidence from which it would appear that in the event the policy was in fact cancelled and no part of the premium returned, that being the practice when a car is a complete "write off". Whatever one may think of this particular practice, the item, as between the plaintiff and the defendant, is properly allowable to the plaintiff, but the figure, it seems, should be Shs. 470/- representing the period of cover so lost instead of Shs. 518/-, and I so find.

The claim at item (*e*) for Shs. 1,200/- in respect of loss of the use of the car from the date of the accident on 30 June 1970, to the purchase by the plaintiff on 24 July 1970, of a replacement vehicle raises an interesting problem. The plaintiff is a medical practitioner in Nairobi, requiring a car for the purpose of his practice. It appears, however, that during this period he was fortunate enough to be lent another car by one of his patients and was so enabled to carry on his practice. There is no suggestion that his professional earnings were affected in any way. The sum of Shs. 1,200/- is arrived at by estimating the notional hiring charge at current rates which the plaintiff would have had to pay if he had had to hire a vehicle amounting to Shs. 50/- per day inclusive of petrol.

It is well established that the loss to the owner of the use of a chattel, while out of commission owing to its having been damaged through the negligence of another, is actionable and forms a head of damage in a suit for negligence. In cross-examination the plaintiff said that the car which was lent to him was lent without charge but that the lender expected to be paid. In re-examination he was asked whether he had compensated the owner of the car and his answer was:

> "The lender is a patient of mine and I have offset Shs. 1,200/- from the fee payable by him for professional services rendered. This was returned in my tax return by drawings. If I get the money back I will repay him."

I do not find it easy to understand this evidence. If the plaintiff has already offset the sum of Shs. 1,200/- from the professional fees payable to him by the lender of the vehicle why does the latter still expect to be paid? Again what does the plaintiff mean when he says that he returned the item in his tax return by drawings? What drawings? It would seem that his attitude towards the

lender is based primarily on friendship, or possibly the professional relationship existing between them, rather than upon a conception of some legal or moral obligation, for he admitted in cross-examination that as between himself and the insurance company he did not intend, in the event of his succeeding in the action, to refund to the company any of the moneys paid by it to him in the matter.

On this evidence, and despite the authorities referred to by Mr. Khanna in his careful argument, I must hold that the plaintiff has not paid, and does not consider himself legally liable to pay, any charge for the loan of the car which was made available to him beyond the cost of the petrol and this he would have had to pay for use in his own car if there had been no accident. Allowing for the possibility of there having been some inconvenience to him by having to drive each day a car other than his own, and following the principle adopted in *Berrill v. Road Haulage Executive*, [1952] 2 Lloyd's Rep. 490, to which I was referred, I assess the total damages under this head at Shs. 40/-. If, however, the plaintiff had succeeded in his claim as present I would have awarded damages at the rate of Shs. 40/- per day for 24 days.

The claim for Shs. 205/- at item (*f*) is resisted by the defendant on the ground that the plaintiff is entitled to recover only the pre-accident value of his vehicle less its salvage value; that the sum here claimed was incurred by the plaintiff in the purchase of a better vehicle than that which he had lost; and that in any event no receipt for the payment had been produced. There is little substance in these contentions. Had it not been for the defendant's negligence the replacement vehicle would not have had to be purchased and there is nothing to suggest that, even if the second car had not been an improvement on its predecessor, this sum would not have been payable. As to proof of payment I see no reason to doubt the plaintiff's evidence in the matter.

Although the charge of Shs. 5/- made by the police for their abstract and claimed at item (*g*) might more logically be included as a disbursement in the plaintiff's bill of costs, it is not unusual to find it claimed as an item of damage and I propose to allow it.

The claim at item (*h*) for the loss of the plaintiff's no claim bonus is resisted by the defendant and requires consideration. A provision in the policy of insurance declares that: in the event of no claim being made or arising under the policy during a specified period immediately preceding the renewal of the policy, the renewal premium shall be reduced by the amount of what is therein described as a "no-claim discount". In the present case the relevant specified period was four consecutive years and the prescribed rate of discount after the fourth year was fifty per cent. The effect of the loss of this discount by reason of the plaintiff having made his claim against the company will be, in the event of his taking out a fresh motor insurance policy, that he will suffer a progressively decreasing reduction of this discount or "bonus" for each of the first four years from the date of the new policy until he shall have become entitled at the end of that period to enjoy once more (assuming that he does not again lose the concession) a fully fifty per cent reduction of premium. The aggregate amount of this loss over the four years following the date of the accident is stated to be Shs. 726/10, which figure has not been disputed.

Turning now to a consideration of the legal basis of the plaintiff's claim, it is trite law that moneys received by a plaintiff under a policy of insurance effected by him covering damage to his car through the negligence of a defendant cannot be taken into account by way of reduction of damages payable by that defendant. The principle here is that the right to payment of such moneys is merely res inter alios acta and therefore collateral, with the result that the receipt of such moneys by the plaintiff is quite irrelevant to his claim against the

defendant. The rule was stated a century ago by Baron Pigott in *Bradburn v. Great Western Rly. Co.* (1874), L.R. 10, Ex. 1, where, referring to a plaintiff who was the beneficiary under a policy of insurance covering the loss in respect of which his claim against the defendant was brought, he said at p. 3:

> "The plaintiff is entitled to recover the damages caused to him by the negligence of the defendants, and there is no reason or justice in setting off what the plaintiff has entitled himself to under a contract with third persons, by which he has bargained for the payment of a sum of money in the event of an accident happening to him. He does not receive that sum of money because of the accident, but because he has made a contract providing for the contingency; an accident must occur to entitle him to it, but it is not the accident, but his contract, which is the cause of his receiving it."

In my opinion, the same must be said of any loss of a no-claim bonus which the present plaintiff may suffer or may have suffered as a result of his enforcing, at his election, his rights under the policy. In the present case the plaintiff, had he wished, could have preserved his bonus rights by not relying upon his insurance contract and instead looking directly to the defendant for the payment of the damages. Instead of adopting that course, however, he relied upon the policy, thereby jeopardising his bonus rights, and he is now seeking to recover from the defendant both the damages for the injury to the car, already paid to him by the company, and compensation for the loss of this bonus.

It was said in argument that if the plaintiff should succeed in his present claim for damages he can be required, at the insistence of the insurance company, to refund to it the damages so recovered up to the amount paid to him by the company, and this may well be the legal position. In that event, however, it would seem to follow that the bonus, now lost to him, would be restored and this, in fact, was stated in evidence by one of the company's officials to be the position. The title of the plaintiff to this bonus and the company's right to withhold it are both inherent provisions of the contract of insurance and are both, in my view, equally collateral to the plaintiff's rights against the defendant in respect of the act of negligence constituting the subject of this suit.

It is remarkable that the researches of counsel apparently produced no clear authority upon the matter and I may add that my own endeavours in that behalf were equally fruitless. In the event, therefore, I have felt obliged to decide the question by resort to first principles, as I have endeavoured to do, and I hold that the plaintiff's claim for the loss of his no-claim bonus fails.

*Judgment accordingly*

For the plaintiff:
*D. N. Khanna* (instructed by *Khanna & Co.*, Nairobi)

For the defendant:
*A. Esmail* (instructed by *Esmail & Esmail*, Nairobi)

## Abubakali and another v Uganda
[1973] 1 EA 230 (CAK)

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| **Division:** | Court of Appeal at Kampala |
| **Date of judgment:** | 17 April 1973 |
| **Case Number:** | 149/1973 (47/73) |
| **Before:** | Sir William Duffus P, Spry VP and Law JA |

**Sourced by:** LawAfrica

**Appeal from:** The High Court of Uganda – Musoke, J.

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*[1] Criminal Law – Assault with intent to rob – Proper charge under section – Assault does not include battery – Penal Code, s.* 274 (*U.*).

*[2] Evidence – Confession – To police officer – Rules complied with but compliance not recorded in statement – Admissible – Evidence* (*Statements to Police Officers*) *Rules* (*U.*).

**Editor's Summary**

The appellants were convicted of an offence against s. 274 of the Penal Code which charge was described in the count as attempted robbery, as having participated in a gang attack on a factory in which firearms were used and a bystander killed. The facts are set out in the judgment.

It was argued that assault in the section means an assault and battery and not a mere assault.

The second appellant was convicted on the evidence of eye-witnesses who identified him, although no identification parade was held, and on a confession made to the policeman who arrested him and recorded at the time in his note-book. The note-book only set out the caution, and not the fact of information having been given of the nature of the charge.

**Held –**

(i) the charge should have been worded as assault with intent to rob;

(ii) the error had caused no failure of justice;

(iii) the section in effect creates the offence of assault with intent to commit robbery;

(iv) assault does not mean assault and battery;

(v) provided that a statement to a police officer has been correctly taken it does not matter that compliance with the rules has not been recorded in the statement;

(vi) (Spry, V.-P. dissenting) on the evidence the second appellant was properly convicted.

Appeals dismissed.

**Case referred to in judgment:**

(1) *Mwangi Njeroge v. R.* (1954), 21 E.A.C.A. 377.

**Judgment**

The considered majority judgment of the court was read by **Sir William Duffus P:** The two appellants, Abubakali Amin and Siragi Gitta, were charged and convicted for "attempted robbery" contrary to s. 274 of the Penal Code. The main legal arguments in this appeal concern the count which reads as follows:

ATTEMPTED ROBBERY, contrary to s. 274 (1) and (2) (*b*) of the Penal Code.

*PARTICULARS OF OFFENCE*

ABUBAKALI AMIN, SIRAGI GITTA, MAGIDU LUWAGA, FRANCIS GOOBI and others still at large on or about the 5 December 1970, at Nakayaga Cooperative Society's Coffee Factory in the East Buganda District, attempted to rob GEORGE WILSON KAZIBWE of cash Shs. 100,000/- and at or immediately before or immediately after the time of the said attempted robbery threatened to use violence on the factory employees in order to obtain the said Shs. 100,000/-.

S. 274 of the Penal Code under which the first count is laid reads:

"274 (1) Any person who assaults any other person with intent to steal anything and at, immediately before or immediately before or immediately after, the assault, uses or threatens to use actual violence to any person or property in order to obtain the thing intended to be stolen or to prevent or overcome resistance to its being stolen, commits a felony.

(2) Any person who commits a felony under this section shall be liable:

(*a*) on conviction by a magistrate's court, to imprisonment for seven years;

(*b*) on conviction by the High Court, to imprisonment for life."

A short summary of the established facts were that an armed gang agreed to carry out a robbery at the Nakayaga Co-operative Society's coffee factory in the East Buganda district on 5 December 1970. The management of the coffee factory were however warned of the impending raid on the factory and they in turn notified the police and a trap was set. The raid duly took place on 5 December; at least five men were involved, two of whom carried guns. The robbers arrived in a car and as usual announced their arrival by firing their guns. They then ran towards the office demanding money. At this stage the police, and there were twelve armed policemen in the ambush, sprang out and an exchange of shots took place. Two of the robbers were killed and also one civilian by-stander; it is alleged that the civilian was shot by the robbers. One of the robbers escaped and it is the prosecution's case that the two appellants were the remaining members of the gang. We will consider the individual case of each appellant later. Mr. Kayondo for the first appellant raised the interesting point that the word "assaults" in the words "who assaults any other person" appearing in s. 274 (1) meant an actual physical assault or an "assault and battery" and not an assault as defined in law. He then submitted that the evidence in this case showed that there was no actual physical assault but only the use of firearms to intimidate the by-standers and employees of the company.

This point is not without merit and we have found it difficult to understand exactly what the words in s. 274 do mean. The crime defined under s. 274 can be divided into three parts. First the assaulting of another person, secondly that this assault is done with an intent to steal and then thirdly that contemporaneously with the assault the offender "uses or threatens to use actual violence to any person or property in order to obtain the article to be stolen, etc.". This section would appear to envisage two separate acts or two separate assaults. First the assault against the complainant, coupled with the intention to steal, and then "at, immediately before, or immediately after" the use or threat of actual violence in order to carry out the theft. It would appear however that in the majority of cases the assault and the use of actual violence would be done by one and the same act. In England the section providing for a similar offence (s. 8 of the Theft Act 1968) refers to this offence as "an assault with intent to rob". Robbery is defined by our s. 272 of the Penal Code and this states, inter alia:

> "272. Any person who steals anything, and, at or immediately before or immediately after the time of stealing it, uses or threatens to use actual violence to any person or property in order to obtain. . . ."

It appears that s. 274 could have been considerably shortened and perhaps made more intelligible if the section had said "any person who assaults any other person with intent to rob commits a felony". In the present section the addition of the words after "with intent to steal anything" make it clear that the assault with intent to steal is done under circumstances which would amount to an assault with intent to rob. The essential element of robbery is the stealing against the will of the complainant by the use of force or by putting or seeking to put such person in fear. S. 275 of the Penal Code creates the offence of an assault with intent to steal which does not contain those essential elements of robbery. We are of the view that the word "assaults" as used in s. 274 conveys the ordinary meaning of an assault in law and does not here mean an actual physical assault or an assault coupled with a battery. An assault as defined in Russell on Crime, 12th Edition, vol. 1 at p. 652 is:

> "An assault, as distinct from battery, is a threat by one man to inflict unlawful force (whether light or heavy) upon another; it constitutes a crime at common law when the threatener, by some physical act, has intentionally caused the other to believe that such force is about to be inflicted upon him."

The facts in this case clearly establish an assault with intent to rob. The assault here is the actual firing and pointing of the guns at the employees or by-standers and was done in order to steal from the coffee factory with the use of actual violence. In this case there is however an actual battery or physical assault as a civilian was shot and there was evidence that he was shot by one of the gang of robbers. There can be no doubt that all the members of the gang had a common intention to effect a theft of money by the use of actual violence, the possession of the firearms and ammunition were all a part of the agreed plan, and accordingly they were all guilty of the offences charged by virtue of ss. 21 and 22 of the Penal Code. There are, however, two quite serious errors in the trial which were not made grounds of appeal by the appellants. The first is that the charge was wrongly brought as an "attempted robbery" under s. 274. Senior State Attorney who drafted the charge was no doubt misled by the marginal note "attempted robbery". The charge should properly have been stated as "an assault with intent to rob". The trial judge was also misled as he refers to and relies on s. 369 of the Penal Code which defines what is an attempt and he also deals with this crime as "an attempted robbery" rather than as the substantive crime of an "assault with intent to rob" as defined in s. 274. We are, however, satisfied from the judgment and from the evidence that there has been no failure of justice in this case. There was clear evidence of an assault with intent to rob and the judge has on the evidence properly found that the ingredients of a crime under s. 274 did exist. He actually dealt with this as a crime under s. 274 and both the prosecution and the defence conducted the trial on this basis.

We will now consider the individual cases of each of the appellants. [The judge considered the evidence against the first appellant and continued.] The judge accepted all this evidence, and the guilt of the first appellant was clearly established.

The case against the second appellant depends first on the eye-witness evidence of four persons who identified him as one of the robbers and also on a confession that he is alleged to have made to detective assistant inspector of police Mudumba when he was first arrested, and on another confession to police officer Opio.

The second appellant was not arrested at the scene of the crime but was arrested early in the morning of the 9 December 1970 by Mudumba.

On his arrest he was charged and cautioned and he then volunteered a statement in Luganda which Mudumba took down in his notebook and then it was read over to and signed by this appellant. The appellant's advocate objected to the admission of this statement, first on the ground that it was contrary to the Evidence (Statements to Police Officers) Rules, in that the statement did not itself show that r. 9 had been complied with. R. 9 requires that before administering the statutory caution required by these rules a police officer shall first charge the prisoner with the offence, inform him (inter alia) of the nature of the charge likely to be preferred and then ask him if he wishes to say anything. In this case Mudumba's notebook only sets out the statutory caution and then the statement follows.

We are of the view that the trial judge was correct when he held that the provisions of r. 9 could be carried out verbally and need not be reduced into writing. A further objection to this statement was that it was not voluntary and that the appellant was beaten and forced to make it. The trial judge held a trial within a trial on this matter and he accepted the prosecution's case that this was a voluntary statement and admitted it. This was largely a question of credibility and a matter for the decision of the trial judge who saw and heard the witnesses and was in the best position to decide the issue and we cannot say that he arrived at an incorrect conclusion.

We note with approval that the police officer did make use of his notebook in this instance. Confessions or statements by accused persons are in this country usually made after a prisoner has been taken to the police station and perhaps confined for hours or days. This practice can only lend credence to the charge, so often brought, at times with justification, that the statement has been obtained through fear or duress. It is important that a prisoner should on arrest be charged and cautioned and a full note of the incident and of any statement that he might make entered in the police officer's notebook. This was the procedure followed in the second appellant's case. This court pointed out the case of *Mwangi Njeroge v. R.* (1954), 21 E.A.C A. 377 at p. 381 that:

> " 'it is a condition of lawful arrest that the party arrested should know on what charge or on suspicion of what crime he is arrested':"

This appellant made another confession on the following day in prison which was admitted in evidence after a trial within a trial. He also complains of having been beaten and the remarks we made (supra) with regard to the first appellant's confession would apply to a limited extent here. The prosecution did not however rely only on this confession but relied also on the evidence of eyewitnesses and of the confession to Mudumba. The main criticism against the eye-witnesses is that no identification parade was held, although this appellant was not arrested until four days after. The fact that no identification parade was held does considerably weaken evidence of identification, but this does not mean hat the court cannot convict on such evidence. It is a matter for the trial court to determine in considering all the evidence and circumstances of the case. There were four eye-witnesses. Detective constable Omala said he actually saw this appellant come out of the robbers' car and he fired two shots at him but missed him and then he chased him but did not catch him. He said that after that day he had been looking for the appellant and he was present when he was arrested on the 9 December 1970. The question of an identification parade does not apply to him. Then there was detective assistant superintendent Echaku, who said he saw this appellant at the Kampala police station under arrest and there recognised him as the driver of the motor-car. The other two witnesses were also policemen, both recognised and pointed out the second appellant in court but not at an identification parade. The trial judge accepted this evidence of identification and having regard to this evidence and also to the confession

made to sergeant Mudumba, we are satisfied that the second appellant was properly convicted.

We dismiss the appeals of both appellants.

**Spry VP:** I agree with the judgment of the court on all questions regarding the charge and the interpretation of s. 274 of the Penal Code Act and r. 9 of the Evidence (Statements to Police Officers) Rules. I agree that the appeal of Abubakali Amin should be dismissed but I would have allowed the appeal of Siragi Gitta.

*Appeals dismissed.*

For the first appellant:
*H. Kayondo* (instructed by *Kayondo & Co.*, Kampala)

The second appellant appeared in person.

For the respondent:
*J. W. N. Tsekoko*

## Byarugaba v Uganda
[1973] 1 EA 234 (CAK)

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|---|---|
| Division: | Court of Appeal at Kampala |
| **Date of judgment:** | 24 April 1973 |
| **Case Number:** | 161/1972 (48/73) |
| **Before:** | Sir William Duffus P, Wambuzi CJ and Law JA |
| **Sourced by:** | LawAfrica |
| **Appeal from:** | The High Court of Uganda – Mead, J. |

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*[1] Police – Firearms – Attempted escape – Person not charged with felony, but arrested on suspicion of felony – Firearms not usable – Police Act* (*Cap.* 312), *s.* 26*B* (*U.*).

*[2] Police – Arrest – Person escaping from lawful custody – May be pursued – Only reasonable force may be used – Criminal Procedure Code, s.* 34 (*U.*).

**Editor's Summary**

The appellant, a police inspector, was convicted of unlawfully wounding two men who had been arrested but not charged with any offence. They were handcuffed and unarmed, and the appellant was armed with a revolver. The trial judge found that the appellant shot at the men to prevent their escape. He held that s. 15 of the Criminal Procedure Code did not apply as the men had already been arrested and that s. 26b of the Police Act did not apply, as they had not been charged with a felony.

**Held –**

(i) the suspects were already under arrest;

(ii) no charge had been preferred, and "charged with a felony" does not include a person arrested upon reasonable suspicion of having admitted a felony;

(iii) a person escaping from lawful custody may be pursued and arrested, but greater force may not be used than is reasonable;

(iv) it was not reasonable to shoot at unarmed, handcuffed men whose homes were known to the police.

Appeal dismissed.

**No cases referred to in judgment.**

**Judgment**

The considered judgment of the court was read by **Law JA:** The appellant Joseph Byarugaba was, on 31 July 1972, an inspector of police in charge of Nalufenya police station in the municipality of Jinja. He was tried in the High Court of Uganda on an indictment containing four counts.

The first two counts charged him with the attempted murder, contrary to s. 197 (*a*) of the Penal Code, of two young men named respectively Ikaka and Ekiring; the second two counts, which were alternative to the first two, charged him with unlawfully wounding the same two men, contrary to s. 215 of the Penal Code.

Ikaka and Ekiring were arrested on the afternoon of 31 July on suspicion of being concerned in the murder of an unnamed person by detective sergeant Odabba and detective constable Levi, presumably under s. 23 (*a*) of the Criminal Procedure Code. The two suspects do not appear to have been formally charged with murder, but according to constable Levi were "taken to help the police in their investigations". They were placed in a cell at Nalufenya police station. At about 10.30 p.m. the appellant saw them for the first time and spoke to them. He ordered constable Mwangala to handcuff the two men and he took them, accompanied by Mwangala, to a place about 50 yards outside the police station, having armed himself with a loaded revolver. He then sent Mwangala back to the police station, ostensibly to fetch the keys of the handcuffs. What happened next, in Mwangala's absence, is the subject of a considerable conflict of testimony. One thing is clear, the appellant fired several shots from his revolver which were heard by the policemen on duty in the police station. According to Ikaka and Ekiring, the appellant fired at them deliberately, for no reason, wounding Ikaka in the shoulder and Ekiring on the cheek. The two men ran away in the dark and reported what had happened at the Jinja Military Barracks. The appellant returned to his police station, and according to the evidence gave a number of conflicting versions of what had happened. To Mwangala he said he had been ambushed by a large number of men who had overpowered him and "snatched" the two suspects from him, whereupon he had fired his revolver and thought he might have "harmed some of them". To corporal Valentino he said that some people wanted to take away the suspects, so he fired at them. He handed in five used rounds of ammunition. To Captain Marjan of the Uganda Army, who came to the police station later that night, the appellant said he shot at the suspects because they tried to escape. To constable Bahemuka the appellant said "I have been struggling with friends of the accused who came to help them. I shot at them. I do not know if I hit anyone". In his evidence at the trial the appellant stated that he went out with the two suspects to investigate the alleged murder. He sent Mwangala back for the handcuff keys. While Mwangala was away he was attacked by a group of five men. He fired three shots vertically in the air to frighten them off. The five men and the two suspects ran off towards the barracks, and he fired two more shots at the fleeing men, calling on them to stop.

The judge, in agreement with the assessors, found the appellant not guilty on the two counts of attempted murder. He did not accept the appellant's story of an ambush or rescue, but found that the suspects had attacked him with the intention of escaping, and that the appellant shot at them and wounded them not with the intent of killing them but to prevent their escape. He considered the effect of s. 26b of the Police Act (Cap. 312), but held that it did not avail the appellant, as neither suspect had been charged with or convicted of felony. He convicted the appellant of the two counts of unlawful wounding and sentenced him to concurrent terms of nine months' imprisonment. He held, correctly in our view, that the provisions of s. 15 of the Criminal Procedure Code as to the use of reasonable force in effecting an arrest were of no relevance in this case as the suspects were already under arrest.

The substantial point in this appeal is whether the judge correctly interpreted s. 26b of the Police Act in relation to the facts of this case. That section so far as it is material, reads:

> "26b. Any police officer may use arms against –

(*a*) any person in lawful custody, charged with, or convicted of, a felony, when such person is escaping or attempting to escape; Providing that resort shall not be had to the use of any such arms –

(*b*) as authorised under paragraph (*a*) of this section, unless such officer has reasonable ground to believe that he cannot otherwise prevent the escape, or unless such officer gives a warning to such person that he is about to use such arms against him and such warning is unheeded; . . .”

The judge held that these provisions did not avail the appellant as the suspects had not been charged with a felony. They had never been charged with a specific criminal offence. Ikaka deposed that he was told “You have killed someone”, that he was put in a cell, and was told that he would be asked for a statement on the following day. Ekiring deposed that he had reported the discovery of a dead man, that after some police inquiries he was taken to the police station and put in a cell, and was told that he would be asked for a statement next day. The police evidence was that the two men had been arrested as suspects in a murder case, and that they had been detained in order to assist the police in their inquiries. There is no evidence whatsoever that either had been charged with the murder of a particular person. We consider that the word “charged” in s. 26b (*a*) of the Police Act cannot be interpreted as including persons arrested under s. 23 (*a*) of the Criminal Procedure Code upon reasonable suspicion of having committed a cognisable offence, in this case murder. Such persons, as in this case, are lawfully detained in connection with a charge of felony, but until they are charged, s. 26b does not apply to them. Accordingly, we agree with the judge that s. 26b of the Police Act could not avail the appellant.

Unfortunately, the judge did not go on to consider whether the appellant’s conduct could be justified at common law, or under other statutory provisions. At common law, reasonable force can be used in effecting an arrest, or preventing an escape from lawful custody. By s. 34 of the Criminal Procedure Code, if a person in lawful custody escapes or is rescued, the person from whose custody he escapes or is rescued may immediately pursue and arrest him in any place in Uganda. By s. 15 of the Code, all necessary means may be used to effect an arrest, provided that greater force shall not be used than is reasonable in the particular circumstances. These provisions in effect codify the common law on this point. In the case of an armed person, who is using a firearm to resist arrest, the use of a firearm to effect his arrest could be justified under these provisions, if such use was necessary in the circumstances. The question in this case is, was the use of a firearm against Ekiring and Ikaka justified? We think not. They were unarmed and handcuffed. Their homes were known to the police. All the appellant had to do was to go 50 yards to the police station, obtain help, and go in search of the two handcuffed men. Instead, as the judge found, he fired at them deliberately. We consider that, in these circumstances, the use of a firearm constituted an unreasonable use of force by the appellant in the performance of his duty as a policeman to prevent the escape of the two suspects from lawful custody. In the event, we are of opinion that the appellant was properly convicted, although for reasons differing somewhat from those relied on by the judge.

*The appeal is dismissed.*

For the appellant:
*Y. Mugenyi* (instructed by *Mugenyi & Co.*, Kampala)

For the respondent:
*C. R. Waheru* (Senior State Attorney)

## Ahmed v Republic

# [1973] 1 EA 237 (HCK)

| | |
|---|---|
| **Division:** | High Court of Kenya at Mombasa |
| **Date of judgment:** | 31 January 1973 |
| **Case Number:** | 4/1973 (49/73) |
| **Before:** | Sir Dermot Sheridan J |
| **Sourced by:** | LawAfrica |

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*[1] Licensing – Liquor licensing – Licence – Display of – Failure to display not an offence – Traditional Liquor Act* 1971, *s.* 11 (*K.*).

**Editor's Summary**

The accused was convicted of failing to display on the licensed premises his licence under the Traditional Liquor Act 1971.

**Held –** No offence is created by the section.

Conviction quashed.

**No cases referred to in judgment.**

**Judgment**

**Sir Dermot Sheridan J:** The accused was fined Shs. 25/- and his licence ordered to be endorsed for failing to display a pombe licence, contrary to s. 11 (5) as read with s. 34 of the Traditional Liquor Act 1971.

S. 34 of the Act lays down penalties that can be imposed on a person found guilty of an offence under the Act, for which no penalty is otherwise provided.

S. 11 (5) of the Act under which the accused is convicted reads:

> "Every licence shall be conspicuously displayed in the licensed premises."

There does not appear to be any provision in the Act stating that a person failing to display his licence shall be guilty of an offence, and in the absence of any such provision the failure does not constitute an offence. The penalty section can only come into play if the alleged omission or commission of an Act has been specifically or generally declared an offence.

It appears that there is a lacuna in the Act, and any conviction under s. 11 (5), or for that matter under any other sub-section of s. 11, is bad in law.

The same is the position with regard to the order for endorsement of licence, which the trial magistrate has purported to make under the provisions of s. 33 of the Act.

I set aside the order of endorsement and order that the fine, if paid, shall be refunded to the accused.

*Order accordingly.*

No appearance for the parties.

# Republic v Mohamed
[1973] 1 EA 238 (HCK)

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|---|---|
| **Division:** | High Court of Kenya at Mombasa |
| **Date of judgment:** | 24 March 1973 |
| **Case Number:** | 15/1973 (50/73) |
| **Before:** | Sir Dermot Sheridan J |
| **Sourced by:** | LawAfrica |

*[1] Criminal Law – Affray – Elements of Offence – Joint Charge – Both accused have to be convicted – Penal Code, s.* 92 (*K.*).

**Editor's Summary**

The accused was convicted on his plea of affray in that he jointly fought with another man who was subsequently acquitted.

**Held –** The conviction of the accused could not stand.

Order accordingly.

**Case referred to in judgment:**

(1) *R. v. Scarrow* (1968), 52 Cr. App. R. 591.

**Judgment**

**Sir Dermot Sheridan J:** On 9 March 1973 the first accused was convicted on his plea of affray contrary to s. 92 of the Penal Code and was fined Shs. 100/- or 30 days' imprisonment. The second accused pleaded not guilty. Subsequently he was acquitted under s. 202 of the Criminal Procedure Code for non-appearance of the prosecution witnesses. Strictly this section is confined to non-appearance of the complainant, but as the complainant was the Republic of Kenya the effect was the same.

The particulars of offence alleged that the two accused jointly took part in a fight in a public place.

But for the wording of the particulars there would be nothing inconsistent in the conviction of one accused and the acquittal of another on a charge of affray as it is not necessary to prove that each accused fought with each other. It is sufficient if each, or one of them, fought with a different person outside their number: *R. v. Scarrow* (1968), 52 Cr. App. R. 591. If the word "jointly" had been omitted from the particulars of offence the conviction of the first accused would have been good. As it is the conviction and sentence on the first accused must be set aside and the fine which has been paid must be refunded to him.

*Order accordingly.*

No appearance for the parties.

# Isak v Republic
[1973] 1 EA 239 (HCK)

| | |
|---|---|
| **Division:** | High Court of Kenya at Mombasa |
| **Date of judgment:** | 7 March 1973 |
| **Case Number:** | 197/1972 (51/73) |
| **Before:** | Sir Dermot Sheridan J |
| **Sourced by:** | LawAfrica |

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*[1] Criminal Law – Possession of property suspected of having been stolen – No suspicious conduct by accused before detention – Section not applicable – Criminal Procedure Code, s.* 26 (*K.*).

*[2] Criminal Law – Possession of property suspected of having been stolen – Reasonable account by accused – Should be accepted – Criminal Procedure Code, s.* 26 (*K.*).

**Editor's Summary**

The appellant was stopped by the police during a routine check and was found to be carrying drugs. He gave the name of the owner of the drugs and produced an invoice.

He was convicted of possession of suspected stolen property.

On appeal:

**Held** –

(i) the police could not have been acting under the section as there had been no suspicious conduct on the part of the appellant;

(ii) the appellant had produced a reasonable and credible account of his possession of the goods which should have been accepted (*Kiondo Hamisi v. R.* (2) followed).

Appeal followed.

**Cases referred to in judgment:**

(1) *R. v. Katakuhakwa*, [1963] E.A. 17.

(2) *Kiondo Hamisi v. R.*, [1963] E.A. 209.

(3) *Njoroge v. Republic*, [1965] E.A. 585.

(4) *Abdi v. Republic*, Cr. App. 1054 of 1971 (unreported).

**Judgment**

**Sir Dermot Sheridan J:** The appellant was convicted of possession of suspected stolen property contrary to s. 323 of the Penal Code and was sentenced to nine months' imprisonment.

The particulars of offence stated:

"*ISAK ABU HILOLE*: On 23 February 1972, at about 6.30 p.m. at Kiunga Trading Centre in Lamu District of the Coast Province you having been detained by No. 22558 Police Constable ALLEN

> MAINA as a result of the exercise of the powers conferred by s. 26 of the Criminal Procedure Code had in your possession BERENIL drugs 4,994 packets and ETHIDIUM drugs 75 tins which were reasonably suspected of having been stolen or unlawfully obtained."

The evidence was that the appellant was found in possession of the drugs when the motor vehicle in which he was travelling stopped at the barrier at the police post at Kiunga for a routine check. Police witnesses gave evidence that at first he vacillated about the possession and ownership of the drugs but finally made

it clear that he was carrying them for one Ibrahim Ali. Not much, if any, weight should have attached to the appellant's conduct because it was admitted that he could not speak kiswahili and had to be interogated through an interpreter, who was not called as a witness. This made this part of the police evidence inadmissible as hearsay.

Later the appellant produced cash sales invoices covering the purchase of the drugs by Ali on 20 January 1972. These documents were produced by the appellant at the trial and are on the face of them genuine. The appellant accounted for his possession of the drugs by saying that he was carrying them for Ali. The trial magistrate rejected this account, stating that Ali should have been called as a defence witness to prove his ownership of the drugs and "to clear doubts". By this time some five months had elapsed since the appellants arrest and he stated that Ali had returned to Somalia. However, it would not have been necessary for him to call Ali, as the magistrate had seriously misdirected himself on the onus of proof. As was said by Spry, J., as he then was, in *Kiondo Hamisi v. R.*, [1963] E.A. 209 at p. 211:

> "It is clear that where it is proved that a person has been detained under the powers conferred by s. 24 of the Criminal Procedure Code and that he had at that time in his possession property which may be reasonably suspected of having been stolen or unlawfully obtained, the burden shifts to him of satisfying the court as to how he came by the same. The burden is not, however, a heavy one. Sinclair, Ag. C.J. (as he then was), said in the case of *George s/o Lerai v. R.* (1952), I.T.L.R. (R.) 366:
>
> 'Where a person charged under this section gives no account to the court of how he came by the property, or gives an account which is false or unreasonable, he is clearly not giving an account to the satisfaction of the court and the court is entitled to convict. But where he gives an account which might reasonably be true and which is consistent with innocent possession, he is, in my view, entitled to be acquitted. The section does not require him to prove that he came by the property honestly.'
>
> With that view I respectfully agree."

Here the appellant had given an account of his possession of the drugs which was reasonable and credible. It should have been accepted by the magistrate. In *Abdi v. Republic* Cr. A. 1054 of 1971 (unreported) the appellants sold or bartered a radio for tobacco worth Shs. 350/-. The purchaser became suspicious because the receipt produced by the appellants appeared to refer to a different radio and to cover himself he took it to the police and yet the court doubted whether there were grounds for reasonable suspicion that the radio had been stolen and, if there were such grounds, the appellants appeared to have discharged the burden which lay upon them of satisfying the court that they came honestly by the radio. The present case is stronger in favour of the appellant in that the invoices obviously refer to the same drugs.

Mr. Ghalia, for the appellant, further submitted that the police were not acting under the powers conferred on them by s. 26 of the Criminal Procedure Code when, after the vehicle had stopped at the barrier for a routine check, they searched and detained the appellant. They had not stopped him as a person who might reasonably be suspected of having in his possession or conveying in any manner anything stolen or unlawfully obtained. In *Abdi's* case (*supra*) when the police proceeded to look for and arrest the appellants it was held that the appellants were not detained in exercise of the police powers under s. 26 of the Code. As Mr. Ghalia put it, the mere erection of a police barrier does not automatically confer on the police the powers given by s. 26.

Mr. Rana, for the Republic, relied on *Njoroge v. Republic* [1965] E.A. 585

where the landrover, in which the copper wire suspected to have been stolen was found, was stationary, but it was held:

(1) that there were grounds for suspicion in view of the action of the appellants in running away from the landrover on the approach of the police and

(2) the evidence was also sufficient to support the finding that the appellants and others were in possession in the sense of conveying, of the stolen wire and that they were stopped and detained as a result of the powers conferred by s. 26. Here there was no admissible evidence of suspicious conduct on the part of the appellant.

He was originally charged with handling stolen property contrary to s. 322 (2) of the Penal Code, the drugs being alleged to be the property of "L.M.D. Veterinary Department". When the true ownership of the property became known that charge had to be dropped. The prosecution were in no better position by substituting the present charge.

As was said by Reide, J., in *R. v. Katakuhakwa*, [1963] E.A. 17 at p. 19:

> "I should like to say first that, these submissions apart, I should be very unwilling to extend the scope of s. 312 further than the law manifestly required me to. It is not only a 'highly technical section', as was remarked by Wilson, J., in *R. v. Shabani Saidi* (1943), I.T.L.R. (R.) 77, but it is one which involves an exception to the salutary rule of law whereby the onus of proving guilt lies throughout on the prosecution, in that the burden of furnishing to the court a credible explanation of his possession of the suspected articles, is here thrown upon the accused."

For the above reason I allow the appeal and set aside the conviction and sentence.

*Order accordingly.*

For the appellant.
*S. Ghalia*

For the respondent.
*M. Rana*

## Kalamazoo Ltd and another v Systems Africa Ltd
[1973] 1 EA 242 (HCK)

| | |
|---|---|
| **Division:** | High Court of Kenya at Nairobi |
| **Date of judgment:** | 13 April 1973 |
| **Case Number:** | 1626/1969 (52/73) |
| **Before:** | Chanan Singh J |
| **Sourced by:** | LawAfrica |

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*[1] Copyright – Licence – Exclusive – Not affected by right of licensor to continue to publish.*

*[2] Copyright – Artistic work – Accounting forms – Artistic work constituted by such forms – Copyright Act* (*Cap.* 130), *s.* 2 (*K.*).

*[3] Copyright – Government organisation – Post Office – Not gazetted – Copyright Act* (*Cap.* 130),

*s.* 6 (*K.*).

*[4] Copyright – Government – Work made under the directions or control of – Not constituted by commissions to private artists – Copyright Act* (*Cap.* 130), *s.* 6 (*K.*).

*[5] Copyright – Extension – To works made in U.K. – Protection given – Copyright Regulations,* 1*st schedule* (*K.*).

**Editor's Summary**

The first plaintiff, an English Company had licensed the second plaintiff to produce in Kenya accounting forms devised by it. The second plaintiff also produced forms to its own designs. The defendant copied the forms and when sued for breach of copyright contended that the second plaintiff was not the exclusive licensee of the first plaintiff, that the forms were not artistic works, that their production did not involve knowledge, labour and skill so as to give them an original character, that copyright in certain forms produced for the government and the post office did not rest in the plaintiffs and that works first made or published in England were not protected in Kenya.

**Held** –

(i) the second plaintiff was the exclusive licensee of the first plaintiff, notwithstanding the reservation by the first plaintiff of the right itself to publish the products;

(ii) the forms constituted artistic works;

(iii) the production of the forms involved knowledge, labour and skill so as to give them an original character;

(iv) the post office had not been prescribed as a government organisation and was therefore to be treated as a private body;

(v) copyright can vest in the government, although it is not an individual or a body corporate;

(vi) work commissioned from private artists is not work made under the directions or control of the government;

(vii) copyright protection is extended to works made by persons in the scheduled countries which include the United Kingdom.

Judgment for the plaintiff.

**No cases referred to in judgment.**

**Cases cited:**

(1) *Tavener Rutledge v. Specters,* [1959] R.P.C. 83.

(2) *Football League v. Littlewoods Pools,* [1959] Ch. 637; [1959] 2 All. E.R.545.

(3) *Walker* (*Charles*) *v. British Picker Co.,* [1961] R.P.C. 57.

(4) *Sapra Studio v. Tip Top Clothing Co.,* [1971] E.A. 489.

**Judgment**

**Chanan Singh J:** The two plaintiffs sue the defendant for a breach of copyright in respect of certain accounting forms designed for "copywriting", i.e. for preparing several forms at once by writing on one of them. Two witnesses gave evidence on behalf of the plaintiffs and also produced a number of exhibits. The defendant offered no oral evidence and caused only one simple document to be produced as an exhibit.

The forms of the defendant – so far as the examples before me are concerned – seem to be exact copies of the forms of the plaintiffs. The paper used for printing is a slightly different shade of the same colour as used by the plaintiffs.

In fact, copying is not denied but Mr. Nowrojee, for the defendant, contends that the forms in question are not protected by the Copyright Act (Cap. 130) because they do not belong to any of the classes of material protected by the Act.

Mr. Le Pelley, for the plaintiffs, contends that the forms of his clients are "artistic work". Mr. Nowrojee does not agree and says that those accounting forms do not fall within any of the classes of material listed in the definition.

I am convinced that "artistic works" is the only item that can possibly cover these forms. They cannot be said to belong to any of the other categories enumerated.

Let us look at the various entries in the definition of "artistic work". In (*a*), "drawings" is the nearest item. In (*b*) "diagrams" can perhaps cover accounting forms which essentially consist of straight lines forming columns which are given headings in words.

Mr. Nowrojee draws my attention to the use of the word "means" instead of the more common "includes" in the definition. I agree with him that this implies that only the items actually listed are within the definition and that nothing else can be. But I think he has omitted to look at all the opening words of the definition. These are:

> "'artistic work' means, irrespective of artistic quality, any of the following."

If the expression had stopped here, Mr. Nowrojee's argument would have been perfectly sound. But the opening words end with the following words: "or works similar thereto".

This, I think, clearly means that "artistic work" includes not only "drawings" and "diagrams" but also "works similar thereto". The last words have more or less the same effect as the use of the word "includes" would have had. I have, therefore, no doubt that the accounting forms in question are "artistic work".

I accept the evidence of Mr. Hatt and Mr. Cresswell and find as required by s. 3 (2) that sufficient effort was expended on making the forms to give them an original character and also that the forms in question are the artistic works reduced to material form.

During cross-examination, Mr. Nowrojee obtained from the plaintiffs' witnesses admissions to the effect that certain other forms – not those in question – printed by the plaintiffs were copies of forms produced by other firms. The explanation was that these other forms were either not parts of a system or were general stationery not subject to copyright or were forms of a firm that did not have a branch office in Kenya.

I am not required to make a finding on this last point. The claim relates to certain of plaintiffs' forms which it is alleged were copied by the defendant. The defendant does not deny that the plaintiffs just produced those forms nor

that it (the defendant) copied them. The only question before me is whether this constituted a breach of copyright. Even if there were such things as general stationery or non-system forms which are not subject to copyright, my own opinion is that the forms in question here are neither general stationery nor non-system forms, nor are they forms copied from others not represented in Kenya. At least, that has not been argued before me.

The argued issues can now be dealt with.

*Issue No*. 1: "Whether the second plaintiff is exclusive licensee of the first plaintiff."

The agreement between the two plaintiffs gives the second plaintiff "the sole right to print and publish licensed products in Kenya (the grantor reserving to itself the right also to print and publish licensed products in Kenya)". The term "licensed products" is defined as meaning "sheets of paper or cards whether printed or plain or carbonised punched or unpunched single or in sets for use for accounting or recording and also indexes excluding strip indexes, in which products the grantor holds the copyright". "The Grantor" is the first plaintiff.

I think I can reasonably answer and do answer first issue in the affirmative. The second plaintiff is the sole licensee. The grantor as the owner of the copyright retains its right to print and publish the forms. But the licence has been given only to the second plaintiff.

*Issue No*. 2: "Whether the production of the plaintiffs' forms and cards involves knowledge labour skill etc. giving them an original character."

I have already found that this is so. Therefore, I answer the second issue in the affirmative.

*Issue No*. 3: "Whether, if the answer to No. 2 is yes, copyright subsists."

Some of the forms in question in this case were forms designed by the plaintiffs for the Government of Kenya or for the Post Office. Mr. Nowrojee argues that copyright in these forms does not belong to the plaintiffs but to the Government or to the Post Office, as the case may be. On principle, there should be no difference between the Government or the Post Office and other customers of the plaintiffs. If in the case of forms designed for private customers copyright remains in the plaintiffs, then it should also remain in them in the case of forms designed for the Government or the Post Office.

But Mr. Nowrojee draws my attention to s. 6 (1) of the Act which confers copyright "on every work which is eligible for copyright and which is made by or under the direction or control of the Government and also such international bodies or other government organisations as may be prescribed". Four international bodies are prescribed for this purpose. The Post Office is not in the list and has to be treated like a private body.

In any case, I do not think Mr. Nowrojee's argument helps his client. The intention of s. 6 is to lay down two principles. First, work "made by or under the direction or control of the Government" is to be eligible, although the Government is neither an individual nor a body corporate as required by s. 4, and although the work is not first published or made in Kenya as required by s. 5. Secondly, copyright in respect of work covered by s. 6 is to vest initially in the Government, whereas copyright in respect of other work is to vest in the author or, subject to any agreement to the contrary, in the commissioning party (s. 11).

We do not know whether the forms which are the subject matter of this suit were "commissioned" within the meaning of s. 11. No evidence on this exact

point has been point has been produced. The plaintiffs' witnesses have stated, however, that when they are approached by customers they design forms to meet their requirements, but that in the end the customer is free to say that he does not want the forms and he is under no obligation to pay for the labour and skill used. I cannot hold, therefore, that the forms in question were commissioned by anyone. The person or firm or organisation for whom forms are produced in these circumstances can, of course, not be said to the plaintiffs' employer within s. 11.

In my opinion, s. 6 applies to work produced within the Governmental organisation, i.e. by the whole-time employees of the Government. Work ordered or commissioned from private artists is hardly work "made by or under the directions or control of the Government". In any case, the methods of work described by the plaintiffs' witnesses – and their evidence is uncontradicted – preclude any "direction or control of the Government". The Government like private customers can ask for designs to be prepared and then refuse to accept without incurring any obligation.

Mr. Nowrojee has also argued that at least the forms first made or published in England by the first plaintiffs are not protected by the Copyright Act. This argument can be briefly dealt with. The list of foreign countries in the First Schedule to the Copyright Regulations includes "United Kingdom of Great Britain and Northern Ireland" and regulation 2 extends the protection of the Act to "artistic works" made by "individuals or bodies corporate who are citizens of, domiciled or resident in or incorporated under the laws" of that country.

Thus, my answer to Issue No.3, is in the affirmative.

*Issue No*. 4: "Whether defendant has copied plaintiffs' forms."

The defendant has contented itself with legal argument and has not denied copying. It changed its stand after the issue had been framed. In any case the plaintiffs' allegation that the defendant copied their forms is not challenged or not seriously challenged.

My answer to Issue No. 4 is in the affirmative.

*Judgment for the plaintiff*

For the plaintiffs.
*P. Le Pelley* (instructed by *Hamilton Harrison & Mathews*, Nairobi)

For the defendant.
*P. E. Nowrojee* (instructed by *A. R. Kapila & Co*., Nairobi)

## Uganda v Akua and another
[1973] 1 EA 246 (HCU)

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|---|---|
| **Division:** | High Court of Uganda at Kampala |
| **Date of judgment:** | 15 January 1973 |
| **Case Number:** | 6/1973 (54/73) |
| **Before:** | Wambuzi Ag CJ |
| **Sourced by:** | LawAfrica |

*[1] Criminal Law – Elopement – Powers of Court – May not order return of wife to husband.*

*[2] Criminal Practice and Procedure – Compensation – Execution – Only to issue after default in payment.*

*[3] Criminal Practice and Procedure – Compensation – Elopement – Only to be awarded when spouse aggrieved.*

**Editor's Summary**

The appellants were convicted of elopement and the man was ordered to pay compensation, the magistrate at the same time making an order for the attachment of his property. The woman was ordered to return to her husband, but no order for compensation was made against her.

On revision.

**Held** –

(i) execution proceedings must be issued only when there is a default in payment of compensation;

(ii) there is no power to order a woman to return to her husband;

(iii) no order for compensation should be made unless the spouse is shown to be aggrieved by the elopement.

Order accordingly.

**No cases referred to in judgment.**

**Judgment**

**Wambuzi Ag CJ:** The two accused, a man and a woman, were convicted of elopement in two different counts by a magistrate. The man, Anderea Akua, was sentenced to a fine of Shs. 200/- or six months' imprisonment; and the woman, Magistrate Ojidri, was cautioned. The magistrate made the following order:

> "A1. to pay compensation of Shs. 600/- to the aggrieved party, the complainant Awua, within three months from to-day's date. Failure to do so, his movable or immovable property would be attached. A.2 to go back to complainant forthwith."

The record was referred to the Director of Public Prosecutions for his comments as to the legality of the order in so far as it relates to attachment of the property of A 1 and to the return of A.2 to the complainant.

A senior State Attorney for the Director of Public Prosecutions wrote on 27 December 1972 to say:

> "The orders of the trial court for the attachment of the immovable property of A.1 and for A.2's return to the complainant are illegal and cannot be supported."

I agree with these views. S. 194 of the Magistrate's Courts Act 1970 provides:

> "When a Magistrate's Court orders money to be paid by an accused person or by a prosecutor or complainant for fine, penalty, compensation, costs, expenses or otherwise, the money may be levied on the movable and immovable property of the person ordered to pay the same by distress and sale under warrant. If he shows sufficient movable property to satisfy the order, his immovable property shall not be sold."

It would appear therefore that execution proceedings should first be initiated where there is failure to comply with an order for payment of compensation.

As to the order requiring the second accused to return to her husband, there is no provision empowering a court to make such an order. The court cannot force a wife to live with her husband. The order for attachment and the order for the wife to return to her husband are accordingly set aside.

The Senior State Attorney for the Director of Public Prosecutions submitted in his letter that there "ought to have been an order for compensation for the aggrieved party in accordance with s. 121a (2) of the Penal Code". The subsection provides:

> "Any person being a female, who elopes with a married man or entices or causes a married man to elope, commits an offence and shall be liable on first conviction to imprisonment for a term not exceeding twelve months or to a fine not exceeding two hundred shillings; and in addition the court shall order any such person on first conviction to pay the aggrieved party compensation of six hundred shillings, and on a subsequent conviction compensation not exceeding twelve hundred shillings."

Whereas I agree that there was an omission to make the order, there is no evidence that there was an aggrieved party entitled to the payment. Dealing with the same question in *Uganda v. Francis Ogema*, Cr. Rev. 436 of 1970 (unreported), I said in my order:

> "The term 'aggrieved party' is not defined in the section. There can be no doubt that elopement is a criminal offence and a charge therefor is instituted in the name of the State. It appears that the offence is committed under s. 121a whether or not the husband of the woman with whom the accused elopes knows about it and indeed under s. 121a (2) whether or not the wife of the man with whom the accused elopes knows about it. Who then is the aggrieved party – the State, the husband or the wife?
>
> Although the State is an interested party, indeed an aggrieved party, it appears ludicrous that in addition to a term of imprisonment or a fine, the State should be further compensated by a compensation of six or twelve hundred shillings as an aggrieved party. It follows that aggrieved party in the section must mean the husband of the woman with whom the accused elopes under sub-section (1) or the wife of the man with whom the accused elopes under sub-section (2) of the relevant section. However, I doubt whether the court is entitled to assume that a party is aggrieved unless such party says so.
>
> In the instant case it appears that the husband of Sophia Anguya complained to the court against Ogema who he alleged eloped with his wife. The order made by the Magistrate should have been to pay the relevant compensation to the husband of Sophia Anguya. On the other hand, there was no evidence that Ogema was a married man. The order made by the Magistrate for Sophia to pay compensation was misconceived.
>
> It appears that an order for compensation under the section is not automatic unless it has been shown that there is an aggrieved party. In other words, if a party shows that he has been aggrieved by the commission of the offence, then it becomes mandatory for the court to make an order for compensation. The court cannot make an order in vacuum."

In the instant case the husband has not expressed any grievance and the court cannot assume that he is aggrieved, look for him, and force Shs. 600/-into his pocket. Accordingly, I am unable to say that the trial magistrate was wrong in his failure to order payment of compensation. Further, I find nothing wrong

in cautioning the accused instead of sentencing her to a fine or imprisonment as provided by the sub-section as in his opinion the circumstances did not call for any punishment.

*Order accordingly.*

Neither party was represented.

# Akol v Industrial Sales Promotion Ltd
[1973] 1 EA 248 (HCU)

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|---|---|
| **Division:** | High Court of Uganda at Kampala |
| **Date of judgment:** | 19 January 1973 |
| **Case Number:** | 990/1972 (55/73) |
| **Before:** | Opu Ag J |
| **Sourced by:** | LawAfrica |

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*[1] Damages – Fatal accident – Child – Claim by parent – Loss of reasonable probability of pecuniary advantage must be proved.*

**Editor's Summary**

The plaintiff claimed damages for the loss of the services of his daughter who was killed in an accident for which the defendant was held to be responsible.

**Held** –

(i) the loss of a reasonable, and not merely a speculative, probability of pecuniary advantage must be proved (*Wilson Kabega v. Uganda Transport Co*. (3) followed, *Muwanga v. Jiwani* (2) not followed);

(ii) no such probability had been established.

Order accordingly.

**Cases referred to in judgment:**

(1) *Barnett v. Cohen*, [1921] 2 K.B. 461.

(2) *Muwanga v. Jiwani*, [1964] E.A. 171.

(3) *Wilson Kabega v. Uganda Transport Co.*, H.C.C.C. 534 of 1970 (unreported).

(4) *Silvesti Muwanga v. Serinya Kibinge*, H.C.C.C. 291 of 1971 (unreported).

**Judgment**

**Opu Ag J:** The plaintiff, Sergeant-Major Livingstone Akol of the Mechanised Battalion, Malire, Uganda Army, sues the defendant, Industrial Sales Promotion Limited. The action is based on

negligence. In paragraph 3 of the plaint it is alleged that on 26 April 1972 at Old Port Bell, in the City of Kampala, the daughter of the plaintiff, a girl called Atukuri Akol (hereinafter referred to as the deceased) was knocked down by a motor vehicle driven by one Bhailal Amin, a servant or agent of the defendant, thereby causing her death. It was alleged that the motor vehicle belonged to the defendants, and that at the material time it was being driven by Bhailal Amin in his capacity as the defendants' servant or agent. The plaint went on to say that the deceased died as a result of the negligence of the defendants' agent or servant.

The defendant in his defence admitted paragraphs 2, 6 and 7 of the plaint. It is pertinent, for reasons which will be given later, to observe that the defendants owned motor vehicle registration number UVG782, as admitted in the written statement of defence. In paragraph 4 of the written statement of defence, the defendants deny negligence on the part of their servant or agent. The defendants demanded strict proof of the matters alleged in paragraphs 4 and 5 of the plaint. Similarly, the defence required strict proof of the particulars of negligence as outlined in paragraph 3 of the plaint.

When the suit came up for hearing, the defendant was not represented. Upholding counsel for the plaintiff, I decided, on reasons to be found in my ruling on the matter, to proceed to hear the case ex-parte. The plaintiff gave sworn evidence. He testified that the deceased was his daughter. At the time the deceased died, she went to school at the Army School, Mbuya. The deceased was aged ten years when she died. He told the court that on 26 April 1972, whilst on duty, he received information that the deceased had been involved in a motor accident. As a result of this information he proceeded to ward 3C Mulago Hospital. In the ward he saw the deceased. She had injuries on the head and on other parts of the body. The deceased was unconscious. She died twenty minutes after the plaintiff had arrived in the ward. The body of the deceased was released to the plaintiff. He took the body for burial at Kumi in Teso District. Counsel for the plaintiff tendered as exhibits a photostat copy of M.F.105, which contains the medical certificate of death. For want of the original, I accepted the photostat copy. The medical certificate of death is dated 27 April 1972 and is signed by Dr. L. D. Kafero. The deceased is described as Atukuri, aged ten years and residing at Mbuya, Bugolobi. The condition leading to death is described as fracture of skull due to traffic accident. A photostat copy of authority to remove the body of the deceased from the mortuary, signed by Dr. L. D. Kafero, was also tendered.

The plaintiff told the court that the cost of the coffin was Shs. 200/- and the funeral expenses amounted to Shs. 800/-. He further told the court that his wife lives at home in Teso and that the deceased used to help him in household work. He testified that as a result of the deceased's death he has had to employ a servant at Shs. 150/- per month.

Mr. Kayondo, for the plaintiff, submitted that the accident was the result of negligence of the defendants' agent or servant. He submitted that the plaintiff is entitled to recover the funeral expenses which he incurred as a result of the death of the deceased. He further submitted that general damages should be awarded in respect of the loss of services of the deceased to the plaintiff, and loss of expectation of life. [The judge considered the evidence, found the defendants responsible for the accident and continued.]

The plaintiff claims special damages amounting to Shs. 1,000/-, which represents the amount he spent on the funeral. In addition he prays for general damages at the rate of Shs. 150/- from the date the deceased died to an unspecified period. The latter claim is to be found in paragraph (5) of the plaint.

I find no difficulty in awarding the plaintiff special damages of Shs. 1,000/- as funeral expenses which he incurred as the result of the deceased's death. I hereby order that the defendant pays the plaintiff Shs. 1,000/- funeral expenses. However, on the claim of general damages as contained in paragraph (5) of the plaint, the situation is not as simple as it looks. For the sake of clarity, I will quote paragraph (5) of the plaint in extenso.

> "(5) By her death the Plaintiff has lost his daughter's expectation of life and her services and has had to employ a servant at Shs. 150/- per month and the Plaintiff claims special damages and general damages."

The question raised in paragraph (5) of the plaint is simply whether a father can claim special and general damages as a result of the death of his child due to the negligence of the defendant. Although the plaintiff's counsel did not refer to any authorities on the matter, there are decisions of this court and English courts which must be discussed in disposing of the issue before the court. For the purpose of clarifying the matters in this case, a distinction must be drawn between suits where a parent claims for loss of prospective financial assistance consequent on the death of his child and those where the claim is based on the loss of the services of the child as a result of the child's death.

The first case in which this court considered whether a parent could claim damages for loss of prospective financial assistance as a result of the death of his child is the case of *Muwanga v. Jiwani*, [1964] E.A. 171 at p. 177. In that case, Sir Udo Udoma, C.J., made his famous statement on the question of loss of prospective financial assistance by a parent consequent on the death of his child which is quoted hereunder:

> "I think it is right also that the court should take judicial notice of the fact that African children are usually educated by their parents and guardians at considerable expense involving more often than not great personal sacrifice. Such children are naturally in turn expected to assist in domestic work while at school and after school, on gaining employment, to make contribution towards the maintenance of the family, the family being used here, not in the European sense, but in the African sense, which anthropologists usually refer to as the kindred or extended family."

In the above-quoted case, the then Chief Justice seems to have laid the rule that owing to the peculiar circumstances of the African family as distinct from the English or European family, an African parent can sue for loss of prospective financial support caused by the death of his child due to negligence on the part of the defendant. The decision in *Muwanga's* case quoted above was criticised by Phadke, J., in the case of *Wilson Kabega v. Uganda Transport Co*., H.C.C.C. 534 of 1970 (unreported). In *Wilson Kabega's* case, the plaintiff sued to recover general damages for the death of his son who was killed through the negligence of the defendant company. The son was aged 13 years old. He had two brothers and seven sisters. There was evidence that he was an intelligent boy and hoped to become a doctor or a school-teacher. The plaintiff expected the deceased to pay the fees of his younger brothers. It was further alleged by the plaintiff when the deceased was alive he gave some teaching instruction to his brothers and sisters. In coming to his decision in which he rejected the plaintiff's claim of loss of prospective financial support, Phadke, J., disagreed with the proposition of Sir Udo Udoma, C.J., in the following terms, referring to the passage quoted above in the case of *Muwanga*: "This statement could not be accepted. Such considerations must be proved." Phadke, J., was of the view that although judges had a wide discretion to take judicial notice of notorious facts, the proposition in *Muwanga's* case did not fall into such a category. He relied on the decision of Mccardie, J., in the case of *Barnett v. Cohen*, [1921] 2 K.B. 461.

In that case the plaintiff sued as the personal representative of his son, Sidney Barnett, who had died as a result of the negligence of the defendant's servants. The plaintiff sought to recover damages for the death of his son on the ground that the death of his son had occasioned him prospective loss of pecuniary assistance. It was held that for the plaintiff to succeed he must prove that by the death of the deceased, he has lost a reasonable probability of pecuniary advantage, and not merely a speculative possibility of pecuniary advantage. As the plaintiff had not proved that in fact he had lost a reasonable probability of pecuniary advantage as the result of the deceased's death, he could not recover damages. Applying this principle in the case of *Wilson Kabega*, Phadke, J., rejected the plaintiff's claim. I agree with this interpretation of the law as regards claims based on loss of prospective financial assistance as regards the death of children. In the present suit the deceased was a child of ten years. It was not averred in the plaint, nor proved by evidence, that the plaintiff has lost a reasonable probability of pecuniary advantage as a result of her death. In my view, if the proposition in *Muwanga's* case is applied, the door would be open for speculative claims, and every parent could then claim loss of pecuniary advantage, even where infants die due to the negligence of a defendant. I hold

that the plaintiff has no right of claim in respect of the expectation of life of his daughter or loss of prospective financial assistance.

The issue as raised in paragraph eleven of this judgment can now be narrowed down to whether the plaintiff can claim damages for the loss of services of his daughter. It was asserted in evidence by the plaintiff that before the death of the deceased, she helped him in household work after her studies. This was because the wife of the plaintiff stayed in the village. The plaintiff testified that following the death of the deceased, he had to employ a domestic servant at the rate of Shs. 150/- per month. I accept the evidence of the plaintiff and I find that the deceased used to help with the household work and that the plaintiff has lost her services. It was argued by counsel for the plaintiff that damages in respect of loss of services should be computed at the rate of Shs. 150/- per month, the figure the plaintiff presents as the wages of his servant. In my view, this argument is fallacious. I do not think that the services a child performs to his parent should be calculated with mathematical precision as if the child was a servant if she lived. This court has, in cases where there was evidence that the plaintiff had lost the services of his child as a result of the child's death, awarded general damages. *Silvesti Muwanga v. Serinya Kibinge*, H.C.C.C. 291 of 1971 (unreported). Musoke, J., awarded Shs. 1,200/- general damages for loss of servitium. In the present case I am of the view that the plaintiff is entitled to recover general damages for the loss of the service of his daughter. I hold that the sum of Shs. 1,500/- is reasonable, and is hereby awarded to the plaintiff as general damages. The defendant is to pay to the plaintiff the costs of this suit and interest.

*Order accordingly.*

For the plaintiff:
*K. M. B. Kayondo* (instructed by *Kayondo & Co.*, Kampala)

For the defendant:
*P. Ruhinda* (instructed by *kazzora & Co.*, Kampala)

## Kesi v Sedya
[1973] 1 EA 251 (HCU)

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|---|---|
| **Division:** | High Court of Uganda at Kampala |
| **Date of judgment:** | 23 October 1972. |
| **Case Number:** | 975/1971 (57/73) |
| **Before:** | Russell Ag J |
| **Sourced by:** | LawAfrica |

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*[1] Negligence – Vicarious liability – Employer – Express instructions – Lift given contrary to express instructions – Outside scope of drive's employment.*

**Editor's Summary**

The plaintiff sued the defendant for damages suffered in a road accident.

The court found that the plaintiff was travelling on the defendant's lorry, having been given a lift by the defendant's driver, contrary to his express instructions.

**Held –** The driver was acting outside the scope of his employment with the defendant in giving a lift contrary to express instructions (*Twine v. Bean's Express* (1) followed).

Case dismissed.

**Cases referred to in judgment:**

(1) *Twine v. Bean's Express*, [1946] 1 All. E.R. 202.

(2) *Conway v. George Wimpey*, [1951] 1 All. E.R. 363.

**Judgment**

**Russell Ag J:** The plaintiff claims general damages in respect of injuries he received in an accident to the defendant's lorry on the Kampala-Pakwach road at about 9.50 a.m. on 21 February 1971, which he alleges was caused solely by the negligence of the defendant's driver.

The essential facts on which the plaintiff relied are set out in paragraph 3 of the plaint which reads:

> "(*a*) that on and before 21 February 1971 he was employed by the defendant as a general assistant in charge of the goods transported by the defendant's vehicle, Mercedes Benz Lorry, Reg. No. UST835;
>
> (*b*) that on 21 February 1971, at about 9.50 a.m., the plaintiff was, in the course of his employment, with the defendant, travelling in the aforementioned vehicle driven by one Akaya, a servant/agent of the defendant, along the Kampala/Pakwachi Road, when due to the negligence of the defendant's servant/agent Akaya, the vehicle swarved (sic) off the road, knocked a signpost, and injured the plaintiff."

In addition it is stated that the plaintiff intended to rely on the doctrine of res ipsa loquitur. The defence traverses the allegations that the plaintiff had been employed by the defendant, that the driver was guilty of negligence and further alleges the presence of the plaintiff on the lorry was without the knowledge or authority of the defendant.

The issue as to negligence can be dealt with quite shortly. The only two eyewitnesses were the plaintiff, Kesi Maggwa, and the defendant's driver, Yahaya Kayemba. The plaintiff's description of the cause of the accident was that the driver was driving at an excessive speed and after driving round a bend ran suddenly on to severe corrugations on the road, lost control of the vehicle and swerved off the road to his left where the lorry overturned. The driver's account of the accident was different. He stated he was travelling too fast down hill and ran on to a sandy patch of road which caused him to lose control of the lorry which swerved to his left and struck a level-crossing sign and overturned.

The defendant himself made enquiries at the scene of the accident and came to the conclusion that it had been caused by the negligence of his driver. Finally, heavily laden lorries if driven with due care do not usually swerve off the road, run into an obstruction well off the road and overturn. Under these circumstances, the doctrine of res ipsa loquitur applies and, in the absence of any reasonable explanation by the defendant, negligence may be inferred. The defendant has not put forward any reasonable explanation and in fact he is personally satisfied the accident was due to his driver's negligence. Under these circumstances and, whether one accepts the plaintiff's or the driver's version of what occurred, I am satisfied the accident was caused solely by the negligent driving of the lorry by the defendant's driver.

The next issue is whether the plaintiff is employed by the defendant and was injured whilst travelling in the lorry during the performance of his duties as an employee. [The judge considered the evidence and continued.]

Having considered the evidence as a whole I have no hesitation in coming to the conclusion that both the plaintiff and the driver were completely untrust-worthy and I prefer the evidence of the defendant. I find as a fact that the plaintiff was not employed by the defendant at the relevant time of the accident and was not travelling on the lorry on the day of the accident with the authority or approval of the defendant. On the contrary, although the defendant had given the driver strict instructions not to pick up any passengers he did in fact pick up the plaintiff in direct disobedience of this instruction.

The extent of the vicarious liability of the employer to persons who may be injured by negligent driving of his servant is set out shortly and lucidly in the Editorial Note to *Twine v. Bean's Express*, [1946] 1 All. E.R. 202 at p. 203:

> "The duty owed by an employer to persons who may be injured by the negligent driving of his servant is limited to those who can reasonably be anticipated as being possible subjects of injury. In the circumstances considered in this case the servant, having express orders not to take passengers, was acting outside the scope of his authority. The employer could not, therefore, anticipate the presence of any passenger and he is held not liable for the injury. Reference may be made to *Lewys v. Burnett*, [1945] 2 All. E.R. 555, on the question of liability to gratuitous passengers, but this case is argued only upon the liability of the employer. Lewys' case may well be distinguishable in view of the fact that the plaintiff was there an invitee, while in the case under consideration he was, by reason of the instructions given to the driver, a trespasser."

The *ratio* of the *Twine's* case was confirmed in *Conway v. George Wimpey*, [1951] 1 All. E.R. 363 at p. 367, where Asquith, L.D., specifically approved Uthwatt, J.'s dictum:

> "that it was outside the scope of the driver's employment for him to bring within the class of persons to whom a duty to take care was owed by the defendants, a man to whom, contrary to his instructions, he gave a lift."

Although those decisions are not binding on this court they are of considerable persuasive value and can be safely followed as I respectfully agree with the reasoning and conclusions arrived at therein.

For these reason I must dismiss this suit with costs.

*Order accordingly.*

For the plaintiff:
*J. B. B. Kawoya*

For the defendant:
*A.B. Sengoba* (instructed by *Hunter & Greig*, Kampala)

## Syedna and others v Jamil's Engineering Co
[1973] 1 EA 254 (HCU)

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|---|---|
| **Division:** | High Court of Uganda at Kampala |
| **Date of judgment:** | 23 November 1972 |
| **Case Number:** | 387/1971 (59/73) |
| **Before:** | Phadke J |
| **Sourced by:** | LawAfrica |

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*[1] Contract – Time of performance – Time of essence – Whether shown to be of the essence.*

*[2] Equity – Forfeiture – Relief against – Whether grantable when time of essence of contract.*

*[3] Damages – Contract – Part-payment – Money agreed to be forfeited under terms of contract – Not damages.*

**Editor's Summary**

The second and third plaintiffs agreed to buy certain land from the defendants by an agreement which provided for the payment of a deposit and fixed a date for completion. The first plaintiff was joined as the other plaintiffs had contracted as trustee for him.

The purchase price could not be paid at the date of completion and a further agreement was entered into which provided for a further payment by the plaintiff, for possession to be given to the plaintiffs, and for payment of the balance of the purchase price on a fixed date, with a further provision if payment were not made the agreement would be at an end and the sums paid forfeited.

The plaintiffs were unable to produce the balance of the purchase price until the day after the fixed date when the defendants refused to complete.

The plaintiffs sued for specific performance or the return of the moneys paid, contending that time was not of the essence, that relief should be given against forfeiture, and that the payment was a penalty which should not be enforced.

**Held –**

(i) the circumstances of the second agreement indicated that time was of the essence of it (*Panesar v. Popat* (6) considered);

(ii) the bargain entered into by the plaintiffs was not unconscionable;

(iii) the court would not dissolve a contract which had turned out to be disadvantageous to one party (*Campbell Discount Co. v. Bridge* (3) followed);

(iv) the defendants were not claiming damages or a penalty but were keeping money under the terms of the contract.

Judgment for the defendant.

**Cases referred to in judgment:**

(1) *Maynard v. Moseley* (1676), 3 Swan 651; 36 E.R. 1009.

(2) *Stockloser v. Johnson*, [1954] 1 All. E.R. 630.

(3) *Campbell Discount Co. v. Bridge*, [1961] 2 All. E.R. 97.

(4) *Nunes v. Njonjo*, [1962] E. A. 88.

(5) *Bridge v. Campbell Discount Co*., [1962] 1 All. E.R. 385.

(6) *Panesar v. Popat*, [1968] E.A. 17.

**Judgment**

**Phadke J:** It may seem unusual to begin a judgment with a preface of the circumstances in which the trial commenced and concluded,

but in this case it is necessary to do so in order to appreciate why the suit which, upon the pleadings and the evidence adduced by the plaintiffs at the first hearing on three days, showed such an acute and burning controversy, suddenly turned into a somewhat one-sided and tepid contest when on a later date the hearing was continued.

The first hearing took place on 1, 2 and 3 March 1972 when the plaintiffs called their evidence and closed their case, and the first defendant gave his evidence. Then the hearing was adjourned to 7, 8 and 9 June 1972. At the commencement of the resumed hearing the defendants applied for adjournment. The application was opposed, but I granted the application for the reasons given in my ruling. Fresh dates of hearing were fixed for 6, 7 and 8 November 1972. At this resumed hearing, no counsel appeared for the plaintiffs. Their leading counsel, Mr. Gautama, had indicated to Mr. Wilkinson at Nairobi that he did not intend to appear, and their junior counsel, Mr. A. Korde, had left Uganda. All the defendants had also left Uganda, and so also their junior counsel, Mr. J. S. Shah. The departure of the two junior counsel named above and of all the defendants came about as the result of the enactment on 9 August 1972 of Decree No. 17 of 1972, which required certain named categories of Asians, to which the two junior counsel and all the defendants belong, to leave Uganda on or before 8 November 1972.

Mr. Wilkinson, with Mr. J.S. Mayanja-Nkangi, appeared for the defendants. Mr. Wilkinson stated that he was no longer in a position to call as witnesses those defendants who had left, and he closed the case for the defendants and made submissions on their behalf.

So, the suit falls to be decided by considering such evidence as there is before the court, and also by taking into account recent legislation which has the effect of altering the rights and obligations of the parties. Later in this judgment, reference is made to the plaintiffs' possession of the defendants' immovable property which is the subject matter of the suit. Such reference has now to be construed in the light of the present state of affairs which, I am told, is that the plaintiffs have abandoned possession. The first and third plaintiffs were never resident in Uganda, and the second plaintiff, an Asian to whom Decree No. 17 of 1972 applied, has left. The reference to the defendants' ownership of the said property has now to be construed as being subject to governmental control and restrictions on their rights of transfer. I am also told that the defendants' property has now been advertised for sale by the Ministry of Commerce, as property of which they are the registered proprietors. And so the claim of the plaintiffs to maintain possession and for specific performance, and the defendants' claim for the return to them of possession, are matters which have been nullified by the enactment of recent legislation which prohibits them from exercising their respective claims against each other. The maxim "lex non cogit ad impossibilia" applies.

I will now set out the nature of the dispute between the parties as appearing in the pleadings. Here again I must emphasise that certain parts of the review given below have to be construed in the light of existing circumstances.

The first plaintiff (Dr. Syedna Mohamed Burhannudin Saheb) is the spiritual head of a sect or denomination of the Muslim religion, known as the Dawoodi Bohras. His usual place of residence is at Bombay in India. The second plaintiff and the third plaintiff are Dawoodi Bohras and acknowledge the first plaintiff as their spiritual head. The Dawoodi Bohras in Uganda, or at any rate some of them, have a communal association known as "Anjumane Buharani", meaning Dawoodi Bohra Community. There is evidence that similar associations exist in Kenya and Tanzania, and that one Sheikh Fidali Heptulla is

reputedly the leader of the community in East Africa. The second plaintiff is a businessman, a director of Vallibhai Yusufali (Uganda) Ltd., and the sales representative of Mackenzie Technical Services Ltd. He has been in business in Uganda for 23 years. At the time material to this suit, in November 1970, he was the Vice-President of Dawoodi Bohra Community in Uganda. The third plaintiff is a businessman at Arusha in Tanzania.

The four defendants are brothers. For many years prior to their departure they carried on in Kampala, in co-partnership, the business of general and electrical engineers, under the firm name of "Jamil's Engineering Company". At the time material to this suit, they were and still are the registered proprietors of land and the buildings erected thereon, comprised in Leasehold Register, Volume 233, Folio 24, and known as Plot 10, Wilson Road, Kampala (which is hereinafter referred to as "the premises"). The Certificate of Title to the premises shows that a caveat registered on the title on 23 September 1970 by Barclays Bank of Uganda Ltd. as equitable mortgagee by deposit still appears thereon, but attached to the Certificate of Title is a notice of withdrawal of the said caveat, dated 6 November 1970, executed by the caveator, which notice has not been duly registered for effecting the cancellation of the said caveat on the Certificate of Title. I mention this to clarify that on 6 November 1970, which date is in point of time the beginning of the transaction which has led to the dispute between the parties, in fact the defendants had and still have unencumbered proprietorship of the premises. Indeed, this fact is not challenged by the plaintiffs.

The plaintiffs seek an order for specific performance by the defendants of an agreement whereby they agreed to purchase and the defendants agreed to sell the premises. Alternatively, they claim damages for breach of contract, and refund or repayment to them of the sum of Shs. 100,000/- already paid by them to the defendants towards the purchase price. It is common ground that the agreement between the parties was comprised of two written agreements dated 6 November 1970 and 3 February 1971, and that some of the terms contained in the agreement dated 6 November 1970 were subsequently varied by the agreement dated 3 February 1971.

The agreement dated 6 November 1970 (which will hereinafter be referred to as "the First Agreement") was made between the second plaintiff, the third plaintiff and one Sheikh Ibrahim Abdulali Tajbhai, also a Dawoodi Bohra, who died on 26 January 1971, of the one part, and the defendants of the other part. The first plaintiff was not a party to this agreement or directly even to the subsequent agreement dated 3 February 1971, and I will later describe the circumstances in which he, without objection by the defendants, has been joined as one of the plaintiffs. Under the First Agreement, the purchasers agreed to pay the purchase price of Shs. 350,000/- for the premises. Upon execution of the agreement, the purchasers were to deposit the sum of Shs. 35,000/- and they did deposit this sum. The balance of Shs. 315,000/- was to be payable on or before 31 January 1971. These provisions are contained in paragraph 2 of the First Agreement and are as follows:

> "2. The purchase price of the said Plot shall be Shs. 350,000/- (Shillings three hundred and fifty thousand only) and shall be paid as follows:
>
> (*a*) A sum of Shs. 35,000/- shall be deposited by the Purchasers with the Vendors upon the execution of this agreement.
>
> (*b*) The balance of Shs. 315,000/- shall be paid by the Purchasers to the Vendors on or before 31 January 1971 upon receiving the vacant possession by the Purchasers from the Vendors and upon the Vendors executing a transfer of the said Plot in favour of the Purchasers of their nominees."

It is not in controversy that to the knowledge of the defendants the purchasers were buying the premises for the benefit of Dawoodi Bohra Community, that they subsequently named the first plaintiff as their nominee, and that upon an application dated 12 January 1971 by Messers. Binaisa & Co., advocates, the Commissioner of Lands and Surveys gave his consent on 22 January 1971, under s. 22 (5)(*c*)(i) of the Public Lands Act, for the proposed transfer of the premises to the first plaintiff as 52nd Dai-el-Mutlaq – Head of Dawoodi Bohra Community. Now, it is a general principle both at common law and equity that a stranger to a contract cannot sue on it; and this is not varied by the mere fact that the stranger takes a benefit from it, but one of the exceptions is where A as a trustee for B has contracted with C. In my opinion, in the circumstances of the present suit, the exception applies, and there can be no objection to the first plaintiff being joined as one of the plaintiffs. Indeed, the defendants have not raised such an objection.

The agreement dated 3 February 1971 (which will hereinafter be referred to as "the Supplementary Agreement") was in the form of a letter addressed to the defendants by Messrs. Korde & Esmail, advocates, and its contents were signed and confirmed by the defendants. The letter was written for and on behalf of the first plaintiff as the nominee of the purchasers. It referred to the First Agreement and set out the undermentioned provisions:

> "1. THAT our client will pay you a sum of Shs. 65,000/- today on signing this letter of confirmation by you.
>
> 2. THAT the balance of Shs. 250,000/- shall be paid to you by our client on or before 15 March 1971.
>
> 3. THAT our client will pay to you as from 4 February 1971 a sum of Shs. 100/- per day on the said sum of Shs. 250,000/- until 28 February, 1971 and thereafter at the rate of Shs. 150/-per day until 15 March, 1971. The payment of this amount shall cease to be paid to you on the day on which the payment of the said sum of Shs. 250,000/- is made to you by our client.
>
> 4. If our client fails to pay the said balance of purchase price, namely Shs. 250,000/- on 15 March, 1971 the sale of the property by you to our client shall be deemed to have been cancelled and the said Sale Agreement dated 6 November, 1970 shall be null and void and the sum of Shs. 100,000/- (Shillings one hundred thousand) which has been paid to you by our client so far shall be deemed to have been forfeited and you will not be liable to refund the said amount.
>
> 5. You will give the vacant possession of the above property to us as soon as this letter of confirmation is signed by you and the payment of Shs. 65,000/- is made to you.
>
> 6. You will execute the transfer of the above property in favour of our client as soon as the balance of the said sum of Shs. 250,000/- is paid to you not later than 15 March 1971."

It is not in dispute that pursuant to the Supplement Agreement, the sum of Shs. 65,000/- was paid to the defendants who handed over vacant possession of the premises, as agreed.

The plaintiffs allege that the defendants failed to deliver the engrossed instrument of transfer, which admittedly was delivered to the defendants on 6 March 1971 and, duly executed, to Messrs. Korde & Esmail, Advocates, on 15 March 1971, or even subsequently despite two letters, dated 16 March 1971, addressed to the defendants, and dated 17 March 1971 addressed to the defendants' advocate, Mr. J. S. Shah, and that the defendants refused to perform their part of the agreement although the plaintiffs were ready and willing to perform their obligations thereunder.

The defendants contend that they delivered vacant possession of the premises as had been agreed, that the plaintiffs defaulted in payment of the balance of Shs. 250,000/- on 15 March 1971, that time was of the essence of the contract, that as agreed in the Supplementary Agreement upon default of payment the agreement to sell was cancelled and became null and void, and that the sum of Shs. 100,000/- paid to them was forfeited as agreed and ascertained liquidated damages, without any liability to refund the same. The defendants oppose the plaintiffs' claim for specific performance, and counterclaim for possession of the premises, for a declaration that they are entitled to retain the sum of Shs. 100,000/- paid to them, and for payment to them by the plaintiffs of a sum calculated at the rate of Shs. 350/- per day from 3 February 1971 to the date on which possession is given to them, for use and occupation by the plaintiff.

In their reply to the defence and counterclaim, the plaintiffs contend that time was not of the essence of the contract, and that the breach of contract was on the part of the defendants. They deny that the sum of Shs. 100,000/- paid to the defendants was to be forfeited as ascertained damages, and contend that as this sum was never a genuine pre-estimate of damage but a penalty the defendants are not entitled to retain it. They also deny that the rental value of the premises was Shs. 350/- per day. They join issue with the defendants on such averments in the plaint as are not admitted, and on the counterclaim.

Mr. Gautama, with Mr. A. Korde, appeared for the plaintiffs, and Mr. Wilkinson, with Mr. J. S. Shah, appeared for the defendants, at the first hearing, and the following agreed issues were framed:

1. What were the terms of the contract?
2. Were the plaintiffs guilty of breach of the terms of the contract?
3. Was time of the essence of the contract?
4. Were the plaintiffs ready and willing to perform their part of the agreement on 15 March 1971, and if so were they able to perform?
5. Are the defendants entitled to forfeit the sum of Shs. 100,000/-?
6. Are the plaintiffs entitled to specific performance and damages as claimed?
7. Did the defendants undertake to return executed or unexecuted with or without amendments as pleaded in paragraph 9 of the plaint, the engrossed Transfer prepared by Korde & Esmail and handed over on 6 March 1971 by the plaintiffs?
8. Were the defendants in breach on 15 March 1971?
9. Are the defendants entitled to possession of premises and/or to payment of Shs. 350/- per day or any other sum for the plaintiffs' use and occupation thereof from 15 March 1971 or any earlier date till possession?

As stated at the commencement of this judgment, I will not deal with and give decisions upon the plaintiffs' claim for specific performance and the defendants' claim for possession. Therefore, I will exclude Issues No. 6 and No. 9 from the agreed issues set out above. With regard to the defendants' claim, in Issue No. 9, for damages at the rate of Shs. 350/- per day from 15 March 1971 to the date of possession, for the plaintiffs' use and occupation of the premises, I need say no more than that there is no evidence before me to support this claim, at the rate claimed or at any other rate. Accordingly, I disallow this claim.

The most prominent issue is whether or not the defendants are entitled to forfeit the sum of Shs. 100,000/- paid to them by the plaintiffs. The answer to this issue will hinge upon the answers to Issue No. 3 (Was time of the essence of the contract?) and Issue No. 4 (Were the plaintiffs ready and willing to perform their part of the agreement on 15 March 1971 and if so were they able to perform?).

The answer to Issue No. 4 will resolve the controversy in Issues No. 2, 7 and 8 namely which of the parties was in breach of the contract on 15 March 1971.

For the plaintiffs, evidence was given by the second plaintiff, Mr. K. G. Korde, Mr. M. V. Jobanputra and Mr. Salehbhai Abdulhussein. For the defendants there was only the evidence of the first defendant. I will not examine the entire evidence of each witness as a large part of such evidence relates to matters not in controversy, such as the negotiations, the terms of the agreements, the payment of money, etc. I will confine myself to such parts of the evidence of each witness as are relevant only to the issues which arise for decision.

The second plaintiff stated that under the First Agreement the balance of the purchase price was payable on 31 January 1971. It had not been possible to raise the money for payment of this balance, and the Supplementary Agreement was entered into on 3 February 1971. Under the Supplementary Agreement a further sum of Shs. 65,000/- was paid and possession of the premises was taken from the defendants. The balance of the purchase price was to be paid not later than 15 March 1971. On 11 and 12 March 1971 the sum of Shs. 250,000/- was available to make such payments. A sum of Shs. 70,000/- had been deposited with Messrs. Korde & Esmail, and Mr. K. G. Korde had made arrangements for raising the remainder, Shs. 180,000/-. He met the fourth defendant on 16 March 1971 and his reply was that as the first defendant was out nothing could be done without him.

Mr. K. G. Korde stated that early in March 1971 he was instructed to arrange for a loan of Shs. 200,000/- and he contacted a broker named J. J. Mehta. On 12 March 1971, in the afternoon, Mr. Jobanputra, an advocate, telephoned to say that his client was interested in giving a loan of Shs. 200,000/- on a first mortgage of the premises, and that the client wished to look at the premises. The witness told Mr. Jobanputra that the money was required by 15 March at the latest. Soon after that conversation he suffered a heart attack and had to go into hospital. Thereafter his son, Mr. A. Korde, dealt with the matter.

The witness said that at the time of the signing of the Supplementary Agreement on 3 February 1971, Zahur Din, the fourth defendant, had jocularly said that if the balance was not paid on 15 March, the defendants would “swallow the money”. Everyone had laughed at this joke. The witness did not think that Zahur Din seriously meant what he said.

In answer to the court, the witness said – “On 15 March in the Clients’ Account there were Shs. 70,524/05. There was cash in the office, Shs. 15,000/-. The sum of Shs. 180,000/- was expected from Jobanputra & Pandya on the mortgage, but was not in hand. The cheque for the mortgage had not been received, but an undertaking had been received. Out of Shs. 70,524/05 in the Clients’ Account, the sum of Shs. 63,000/- belonged to the plaintiffs.”

In cross-examination, the witness said that on 15 March the plaintiffs had a credit of Shs. 50,000/- in the office. The mortgage was not only a possibility. On 12 March, Mr. Jobanputra had given a firm undertaking on telephone that he would give Shs. 200,000/- on loan on 15 March.

Mr. M. V. Jobanputra, an advocate in the firm of Jobanputra & Pandya, stated that on 12 March 1971 a broker named J. J. Mehta approached him to find out if a loan of Shs. 200,000/- could be raised on mortgage on Plot 10, Wilson Road, Kampala. He knew that his client Rajabali Kassamali Nanji wished to lend. He telephoned Mr. K. G. Korde, who gave him all the particulars and stated that the interest would be at 15 per cent per annum. Mr. Korde said that the money was required on 15 March.

On 13 March, Mr. A. Korde met him and stressed the need for finalising the

matter by 15 March. As the purchaser lived in Bombay, his client wanted a local guarantor. His client wanted at least three substantial members of Dawoodi Bohra Community to guarantee repayment of the loan.

On 15 March, Mr. A. Korde handed him a letter setting out the names of three guarantors, asking for a cheque for Shs. 200,000/- and undertaking that the mortgage document would be executed and registered. His client approved of the guarantors, and in the afternoon he telephoned to Mr. A Korde. Mr. Korde then stated that the sum of Shs. 180,000/- only was required and he agreed to call at the witness's office at 4.30 p.m. with the guarantors and the documents. Mr. A. Korde did not call as arranged, but the lender who did call gave to the witness his cheque for Shs. 180,000/- with authority to pay out this sum if the witness felt satisfied about the documents. The cheque was dated 16 March 1971. On the following day he banked the cheque and spoke to Mr. A. Korde, who said that the loan was required. So, on 17 March he wrote to Messrs. Korde & Esmail, enclosing his cheque for Shs. 180,000/- and the documents. The witness stated that on 15 March he was not in a position to make payment of Shs. 180,000/-.

Subsequently, after lengthy correspondence, as Messrs. Korde & Esmail were not in a position to fulfil the undertaking, he asked for and was given refund of Shs. 180,000/-, and he held this amount in his client's account pending the execution of the documents.

In cross-examination, he stated that the undertaking by Messrs. Korde & Esmail was sufficient for him to part with the sum of Shs. 180,000/-. He did not know if there were any incumbrances on the property, but the undertaking by Messrs. Korde & Esmail was sufficient for him.

In re-examination, the witness stated that he was not personally in a position to pay Shs. 180,000/- on 15 March as there was no deposit with him.

Mr. Salehbhai Abdulhussein stated that he took part in the negotiations for the purchase of the premises. He knew that the balance of the purchase price, Shs. 250,000/-, was to be paid on 15 March. On 12 March he went to the office of Messrs. Korde & Esmail when Mr. K. G. Korde informed him that a mortgage had been arranged through Mr. Jobanputra, Advocate, that the arrangements had been completed and there was no cause for worry. It was at this meeting that Mr. Korde became unwell, and on the following day he learnt that Mr. Korde had suffered a heart attack and was in hospital. He met Mr. A. Korde, who was conversant with the arrangements for the loan, and he was asked to call again on 15 March. Accordingly he went there and waited for someone from Jamil's Engineering Company to come, but no one did. At 3 p.m. he went to the Company's office and workshop and there met Zahur Din. He asked Zahur Din to go to Messrs. Korde & Esmail, finalise the transaction and receive the cheque. Zahur Din replied that Jamil Din who was dealing with the matter was then out and as soon as he returned they would go to Messrs. Korde & Esmail. He went back to Messrs. Korde & Esmail and waited there until 4.30 p.m., but no one came and so he went away.

On 16 March he again went to Jamil's Engineering Company and met Zahur Din, who said that Jamil Din was out and that he would speak to him on his return. In the afternoon, Mr. A. Korde again sent him to Jamil's Engineering Company. Zahur Din said that Jamil Din had gone to test the route of the East African Safari. He asked Zahur Din to accompany him to the office of Messrs. Korde & Esmail to complete the matter, and then Zahur Din said – "Today is the 16th, you are asleep and you have lost your Shs. 100,000/-. Twenty-four hours have gone by, this is an atomic age and in 24 hours the whole world can change". He was laughing and the witness thought he was joking. He at once went back

to Messrs. Korde & Esmail and told Mr. A. Korde what had happened. Mr. A. Korde said that he would write a letter.

In cross-examination, he stated that he knew by sight one Akbar, the clerk at Jamil's Engineering Company, but did not notice if Akbar was present when he had gone to the Company. As soon as he had entered, he had seen Zahur Din standing at the main entrance and he did not have to make an enquiry at the office.

The first defendant stated that on 15 March 1971 he went to the workshop at 9 a.m. and was there until 12.30 p.m. After lunch he returned at 2 p.m. and remained there until 4 p.m. or 4.15 p.m., when he went to General Motors to look at the car he was to drive in the East African Safari. He had told all his brothers and the clerk Akbar where he could be contacted. At about 5 p.m. or 5.15 p.m. he returned to the workshop and was there until 5.30 p.m., when he went home. On 15 March he and his brothers had reason to remain in the workshop, as on that day someone was to call and make payment to them and they were to sign the transfer. On 16 March 1971 he left for Kenya between noon and 12.30 p.m.

In cross-examination, he stated that on 15 March it would have been easy to go to Korde's office but he thought that they were coming to him. He attached a great deal of importance to the date – 15 March – and he and his brothers were waiting, though not anxiously. When he returned from Kenya on 23 or 24 March he saw a letter dated 16 March from Korde & Esmail. He gathered that the purchasers wished to complete the transaction, but the defendants were not prepared to do so because "the agreement was finished".

*Issue No*. 2

The principle at common law is that, in the absence of a contrary intention, time is of the essence of the contract. On the other hand, courts of equity, when dealing with suits for specific performance, especially in the case of contracts for sale of land, have always taken a less rigid view. That is not to say, however, that courts of equity always hold that time is not of the essence of the contract. Even in equity, time may be of the essence in some cases, and one of such cases is where the real intention of the parties, to be gathered from express provisions or to be inferred from the nature of the contract and its attendant circumstances, makes time the essence of the contract.

In *Nunes v. Njonjo*, [1962] E.A. 88, Newbold, J.A. (as he then was), observed at p. 92 – "When time has not been made the essence of the contract and the circumstances are not such as to make it obvious that time is of the essence . . .". In *Panesar v. Popat*, [1968] E.A. 17, Newbold, P., at p. 20, observed – "As regards the first question, where, as in this case, it is not an express term of the contract that if a requirement of the contract is not complied with on the specified date the contract is to cease to have effect, a court may nevertheless come to the conclusion that in the circumstances such a term should be implied."

The First Agreement stated in Clause 2 (*b*) that the balance of Shs. 315,000/- shall be paid *on or before* 31 January 1971. The evidence is that by that date it had not been possible for the plaintiffs to raise that amount, and so the Supplementary Agreement was made and a further payment of Shs. 65,000/- was made in addition to the earlier deposit of Shs. 35,000/- under the First Agreement. Clause 6 of the Supplementary Agreement provided that the balance of Shs. 250,000/- shall be paid *not later than* 15 March 1971. Pursuant to the Supplementary Agreement, the defendants gave vacant possession of the premises to the plaintiffs, which they had not been required to do under the First Agreement. The Supplementary Agreement also provided for payment by the plaintiffs of certain sums, on per day basis, as from the day following the date of this agreement. Clause 4 provided that if the plaintiffs failed to pay the balance

on 15 March 1971, the sale shall be deemed to have been cancelled and become null and void, and further the defendants shall be deemed to have forfeited the sum of Shs. 100,000/- already paid to them, without liability to refund the same. In my opinion, although the First Agreement did not make time of the essence and also the Supplementary Agreement did not expressly do so, the circumstances in which the Supplementary Agreement was made and its provisions which added so greatly to those of the First Agreement indicate that the parties intended exact compliance by the plaintiffs of the date of the payment of the balance of the purchase price, viz. 15 March 1971. This inference becomes all the stronger when one considers the express provision enabling the defendants to forfeit the sum previously paid to them. The plaintiffs had already made a default under the First Agreement and unless the intention of the parties was not to excuse a further default, there could have been no need to include in the Supplementary Agreement such a stringent consequence as forfeiture of a very substantial amount.

I hold that time was made of the essence of the contract whereby the plaintiffs were bound to make payment on 15 March 1971.

*Issue No*. 4

Much evidence has been adduced in an effort to show that the defendants were in breach of contract on 15 March 1971, in as much as they did not on that date or subsequently call at the offices of Korde & Esmail to hand over the executed document of transfer and to receive payment of the balance. Assuming that the defendants were obliged to do so, the question arises as to whether the plaintiffs had the means on that date to make the agreed payment, if the defendants had called.

The evidence clearly shows that on 15 March 1971 the plaintiffs did not have in hand a sufficient sum to enable them to pay Shs. 250,000/-. At its very best, the plaintiffs had in hand about Shs. 70,000/- and were hopefully waiting for a loan of Shs. 180,000/- from Mr. Jobanputra's client to materialise in time. An attempt has been made to show that this was as good as having the entire sum in hand, but it cannot be denied that as a matter of fact the amount of the loan was not received by Mr. Jobanputra himself until 16 March, and in turn by Korde & Esmail until 17 March.

My conclusion is that apart from whether or not the defendants were in breach in not calling upon Korde & Esmail on 15 March, the plaintiffs themselves were in breach in not being able to perform their agreed part of the contract on that date. They sought to find fault with the defendants, forgetting that it was incumbent upon them to show that they were not only ready and willing but also able to perform their obligation on the appointed day.

*Issue No*. 5

The defendants contend that the payment of Shs. 100,000/- was in respect of agreed and ascertained damages. The plaintiffs contend that this sum was never a genuine pre-estimate of damages but a penalty which would be unenforceable at law. The distinction between liquidated damages and penalty is well known. The general principle would appear to be that where a buyer has paid but is unable to complete a contract, the seller upon rescinding it may sue for damages but must return any money that may have been paid. The general principle, however, must yield to the intention of the parties. If the payment was a part payment, on default and recission, the seller must return the money, but if the payment was a deposit, as earnest or as a guarantee, the common law rule is that the deposit is forfeited and cannot be recovered.

In my opinion, in the present case the question as to whether the sum of Shs. 100,000/- was liquidated damages or penalty does not arise. The defendants are not seeking to recover a sum as damages. They only want to keep money

which is already in their hands. The money was paid to them pursuant to the contract and as soon as it was paid to them it belonged to them absolutely. They did not obtain it by extortion, and in the Supplementary Agreement there is an express forfeiture clause permitting them to keep it. This was the view of Denning, L.J., in *Stockloser v. Johnson*, [1954] 1 All. E.R. 630, and I respectfully agree.

Further, the distinction between part-payment and deposit does not arise for consideration, because the Supplementary Agreement expressly provided for forfeiture. However, it may be noted that the First Agreement described the payment of Shs. 35,000/- as a deposit, and the further payment of Shs. 65,000/- made under the Supplementary Agreement, although not specifically described as a deposit, may reasonably be construed as made in the same sense.

The real question which arises is that in the circumstances of this case will equity intervene to give relief against forfeiture? In a contract where time is of the essence, equity is known, in an appropriate case, to grant relief within limits by giving the party in default further time to complete the contract, that is to say it will suspend the forfeiture within the extended time. Whether in the event of time not being extended, equity can give relief against forfeiture by any other way was the question discussed in *Stockloser v. Johnson* (supra) where diametrically opposed views were expressed as to the law applicable.

In that case there was a provision, in a contract to purchase by instalment payments, that upon default by the buyer, the seller might rescind and forfeit the instalments already paid. Somerville and Denning, L.JJ., stated the view that once the relevant terms of the contract were found by the court to be harsh, unconscionable and of a penal nature, then it was open to the court to consider whether the vendor ought not to be made to refund the monies already paid to him, irrespective of whether he had at the time of the contract been guilty of any fraud, sharp practice or other unconscionable conduct, and irrespective of whether the purchaser was at the material time ready, able and willing to perform the contract. The opposing view was stated by Romer, L.J., who held that no such equity exists unless there had been unconscionable conduct at the time when the contract was entered into, and also unless the purchaser was ready, able and willing to do his part under the contract.

The question is which of these two opposing views I should accept and follow. On the one hand, there is Lord Nottingham's famous maxim cited by Romer, L.J., that "the chancery mends no man's bargain", and his own observation that in the long run it is much better that people who freely negotiate and conclude a contract should be held to their "bargain", rather than that the judges should intervene by substituting, each according to his individual sense of fairness, terms which are contrary to those which the parties have agreed upon for themselves. On the other hand, it may be said that to circumscribe the province of equity by such restricted view is not appropriate as one which does justice in modern law. Denning, L.J., observed that the equity operates, not because of the plaintiff's default, but because it is, in the particular case, unconscionable for the seller to retain the money. He ought not unjustly to enrich himself at the plaintiff's expense.

*Stockloser v. Johnson* (*supra*) was discussed in *Campbell Discount Co. v. Bridge*, [1961] 2 All E.R. 97. Holroyd Pearce, L.J., after referring to passages from the judgments of Somerville, Denning and Romer, L.JJ., observed – "It would be a novel extension for the law to interfere on equitable grounds with ordinary contracts freely entered into by persons under no duress or mistake merely on the ground that in certain events it has turned out harshly for parties who subsequently wished or were compelled by circumstances to abandon their contracts". Harman, L.J., observed – "Similarly I rather deprecate the attempt

to urge the court on what are called equitable principles to dissolve contracts which are thought to be harsh or which have turned out to be disadvantageous to one of the parties. The observations of Lord Nottingham, C., in *Maynard v. Moseley*, (1676) 3 Swan, at p. 655, is still true that ". . . the Chancery mends no man's bargain", and I do not therefore see my way to call in aid equity to mend what may be an unfortunate situation and one which, if it calls for a remedy, calls for aid by the legislature rather than by the judiciary". Davies, L.J., agreed with both judgments.

As I understand the three judgments in *Campbell Discount Co. v. Bridge* (*supra*), they appear to support the view put forward by Romer, L.J., in *Stockloser v. Johnson* (*supra*), and I have, for my part, taken the view that I would respectfully accept the view of Romer, L.J., as stating correctly the law to be applied.

Further, when can a bargain be said to be unconscionable? Should a bargain be set aside when there has been no fraud, undue influence, breach of fiduciary duty, or proved inequality about the respective positions of the parties? No principle appears to exist to determine what is unreasonable or unconscionable or unjust, which are emotive rather than precise terms, and so it is presumably a question of what shocks the conscience of whoever is trying the case, leaving equity to vary with the length of the judge's foot.

In the present case, there is not the slightest evidence showing any fraud, any undue influence, or any oppression on the part of the defendants. There is no evidence showing that the defendants took advantage of the plaintiff's necessity. The plaintiffs had throughout the benefit of independent legal advice, and in no sense can it be said that the inclusion of the clause in the Supplementary Agreement which provided for cancellation of the bargain on default and for forfeiture of the payment already made was what is known in popular parlance as a "catching bargain". I am reminded of the observations of Lord Radcliffe in the decision of the House of Lords in *Bridge v. Campbell Discount Co*., [1962] 1 All E.R. 385 at p. 397, when he said:

> " 'Unconscionable' must not be taken to be a panacea for adjusting any contract between competent persons when it shows a rough edge to one side or the other, and equity lawyers are, I notice, sometimes both surprised and discomfited by the plenitude of jurisdiction and the imprecision of rules that are attributed to equity by their more enthusiastic brothers."

For the reasons which I have endeavoured to give, I decide this issue in favour of the defendants, and hold that they are entitled to forfeit the sum of Shs. 100,000/-.

To sum up, I have held that time was of the essence of the contract, that the plaintiffs were not able to perform their part on the specified date, and that the defendants are entitled to forfeit the amount which had already been paid to them. Accordingly, I dismiss the plaintiffs' suit, and make the declaration sought by the defendants that they are entitled to forfeit the sum of Shs. 100,000/-. The costs of the suit are awarded to the defendants, and I grant a certificate for two counsel.

*Order accordingly.*

For the plaintiffs:
*A. Korde* (instructed by *Korde & Esmail*, Kampala)

for the defendants:
*P.J. Wilkinson, Q.C.*, and *J.S. Shah* (instructed by *Mayanja-Nkangi & Shah*, Kampala)

## Kangave v Attorney-General
[1973] 1 EA 265 (HCU)

| | |
|---|---|
| **Division:** | High Court of Uganda at Kampala |
| **Date of judgment:** | 13 December 1972 |
| **Case Number:** | 1099/1972 (61/73) |
| **Before:** | Phadke J |
| **Sourced by:** | LawAfrica |

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*[1] Civil Practice and Procedure – Pleading – Cause of action – Act of servant alleged – Presumption of responsibility of master – Cause of action shown.*

**Editor's Summary**

The plaintiff claimed damages in respect of an accident caused by the defendant's servant. The defendant contended that the plaint disclosed no cause of action, as there was no averment that the servant was driving in the course of his employment.

**Held** –

(i) it is sufficient to plead an act done by a servant, the presumption arising that the master is responsible (*Commissioner of Transport v. Gohil* (5) followed; *Constant Munyegera v. General Motors* (9) and *Kazora v. Attorney-General* (10) not followed).

Order accordingly.

**Cases referred to in judgment:**

(1) *Hasmani v. National Bank of India* (1937), 4 E.A.C.A. 55.

(2) *Labhuben v. Jivraj*, Tanganyika H.C.C.C. 130 of 1957 (unreported).

(3) *Sullivan v. Alimohamed Osman*, [1959] E.A. 239.

(4) *Lake Motors v. Overseas Motor Transport*, [1959] E.A. 603.

(5) *Commissioner of Transport v. Gohil*, [1959] E.A. 936.

(6) *Amin Electrical Services v. Ashok Theatres*, [1960] E.A. 298.

(7) *Jeraj Shariff v. Chotai Fancy Store*, [1960] E.A. 374.

(8) *Auto Garage v. Motokov* (*No*. 3), [1971] E.A. 514.

(9) *Constant Munyegera v. General Motors*, H.C.C.C. 712 of 1972 (unreported).

(10) *Kazora v. Attorney-General*, H.C.C.C. 1 of 1972 (unreported).

(11) *Attorney-General v. Olouch*, [1972] E.A. 392.

**Judgment**

**Phadke J:** This is an application by the defendant, under O. 7, r. 11 (*a*) of the Civil Procedure Rules, that the plaint be rejected on the ground that it does not disclose a cause of action.

The plaintiff's claim is for recovery of general and special damages from the defendant, and his cause of action is set out in paragraph 3 of the plaint, as under:

"3. On 29 September 1971 the plaintiff was driving along Old Port Bell Road on his correct side

when a Lorry Registration No. UG0108 belonging to the Prisons Department and driven by Driver No. 5477W/Bamuhira of Luzira Prison, Murchison Bay collided with the Plaintiff's Vehicle Registration No. UUX669 driven by the Plaintiff thereby causing serious injuries to the Plaintiff and damage to his vehicle. The said collison was caused by negligence of the said Bamuhira."

The defendant's chamber summons gives the following particulars upon which his application is based.

"As the plaint does not plead that the officers of the Government committed

the torts alleged therein while performing or purporting to perform their functions as officers of the Government as such, the action is unmaintainable in terms of section 4 of the Government Proceedings Act (Cap. 69)."

If I may paraphrase the above particulars, in the light of the submission made by Mr. Matovu, I understand them to mean that as the plaint contains no express averment that the lorry of the Prisons Department was at the time of the alleged collision driven by Bamuhira in the course of his employment as a driver, it does not disclose a cause of action by reason of s. 4, Government Proceedings Act.

I will first consider whether the application is competent under s. 4, Government Proceedings Act. This section, in so far as it is relevant to this application, is as under:

"4(1) Subject to the provisions of this Act and to the provisions of Section 6 of the Law Reform (Miscellaneous Provisions) Act, the Government shall be subject to all those liabilities in tort to which, if it were a private person of full age and capacity, it would be subject –

(*a*) in respect of torts committed by its servants or agents;

..... .....(*b*) ;

..... .....(*c*) ;

Provided that no proceedings shall lie against the Government by virtue of paragraph (*a*) of this sub-section in respect of any act or omission of a servant or agent of the Government unless the act or omission would, apart from the provisions of this Act, have given rise to a cause of action against that servant or agent or his estate."

My understanding of s. 4 (1) (*a*) and its proviso is that a suit can be maintained against the Government for a tort committed by its servant or agent only if there is a cause of action against that servant or agent or his estate in respect of such tort. This provision can be readily appreciated because how can a master be held vicariously liable for the act of his servant if the servant himself is not liable in law for that act?

In the instant case, paragraph 3 of the plaint, quoted above, alleges that Bamuhira, the driver of the lorry, drove it negligently and thereby caused the collision. This allegation clearly shows a cause of action, in negligence, against the driver Bamuhira, although he is not made a co-defendant, and it is sufficient to satisfy the requirement of s. 4 (1) (*a*) and the proviso. Therefore, I hold that the defendant's objection based specifically upon s. 4 is not valid.

So, the defendant is constrained to rely only upon the general provision of O. 7, r. 11 (*a*), Civil Procedure Rules, which is as under:

"11. The plaint shall be rejected in the following cases;

(*a*) where it does not disclose a cause of action."

This provision is mandatory, and has been held to be so in decisions of the Court of Appeal in *Hasmani v. National Bank of India* (1937), 4 E.A.C.A. 55, and *Sullivan v. Alimohamed Osman*, [1959] E.A. 239. It has also been held by the Court of Appeal that in deciding whether or not a plaint discloses a cause of action, only the plaint is looked at on the assumption that the facts alleged in it are true. See *Jeraj Shariff v. Chotai Fancy Store*, [1960] E.A. 374 and the observations of Spry, Ag. P., in *Attorney General v. Olouch*, [1972] E.A. 392.

Mr. Matovu's contention is that whenever a plaintiff seeks to hold the defendant vicariously liable for the tort of the defendant's servant, it is obligatory upon the plaintiff to expressly state in the plaint not only the relation of master and servant between the defendant and the tort feasor but also that at the time of the commission of the tort the tort feasor was acting in the course of his employment by the defendant. It is his submission that a plaint which fails to

expressly plead both these averments is defective and discloses no cause of action.

Looked at as a counsel of perfection, no one would quarrel with Mr. Matovu's contention, but upon this question of what averments should be pleaded in a plaint to make it disclose a cause of action there are two apparently diverging streams of authorities.

One stream consists of two decisions of this court, relied upon by Mr. Matovu, and there is also an observation in one of the judgments of the Court of Appeal in *Sullivan v. Alimohamed Osman*, [1959] E.A. 239.

The two decisions of this court are *Constant Munyegera v. General Motors*, H.C.C.C. 712 of 1971, and *Kazora v. Attorney-General*, H.C.C.C. 1 of 1972, of the Mbarara District Registry. In each case, the plaintiff claimed damages from the defendant for unlawful arrest and detention by the defendant's servant or agent, but in the plaint there was no averment that the servant or agent was at the material time acting in the course of his employment by the defendant. In both cases it was held that because of this omission no cause of action was disclosed, and the plaints were rejected under O. 7, r. 11 (*a*).

In *Sullivan v. Alimohamed Osman* (*supra*), the Court of Appeal considered the question as to whether or not the plaintiff's failure to plead in his plaint the allegation of force or duress was fatal to his cause of action alleging trespass to his goods by the defendant who had unlawfully ordered the plaintiff's own servant to drive away the plaintiff's lorry to the police station. The judgment of Windham, J.A., contained the following observation:

> "The plaint must allege all facts necessary to establish the cause of action. This fundamental rule of pleading would be nullified if it were to be held that a necessary fact not pleaded must be implied because otherwise another necessary fact that was pleaded could not be true."

The above authorities appear to support Mr. Matovu's contention.

The other stream of cases consists of the decision of Law, J. (as he then was) in *Lake Motors v. Overseas Motor Transport*, [1959] E.A. 603 and the decision of Sheridan, J., in *Amin Electrical Services v. Ashok Theatres*, [1960] E.A. 298, and there are also observations in one of the judgments of the Court of Appeal in *Auto Garage v. Motokov* (No. 3), [1971] E.A. 514.

In both the cases referred to above, the respective plaintiffs sued to recover the price of goods sold and delivered, but the plaint in each case contained no averment that the price had been agreed or was reasonable. In each case, the judge expressed the view that the observation of Windham, J.A., quoted above, in *Sullivan v. Alimohamed Osman* (*supra*) did not purport to lay down a principle of general application excluding in all cases inferences of facts which ought to have been pleaded if the omitted facts did not go to the root of the cause of action. This view was based upon another passage in the same judgment of Windham, J.A., at p. 241, which passage reads:

> "This omission would of course be fatal to the claim if the correct approach were a literal one. But it is not. That which is necessarily implied from its context must be read into the plaint."

In *Auto Garage v. Mokotov* (*No.* 3) (*supra*), the question which the Court of Appeal had to consider was whether a plaintiff's failure to plead in his plaint that he is the holder of the bill of exchange upon which his suit is brought is fatal to the plaint as not disclosing a cause of action. In the course of his judgment, Spry, V.-P., expressed the view that in deciding whether or not a plaint disclosed a cause of action, too much should not be read into O. 7, r. 11, as the word "disclose" is not a term of art and conveys no more than the sense of

"telling". The Vice-President then observed as under, and Law, J.A., agreed with him.

> "I would summarise the position as I see it by saying that if a plaint shows that the plaintiff enjoyed a right, that the right has been violated and that the defendant is liable, then, in my opinion, a cause of action has been disclosed and any omission or defect may be put right by amendment. If, on the other hand, any of these essentials is missing, no cause of action has been shown and no amendment is permissible. I think this accords with the words I have quoted from Law, J., in Lake Motors' case, with which I respectfully agree."

The above authorities show that Mr. Matovu's contention is not so forceful as it might at first sight appear. It seems that whereas the Court of Appeal may have formerly been minded to take a rigid view of O. 7, r. 11, as in *Hasmani v. National Bank of India* (*supra*), and possibly in *Sullivan v. Alimohamed Osman* (*supra*), its current view is to adopt a more liberal approach based upon different reasoning.

For reasons which I will presently mention, I do not consider it necessary to say which of these two possibly diverging views of the Court of Appeal should be preferred in deciding the application now before me, although I would add that but for the reasons which I am about to state I would have followed the latest view.

It will be observed that in none of the cases referred to above were the facts constituting the cause of action similar to the facts in the instant case. Here, the claim for damages arises out of alleged negligent driving of a motor vehicle. In the context of this cause of action, this case bears a close similarity to the case of *Commissioner of Transport v. Gohil*, [1959] E.A. 936, upon which Mr. Kawere, for the plaintiff, relies. That case is a decision of the High Court of Tanganyika on appeal from a magistrate's court. In the magistrate's court, the plaint filed by the appellant alleged that the respondent's motor vehicle was negligently driven by his servant and damaged property belonging to the appellant. The respondent pleaded that the plaint disclosed no cause of action, as it did not aver that the servant or agent drove at the material time during the course of his employment. The magistrate ruled that the plaint thus disclosed no cause of action. Allowing the appeal, the High Court held that it was sufficient to plead that the driver was the servant of the respondent, and whether the servant was or was not driving in the course of his employment was a fact peculiarly within the knowledge of the respondent to be pleaded by him in his defence. The appeal judge, Crawshaw, J., referred to and followed the judgment of Mahon, J., in *Labhuben v. Jivraj*, Tanganyika H.C.C.C. 130 of 1957 (unreported) in which a similar decision was made. The facts of this unreported case are stated as under in the judgment of Crawshaw, J.:

> "The plaintiff claimed damages for injuries received as a result of the alleged negligent driving of a motor vehicle by the defendant's servant. The defendant in his written statement maintained that the plaint disclosed no cause of action in that (*a*) it did not plead that, if driven by his servant, it was being used in the course of his employment, or (*b*) if driven by his agent, it was being used on the defendant's business. The plaint in fact went no further than to allege that the driver was a servant or agent of the defendant."

Crawshaw, J., quoted the following extract from the judgment of Mahon, J.:

> "Cause of action, to quote Mulla, means every fact which if traversed it would be necessary for the plaintiff to prove in order to support his right to the judgment of the court. It does not comprise every piece of evidence which is necessary to prove each fact, but every fact which is necessary to be

> proved to entitle the plaintiff to a decree. In my view it is sufficient to plead, as has been done here, that the driver was a servant of the defendant. The presumption then arises that the defendant is responsible for any negligence on the part of his servant. If the servant was not driving in the course of his employment, this would absolve the defendant from liability, but this fact must surely be pleaded by the defendant as a ground for defence? It would be a matter peculiarly within the knowledge of the defendant and one that it might be very difficult if not impossible for a plaintiff to establish."

In following the unreported case of *Labhuben* (*supra*), Crawshaw, J., also stated that an appeal to the Court of Appeal against that decision had been dismissed, the appeal court adopting the reasoning of Mahon, J.

The foregoing shows that the objection raised in *Commissioner of Transport v. Gohil* (*supra*), and also in *Labhuben's* case, was, in relation to the facts, similar to that which is raised in the instant case. As regards the law applied in those two cases, the provisions of the Indian Civil Procedure Code, which was then an applied law in Tanganyika, were identical with the provisions of the Civil Procedure Rules now in force in Uganda.

It is my opinion that the decision of the Court of Appeal affirming the ruling and the reasoning in *Labhuben's* case is fully applicable, both upon the facts and the law, to the application now before me, and I propose to follow it as binding upon me.

In the result, I dismiss this application with costs to the plaintiff.

*Order accordingly.*

For the plaintiff:
*A. Korde* (instructed by *Korde & Esmail*, Kampala)

For the defendant:
*G. Tinyinondi*

## Uganda v Kayondo
[1973] 1 EA 269 (HCU)

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|---|---|
| **Division:** | High Court of Uganda at Kampala |
| **Date of judgment:** | 10 November 1972 |
| **Case Number:** | 448/1972 (63/73) |
| **Before:** | Saied J |
| **Sourced by:** | LawAfrica |

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*[1] Criminal Practice and Procedure – Sentence – Mandatory – Defilement – Whether life sentence mandatory for – Penal Code, s.*123 (*U.*).

**Editor's Summary**

The accused, who was under eighteen, was convicted of defilement contrary to s. 123, Penal Code, and was placed on probation. The case was reviewed on the question whether the sentence for

defilement was a sentence fixed by law, thereby excluding the possibility of a probation order.

**Held** –

(i) a sentence which is fixed by law is one the court is required to impose;

(ii) the sentence for defilement is that the accused is liable to imprisonment for life;

(iii) there is a discretion given to the court and a life sentence is not required (*Opoya v. Uganda* (1) followed; *Uganda v. Debu* (2) not followed).

Order accordingly .

**Cases referred to in judgment:**

(1) *Opoya v. Uganda*, [1967] E.A. 752.

(2) *Uganda v. Debu*, H. C. Cr. Rev. 275 of 1971 (unreported)

**Judgment**

**Saied J:** The accused was convicted on his own plea by a chief magistrate of the offence of defilement contrary to s. 123 (1) of the Penal Code.

The charge sheet stated the age of the accused as 16. The chief magistrate deferred sentence for a medical report as to his age, and at the same time called for a probation report on him.

At the resumed hearing a report under the hand of a police surgeon was submitted by the prosecutor. The doctor said that the accused was about seventeen.

In his report, a probation assistant recommended that the accused be placed on probation for a period of eighteen months. The chief magistrate accepted this recommendation, and made a probation order accordingly.

This file was called for during inspection of the criminal returns of the trial court, as the order seemed to be contrary to the decision of this court made in the earlier case of *Uganda v. Debu*, Cr. Rev. 275 of 1971 (unreported). The facts of that case were very similar to the instant case. The accused, who was under eighteen, had been convicted of the same offence by a chief magistrate, and placed on probation for eighteen months. Wambuzi, J. (as he then was), dealt with that case in revision and after referring to s. 3 (1) of the Probation Act and to the definition of an "offence the sentence for which is fixed by law", said:

> "The charge of defilement of a girl under 14 years carries a penalty of life imprisonment according to the provisions of sub-section (1) of section 123 of the Penal Code. Consequently no probation order may be made in respect of the person who has been convicted under that section by virtue of s. 3 of the probation Act."

This file was submitted to the Director of Public Prosecutions by Fuad, J., who doubted, with respect, the correctness of the earlier decision.

In his reply, a Senior State Attorney agreed with the views of Fuad, J., in that "defilement is not an offence the sentence for which is fixed by law within the meaning of s. 2 (1) (*a*) of the Probation Act and as such the probation order was properly made".

By virtue of s. 3 (1) of the probation Act (Cap. 109) a probation order may be made in the event of a conviction for "an offence (not being an offence the sentence for which is fixed by law)". An offence for which sentence is fixed by law is defined by s. 2 of the Act as an offence "for which the court is required to sentence the offender to death or to imprisonment for life". It also includes offences where a court is required under certain circumstances to refer the case to a Minister for the making of a detention order for disposal in any other way.

It will be noted that in this definition the operative word quite clearly is "required". In my opinion, the use of this word means that the court is left with no discretion whatsoever to consider any lesser sentence than that which has been prescribed by law; in other words, it is mandatory for the court to pass that sentence. One example of such a sentence which readily comes to mind is the death penalty in murder cases. S. 184 of the Penal Code states:

> "184. Any person convicted of murder shall be sentenced to death."

Similarly, for treason and allied offences against the State, s. 25 of the penal Code states that persons committing such offences "shall suffer death". In contrast to these section, s. 123 (1) is not similarly worded in so far as the sentence for defilement is concerned. According to this section a person guilty of defilement "is liable to imprisonment for life, with or without corporal punishment". The operative word here is the word "liable". Such sentences are explained by s. 189 of the Magistrates' Courts Act,

1970, which states:

> "189 (1) A person liable to imprisonment for life or any other period may be sentenced for any shorter term.
>
> (2) A person liable to imprisonment may be sentenced to pay a fine in addition to or instead of imprisonment."

It seems manifest that the word "liable" vests an element of discretion in the sentencing court, the maximum penalty having been prescribed by the section. The case of *Opoya v. Uganda*, [1967] E.A. 752 is further authority for this interpretation.

In passing I may say that the only mandatory sentence of life imprisonment in Uganda that I know of is that provided for by s. 103 (3) of the Trial On Indictments Decree.

It seems to me that these points were not considered by Wambuzi, J. (as he then was) in the case of *Debu* (*supra*).

For the reasons which I have endeavoured to give and with great respect, I am of the considered opinion that defilement is not an offence the sentence for which is fixed by law within the meaning of s. 2 of the Probation Act, and I hold that the probation order made by the trial court in this case was a proper legal order.

*Order accordingly.*

No appearances for the parties.

## Attorney-General v Railways & Harbours
[1973] 1 EA 271 (HCK)

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| **Division:** | High Court of Kenya at Nairobi |
| **Date of judgment:** | 18 September 1972 |
| **Case Number:** | 668/1968 (64/73) |
| **Before:** | Sir James Wicks CJ |
| **Sourced by:** | LawAfrica |

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*[1] Negligence – Railways & Harbours – Liability of, for negligence – East African Railways & Harbours Act, s.*35.

*[2] Shipping – Port – Unloading – Joint operation on behalf of ship and cargo-owner.*

*[3] Negligence – Stevedores – Liability of, to cargo – owner – In tort only – Cannot take advantage of exception in bill of lading.*

**Editor's Summary**

The defendant employed an agent to unload sugar belonging to the plaintiff from a ship in harbour. During unloading the cargo was damaged and the judge found that this was due to the fault of the firm concerned and was not due to defective packing.

The plaintiff claimed damages from the defendant which contended that there was no contractual relationship between the cargo handling firm and the plaintiff and therefore no liability, that s. 35 of

the East African Railways & Harbours Act relieved the defendant of all liability for damage however caused, that any relationship between the defendant and the plaintiff only arose when the bags had been removed from the ship's winches.

**Held** –

(i) the defendant was not relieved of all liability;

(ii) unloading is a joint operation, work done on the ship being done on behalf of the ship and work on the quay on behalf of the cargo-owner;

(iii) the stevedores are liable to the cargo-owner in tort and cannot take advantage of any exception in the bill of lading between the ship-owner and the cargo-owner. (*Midland Silicones v. Scruttons* (8) followed).

Judgment for the plaintiff.

**Cases referred to in judgment:**

(1) *Avon Steamship Co. v. Dask* (1890), 18 R. (Ct. of Sess.) 280.

(2) *The Jaederen*, [1892] P. 351.

(3) *Petersen v. Freebody*, [1895] 2 Q. B. 294.

(4) *Gould v. South Eastern & Chatham Ry. Co*., [1920] 2 K.B. 186; [1920] All E.R. Rep. 654.

(5) *Transoceanica Societa Italiana Di Navigazione v. Shipton & Sons*, [1923] 1 K.B. 31.

(6) *The Rensfjell* (1924), 40 T.L.R.458.

(7) *Heyn v. Ocean Steamship Co*., [1927] All E.R. Rep. 657.

(8) *Midland Silicones v. Scruttons*, [1959] 2 Q.B. 171; [1959] 2 All E.R.289; [1961] 1 Q.B. 106; [1960] 2 All E.R. 737; [1962] A.C. 446; [1962] 1 All E.R. 1.

**Judgment**

**Sir James Wicks CJ:** In this case the plaintiff claims damages for breach of contract, and in the alternative damages for negligence and want of reasonable care, in the unloading of a cargo of sugar by the defendant's agent, the East African Cargo Handling Service Ltd., who I will refer to as the Cargo Handling Services, at Kilindini Harbour, Mombasa, during May 1967. The defendant denies that there was any agreement between him and the plaintiff, and says that if there was the plaintiff has no claim in law. The defendant also denies that the Cargo Handling Services were his agents or that they as his agents were guilty of any negligence in discharging the sugar. The defendant further says that if the plaintiff did suffer loss that occurred before or after the sugar was in their custody and such loss resulted from a deficiency in the packing.

During the hearing Mr. Khaminwa, who appeared for the defendant, conceded that for the purposes of this case the defendant is responsible for the Cargo Handling Services, and I accept that that is so.

The sugar was a full cargo and was consigned to the Kenya Farmers' Association (co-operative) Ltd., on board the s.s."Alferatz" which arrived in Kilindini Harbour on 21 May 1967. The ship was at Berth No. 13, unloading commenced the same day and was completed by 30 May.

The plaintiff alleges a number of practices said to have been adopted by the Cargo Handling Services as amounting to negligence. Other practices were pleaded but, if mentioned in the evidence, they were not pursued, all the damage alleged being attributed to five practices which were:

(1) Defective pallets were used resulting in the loss of sugar.

(2) Red dyed slings were used in the discharge of the sugar, the dye came off on to the bags, damaging them and the sugar.

(3) Full slings of sugar were dragged from the skin of the ship and over the combings to the centre of the hatches prior to discharge resulting in torn and slack bags.

(4) Hooks were used to discharge the sugar causing damage to bags and loss of sugar.

(5) A lorry ran into bags of sugar stacked in Shed No. 13 causing damage to bags and loss of sugar.

[The judge considered evidence and continued.]

I am satisfied and find that at the time of this shipment single jute bags was sufficient packing for the type and quality of sugar they contained. I do not

accept Mr. Fisher's evidence, and that of other witnesses, that the alleged damage was caused in the way Mr. Fisher said it was caused. The complaints relating to three of the five heads of damage were put in writing by Mr. Kuiper and Mr. O'Hara at least four days before the unloading ended and were not answered. I accept Mr. Kuiper's evidence and I reject that of the defence witnesses where it conflicts with that of Mr. Kuiper. I find that all of the damage claimed was caused by the want of reasonable foresight and care on the part of the Cargo Handling Services.

That damaged bags and sugar were stacked in Shed No.13. The cargo weighing certificates showed 1447 red dyed bags and 519 torn and slack bags, there was evidence of the re-bagging, its cost and the cost of the new bags, and credit was given for salvage. I accept the plaintiff's particulars of damage and find that the total loss was as claimed that is Shs. 24,499/-.

In their pleading the defendants put their case very high, it being that the plaintiff had no claim in law and that the defendants were not responsible for the acts of the Cargo Handling Services. During the hearing Mr. Khaminwa abandoned the second proposition. I am satisfied that there was nothing in it and I do not propose to refer to it again. At one stage of the hearing Mr. Khaminwa said that s. 35 of the East African Railways and Harbours Act relieved the defendants of all responsibility for negligence. That the fact the packing was insufficient relieved the defendants from liability for the damage done by red dye on the slings and the tearing of bags on the combings. Asked if this included the defendants negligently burning the sugar or dropping it into the harbour Mr. Khaminwa said this was so, the defendants were relieved of liability no matter what they did to the sugar. Further that the negligence of the stevedores is that of the vessel and not of the defendants. There was some support in the authorities for Mr. Khaminwa's submission.

At the time the East African Railways and Harbours Act applied. This Act has been repealed but it is agreed, and I accept it, that liability, if any, is preserved by the successor Act and that the action has been properly brought against the defendants. S. 35 of the Act provides:

> "Subject to the provisions of this Act, or of any contract, the Commissioner shall not be liable for the loss, misdelivery or detention of, or damage to, goods:
>
> (1) delivered to, or in the custody of, the Administration otherwise than for the purposes of carriage;
>
> (2) . . .
>
> except where such loss, misdelivery, detention or damage, is caused by the want of reasonable foresight and care on the part of the Commissioner or of any employee.
>
> Provided that:
>
> (*a*) the Commissioner shall in no case be liable for such loss, misdelivery, detention or damage, arising from:
>
> (*ix*) insufficient or improper packing, or leakage from defective drums, containers, or packages";

Reg. 59 of East African Harbours Regulations 1952 provides inter alia:

> "delivery of cargo shall not be considered to have been made to the Corporation until the cargo has been safely landed on the quay or into lighter and has been moved from the cargo handling gear used in landing the said cargo."

Reg. 57 provides for the Administration to grant receipts to the master or agent of the ship for all cargo received, and reg. 53 provides in part that:

> "The master, or some other responsible person appointed by him, shall remain on board his ship whilst loading or discharging cargo, for the purpose of superintending such loading or discharge."

Relying on these provisions Mr. Khaminwa submits that stevedores are under the control of the master of the ship and the consignee, in this case the plaintiff, is a stranger to that relationship with the result that the stevedores, the Cargo Handling services, owe no duty to the plaintiff. That a relationship between the defendant and the plaintiff arises only when the bags of sugar have been removed from the ship's winches. I am referred to the case of *Transoceanica Societa Italiana Di Navigazione v. Shipton & Sons*, [1923] 1 K.B. 31 where a shipowner claimed demurrage from the owner of some cargo caused by the ship being delayed through a defect in the cargo, and extra handling charges resulting from the defect. At p. 42 McCardie, J. is reported as saying:

> "The operation of unloading is a joint operation. The trimmers are in the hold and they are called ship's men and work on behalf of the ship; they are of course employed by the Port of London Authority. But the operations from the time the grain is elevated from the hold and taken upwards till it gets to the warehouse where it is put into bags and then into craft are done on behalf of the receivers."

and in *Petersen v. Freebody*, [1895] 2 Q.B. 294 at p. 300 A.L. Smith, L.J. said:

> "It is familiar knowledge that in ordinary cases of discharging cargo the ship's crew does the work until the goods are over the rail, and then the receiver takes his part in the operation."

that is unloading is a joint operation, work done by stevedores on the ship is done on behalf of the ship, work done on the quay and in the warehouse is done on behalf of the owners of the cargo. In Halsbury's Laws of England, 3rd Edn., Vol. 35, para. 640, discharge as a joint act is considered and reference is made to the case of *Avon Steamship Co. v. Dask* (1890), 18 R. (Ct. of Sess.) 280 where it was established that a loss occurring during the discharge, but before the delivery to the consignees is complete, falls on the shipower; and *The Jaederen*, [1892] P. 351 where it was said that it is the duty of the shipowner to get the cargo out of the hold and it is the duty of the consignee to take delivery of the cargo and his part commences when the cargo is free of the ships tackle over the side of the ship, see *Petersen v. Freebody and The Rensfjell* (1924) 40 T.L.R. 458 where it was decided that where the discharge is into trucks the shipowner has completed his part of the discharge when the sling is put at the disposal of the receiver by the loosening of it. Then the stevedores employed in unloading the cargo are the agents as servants of the ship see *Heyn v. Ocean Steamship Co.*, [1927] All E.R. Rep. 657 where at p. 661 MacKinnon, J. said:

> "The discharging of the cargo out of the ship so as to be delivered to the consignees is part of the duty of the carrier at common law and part of the duty which is referred to in the earlier part of this schedule as the duty of the carrier: see art. III 3 (2) of the schedule to the Act, which provides:
>
> > 'Subject to the provisions of art. IV, the carrier shall properly and carefully load, handle, stow, carry, keep, care for and discharge the goods carried.'
>
> It is therefore, one of the duties of the carrier to discharge the goods on which art. IV imposes a limitation of his liability and if he employs an independent stevedore contractor to carry out the duty of discharging the cargo, I think the workmen of that independent stevedore contractor are the agents or servants of the carrier within the meaning of this provision."

Art. 3 (2) of the Schedule to the Act referred to, and the whole Schedule, is almost identical to the Schedule to The Carriage of Goods by Sea Act (Cap.

392). Applying these principles to the case before me, work done by the Cargo Handling Services in the holds of the ship and until the winch wire is slacked so that it can be unhooked from the slings is done by the stevedores on behalf of the ship, and any work done afterwards is done by the stevedores on behalf of the plaintiff. Mr. Khaminwa submits that the result is that a claim for negligence relating to work done before the slings are unhooked from the ship's tackle is the concern of the ship, and the plaintiff is a stranger to it. Mr. Khaminwa concedes that the bags stacked in Shed No. 13 had been delivered by the ship and were in the possession of the defendant.

On the issue of sufficiency of the packing, apart from the provision in s. 35 of the Act, which I have referred to, there is a similar provision in the Schedule to the Carriage of Goods by Sea Act, Art. IV (2) (vi). The exception was at common law and was referred to by Atkin, L. J. in the case of *Gould v. South Eastern & Chatham Ry. Co*., [1920] 2 K.B. 186, at p. 190, as the rule of liability resting on a carrier does not cover any losses which arise from their not being properly put up and packed by the owner or shipper. Further that the carrier's knowledge of the insufficient packing at the time does not preclude him from putting up the defence that the damage was done due to the insufficient packing.

Returning to the relationship of the stevedore to the ship and to owner of the cargo, if the authorities I have referred to are examined it will be found that the principles are based on the existence of a contract; even though in some circumstances the contract is implied by law. This is the basis of Mr. Khaminwa's submissions which can be summed up in the proposition that the ship being responsible for the unloading of the cargo until it leave the ship's winches, the Cargo Handling Company relationship is to the ship alone, and the plaintiff is a stranger to that relationship. There being no contractual relationship between the Cargo Handling Services and the plaintiff no duty is owed to the plaintiff. The contractual relationship is between the ship and the plaintiff and if the plaintiff has any claim it is against the ship. In short no contract, no liability.

Mr. Sampson, who appears for the plaintiff, refers me to one of the paragraphs in Halsbury's Laws Vol. 35, para. 568, which was relied on by Mr. khaminwa, but to the last sentence:

> "The stevedore is of course personally liable to the bill of lading holder if he negligently damages the goods, and, not being a party to the bill of lading, is not entitled to rely on the exceptions therein."

Mr. Sampson concedes that the plaintiff could have brought an action against the shipowner but says that the shipowner would have had a defence under exception 14 (*c*) of the Bill of Lading.

The passage from Halsbury I have referred to contains two propositions – 1. that stevedores are liable to the cargo owners for negligence. 2. The negligence is in tort, and the stevedores, being a stranger to the contract between the shipowner and the owner of the goods (the Bill of Lading), cannot take advantage of an exception contained in that contract (exception 14 (*c*) mentioned by Mr. Sampson). The latter proposition was established in the leading case *Midland Silicones v. Scruttons*, [1959] 2 All E.R. 289. The opening paragraph of the judgment of Diplock, J. is of interest stating the issue clearly at p. 292:

> "This is a test case brought to determine whether stevedores engaged by the shipowner (or carrier), who, in performance of their functions as stevedores, in loading, unloading or delivering cargo, tortiously damage that cargo, can, in an action for tort brought against them by the cargo-owner, rely on any immunity from or limitation of liability contained in the contract of affreightment made between the cargo-owner and the shipowner (or carrier) by whom the stevedores are engaged."

**Diplock J:** continued saying that the question had been much debated in the

past twenty-five years, that in Australia the point was decided by a majority judgment in the High court of Australia in 1956, overruling two earlier decisions in the lower courts, and by a recent unanimous judgment of the United States Supreme Court. In both instances it was held that the Bill of Lading did not assist the stevedores because they were not a party to it. The decision in the *Midlands Silicones* case (above) was upheld by the unanimous decision of Court of Appeal and by the House of Lords, Lord Denning dissenting. Mr. Khaminwa's difficulty can be understood for the reason that obiter dicta of Denning, L.J. (as he then was) in three cases was not followed by Diplock, J. and the same dicta in two of the cases was not followed in the majority decision of the House of Lords. Had Lord Denning's opinion prevailed, the claim in the case before me must have failed.

In the case before me the ship's agent paid the stevedoring charges of the Cargo Handling Services, the same position as in the *Midland Silicones* case At p. 293 Diplock, J. said:

> "This does not, therefore, seem to me that the words either of the Act or of the bill of lading relating to the meaning of the word 'carrier' so extend its meaning as to include stevedores engaged by the carrier, and I hold that the bill of lading, on its true construction does not purport, by any express words, to 'govern the relations whatsoever they may be between the shipper or consignee' and any stevedores engaged by the carrier."

and on the same page he referred to a fundamental rule of common law which is that only a person who is a party to a contract can sue on it. The relationship of the parties is well set out at p. 296:

> "It does not seem to me that the plaintiffs ever invited the defendants to do anything to the plaintiff's goods. They were told by the shipowners to apply to the defendants for delivery of their goods. They did so; that is all. It was the shipowners who requested the defendants to handle the plaintiff's goods, and the shipowners did so pursuant to their own contract with the defendants, with the object of performing, through the agency of the defendants, the shipowner's own contract with the plaintiffs."

This is the position in the case before me, then the consequence is set out:

> "It would be flouting reality to suggest that such request to the defendants was made by the shipowners as agents for the plaintiffs, yet if it was not, I can see no ground on which any contract between the plaintiffs and the defendants can be implied from the mere fact that the shipowners requested the defendants to handle the plaintiffs' goods and to deliver them to the plaintiffs on the plaintiffs demanding them."

and the conclusion at p. 299

> "the defendants cannot limit their liability to the plaintiffs in tort by relying on a contract between the plaintiffs and a third party to which they were not parties, and for which they gave no consideration to the plaintiffs."

There is some comfort to Mr. Khaminwa that Diplock, J. continued by acknowledging that it might be taken that he differed from the views expressed obiter by Scrutton, L.J., and Lord Denning. The conclusion is clear, the defendants are liable if the Cargo Handling Services has negligently damaged the plaintiff's sugar, provided the damage did not result from insufficient packing. I have found that the Cargo Handling Services did negligently damage the plaintiff's sugar and that such damage did not result from insufficient packing so there must be judgment for the plaintiff.

*Order accordingly.*

For the plaintiff:
*R.N. Sampson* (instructed by *Archer & Wilcock*, Nairobi)

For the defendant:
*J. M. Khaminwa* (Deputy Counsel to the Community)

# Ogola v Republic
[1973] 1 EA 277 (HCK)

| | |
|---|---|
| **Division:** | High Court of Kenya at Nairobi |
| **Date of judgment:** | 23 November 1972 |
| **Case Number:** | 102/1972 (71/73) |
| **Before:** | Madan Ag CJ and Simpson J |
| **Sourced by:** | LawAfrica |

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*[1] Constitutional Law – Fundamental rights – Advocate of choice – Denied by refusal of adjournment – Constitution, Art.* 77 (*K.*).

**Editor's Summary**

On the hearing date the advocate for the accused applied for an adjournment as the senior counsel he had briefed was not able to be present. The magistrate took into account the convenience of senior state counsel and the witnesses for the prosecution in refusing an adjournment.

On appeal

**Held** –

(i) There was no indication that desire for a senior counsel was a gambit to delay the trial;

(ii) there was a failure to consider the right of the appellant to counsel of his choice.

Appeal allowed.

**No cases referred to in judgment.**

**Judgment**

The considered judgment of the court was read by **Madan Ag CJ** The appellant was convicted by the resident magistrate, Kericho of two counts of theft as a public servant and was sentenced to 3 years' imprisonment on each count the sentences to run concurrently.

The appellant's first ground of appeal reads as follows:

> "The appellant was denied opportunity to brief and be defended by his advocates one of whom was in Nairobi."

Ground 2 of the additional grounds of appeal which were subsequently filed by Mr. Nowrojee reads as follows:

> "The learned magistrate was wrong in failing to accede to the applications of the appellant and the appellant's advocate for an adjournment in all the circumstances of the case and the appellant was seriously prejudiced thereby."

We invited Mr. Nowrojee and Mr. Sehmi to argue these grounds of appeal first and, Mr. Nowrojee having previously intimated that he was prepared to abandon his other grounds of appeal in the event of a decision favourable to the appellant, we allowed the appeal, quashed the convictions and

sentences and ordered a retrial before another magistrate of competent jurisdiction.

We now give our reasons for this decision.

The appellant was arrested and charged in Kericho on 27 January 1972. Hearing was fixed for 11 February 1972.

On 2 February Mr. Wafula, one of the few Kericho advocates, appeared for the appellant in an unsuccessful bail application. Mr. Wafula then asked for a fresh date as he was appearing in the High Court at Nakuru on 11 February. Hearing was then fixed for 14 February. On 10 February the case was mentioned and the accused remanded in custody. No application was made by Mr. Wafula.

On 11 February a successful bail application was made to Bennett, J. and the appellant was released on bail that day, a Friday.

On 14 February, the following Monday, Mr. Sehmi, Senior State Counsel, appeared to conduct the prosecution.

Mr. Wafula applied for an adjournment pointing out that only 19 days had elapsed since the arrest of the accused.

The record reads:

> "Mr. Otieno is leading me. Not possible to contact Mr. Otieno. Not had time to get instructions. I am acting as junior. I am asking for help in this case."

Mr. Sehmi opposed the application saying:

> "I must oppose this application. Mr. Otieno is not on the record. I have come specially from Nairobi. I have witnesses from Nairobi and from Bomet, including a Member of Parliament. The district Commissioner is on call. There are a great many witnesses and the granting of an adjournment would cause great inconvenience and considerable expense. The case is not a complex one."

It may be observed here that the case was apparently sufficiently complex to warrant its being conducted by Senior State Counsel from Nairobi.

The magistrate granted an adjournment until 11 a.m. to enable Mr. Wafula to get fresh instructions. On the resumption Mr. Wafula applied to withdraw if an adjournment were not granted. The magistrates then noted:

> "All the witnesses are here today, I understand from Nairobi and Bomet, Senior State Counsel is here. Mr. Otieno must have known of his difficulty and should not have accepted the brief. I am not prepared to grant an adjournment."

The case then proceeded, the appellant being unrepresented, and after two days was adjourned to 3 March.

Mr. Nowrojee referred to the fundamental right of an accused person as enshrined in the Constitution.

S. 77 (2) of the Constitution provides:

> "Every person who is charged with a criminal offence. . .
>
> (*c*) shall be given adequate time and facilities for the preparation of his defence;
>
> (*d*) shall be permitted to defend himself before the court in person or by a legal representative of his own choice;"

Mr. Nowrojee submitted that the appellant was deprived of his right to a legal representative of his own choice and that this constituted a fundamental defect which had the effect of nullifying the trial. It is in our opinion unnecessary in the present appeal to consider whether this right is an absolute one.

In this case the accused was permitted to defend himself with an advocate of his own choice but, possibly on learning the strength of the opposition, decided that reinforcements were required. When these were denied him he, perhaps wrongly, dispensed with the services of the local advocates whom he had chosen.

Subject always to the fundamental rights of an accused person it is we think a matter for the magistrate's discretion which, other circumstances being normal, should be exercised in favour of the accused. Administrative convenience may

be taken into account without over-weighing it against the accused; deliberate delaying tactics may make the accused lose the sympathy of the court.

There is however no indication that the magistrate took into consideration the unusually short time available for instructing a busy Nairobi senior counsel and preparing the case for trial, the comparative inexperience of junior counsel, and the accused's right to have senior counsel should he so desire, There was no indication that this was merely a gambit on the part of the appellant to delay the trial.

On the other hand the magistrate was clearly influenced by the convenience of Senior State Counsel and his witnesses and may have been unduly impressed by the fact that senior state counsel had come from Nairobi and a number of witnesses including a member of parliament were present.

We should certainly not like to be understood as objecting to the speedy administration of justice. On the contrary we strongly approve of any proper steps taken by the Deputy Public Prosecutor and his officers or by the lower courts to reduce remand periods provided such steps are not detrimental to the rights and interests of accused persons.

We feel that in this case the magistrate in the exercise of his discretion failed to take account of these rights and interests and justice was not manifestly seen to be done.

We accordingly decided that a fresh trial should be ordered.

*Order accordingly.*

For the appellant:
*P. E. Nowrojee* (instructed by *A. R. Kapila & Co*., Nairobi)

For the *respondent*:
*R. S. Sehmi* (Senior State Counsel)

## Zainabu v Mohamedi
[1973] 1 EA 280 (HCT)

| | |
|---|---|
| **Division:** | High Court of Tanzania at Dodoma |
| **Date of judgment:** | 4 May 1972 |
| **Case Number:** | 37/1971 (200/72) |
| **Before:** | Kwikima Ag J |
| **Sourced by:** | LawAfrica |

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*[1] Matrimonial Causes – Islamic law – Constructive desertion – Not recognised by Sunni Shafii school.*

*[2] Matrimonial Causes – Islamic law – Divorce petition – Court must investigate offences and if proved itself pronounce divorce.*

**Editor's Summary**

The appellant and the respondent were Sunni muslims of the Shafii sect. The appellant applied to the court for an order that her husband be forced to divorce her on the grounds of cruelty and constructive desertion.

On appeal

**Held** –

(i) Shafii law does not recognise constructive desertion;

(ii) a court must enquire into the matrimonial offence alleged, and if this is proved must dissolve the marriage itself;

(iii) on the facts cruelty was not proved and the appellant was in desertion.

Order accordingly.

**Cases referred to in judgment:**

(1) *Nanyanje v. Mwenkimanzi*, 1967 H.C.D. 41 (unreported).

(2) *Kilango v. Kilango*, 1971 H.C.D. 105 (unreported).

**Judgment**

**Kwikima Ag J:** The parties in this case are husband and wife. The suit has been brought by the wife in order to obtain a divorce.

It is not clear from the record of the Mtinko primary court what were her grounds for seeking the divorce because no issues were framed. Judging from the petition, however, it appears that the appellant was accusing her husband of cruelty. This is brought out in her own evidence when she says:

> "the respondent drove me away by beating me again and again. He told me I was of no use to him. He was even prosecuted in court for beating me. I cannot therefore return to him. He must leave me."

Although the trial court did not say so, the appellant was alleging constructive desertion which the respondent manifested by his cruelty and his declaration that the appellant was not useful to him. In saying so the respondent may have been understood by his wife to mean that he did not love her. It would therefore appear that the appellant was alleging two matrimonial offences against her husband, namely cruelty and desertion.

It is common ground that the parties both muslims, are governed by Islamic law which was the lex celebrationis. This court has taken judicial notice of the well-known fact that most if not all indigenous Muslims like the parties to this suit are Sunni Muslims of the Shafii sect. The present suit is therefore determinable in accordance with the personal law of Sunni Shafii muslims. Much confusion has reigned in this court when Indian authorities were employed to resolve issues between the Shafii muslims of this country. It must respectfully

be pointed out that Indian muslims are mainly Shias who do not recognise the "Sunna" (the sayings of the Prophet). Even those Indians who are Sunnis belong to the Hanbal sect. Unfortunately, there is very little in the form of case law or text books on Sunni Shafii law, so that when this court is faced with Islamic disputes there is a tendency to equate Shafii law to Shia or Hanbal law. The result is rather disturbing decisions like *Nanyanje v. Mwenkimanzi*, 1967 H.C.D. 41 (unreported) wherein it was held that:

> "Mohamedan law does not seem to recognise any reparatory payment known as 'Kiyamu'."

The judge who made this startling ruling must have resorted to Shia authorities and to authors like Ameer Ali or Mulla. With great respect, it is unjust to decide a Sunni Shafii's case according to the law of the Sunni Hanbal, or Shia Bohora, or Shia Ithnasheri – which are the predominant Indian sects.

In the present case, the parties, both being Sunni Shafii muslims, are governed by the law pertaining to that sect of muslims. And, according to that law constructive desertion is an alien concept. It is not recognised. If the respondent used to beat the appellant often, he would only be guilty of cruelty and not implied or constructive desertion. The only offence which the trial court could have entertained therefore was that of cruelty.

The appellant further alleged at the trial that her husband told her that she was of no use to him. Ordinarily construed, these words meant that the respondent did not like her. This could mean that he had constructively pronounced the "talak", and that his words amounted to "Dhihari" (constructive talak). There is no authority for such proposition, however and the assessor who advised the trial court that the respondent's failure to show love to the appellant was sufficient cause for the court to hold him to have given her the talak was not sure of what he was saying.

The appellant sought to move the court to cause the appellant to issue her a talak. I doubt whether this was the right thing for her to do, really. She was alleging that her husband was guilty of the matrimonial offence of cruelty. It is evident that all she sought was a court order dissolving the marriage, i.e. fashki, and not talak. This court has already defined "Fashki" in *Kilango v. Kilango*, 1971 H.C.D. 105. The appellant failed to identify the remedy she required and this left the trial court in not inconsiderable confusion.

It must respectfully be pointed out that Islamic law does not recognise that the court should compel a husband to pronounce the talak to his wife. All the court has to do is to satisfy itself whether or not a matrimonial offence has been proved and if there is evidence of such offence, then it is for the court itself to dissolve (fashki) the marriage. In this case there was insufficient evidence to prove the offence of cruelty. Indeed the assessors who opined that the respondent should be compelled to issue the appellant the talak based their opinion on the matrimonial offence of constructive desertion. Islamic law recognises chastisement of a wife, and since the appellant did not sufficiently show that her husband exceeded the limit of permissible chastisement, there was no cause to dissolve the marriage.

The trial court was not competent to compel the respondent to pronounce the talak on the appellant. No court of law can competently do so under Islamic law. The original order is therefore a nullity and it is hereby set aside.

According to the recorded evidence, it is the appellant who has no love for her husband for, inspite his repeated entreaties to her that she should return to the matrimonial home, she would not budge. Instead, she rushed to Court with a request that her husband should be compelled to divorce her. At the

trial she did not conceal her determination to wreck the marriage. Fortunately for the respondent, Islamic law provides for such a situation. By deserting her husband and refusing to return to him, the appellant is guilty of the Islamic matrimonial offence of disobedience. She is therefore “nashiza”. The respondent may sue for restitution of conjugal right or he may leave her where she has chosen to live. But all the time she remains his wife and she cannot remarry. Being “nashiza” she is not entitled to any maintenance until she ceases to disobey her husband’s lawful order that she should return to the matrimonial home.

In conclusion, I would sum up the position as follows:

The court order compelling the respondent to pronounce the talak on the appellant was incompetent and illegal. It is hereby declared null and set aside.

The trial court should have inquired into the alleged matrimonial offence and thereafter dissolved the marriage by fashki if it satisfied that the offence was proved. The court was not empowered to compel the respondent to issue a talak.

*Order accordingly*

The appellant appeared in person.
The respondent was absent and unrepresented.

## Panju v Republic
[1973] 1 EA 282 (HCT)

| | |
|---|---|
| **Division:** | High Court of Tanzania at Mwanza |
| **Date of judgment:** | 8 April 1972 |
| **Case Number:** | 5/1972 (197/72) |
| **Before:** | El-Kindy J |
| **Sourced by:** | LawAfrica |

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*[1] Criminal Practice and Procedure – Bail – Allegations of interference with witnesses – Must be proved.*

*[2] Criminal Practice and Procedure – Bail – Applicant living near border – Not a ground for refusal of bail.*

**Editor’s Summary**

The applicant applied for bail. The prosecution alleged that he might interfere with witnesses although no evidence to this effect was led, and also stated that the applicant lived near the Kenya border. The man accused with the appellant was already out on bail.

**Held** –

(i) allegations concerning the interference with witnesses should be proved (*Bhagwanji Kakubhai v. R.* (1) followed);

(ii) the fact that the applicant lived near the Kenya border was not sufficient ground for denying bail.

Application allowed.

**Case referred to in judgment:**

(1) *Bhagwanji Kakubhai v. R*. (1943), 1 T.L.R.(R.) 143.

**Judgment**

**El-Kindy J:** This is an application for bail pending trial, and it is brought under s. 123 (3) of the Criminal Procedure Code (Cap. 20), and it is supported by the affidavit of the applicant's counsel.

The applicant was charged together with Mwita Gachuma (hereinafter referred to as "co-accused") with the offence of removing property under lawful

seizure contrary to s. 118 of the Penal Code (Cap. 16). The charge alleged that they had jointly removed 400 tins of cooking oil and 1,400 hides from Tarime Police Station, and that these goods had been lawfully seized. Both accused denied the charge.

Briefly stated, the applicant's co-accused was charged alone on 19 February 1972, when he was remanded in custody, but on 26 February 1972, with the positive effort of the prosecution, he was released on bail upon signing a bond of Shs. 1,000/- with two sureties each for a similar amount. Although the co-accused was on bail, the police took it upon themselves, against the specific bail order of Court, to detain the co-accused in police custody on 28 February 1972, when they detained him until the morning of 2 March 1972 when he was released. He was taken to court together with the applicant. Mr. Tukunjoba, who appeared for the co-accused, briefed the court as to what happened to the co-accused after he had been released on bail. The prosecutor who appeared attempted to deny knowledge of what in fact amounted to contravention of a court order of bail for which they had raised no objection, and asked for cancellation of bail of the co-accused on the ground that he had "been informed by the investigating officer that the co-accused was interfering with the witnesses involved". The trial court found that the "action of the police amounted to unlawful detention of the co-accused for which action the police deserve condemnation. As to the objection of the co-accused being on bail, I am not satisfied that sufficient grounds have been advanced to prompt this Court into refusing extension of bail". The co-accused then continued to be on bail. It is clear that the magistrate did not accept that the allegation that the co-accused was interfering with witnesses had any substance at all. The magistrate was right in discounting such allegations, which are now becoming stock allegations against accused persons, as such allegations need to be substantiated by affidavit, as it has often been held by this court (e.g. *Bhagwanji Kakubhai v. R.* (1943) 1 T.L.R. (R.) 143). If the courts are simply to act on allegations, fears, or suspicions, then the sky is the limit and one can envisage no occasion when bail would be granted whenever such allegations are made. However, the prosecution did not appear to wish to pursue this matter any further in so far as the co-accused was concerned.

On 11 March 1972, Mr. Tukunjoba appeared for the applicant and he was brief in his bail application having regard to what the court had already said on 2 March 1972. The prosecution raised objection to bail because (*a*) the State Attorney said objection should be raised, (*b*) that the case was serious as it involved property worth Shs. 60,000/- (*c*) the accused were influencing witnesses to move away and therefore it was a problem to get the witnesses together. The court held that the reasons given were sufficient to deny bail, and it was accordingly withheld. I should say that the mere instruction of counsel to raise an objection is not a sufficient ground by itself. Grounds (*b*) and (*c*) above were not substantiated. However, bearing in mind that bail is a matter of discretion, I cannot say that the magistrate erred in refusing bail to the applicant.

A third attempt was made on 17 March 1972, when Mr. Sandhu appeared for the applicant. The objection was based as follows. That the applicant "will" be charged with another offence. "Others" too will be joined. The applicant will interfere "with other suspects who have not been arrested hitherto". It was no longer alleged that the applicant would interfere with witnesses. In support of the application, it was argued that the applicant was a permanent resident of Utegi village, that it was unlikely that he would abscond although the prosecution had made no allegation of absconding. It was submitted that the fact that the applicant "will" be charged with "other" is another speculation. It was argued that the allegation of "interference" was not substantiated

as should and it could have been done if it had any substance. It was said that the applicant was an old man. His age, in the charge sheet, is given as 51 years. That keeping him in remand does not prevent him meeting people. In other words, the applicant could meet people if he wanted to irrespective of where he was. As I said to the Senior State Attorney, detaining a person in lock-up so as to prevent him from interfering with witnesses, is the least effective way. It was also alleged that the applicant was sickly although it was not substantiated. It was further argued that if bail could be granted to the co-accused, there was no reason for the applicant to be denied, and that it was "unfair" that one person should be granted bail while the other is denied it. Somehow, the prosecution was allowed again to speak, when it was alleged that as the applicant was near the border he could escape to Kenya. I should say the same applied to the co-accused. Why should it be thought that the co-accused was not likely to escape? However, the magistrate, gave a short written ruling in which he refused to grant bail. Bail was denied because the applicant was likely to escape. I am not certain whether the magistrate correctly directed his mind on the test to be applied when a bail application is considered. It is well established that the test to be applied is whether the person to be granted bail would appear to take his trial if granted bail. And this involves taking into account, facts, charge, factors, and any other circumstances into consideration. I am unable to say, due to the brief nature of the ruling, that the magistrate did not properly direct his mind on the issue involved. Therefore, I would not interfere with his exercise of discretion on the matter although it does appear to me that the reasons being advanced against bail of the applicant were equally applicable to the co-accused and yet one was granted bail on very easy terms while the other was totally denied bail.

I am grateful to both counsel who appeared and argued this application before me. I take into account what they said before me. Having regard to the test to be applied in such cases, I take into account the offence for which the applicant is charged is a felony and carries with it a maximum term of imprisonment for 3 years. The magistrate did not think that it was a serious offence as can be gathered from the bail terms made in favour of the co-accused. I cannot see myself justified in holding a different view. These goods, so I was told from the bar, were taken from the police station at Tarime. Having regard to the very nature of the alleged goods – 400 tins of cooking oil and 1,400 hides – it is really suspicious as to how such goods could be taken out of a police station without their immediate knowledge. This takes me to the very nature of investigations involved. If the particulars are what they are, then the investigation of the case should be completed easily as the majority of witnesses would be police officers. Such being the case, the investigation of this case should not have taken such a long time. It is also a factor to be taken into account that the co-accused is on bail and as I have already stated no reason was given for such discriminatory distinction. Both accused have equal reason or temptation to escape. This factor wears thin the suspicion that the applicant *might* evade justice by escaping into Kenya. It is also a factor to be taken into account that so far the value of alleged removed property is unknown. As for the allegation of interference with witnesses, I would say that it is not substantiated. It should not have been difficult to do this if such allegation has any basis. The investigator could have sworn an affidavit explaining what he had done and who he had contacted and what had been the results so far. Before any one can say there would be interference with vital witnesses, at least some facts should be led to the court, otherwise it is asking courts to speculate. Speculation has no limit, and it is for these reasons that I refrain from taking into account matters raised by the Senior State Attorney. The applicant is alleged to be 51 years and he has been in custody since 2 March 1972. He is living at Utega village in Tarime area. I agree that the most important factor

to be taken into account is the fact that his residential area is near the border with Kenya but this by itself is not a sufficient ground for denying bail. Having regard to all these matters, I exercise my discretion and grant bail to the applicant on following terms:

1. That the applicant should deposit cash in the sum of Shs. 2,000/- with this Court.
2. That 2 sureties should sign a bond of Shs. 2,000/- each.
3. That the applicant should report at the Police Station, Tarime every day at 8.30 a.m. and 6 p.m.

Upon complying with these terms the applicant should be released from remand custody.

*Order accordingly.*

For the applicant:
*N. Dhanani* (instructed by *Dhanani, Desai & Co.*, Mwanza)

For the respondent:
*Butambala* (State Attorney)

## Githomi v Republic
[1973] 1 EA 285 (HCK)

| | |
|---|---|
| **Division:** | High Court of Kenya at Nairobi |
| **Date of judgment:** | 31 January 1973 |
| **Case Number:** | 1092/1972 (23/73) |
| **Before:** | Sir James Wicks CJ and Miller J |
| **Sourced by:** | LawAfrica |

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*[1] Criminal Law – Movement of agricultural produce – Fingermillet – District of origin must be stated – Agricultural Produce Marketing* (*Maize & Produce Board*) (*Movement of Regulated Produce) Regulations* (*Cap.* 320) (*K.).*

*[2] Criminal Law – Keeping for sale prepared food – No label – Exposure for sale an essential ingredient of offence – Public Health* (*Labelling and Advertisement of Food) Rules* (*Cap.* 242), *r.* 4 (*K.*).

**Editor's Summary**

The appellant was convicted of the offence of moving 55 bags of fingermillet without a permit, and of keeping for sale prepared food without a label giving the name and address of the packer.

The food, the subject of the second charge was found on the same lorry as the fingermillet.

On appeal:

**Held** –

(i) the moving charge was bad as not referring to the district of origin of the fingermillet;

(ii) the food had not been exposed for sale.

Appeal allowed.

**No cases referred to in judgment.**

**Judgment**

The considered judgment of the court was read by **Miller J:** This is an appeal from conviction and sentence in the Resident Magistrate's Court, Kericho on the two charges set out hereunder. The appeal was allowed at the hearing and we now give the reasons for doing so.

> Charge: Moving Regulated Produce without a permit, Contrary to Rules 3 (1) and 6 of the Agricultural Produce Marketing (Maize & Produce Board) (Movement of Regulated Produce) Regulations (Cap. 320).

> Particulars of offence: *Githomi Kuria*. On 23 June 1972 at Kericho on Sotik/Kericho Main Road in the Kericho District of the Rift Valley Province, was found moving 55 bags of Fingermillet being produce regulated vide the marketing of Agricultural Produce (Maize and Produce Board) Order 1966 Legal Notice No. 76/66 in respect of which Compulsory marketing is in force, to wit the marketing of Agricultural Produce Compulsory marketing Order No. 1968 L.N. No. 315 of 1968 moved 55 bags of fingermillet in vehicle No. KNX 918 without a written permit issued by the Maize Marketing Board or by some person authorised in writing by the said Board.
>
> Charge: Keeping for sale prepared food without there appearing on a label marked on or attached to the container the name and address of the packer, contrary to Rule 4 (1) of the Public Health (Labelling and Advertisement of Food) Rules (Cap. 242).
>
> Particulars of offence: *Githomi Kuria*. On 23 June 1972 at about 3.45 p.m. at Kericho in the Kericho District of the Rift Valley Province, did keep in the lorry Reg. No. KNX 918 for sale prepacked food namely 60 tins of Edible Oil without there appearing on label marked on or securely attached to the container thereof, a true statement of the matter mentioned in Rule 5 (*a*) of the said Rules.

By the record of proceedings the facts on which the prosecution relied are as follows:

> "The accused was transporting 55 bags of millet. The permit was an improper one – did not apply. When millet off-loaded 60 large tins of edible oil found. No description on tins. Suspected brought over border from Tanzania. Not able to prove it."

The appellant pleaded guilty to both charges and in respect of the first sentence was a fine of Shs. 2,000/- or in default 6 months imprisonment accompanied by an order that the produce be forfeited to Government. In respect of the second the appellant was simply fined Shs. 500/- with an order for the appropriating of his cash bail to the same amount in payment thereof. Two days later the outstanding fine on the first count having been paid the matter was put up for mention. The 55 bags of fingermillet had already been forfeited but the question of the disposal of the 60 tins of edible oil arose. In understandable uncertainty the magistrate observed that as the tins of oil were unmarked releasing them to the owner constituted an offence. He therefore ordered the police to dispose of the oil "through proper channels". The grounds of appeal impeached the charges as being bad in law and the order for the disposal of the oil incompetent.

With respect to the first charge counsel for the appellant submitted that the particulars of offence did not bring the alleged offence within the prescribed requirements of reg. 3 (1) of The Marketing of Agricultural Produce (Maize and Produce Board) (Movement of Regulated Produce) Regulations 1968. We upheld this submission because it would be observed that although reg. 3 (1) forbids the movement of certain agricultural produce (including fingermillet) without the necessary written permit, that is not an end to the matter because by the proviso to reg. 3 (1) it is provided inter alia that the general prohibition of reg. 3 (1) shall not apply to the movement of fingermillet within the district in which it is produced and in quantity not exceeding 1 bag of 200 lb. net as set out in the Schedule to the Regulations. The charge merely in relation to "55 bags" without regard for the proviso as to the district of production was therefore bad in law. Turning to the second charge it is clear from the statement of facts that there was no suggestion that the oil was exposed for sale within the intendment of The Public Health Act (Cap. 242) R. 4 (1) which is

alleged to have been breached seeks to implement one of the main objects of the principal Act and itself presupposes the displaying or keeping for sale and selling. The rule was inapplicable to the facts and the charge was accordingly bad in law. For these reasons the appeal was allowed, the sentences and orders of forfeiture set aside with an order that the forfeited goods or their value be restored to the appellant.

*Appeal allowed.*

For the appellant:
*Swaraj Singh*

For the respondent:
*Miss P. Rattansi* (state Counsel)

## Katerregga v Attorney-General
[1973] 1 EA 287 (HCU)

| | |
|---|---|
| **Division:** | High Court of Uganda at Kampala |
| **Date of judgment:** | 31 October 1972 |
| **Case Number:** | 96/1971 (56/73) |
| **Before:** | Mead J |
| **Sourced by:** | LawAfrica |

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*[1] Limitation of Actions – False imprisonment – Cause of action – Arises when plaintiff remanded by court and ceases to be imprisoned by police officer.*

*[2] Malicious prosecution – Malice – Lack of reasonable and probable cause not sufficient evidence of malice.*

**Editor's Summary**

The plaintiff was arrested on 7 July 1969 by a police officer and detained in a police cell until 13 July 1969, and thereafter he was remanded in custody by a magistrate until 13 March 1970 when he was discharged. On 11 February 1971 he filed action against the defendant claiming damages for wrongful arrest, false imprisonment and malicious prosecution.

The defendant contended that the proceedings were barred by effluxion of time, not having been brought within one year. The police officer who brought the charge did not give evidence.

**Held** –

(i) the imprisonment for which the defendant could be liable ended on 13 March 1970 and the claim for false imprisonment was barred;

(ii) a person instituting legal proceedings is not responsible for imprisonment which is the result of an order of the court;

(iii) the plaintiff has to prove that the person instituting the proceedings was actuated by spite,

ill-will or improper motives;

(iv) lack of reasonable and probable cause cannot be relied upon by itself to show malice.

Case dismissed.

**Cases referred to in judgment:**

(1) *Lock v. Ashton* (1848), 12 Q.B.D. 871; 116 E.R. 1097.

(2) *Mitchel v. Jenkins* (1833), 5 B. and Ad. 588; 110 E.R. 908.

(3) *Hicks v. Faulkner* (1881), 8 Q.B. 167.

(4) *Herniman v. Smith*, [1938] A.C. 305.

(5) *Diamond v. Minter*, [1941] 1 K.B. 656.

(6) *Pike v. Waldrum*, [1952] 1 Lloyds Re. 431.

(7) *Mbowa v. East Mengo Administration*, [1972] E.A. 352.

**Judgment**

**Mead J:** The plaintiff claims damages from the defendant for wrongful arrest, false imprisonment and malicious prosecution.

The undisputed facts are that the plaintiff was

(1) arrested by a police officer on 7 July 1969 on a charge of murder and detained in a police cell until 13 July 1969;

(2) taken before a magistrate on 13 July 1969 and remanded in custody as from that date by successive magisterial orders until the 13 March 1970;

(3) discharged by the chief magistrate, Mengo, Kampala on 13 March 1970 for lack of evidence.

The plaint was filed herein on 11 February 1971.

Evidence was led by and for the plaintiff and for the defendant before Jones, J. on 20 December 1971. Jones, J. having permanently left Uganda since July 1972, the hearing proceeded before me on 25 October 1972 pursuant to O. 16 r. 10 Civil Procedure Rules. No further evidence was led before me. Counsel for the parties made their submissions.

At the commencement of the hearing before Jones, J. on 20 December 1971 the issue for decision was recorded as being solely as to whether the arrest of the plaintiff had been unlawful and if so, what were the damages sustained by the plaintiff. Before me the further grounds of claim set out in the plaint of false imprisonment and malicious prosecution were argued. I will consider the plaintiff's claim on each of the three grounds, namely, unlawful arrest, false imprisonment and malicious prosecution.

It is submitted for the defendant that the provisions of the Civil Procedure and Limitation (Miscellaneous Provisions) Act s. 2 preclude the plaintiff from instituting the present suit on any of the three grounds.

The arrest of the plaintiff by a police officer was on 7 July 1969. It was in itself a complete non-continuing act. The plaint not having been filed until 11 February 1971 I hold the provisions of s. 2 of the Act preclude the plaintiff from claiming damages from the defendant on the ground of arrest.

The plaintiff submits that the period of false imprisonment runs from the 7 July 1969 to the 13 March 1970. The defendant contends that the only period of imprisonment for which the defendant is liable is from 7 to 13 July 1969, the period when the plaintiff was detained under orders of a police officer. From 13 July 1969 onwards the plaintiff's imprisonment was the result of successive magisterial remand orders for which the defendant submits the police officer was not responsible. From the plaintiff's own evidence I find that as from 13 July 1969 to 13 March 1970 the plaintiff was in custody pursuant to remand orders made by a magistrate. The plaintiff contends the police officer having instigated the proceedings resulting in the remand orders is responsible for the imprisonment in consequence of the remand orders. No authority was cited by the plaintiff's counsel for this proposition.

The defendant may be liable for the act of the police officer in detaining the plaintiff for the period 7 to 13 July 1969, if the detention is shown to be unlawful, but I hold the provisions of s. 2 of the Act preclude the plaintiff from instituting proceedings to recover damages, the plaint not having been filed within the statutory period of limitation. As from 13 July 1969, the imprisonment of the plaintiff was the result of magisterial remand orders. the defendant is not liable for these magisterial acts, the magistrate not being a person for whose acts the defendant in the present instant is liable. The proposition that a person instituting legal proceedings before a court is not liable in respect of imprisonment where the imprisonment is the result of a court order has long been established in English law; *Lock v. Ashton* (1848), 12 Q.B.D. 871 and the more recent case of *Diamond v. Minter*, [1941] 1 K.B. 656 at p. 674. I hold the plaintiff has no claim against the defendant for false imprisonment as from the 13 July 1969 to 13 March 1970.

The plaintiff is entitled to institute a claim against the defendant for malicious prosecution providing the proceedings are instituted within the statutory period of limitation of the Act. The proceedings terminated on 13 March 1970. The plaint was filed on the 11 February 1971. I hold the claim for damages on the grounds of malicious prosecution is within the statutory period.

For the plaintiff to succeed on the grounds of malicious prosecution five basic essentials have to be satisfied. The first four are that:

(1) The police officer as agent for the defendant must have instituted the criminal proceedings against the plaintiff.

(2) The police officer must have acted without reasonable or probable grounds.

(3) The police officer must have acted maliciously.

(4) The proceedings must have terminated in the plaintiff's favour.

The fifth essential is that the plaintiff has to prove damage, although damage is implied in law where the plaintiff is charged with a scandalous offence as is so in the present case where the plaintiff was charged with murder.

The defendant concedes the police officer was acting as agent for the defendant and that the police officer instituted the criminal proceedings against the plaintiff. The defendant concedes the proceedings terminated in the plaintiff's favour. There remain for consideration the other two of the first four essentials, namely whether the police officer acted without reasonable or probable cause and whether the police officer acted maliciously.

The police officer responsible for preferring the charge against the plaintiff was not called to give evidence. There is no evidence before the court to show on what facts the police officer relied to justify the charge of murder preferred against the plaintiff. Evidence was led by two witnesses for the defendant that the plaintiff had assaulted a man with whose death the plaintiff appears to have been subsequently charged. There is no evidence that the facts stated by these witnesses were communicated to the police officer. I hold the defendant has failed to discharge the onus of proving the officer acted with reasonable or probable cause in preferring the charge of murder against the plaintiff.

On the remaining ground, namely that the police officer acted maliciously, the onus is on the plaintiff. The plaintiff's counsel submits that malice may be inferred from the fact that the defendant failed to prove the police officer acted with reasonable or probable cause in instituting the prosecution. It is well established that in a claim for damages for malicious prosecution malice in fact must be proved showing that the person instituting the proceedings, in the present case a police officer, was actuated either by spite or ill-will or by indirect or improper motives. *Mitchell v. Jenkins* 5 B. & A.D. 589 at p. 594; *Hicks v. Faulkner* (1881), 8 Q.B. 167 at p. 171; *Herniman v. Smith*, [1938] A.C. 305; *Pike v. Waldrum*, [1952] 1 Lloyds Rep. 431 at p. 451-2. This proposition has been approved in *Mbowa v. East Mengo Administration*, [1972] E.A. 352.

Although the lack of reasonable and probable cause may be taken as some evidence of malice the plaintiff cannot rely solely on the defendant's failure to show reasonable and probable cause. The cases to which I have referred indicate the necessity for the plaintiff to prove malice in fact. I find no evidence by or led for the plaintiff from which malice either by spite or ill-will against the plaintiff, or by indirect or improper motive has been proved.

As I have stated, the plaintiff is required to satisfy the court on four basic essentials. Each of these must be proved to present a united whole: Lutta, J.A.: *Mbowa v. East Mengo Administration supra*. The plaintiff having failed to prove the police officer who instituted the proceedings against the plaintiff

was actuated by malice I hold the plaintiff has failed in his claim for damages for malicious prosecution.

Having held the plaintiff has failed on each of his three claims, wrongful arrest, false imprisonment and malicious prosecution, I dismiss the plaintiff's claim and award costs of the suit to the defendant.

*Order accordingly.*

## Kiboko v Assistant Land Registrar and others
[1973] 1 EA 290 (HCK)

| | |
|---|---|
| **Division:** | High Court of Kenya at Nairobi |
| **Date of judgment:** | 22 December 1969 |
| **Case Number:** | 144/1968 (65/73) |
| **Before:** | Kneller J |
| **Sourced by:** | LawAfrica |

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*[1] Land – Registered – Death of proprietor – Determination of heirs under customary law – Procedure – Advertisement of application – Registered Land Act* (*Cap*. 300), *s.* 120 (*K*.).

*[2] Land – Registered – Death of proprietor – Determination of heirs under customary law – Must be proved deceased died intestate.*

**Editor's Summary**

The first respondent received from an administrative officer a certificate of the death of a proprietor of land registered under the Registered Land Act (Cap. 300) together with a certificate that he was subject to African customary law.

The first respondent applied to court for the determination of the heirs of the deceased. The names of the relatives of the deceased were certified to the court. The subsequent proceedings are set out in the judgment.

The appellant appealed from the court's decision on the grounds that the court had no jurisdiction to deal with an application when the applicant did not appear, that there should have been a named defendant, that it had not been proved that the deceased died intestate, and that the magistrate should have given all interested parties an opportunity to be heard.

**Held** –

(i) the registrar, including an assistant land registrar, had a duty to apply to the court for the determination of the heirs and his absence was immaterial;

(ii) there is no procedure laid down for the application;

(iii) it had not been proved that the deceased had died intestate;

(iv) notice of the application for a certificate should be displayed at the offices of the local chief and headman, on the door of the deceased's house, and in the nearest village and court-house.

Appeal allowed.

**Case referred to in judgment**

(1) *Maamun v. Haider Mohamed*, [1963] E.A. 438.

**Judgment**

**Kneller J:** Wakatheru Matheru died on 16 August 1967, and it then became necessary to determine the heir or heirs to plot 114 in Inoi Location in Ndia Division, Kirinyaga District for he was the registered proprietor of it. The second respondent Sikuru Muchoki told the assistant land registrar of Embu and Kirinyaga Districts this on a form (called an application for a certificate of succession) and asked him to apply to the court at Wanguru to decide who the heirs were and issue the required certificate under s. 120 of the Registered Land Act (Cap. 300).

S. 120 (1), (2) and (3) reads:

> "(1) Where a proprietor dies intestate and is subject to African customary law relating to succession on death, this section shall apply, and a certificate signed by an administrative officer to the effect that a proprietor was so subject at the date of his death shall, when delivered to the Registrar and filed, be conclusive evidence that the deceased proprietor was so subject.
>
> (2) Upon being informed of the death of a proprietor intestate, the Registrar, after satisfying himself of the death of the proprietor, shall apply to the court for the determination of the heirs, and the court shall determine who are the persons entitled, according to the customary law applicable to the deceased proprietor, to any land, lease or charge of the deceased proprietor, and, the nature and extent of their respective shares, and shall thereafter issue a certificate in the form (hereinafter referred to as a certificate of succession) certifying the names of the persons so entitled and the nature and extent of their respective shares.
>
> (3) The court shall send the certificate of succession to the Registrar, who shall, subject to the provisions of this Act, give effect to its terms by registering as proprietor of the land, lease or charge any person who appears from the certificate to be entitled thereto; and the certificate shall be filed."

Here is the application:

> "THE LAND REGISTERED ORD. No. 25 OF 1963 Sec. 120 TRANSMISSION ON DEATH INTESTATE OF PROPRIETOR SUBJECT TO AFRICAN CUSTOMARY LAW
>
> The Assistant Land Registrar,
>
> Embu/Kirinyaga,
>
> P.O. Box 108,
>
> Embu.
>
> Reference Plot No. 114.
>
> I have to notify you of the death of Mr. Wakatheru s/o Matheru which occurred at Tebere 'B' on 16 August 1967.
>
> The deceased was the registered proprietor of the plot of Land described above. Will you therefore apply to the African Court at Wanguru to determine the heir/heirs to the property and issue the certificate required under Sec. 120 (3) of the Ordinance.
>
> Signature of informant X (Sgd.) Gikuru Muchoki.
>
> Address A. G. Gatuto School P.O. Kutus-Kerugoya.
>
> I certify that the registered proprietor of the land described above is actually dead and that the following are the relatives of the deceased:
>
> 1. Sons –
> 2. Daughters –
> 3. Wife/Wives –
> 4. Brothers –

5. Father –

6. Mother –

7. Other relatives – 1. Gikuru s/o Mucoki; 2. Tuungi s/o Mucoki; 3. Migui s/o Mucoki.

Chief: Richard.

Location: Inoi.

District: Kirinyaga and Date: 5.10.67.

I being an Administrative Officer certify under Sec. 120 (1) of registered Land Act, 1963 that the Deceased is subject to African Customary Law.

(Sgd.) District Officer

Ndia division.

Death Certificate No. 1665 of 13/11/17."

The appellant's advocate objected to the return of this to the court by the respondent's advocate because it was not attached to any affidavit. There was no allegation that it was irrelevant or false in any way. An officer of the court must hand up such documents and coming from such a source must be accepted and considered. It was admitted under ss. 83 and 84 Evidence Act (Cap. 80) and O. 41, r. 22 (1) (*b*) of the Civil Procedure (Revised) Rules, 1948.

The date of the application would appear to be 5 October 1967, about 25 days after the death of Wakatheru Matheru, the proprietor. The Inoi location chief certified the death and the names of the relatives of the deceased on 13 October 1967, presumably, after he saw the death certificate No. 1665 of 13 October 1967, which is endorsed on the application. The date of the administration officer's certificate is not shown.

On 17 October 1967, the assistant land registrar sent to the court clerk of Wanguru Court a form marked Appendix 19 forwarding the application setting out the names and addresses of seven relatives of the deceased including the second, third and fourth respondents.

Civil case file 39 of 1967 was opened on 2 November 1967, in the Court of the Second Class District Magistrate at Kerugoya and entitled . . .

Plaintiff – Assistant Land Registrar

Kerugoya/Embu.

Defendant –

The Third Class District Magistrate at Kerugoya recorded evidence on 8 December 1967, from the second respondent only, who described the plot as being of 30 acres and swore it was registered in the name of the deceased, his uncle, who died on 16 April 1967, and was buried by he and his brothers, the third and fourth respondents, on the same date. He asked for it to be registered in his name. There was no cross-examination by the other six relatives who, according to the record, were all present. The court questioned the second respondent and the following facts came out. The deceased had no children. The third respondent already owned eight acres and the second and fourth had four apiece. The second respondent had agreed with the third and fourth respondents, his brothers, that each should be given ten acres. This was what they had decided when the court had given them time to reach some agreement. The district magistrate then wrote a "judgment" in which he found the death of the uncle proved and the agreement of the "mukiregei" was just and fair. It also accorded with what his decision would have been on the evidence and his observance of the claims of the other relatives. He issued his "judgment" on 8 December 1967, and ordered that on the expiry of thirty days each applicant should pay Shs. 25/- to the Court.

On or about 3 January 1968, Tumbo Kiboko, the appellant, by his advocates, asked the district magistrate for a copy of the proceedings and judgment in the case. He claimed he had an equitable interest in the plot and he held the title deeds to it. He took the advocates' letter by hand to the district magistrate who told him he had two days in which to appeal, he should go to the land office in Embu where the Land Succession papers were, lodge a caution there and then return to the district magistrate's court, collect the proceedings and judgment and file his appeal. The appellant went to Embu, lodged a caution but did not follow the rest of the magistrate's advice.

The second, third and fourth respondents paid their Shs. 25/- each on 8 January 1968, and received their certificate of succession of the same date together with the application form. This form came back to this court from their advocate.

The advocates for the appellant wrote on 24 February 1968, to the registrar of the High Court, with a copy to the district magistrate, complaining that despite several reminders, they had still not had the copy of the proceedings and judgment in the case. The magistrate wrote five days later to the advocates setting out the advice he had given the appellant, the failure of the appellant to heed it all and denying that any reminders had reached his office. There are no reminders on the file. He also pointed out that the appellant had not paid any fees for the proceedings and judgment.

By 5 March 1968, the advocates for the appellant had the copies and a letter of the same date to the magistrate questioned which class of district magistrate had dealt with the application and whether any district magistrate had jurisdiction to determine the matter because the assistant land registrar was described as the plaintiff but he did not appear and took no part in the proceedings.

The second class district magistrate replied on 8 March 1968, to the advocates for the appellant. He confirmed that the third class district magistrate heard and determined the matter. He argued that any subordinate Court in which the land was situate had jurisdiction to deal with the application to succession under ss. 22, 42 and the First Schedule of the Magistrate's Courts Act (Cap. 10), which commenced on 1 August 1967. This Act amended ss. 3, 120, and 121 (1), and added a second proviso to s. 159 of the Registered Land Act. He pointed out that the assistant land registrar made the application but did not thereby become a party in the ensuing case.

On the same date the appellant appealed to the court of the Nyeri Resident Magistrate. His grounds were:

1. The third class district magistrate had no jurisdiction to deal with the ownership of the land or issue a certificate of succession;
2. There was no named defendant in the case and so the Court had no power to deal with a case without a defendant;
3. The magistrate gave the order appealed against and then heard evidence;
4. That the assistant land registrar was named as the plaintiff but he was not a party to the case and gave no evidence;
5. The magistrate conducted the trial in a most unsatisfactory and unlawful manner. It began in the court of the Second Class District Magistrate but the Third Class District Magistrate decided it; and
6. The case was decided against the weight of the evidence and the law.

The second, third and fourth respondents on 24 June 1968, moved the resident magistrate to dismiss the appeal as incompetent for want of necessary parties or to add them as respondents.

On 3 July 1968, the resident magistrate made a consent order for the second, third and fourth respondents to be added as parties to the appeal. He reserved the costs of the motion.

The first respondent, though properly served did not appear and was not represented in the court of the district magistrate or resident magistrate.

On 8 August 1968, the resident magistrate dismissed the appeal with costs including the costs on the notice of motion.

The appellant then came to this Court with another appeal and, in effect, the same grounds. I will now set them out and deal with each in turn.

First, said the appellant, the Nyeri resident magistrate erred in law when he held that the third class district magistrate Kerugoya had jurisdiction to deal with an application which was instituted by someone called an assistant land registrar who did not appear and was not represented at the hearing.

These proceedings concerned customary law which by s. 5 of the Magistrate's Courts Act, a resident magistrate may not hear but by s. 10 (1) (*a*) a district magistrate may. Proceedings relating to title to land, registered under the Registered Land Act, are controlled by s. 159 (1) of that Act. This deprives all courts lower than that of a resident magistrate from determining such proceedings, except as provided by s. 120. Now that section originally required applications relating to land registered in the name of a deceased intestate African to be made to the local African Court but when the Magistrate's Courts Act came into force, on 1 August 1967, this section was amended by deleting the words African Court and putting in its place the words "the court". A second proviso was added by the same Act to s. 120 to "the court" meant a subordinate court having jurisdiction in the area in which the land lay.

The registrar is not only entitled but is bound under ss. 4 and 120 (1) and (2) of the Registered Land Act to apply to the court for the determination of the heirs. S. 4 reads:

> "4. Except as otherwise provided in this Act, no other written law and no practice or procedure relating to land shall apply to land registered under this Act so far as it is inconsistent with this Act:
>
> Provided that, except where a contrary intention appears, nothing contained in this Act shall be construed as permitting any dealing which is forbidden by the express provisions of any other written law or as requiring the consent or approval of any authority to any dealing."

S. 120 (1), so far as it is material, reads:

> "120. (1) Where a proprietor dies intestate and is subject to African customary law relating to succession on death this section shall apply . . . "

and subs. (2) provides:

> "(1) Upon being informed of the death of a proprietor intestate the Registrar, after satisfying himself of the death of the proprietor, shall apply to the Court for the determination of the heirs, and the Court shall determine who are the persons entitled . . . "

The fact that the application was not dealt with by the registrar but by an assistant land registrar is of no consequence.

The registrar is defined in s. 2 to include an assistant land registrar authorized under s. 7 (4) . . .

and the material part of s. 7(4) is:

> "The Chief Land Registrar may in writing authorise any Land Registrar or Assistant Land Registrar to exercise or to perform all or any of the powers and duties conferred on the Chief Land Registrar by this Act or by any rules made thereunder . . . "

The assistant land registrar in this case acted in a public capacity in a matter in which he could be authorised to act. Having regard to the maximommia praesumuntur acta esse acta, I am not satisfied that the magistrate was wrong in accepting that the assistant land registrar had power to make this application under s. 120.

The fact that the assistant land registrar did not appear and was not represented at the hearing of the first appeal was of no legal consequence and occasioned no prejudice to anyone, least of all the appellant.

Secondly, argued the appellant, the resident magistrate erred in law in holding that matters connected with the administration of the estate can be commenced by a plaint with no named defendant. The magistrate held nothing of the sort. The district magistrate did an Appendix 19 from the Assistant Land Registrar which was addressed to the court clerk. There is no prescribed form for this application: see rule 4 of the Registered Land Rules. The assistant land registrar in turn acted on the application of the second respondent which bore a certificate from the Inoi location chief and Ndia Division district officer. The fact that the Case file of the district magistrate relating to this and the title to the proceedings and judgment in it are headed plaintiff – Assistant Land Registrar Kirinyaga/Embu and Defendant – can have had no possible effect on the justice done in the matter in the Court of the third class district magistrate, Kerugoya.

There is one point I shall deal with here. The appellant kept harping on the fact that the matter began in the Court of the second class district magistrate, Kerugoya, and was determined by the third class district magistrate and claiming as a consequence that the proceedings were a nullity. The forms, it is correct, were placed in a file marked second class district magistrate, Kerugoya, but in fact, he did not deal with it in any manner. A second class and third class district magistrate's Courts are subordinate courts for this purpose under the Registered Land Act. The point is unarguable.

The appellant's third ground was that the resident magistrate was wrong in law in holding that the third class district magistrate could exercise jurisdiction in the matter without a certificate from the administration officer to the effect that the deceased died intestate and was subject to African Customary Law. The appellant claimed no certificate at all was produced to the Court but we now all know it was. The certificate declared he was subject to African customary Law. It did not, it is true, testify he died intestate: under s. 120 (1) of the Registered Land Act the certificate does not have to disclose whether he died intestate or not. It could not do so: the administration officer could not certify there was no will. No evidence was recorded either way on this by the district magistrate. There was no evidence that he died intestate. Consequently, the district magistrate had no jurisdiction to make this investigation. The appeal must succeed on this point.

I will deal with the fourth, fifth, sixth and seventh grounds together which were that the resident magistrate was wrong in law in holding that any effective decision can be taken for the administration of an intestate deceased's estate without first giving all interested parties an opportunity to be heard in the matter. S. 120 (2) stipulates that a proper notice should be given to interested parties. The resident magistrate was clearly perturbed by this. He concluded, however, that the district magistrate had followed the proper procedure. He sent out four summonses: one to the second, third and fourth respondents and

someone called Muriungu Kamau. The record of the hearing revealed that Kibendu Njine, Lenard Mugo and Maringa Njau were present as well as the four summoned. The second, third and fourth respondents were described as cousins and the other four as relatives. The Registered Land Act does not specify what procedure is to be followed to find out who are the interested parties.

S. 16 of the Magistrate's Court Act, declares:

> "16. Subject to this Act and to rules of Court all Magistrate's Courts shall follow the principles of procedure and practice laid down by or under
>
> (*a*) the Criminal Procedure Code, as regards proceedings of a criminal nature; and
>
> (*b*) the Civil Procedure Act, as regards proceedings of a civil nature so far as the same may be applicable and appropriate."

There is nothing in the Civil Procedure Act which deals with applications under the Registered Land Act. Citations need not be ordered to issue to all persons shown as heirs in the petition of the deceased for a grant of letters of administration of the estate. They need not be ordered as a matter of course to issue for heirs shown in the petition to have an equal right. They should go forth to anyone shown to have a superior right to take up the grant or for any other special reason. *Maamun v. Haider Mohamed*, [1963] E.A. 438. This was on the procedure in the *Indian Probate and Administration Act* 1881, which was applied to Kenya.

A practical solution would be that some notice of the proceedings for the certificate should be prepared and sent out to be displayed on the office notice boards of the local chief and headman, the door of the main house of the deceased, a prominent board in the nearest village to the home of the deceased and the notice board of the nearest court-house. This follows the procedure set out in paragraph 6 of Circular 2 of 1962 dated 15 March 1962, to African Courts issued by the then African Courts Officer. The Circular is still in use, it would seem, and might be withdrawn now for it is in some respects incorrect and inadequate.

The deceased had, it is said, permitted the appellant to be in possession of the land for the past ten years, expressed publicly his intention of leaving it to him on his death and deposited its title deeds with him.

The appellant had looked after the deceased for the last six years of his life. He was, moreover, a distant cousin or relative of the deceased said his advocate.

None of this is admitted or denied by the advocates for the respondents.

The fact that the appellant looked after the deceased for the last six years and occupied the registered land for the last ten years would not, if true, affect the issue of the determination of the lawful heirs to the land. It might form the basis for an application for maintenance against the administrators of the estate of the deceased.

The deposit of the titled deeds, if true, would probably be as a security for a loan. By itself this confers no title to registered land at all. It might be the basis of a lien for costs by advocates.

The matter may have to begin again before another district magistrate in that area who should be careful to summon the appellant as well as all the other interested parties and make a finding one way or another as to whether the deceased died intestate or not.

*Appeal allowed.*

For the appellant:
*M. K. Bhandari*

For the first respondent:

*Mrs. Hayanga*

For the second, third and fourth respondents:
*H. C. Kapila*

# Angaha and others v Registrar of Trade Unions
[1973] 1 EA 297 (HCK)

| | |
|---|---|
| **Division:** | High Court of Kenya at Nairobi |
| **Date of judgment:** | 14 April 1973 |
| **Case Number:** | 71/1972 (66/73) |
| **Before:** | Muli J |
| **Sourced by:** | LawAfrica |

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*[1] Constitutional Law – Fundamental rights – Freedom of association – Right to belong to trade union – Not infringed by refusal of registration of trade union where interests already adequately represented by existing unions – Constitution s.* 80 (*K.*) *– Trade Unions Act* (*Cap*. 233), *s*. 16 (*K.*).

*[2] Natural Justice – Trade union registration – Registrar not required to forward objections to applicant for registration – Trade Unions Act* (*Cap.* 233), *s*. 16 (*K.*).

*[3] Trade Union – Registration – Duties of registrar on application – Trade Unions Act* (*Cap*. 233), *s*. 16(*K.*).

**Editor's Summary**

The appellants applied to the registrar of trade unions for the registration of a proposed trade union. The registrar notified three existing trade unions of the application and invited them to submit any objections they wished to make. He received objections from these three unions alleging that they sufficiently represented the interests and that the proposed members were members of their unions. The registrar did not inform the appellants of the nature of the objections.

After considering these and other representations the registrar refused registration on the ground that other unions already registered were sufficiently representative of a substantial proportion of the interests in respect of which registration was sought.

The appellants appealed, contending that the registrar acted in breach of natural justice in not informing the appellants of the objections and that he had to receive their comments on the objections and that their right of association under the constitution was infringed.

**Held** –

(i) the registrar must ask for objections from unions which appear to him to represent the same interests;

(ii) no further procedural requirements are laid down by the Act;

(iii) the registrar was under no obligation to forward the objections to the appellants;

(iv) the Constitution protects the right to belong to trade unions;

(v) the provision for the refusal of registration of a proposed trade union where there are registered

unions which sufficiently represent the interests of the proposed union is not ultra vires the constitution.

Appeal dismissed.

**Cases referred to in judgment**

(1) *Cooper v. Wandsworth Board of Works* (1863), 143 E.R. 414.

(2) *Ridge v. Baldwin*, [1964] A.C. 40.

(3) *Breen v. Amalgamated Engineering Union*, [1971] 2 Q.B. 175.

**Judgment**

**Muli J:** This is an appeal against the decision of the registrar of trade unions made on 26 May 1972 pursuant to the provisions of the Trade Unions Act (Cap. 233) (hereinafter referred to as "the Act") refusing the registration of the appellants as a trade union under the name and style of the Kenya Institutional Workers' Union (hereinafter referred to as "the proposed trade union").

The registrar notified his refusal of the said registration in accordance with s. 16 of the Act as follows:

NOTIFICATION OF REFUSAL OF REGISTRATION

SECTION 16

> It is hereby notified that the registration of the Kenya Institutional Workers' Union as a trade union under the Trade Unions Act is refused. The grounds of such refusal are as follows:
>
> I am satisfied that other trade unions already registered are sufficiently representative of a substantial proportion of the interests in respect of which the Kenya Institutional Workers' Union seeks registration.
>
> Dated this 26th day of May, 1972.
>
> Assistant Registrar Of Trade Unions

The appellant being aggrieved by this decision appealed to this Court pursuant to the provisions of the Trade Unions (Appeals) Rules.

It was not disputed that this court was competent to entertain the appeal. The appeal is properly before the court.

Mr. Kivuitu who appeared for the appellants appealed against the registrar's decision on three grounds stated in the memorandum of appeal as follows:

> "1. The registrar erred in failing to consider sufficiently or at all the entire evidence that was available.
>
> 2. The registrar erred in failing to inform the appellants of objections that were advanced against the registration of the appellants' proposed trade union before he made his said Order.
>
> 3. The registrar erred in failing to consider that the membership of the proposed trade union would comprise of employees whose interests cannot be catered for by any other trade union."

He argued ground (2) as his substantial ground of appeal stating that the other two grounds would abide by the determination in the substantial ground of the appeal.

I will state briefly the facts. On 8 December 1971 the appellants submitted to the registrar through their advocate, an application for the registration of the proposed trade union The Kenya Institutional Workers' Union. The registrar acknowledged receipt of the application on 21 December 1971 and pointed out that the draft constitution of the proposed trade union had numerous ill-contrived provisions which he considered would be fatal to the application.

He then forwarded a specimen constitution for a trade union for adoption. Contending that the draft constitution complied with the Act and corresponded to the specimen constitution, the advocate for the appellant returned the draft constitution to the registrar pleading for a reply within seven days as he had instructions to appeal to the High Court for registration.

Pausing here for a moment, I would note that any appeal at that stage would have been incompetent under the Rules because the decision of the registrar

refusing or otherwise the registration of the proposed trade union had not been made.

It is also noted that the registrar had perused the draft constitution before he returned it to the advocate for the appellants for re-drafting. At this stage the question of refusal or otherwise to register the proposed trade unions was not in issue although the registrar pointed out the fate of the application due to some ill-contrived provisions in the draft constitution.

On 26 January 1972 the registrar wrote to the advocate for the appellants as follows:

> "I refer to your client's application for registration of the above Union under the Trade Unions Act.
>
> Under the provisions of s. 16 (1) of the Trade Unions Act, I am required to notify any registered trade union concerned to submit in writing within the period to be specified any objections which it may wish to make against the registration. I have, therefore, notified the unions listed below of the receipt of the application for registration of the Kenya Institutional Workers' Union and have invited the said unions to submit to me within two weeks any objections which they may wish to make against the registration.
>
> cc. Domestic and Hotel Workers' Union,
>
> Kenya Local Government Workers' Union,
>
> Kenya Civil Servants' Union.
>
> Assistant Registrar of Trade Unions."

For convenience, I will next consider the relevant provisions of s. 16 of the Act which provides as follows:

> "16(1) The Registrar may, in his discretion, refuse to register any trade union or probationary trade union if he is satisfied that –
>
> (*d*) any other trade union already registered is –
>
> (i) In the case of a trade union of employee or of employees, sufficiently representative of the whole or of substantial proportion of the interests in respect of which the applicants seek registration: or
>
> (ii) In the case of an association of trade unions sufficiently representative of the whole or a substantial proportion of the trade unions eligible for membership thereof:
>
> Provided that the registrar shall, by notice on the Gazette or otherwise, notify any registered trade unions which appear to him to represent the same interests as the applicants of the receipt of such application and shall invite the registered trade unions concerned to submit in writing with a period to be specified in the notice any objections which any such trade unions may wish to make against the registration:"

I note in passing that while the registrar has discretion to refuse registration of any trade union or probationary trade union if he is satisfied that any of the nine requirements of s. 16 of the Act are not satisfied or complied with, it is mandatory that in the event of his refusal under paragraph (*d*) of sub-section (1) thereof he must notify any registered trade unions concerned and he must invite them to submit any objections they may wish to make against the registration sought.

The proviso to paragraph (*d*) of sub-section (1) of s. 16 and which is a proviso to both paragraph (*d*) (i) and (ii) of s. 16 (1) makes this very clear. It follows

therefore that the registrar was bound to notify and invite objections from any registered trade unions concerned. Although he was not required to do so he did inform the advocate for the appellants of the three registered trade unions he had notified and invited to submit objections.

The three registered trade unions concerned and which were duly notified and invited to submit their objections, replied objecting to the registration of the proposed trade union. They invariably gave their grounds of objections to be that the interests of the members of the proposed trade union were effectively represented by the three registered unions. They each claimed that the members of the proposed trade union were members of one or the other of the three registered trade unions.

The registrar also received representations from individuals supporting the case for the registration of the proposed trade union. These came from Eastern Institution, school worker at Maseno and one from Nairobi University.

There was a copy of the letter from the national general secretary, Local Government Workers' Union addressed to the first appellant in which the national general secretary reiterated his earlier objections stating that his union effectively represented non-professional staff who work in schools which are in Nairobi city and other municipal councils in Kenya.

Thus in arriving at his decision on the matter, the registrar had to consider the aims and objects of the proposed trade union, which remained unaltered, the objections of the three notified and invited registered trade unions as well as consultations with the Ministries of Labour, and Education, the Central Organisation of Trade Unions (Kenya) and the Federation of Kenya Employers.

As I have already stated, the decision by the registrar to refuse to register the proposed trade union was based on the grounds that "other trade unions already registered are sufficiently representative of a substantial proportion of the interests in respect of which the Kenya Institutional Workers' Union sought registration".

Mr. Kivuitu for the appellants attacked this decision contending that the registrar erred in failing to inform the appellants of the objections that were advanced against the registration of the appellant's proposed trade union before he made his order.

If I understood Mr. Kivuitu's arguments his substantial ground of appeal embraced two contentions, namely that the registrar had a duty express or implied to inform the appellants of the objections which were advanced by the three concerned registered trade unions against the registration of the proposed trade union; that he was duty bound to receive from the appellants their explanations or comments on those objections. With respect to the latter contention, he submitted that failure to invite the appellants to give their explanation or comments on the objection was a breach of the principles of natural justice. That the breach was fatal and occasioned a failure of justice with the result that this court must allow the appeal.

I will first deal with the first contention.

Under s. 16 of the Act, the registrar has a discretion to refuse registration of a proposed trade union if he is satisfied, inter alia, that any other trade union already registered is sufficiently representative of the whole or of a substantial proportion of the interests in respect of which the applicants seek registration.

In order to be so satisfied it is mandatory that he must notify and invite objections from any concerned registered trade union which appear to him to represent the same interests. In this respect the concerned registered trade union should be sufficiently representative of the whole or a substantial proportion of

the interest in respect of which the applicants seek registration. S. 16 of the Act does not expressly provide for the registrar to inform the applicants of any objections advanced against the registration of a trade union. It is clear from reading the whole section that what the registrar is required to do is to be satisfied that one or more of the requirements under the section are not complied with and if so satisfied he may refuse registration in his discretion. In the event that he is satisfied that the requirements of sub para (*d*) of s. 16 (1) of the Act exist then he must notify and invite objections, if any, from any registered trade unions concerned. The registrar complied with the provisions and requirements of s. 16 (1) (*d*) (i) and (ii). This was not disputed.

Was there an implied duty for the registrar under the Act, to inform the appellants of the registered trade unions which submitted objections against registration of the proposed trade unions?

In order to determine whether such an implied duty exists or may be inferred from s. 16 of the Act, it is necessary to consider other relevant sections of the Act. For instance under s. 17 of the Act the registrar is expressly empowered to cancel or suspend registration of a trade union. Sub-sections (3), (4) and (5) thereof provide for the machinery requiring the registrar to serve the notices to show cause why a trade union should not be cancelled or suspended as the case may be. Again s. 20 A of the Act provides the procedure to be followed for registration of branches of a registered trade union.

There is a provision for a reference to the trade union appeals tribunal where the registrar is not satisfied as to the validity or propriety of the purported formation of a branch. There is also the procedure for appeal against a refusal by the registrar to register a branch.

Under s. 16 (1) of the Act, except the procedure provided for in respect of refusal of registration, it appears that no further duty on the part of the registrar may be implied, the nature of his inquiry to satisfy himself having been spelled out expressly. In the present case the registrar could not have been expected to stage yet another inquiry on receipt of the objections, submitted by the concerned registered trade unions. If the legislature intended that the registrar should do something more than what is provided for under s. 16 then it would have so provided expressly as in the case of cancellation or suspension of a trade union under s. 17 of the Act, or in the case of registration of branches of registered trade unions under s. 20A of the Act.

There are therefore special procedures and duties expressly provided for under different sections of the Act. It is reasonable to assume that the legislature required the registrar to perform those duties and follow those procedures which are expressly laid down in various sections of the Trade Unions Act.

S. 16 of the Act lays down the duties and the procedure which the registrar is bound to follow. No further duty may be implied under the section. The maxim expressio unius est exclusio alterius applies.

This brings me to the substantial contention advanced by Mr. Kivuitu. This may be stated briefly as follows:

Was the registrar in breach of the rules of natural justice in arriving at his decision to refuse the registration of the appellant’s proposed trade union? He submitted that the registrar should have invited the appellants to explain or comment in rebuttal on the objections he received from the three concerned registered trade unions. In other words whether there be express or implied duty to hear the appellants in response to the objections did he act in violation of the rules of natural justice in the exercise of his administrative duties under the Act?

I have already found that the registrar asked intra vires the Act. It was not disputed that the appellants submitted their application together with the draft constitution for registration of the proposed trade union in accordance with the Trade Unions Act. Under the Act the onus to satisfy the registrar that the proposed trade union satisfied the requirements of s. 16 of the Act was upon the appellants. After perusal the registrar pointed out to the appellants' advocate fatal ill-contrived provisions and went further to provide a specimen constitution for adoption as necessary so that the application might not be prejudiced. This the appellants did not do with the result that the draft constitution remained as originally submitted with those ill-contrived provisions. Whether this omission influenced the registrar in arriving at his decision is difficult to say.

The registrar also informed the advocate for the appellants that he had invited objections from concerned registered trade unions. He disclosed their identity and addresses.

There was evidence that the first appellant did write to the national general secretary of the Kenya Local Government Union and the Kenya Civil Servants Union. In his reply to him, the national general secretary of Local Government Union reiterated that all the non-professional staff who work in the City and Municipal Councils in Kenya were adequately catered for by the Kenya Local Government Workers' Union.

I note that the two trade unions to which the first appellant addressed were among the three invited to submit their objections. The appellants cannot now say that they were not aware of the trade unions notified and invited to submit their objections nor can they maintain that they were unaware of the nature of the objections in view of what was stated by the Kenya Local Government Workers' Union letter dated 8 March 1972 addressed to first appellant and copied to the Registrar of Trade Unions and to the Kenya Civil Servants Workers' Union.

Neither the appellants nor their advocate appear to have reacted to this objection direct to the Registrar of Trade Unions.

I do not think that the appellants kept silent because the registrar did not invite them to explain or comment on the objections. The onus was upon them to make further representations after receipt of the letter from one of the concerned trade unions in order to satisfy the registrar that the proposed trade union actually qualified for registration in terms of s. 16 of the Act.

In the affidavit of Mr. Kivuitu for the appellants it is deponed that a substantial proportion of members of the proposed trade union were members of the Domestic and Hotel Workers' Union and that they had either quit or were proposing to quit the said trade union.

This admission was a confirmation that the objections submitted by the concerned trade unions were in fact valid.

The appellants were thus heard by way of submission of their application together with the draft constitution of the proposed trade union in terms of the Act. This was not one of the cases where applicants are required to be heard in respect of any objections. They had the full opportunity both by their application and in the draft constitution to satisfy the registrar that the proposed trade union was qualified to be registered as a trade union under the Act. This they attempted to do but the registrar was not satisfied.

Under the Act, he was bound to call for objections from concerned trade unions. The objections in fact enhanced his dissatisfaction with the result that his decision to refuse registration was fully justified.

I was referred to the cases of *Cooper v. Wandsworth Board of Works* (1863), 143 E.R. 414 at p. 417 and *Ridge v. Baldwin*, [1964] A.C. 40 in which the doctrine of rules of natural justice were considered. I was also referred to the decision in *Breen v. Amalgamated Engineering union*, [1971] 2 Q.B. 175 at p. 183 in which it was held that the rules of natural justice should have been applied.

I do not think that there is any doubt about the propriety of adhering to the principles of natural justice where the doctrine applies. It depends on the nature of the inquiry and each case must be considered on the circumstances of each particular case. In the present case the appellants were required under the Act to state their case. This they did. The registrar then decided the matter in accordance with the Act. There was no suggestion that he acted ultra vires the Act or that he acted in bad faith. As was required under the Act the appellants had full opportunity to be heard and were in fact heard through their application and draft constitution. If the registrar was bound to invoke the rules of natural justice I am satisfied that he was not in breach of any as these are in fact embraced in the procedure provided under the Act. The cases cited to me and which I have referred to are distinguishable on facts. They were concerned with vested rights which were sought to be interfered with without allowing those affected to be heard in respect of their vested rights. In the instant appeal, the nature of the right must be determined first. Under s. 80 of the Constitution it is provided as follows:

> 80(1) Except with his own consent, no person shall be hindered in the enjoyment of his freedom of assembly and association, that is to say, his right to assemble freely and associate with other persons and in particular to form or belong to trade unions or other associations for the protection of his interests.
>
> (2) Nothing contained in or done under the authority of any law shall be held to be inconsistent with or in contravention of this section to the extent that the law in question makes provision –
>
> (*a*) that is reasonably required in the interests of defence, public safety, public order, public morality or public health;
>
> (*b*) that is reasonably required for the purpose of protecting the rights of freedoms of other persons;
>
> (*c*) that imposes restrictions upon public officers, members of a disciplined force, or persons in the service of the East African Community or of a local government authority; or
>
> (*d*) for the registration of trade unions and associations of trade unions in a register established by or under any law, and for imposing reasonable conditions relating to the requirements for entry on such a register (including conditions as to the minimum number of persons necessary to constitute a trade union qualified for registration, or of members necessary to constitute an association of trade unions qualified for registration, and conditions whereby registration may be refused on the grounds that any other trade union already registered or association or trade unions already registered, as the case may be, is sufficiently representative of the whole or of a substantial proportion of the interests in respect of which registration of a trade union or association of trade unions is sought),
>
> and except so far as that provision or, as the case may be, the thing done under the authority thereof is shown not to be reasonably justifiable in a democratic society.

Under this section of the constitution freedom to belong to a trade union or associations is protected. There is the Trade Unions Act which makes provisions

for the registration or refusal of registration on the ground that other registered trade unions are sufficiently representative of the whole or of a substantial proportion of the interests in respect of which registration of a trade union is sought.

The Trade Unions Act is not inconsistent with or in contravention of the constitution. It follows therefore that the right to be registered as a trade union is a contingent right acquired upon fulfilment of the requirements of the provisions of the Trade Unions Act.

The registrar is charged with the duty to satisfy himself that the policy laid down under the constitution and safeguarded by the provisions under the Trade Unions Act is not infringed. Being a right in the nature of contingent right upon fulfilment of certain requirements under the Act the registrar was bound to observe the policy and to ensure that the requirements of the relevant provisions were complied with.

He had ample evidence that the interests of the proposed trade union were sufficiently represented or substantial proportion thereof were represented by the other registered trade unions. His refusal to register the proposed trade union was not to divest itself of a vested right and therefore he had no duty to call upon them to show cause why the proposed trade union should not be refused registration.

The exercise of his discretion was fully justified in the interest of the policy entrenched in the constitution.

It would have meant breach of the constitutional duty and policy if he allowed registration of the proposed trade union while seized with evidence that the proposed trade union was not qualified. It would also have encouraged members to quit the registered trade union and the formation of another trade union with almost identical objectives to those of existing trade unions.

The registrar was not bound to be satisfied on preponderence of evidence or even on balance of probabilities. Any scintilla of evidence, that the interests of the appellants were sufficiently or substantially represented by other trade unions was sufficient. In this case the registrar had ample evidence before him to arrive at the decision he did.

The appeal is dismissed with costs.

*Order accordingly.*

For the appellants:
*S. M. Kivuitu*

For the respondent:
*G. F. Harwood* (Senior State Counsel) and *E. O. O'Kubasu* (State Counsel)

## Mwananchi Service Station and another v Minga
[1973] 1 EA 305 (CAD)

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| **Division:** | Court of Appeal at Dar es Salaam |
| **Date of judgment:** | 21 April 1973 |
| **Case Number:** | 68/1972 (68/73) |
| **Before:** | Sir William Duffus P, Lutta and Mustafa JJA |
| **Sourced by:** | LawAfrica |

**Appeal from:** The High Court of Tanzania – El-Kindy, J

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*[1] Negligence – Duty of care – Owner of premises damaged by inflammable produce – Right to sue.*

*[2] Negligence – Fool – proof system – No evidence of intervening act of third party – Negligence proved.*

**Editor's Summary**

The first appellant was the distributor of the second appellant's petroleum products. It sold to the appellant as kerosene an inflammable mixture of kerosene and petrol. The explosion and fire which resulted when the respondent's friend attempted to use the mixture damaged his house.

The trial court awarded the respondent damages holding that the appellants owed him a duty of care which they had broken in selling him the mixture.

On appeal the appellants contended that the fire had been caused by the actions of the friend and that the respondent had no right to sue, and that the appellants had a fool-proof system.

**Held –**

(i) the respondent had suffered damage as a result of the appellant's negligence and could sue thereon;

(ii) there was no evidence of any intervening act of a third party.

Appeal dismissed.

**Cases referred to in judgment:**

(1) *Donoghue v. Stevenson*, [1932] A.C. 562; [1932] All E.R. Rep. 1.

(2) *Grant v. Australian Knitting Mills*, [1936] A.C. 85; [1935] All E.R. Rep. 209.

(3) *Watson v. Buckley*, [1940] 1 All E.R. 174.

(4) *Longdon-Griffiths v. Smith*, [1950] 2 All E.R. 662.

**Judgment**

The following considered judgments were read. **Mustafa JA:** This is a somewhat unusual case. The respondent was owner of a house let to tenants. One of his tenant's friends purchased a gallon of kerosene. In lighting a hurricane lamp with the kerosene there was an explosion resulting in a fire which burnt and extensively damaged the respondent's house. This happened on 11 August 1968.

The respondent successfully claimed damages in the High Court against the first appellant as seller and distributor and the second appellant as manufacturer of the kerosene for his loss. From that judgment the appellants appeal.

The trial judge made the following findings of fact. The respondent was the owner of a house with 8 rooms let to various tenants at Shs. 50/- per month. One of the tenants was away and his room was occupied at the material time by two of his friends who were visiting him. One of them bought a gallon of kerosene from the kerosene pump operated by the first appellant. The second

appellant was the manufacturer of the kerosene. The kerosene was mixed with super petrol in the proportion of 17.6 per cent petrol and 82.4 per cent kerosene. The flash point of kerosene is 44°C, that of super petrol 12°C. The flash point of the kerosene purchased from the first appellant is 12°C. The kerosene reached the purchaser in the same state in which it left the kerosene pump. The kerosene purchased was contaminated with super petrol and became a dangerous mixture if used for domestic purposes as kerosene. The kerosene would go to the consumer in the same state as it left the depot, and the substance could not, nor was it expected to be examined by a consumer. The liquid purchased was not kerosene, but was kerosene contaminated with super petrol. I am satisfied that there was sufficient evidence adduced at the trial to justify the above findings.

The trial judge held that the appellants owed a duty of care to a consumer to see that the substance sold as kerosene, an article of common domestic use in Tanzania, was not contaminated and made dangerous. Despite the procedure adopted by the second appellant in storing and supplying kerosene to the first appellant, in which, it was suggested "no possibility or likelihood of the products mixing" could occur, the trial judge found that there was in fact contamination in the kerosene supplied by the appellant in this case, and that the appellants ought to have known that by selling such a contaminated mixture, which was dangerous, damage was likely to occur if the mixture was used as kerosene. He held that since it was established that the kerosene purchased from the first appellant's kerosene pump was contaminated, the onus was on the appellants to show that such contamination was not due to their negligence. He came to the conclusion that the appellants were negligent, despite the precautions against contamination that the appellants stated they had taken, and that the evidence adduced showed that there was no novus actus interveniens. As regards the duty of care owed by the appellants in this case, the trial judge referred to and followed the general principles enunciated in the case of *Donoghue v. Stevenson*, [1932] A.C. 562.

The trial judge held that as a result of the appellant's negligence the explosion and fire took place resulting in damages to the respondent.

Mr. Jhaveri for the appellant submitted that the respondent had not established his right to sue. The visitors to one of the respondents' tenants were not the respondent's tenants or agents as alleged in the plaint; the trial judge found that they were only visitors. The respondent had failed to establish in what way the appellants were negligent, and also failed to show that the third party, that is the visitor Mbala had not caused the fire by the way he lighted the hurricane lamp. In fact, he submitted, it was the act of a third party, Mbala, who was negligent, which caused the fire, and this intervening act, separate and distinct, was the cause, or partly the cause, and the appellants were not liable, at least not fully.

I will first deal with the alleged negligence of the third party. Mbala stated that the kerosene was in a gallon tin. He said the hurricane lamp he was using had dimmed; he tilted the lamp and poured in the kerosene from the gallon tin without using a funnel. He had not put out the flame when he did so. As he was pouring in the kerosene the lamp exploded and he got burnt. He dropped the gallon tin and "the whole thing burnt". The mosquito net in the room caught fire and the fire spread to the whole house. He agreed that if he had put out the flame before pouring in the kerosene there would have been no fire, and that it was his mistake not to have first put out the flame. He also admitted that it was probable that some kerosene had spilt when he was pouring in the kerosene.

The Government Chemist who analysed the kerosene in question found

that the mixture consisted of 17.6 per cent super petrol and 82.4 per cent kerosene, that it was highly inflammable and combustible and that the flash point of the mixture is 12°C, like super petrol, whereas the flash point of kerosene is 44°C. He said that if petrol is put in an ordinary lamp and a lighted match is used to light it the lamp would most likely explode and catch fire. Mbala had testified that there was an explosion as he was pouring the mixture into the hurricane lamp, and his evidence would be consistent with the opinion expressed by the Government Chemist. It appeared that there was a gas cylinder head in the room at the material time. The trial judge considered and rejected the possibility that the explosion and subsequent fire could have been caused by (*a*) the exploding gas cylinder or (*b*) by the kerosene which was spilt. In view of the evidence of the Government Chemist, which was uncontradicted and which was accepted by the trial judge, I am of the view that the trial judge was right in his conclusion that the explosion occurred solely because a dangerous mixture with a very low flash point was used instead of kerosene. According to the Government Chemist if the hurricane lamp was filled with the mixture and a lighted match was used to light it, an explosion would most likely take place. This would have been so even if there was no flame burning in the lamp and nothing was spilt on the floor.

Mr. Jhaveri has pointed out that the trial judge has stated "secondly poured kerosene would not necessarily catch fire in the circumstances of that case", and submitted that that was a misdirection, as no evidence was led to show that it was so. True, but in view of the evidence of the Government Chemist, in the circumstances of this case, an explosion would have occurred even if nothing was spilt and this misdirection has not caused any prejudice. In my view the trial judge was correct in his conclusion that it was due solely to the dangerous mixture that there was the explosion which resulted in a fire which damaged the house, and that the act of Mbala did not "principally or contributively" cause the explosion and fire.

I will not deal with Mr. Jhaveri's submission that there was nothing to show what right, the respondent, as owner of the house, and not as consumer of the kerosene, has to sue the appellants. It is clear that the plaint was badly drawn, but there were sufficient allegations and averments for issues to be joined. In fact a list of agreed issues was made. I do not think that the capacity in which the respondent sued was very material, provided he could show that as a result of the negligence of the appellants he had suffered loss and damage, and that in law he would be in the contemplation of the wrong-doers. As was said by Lord Atkin in the case of *Donoghue v. Stevenson* at p. 580:

> "You must take reasonable care to avoid acts or omissions which you can reasonably foresee would be likely to injure your neighbour. Who, then, in law is my neighbour? The answer seems to be – persons who are so closely and directly affected by my act that I ought reasonably to have them in contemplation as being so affected when I am directing my mind to the acts or omissions which are called in question."

And again at p. 583:

> "I confine myself to articles of common household use, where every one, including the manufacturer knows the articles will be used by other persons than the actual ultimate purchaser – namely, by members of his family and his servants, and in some cases his guests."

I believe that the respondent, as owner of the house, ought to have been in the contemplation of the appellants as being a person who would have been directly affected by their act.

Mr. Jhaveri also submitted that the appellants had a fool-proof system to prevent the mixing of kerosene and petrol. The fact remains however that the kerosene in question was contaminated with petrol and was dangerous. The trial judge rightly held that there was no evidence of any intervening act by third parties. The appellant had in the words of Stable, J. in the case of *Watson v. Buckley*, [1940] 1 All E.R. 174 at p. 183:

> ". . . intentionally so excluded interference with, or examination of, the article by the consumer, then he has, of his own accord, brought himself into direct relationship with that consumer for any injury to the consumer . . ."

In this case the so called fool-proof system was not in fact fool-proof, and the inference would be that there was negligence or carelessness on the part of the appellants.

Mr. Jhaveri sought to distinguish the present case on the ground that the principle in *Donoghue's* case only applies when the manufacturers sell their goods in stoppered and sealed bottles or containers, so that the goods would not be tampered with until a consumer opens the bottle or container. As was said by Lord Wright in *Grant v. Australian Knitting Mills*, [1936] A.C. 85 at p. 106:

> "The decision in Donoghue's case did not depend on the bottle being stoppered and sealed: the essential point in this regard was that the article should reach the consumer or user subject to the same defect as it had when it left the manufacturer."

With respect I adopt and follow that opinion.

Mr. Jhaveri also pointed out that in view of Mbala's admissions the trial judge should have found that there was contributory negligence on the part of the respondent. I have already dealt with this issue, and agree with the trial judge that the sole cause of the explosion was the dangerous mixture supplied by the appellants.

Mr. Jhaveri submitted that the trial judge erred in awarding special damages when such were not pleaded nor particulars supplied. As I have stated earlier the plaint was badly drafted. There was an item of claim for Shs. 33,600/-. The trial judge dealt with this question fully and was satisfied, despite the defective pleading, that that item was a claim for special damages in respect of the burnt house, and was so understood by the appellants. At the trial evidence was adduced by Chotu, a civil engineer, as to the value of the house prior to its being damaged by fire. The trial judge in substance accepted the valuation of Chotu and assessed the damage at 80 per cent and arrived at the figure of Shs. 33,600/-. The trial judge referred to the case of *Longdon-Griffiths v. Smith*, [1950] 2 All E.R. 662 at p. 678 as regards a liberal approach in regard to defective pleading in claims for special damages and concluded that in this case the respondent has proved this item of special damage. I am of the view, with some slight hesitation, in the circumstances of this case, that the trial judge was justified in allowing the item of claim of Shs. 33,600/- to the respondent.

I would dismiss the appeal.

**Sir William Duffus P:** I have read and I agree with the judgment of Mustafa, J.A. and as Lutta, J.A. also agrees, there will be an order as set out in Mustafa, J.A.'s judgment.

**Lutta JA:** The facts in this case have been fully set out in the judgment of Mustafa, J.A. and it is not necessary for me to repeat them here. The issue

in this appeal is whether the second defendant, as manufacturer of kerosene, and the first defendant as distributor thereof, are under any duty, as a matter of law, to take reasonable care that the kerosene was free from any defect likely to cause damage to the plaintiff. The plaintiff was the owner of the house in question and Stephen Nkangawabangwe, Francis Mbale and Menard Bufiku were occupying a room in that house. According to the evidence, which the learned judge accepted, Stephen Nkangawabangwe bought one gallon of kerosene from the first defendant's petrol station. The kerosene had been manufactured and supplied to the latter by the second defendant. According to the evidence of James Msikinga, a Government chemist, who examined and analysed the kerosene, the kerosene was 17.6 per cent super petrol and 82.4 per cent kerosene – that it was a mixture of petrol and kerosene; it was highly inflammable and combustible, its flash point being below 12 degrees centigrade.

Ordinarily a purchaser or consumer of kerosene does not examine it nor does he have reasonable opportunity to analyse the same in order to discover any defects therein or to observe whether its condition, in all probability, is likely to cause damage to property or injury to person. Kerosene is not dangerous in itself, as according to Msikinga's evidence, it does not catch fire below a temperature of 44 degrees centigrade whereas petrol catches fire at a temperature of 12 degrees centigrade. The mixture in question was highly inflammable and combustible because of the petrol content. There was thus no special duty on the part of the plaintiff or the consumer (or rather the purchaser) to take appropriate precaution in handling the mixture. However, it is for the plaintiff to establish a relationship with the defendants as to warrant an inference of the second defendant's duty towards him and the ultimate consumer. It can be said that obviously the second defendant, as the manufacturer of kerosene and supplier of the same to the distributor has, by the very nature of kerosene, excluded any examination or analysis of it by a purchaser or consumer, including the plaintiff, in order to discover any defect in it. In such a case, surely it has brought itself in direct relationship with that ultimate consumer and thus must be held responsible to the consumer for damage that may be sustained by the consumer either to person or to property, even if it is through its distributor or agent. The second defendant would owe a duty to the consumer to take reasonable care to see that no injury is sustained by the consumer. In my opinion, the consumer, if he can show that the kerosene, by reason of the petrol content in it, which rendered it dangerous, caused damage to him because of the second defendant's failure to take reasonable care, is entitled to claim damages. In my opinion the plaintiff was not only entitled to bring the claim against the defendants but also was entitled to damages as a result of injury to his property.

With regard to the first defendant, the kerosene passed through its hands and reached the ultimate consumer to the detriment of the plaintiff and the consumer. In my view that is enough to establish his liability to the plaintiff. I would therefore dismiss this appeal with costs. I agree with the order proposed by Mustafa, J.A.

*Appeal dismissed.*

For the appellants:
*K. L. Thaveri* (instructed by *Dhanani Desai & Co*. Mwanza)

For the respondent:
*S. B. M. Tukunjoba*

## Universal TPT Co Ltd v Tzortzis and another
[1973] 1 EA 310 (CAN)

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|---|---|
| **Division:** | Court of Appeal at Nairobi |
| **Date of judgment:** | 15 June 1973 |
| **Case Number:** | 4/1973 (69/73) |
| **Before:** | Sir William Duffus P, Spry VP and Law JA |
| **Sourced by:** | LawAfrica |
| **Appeal from:** | The High Court of Kenya – Simpson, J. |

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*[1] Currency – Devaluation – Registration of foreign arbitration award – Date of conversion of currency the date of the award.*

*[2] Arbitration – Foreign award – Registration – Conversion of foreign currency to be as at date of the award.*

**Editor's Summary**

The respondents applied for the registration in Kenya of the award of an arbitrator made in England. The parties could not agree upon the date for conversion of the amount awarded, sterling having been devalued after the date of the award by the arbitrator.

The High Court held that the date for conversion was the date of the award by the arbitrator and the appellant appealed, contending that the proper date for conversion was when permission was given for payment under the Exchange Control Act since until that date the appellants were not in breach.

**Held** –

(i) the Exchange Control Act regulates payment of sums due not their calculation (*Cummings v. London Bullion Co*. (1) distinguished);

(ii) the general rule is that conversion of a debt from one currency to another is made at the date the debt became due (*Life Insurance Corporation of India v. Valji* (2) followed);

(iii) accordingly it was correctly held that the date for conversion was the date of the award on which date the sum became due and payable.

Appeal dismissed.

**Cases referred to in judgment:**

(1) *Cummings v. London Bullion Co*., [1952] 1 K.B. 327; [1952] 1 All E.R. 383.

(2) *Life Insurance Corporation of India v. Valji*, [1968] E.A. 225.

[*Editorial note*: The court did not refer to its previous decision of *Continental Agencies v. A. C. Berrill & Co*., [1971] E.A. 205 in which the argument based on the Exchange Control Act and *Cummings v. London Bullion Co*. (1) was rejected in respect of a decree payable by instalments.]

**Judgment**

The following considered judgments were read. **Spry VP:** On 5 September 1966 an arbitrator sitting in London awarded the sum of £9,268 7s. 3d. to the respondents in this appeal. Later, the respondents applied under the Arbitration (Foreign Awards) Act (now replaced by Part III of the Arbitration Act

(Cap. 49)) for the enforcement of the award and an order to that effect was made on 2 April 1971.

A formal order was drafted but as the parties could not agree on it, it was referred to the judge who had made the order, in accordance with O. 20, r. 7 (2) (since deleted and substituted). For the purpose of the formal order, it was necessary to convert the amount awarded from sterling into Kenya shillings

and the parties could not agree on the date as at which the conversion should be made. As, in the meanwhile, sterling had been devalued, this made a substantial difference to the amount which the appellant company had to pay or to the amount which the respondents would receive, as the case might be. The judge held that the appropriate date was the date of the award, and it is against that decision that this appeal is brought.

I may remark that the judge held that a Kenya court may only enter judgment for a sum expressed in Kenya shillings. There has been no appeal against that decision and I have no doubt that it was correct.

Mr. Lakha, who appeared for the appellant company, claimed that the proper date is the date when permission is given by the Minister under the Exchange Control Act (Cap. 113) for the payment of the money due. It is common ground that such permission is necessary, as the respondents are persons resident outside the scheduled territories. In the alternative, Mr. Lakha claimed that 2 April 1971, should be the date for conversion, as the date when the award became enforceable in Kenya.

Mr. Lakha's main proposition was that as the appellant company could not lawfully pay the respondents in sterling until permission was given, they were not in breach. He relied heavily on the decision of the Court of Appeal in England in the case of *Cummings v. London Bullion Co*., [1952] 1 All E.R. 383. That decision is not, of course, binding on us, but is one that we must treat with great respect, since our Exchange Control Act was based on, and closely follows, the English Act. That was a case in which a dollar debt was contracted in London. At the time of the contract, both parties were aware of the need for exchange control permission and in fact permission was obtained after only a short delay. The court held that s. 33 (1) of the Exchange Control Act 1947 (which is virtually identical with s. 35 (1) of the Kenya Act) meant that there had to be read into the contract a term that payment was not to be made except in so far as permission was given and accordingly decided that it was on the day permission was given that the debtor became under a duty to pay.

The learned judge held that *Cummings*' case was easily distinguishable from the present case and, with respect, I think he was right. The essential difference is that *Cummings*' case was concerned with the interpretation of a contract, so as to determine what was the contractual date for payment, and this necessitated taking into account a statutory provision which introduced an implied term into the contract. In the present case, we are not directly concerned with a contract but with an award of arbitration and we are not concerned with the date for payment under a contract but with the date for payment of the amount awarded in an arbitration. There is, so far as I am aware, nothing in the Exchange Control Act that directly affects this question: the Act regulates the payment of the sum due but not its calculation.

The general rule is that where a debt has to be converted from one currency to another, the conversion is calculated at the date when the debt became due (see, inter alia, *Life Insurance Corporation of India v. Valji*, [1968] E.A. 225). Consistently with that general rule, it is provided in the Foreign Judgments Enforcement Act (Cap. 43), s. 12 (3), that where a foreign judgment is expressed in a foreign currency, it is to be registered as a judgment for a sum expressed in Kenya currency converted at the rate prevailing at the date when the judgment was given. In the present case, the judge thought that in the absence of any express provision, it would be logical to apply the same rule to foreign awards of arbitration. Again, with respect, I entirely agree. The amount awarded became due and payable immediately after the delivery of the award and in my opinion that is the moment as at which the conversion should be made.

It has more than once been said that currency changes confer a fortuitous

benefit on one party or a fortuitous loss on the other. In such circumstances, it is essential in my view, to have a single, known rule to apply. It is always open to contracting parties, if they wish, to anticipate changes in currency rates, as for example by inserting a "gold value clause" in their contracts.

I can see no justification for treating a foreign award in arbitration any differently from a foreign judgment, or, indeed, from a claim in contract, or for breach of contract, or in tort. The *Cummings*' case is based on the same principle, that the amount payable was to be converted as on the day it became due: the decision was not a departure from that principle but an endorsement of it.

I would dismiss this appeal, with costs.

**Sir William Duffus P:** I agree with the judgment of the Vice-President and as Law, J.A. also agrees, the appeal is dismissed with costs.

**Law JA:** I have had the advantage of reading in draft the judgment prepared by the Vice-President. I agree with it in all respects and do not feel that I can usefully add to it.

*Appeal dismissed.*

For the appellant:
*A. A. Lakha* (instructed by *Atkinson Cleasby & Satchu*, Mombasa)

For the *respondents*:
*R. N. Sampson* (instructed by *Archer & Wilcock*, Nairobi)

## Sanga v Baya
[1973] 1 EA 312 (CAM)

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|---|---|
| **Division:** | Court of Appeal at Mombasa |
| **Date of judgment:** | 15 May 1973 |
| **Case Number:** | 61/1972 (70/73) |
| **Before:** | Spry VP, Law and Mustafa JJA |
| **Sourced by:** | LawAfrica |
| **Appeal from:** | The High Court of Kenya – Simpson, J. |

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*[1] Appeal – Jurisdiction – Third appeal – No third appeal to Court of Appeal – Civil Procedure Act* (*Cap.* 5) (1948) *s.* 72 (*K.*).

*[2] Statute – Construction – Marginal note – Altered by legislature – Overrides clear words of section – Civil Procedure Act* (*Cap.* 5) (1948), *s.* 72 (*K.*).

**Editor's Summary**

The appellant filed an appeal to the Court of Appeal in a case which originated in a district magistrate's court which appeal was therefore a third appeal.

On the question of whether the court had jurisdiction to hear a third appeal the appellant argued that the clear words of the section gave an appeal from every decree passed in appeal by the High Court. For the respondent it was argued that the legislature had intended to restrict the right of appeal to second appeals when it amended the marginal note of the section to read “Second appeal from the High Court”.

**Held** –

(i) the amended marginal note was the latest expression of the legislature’s intention and must take precedence over the clear words of the section.

Appeal struck out as incompetent.

**Case referred to in judgment:**

(1) *Sheikh Noordin Gulmohamed v. Sheikh Bros.* (1951), 18 E.A.C.A. 42.

**Judgment**

The ex parte judgment of the court was delivered by **Spry VP:** These proceedings began in the district magistrate's court at Kaloleni. They went on appeal to the court of the resident magistrate at Mombasa and then to the High Court. The appellant (the original plaintiff) now seeks to appeal to this court.

Before the hearing, we notified the advocates for the parties that we should require to be satisfied that we had jurisdiction to entertain the appeal. The point is a simple one, although one not easy to resolve. S. 72 of the Civil Procedure Act provides that, save as otherwise expressly provided and subject to certain conditions "an appeal shall lie to the Court of Appeal from every decree passed in appeal by the High Court". The section has, however, a marginal note, which reads "Second appeal from the High Court". The question is, whether this marginal note governs the section, so as to restrict it to second appeals.

In the ordinary way, we only look to marginal notes to explain a section where there is some ambiguity in the wording of the section, and if the wording of a section is unambiguous we apply it without regard to the marginal note. The position here is, however, unusual because the Act was amended by the Statute Law (Miscellaneous Amendments) Act 1969 which, inter alia, amended the marginal note to s. 72 while leaving the section itself unchanged. The note had previously merely read "Second appeals". The importance of this is, as we see it, that since the legislature specifically applied itself to the marginal note, that note must be regarded as the latest expression of the Legislature's intention. On this basis, it would seem that the section was intended to create a right of second appeal but not a right of third appeal.

Mr. Bryson, who appeared for the respondent, urged us to look at the pattern of the Civil Procedure Act in relation to appeals, as it now stands after the 1969 amendments, and this approach, we think, confirms that there is no right of third appeal. There are five headings in Part VII of the Act, which relates to appeals. These are:

> APPEALS FROM ORIGINAL DECREES
>
> APPEALS FROM APPELLATE DECREES OF A SUBORDINATE COURT
>
> APPEALS FROM APPELLATE DECREES OF THE HIGH COURT
>
> APPEALS FROM ORDERS
>
> GENERAL PROVISIONS RELATING TO APPEALS.

Under the second of these headings, there is a single section numbered 71A. This provides for appeals to the High Court from decrees passed by subordinate courts of the first class on appeals from subordinate courts of the third class, and it bears the marginal note "Second appeal from subordinate court". Here, the section itself clearly relates only to second appeals and accords with the marginal note. In inserting a corresponding marginal note against s. 72, it would appear that the legislature intended that section to relate only to second appeals. Moreover, ss 79D and 79E restrict second appeals to the High Court, the former expressly referring to s. 72, and in both there are references to second appeals in the sections themselves, as well as in the marginal notes. Reading these provisions as a whole, we think the legislature had only second appeals in mind.

It is well established that, subject to certain limited exceptions, the right of appeal to this court must be created by statute. Mr. Gautama, for the appellant, sought to rely on the decision in the case of *Sheikh Noordin Gulmohamed v. Sheikh Bros.* (1951), 18 E.A.C.A. 42, in which Lockhart-Smith, J.A. said:

> ". . . it must, in my opinion, now be regarded as well settled that once a matter has arrived at an established court by way of appeal, the ordinary legislation dealing with further appeals from that Court must be held to apply, unless excluded by special legislation . . ."

With respect, we do not think that passage assists him, because there is no "ordinary legislation" relating to third appeals in Kenya.

In our opinion, we have no jurisdiction to hear this appeal and it is accordingly struck out as incompetent.

As regards costs, the question of jurisdiction was raised by this Court. No notice of objection was ever filed although notice of appeal was given as long ago as 2 August 1972, and the appeal actually came on for hearing on 12 February 1973, when it was adjourned by consent. In these circumstances, we think the fairest course would be to make no order as to costs.

*Order accordingly.*

For the appellant:
*S. C. Gautama* and *A. Y. A. Jiwaji*

For the *respondent*:
*J. E. L. Bryson* and *S. G. Magan* (instructed by *Anjarwalla*, *Abdulhusein & Co*. Mombasa)

## U Ltd v Income Tax
[1973] 1 EA 314 (HCK)

| | |
|---|---|
| **Division:** | High Court of Kenya at Nairobi |
| **Date of judgment:** | 13 June 1973 |
| **Case Number:** | 110/1972 (72/73) |
| **Before:** | Harris J |
| **Sourced by:** | LawAfrica |

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*[1] Income Tax – Deduction – Investment allowance – Machinery – Industrial machinery installed in industrial building in years after erection of building and installation of first machinery – Deduction allowable – East African Income Tax Management Act* (*Cap.* 24), *Sched.* 2, *para* 27.

**Editor's Summary**

The taxpayer erected a factory and installed the main part of its machinery in 1967. In the following three years more machinery was installed.

The respondent refused investment allowance in respect of the subsequently installed machinery, contending that all that was allowed was a single allowance in one year of income in which premises are erected and machinery installed, no further deduction being claimable for additional machinery installed in later years.

For the taxpayer it was contended that the deduction is allowable for the year of income in which

the building or extension or machinery is first used, and that the words are used disjunctively.

**Held** – provided the building was constructed and the machinery installed for the purposes of the same industry a deduction may be claimed in respect of machinery purchased and installed in a year of income subsequent to that in which the building was constructed and not withstanding that a deduction has already been allowed.

Appeal allowed.

**Cases referred to in judgment:**

(1) *P. Ltd. v. Income Tax*, [1969] E.A. 531.

(2) *Income Tax v. B. Ltd*., [1973] E.A. 322.

**Judgment**

**Harris J:** The appellant company owns and operates factory premises in Nakuru in which it manufactures dry cell batteries for sale commercially. The factory was erected and the main part of the machinery installed in the year 1967, the cost of the building being some £113,000 and that of the machinery £207,000. Provision was made in the design of the building for the subsequent installation of further machinery if and when the trade expanded. Production began in 1968 and in that same year additional machinery was installed at a cost of £4,000. In 1969 yet more machinery, costing nearly £5,000, was installed and brought into production.

In 1970 further machinery costing Shs. 25,177/- (to which I will refer as "the 1970 machinery") was purchased and installed and came into use in the same year. Again in 1971 additional machinery (to which I will refer as "the 1971 machinery") was installed at a cost of Shs. 1,545,439/- and came into use in that year. All this machinery was installed in the original building erected in the year 1967.

An investment deduction of 20 per cent was allowed by the respondent in respect of the original building for the year of income 1968 and a similar deduction was allowed in respect of the several items of machinery for each respective year of income in which they were acquired, the deduction for the year of income 1970 being Shs. 5,020/- and that for 1971 being Shs. 309,088/-.

In 1972 the respondent notified the company that the deduction already allowed in respect of the years of income 1970 and 1971 would be disallowed and he issued additional assessment therefor charging the company with tax amounting to Shs. 2,008/- and Shs. 123,532/- upon the said sums of Shs. 5,020/- and Shs. 309,088/- respectively, thereby disallowing the investment deductions previously granted for the machinery in respect of the years of income 1970 and 1971. Against these two additional assessments the company now appeals and the appeals, by consent, have been consolidated.

The company contends that, having incurred in the year of income 1970 the expense of installing the 1970 machinery and having first used it in that year, the respondent was incorrect in disallowing the deduction originally allowed by him. The company likewise contends that, having in the year of income 1971 incurred the expense of installing the 1971 machinery and having first used it in that year, the respondent was incorrect in disallowing the deduction originally allowed for that year of income.

The respondent submits that on a proper construction of the legislation the investment deduction is intended to constitute a "once and for all" exercise so that while deductions may be made for the year of income in which premises are erected and fitted with machinery in respect of both the cost of erection of the building and the cost of installation of the machinery, no further deduction can be claimed for additional machinery installed in this same building during a subsequent year of income.

The position is governed by Part V of the Second Schedule to the East African Income Tax Management Act (Cap. 24). By s. 13 (2) of the Act it is provided that in computing the gains or profits for any year of income chargeable to tax under s. 3 (*a*) there shall be deducted inter alia any deductions to be made under the Second Schedule to the Act in respect of such year of income.

Among the deductions covered by that Schedule are the "investment deductions" arising under paragraph 27 forming portion of Part V. This paragraph, so far as material, is in the following terms:

"27. Subject to this Schedule, where –

(*a*) a resident person carrying on the business of a shipowner incurs capital expenditure to which this Schedule applies on both the purchase and before it is used for any purpose, the subsequent refitting for the purposes of such business, of any power-driven ship of more than 495 tons gross, where the expenditure on such refitting represents not less than 25 per cent of the total capital expenditure so incurred; or

(*b*) a person incurs capital expenditure to which this Schedule applies on the construction of an industrial building where such construction commenced after the 11th June, 1963, and which is used by him or by a lessee for the purposes of a trade which consists in the manufacture of goods or materials or the subjection of goods or materials of local origin to any process and on the purchase and installation of machinery in such building for the purposes of such trade; or

(*c*) a person, being a lessee of such a building as is referred to in sub-paragraph (*b*) of this paragraph incurs capital expenditure to which this Schedule applies on the purchase and installation of machinery in such building for the purposes of a trade which consists in the manufacture of goods or materials or the subjection of goods or materials of local origin to any process; or

(*d*) a person incurs capital expenditure to which this Schedule applies on –

(i) the construction or extension of a building subsequently in use as an hotel, where such construction or extension commenced after the 16th June 1964, and such building or extension is certified as an industrial building under item (*c*) of subparagraph (1) of paragraph 5 of this Schedule; or

(ii) . . .

(*e*) . . .

there shall be deducted in computing his gains or profits for the year of income in which the ship or building or extension or machinery is first so used, a deduction (referred to as an investment deduction) equal:

(i) in the case of capital expenditure upon such a ship to forty per cent of such expenditure;

(ii) in the case of capital expenditure to which paragraphs (*b*), (*c*), (*d*) or (*e*) apply, to twenty per cent of such expenditure."

Both counsel invited me to look at the scheme behind these provisions and agreed that the intention is to foster the growth of local manufacturing industries in this country. Counsel for the company, however, suggested that the aim is to enable a manufacturer starting up a new business and who has erected his factory and commenced the manufacture or processing of goods of the class referred to in the paragraph to claim a deduction not only for the year in which he erects the building, buys and installs the machinery and first goes into production but for any subsequent year in which he instals further machinery in the then existing building. This, it was suggested, would have the effect of enabling him to begin in a small way with limited capital resources and to defer the full development of the project until it can be seen whether it is likely to be successful. Counsel for the respondent on the other hand put forward the contention that this course would give the developer much more relief than had been intended and that a deduction in respect of either a building or machinery could be claimed only in respect of the year of income in which production first started so that no relief could be claimed for further machinery subsequently installed in the same building.

Insofar as so scanty a survey of the possible politico-economic motive behind the legislation allows I would incline to favour the company's viewpoint as otherwise the intention must have been to tempt prospective investors either to commence with the erection of a large factory of immediate uneconomic proportions before output has even started or to build and fit up with machinery a succession of small self-contained factories or workshops, becoming entitled to an investment deduction for each, rather than to adopt the more economical method of erecting in the first instance a single large building and bringing it into full production by the installation of additional machinery as required.

I do not propose, however, to rest my decision on so speculative an approach. Part V of the Second Schedule to the Act contemplates several types of investment in regard to which it is appropriate to allow a deduction for capital outlay, and provides that in each of them the taxpayer shall be entitled to have deducted in computing his gains or profits "for the year of income in which the ship or building or extension or machinery is first so used" the appropriate investment deduction.

These words "ship", "building", "extension", and "machinery", in my opinion, are clearly used disjunctively, and this suggests that the references in sub-paragraph (*b*) to the construction of the building and to the purchase and installation of machinery are to be construed independently of each other. This interpretation would seem to be supported by the multiple use of the word "on" where the sub-paragraph mentions the incurring of capital expenditure "*on* the construction of an industrial building . . . and *on* the purchase and installation of machinery".

The court has referred to the recent decision of Chanan Singh, J. in *Income Tax v. B. Ltd*., [1973] E.A. 322, judgment in which had been reserved at the date of the hearing before me but has since been delivered. In that case the respondents had constructed a building at the site of their factory but instead of installing machinery in it they used it merely as a store and unsuccessfully claimed relief by way of an investment deduction in respect of the cost of the building under paragraph 27 (*b*) of the Second Schedule. In the course of his judgment the judge referred to the fact that the building, being used merely as a store, had not become an "industrial building". This term as used in the Schedule is defined in paragraph 5 and there is no doubt that the view of the judge is correct, with the result that that case is clearly distinguishable from the present. Furthermore, although Chanan Singh, J. in the course of his judgment said that before such a deduction can be claimed there must have been expenditure on both the construction of the building and the purchase and installation of the machinery, nowhere does he suggest that these two items of expenditure must have been incurred in the same year of income.

Several decisions, none of them exactly on the point and most of them unreported, were referred to in the argument but the only case which I find of assistance is that of *P. Ltd. v. Income Tax*, [1969] E.A. 531, where Trevelyan, J. rightly stresses the importance to be attached to the use disjunctively of the word "or" among the words "ship or building or extension or machinery" in paragraph 27.

Although the matter is not as clear as might be desired I am of the opinion and so hold that on the true interpretation of paragraph 27 (*b*) of the Second Schedule the construction of the industrial building and the purchase and installation of machinery in such building, provided that the building was constructed and the machinery purchased and installed for the purposes of the same trade, need not necessarily take place within the same year of income and that an investment deduction may be claimed for machinery purchased and installed in a year of income subsequent to that in which the construction of

the building was completed and notwithstanding that a deduction has already been allowed in respect of the building. It follows therefore that appropriate deductions must be allowed as claimed in respect of both the 1970 machinery and the 1971 machinery and the two additional assessments set aside.

At the opening of the case for the respondent Mr. Khaminwa formally raised as a preliminary objection a matter concerning the statement of the respective grounds of the appeal as set out in the two memoranda of appeal which he said lacked particularity, pointing out, however, that he was not pressing the objection and was raising it merely to obtain the view of the Court upon the matter. The material portion of each memorandum of appeal is as follows:

> "The Appellant above named, being aggrieved by the Notice dated 13th July, 1972, issued by the Respondent under the provisions of Section 100 (3) of the East African Income Tax Management Act (hereinafter referred to as 'the Act') in relation to Assessment number . . . for the year of income . . . appeals to this Honourable Court against the said Assessment upon the grounds that:
>
> 1. The said Assessment is wrong in law in that the Appellant is not liable to the charge of tax in the manner assessed or at all.
>
> 2. The income herein sought to be assessed comprises amounts which the Appellant is entitled to have deducted from its total income by virtue of Section 12 (2) (*c*) of the Act, read in conjunction with Paragraph 27 (1) (*b*) in Part V of the Second Schedule to the Act, being 20 per cent of capital expenditure on the purchase and installation of machinery in an industrial building owned and constructed by the Appellant which building and machinery are used for the purpose of a trade which consists in the manufacture of goods."

The Income Tax (Appeal to the Kenya High Court) Rules provide, in rule 4, that a memorandum of appeal "shall set forth concisely under distinct heads the grounds of appeal without any argument or narrative; and such grounds shall be numbered successively".

Mr. Khaminwa contended that the grounds as set out in the appellant's memoranda, although clear enough to him, would not be clear to a person unfamiliar with income tax law and practice and that they did not comply with the requirements of rule 4. The first ground of appeal, he argued, means nothing and the second ground lacks particularity inasmuch as the actual figure of the assessment is not shewn.

To this there are several answers. In the first place it is not to be supposed that the Commissioner-General, as respondent to a tax appeal, would entrust to a person unfamiliar with income tax law and practice the task of representing him at the hearing in this Court.

Secondly, as to the first ground of appeal, the meaning of this is in my view quite clear, for the appeal is against the entire assessment, the whole of which is challenged as being wrong in law, and, in the appellant's submission, no charge to tax arises in the manner assessed in that assessment or at all. As to the suggestion that the actual figure of the assessment should have been given, while no harm would be done in giving the figure, the assessment in dispute is sufficiently identified in the memorandum of appeal by its number and the year of income to which its relates, leaving no room for doubt or uncertainty in the mind of the respondent. Again, as the entire amount assessed is challenged there is no need specifically to mention the sum involved, as would be the case if part only of the assessed amount was under dispute.

Thirdly it must be remembered that the rules provide that every memorandum

of appeal in a tax case shall be accompanied by a statement, signed by the appellant or his advocate, setting out the facts upon which the appeal is based. No such provision is to be found in regard to appeals in other civil matters where it may be necessary in a memorandum of appeal to set out facts relevant to the appeal in much greater detail than is necessary in tax appeals. In the present case the required statement of facts was duly filed, setting out fully all material figures, so that there was no possibility of the respondent being left in any doubt as to the matter in issue.

In my opinion each of the memoranda of appeal is adequate to meet the circumstances and fully complies with the requirements of the law and therefore the preliminary objection is unsustainable.

For the reasons which I have stated the appeals are allowed with costs.

*Order accordingly.*

For the appellant:
*W. S. Deverell* (instructed by *Kaplan & Stratton* Nairobi)

For the respondent:
*J. M. Khaminwa* (Deputy Counsel to the Community) and *N. Rweyenana* (Assistant Counsel)

## Maina v Nairobi Liquor Licensing Court
[1973] 1 EA 319 (HCK)

| | |
|---|---|
| **Division:** | High Court of Kenya at Nairobi |
| **Date of judgment:** | 9 March 1973 |
| **Case Number:** | 20/1972 (73/73) |
| **Before:** | Madan J |
| **Sourced by:** | LawAfrica |

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*[1] Licensing – Liquor licensing – Cancellation of licence –* 30 *days notice by registered post forwarding exact copy of police report – All requirements essential – Liquor Licensing Act* (*Cap.* 121), *s.* 39 (*K.*).

**Editor's Summary**

A report was made to the liquor licensing court which forwarded to the licensee a copy stating that it had been made by the Assistant Commissioner of Police and stating that it would be considered in a fortnight's time. On that date the appellant's liquor licence was ordered to be taken away from him.

On appeal it was argued that the report had not been sent by registered post, thirty days notice of the meeting had not been given and the report was not shown to be that of a police officer, not below the rank of assistant inspector.

**Held –**

(i) the notice must be sent by registered post;

(ii) thirty days notice of the meeting must be given;

(iii) an exact copy of the report must be sent to the licensee;

(iv) that the licensee appeared before the court was irrelevant.

Appeal allowed.

**No cases referred to in judgment.**

**Judgment**

**Madan J:** This is an appeal against the decision of the Nairobi Liquor Licensing Court cancelling the appellant's on-licence in respect of premises situated in Nairobi.

Upon receipt of a report from the police under s. 38 of Liquor Licensing Act that an employee of the appellant was convicted of permitting consumption

of Liquor after closing hours, contrary to s. 34 (1) of the Liquor Licensing Act the President of the court, pursuant to provisions of s. 39 (1) (*a*), on 28 January 1972, sent a copy of the report to the appellant informing him at the same time that it had been made to him by the Assistant Commissioner of Police, Nairobi Area, and it would be considered by Nairobi Liquor Licensing Court at its meeting to be held on 14 February 1972.

The appellant appeared before the court on the appointed day. On 25 February 1972, the President of the court addressed a further letter to the appellant referring to a letter dated 26 February 1972, which was no doubt a slip and reference must be intended to letter dated 28 January 1972. The President informed the appellant that after considering the representations made by him insofar as the police report is concerned the court decided to cancel the appellant's liquor licence. The appellant was given 2 months or 60 days from 15 February 1972 expiring on 15 April 1972 in which to clear the liquor stock from his premises.

S. 39 (1) (*a*) provides that upon receipt of a report under s. 38 the president of a licensing court shall send, by registered post, a copy of the report to the licensee concerned therewith, informing him that at a meeting of the licensing court to be held on a date to be specified, but not less than thirty days therefrom, the report will be considered by the Court.

By s. 38 (1) "it shall be the duty of any police officer not below the rank of assistant inspector to report in writing to the president of the appropriate licensing court every case in which a licensee is of drunken habits or keeps a disorderly house, or commits any breach of any of the provisions of this Act or of his licence."

In this instance there is no evidence that a copy of the report was sent to the licensee by registered post. There is also no evidence that what is appended to the president's letter dated 28 January 1972 is an exact copy of the report made by the police about the licensee.

The report which was appended to the president's letter and sent to the appellant was as follows:

*POLICE REPORT*

Name: James Maina T/A: Matumbo Bar and Restaurant.

Date: 20.8.71.

Charged with: Permitting consumption of liquor after closing hours, contrary to Section 34 (1) of the Liquor Licensing Act Cap. 121 Laws of Kenya.

Date of hearing: 20.8.71.

Court: S.R.M's Court, Nairobi.

Results: Fined Shs. 400/-.

References: P.C.R. No. 2260/.

Court: F/No. 102/71.

In my opinion s. 39 (1) (*a*) requires the president of a liquor licensing court to send to a licensee against whom a report is made by the police an exact copy of the original report made by the police and not an extract or synopsis of the criminal case against the licensee. It would not surprise me that what was sent to the appellant was a copy of the charge sheet in the Criminal case filed against him. It is imperative to do this to enable the licensee to check whether the report is made by a police officer not below the rank of assistant inspector. If it is not so made and he is kept in the dark it might deprive him

of a statutory defence. The present method followed by the president of the Nairobi Liquor Licensing Court falls short of the statutory requirement. This court is unable to say that the report against the appellant was made by a police officer not below the rank of assistant inspector. The statement in the president's letter that the report is made by the Assistant Commissioner of Police could only mean an administrative act by that officer. It is hardly likely that the Assistant Commissioner himself personally goes round in Nairobi Area checking the conduct of licensees.

Counsel for the respondent said it matters not that the appellant was not notified of the report by registered post inasmuch as he appeared before the court on the appointed day. I think it does matter. A report made against a licensee may result in cancellation of his liquor licence as indeed it did in the present case which could deprive the appellant of the means of making his livelihood.

An individual has the fundamental right to work and make his livelihood. This court always zealously guards citizens' fundamental rights. Any administrative or executive act which impinges on that right in consequence of some provision in a statute the result of which is or could be punitive insofar as the individual is concerned must be performed strictly in terms of the provisions of the statute. That must be the intention of Parliament otherwise it would not have enacted such elaborate machinery for cancellation of a liquor licence.

It is possible that in the instant case in view of what actually transpired there was not much or any prejudice caused to the appellant. Nevertheless because the mandatory provisions of the statute were not observed, the decision of the licensing court cannot be allowed to stand. It could become the thin end of an administrative wedge destructive of provisions in the statute which are protective of licensees.

The appeal is allowed with costs. The decision of the liquor licensing court is quashed and set aside. The appellant's liquor licence should be restored to him.

*Order accordingly.*

For the appellant:
*S. M. Otieno*

For the respondent:
*T. Mbaluto* (State Counsel)

## Income Tax v B Ltd
[1973] 1 EA 322 (HCK)

| | |
|---|---|
| **Division:** | High Court of Kenya at Nairobi |
| **Date of judgment:** | 17 May 1973 |
| **Case Number:** | 25/1972 (74/73) |
| **Before:** | Chanan Singh J |
| **Sourced by:** | LawAfrica |

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*[1] Income Tax – Deduction – Investment allowance – Building – Industrial building must contain machinery before deduction allowed – East African Income Tax Management Act* (*Cap.* 24), *Sched.* 2,

*para.* 27.

**Editor's Summary**

The taxpayer claimed an investment allowance in respect of industrial buildings. The buildings were used as stores and had no machinery in them.

The appellant contended that there must be machinery in a building before it qualifies as an industrial building.

**Held** – a deduction is given for an industrial building and machinery in such building: both are required before the deduction can be claimed.

Appeal allowed.

**No cases referred to in judgment.**

**Judgment**

**Chanan Singh J:** These appeals, which were consolidated and heard together, involve a simple point whether buildings erected by an industrial concern entitle the taxpayer to an investment deduction under paragraph 27 (*c*) of Second Schedule to the East African Income Tax Management Act although no machinery is installed in such buildings. The paragraph in question at the relevant time read as follows:

> "27. Subject to this Schedule, where:
>
> (*c*) a person incurs capital expenditure to which this Schedule applies on the construction of an industrial building where such construction commenced after the 11th June, 1963, and which is used by him or by a lessee for the purposes of a trade which consists in the manufacture of goods or materials or the subjection of goods or materials of local origin to any process and on the purchase and installation of machinery in such building for the purposes of such trade."

In this paragraph, the first expression that strikes one is "industrial building". The New National Dictionary (Collins, 1962) defines the word "industrial" as "pertaining to industry or manufacture". Such building must be used for the purposes of "a trade" which consists in the "manufacture" of goods or in the subjection of goods to "any process".

This seems to suggest the paragraph applies only to "industrial" buildings where goods are "manufactured" or "processed". Mere storage would not qualify for deduction. There is no dispute about the purpose to which the two buildings in the present case are put. The appellant's statements of facts describe one building as a "Hides Godown" and the other as a "Raw Materials store".

Now, let us look at the whole paragraph. I set down below the bare bones of the paragraph leaving out parts which are not immediately relevant.

> "27. . . . where
>
> (*a*) a person incurs capital expenditure . . . on the construction of an industrial building . . . and on the purchase and installation of machinery in such building
>
> there shall be deducted in computing his gains or profits . . . a deduction . . . equal . . . to twenty per cent of such expenditure."

Thus, the capital expenditure to qualify for deduction must be incurred "on . . . building . . . and on machinery". The conjunctive "and" has to be given a meaning and the only meaning in my opinion is that machinery must be purchased and installed before deduction can be claimed. Machinery will make the structure an "industrial building" and will enable "manufacture" or "processing" of goods or materials to be carried on.

That in my view was the clearest intention of the legislature.

In the result, I allow both appeals, set aside the decisions of the Local Committee, and confirm the assessments.

The appellant will have the costs of the appeals.

*Order accordingly.*

For the appellant:
*J. M. Khaminwa* (Deputy Counsel to the Community)

For the respondent:
*W. S. Deverell* (instructed by *Kaplan & Stratton*, Nairobi)

## Yusuf v Tunda
[1973] 1 EA 323 (HCT)

| | |
|---|---|
| **Division:** | High Court of Tanzania |
| **Date of judgment:** | 29 January 1973 |
| **Case Number:** | 78/1969 (78/73) |
| **Before:** | Mwakasendo AgJ |
| **Sourced by:** | LawAfrica |

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*[1] Islamic Law – Gift – Essentials of – Intention of donor, acceptance by recipient, taking of subject-matter.*

**Editor's Summary**

The appellant appealed against an order giving a house to the respondent on the ground that it had been validly given to her by the deceased in her lifetime.

The appellant claimed to inherit the house under Islamic law.

**Held –**

(i) a gift is valid by Islamic law where:

(*a*) there is a manifestation of the wish to give on the part of the donor, and

(*b*) an acceptance by the recipient, and

(*c*) a taking of the subject-matter except where it is between persons in the same house or between husband and wife or parent and child;

(ii) the donor did not apprehend her own death at the time of the gift;

(iii) on the facts, a valid gift had been established.

Appeal dismissed.

**Case referred to in judgment:**

(1) *Ameeroonissay v. Abedoonisa* (1875), 15 Bengal L.R. 67.

**Judgment**

**Mwakasendo Ag J:** The appellant in this case is the widower of Halima binti Senga (referred to hereinafter as "the deceased") and the respondent claims to be her granddaughter, a claim apparently admitted by the appellant.

The deceased owned a house at No. 51 Kipata Street, Dar es Salaam and it would appear that she lived in one part of this house and rented the other to tenants.

The dispute in this case is about the ownership of this house. The respondent's case was that she is the owner of the house because the deceased had, before her death, made a gift of the house to her.

[The judge considered the evidence and continued]

For all these reasons, therefore, I hold that the deceased, before her death, manifested a clear intention to give away her house to her granddaughter who, as already observed, accepted the gift before the Area Secretary, Dar es Salaam District. But before I go on to discuss the validity of this gift, I will first of all consider the issue of the law applicable to these proceedings.

It is commonly admitted that the appellant, respondent and the deceased were all at the material time, professed moslems and as far as I can gather from the evidence, the appellant and the respondent still are moslems. Their way of life is that followed by moslems all over Tanzania. There can therefore be little doubt in my mind as to the appropriate law to be applied in the matter which must be Islamic law. It has, however, been argued by the counsel for the respondent, though I would hasten to add, not with much conviction, that the law that should be applied in this matter is the customary law of the community to which the parties belong. Counsel has not suggested what tribal community this is. I do not think it is necessary to go into any detailed discussion on counsel's submission on this point, as I am not persuaded that customary law has anything to do with the subject-matter of these proceedings. Nowhere in the entire checkered history of this case is there any evidence to indicate that the parties have ever considered themselves other than good African moslems. Consequently, I am unable to accept counsel's argument on this point and I hold that the law applicable to the matter under dispute is Islamic law.

Now, according to Islamic law a moslem (be he a man or a woman) may give away his property either in his lifetime or under a will. But while a person may freely dispose of the whole of his property during his lifetime, he may only do so to the extent of a third of his property under a will. Whatever mode of disposition he chooses, he must adhere to the rules laid down by law if his gift is to be held valid. There are three conditions for the validity of a gift under Islamic law and these are generally agreed to be:

(*a*) a manifestation of the wish to give on the part of the donor,

(*b*) the acceptance of the gift by the donee either impliedly or expressly, and

(*c*) the taking of the subject-matter of the gift by the donee either actually or constructively. It may here, be noted that under Islamic law, a gift of immovable property, such as the house in the present case, may be made without any recourse to any written document.

Earlier on in this judgment I have held that there was ample evidence on record indicating deceased's intention to give her house at No. 51 Kipata Street to her granddaughter. I have also held that the granddaughter did expressly accept this gift from her grandmother. It seems to me therefore, that the first and second essentials of a valid gift under Mohammedan Law are fulfilled. What now remains is to find out if the third condition is also complied with.

Counsel for the appellant, has most ably and in a clear and persuasive manner submitted that the gift in question is invalid on the ground that it does not comply with all the essentials of gifts under Mohammedan Law. In the alternative, he has argued that this is not an ordinary gift at all but a gift marz-ul-maut and as such gift it does not comply with the rules laid down for the validity of such gifts.

To take his second submission first, one main criticism of the judgment of the District Court which has been advanced by counsel for the appellant is that the district magistrate grossly misdirected himself in stating in such bold terms that there was no evidence placed before him to show that the deceased was in great pain before she died. To quote the specific paragraph of the judgment the district magistrate said:

> "There is no evidence that the deceased was in pain or that she was in imminent danger of dying".

With all due respect, I do not think this statement from the judgment of the District Court represents the true state of affairs as to the state of health of the deceased at the time of executing the transfer and after. True, the evidence before the court was on the whole sketchy and most unsatisfactory but even on the little evidence that one finds in the lower courts' records it is possible to ascertain the deceased's state of health before her death. The respondent in her evidence before the primary court described her grandmother's state of health thus:

> "The deed was attended (I believe here she means attested) on 28 November 1963. Deceased Halima Senga died on 10 December 1963. Deceased's legs and body pained her. Deceased during her last ten days was not able to leave her bed although she would turn from side to side. She was not very old."

In the course of this appeal, respondent, her mother, respondent's husband and the appellant have given additional evidence touching deceased's state of health during the last few weeks of her life. From this evidence it is, I think, possible to get a much clearer idea as to what deceased's health was during the last few months preceding her death. The evidence given by the witnesses I have just mentioned is, as I understand it, to the effect that the deceased was in poor health for a considerable time before her death. Her condition deteriorated so much so that in the last ten days of her life she was completely unable to attend to the call of nature unassisted. The question however that must be considered is whether at the time of the transfer of the house deceased was in proper control of her faculties and therefore capable of appreciating the nature and the consequences of what she was doing. Evidence adduced would clearly indicate that at the time of executing the deed of transfer the deceased was in full control of her faculties and knew perfectly well what she was doing. It will be recalled that at this time deceased's health was not as bad as it was to become in early December. And deceased though undoubtedly in poor health was able to get out of bed, say her prayers and do a few odd jobs about the house. However, counsel for the appellant has submitted that the evidence produced before the court is far from supporting the case of the respondent. According to him the evidence before the court discloses a clear case of marz-ul-maut.

What is and is not death-illness or marz-ul-maut, has been discussed at some length in "Outlines of Mohammedan Law" by Asaf A. A. Fyzee at section 79, p. 363. For an illness to constitute "marz-ul-maut" the following conditions must co-exist:

(*a*) the illness must cause the death of the deceased;

(*b*) the illness must cause apprehension of death in the mind of the deceased; and

(*c*) there must be some external indicia of serious illness.

But whether any illness is marz-ul-maut or not is purely a question of fact. And in determining this factual situation it is usual for the court, as the learned author of Fyzee's "Outlines of Mohammedan Law" suggests, to ask itself the following questions:

(*a*) Was the donor suffering at the time of the gift from a disease which was the immediate cause of his death?

(*b*) Was the disease of such a nature or character as to induce in the person suffering the belief that death would be caused thereby, or to engender in him the apprehension of death?

(*c*) Was the illness such as to incapacitate him from the pursuit of his ordinary avocations of standing up for prayers – a circumstance which might create in the mind of the sufferer an apprehension of death and so on?

On a proper analysis of the evidence in this case, I do not think that there can be any doubt as to the answers that must follow from these questions. The respondent and her mother have stated in their evidence that it was only in the last ten days that the deceased's illness became such as to incapacitate her from her ordinary avocations. She definitely then would not get out of bed to say her prayers. But at the material time, 28 November 1963, she was far from apprehending her own death. From whatever angle one looks at the evidence on record, I do not think he will find any facts to support the contention that deceased's illness was a death-illness or marz-ul-maut. I am therefore unable to accept counsel's submissions on the point and I accordingly hold that the gift was not a gift under marz-ul-maut.

Now, to come to counsel's first submission, I am satisfied that on this point too the appellant's objections to the gift must fail. Having held that the first two conditions of a valid gift under Islamic law were complied with, there could be only one ground of objection as to its validity which might have availed the appellant, that the gift had not been perfected by a transfer of the property. But I am satisfied that this objection has no foundation in fact and I proceed to give my reasons.

Although, as already stated, delivery of possession is an essential characteristic of the Islamic law of gifts, this is not an absolute rule, which permits no exception. The contrary is in fact the case. The following are some of the qualifications to the rule that possession must be handed over to the donee. The transfer of possession is not necessary where:

(*a*) the donor and donee reside in the same house;

(*b*) the gift is from the husband to the wife and vice versa;

(*c*) the father makes a gift to a son;

(*d*) the mother makes a gift to a son;

(*e*) a guardian makes a gift to a ward.

Does the present case fall within any of these exceptions to the rule? I think it does. The respondent in this case was brought up from childhood by the deceased and for all practical purposes the deceased was the "mother" of the respondent. Her case therefore falls within the fourth exception to the rule and as was held by the Privy Council in the case of *Ameeroonissay v. Abedoonisa* cited at p. 225 in Fyzee's Outlines of Mohammedan Law, "where there is, on the part of a father, mother or other guardian, a real and bona fide intention to make a gift, the law will be satisfied without change of possession, and will

presume the subsequent holding of the property to be on behalf of the donee". Were the law to hold otherwise in such cases one can but imagine the frightful complications that would arise in all cases where parents wished to make gifts to their married sons and daughters. Any law which does not recognise the special position in which children are placed in relation to their parents can only give rise to discontent and gross inequity. I do not think that is what Islamic law as understood by people in this country is meant to do. The reason for there being any exceptions to the rule at all, is that in all the five exceptional cases mentioned above there is a clear and intimate bond of trust between the donor and donee and once the donor has manifested a real and bona fide intention to make the gift, his bona fides need not be tested by actual delivery of possession of the gift. This must be so, as no parent would make known his intention to make a gift to his son or daughter unless he genuinely wanted that child to take the gift. In the instant case there can be no dispute that the deceased's intention was that the respondent should take her house after her death. And this intention remained with her until her death. There can therefore be no question in my mind but that respondent's subsequent taking of the property in question, was in full compliance with the deceased's own wish. Were she alive today, she would have approved the respondent's action whole-heartedly and I do not think this court would be entitled at this stage to dishonour her wishes by handing over the property to a person she never intended to benefit. In view of the foregoing, I hold that the deceased's gift of her house to the respondent is a valid gift. This appeal will accordingly be dismissed with costs in this court and in the courts below.

*Order accordingly.*

For the appellant:
*P. R. Dastur* (instructed by *Dastur & Co.*, Dar es Salaam)

For the respondent:
*S. M. A. Kitabwalla* (instructed by *S. M. A. Kitabwalla & Co.*, Dar es Salaam)

## Railways Corporation v Sefu
[1973] 1 EA 327 (HCT)

| | |
|---|---|
| **Division:** | High Court of Tanzania at Dar es Salaam |
| **Date of judgment:** | 15 September 1972 |
| **Case Number:** | 19/1971 (79/73) |
| **Before:** | Mwakasendo AgJ |
| **Sourced by:** | LawAfrica |

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*[1] Jurisdiction – Exclusion of jurisdiction of court – Dismissal of employee – Correctness of decision cannot be challenged – Public Service Act* 1962, *s.* 16 (*E.A.C.*).

**Editor's Summary**

After an enquiry by his superior officer as required by the regulations the respondent was dismissed by the East African Railways and Harbours Service Commission. The respondent did not appeal

against that decision but filed a suit for wrongful dismissal.

The magistrate assumed jurisdiction to hear the case and the appellant appealed contending that the jurisdiction of the court was ousted by the clear words of s. 16, Public Service Commission Act, 1962.

**Held –**

(i) no officer of the appellant exceeded his jurisdiction in dismissing the respondent;

(ii) the correctness of an order dismissing an employee of the appellant cannot be challenged in the courts (*Anisminic v. Foreign Compensation Commission* (4) followed).

Appeal allowed.

**Cases referred to in judgment:**

(1) *R. v. Nat. Bell Liquors Ltd.*, [1922] 21 A.C. 128; [1922] All E.R. Rep. 335.

(2) *R. v. Medical Appeal Tribunal, ex p. Gilmore*, [1957] 1 Q.B. 574; [1957] 1 All E.R. 796.

(3) *R. v. Governor of Brixton Prison, ex p. Armah*, [1968] A.C. 192; [1966] 3 All E.R. 177.

(4) *Anisminic v. Foreign Compensation Commission*, [1969] 2 A.C. 147; [1969] 1 All E.R. 208.

**Judgment**

**Mwakasendo Ag J:** The respondent in this case was first employed by the appellant Corporation as a foreman on 28 June 1950. In 1965 after attending several in-training courses, he was promoted to the post of Locomotive driver Grade NB. VA at a salary of £303 per annum. In August or September 1967 he was suspended from duty by his authorised officer on account of being found drunk on duty and on failing to give a satisfactory explanation of his conduct to his superiors, he was eventually dismissed from service by the Corporation. Although according to the regulations the respondent had a right to appeal against the dismissal, and he was clearly so informed of his right, for reasons best known to himself, he never availed himself of this opportunity and as far as can be gathered from the records, no appeal had been lodged against the corporation's decision to dismiss him at the time when he decided to challenge his dismissal by civil suit for wrongful dismissal.

One of the grounds of defence averred by the Corporation was that the district court was not seized of jurisdiction to inquire into the dismissal from service of the respondent by the Railways and Harbours Service Commission. True to his promise, the defendant, as soon as the hearing of the suit started, raised an objection founded upon absence of jurisdiction of the court to hear the case. In support of his submissions on this point, Mr. Bishota, for the defendant, cited the provisions of s. 16 of the Public Service Commission Act, 1962. S. 16 provides:

> "16. The question whether
>
> (*a*) any Commission has validly performed any function vested in it by this Act;
>
> (*b*) any member of a Commission or any other person or authority has validly performed any function of the Commission delegated to such member or other person or authority under this Act; or
>
> (*c*) any member of a Commission or any other person or authority has validly performed any other function in relation to the work of the Commission or in relation to any such function as is referred to in the preceding sub-paragraph, shall not be inquired into in any Court."

The Railways and Harbours Service Commission was constituted under s. 5 of the Public Service Act, 1962 thus:

> "5. The Commission established by Article 40 of the Constitution for the Railways and Harbours Administration shall be known as the Railways and Harbours Service Commission."

And its functions are set out in s. 13 of the same Act, which provides:

> "13(1) Subject to the provisions of this Act, power to appoint persons to hold or act in offices in that part of the public service consisting of the East African Railways and Harbours Administration (including power to make appointments on promotion and transfer and to confirm appointments), to exercise disciplinary control over persons holding or acting in such offices and to remove from office persons so appointed is hereby vested in the Railways and Harbours Service Commission.
>
> (2) The power to appoint a person to hold or act in the office of General Manager (including an appointment on promotion or transfer) is hereby vested in the Authority acting after consultation with the Railways and Harbours Service Commission and the Secretary General."

I have endeavoured to set out in full all these provisions of the Public Service Commission Act, 1962, because it is on the construction of these provisions that defendant's main objection to jurisdiction really rests. It was contended on plaintiff's behalf and the same arguments have been repeated here, that on a proper construction of the provisions of s. 16 of the Act the jurisdiction of the Court was not wholly ousted but in the words of the resident magistrate, "it was just limited". And it was further contended by the plaintiff, with reference to the provisions of s. 16 that the duty to decide whether any function vested in the Railways and Harbours Service Commission is validly performed was not that of the Commission but of the Courts. None too convincing a reason has been suggested for this contention but be that as it may, plaintiff's contentions on this point apparently found favour with the resident magistrate and received unreserved approval in his ruling.

I must at once confess my inability to comprehend fully the reasoning behind the resident magistrate's ruling. While he does make an attempt to refer to the operative words in s. 16 of the Public Service Act, 1962 – "the question of whether any commission has validly performed any function vested in it, shall not be inquired into in any court" – no attempt whatsoever is made to construe these words and to relate them to the objection by the defendant that the Court had no jurisdiction to inquire into the question of dismissal of the plaintiff. The resident magistrate's ruling on the point is fairly comprehensive and may conveniently be set out in full:

> "*Ruling*: Counsel for the defendant, Mr. Bishota has raised a preliminary point that this Court is not seized of jurisdiction to inquire into the question of determination of the Plaintiff as ordered by the Railway Service Commission. He submitted that under s. 16 the Public Service Commission Act, 1962 'the question of whether any commission has validly performed any function vested in it, shall not be inquired into in any Court'. He contended that, that expression ousts the jurisdiction of this Court.
>
> Mr. Dave for the plaintiff argued that this Court has jurisdiction to inquire whether the Commission has 'validly performed' its functions. He said that the Commission cannot be its own judge to see if its functions are *valid* at all. He contended that if that were to be the effect of the legislation then there is a clear denial of *natural justice*, which this Court is here to uphold.
>
> He further submitted that this Court is empowered in its inherent jurisdiction to adjudicate upon the matter where there has been a denial of natural justice to an individual.
>
> In reply Mr. Bishota pointed out that the question of denial of justice does not arise when the legislation in clear terms ousts the jurisdiction of the Court.

> It is a cannon rule of construction that any provision of law which imposes burdens on the private individual and restricts his rights of carrying on his lawful avocations must be *strictly interpreted and complied with before his right can be restricted*. Thus the question whether a statute precludes the jurisdiction of the Courts depends upon the words used and upon the clear construction to be placed upon those words: In Maxwell on the Interpretation of Statutes, 10th edn. I, we have the following comment: 'A statute is the will of a legislature and the fundamental rule of interpretation is that a statute is to be expounded according to the intent of them that made it. If the words of the statute are in themselves precise and unambiguous, no more is necessary than to expound those words in their natural and ordinary sense, the words themselves in such cases best declaring the intention of the legislature. If there is one rule of construction for statutes, *it is that you must not imply anything in them which is inconsistent with the words expressly used*'.
>
> On the principle enunciated above, the argument by Mr. Dave that this Court has jurisdiction to inquire whether the Commission 'validly' performed its functions is merited.
>
> It has been recognised for a long time past, that Courts are empowered to look into the question whether the tribunal in question has not stepped outside the field of operation entrusted to it. In *De Souza v. Tanga Town Council*, [1961] E.A. 386 the E.A.C.A. categorically stated that the Court may declare a tribunal's decision a nullity if: (1) the tribunal did not follow the procedure laid down by a statute on arriving at a decision (ii) breach of principles of natural justice (iii) if the actions were not done in good faith. Otherwise if none of these errors have not been committed, the Court cannot substitute its judgment for that of an authority which has exercised a discretionary power, as the tribunal is entitled to decide a question wrongly as it is to decide it rightly.
>
> Thus the Court's jurisdiction is just limited but not completely ousted. I will hear both sides so that I can have the records and the explanation as to the manner or procedures adopted in dismissing the plaintiff. That will be a record on the basis of which I shall decide if the tribunal went outside its 'functions' or violated the principles of natural justice etc. Then the purported decision of dismissal is no decision at all. It is a nullity.
>
> To the extent I have described above, I hold that this Court has inherent jurisdiction to entertain the suit."

The defendant has appealed against this ruling to this Court.

The only issue to be decided in this appeal is whether or not the Resident Magistrate's Court was right in assuming jurisdiction, for the reasons set out in the ruling, to inquire into the validity of plaintiff's dismissal from service by the East African Railways and Harbours Service Commission.

In the course of this appeal the court has had full opportunity to hear both counsel speak in support of their respective submissions. I must thank them for the ability and clarity of their arguments and I would be less than fair if I were not to put on record the court's debt to their industry and the many authorities that they have properly placed before the court.

It is, I think, a well established principle that no statute shall be so construed as to oust or restrict the jurisdiction of the Superior Courts, in the absence of clear and unambiguous language to that effect. Many modern statutes contain provisions which attempt to remove decisions of tribunals or Ministers from review by the Courts by making these decisions "final" or "conclusive".

The use of such words was fully discussed in the case of *R. v. Medical Appeal Tribunal ex p. Gilmore*, [1957] 1 Q.B. 574 at p. 583, Denning, L.J. (as he then was) said: "The remedy by certiorari is never to be taken away by statute except by the most clear and explicit words. The word 'final' is not enough. That only means 'without appeal'. It does not mean without recourse to certiorari. It makes the decision final on the facts, but not final on the law. Notwithstanding that the decision is by statute made 'final' certiorari can still issue for excess of jurisdiction or for error of law on the face of the record." And so have the Courts repeatedly held that they have an inherent jurisdiction to supervise the working of inferior courts or tribunals so that they may not act in excess of jurisdiction or without jurisdiction or contrary to law. But this admitted power of the superior Courts to supervise inferior courts or tribunals is necessarily limited. As Lord Sumner said of the Superior Court's supervisory jurisdiction in *R. v. Nat. Bell Liquors Ltd.*, [1922] 2 A.C. 128 at p. 156:

> "Its jurisdiction is to see that the inferior Court has not exceeded its own, and for that very reason it is bound not to interfere in what has been done within that jurisdiction, for in so doing it would itself, in turn, transgress the limits within which its own jurisdiction of supervision, not of review, is confined. That supervision goes to two points: one is the area of the inferior jurisdiction and the qualifications and conditions of its exercise; the other is the observance of the law in the course of its exercise."

A statute setting up a tribunal may of course, in clear and precise words, debar any inquiry that may be necessary to decide whether the tribunal has acted within its authority or jurisdiction. Such a provision would operate to debar contention that the tribunal while acting within its jurisdiction has come to wrong or erroneous conclusions. There would however, even in such a case, be no difficulty in pursuing, and in adducing evidence in support, of an allegation, for instance, that the members of the tribunal had never been appointed to act as such members or that those who had been appointed had by some irregular conduct disqualified themselves from membership of the tribunal. Further, it seems, there would be no difficulty in raising any matter that goes to the right or power of the tribunal to exercise the function or power vested upon it. What an ouster clause, such as it is claimed, is contained in s. 16 of the Public Service Commission Act, 1962 does, is to forbid any questioning of the correctness or validity of a decision or determination which it was within the area of jurisdiction of the tribunal to make. At this point it would, I think, be appropriate to quote from the speech of Lord Morris of Borth-y-Gest in the case of *Anisminic v. Foreign Compensation Commission*, [1969] 2 A.C. 147 at p. 182. He said:

> "If a tribunal while acting within its jurisdiction makes an error of law which it reveals on the face of its recorded determination, then the court, in the exercise of its supervisory function, may correct the error unless there is some provision preventing a review by a court of law. If a particular issue is left to a tribunal to decide, then even where it is shown (in cases where it is possible to show) that in deciding the issue left to it the tribunal has come to a wrong conclusion, that does not involve that the tribunal has gone outside its jurisdiction. It follows that if any errors of law are made in deciding matters which are left to a tribunal for its decision such errors will be errors within jurisdiction. If issues of law as well as of fact are referred to a tribunal for its determination, then its determination cannot be asserted to be wrong if Parliament has enacted that the determination is not to be called in question in any court of law."

Again at p. 183 the same judge observed in similar vein:

> "If therefore, a tribunal while within the area of its jurisdiction committed some error of law and if such error was made apparent in the determination itself (or, as it is often expressed, on the face of the record) then the superior court could correct that error unless it was forbidden to do so. It would be so forbidden if the determination was 'not to be called in question in any court of law'. If so forbidden it could not then even hear argument which suggested that error of law had been made. It could, however, still consider whether the determination was within 'the area of the inferior jurisdiction'."

Although the judgment of Lord Morris of Borth-y-Gest in the *Anisminic* case was one of the minority, there can be no doubt that his observations on the effect of "ouster jurisdiction clauses" are sound and correct and in my judgment, the same principles ought to apply in considering the present appeal.

It will be noted in the instant case, that no suggestion of irregularity either of conduct or procedure on the part of the Railways and Harbours Service Commission were alleged by the plaintiff in his plaint. He merely contented himself by making generalised allegations of wrongful dismissal, without more. He does not state how his dismissal was wrongful. He does not suggest that the Commission acted in contravention of any law or that it went against any of the procedures prescribed in the Second Schedule to the Act which the Commission is required to observe in the conduct of its business.

Examination of the record abundantly shows that the plaintiff would have had no ground to complain in this respect. In accordance with the regulations the plaintiff was informed soon after his suspension the reasons thereof. He was required, again in accordance with the regulations, to give satisfactory explanation of his conduct to his superiors within a given time. This he did but unfortunately his explanation was found inadequate and he was so informed. Thereafter the matter was referred to his superior officer at the Corporation's headquarters in Nairobi who instituted an inquiry of their own and who on being satisfied that plaintiff's conduct was of a very serious nature, to merit dismissal from the service, forwarded the results of their inquires to the Commission together with their comments. The Commission on considering this report reached the decision to dismiss the plaintiff from the service with loss of all benefits. The decision of the Commission was communicated to him and plaintiff has not denied this. Even at this stage it was open to him to appeal against the decision but the plaintiff never chose to avail himself of this opportunity even though as late as 19 November 1968 he was advised to appeal against the decision to the appropriate higher authority.

It would however appear that plaintiff's main grievance against his dismissal is that it was done or communicated to him by the District Mechanical Engineer and the letter of 6 December 1967 addressed to him by the District Mechanical Engineer, Dar es Salaam would clearly give this impression. However, any misapprehension created by this letter was or should have been removed by letter dated 23 January 1968 whereby the plaintiff was informed:

> "I regret to have to advise you that it has not been possible for me to deal with your allegations on the case for, all the facts of Mr. Sefu's case were referred to the Railways and Harbours Service Commission who considered the case and ordered the dismissal."

By 23 January 1968, therefore, the plaintiff should have had no doubts as to who had ordered his dismissal from the service and it was then open to him to lodge an appeal in the normal way. Even assuming that the decision to dismiss him from the service was that of his authorised officer, a decision later confirmed by

the Commission, there was nothing to stop him on 23 January 1968 to ask the Commission to review his case in accordance with reg. 59 of the East African Community Service Commission Regulations (which are in every respect similar to the East African Common Services Organisation Commissions Regulations) Reg. 59 provides:

> "59(1) Where any matter relating to disciplinary proceedings in respect of any officer has been referred to the Commission and the Commission has for the first time made a decision or order therein, the authorized officer or the officer in respect of whom the decision or order has been made may request the Commission to review its decision or order in such matter:
>
> Provided that the Commission shall not review such decision or order unless it receives new material facts which the Commission is satisfied might have affected its former decision or order and if adequate reasons for the non-disclosure of such facts at the earlier date are given.
>
> (2) Any application or request for the review by an officer in respect of whom a decision or order has been made by the Commission shall be submitted through the authorized officer together with such new material facts within six weeks of the date upon which the decision or order of the Commission is addressed to the officer. Only one such review shall be allowed."

In May 1969 the General Secretary of N.U.T.A. wrote to the Director-General of the Railways Corporation asking him to review Mr. Sefu's case under the provisions of reg. 59. However nothing came of this request as the General Secretary of N.U.T.A. had not complied with the procedure laid down in reg. 59. It was also the view of the Director-General that no new facts had come to light since the decision to dismiss Mr. Sefu had been taken in 1967 and therefore the question of review did not arise.

This then is the short summary of the facts leading to Mr. Sefu filing a plaint against the general manager of the East African Railways Corporation.

The question therefore, arises whether the courts of law can entertain such a suit, the purport of which is to question the validity of the decision taken by the East African Railways and Harbours Service Commission? On the principles aptly stated by Lord Morris of Borth-y-Gest in the *Anisminic* case, it would seem to me that the courts of this country are debarred from inquiring into the validity or otherwise of the decision to dismiss Mr. Sefu.

The clause in the statute ousting the jurisdiction of the courts is precise and couched in the most clear and unambiguous language possible. It says "the question whether any member of a Commission or any other person or authority has validly performed any function of the Commission delegated to such member or other person or authority under this Act, shall not be inquired into in any Court". By the provision of s. 13 and regs. 50 to 52 of the Public Service Commissions Act, 1962 (the Section and regulations of the Community Service Commission are in similar terms), it is abundantly clear that the power of disciplining and removing from office officers in receipt of a salary of less than £400 per annum has been delegated by the Commission to the Heads of Departments of the officer concerned. There can therefore be no doubt that when the District Mechanical Engineer instituted the investigation into Mr. Sefu's conduct in this case he was acting properly within his jurisdiction.

I have already indicated how this investigation was conducted and how eventually, it was decided that the respondent, Mr. Sefu, should be dismissed from his service. There is nothing throughout the course of the disciplinary proceedings to suggest that the authorised officer acted without or in excess of jurisdiction. That being so, his decision is one which the provisions of s. 16 of the Act say this Court of any Court shall not inquire into. Parliament for

reasons best known to itself has stated categorically and in a language which is both clear and unambiguous that where a Commission or any authorised officer has performed a duty or function which it is within his jurisdiction to perform or do in terms of the provisions of the Act, such a performance shall not be the subject of inquiry in any Court of law. That is what Parliament has decreed and it is not open to the courts to even hear arguments, as the resident magistrate did in this case, which suggests that the Commission or authorised officer might have been mistaken in its or his decision.

Even if it were alleged, as it might on occasion be, that the Commission or authorised officer misconstrued the provision of the law or regulation, that would still not entitle the Court to question the decision reached by the tribunal. Lord Reid in *R. v. Governor of Brixton Prison ex p. Armah*, [1968] A.C. 192, at p. 234 stated the matter thus:

> "If a magistrate or any other tribunal has jurisdiction to enter on the inquiry and to decide a particular issue, and there is irregularity in the procedure, he does not destroy his jurisdiction reaching a wrong decision. If he has jurisdiction to go right he has jurisdiction to go wrong. Neither an error in fact nor an error in law will destroy his jurisdiction."

To the same effect we find the following passage in paragraph 119 in Volume II of Halsbury's Laws of England, 3rd Edn., at p. 62:

> "Where the proceedings are regular upon their face and the inferior tribunal had jurisdiction, the superior Courts will not grant the order of certiorari on the ground that the inferior tribunal misconceived a point of law. When the inferior tribunal has jurisdiction to decide a matter, it cannot (merely because it incidentally misconstrues a statute, or admits illegal evidence, or rejects legal evidence, or misdirects itself as to the weight of the evidence, or convicts without evidence) be deemed to exceed or abuse its jurisdiction."

It would therefore appear plainly clear that the resident magistrate in this case was mistaken in purporting to question the validity of the decision reached by the Commission to dismiss the respondent from his employment.

The legislative enactment in question which ousted his jurisdiction did so in clear and unambiguous terms and the least he could have done was to comply. In not so complying he erred and his decision cannot be sustained. It must accordingly be quashed and set aside.

It follows therefore that this appeal has to be allowed. And an order to the effect that the decision of the East African Railways and Harbours Commission to dismiss the respondent with loss of all benefits, is a matter in which the Courts have no jurisdiction to inquire, shall issue accordingly.

*Appeal allowed.*

For the appellant:
*D. M. K. Bishota*

For the respondent:
*R. C. Dave*

## Sankey v Caltex Oil Tanzania Ltd
[1973] 1 EA 335 (HCT)

**Division:** High Court of Tanzania at Dar es Salaam

**Date of judgment:** 17 November 1972

**Case Number:** 37/1972 (80/73)

**Before:** Biron J

**Sourced by:** LawAfrica

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*[1] Master and Servant – Summary dismissal – Jurisdiction – Claim for dismissal during contract – Court without jurisdiction – Security of Employment Act* (*Cap*. 574), *s*. 28 (*T*.).

*[2] Master and Servant – Summary dismissal – Employee – Whether engaged in management of employer's business – No necessity for opinion of labour officer when no possibility of plaintiff being engaged in management – Security of Employment Act* (*Cap*. 574), *s*. 4 (*T*.).

**Editor's Summary**

The plaintiff who was employed by the defendant as a sales trainee was dismissed without notice.

On his action for damages the defendant contended that the plaintiff was subject to the Security of Employment Act (Cap. 574) so that the suit was barred, and the plaintiff contended that he could be engaged in the management of the defendant and asked for the suit to be stayed for the opinion of the labour officer to be sought on this point.

**Held** –

(i) the opinion of the labour officer was not a condition precedent to the operation of the Act;

(ii) these were no grounds on which the labour officer could hold that the plaintiff was engaged in the management of the defendant (*Jager v. Cordura Ltd*. (2) distinguished);

(iii) the plaintiff had been summarily dismissed. (*Kitundu Sisal Estate v. Shingo* (1) followed).

Case dismissed.

**Cases referred to in judgment:**

(1) *Kitundu Sisal Estates v. Shingo*, [1970] E.A. 557.

(2) *Jager v. Cordura Ltd*., [1973] E.A. 53.

**Judgment**

**Biron J:** In this case the plaintiff is claiming damages for the wrongful termination of his employment (I am deliberately using such neutral expression at this stage) by the defendant company.

By its defence the company at paragraph (1) avers:

> "That this honourable Court has no jurisdiction to entertain this suit by virtue of s. 28 of the Security of Employment Act (Cap. 574). The defendant, therefore, prays that the suit be dismissed with costs to the defendant."

And by letter the company very fairly gave notice to the plaintiff's advocates that it proposed to raise this objection to the Court's jurisdiction as a preliminary point at the hearing today. The objection has accordingly been raised and is being dealt with by me now as a preliminary point.

S. 28 of the Security of Employment Act hereinafter referred to as the Act. reads:

"28(1) No suit or other civil proceeding (other than proceedings to enforce a decision of the Minister or the Board on a reference under this Part) shall be entertained in any civil court with regard to the summary dismissal or proposed summary dismissal, or a deduction by way of a disciplinary penalty from the wages, of an employee.

(2) In this section 'civil proceedings' includes a cross suit or counterclaim, any set off and any civil proceeding under Part XI of the Employment Ordinance."

In deciding whether this Court has jurisdiction, the substantive issues to determine are:

(1) Whether the plaintiff was an employee within the meaning of s. 28 of the Act;

(2) Whether the termination of his employment constitutes summary dismissal within the meaning of the same section.

"'employee' has the meaning ascribed to it in the Employment Ordinance except that it does not include:"

Sub-paragraph (*a*) then sets out various categories of officers in the service of the Republic and the Common Services Organisation, none of which has any application to this case. Sub-paragraph (*b*), which is extremely relevant, reads:

"(*b*) any person for the time being exempted as an employee from the operation of Parts III, IV, V or VI of the Employment Ordinance by an order made under subsection (3) of section 1 of that Ordinance, in respect of his employment as such employee;"

"Employee" is defined in s. 2 of the Employment Ordinance (Cap. 366) as:

"'employee' means any person who has entered into or works under a contract of service with an employer whether by way of manual labour, clerical work, or otherwise and whether the contract is expressed or implied or is oral or in writing;"

S. 1 (3) of the same Ordinance, as amended by the Employment (Amendment) Ordinance, 1960, reads:

"(3) The President may by order in the Gazette exempt any public authority or class of public authorities or any person or class of persons or any contract or transaction or class of contracts or transactions from the operation of this Ordinance or of any provision thereof (other than section 14A and Part X) or of any regulation or order made thereunder."

An Order was made under this section entitled the Employment Ordinance (Exemption) Order, 1961. This Order exempts from the provisions of Parts III (with the exception of section 14A), IV, V, VI, VIII, IX and XI of the Employment Ordinance, classes of persons listed in the Schedule to the Order and one such class, class (*a*), comprises:

"Any person who is in receipt of wages exceeding eight thousand four hundred shillings per annum or the equivalent monthly rate;"

Pausing there, were that provision still in force, the plaintiff would not come within the ambit of the Security of Employment Act and consequently this Court's jurisdiction would not be ousted by s. 28, as at the time of the termination of his employment, he was in receipt of Shs. 1,700/- per month salary, plus

housing allowance of Shs. 400/- per month and an entertainment allowance of Shs. 300/- per month. However, that part of the Order above set out which is relevant to this case, has been revoked by s. 2 of the Security of Employment (Amendment) Act, 1969, which reads:

> "2. Section 4 of the principal Act is amended in subsection (1) in the definition 'employee' –
>
> (*a*) by deleting the semi-colon and the word 'or' which occur at the end of paragraph (*b*) and substituting 'therefore', save where such exemption is by reason only of such person being in receipt of wages of any sum of money in excess of the sum of money specified in such order or any other order amending or replacing the same; 'or';
>
> (*b*) by adding at the end of paragraph (*d*) the word 'or' and inserting below the said paragraph (*d*) the following new paragraph –
>
> '(*e*) an employee who, in the opinion of the labour officer, is employed in the management of the business of his employer'."

Therefore, the salary of an employee is no longer a criterion as to whether such employee is covered by the provisions of s. 28 of the Act, for he is still regarded as an employee for the purposes of the Act irrespective of the amount of his remuneration. However the amendment Act of 1969 adds another class of employees which is exempted from the provisions of the Act, as set out above, employees employed in the management of the business of their employer.

It is, therefore, necessary to consider whether the plaintiff was employed "in the management of the business of his employer", in the words of the amendment act, or rather, whether the labour officer would be of the opinion that he was so employed.

In this respect it is very pertinent to cite a ruling of Onyiuke, J. in *Jager v. Cordura Ltd*., [1973] E.A. 53. Incidentally that case has more than one aspect in common with this instant case. In that case, quoting from the judgment:

> "The plaintiff is an Austrian national residing in Dar es Salaam. The defendant is a limited liability company incorporated in Bermuda but registered as a foreign company in Tanzania. It carries on business in Tanzania and runs a hotel in Dar es Salaam in the name and style of Oyster Bay Hotel. The plaintiff was employed as a restaurant manager of the Oyster Bay Hotel."

The judge in dealing with subsection 2 (*b*) of the Security of Employment (Amendment) Act 1969 had this to say at p. 56:

> "This amendment has introduced some uncertainty in this case because the question whether the plaintiff, as the restaurant manager of the Oyster Bay Hotel, comes under s. 28 of the Security of Employment Act does not now depend on any objective standard but on the subjective opinion of the labour officer as to whether or not he is to be regarded as being employed in the management of the business of his employer. The result is that the plaintiff may or may not be an 'employee' within the meaning of s. 28 of the Security of Employment Act depending on the opinion of the labour officer. This can hardly be regarded as a healthy or satisfactory state for the law to be in. The jurisdiction of this Court to entertain the present suit has been put in issue and in view of the present state of the law remains in issue. I think the proper order to make in the circumstances is to stay that suit leaving it open to either party to obtain the opinion of the labour officer under s. 4 (*e*) of the Security of Employment Act as amended by the Security of Employment (Amendment) Act, 1969."

And the judge accordingly made an order staying the suit.

Mr. Machano for the plaintiff, has invited the court to adopt the same course as the judge and stay these proceedings for the opinion of the labour officer as to whether or not the plaintiff was employed in the management of the business of the company, within the meaning of the Security of Employment (Amendment) Act, 1969. Incidentally, Mr. Machano has gone further and submitted that the court has jurisdiction, even without awaiting the opinion of the labour officer.

The cardinal principle of construction of a statute, or document, is to give words used their plain and ordinary meaning. Applying such principle, can it be said that the plaintiff was employed in the management of the company's business? In this connection it is pertinent to quote from the plaint itself which has been signed by the plaintiff. He avers at paragraph 3:

> "By an agreement made in writing by letters dated 26 March 1970, and 31 March 1971, copies of which are annexed hereto and collectively marked exhibit 'A', the defendant agreed, and the plaintiff accepted, that the plaintiff should serve the defendant in the capacity of *sales trainee* (my italics) in the defendant's business of supplying and distributing petroleum products at the salary of Shs. 1,700/- per month plus a housing allowance of Shs. 400/- per month, and should be retained by the defendant in its service until the service be determined by giving the plaintiff one month's notice or one month's salary in lieu of notice."

And paragraph 4 reads:

> "The plaintiff served the defendant in the said capacity until 6 July 1971, when the defendant wrongfully terminated the said employment in writing by dismissing the plaintiff therefrom and refusing to employ the plaintiff any longer despite demand for reinstatement. In consequence whereof the plaintiff has suffered damage."

So, according to his own plaint the plaintiff was a "sales trainee". Such post cannot by any stretch be held to be an employment in the management of the company's business. Even if we accept Mr. Machano's submission, that as the plaintiff had been confirmed in his appointment, he became a "salesman", that again would not, I consider, even raise a shadow of doubt as to whether the plaintiff could be said to be employed in the management of the company's business. However, as held by Onyiuke, J., the test would appear to be not objective but subjective, that is, whether in the opinion of the labour officer the employee concerned is employed in the management of his employer's business. With respect, I fully agree with the judge that this is a very unsatisfactory position in law. However, if the law is so, then it must be applied by the Court.

Were there any grounds on which the labour officer could possibly hold that the plaintiff was employed in the management of the company's business, I would not hesitate to accede to Mr. Machano's request and stay these proceedings in order that the labour officer be consulted and his opinion obtained by the parties or either of them. It is, however, nowhere laid down that before a court can determine whether it has jurisdiction or not, the opinion of the labour officer must be obtained. All the subsection lays down is that, the jurisdiction of the court is ousted in the case of an employee, who in the opinion of the labour officer, is engaged in the management of his employer's business. But that does not make it condition precedent that the opinion of the labour officer must first be obtained in every case before a court can determine the question of jurisdiction. In a case where there are no possible grounds, as in this case, on which the labour officer could possibly opine, in the words of the

relevant provision, that the employee is employed in the management of his employer's business, to my mind, it is not necessary to stay proceedings to determine the question of jurisdiction, in order that the labour officer's opinion be obtained. It would only be a waste of time and money. Further, such a course would certainly not be in the plaintiff's interest, but rather reverse, as it would considerably delay the determination of his claim.

If only for the record, it should be observed that this instant case is easily distinguishable on the facts from that before Onyiuke, J. The distinction being self-evident, in that, in that case the plaintiff was employed as a manager, which is a far cry from a "sales trainee" or even a fully fledged "salesman". In the circumstances, I have not the slightest hesitation in holding and so find as a point of law, that the plaintiff was not employed nor could be held to be so employed, in any managerial capacity, or in the words of the subsection, "in the management of the business of his employer". Accordingly, he was an employee within the meaning of s. 28 of the Act.

The next issue to consider is whether the termination of the plaintiff's services constitutes summary dismissal within the meaning of s. 28 of the Act. Mr. Machano termed it a wrongful termination of his employment. However, we must consider whether this "termination of employment" or however euphemistically termed, constitutes summary dismissal within the meaning of s. 28 of the Act. Strangely enough the very same question arose in a case which came in front of me from a district court and eventually found its way to the Court of Appeal for East Africa. It is the case of *Kitundu Sisal Estate v. Shingo*, [1970] E.A. 557, where a number of labourers had their employment terminated and were given terminal benefits, and they claimed that they were not given the month's notice or pay in lieu of notice, to which they were entitled. It was held inter alia, quoting from the relevant part of the headnote:

> "**Held:**
>
> (i) . . .
>
> (ii) . . .
>
> (iii) the claim was founded on dismissal without notice which is summary dismissal and the magistrate therefore had no jurisdiction to try the case."

And it is pertinent to quote from the judgment of Law, J.A. who delivered the leading judgment of the court. He stated at p. 558:

> "Summary dismissal means dismissal without notice, and the plaintiff's contention that their services were wrongly terminated without notice can only, in my view, be construed as a contention that they were summarily dismissed."

It will not be disputed that that case is on all fours with this instant case. Likewise, in the case before Onyiuke, J. to which I have referred above, where a similar submission was made, that as the plaintiff's contract was terminated by the defendant before its time had run out, it did not constitute a summary dismissal, the judge stated at p. 55:

> "To terminate a contract of service before it has run its course is as much a summary dismissal as to terminate a contract of service without notice when notice was provided for in the contract. The complaint in both cases is the breach of contract. The argument which sought to distinguish the present case from a case of summary dismissal on the ground that in the latter case the remedy was only to sue for wages in lieu of notice is unsound. The remedy for summary dismissal is an action for damages which may be general and/or special. The important thing is the cause of action and not the remedy sought."

And the judge there held that it was a case of summary dismissal.

I must now refer to the submission made by Mr. Machano wherein he called in aid ss. 19 and 20 of the Act, which respectively read:

> "19. Subject to the provisions of section 3 but notwithstanding the provisions of any other law, no employer:
>
> (*a*) shall summarily dismiss any employee; or
>
> (*b*) shall, by way of punishment, make any deduction from the wages due from him to any employee,
>
> save for the breaches of the Disciplinary Code, in the cases and subject to the conditions, prescribed in this Part and the Second Schedule to this Act."

And s. 20 reads:

> "20(1) subject to the following provisions of this Part and to any decision of a Board or the Minister on a reference an employer may –
>
> (*a*) dismiss an employee summarily;
>
> (*b*) make a deduction, not exceeding one day's pay, from the wages of an employee;
>
> (*c*) impose a formal severe reprimand, reprimand or written warning on an employee . . ."

It is not necessary to read any further from the section, as it is all equally irrelevant to this instant case just as is s. 19 above set out. These sections are concerned with the rights and powers of an employer to dismiss summarily an employee or make deductions from his pay or otherwise penalise him. The present issue before the court is whether or not it has jurisdiction to deal with the summary dismissal of the plaintiff, and not with the rights or wrongs of such summary dismissal, which is determinable by the appropriate tribunal which has jurisdiction to deal with it.

For the reasons I have attempted to set out, it is considered that it is abundantly clear from all the relevant provisions to which I have referred, that this Court's jurisdiction to deal with the summary dismissal of the plaintiff, has been ousted by s. 28 of the Act.

In the result, the preliminary point is decided in favour of the defendant company, whose submission that this court has no jurisdiction to entertain the suit is upheld, and the suit is accordingly dismissed with costs to the company.

It is hardly necessary to add that this ruling does not deny the plaintiff a forum wherein to seek redress, but he can pursue his claim before the Conciliation Board, as laid down in the Security of Employment Act, 1964.

*Case dismissed.*

For the plaintiff:
*Machano* (instructed by *Machano & Co*., Dar es Salaam)

For the *defendant*:
*Uzanda* (instructed by *Donaldson and Wood*, Dar es Salaam)

## Ngaka v Regional Fisheries Officer
[1973] 1 EA 341 (HCT)

**Division:** High Court of Tanzania at Dar es Salaam

| | |
|---|---|
| **Date of judgment:** | 31 August 1972 |
| **Case Number:** | 4/1972 (81/73) |
| **Before:** | Mfalila, Ag J |
| **Sourced by:** | LawAfrica |

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*[1] Master and servant – Suit for wages – Against government – Suit maintainable – Employment Ordinance* (*Cap*. 366), *s.* 2 (*T.*).

**Editor's Summary**

The plaintiff was dismissed by the defendant and sued him under the provisions of the Employment Ordinance (Cap. 366) and was awarded damages.

Before the High Court the question was whether the Employment Ordinance bound the government or whether the position was governed by the Government Suits Ordinance (Cap. 5).

**Held** –

(i) the definition of employer in the Employment Ordinance includes the government;

(ii) suits by workmen for wages are not subject to the Government Suits Ordinance.

Judgment affirmed.

**No cases referred to in judgment.**

**Judgment**

**Mfalila Ag J:** The record of this case was forwarded to this Court by the resident magistrate Morogoro for the purposes of revising it because as he put it, the procedure laid down in the Government Suits Ordinance (Cap. 5) was not complied with. The resident magistrate reasoned no doubt that as this suit was against the Government (The Regional Fisheries Officer being a representative of the Government), the district court had no jurisdiction to try it; see s. 2 (3) of the Ordinance, and in any case the procedure laid down in s. 4 (1) was not complied with.

The background to this case is as follows. The plaintiff lodged a complaint with the Regional Labour Officer Morogoro in connection with non-payment of wages while was employed as a carpenter by the respondent, the Regional Fisheries Officer, Morogoro. The employer disputed the plaintiff's allegations or that he had employed the plaintiff at all. The Labour Officer received this complaint under s. 130 of the Employment Ordinance and upon his failure to effect a settlement or take action under s. 131 of the Ordinance, the Labour Officer prepared a report of the dispute and transmitted it to the court under s. 132 of the Ordinance, as amended. On receipt of this report the court proceeded to order the parties to file pleadings, there was however no need for the Court to subject the parties to such lengthy and expensive procedure when it could easily have determined the dispute under the simplified and cheap procedure laid down under s. 134 of the Ordinance. However this was not fatal to the proceedings. The resident magistrate who heard this dispute decided in favour of the plaintiff and awarded him Shs. 730/- with costs. With regard to costs, had the resident magistrate followed the procedure laid down under s. 134 he would have found no necessity to order costs against either party.

It is clear therefore that the suit was filed under the Employment Ordinance (Cap. 366) and that

consequently it is governed by the provisions of that Ordinance. The question is whether in view of the wording of s. 1 (2) of the Ordinance,

suits under that Ordinance are subject to the limitation imposed by s. 2 (3) of the Government Suits Ordinance. S. 2 (1) of the Government Suits Ordinance provides:

> "Suits by or against the Government of the Territory shall be instituted by or against the Attorney General"

and subsection (3):

> "No suit against the Government shall be instituted without the previous written consent of the Minister responsible for Legal Affairs or be instituted in any court other than the High Court."

Do these provisions exempt the Government from the full application of the Employment Ordinance when it is sought to sue it as employer? S. 1 (2) of Employment Ordinance provides:

> "Subject to the provisions of subsection (3) of this section the provision of this Ordinance shall apply to and be carried into effect by departments of the Government, public, local and native authorities and all persons in the employment thereof, and also all persons in the service of the Crown in the territory in the same manner as if they were private employers or employees as the case may be:
>
> Provided that this subsection shall not have effect in relation to the following persons:
>
> (i) Persons in the Naval Military or air services of the Crown (other than locally engaged civilian employees),
>
> (ii) Members of the Tanganyika Police Force,
>
> (iii) Members of the Tanganyika Prison Service.
>
> (3) The Governor in Council (perhaps to read the President) may by order in the Gazette exempt any public authority or class of Public authorities or any person or class of persons or any contract or transaction or class of contracts or transactions from the operation of this Ordinance or of any provisions thereof other than sections 14A and part X or of any Regulation or order made thereunder."

The last exemption order made under this subsection as far as I can see was made in 1961 as G.N. 26 but even so this applied only to employees. The present plaintiff does not fall into any of them. But a note appended to that order is in these words:

> "The effect of this order is to exempt the persons listed in the schedule in so far as they are employees, from those parts of the Ordinance and from those Regulations specified in paragraph 2 (1). *The Order does not have the effect of enabling any person to escape any obligation imposed on him by, or under the Ordinance in his capacity as an employer or recruiter*."

And s. 2 of the Ordinance defines employer as:

> "Any person, or any firm, Corporation or Company, public authority or body of persons who or which has entered into a contract of service to employ any person and includes any agent, foreman, manager or factor of such a person, firm, Corporation, Company, public authority or body of persons who is placed in authority over such person employed and where an employee has entered into a contract of service with the Government or with any officer on behalf of the Government under which such employee is working shall be deemed to be his employer.
>
> Provided that no Government Officer shall be personally liable under this Ordinance for anything done by him as an officer of the Government in good faith."

I think that the clear words used in the Employment Ordinance as quoted above indicate the intention to put employment disputes outside the protective umbrella provided by the Government Suits Ordinance. This is an important enactment because it constitutes tangible proof of the recognition that in Tanzania unlike in England before the passing of the Crown Proceedings Act, workers have a right to wages and not a mere privilege. The Government Proceedings Ordinance embodies the position in England before the passing of the Crown Proceedings Act and the rights conferred under that Ordinance are no more than those enjoyed by the subject of the Crown in England before the Crown Proceedings Act. If therefore the rights of a Tanzania worker in relation to the Government as an employer were to be regulated by the Government Suits Ordinance this would constitute one of the clearest instances of the negation of Article 3 (*f*) of the TANU Constitution that every individual has a right to fair wages in relation to his work.

This being the case, the plaintiff was perfectly entitled to lodge a complaint against the Regional Fisheries Officer who falls within the definition of employer in the Employment Ordinance, and the Labour Officer was perfectly entitled to report this dispute to court under s. 132 of the Ordinance thereby giving the court jurisdiction to take action as it did under s. 134 of the same Ordinance. Other classes of suits against the Government must of course be instituted in accordance with the procedure laid down under the Government Suits Ordinance, but suits under the Employment Ordinance can by clear provisions of that Ordinance be brought under the provisions of that Ordinance as if the Government was a private employer.

S. 37 of the Interpretation and General Clauses Ordinance provides:

> "No ordinance shall in any manner whatsoever affect the rights of the United Republic unless it is therein expressly provided, or unless it appears by necessary implication that the United Republic is bound thereby."

S. 1 (2) of the Employment Ordinance provides expressly that the United Republic is bound by the provisions of that Ordinance.

I would only like to add in conclusion that when magistrate are faced with actions against the Government they should advise the heads of the departments sued to report the fact to the Attorney General's chambers who will arrange the necessary legal representation, because when an officer of the Government is sued, it is not in this personal capacity. I note in this case that the Regional Fisheries Officer fought this case on his own as if he had been sued personally.

The proceedings having been properly started, tried and determined there will be no revisional order. I should add that it is still open to the defendant to appeal, although I hope this time after seeking assistance from the Attorney General's office.

*Order accordingly.*

No appearance for the parties.

## Posts & Telecommunications v Terrazo Paviors
[1973] 1 EA 344 (HCT)

| | |
|---|---|
| **Division:** | High Court of Tanzania at Dar es Salaam |
| **Date of judgment:** | 2 December 1972 |
| **Case Number:** | 141/1971 (82/73) |
| **Before:** | Onyiuke J |

**Sourced by:** LawAfrica

*[1] Civil Practice and Procedure – Appearance – Means appearance in court – Civil Procedure Code, O.* 8, *r.* 15 (*T.*).

*[2] Civil Practice and Procedure – Appearance – Partnership by – Full names of all partners appearing to be stated – Civil Procedure Code, O.* 26, *r.* 6 (*T.*).

**Editor's Summary**

The plaintiff filed suit against the defendant firm. In response to the summons, an advocate appeared in court, and the case was fixed for hearing. On the hearing date the plaintiff applied to prove its claim ex parte because the defendant had failed to enter an appearance as required by O. 29, r. 6.

**Held –**

(i) appearance under the Code means attendance in person or by advocate in court on the date stated in the summons;

(ii) where partners appear by advocate it is the duty of the advocate to state in court the names of the partners for whom he is appearing;

(iii) the partners of the defendant firm had not entered an appearance as required;

(iv) since some of the partners of the firm had evinced a clear intention to submit to the jurisdiction of the court and to defend they would be allowed to appear.

Application dismissed.

**Cases referred to in judgment:**

(1) *Adam v. Townsend* (1884), 14 Q.B.D. 103.

(2) *Tomlison v. Broadsmith,* [1896] 1 Q.B. 386.

**Judgment**

**Onyiuke J:** Once again, Mr. Wekesa, for the plaintiff, has raised technical points of extreme nicety and has argued them with nerve and courage.

The plaintiff, a body corporate – the East African Posts and Telecommunications Corporation, instituted an action against Terrazo Paviors, a firm of building contractors, for damages for negligence in carrying out excavation work for sewage purposes which resulted in serious damage to the plaintiff's telephone cable system. The defendant failed to file a defence within the time it was ordered to do so. By an Order of Court dated 24 June 1972 the time was extended to the 22 July 1972 within which the defendant was to file its defence. By the same order the case was set down for mention on the same date. The defendant filed its defence at 10.50 a.m. on 22 July 1972. Mr. Wekesa raised a preliminary objection and contended that the defence was filed out of time because on a proper construction of the order granting the extension of time the defendant should have filed the defence "sometime" before the case came up for mention on the 22 July. This point has been dealt with in a detailed

ruling by Mwakasendo, Ag. J. in which he overruled the objection. The case was then mentioned before the deputy registrar and was fixed for hearing on 30 August 1972. On 29 August, a day before the date fixed for hearing, the plaintiff filed a notice raising the point that the plaintiff be allowed to prove its claim ex parte because the defendant has failed to enter an appearance to the suit as required by O. 29, r. 6 of the Civil Procedure Code. The issue has now been fully argued and at length.

O. 29, r. 6 reads as follows: “Where persons are sued as partners in the name of their firm, they shall appear individually in their own names, but all subsequent proceedings shall, nevertheless, continue in the name of the firm.” Mr. Wekesa’s contention was Terrazo Paviors was a partnership or firm name and the partners thereof were sued in their firm name. The partners were required by the mandatory provisions to enter appearance in their own individual names as a condition precedent to the proceedings continuing in the name of the firm. The partners of the defendant firm have not done so in this case. The position then was that they should face the consequences of their non-appearance and that the plaintiff should be allowed to prove its case ex parte under O. 9, r. 6 which provides as follows: “Where the plaintiff appears and the defendant does not appear when the suit is called for hearing then – (i) if the suit is before the High Court and it is proved that the summons was duly served, the Court may proceed ex parte . . .” It is a necessary implication of this contention that as no appearance has been entered to the suit the defendant cannot take a step in the action and the defence which it purported to file was of no legal effect.

I have firstly to consider what constitutes “entering an appearance” under the Civil Procedure Code 1966. It appeared to me during the argument that Mr. Wekesa was thinking initially of the position under the Civil Procedure Rules of Kenya rather than that under the Civil Procedure Code of Tanganyika. O. 9, r. 1 of the Civil Procedure (Revised) Rules of Kenya reads as follows: “A defendant on or before the day fixed in any summons for him to enter an appearance shall enter such appearance by delivering to the proper officer a memorandum in writing dated on the day of delivery and containing the name of the defendant’s advocate or stating that the defendant defends in person and also the defendant’s address for service . . .” There is no similar provision in the Civil Procedure Code of Tanganyika. O. 9 of the Code makes provisions for appearance of parties and consequences of non-appearance. O. 9 r. 1 reads as follows: “When a summons to appear has been issued on the day fixed in the summons for the defendant to appear or where the summons to file a defence has been issued and a day for hearing is fixed in accordance with the provisions of O. 8, r. 15 on the day so fixed for hearing, the parties shall be in attendance at the court-house in person or by their respective recognised agents or advocates and the suit shall then be heard unless the hearing is adjourned to a future day fixed by the court.” The summons in this case to which the plaint was annexed required the defendant “to appear in this Court in person or by advocate . . . on 30 October 1971 at 9 o’clock to answer the claim . . .” It appears therefore that under the Code there is no formal step required of the defendant which constitutes entering appearance. In short, there is no special requirement of entering an appearance to a suit as a preliminary step prior to the date fixed for the hearing of the suit. “Appearance” under the Code means attendance in person or by advocate in Court on the date stated in the summons which is also the date for hearing of the suit. Once the defendant is present either in person or by advocate when the case is called up that is sufficient appearance.

Mr. Shukla for the defendant, pointed out and this was confirmed by the court record, that on 30 October 1971 Mr. Pillai appeared for the defendant. The relevant record reads as follows:

30/10/71 Coram: H. Muccadam, Deputy Registrar.

Williams: For the Plaintiff.

Pillai: For the Defendant.

Nothing daunted, Mr. Wekesa has taken his point further and has argued that did not satisfy the mandatory provisions of O. 29, r. 6 of the Code reproduced above. His argument was that it was not enough for the purpose of r. 6 for an advocate to state that he was appearing for the defendant because the defendant in the title of the suit was Terrazo Paviors – a mere firm name. Mr. Pillai had legally not appeared for anybody having regard to the provisions of r. 6. In reply, Mr. Shukla submitted that Mr. Pillai could not have been instructed by a mere name but must surely having been instructed by a partner or partners of the firm to appear and defend the suit. Mr. Shukla cited *Tomlison v. Broadsmith*, [1896] 1 Q.B. 386 for the proposition that an authority given by the managing director of a firm to a solicitor to defend an action brought against the firm is sufficient authority to the solicitor to enter appearance in the names of each of the partners individually. He also cited the case of *Adam v. Townsend* (1884), 14 Q.B.D. 103 which decided that where a partner appears in person it is a sufficient appearance by the firm to prevent judgment by default being signed against it. He urged the court assume that Mr. Pillai was appearing for all the partners of the defendant firm. Continuing, he submitted that the form of words used by Mr. Pillai was not important. What was important was the fact of putting in an appearance and if the plaintiff had been in any doubt in respect of the partners for whom he was putting in the appearance it was open to it to ask for further information. With respect, I do not think this was a complete answer to Mr. Wekesa's point. It was not so much a dispute as to whether Mr. Pillai was instructed by the partners in the defendant firm to appear for them. He might very well have had such instructions but that is not the point. The point is that having obtained the requisite instructions it was his duty to appear in the manner prescribed by r. 6. Appearance of a partner by advocate under r. 6 requires, in my opinion, in view of the wording of that rule, some formality. Dealing with identical provisions in his book on the Indian Code of Civil Procedure (10th edition), under the head of "Appearance of Partners", Mulla at p. 935 stated as follows: "Though all proceedings in a suit instituted against a firm must be conducted in the firm name, the partners should so far as appearance is concerned appear individually in their own names. The reason of the rule is that a firm cannot appear as a firm." This is another way of saying that a firm is not a legal personality and therefore cannot appear as such. This in my view is not a mere legal quibble. Appearance is the process by which a person against whom a suit has been commenced shows his intention to defend the suit and submits to the jurisdiction of the court. In the case of a non-legal personality such as a firm it is necessary to have on record the name or names of the partners who are appearing and therefore submitting to the jurisdiction of the court and whose acts bind the firm or partnership hence the wording of O. 29, r. 6. Once this was done then the proceedings can continue in the firm name which is only a compendious way of describing the partners who compose the firm. It is my view that where a partner or partners appear by advocate it is the duty of the advocate to state in court the name or names of the individual partner or partners he is appearing for. In the case of *Tomlison v. Broadsmith* (supra) cited by Mr. Shukla the solicitor although instructed by the managing director of the firm entered appearance not in the name of the firm as such but in the names of each of the partners individually and it was held he had the implied authority to do so. In *Smith v. Auto Electric Services* (1951), 24 K.L.R. 22 where the partners of the defendant firm entered appearance in the memorandum of appearance in the name of the firm instead of in their individual names it was held that it was not a valid appearance under O. 29,

r. 6 of Kenya Civil Procedure Rules which was in identical terms with our own O. 29, r. 6. In my view it would still have been invalid had the partners instructed a solicitor to appear and defend and he entered appearance in the name of the firm. The same principle should apply to appearance by advocate by attendance in court on behalf of the partners under O. 29, r. 6. It is my view therefore that Mr. Pillai should have expressly stated the names of the individual partners he was appearing for on 30 October 1971.

This is not the end of the matter however. Mr. Shukla, on his part, has raised two further points. He submitted that the summons commanded the defendant to appear in the High Court in person or by advocate. The appearance by Mr. Pillai was before a deputy registrar which was not the same as appearance in the High Court as that Court was only properly constituted when presided over by a High Court Judge. Such being the case it was not too late for the defendant to appear in the High Court and he was doing so accordingly. He then stated that he had been instructed "by the managing director of the defendant firm to enter appearance on behalf of all the partners of the firm". As to his second point, he submitted that since the plaintiff had failed to raise the issue of non-appearance by the partners of the defendant firm at the earliest opportunity and had acquiesced in the defendant's filing a defence the plaintiff must be taken to have waived the irregularity.

I have first to consider whether appearance before a registrar is a valid appearance in the High Court under O. 29, r. 6. I think that attendance before a registrar or deputy registrar in response to a summons to appear in the High Court constitutes a valid appearance in the High Court within the meaning of O. 9, r. 1 of the Civil Procedure Code and therefore under O. 29, r. 6 by virtue of O. 43, r. 1 authorises the registrar or any deputy registrar to exercise certain powers vested by the Code in the High Court in any proceeding before that Court and one of the powers to be so exercised was the power "to order that a suit be dismissed under O. 9, rr. 2, 3 and 5". O. 9, be it noted, deals with appearance of parties and consequences of non-appearance. R. 1 requires the parties to the suit to appear on the day fixed in the summons. R. 3 provides that "where neither party appears when the suit is called on for hearing the Court may make an order that the suit be dismissed". If the registrar or any deputy registrar can make a valid order under r. 3 it presupposes that appearance before such officer of Court is a valid appearance under O. 9 r. 1. I hold therefore that Mr. Pillai's appearance before the deputy registrar on 30 October 1971 could have been a valid appearance in the High Court if he had complied with the provisions of O. 29, r. 6.

Mr. Shukla's second contention was that the plaintiff had waived its right to object to the irregularity in appearance by reason of its delay. This contention has to be considered in the light of the provisions of O. 9, rr. 1, 6 and 7, especially the provisions relating to the consequences of non-appearance by a defendant to a suit. R. 1 provides that the parties shall be in attendance at the court-house, on the day fixed in the summons to appear and the suit shall then be heard unless the hearing is adjourned to a future day fixed by the Court. R. 6 (1) provides that "where the plaintiff appears and the defendant does not appear when the suit is called for hearing then (1) (*a*) if the suit is before the High Court and it is proved that the summons was duly served, the Court may proceed ex-parte . . ." By way of contrast it should be noted that if the suit is before any court other than the High Court then if "the summons issued was a summons to appear and it is proved that the summons was duly served, the court may enter judgment for the plaintiff". Thus the consequence of non-appearance to a summons to appear depends on the court before which the suit is pending. In the High Court the consequence of non-appearance by a defendant where the summons is to appear is that the court may proceed ex-parte.

In any other court, for example, the court of a resident magistrate, the Court may enter judgment by default for the plaintiff without the necessity for the plaintiff to prove his case. Where the High Court makes an order to proceed ex parte under r. 6 (1) (*a*) (i) but does not hear the case immediately but adjourns it to some other date then the defendant can still take some step in the proceedings because r. 7 provides "where the court has adjourned the hearing of the suit ex parte, and the defendant, at or before such hearing, appears and assigns good reason for his previous non-appearance, he may, upon such terms as the court may direct as to costs or otherwise, be heard in answer to the suit as if he had appeared on the day fixed for his appearance".

It appears to me that if the plaintiff omits or delays to apply to have the case proceed ex parte or until an order to proceed ex parte is made the defendant can appear and defend the suit. It is only where such order has been made and the defendant appears subsequently that he must obtain leave of the court to defend the suit and the court may grant leave on terms.

The hearing of this suit was fixed for 30 August 1972 and on that day the plaintiff applied for leave to proceed ex parte. The defendant purported to appear by advocate, Mr. Shukla. If as late as that date the purported appearance complied with the provisions of O. 29, r. 6 the plaintiff's application under consideration would have been too late and therefore untenable. Unfortunately nothing that Mr. Shukla said or did when the case was called for hearing or at the hearing of the plaintiff's present application could be regarded as such compliance. When the case was called on 30 August 1972 Mr. Shukla stated, and I quote, "I appear for the defendant". In the course of replying to the plaintiff's application that the case should proceed ex parte, Mr. Shukla, in purporting to comply with O. 29, r. 6, stated, and I quote, "I am duly instructed by the managing partner of the firm to appear on behalf of the partners of the firm". He did not however give the names of the managing director or of any of the partners. This, to my mind, still did not comply with the provisions of r. 6 which requires that the partners "shall appear individually in their own names" and by necessary inference if they purport to appear by advocate, then, that advocate has to state the individual names of the partners he was appearing for. As I have said earlier on this is not a barren technicality for the reasons I have given. This is also relevant in matters relating to execution of decrees. O. 21, r. 49 (1) provides as follows: "Where a decree has been passed against a firm, execution may be granted –

(*a*) against any property of the partnership;

(*b*) *against any person who has appeared in his own name under Rule* 6 *or Rule* 7 *of Order XXIX* or who has admitted in the pleading that he is or who has been adjudged to be a partner;

(*c*) against any person who has been individually served as a partner with the summons and has failed to a appear."

In view of the foregoing I am impelled to hold that the partners of the defendant firm have not appeared individually in their own names as required by O. 29, r. 6, a requirement which is a condition to the proceedings being defended in the name of the defendant firm.

Should I then make an order that this case should proceed ex parte? The provisions of r. 6 (1) (*a*) (i) are not mandatory but allow the Court an exercise of judicial discretion. I am satisfied that at least some of the partners of the defendant firm have evinced a clear intention to submit to the jurisdiction of this Court and to defend the suit in the firm name (though they have not taken the legal steps to do so) that it would be wrong and unjust for me to allow the case to proceed ex parte. I will allow the partners of the defendant firm to

comply with the provisions of O. 29, r. 6, and the case should then proceed as a defended suit. I think the justice of the case can be met by allowing the plaintiff the costs of this application.

*Order accordingly.*

For the plaintiff:
*D. M. Wekesa* (Senior Assistant Counsel)

For the *defendant*:
*M. S. Shukla* (instructed by *George N. Houry and Co.*, Dar es Salaam)

## Jambo Grocers Ltd v Virjee
[1973] 1 EA 349 (HCK)

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|---|---|
| **Division:** | High Court of Kenya at Nairobi |
| **Date of judgment:** | 11 October 1971 |
| **Case Number:** | 81/1971 (83/73) |
| **Before:** | Chanan Singh and Harris JJ |
| **Sourced by:** | LawAfrica |

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*[1] Rent Restriction – Business premises – Possession – Reference by tenant – Notice of reference must be given by tenant to landlord before expiry of notice – Landlord and Tenant* (*Shops, Hotels and Catering Establishments*) *Act*, (*Cap*. 301), *s.* 6 (*K.*).

**Editor's Summary**

The appellant tenant referred to the landlord's notice of termination to the tribunal on the last day and did not give notice of the reference to the landlord until over three weeks later.

The tribunal held that the tenant had within the time limited both to file reference and to give notice thereof to the landlord.

On appeal.

**Held –** the notice must be given before the expiry of the period.

Appeal dismissed.

**No cases referred to in judgment.**

**Judgment**

The following considered judgments were read. **Chanan Singh J:** This is an appeal by a tenant against a decision of the Business Premises Rent Tribunal, given before the 1970 amendments and rejecting a reference on a preliminary point that notice of the filing of the reference had not been given before the expiration of the notice of termination. The facts of the case are briefly as follows.

On 30 January 1970 the landlord gave the tenant company notice under s. 4 of the Landlord and Tenant (Shops, Hotels and Catering Establishments) Act (Cap. 301) terminating the tenancy "with effect from 1 April 1970". The tenant's advocates, Messrs. Ahamed and Ahamed, wrote to the landlords on 18 February 1970 saying: "we hereby notify you in writing that Jambo Grocers Ltd. do not agree to give up possession of the premises and do not agree to the proposed termination of their tenancy."

On 31 March 1970, the tenant's advocates filed the usual "reference" in the Business Premises Rent Tribunal.

On 16 April, the tribunal gave the landlords notice in Form E enclosing particulars of the complaint instituted by the tenant and requiring the landlords "to appear in person or by a representative on Wednesday, 20 May 1970" when the complaint would be heard. On the same day, the landlords filed an ejectment suit in the High Court.

The tenant gave notice to the landlords on 24 April 1970 that a reference had been filed in the tribunal.

When the matter came before the tribunal, the preliminary objection raised by the landlords' advocate was upheld and the tribunal's decision was given in the following words:

> "In this case the Tribunal finds that it was the duty of the applicants to give notice particularly when the reference was made on the last day. If the reference was made about 10 days before the expiry of the notice, the hearing notice from the Tribunal could have reached the respondent before the expiry of the notice and this could have satisfied the requirements of s. 6 (1). S. 6 (1) in our view is meant to let the landlord know the reference has been made so that no further action is taken and this should be before the expiry of the notice. The Act provides specifically that this notice should be given before the expiry of the Notice to quit."

The essential part of this decision which Mr. Khanna questions and which Mr. Salter supports is that "The Act provides specifically" that the notice of filing of the reference should be given to the landlords "before the expiry of the Notice to quit". The relevant provisions of the Act as it stood at the relevant time can now be examined.

S. 6 (1), omitting words not relevant here, says that "A tenant who wishes to oppose a notice of termination . . . may, before the period of notice of such termination . . . has expired refer the matter to a Tribunal, and shall give notice of such reference in writing, to the landlord, whereupon such notice of termination . . . shall be of no effect until, and subject to, the determination of the matter by such Tribunal." This means that the tenant is to file a reference "and" to give a notice to the landlord "whereupon" the notice of termination is to be of no effect. The word "whereupon" is of crucial importance. Upon the happening of which event or events is the notice "to be of no effect"? Is it the filing of the reference or the giving of notice of filing or both? The position of the word "whereupon" in the sentence suggests the notice of termination is to be of no effect upon the filing of reference "and" the giving of notice to the landlord. If this were not so, the sentence (leaving out parts not in question) would have read like this: "A tenant . . . may refer the matter to a Tribunal whereupon the notice of termination . . . shall be of no effect . . . and shall give notice of such reference in writing to the landlord." There is no dispute about when the reference should be filed; but Mr. Khanna contends that the written notice of the filing could be given to the landlord within a reasonable time of the filing of reference so long, presumably, as it was given before the date of hearing.

This argument, however, would be meaningless if the notice of termination was to be of no effect on the happening of two events namely the filing of reference and the giving of notice to the landlord. Filing certainly had to be done before the expiration of the notice of termination, first, because of the express provision to that effect, and, secondly, because once the period of notice had expired the notice had become effective and, then, only the Tribunal had the power to permit filing.

In my opinion s. 6(1) as it stood before the 1970 amendments means three things:

(1) Before the expiration of the period of notice of termination, the tenant "may" file a reference;

(2) The tenant "shall" give written notice of such filing to the landlord;

(3) "Whereupon" the notice of termination shall be of no effect.

The tenant could retain possession lawfully only if the notice of termination was of no effect. If the tenant gave written notice of filing after the date of expiration of the notice of termination, then he would be doing it when the notice of termination had already taken effect and the tenant had become a trespasser.

I think this implied that the tenant's notice of filing also must be given before the expiration of the landlord's notice of termination. Mr. Khanna thinks this would not be possible in a case where the tenant filed the reference, as he was entitled to do, on the last day of the period. The difficulty is, with respect, imaginary because the notice could be given simultaneously with the filing of the reference.

I agree, however, this was a very unsatisfactory provision as it tied a right of appeal to tribunal to a not very essential requirement of notice. Apart from the wording of s. 6 (1), there would appear to be no justification for requiring the tenant to give to the landlord a written notice of filing. And I see that the 1970 amendment has cut it out.

**Harris J:** I agree, and have little to add.

By s. 6 (1) of the Landlord and Tenant (Shops, Hotels and Catering Establishments) Act, as it stood at the material time it was provided that a tenant who had been served with a notice under s. 4 and who had notified his landlord of his unwillingness to comply might, before the period of notice of termination of his tenancy had expired, refer the matter to a tribunal set up under the Act and "give notice of such reference in writing to the landlord", whereupon such notice of termination should be of no effect until and subject to the determination of the matter by the tribunal.

For the appellant, the tenant of the premises, it has been argued in the first place that the obligation on a tenant is merely to give such notice within a reasonable time, and secondly that where, as here, the first notification to be received by the landlords was the hearing notice issued by the tribunal such notification was itself sufficient to comply with the requirement on the part of the tenant to give notice of the reference.

Taking the second contention first, I am satisfied that the service of the hearing notice cannot be regarded as a compliance with the tenant's obligation in the matter. The language of s. 6 (1) in placing upon the tenant the duty of giving notice to the landlord is mandatory and is consistent with the provision of the regulations made under s. 16 of the Act that the clerk to the tribunal shall himself fix the hearing date and prepare and effect service of the relevant notice on the parties. This date may be fixed at any time not less than seven days from the filing of the reference, a period which in the great majority of cases would be quite insufficient to enable the landlord to prepare for the hearing. In my opinion this fortifies the basis for the view that the section should be construed as expressly imposing the obligation to give notice on the tenant.

As to the appellant's principal contention, even if it could be said, contrary to what in my opinion is the intendment of the Act, that the giving of notice by a tenant to his landlord of the reference to the tribunal need not be effected before the expiration of the landlord's notice under s. 4 and may take place within a reasonable time thereafter, I am not satisfied that here this suggested

requirement as to time was sufficiently complied with. The appellant's notice was not given until 24 April, and in the meantime the respondents on 16 April, having no knowledge that the jurisdiction of the tribunal had in fact been invoked, took the perfectly proper and normal step of instituting an action for possession in this court. One of the purposes of the establishment of the tribunal is to avoid the expense and delays inevitable in the case of High Court proceedings, and here the tenant, by waiting until the landlords had incurred quite fruitlessly the costs of launching their action, has proceeded in a manner calculated to defeat this purpose. I see no merit in the appellant's argument.

I concur in the order that the appeal be dismissed.

*Order accordingly.*

For the appellant:
*D. N. Khanna* and *A. K. Esmail* (instructed by *Esmail & Esmail*, Nairobi)

For the respondent:
*C. Salter, Q.C. and M. Da Gama Rose* (instructed by *Shapley Barret Ennion & Marsh*, Nairobi)

## Anwar v Kenya Bearing Co
[1973] 1 EA 352 (CAN)

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| **Division:** | Court of Appeal at Nairobi |
| **Date of judgment:** | 28 June 1973 |
| **Case Number:** | 5/1973 (85/73) |
| **Before:** | Sir William Duffus P, Spry VP and Law JA |
| **Sourced by:** | LawAfrica |
| **Appeal from**: | The High Court of Kenya – Bennett, J |

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*[1] Sale of goods – Passing of property – Specific goods in deliverable state – Contract cannot be repudiated thereafter – Sale of Goods Act* (*Cap*. 31), *s*. 20 (*a*) (*K*.).

*[2] Contract – Consideration – Total failure of – Delivery taken of part of goods – No total failure of consideration.*

**Editor's Summary**

The appellant bought a lot of tractors from the respondent and when he came to collect them alleged that some of them were missing. He failed to meet the cheques and promissory notes given for the purchase price, alleging a total failure of consideration.

The judge found that the contract had been for the sale of specific goods in a deliverable state, that property had passed to the appellant and that there had been no total failure of consideration.

On appeal

**Held –**

(i) the contract could not be and had not been repudiated;

(ii) the transaction was for specific goods in a deliverable state;

(iii) property had passed to the appellant;

(iv) as the appellant had taken delivery of a substantial part of the goods there was no total failure of consideration.

Appeal and cross-appeal dismissed.

**Case referred to in judgment:**

(1) *Oscar Harris v. Vallarman*, [1940] 1 All E.R. 185.

**Judgment**

The following considered judgments were read. **Law JA:** On 9 November 1970, the appellant purchased from the respondents eleven second-hand tractors and spares which he had previously inspected. At

the time of the purchase he signed a document, paragraph 1 whereof reads as follows:

> "I have today purchased one lot of second-hand tractors and spares as per Invoice number 5088 from Kenya Bearing Company. All the tractors which were lying at Suberwal Engineering Works Nakuru to be collected as it is as seen and fully inspected on the description as no other liability is taken whatsoever by the seller said Messrs. Kenya Bearing Co."

Some time later, probably a fortnight, the appellant collected the tractors from where they were lying. The trial judge found as a fact that on this occasion two of the tractors were missing, and others were stripped of spare parts. The appellant nevertheless removed the tractors, on an undertaking given to him by the first respondent's uncle that the missing tractors and parts would be replaced.

On 7 December 1970, the appellant wrote to the respondents asking for the two missing tractors to be supplied as soon as possible, and warning them that he was stopping payment under the contract until this was done. The only reply was an advocate's letter threatening to sue; to this the appellant's advocates replied, re-iterating that their client refused to pay until his complaints had been attended to. In due course the respondents filed their plaint, claiming Shs. 4,000/- on a dishonoured cheque and Shs. 1,600/- on each of five dishonoured promissory notes drawn by the appellant, making Shs. 12,000/- in all. The defence filed by the appellant was to the effect that the cheque and promissory notes were made in respect of a contract which the respondent had verbally repudiated and that the consideration for which they were given had totally failed.

The judge found that, on 9 November 1970, the contract between the parties was one for the sale of specific goods in a deliverable state, and that having regard to s. 20 (*a*) of the Sale of Goods Act, the property in the goods passed to the defendant. He also found that the appellant had repudiated the contract and rejected the goods when he had his conversation with the first respondent's uncle a fortnight later, but it is clear from the judgment that in the judge's view this repudiation was without effect as the property in the goods had previously passed to the respondent. The judge concluded this part of his judgment by saying "The defendant was, therefore, only entitled to treat the breach of any of the conditions of the contract as a breach of warranty and not to repudiate the contract".

On the question of failure of consideration, the judge held as follows:

> "Turning to the question of consideration, I am not satisfied that the tractors collected by the defendant were completely valueless, bereft though they were of many essential parts. There was thus only a partial failure of consideration."

He gave judgment for the respondents for the amount claimed.

From this judgment both parties appeal and cross-appeal respectively. I can deal together with the first ground of appeal and cross-appeal, as both relate to the alleged finding by the judge that the appellant repudiated the agreement. The cross-appeal complains that he erred in so finding, and the appeal complains that having so found, it was not open to the judge to hold that the property in the goods passed to the appellant having regard to s. 20 (*a*) of the Sale of Goods Act. Both these complaints are, with respect, based on a misunderstanding of the judgment. It is quite true that the judge did say that the appellant had repudiated the contract and rejected the goods, but he went on to say in the next two sentences of the same paragraph that as the property

in the goods had already passed to the appellant, any breach in the contract of sale could only be treated as a breach of warranty and did not entitle the appellant to repudiate. If the sentence about repudiation is read in its context and not in isolation, it is abundantly clear that what the judge found was a purported and ineffectual repudiation.

This may be a convenient place to dispose of the cross-appeal which contains only one other ground, to the effect that the trial judge ought not to have preferred the evidence of the appellant and his witnesses to that of the respondent and his witnesses. [The judge considered the evidence on this and continued.] Certainly I have not been persuaded by anything appearing on the record that the judge erred in any way in his assessment of the respective credibility of the evidence adduced by either party. I would dismiss the cross appeal.

To revert to the appeal, the remaining grounds are that the judge erred in holding that the property in the goods passed to the appellant when the contract was made; that the contract was a conditional contract which the appellant was entitled to repudiate, and that there had been a total failure of consideration.

I have no doubt that the transaction of 9 November 1970, was an unconditional contract for the sale of specific goods in a deliverable state, after inspection by the buyer. The intention of the parties appears clearly from the contract of sale "I have today purchased . . . as fully inspected . . . no other liability whatsoever is taken by seller". In these circumstances, in accordance with s. 20 (*a*) of the Sale of Goods Act (Cap. 31) the property in the goods passed to the buyer when the contract was made, and it was immaterial that payment and time of delivery were to be postponed.

There is no evidence on record as to whether the disappearance of two tractors and various spare parts between the time they became the property of the appellant and the time the remaining goods were removed from the respondents' premises was the responsibility of the respondents or of third parties. If this can be shown to have been the respondents' responsibility, and to amount to a breach of a condition to be fulfilled by them to preserve the property pending taking delivery, then as the property in the goods had passed to the appellant, such a breach can only be treated as a breach of warranty and does not justify repudiation of the contact, see s. 13 (3) of the Sale of Goods Act.

On the question of failure of consideration, it is clear from the appellant's own evidence that he in fact took delivery of a substantial part of the goods bought by him. In these circumstances there has been no total failure of consideration and the appellant's remedy on an action based on bills of exchange given to pay for the goods would be to counterclaim or set-off the ascertained amount represented by the partial failure of consideration, see for instance *Oscar Harris v. Vallarman*, [1940] 1 All E.R. 185.

For these reasons I am of the opinion that the judge came to a correct decision in the suit, the subject of this appeal. I would dismiss the appeal and the cross-appeal, with costs in each case.

**Sir William Duffus P:** I agree with the judgment of Law, J.A. and as the Vice-President also agrees the appeal is dismissed with costs and the cross-appeal also dismissed with costs.

**Spry VP:** I agree.

*Appeal and cross-appeal dismissed.*

For the appellant:
*S. C. Gautama* (instructed by *K. M. Patel*, Nakuru)

For the respondent:
*R. B. Varia* (instructed by *Lawrence Long & Co.*, Nakuru)

# Dick v Koinange (No 2)
[1973] 1 EA 355 (CAN)

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| **Division:** | Court of Appeal at Nairobi |
| **Date of judgment:** | 12 July 1973 |
| **Case Number:** | 66/1972 (86/73) |
| **Before:** | Sir William Duffus P, Spry VP and Law JA |
| **Sourced by:** | LawAfrica |
| **Appeal from:** | The High Court of Kenya – Muli, J. |

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*[1] Damages – Personal injuries – Quantum – Loss of leg.*

**Editor's Summary**

The appellant was injured in a traffic accident in which the car driven by her was in collision with that owned by the respondent. The trial judge found her 25 per cent to blame for the accident. The appellant's injuries included severe damage to her leg and ankle.

After the hearing it was found that the appellant would have to have her leg removed and this fact was unknown to the parties and the court at the time of the hearing.

On appeal the appellant requested an increase in the damages awarded and the respondent asked that the assessment of liability be varied as neither driver had any recollection of the accident.

**Held –**

(i) the accident must have been caused by the respondent's driver attempting to overtake a bus;

(ii) the assessed general damages of £3,500 would be increased to £6,500.

Appeal allowed. Cross appeal dismissed.

**Case referred to in judgment:**

(1) *Lakhamshi v. Attorney-General*, [1971] E.A. 118.

**Judgment**

The following considered judgments were read. **Law JA:** The appellant was, on 7 May 1969, involved in an accident when a car, driven by herself, collided with the respondent's car, which was being driven by his driver. The collision was a violent one, and all the persons in the two cars were more or less seriously injured. This appeal concerns the injuries suffered by the appellant, and the damages to which she is entitled; and there is a cross-appeal as to the extent to which she should be held to have contributed to the accident by reason of her own negligence. In the suit out of which this appeal arises, the appellant was the plaintiff and the respondent the defendant. The appellant, an accountant and auditor, was 45 years of age when the trial was held in the High Court of Kenya. The injuries suffered by her in the accident consisted, in the main, of multiple facial lacerations, a comminuted fracture of the upper shaft of the right femur, severe shock and concussion. She remained

in hospital for 3 1/2 months, and when discharged her right leg was 1 1/2 inches shorter than the left leg. She continued to suffer pain and discomfort in the right ankle, and on further examination was found to have suffered a fracture of the right ankle, involving displacement of the medial malleolus and tallus. The fracture had united, but resulted in complete disorganization of the ankle joint. An operation for arthrodesis, or fusion, of the right ankle was performed

on 15 December 1969, but was unfortunately not successful. In November 1970, the appellant was examined by the Senior Orthopaedic Registrar at the Western Infirmary in Glasgow. He described her right ankle as being deformed and ugly in appearance, and X-ray of the right foot showed an unsound fusion of both the ankle and subtalar joints. In his opinion, the appellant would require at least one more operation to correct the deformity and relieve her pain.

That was the state of the medical evidence when the trial was held in July 1972. The judge awarded the appellant agreed special damages of Shs. 21,000/- and general damages of Shs. 70,000/-. On the issue of liability he found that the appellant was 25 per cent to blame for the accident, and the respondent 75 per cent. He reduced the damages accordingly, and gave her judgment for a total amount of Shs. 68,250/-, with costs.

After the trial, the appellant returned to Glasgow to have the contemplated further ankle operation. It was decided, in September 1972, that it was necessary to amputate the appellant's right leg below the knee, and an operation to this effect was duly performed. This was a matter not within the contemplation of the court, or of the parties, at the time the suit was decided. Had it been, the amount of damages awarded would necessarily have been greater. The appellant accordingly applied for, and was granted, an extension of time in which to file notice of appeal against the decision in the suit; she later applied for leave to adduce additional evidence at the hearing of this appeal so as to enable this Court to review the assessment of damages on the basis of the true facts as now known, the basis upon which the suit was decided now being shown to be incorrect. This application was not opposed and was granted see [1973] E.A. 165. The additional evidence is now before us, by consent, in the form of an affidavit, to which are annexed up-to-date medical reports, setting out the appellant's present condition, and particulars of further special damage incurred by the appellant since the decision in the suit.

In addition to the appeal on quantum, we also have before us a cross-appeal filed by the respondent against the judge's apportionment of responsibility for the accident. He found the appellant to have been 25 per cent to blame, and the respondent's driver 75 per cent. I propose to deal first with the cross-appeal. Mr. Hime for the respondent, submitted that as neither driver had any clear recollection of what happened, and as the collision took place on the white line in the middle of the road, both drivers should have been held equally to blame, and he relied on *Lakhamshi v. Attorney-General*, [1971] E.A. 118.

The accident happened on a winding portion of the Limuru to Nairobi road, near the Kigwaru Poultry Farm. The appellant was driving her Toyota car towards Limuru, and the respondent's Citroen car was being driven towards Nairobi. It was following a bus. The appellant remembered seeing the bus, then she "vaguely" remembered being confronted by "something dark" immediately in her path. She must have applied her brakes violently, because Inspector Ismail who was quickly on the scene saw tyre marks about 28 ft. long made by the Toyota. To him it appeared as if the driver of the Toyota had made an "emergency braking" when on her correct side of the road, and then skidded out of control towards the centre of the road. The respondent's driver deposed that he was driving on his correct side, some 60 ft. behind the bus, when the appellant's car came across the white line and hit his car. Both he and the appellant were rendered unconscious, and their passengers were of no assistance as witnesses. The bus-driver unfortunately could not be traced. Two statements made by him, one to a police officer and one to a clerk in an advocate's office, were admitted under s. 35 (1) of the Evidence Act. The trial judge attached very little importance to these statements, and I propose to disregard them. It

seems to me clear that the appellant was faced with a sudden emergency, and violently applied her brakes. This caused her to lose control of her car which turned sharply towards the centre of the road. I agree that her speed may well have been too high in the circumstances, as the trial judge thought. What was the emergency that caused her to take this sudden avoiding action? In my view it must have been the unexpected appearance in her path of the Citroen, trying to overtake the bus when it was not safe to do so. I can see no other reasonable explanation for the appellant suddenly and violently applying her brakes as she did. In those circumstances, I agree with the trial judge that the negligence of the driver of the Citroen was greater than that of the appellant, and I would not interfere with his apportionment. I would dismiss the cross-appeal with costs.

As regards the appeal, it is conceded by Mr. Hime that it must succeed, and I would so order, with costs. The judge had awarded Shs. 70,000/- as general damages in respect of:

> ". . . all the injuries and pain and suffering . . . including the possibility of a further operation and likelihood of osteo-arthritis . . ."

It is now necessary to re-assess the general damages, in the light of the supervening loss of the appellant's right leg, which has been amputated and replaced by a modern artificial leg. This is of course a serious matter, but on the credit side the appellant is no longer troubled with a deformed and painful right foot, or with the prospect of a further operation. There are also additional items of loss which the appellant is entitled to recover, which in a normal case would be described as special damages, but as they have occurred at so late a stage in these proceedings I propose to quantify them and include them in the award of general damages. These items, in so far as they are undisputed, are eight months loss of salary, which comes to £920; an additional air fare of £60; and a medical fee of £7 3s. Od.; making £987 3s. Od. in all. To this must be added something in respect of maintenance and replacement of the artificial leg, which can apparently only be done satisfactorily in the United Kingdom. I would allow £500 for this. Making the best assessment I can in all the circumstances, I would award the appellant general damages of £6,500, which must be reduced by 25 per cent to £4,875, or Shs. 97,500/-, which sum should be substituted for the Shs. 52,500/- awarded in the decree. The special damages of Shs. 15,750/- with interest at 8 per cent from 3 September 1970 to 19 July 1972 awarded in the decree will stand. Interest thereafter on those special damages will be at court rates until payment, likewise on Shs. 52,500/- of the general damages from 19 July 1972 until the date of this judgment, and on the total general damages of Shs. 97,500/- from the date of this judgment until payment.

**Sir William Duffus P:** I agree with the judgment of Law, J.A. and as the Vice-President also agrees the appeal is allowed and the cross-appeal dismissed in accordance with the order set out in his judgment.

**Spry VP:** I agree and have nothing to add.

*Appeal allowed, cross-appeal dismissed.*

For the appellant:
*K. A. Fraser* (instructed by *Hamilton Harrison & Mathews*, Nairobi)

For the respondent:
*P. J. Hime* (instructed by *Kaplan and Stratton*, Nairobi)

## Giella v Cassman Brown & Co Ltd
[1973] 1 EA 358 (CAK)

| | |
|---|---|
| **Division:** | Court of Appeal at Kampala |
| **Date of judgment:** | 12 July 1973 |
| **Case Number:** | 51/1972 (87/73) |
| **Before:** | Sir William Duffus P, Spry VP and Law JA |
| **Sourced by:** | LawAfrica |
| **Appeal from:** | The High Court of Uganda – Musoke, J. |

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*[1] Appeal – Discretion – Exercise of judge's power – Grant of injunction – when appeal court will interfere.*

*[2] Injunction – Interlocutory – Prima facie case with probability of Success and damages not an adequate remedy – When balance of convenience to be considered.*

*[3] Contract – Restraint of trade – Master and servant – Principles governing restriction.*

**Editor's Summary**

An interim injunction was granted in the High Court to stop the appellant competing with the respondent his former employer on the basis of a covenant by him not to engage in a similar undertaking in any of the six major towns of East Africa.

On appeal the appellant argued that the judge should have allowed an adjournment for him to file an affidavit, that the order was defective in not specifying the period for which it was granted, that no reasonable probability of success had been shown by the respondent and that it had not been shown that damages would not be an adequate remedy.

**Held** –

(i) the judge had properly exercised his discretion not to grant an adjournment;

(ii) the defect in the order was only an irregularity: it must have been intended to be until the hearing of the suit;

(iii) the court's discretion to grant an injunction will not be interfered with unless it has not been exercised judicially (*Sargent v. Patel* (4) followed);

(iv) an applicant must show a prima facie case with a probability of success;

(v) an injunction will not normally be granted unless the applicant might otherwise suffer irreparable injury;

(vi) when the court is in doubt, it will decide the application on the balance of convenience;

(vii) contracts in restraint of trade are generally invalid but a partial restraint in a contract of employment may be valid if it is reasonable in the interests of both parties;

(viii) an employer is not entitled to protection against competition;

(ix) it has only to be established whether a valid agreement has in fact been made;

(x) in the circumstances it was doubtful whether there was a reasonable probability of the respondent succeeding;

(xi) the respondent had completely failed to show that it could not be compensated in damages;

(xii) normally the proper award of costs on such an application is for costs in the cause if the

applicant is successful and costs against him if he is not.

Appeal allowed.

**Cases referred to in judgment:**

(1) *Mason v. Provident Clothing & Supply Co*., [1913] A.C. 724; [1911-13] All E.R. Rep. 400.

(2) *Herbert Morris v. Saxelby*, [1916] 1 A.C. 688; [1916-17] All E.R. Rep. 305.

(3) *Attwood v. Lamont*, [1920] 3 K.B. 571; [1920] All E.R. Rep. 55.

(4) *Sargent v. Patel* (1949), 16 E.A.C.A. 63.

(5) *E.A. Industries v. Trufoods*, [1972] E.A. 420.

**Judgment**

The following considered judgments were read. **Spry VP:** The appellant was employed by the respondent company under a contract which contained an undertaking on the part of the appellant that on the determination of the contract he would not engage in a similar undertaking within a radius of ten miles from the central post offices of various towns and cities in East Africa, including Kampala and Jinja. The contract was duly determined by notice and thereafter the appellant joined a firm which is alleged to have carried on a similar business to that of the company and in the same street in Kampala.

After a warning letter had been sent, and apparently not acknowledged, the company filed a suit against the appellant, alleging a breach of the undertaking referred to above, the soliciting of business, the disclosure of confidential information and the enticement of employees of the company, and praying for an injunction and damages.

On 1 June 1972, the company filed a chamber summons, seeking a temporary injunction to restrain the appellant from continuing his employment in Kampala or Jinja. This was heard on 7 June 1972, when the advocate for the appellant sought an adjournment, to enable him to prepare an affidavit in reply to that which supported the chamber summons. This was refused, the hearing continued and, in the event, the temporary injunction was granted. It is against that order that the present appeal is brought.

Before dealing with the more substantial grounds of appeal, it may be convenient to dispose shortly of two grounds of complaint.

First, it was argued by Mr. Kirenga, who appeared for the appellant, that the adjournment sought ought to have been allowed, as it was in the interests of justice that the trial judge should have had all the facts before him. We indicated to Mr. Mugenyi, who appeared for the company, that we did not require to hear him on this question. The grant or refusal of an adjournment is an exercise of judicial discretion, with which we are always reluctant to interfere, and we were satisfied that the appellant had had sufficient notice of the application to have enabled him to file an affidavit if he had acted with due diligence.

Secondly, it was submitted that the order made was defective in that it did not specify the duration of the injunction, as required by O. 27, r. 2 (2). I would agree that both the application and the order were defective but I cannot regard this as anything more than an irregularity. A suit had been filed seeking an injunction and it must, I think, have been implicit in the application for a temporary injunction that it was required pending the determination of the suit.

I now come to the real substance of the appeal. Mr. Kirenga submitted that the judge ought not to have granted a temporary injunction because the necessary

conditions for such an order had not been satisfied. In particular, he argued that it is not usual to grant a temporary injunction unless the applicant can show a reasonable probability of success and can show that if the injunction is not granted, he will suffer irreparable damage which cannot be compensated in damages. Neither of these matters had been taken into account by the judge. As regards the possibility of success, Mr. Kirenga argued that the onus was on the company, as the applicant for the injunction, to show that the undertaking given by the appellant, being in restraint of trade, was reasonably necessary in relation to the particular business concerned and this, in Mr. Kirenga's submission, he had failed to do.

Mr. Mugenyi submitted that the judge had been fully entitled to make the order he did. He had before him an allegation that the appellant was engaging in a business similar to that of the company and was actually taking business away for that company, and that allegation had not been rebutted. In those circumstances, the nature of the business was unimportant. Mr. Mugenyi also argued that if actual interference with customers was shown, it was not essential to show irreparable injury. The judge had applied his mind to the tests of reasonableness and the requirements of public policy.

I will begin by stating briefly the law as I understand it. First, the granting of an interim injunction is an exercise of judicial discretion and an appellate court will not interfere unless it be shown that the discretion has not been exercised judicially (*Sargent v. Patel* (1949), 16 E.A.C.A. 63).

The conditions for the grant of an interlocutory injunction are now. I think, well settled in East Africa. First, an applicant must show a prima facie case with a probability of success. Secondly, an interlocutory injunction will not normally be granted unless the applicant might otherwise suffer irreparable injury, which would not adequately be compensated by an award of damages. Thirdly, if the court is in doubt, it will decide an application on the balance of convenience. (*E.A. Industries v. Trufoods*, [1972] E.A. 420.)

Contracts in restraint of trade are generally invalid as being contrary to public policy, but a partial restraint in a contract of employment may be enforced if it is reasonable in the interests of both the contracting parties, the proof of which is on the person seeking to enforce the restriction (*Attwood v. Lamont*, [1920] 3 K.B. 571). An employer is entitled to have his trade secrets protected and he is entitled not to have his old customers enticed away from him (*Herbert Morris v. Saxelby*, [1916] 1 A.C. 688 at p. 702). He is not entitled to protect himself from his former employee's competition per se; he is only entitled to such restraints as are necessary for the protection of his rights and whether there are such rights "must depend on the character of the business" (*per* Viscount Haldane, L.C. in *Mason v. Provident Clothing and Supply Co*., [1913] A.C. 724 at p. 731). Finally, one does not look to see whether a valid agreement could have been made, but whether the agreement actually made was valid (*Mason's* case, supra). I have cited English authorities for these propositions, because the English law of contract applies in Uganda by virtue of the Contract Act (Cap. 75), and I do not think they have been re-stated in any case originating in Uganda.

In the light of these general principles, I now turn to the facts of the present case. If the company is to succeed in the suit, it will have to show that the undertaking given by the appellant was reasonable. The judge held that there was nothing unreasonable about the undertaking, but his attention does not seem to have been directed to the leading authorities, and he was referred to decisions which must now, I think, be regarded as obsolete. He considered the undertaking only in relation to Uganda, although it applies also to Kenya and Tanzania, without expressly considering whether it was severable. Moreover,

he did not consider it in relation to the nature of the company's business. Indeed, it is an extraordinary feature of these proceedings that there is no mention of this, either in the plaint or in the affidavit supporting the chamber summons. I do not think this omission was necessarily fatal to the application but I do think it must result in the company being regarded as entitled only to the minimum of protection. Again, I think, with respect, that the judge was premature in holding that the undertaking was not unreasonable: this was the question to be decided in the suit and all that the judge had to decide at that stage was whether the suit had a reasonable probability of success. I should have thought it was very doubtful. The undertaking, in effect, precludes the appellant for a period of three years from carrying on any business similar to that of the company in any of six of the main cities and towns of East Africa. We do not know the nature of that business and if it is of a general nature, embracing a variety of activities, the restraint is of considerable effect and might well be considered unreasonable.

The second question, which the judge did not consider, is whether any loss which the company might sustain could not be compensated by an award of damages. We do not know the scale of the company's operations or that of the firm which the appellant has joined. We do not know whether the nature of their business is the same or whether they merely overlap. The allegations in the affidavit supporting the chamber summons are of a very general nature and we do not know whether the activities of the appellant, who worked for the company for less than two years, are likely to do serious injury to the company or merely cause annoyance. It may be that the appellant would not be in a position to meet an award of damages, but that has not been alleged.

I accept that the respondent company has shown a prima facie case with a possibility of success, but personally I would not go so far as to say that a probability of success has been shown. I would not, however, on that ground have felt justified in interfering with the exercise of a judicial discretion. But there is also the question whether any damage suffered could not be compensated in damages, and on this I feel that the company has completely failed to justify its application. Taking the two factors together, I am of the opinion that the grant of the temporary injunction was not justified and that it must be set aside.

Finally, it was submitted that the judge was in error when he awarded the costs of the application to the respondent company. Mr. Kirenga submitted that the proper order would have been for the costs to be costs in the cause. Mr. Mugenyi argued that it is usual for costs to follow the event and that in any case they were in the judge's discretion. I am not aware of any authority on the subject and none was cited to us. In my opinion, the proper order in circumstances such as these where an application is successful is that the costs of the application should be costs in the cause, although an unsuccessful applicant will normally be penalised in costs.

I would allow this appeal, with costs, and discharge the temporary injunction. I would set aside the order for costs in the High Court and grant the appellant his costs in that court also.

**Sir William Duffus P:** I agree with the judgment of the Vice-President and as Law, J.A. also agrees the appeal is allowed in accordance with the order set out in his judgment.

**Law JA:** I have read the judgment prepared by Spry, V.-P. with which I am in full agreement. I concur in the order proposed.

*Appeal allowed.*

For the appellant:
*E. S. Kirenga* (instructed by *Kirenga & Gaffa*, Kampala)

For the respondent:

# Uganda v Lule
[1973] 1 EA 362 (CAK)

| | |
|---|---|
| **Division:** | Court of Appeal at Kampala |
| **Date of judgment:** | 8 June 1973 |
| **Case Number:** | 17/1973 (88/73) |
| **Before:** | Sir William Duffus P, Spry VP and Law JA |
| **Sourced by:** | LawAfrica |
| **Appeal from:** | The High Court of Uganda – Kantinti, J |

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*[1] Appeal – Order from – Order not involving decision of criminal appeal – No appeal.*

**Editor's Summary**

The appellant's appeal to the High Court was dismissed when his advocate failed to appear. Thereafter, acting under its inherent jurisdiction, the High Court reinstated the appeal.

The Republic appealed from that order and contended that the Court of Appeal had jurisdiction to hear the appeal since s. 331 B, Criminal Procedure Code gave jurisdiction, alternatively that s. 40 (1) of the Judicature Act conferred on the Court of Appeal the High Court's inherent jurisdiction.

**Held** –

(i) there is no appeal from orders of the High Court incidental to a criminal appeal but not involving the decision of the appeal (*Ralph v. R.* (1) followed);

(ii) s. 331 B Criminal Procedure Code gives the court powers but does not confer jurisdiction;

(iii) s. 40 (1) Judicature Act gives to the court powers only in respect of appeals in respect of which jurisdiction is specifically conferred.

Appeal struck out.

**Cases referred to in judgment:**

(1) *Ralph v. R.*, [1960] E.A. 310.

(2) *Attorney-General v. Shah* (No. 4), [1971] E.A. 50.

**Judgment**

The considered judgment of the court was read by **Law JA:** The respondent was, on 18 July 1972, convicted of possession of a forged Shs. 100/- note, contrary to s. 336 of the Penal Code, and was sentenced to 6 months imprisonment, in the Chief Magistrate's Court at Kampala. He instructed an advocate, Mr. Kityo, to appeal on his behalf to the High Court. The notice and petition of appeal were duly filed, and notice of hearing of the appeal was served at Mr. Kityo's office, but due to an oversight on the part of a clerk no note was made in Mr. Kityo's diary. As a result, when the appeal was called on for hearing on 27 November 1972, Mr. Kityo did not appear and the appeal was

dismissed by Phadke, J. for want of prosecution. Mr. Kityo then applied to the High Court for the appeal to be reinstated, setting out in an affidavit in support of the application the reasons for his failure to appear on 27 November. The application was granted by Kantinti, Ag. J. on 13 February 1973, purportedly in the exercise of his inherent jurisdiction, as there exists no statutory provision for the reinstatement of appeals which have been dismissed for want of prosecution. The State then appealed to this Court against the order reinstating the appeal. On 6 June 1973, after hearing Mr. Tsekooko for the State and Mr. Kityo for the respondent, we held that we had

no jurisdiction to entertain the appeal and dismissed it as incompetent, making no order as to costs. We now give our reasons.

To quote from the judgment of Spry, Ag. P. in *Attorney-General v. Shah* (*No.* 4), [1971] E.A. 50:

> "It has long been established and we think there is ample authority for saying that appellate jurisdiction springs only from statute. There is no such thing as inherent appellate jurisdiction."

On 5 June 1973, when we intimated to the advocates concerned with this appeal that we wished to be satisfied that this Court had jurisdiction to entertain it, Mr. Tsekooko stated that the statutory authority for the institution of this appeal was to be found in s. 337 (1) of the Criminal Procedure Act, which reads as follows:

> "Either party to an appeal from a magistrate's court may appeal against the decision of the High Court in its appellate jurisdiction to the Court of Appeal on a matter of law, not including severity of sentence, but not on a matter of fact or of mixed law and fact."

When the hearing resumed on 6 June, Mr. Tsekooko withdrew his submission, his attention in the interval having been drawn to the case of *Ralph v. R.*, [1960] E.A. 310, in which the corresponding Kenya section was considered, and in which it was held that the right of either party to appeal to this Court from appellate decisions of the High Court did not entitle those parties to appeal from orders of the High Court incidental to an appeal but not involving the decision of the appeal. That decision, with which we respectfully find ourselves in full agreement, exactly covers the present case. What the State is seeking to appeal against is not a decision of the High Court in its appellate jurisdiction, but an incidental or interlocutory order made in respect of an appeal which has not yet been heard, s. 337 (1) of the Criminal Procedure Act has no application to such an order. Incidentally, when considering *Ralph's* case, it is worth setting out the following sentence taken from the judgment of the Court:

> "This Court has no inherent power to exercise jurisdiction where no right of appeal is provided."

Mr. Tsekooko then submitted that the necessary authority for this Court to entertain the appeal was to be found in s. 331 B of the Criminal Procedure Act, which reads:

> "The appellate court may on any appeal from any order other than a conviction, acquittal or dismissal alter or reverse any such order."

With respect, this section deals with powers and not with jurisdiction, and does not in our view by itself confer jurisdiction on any particular class of appellate court to entertain appeals against orders as opposed to appeals against convictions, acquittals or dismissals. It creates a power which may be exercised where jurisdiction exists, but it does not create jurisdiction. Mr. Tsekooko's final submission is that the necessary jurisdiction to entertain this appeal is to be found in ss. 40 and 3 of the Judicature Act 1967. By s. 40 (1), the Court of Appeal shall have such jurisdiction as is conferred upon it by the Act or by any other written law. By subsection (2) the Court of Appeal shall, in the exercise of its jurisdiction, have the power, authority and jurisdiction vested in the court from which the appeal is brought. These provisions make it perfectly clear that this Court's jurisdiction is limited to such jurisdiction as is specifically conferred by law, and that in the exercise of such jurisdiction, this Court has the powers, authorities and jurisdiction of the Court from which the appeal is brought. By s. 3 (2) (*c*) the High Court's jurisdiction, where no express law

or rule is applicable, shall be exercised in conformity with the principles of justice, equity and good conscience. The High Court's order, the subject of this appeal, was made in the exercise of this inherent jurisdiction, and Mr. Tsekooko's submission, as we understand it, is that this Court by virtue of s. 40 (2) aforesaid, is vested with the same inherent powers as the High Court for the purposes of this appeal and is therefore competent to deal with it. With respect, we do not agree, As was pointed out in *Shah's* case this Court only has such jurisdiction as is expressly conferred by the legislature. It is only once that jurisdiction is shown to exist in relation to any matter that this Court becomes vested with the powers of the Court from which that matter originated. It has not been shown to our satisfaction that we have jurisdiction to entertain an appeal against an interlocutory order arising out of a High Court appeal not involving the decision of the appeal itself. For these reasons we dismissed this appeal as incompetent.

Mr. Kityo applied for costs, but as he could point to no authority for the award of costs in criminal appeals, and as it is not the usual practice to award costs in such appeals, we made no order as to costs.

*Appeal struck out.*

For the appellant:
*J. W. N. Tsekooko*

For the respondent:
*J. Kityo*

## Khalif v Republic
[1973] 1 EA 364 (HCK)

| | |
|---|---|
| **Division:** | High Court of Kenya at Nairobi |
| **Date of judgment:** | 29 May 1973 |
| **Case Number:** | 155/1973 (89/73) |
| **Before:** | Sir James Wicks CJ and Trevelyan J |
| **Sourced by:** | LawAfrica |

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*[1] Traffic – Dangerous driving – Not an absolute offence – Must be fault on part of driver.*

*[2] Evidence – Dangerous driving – Happenings before and after accident – Admissible when relevant to charges.*

*[3] Criminal Practice and Procedure – Sentence – Dangerous driving – Prison appropriate where deliberate risk-taking.*

**Editor's Summary**

The appellant was convicted of dangerous driving, failing to stop after an accident and using an unlicensed and uninsured vehicle. He was sentenced to 15 months imprisonment. The facts are set out in the judgment.

On the appeal it was argued that there should have been three charges in respect of the different periods of driving and that a custodial sentence should not have been imposed.

**Held** –

(i) dangerous driving is not an absolute offence: there must be some fault on the part of the driver (*R. v. Gosney* (2) followed);

(ii) what happens shortly before and after an accident is admissible if relevant to the charge;

(iii) a prison sentence is appropriate when there is an element of deliberate risk taking (*Wanjema v. Republic* (3) and *R. v. Tyrer* (4) followed).

*Appeal dismissed.*

**Cases referred to in judgment:**

(1) *R. v. Ball and Loughlin* (1966), 50 Cr. App. R. 266.

(2) *R. v. Gosney*, [1971] 3 All E.R. 220.

(3) *Wanjema v. Republic*, [1971] E.A. 493.

(4) *R. v. Tyrer*, [1972] Crim. L.R. 55.

**Judgment**

The considered judgment of the court was read by **Trevelyan J:** A Mr. Christopher was driving his car along Kenyatta Avenue, Nairobi, in the early hours of the morning of 14 September 1972. He had been to a night club and was making his way towards the city centre. He was approaching the Kirk Road junction which was on his left, and was driving in his near side lane. At that point, and for some distance on either side of it, Kenyatta Avenue is a dual carriageway with four lines of traffic, two available for vehicles going towards the city centre and two for those going away from it. In the centre of the road are elongated road islands. Part of these islands is opposite the junction, and there are three signs facing Kirk Road there, one saying "Yield", another saying "No right turn", and the third, referred to as a blue sign, with an arrow pointing left towards the city centre. In the words of the trial magistrate who visited the scene, "all these signs are erected conspicuously for any motorist from Kirk Road to be able to see them". No one driving down Kirk Road and seeing these signs could doubt that he was approaching a major road and must on entering it, turn left. With the kerb of the islands in front of him, such driver could not believe that he could, in his car, directly cross to the other side.

The appellant had been driving down Kirk Road, and in spite of the signs, turned right instead of left as he entered Kenyatta Avenue. Mr. Christopher suddenly saw a car coming towards him "somewhere in the middle of the two lanes" as he described it, the two cars collided with each other. Mr. Christopher's car was turned over and he, trapped upside down in it, received injuries and was rendered unconscious. The impact caused the appellant's car to stop, but he promptly drove away from the scene, still on the wrong side of the road until he reached Valley Road and he then turned into Third Ngong Avenue some 650 yards away. There, a taxi driver who had seen the incident occur and had followed the appellant, asked him if he was all right, and he said that he was. He then drove, once more on the wrong side of the road along Kenyatta Avenue towards the City Centre and into a petrol station where he parked his car and began to make his way in the direction of the Starlight night club. In due course he was charged on a number of counts and was convicted on four of them, two for using an unlicensed vehicle and for using an uninsured vehicle, upon his confession of guilt, and the other two, for dangerous driving and for failing to stop after an accident, upon trial. He received custodial sentences totalling 15 months' imprisonment and was disqualified for holding a driving licence for 3 years. His licence was not however, ordered to be endorsed. He now appeals to this court against the convictions for dangerous driving and for failing to stop, and against all four sentences.

The memorandum of appeal contains a number of grounds in relation to conviction, but when he appeared before us yesterday, counsel for the appellant said that he would urge no argument in support of the conviction for failing to stop after the accident, and that, in respect of the charge for dangerous driving, he would put forward, and concentrate upon, the one feature only which could, as he said, be "legitimately argued". It was not one of the grounds mentioned in the memorandum of appeal, but we allowed it to be taken and, in a moment,

we shall deal with it. We wish first to say that we have read and considered the recorded evidence and we have no doubt that the appellant was guilty of both the charges of dangerous driving and that of failing to stop.

Counsel put his argument to us in this way, that upon the evidence there were, in his words, "three separate transactions of driving", one from the time when the appellant entered Kenyatta Avenue up to the occurrence of the accident, the second from the time immediately after the accident when, still on the wrong side of the road, he drove to Third Ngong Avenue, and the third from the time when he drove, once more on the wrong side of the road, to where he parked his car. Accordingly, though the charge was not duplex, it was confusing, and there should have been 3 charges and not just one. If we understood the argument correctly, it was based, or based to a large extent, on the proposition that merely to drive in the wrong direction on a carriageway spells out dangerous driving. As we shall see, the trial magistrate also thought that this was the law, but it is not. It was considered to be so following the decision in *R. v. Ball and Loughlin* (1966), 50 Cr. App. R. 266, but *R. v. Gosney*, [1971] 3 All E.R. 220, which, with respect, we consider to have been correctly decided, makes it clear that dangerous driving is not an absolute offence, and that to justify a conviction there must not only have been a situation which, viewed objectively, was dangerous, but also some fault on the part of the driver, causing that situation. Accordingly, the argument proffered was not, with respect, soundly based. When the prosecutor opened his case in the court below he said, as it is recorded:

> "It is the prosecution case that accused was driving on wrong side of road. He ran into a vehicle which [was] driving to town on its correct side. That other vehicle overturned and a passenger injured. Accused extracted his car from accident and drove from that point on wrong side of road passed [sic] the Starlight Club and into 3rd Ngong Avenue. He stopped at Loreto Convent (later on he drove his car back to a Petrol Station next to Pan Afric Hotel and locked it. From there accused went into Starlight Club. Accused had left the other driver unattended."

Neither then nor later in the trial did the defence suggest that they did not know the case which they were meeting. At no time was it suggested that, because there was only one, and not three, charges, was the defence embarrassed or prejudiced. The appellant was represented by counsel at the trial and put up a spirited, one is tempted to say, pugnacious defence, which evinced no sign of being unable to understand what the prosecution case was. The first time that a suggestion of irregularity, and inferentially, prejudice, was raised, was yesterday. It was far too late assuming there to have been an irregularity; which there was not. Nor were there "three separate transactions of driving". Just as what occurs shortly before an accident is admissible in evidence if it has some relevance to what is charged, so is what occurs shortly after its happening, if it is also relevant. Here, of course, what happened after the accident was not only admissible in respect of the dangerous driving charge, but necessary to the charge for failing to stop. As we read the magistrate's judgment, he believed that there was but one "transaction" and that the gravamen of the charge was that the appellant, ignoring all the signs turned not left as he was required to do, but right in the face of an oncoming car. And no one else, certainly not the appellant and his counsel, could have believed otherwise. The appeal against the convictions entered is dismissed, but before we turn to the appeal insofar as it relates to sentence, we think we should refer to the misdirection on the part of the trial magistrate to which we earlier alluded. He said:

> "The fact that the accused did drive on the incorrect direction of the carriageway is by itself sufficient evidence of dangerous driving".

As we pointed out earlier, it is not so. "Fault" is an essential part of the offence. However, the magistrate found, and we find, that there was undoubted fault on the part of the appellant and so the misdirection has occasioned no failure of justice.

In relation to sentence, four arguments were advanced, that the prosecution led the trial magistrate to treat the offences as more serious than the facts warranted, that the magistrate wrongly assumed certain facts, that fines would have been adequate punishments and, at any rate the sentences for dangerous driving and failing to stop should have been ordered to be served concurrently. As we read the magistrate's note, he was not improperly influenced by what the prosecution told him. Indeed in his note he refers only to what was urged in mitigation. Nor, as we think, were wrong assumptions made. If they were, the sentences for dangerous driving and driving without insurance were yet well merited. As the magistrate so rightly said in regard to the dangerous driving and failing to stop charges:

> ". . . the accused's manner of driving had no regard and consideration whatsoever to other road users . . ."

and:

> ". . . here is a very responsible motorist whose car crashes with another car, the latter of which overturns and then the accused drives off without any consideration to the lives of the occupants of the overturned car".

As for the comments that the appellant must have known that the car was unlicensed and uninsured, we cannot say that on the facts, the magistrate was wrong to infer that it was so. But, in any event, the licence was there on the car to be seen and at least, before using the car on the road, the appellant should have made certain that it was insured.

The law provides for both custodial and pecuniary penalties for dangerous driving. But, in *Wanjema v. Republic*, [1971] E.A. 493 at p. 494, this court said, in relation to the offence of causing death by dangerous driving.

> "But it appears to be a rule in England and I would endorse it for adoption here, to consider imprisonment only where there is some element of deliberate risk-taking such as racing or a degree of intoxication in the driver, though there may also be cases where evidence of conscious recklessness in the offender's driving will be enough . . ."

And, upon a conviction for a similar offence in England, the Court of Appeal in *R. v. Tyrer*, [1972] Crim. L.R. 55, held that the gravity of dangerous driving is greater where it arises from a deliberate and calculated judgment to do something which any reasonable driver would recognise as unsafe, than where it arises from inadvertence. In this case there was, as the trial magistrate believed, and as we believe, conscious recklessness and deliberate risk-taking on the appellant's part. What he did was as a result of a deliberate and calculated judgment. No prudent driver would have done as he did. It is true that Mr. Christopher was not killed, but he might well have been in need of assistance to save his life. We believe that the magistrate did not wrongly exercise his discretion in ordering a prison sentence of 5 1/2 months on this charge, and we shall not interfere with the award. The magistrate should have ordered that the conviction be endorsed on the appellant's licence. This will be done. In the circumstances of this case, we think we need say no more than that the sentence of 2 months imprisonment for failing to stop will be served concurrently with the sentence for dangerous driving. The sentence of 5 1/2 months' imprisonment on the insurance charge was very well deserved and is sustained, and, for the avoidance of doubt, we attach the order for disqualification to this charge.

Ordinarily, driving without a licence does not call for a custodial sentence, but as the appellant has been awarded imprisonment on the insurance charge, we will simply order that the 2 months imprisonment ordered shall be served concurrently with it. In the result, the appellant will serve a total of 11 months' imprisonment instead of 15. Save as to this, is the appeal against sentence also dismissed.

*Order accordingly.*

For the appellant:
*A. R. Kapila* (instructed by *A. R. Kapila & Co.*, Nairobi)

For the respondent:
*S. S. Rao* (Assistant Deputy Public Prosecutor)

# Republic v Kidasa
## [1973] 1 EA 368 (HCK)

| | |
|---|---|
| **Division:** | High Court of Kenya at Nairobi |
| **Date of judgment:** | 3 April 1973 |
| **Case Number:** | 20/1973 (90/73) |
| **Before:** | Trevelyan and Hancox JJ |
| **Sourced by:** | LawAfrica |

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*[1] Appeal – Acquittal, from – On law – Finding no court could have come to – Appeal competent – Criminal Procedure Code, s.* 348*A* (*K.*).

**Editor's Summary**

The appellant appealed against the acquittal of the respondent contending that the magistrate had not come to proper findings on the evidence before him and that by his failure he had erred in law, thereby giving a right of appeal.

**Held** –

(i) The magistrate came to a conclusion on the evidence to which no court properly directing itself could have come and this was an error in law (*R. v. Mallo* (1) followed);

(ii) the case would be remitted for the magistrate to prepare a fresh judgment without hearing further evidence.

Order accordingly.

**Cases referred to in judgment:**

(1) *R. v. Mallo,* [1958] E.A. 11.

(2) *Merali v. Uganda,* [1963] E.A. 647.

(3) *Okale v. Republic*, [1965] E.A. 555.

(4) *Patel v. Republic*, [1968] E.A. 97.

**Judgment**

The considered judgment of the court was read by **Trevelyan J:** The respondent, a travelling ticket examiner, was charged on one count of fraudulent false accounting, on five more counts of theft by a public servant and on one count of theft as agent. The case put against him was, that having been provided with books of tickets to issue to passengers who had not paid their fares on trains, or were required to pay excess fares, he issued tickets upon payment from those books, pocketing the proceeds, omitted to enter the transactions in the particular returns which he was required to send in to his employer, and failed to return the books (less the copies of the tickets which he had issued) presumably because, if he did so, his offences would become manifest.

Anticipating that the point might be taken, which in the event it was not, that the Republic had no right of appeal in this case, counsel addressed us on the

matter. We are quite satisfied that we have jurisdiction in the appeal but, as we can the easier give our reasons after we have disposed of the case on its merits, we shall explain why we are so satisfied later in this judgment.

[The judge then considered the evidence and the magistrate's findings on it and continued.]

The magistrate concluded his judgment by saying that there was plenty of suspicion about the respondent's guilt but there was not enough evidence on which convictions could properly be entered, and on that basis, it is difficult to see why the magistrate found that there was a case to answer at all. It does not, however, matter for the case will have to go back to him so that he may consider it as the law requires. But before we give the necessary directions, we will deal with the matter of the competency of the appeal.

S. 348A of the Criminal Procedure Code, inter alia, gives the Attorney-General the right to appeal from an acquittal on a trial held by a subordinate court, but only on a point of law, and the question which troubled counsel for the appellant was whether, on the facts of the case, there could be said to be such a point. We entertain no doubt that there is. In *Patel v. Republic*, [1968] E.A. 97 the accused was charged with dangerous driving, his car having suddenly swerved to the right and, at the end of the case for the prosecution, the magistrate (apparently) accepted the evidence led, but dismissed the charge on the ground that the prosecution had nonetheless not made out a case against the accused sufficiently to put him on his defence. In holding that no reason had been given by the accused for the car skidding or swerving and that in the absence thereof there was patent evidence of dangerous driving, the court, which was concerned as we are with s. 348A, said that the first matter for consideration was whether the High Court had jurisdiction to entertain the appeal, and went on to quote from the judgment in *Merali v. Uganda*, [1963] E.A. 647 at p. 648:

> "The question of law for the High Court was whether the decision of the magistrate that no prima facie case had been made out was one at which a reasonable court, properly directing itself, could arrive."

It went on to say:

> "We consider that no reasonable court, properly directing itself, on the evidence which it had before it could possibly arrive at an order for acquittal."

In *R. v. Mallo*, [1958] E.A. 11, also an appeal against an acquittal, McKisack, C.J., said, at p. 12 in relation to the statutory requirements as to the contents of a judgment in Uganda, these requirements being similar to those which our Criminal Procedure Code lays down:

> "In the case of an acquittal, I do not think that this section is to be read as requiring a magistrate to deal with every point which would have to be decided in the case of a conviction; for example, a decision in favour of the accused on one ingredient of the offence charged may make it unnecessary to reach a decision on the others. But in the present case the judgment does not deal at all with the question whether accused received the money as alleged by the prosecution. I think that was a substantial error of law, and on that ground alone the appeal must be allowed."

This ground had been expressed in these terms, "that the magistrate made no proper or sufficient finding on the facts". In the instant case not only did the trial magistrate make no proper or sufficient finding on the facts, but he came to a conclusion on prefixes to which no reasonable court, properly directing

itself could, on the evidence, possibly have come. He clearly erred in law and thereby precluded himself from giving any or adequate consideration to the rest of the evidence. In other words having administered to himself an erroneous direction on law, he was prevented from coming to a proper conclusion on the facts.

S. 354 (3) (ba) of the Criminal Procedure Code gives us power to:

> "reverse, affirm or vary the determination of the subordinate court, or remit the matter with the opinion of the High Court thereon to the subordinate court for determination, whether by way of rehearing or otherwise, with such directions as the High Court may think necessary . . ."

and, acting thereunder, we set aside the acquittal and order for the discharge (except in respect to count 8, on which we shall have something to say in a moment) and order the magistrate, without the taking of any further evidence, to redetermine the matter on the basis that the prosecution had established that the six tickets concerning counts 2 to 7 were issued to the respondent on the dates and in the manner alleged by the prosecution. He will bear in mind, as was said in *Okale v. Republic*, [1965] E.A. 555, that no single piece of evidence should be weighed except in relation to all the other evidence in a case and that the question of fraud in relation to count 1 must be properly determined. We are giving no directions about count 8, not because we do not think that on the evidence a conviction could not properly have been entered upon it, but because counsel for the appellant felt that she could not, as she put it, "particularly quarrel with the magistrate's findings thereon". Miss Rattansi for the appellant initially asked us to substitute orders of conviction for the acquittals, but we feel that this is not a case where we are entitled to do this, not having had the advantage of the magistrate's findings in respect of witnesses whom he had the opportunity denied to us, of seeing and hearing. The magistrate will prepare a fresh judgment with due despatch, giving notice to the parties of the time and place where it will be delivered by him.

In conclusion we would say that the Attorney-General was demonstrably right to have appealed from this judgment which has caused us grave concern and which made no real effort to determine the issues before the court as the law requires and justice demands. The appeal is allowed.

*Order accordingly.*

Fr the appellant:
*Miss P. Rattansi* (State Counsel)

For the respondent:
*S. M. Otieno*

## Yasmin v Mohamed
[1973] 1 EA 370 (HCK)

| | |
|---|---|
| **Division:** | High Court of Kenya at Nairobi |
| **Date of judgment:** | 29 March 1973 |
| **Case Number:** | 2214/1972 (92/73) |
| **Before:** | Madan J |
| **Sourced by:** | LawAfrica |

*[1] Infant – Guardianship – Jurisdiction – Ismaili child – High Court has jurisdiction – Guardianship of Infants Act* (*Cap.* 144) (*K*.).

**Editor's Summary**

The plaintiff applied under the Guardianship of Infants Act (Cap. 144) for the custody of the child of the marriage.

The defendant applied to stay the application on the ground that the parties had agreed to refer guardianship disputes to the Ismailia Provincial Council and that by analogy with arbitration proceedings the application should be

stayed for the decision of the Council. The plaintiff contended that the Guardianship of Infants Act conferred exclusive jurisdiction of the High Court.

**Held –**

(i) the High Court has jurisdiction over all infants in Kenya.

Application dismissed.

**No cases referred to in judgment.**

**Judgment**

**Madan J:** The plaintiff and defendant are husband and wife who were married to each other in accordance with the personal laws applicable to them as members of the Shia Imami Ismailia community who are followers of His Highness the Aga Khan.

The plaintiff instituted these proceedings by way of originating summons under the Guardianship of Infants Act asking to be given legal custody with maintenance of the one child of the marriage.

The defendant entered an appearance under protest stating that the summons herein under the Guardianship of Infants Act is misconceived and incompetent in law as the said Act is inapplicable to the parties and the proceedings between the parties by their personal law and custom are referable to their Communal Tribunal.

Now before the court is a chamber Summons filed by the defendant who is asking for all further proceedings in this case to be stayed. In his affidavit in support of the application the defendant has deponed that he and the plaintiff were married in accordance with a contract of marriage dated 19 November 1970, which he and the plaintiff both signed and also in accordance with the Constitution of the Shia Imami Ismailis in Africa.

The defendant has further deponed that the said contract of marriage by paragraph five provides that:

> "in the event of any dispute arising between us at any time in future, in relation to our marriage or pertaining thereto we shall refer the same to H.H. The Aga Khan Shia Imami Ismailia Provincial Council in accordance with the Constitution applicable to Shia Imami Ismailis and the decision of the said Council or of any final appeal thereof shall be conclusive, final and binding upon each of us and we agree to abide by it".

Article 303 of the Constitution of the Ismalis provides:

> 303. All matters relating to guardianship of an Ismaili infant shall be referred to the Council within whose jurisdiction the infant resides.

Mr. Salter for the defendant has argued that the terms of the marriage contract are analogous to an arbitration agreement and the procedure provided in s. 6 of the Arbitration Act (Cap. 49), ought to be followed in this case because the parties themselves have agreed to refer the dispute to a tribunal of their choice.

S. 6 reads:

> "6. If a party to an arbitration agreement or a person claiming through or under him, commences any legal proceedings in any court against any other party to the agreement, or against a person claiming through or under him, in respect of a matter agreed to be referred –
>
> (*a*) . . .

> (*b*) that court, if it is satisfied that there is no sufficient reason why the matter should not be referred in accordance with the agreement, and that the applicant was, at the time when the proceedings were commenced, and still remains, ready and willing to do all things necessary to the proper conduct of the arbitration, may make an order staying the proceedings."

Mr. Salter conceded that the court has jurisdiction to entertain the plaintiff's application but he said proper effect should be given to customs and regulations of a community so long as they do not conflict with natural justice and the provisions of the Guardianship of Infants Act. Mr. Salter went on to say that there is no danger of such a conflict insofar as the Act is concerned because the Constitution of this particular community provides that it shall decide the matter in relation to guardianship of infant laws. Mr. Salter submitted that the Ismailia Provincial Council is a particularly appropriate tribunal to hear and decide a matter of this kind; moreso, when the plaintiff has herself deponed that she proposes to apply to H.H. the Aga Khan Provincial Council who has jurisdiction in this behalf for dissolution of her marriage with the defendant.

Mr. Khanna for the plaintiff has opposed the application. To begin with he attacked the procedure of taking out the application by summons. He submitted it should have been made by motion. I shall not decide the point. I do not feel the need to do so. It is not necessary for any decision.

Mr. Khanna submitted that the Guardianship of Infants Act gives this court, which is the only court conferred with jurisdiction under the Act, exclusive jurisdiction to deal with matters affecting the interests of infants which the court cannot delegate to a non-statutory communal body. I do not accept this submission. It is too wide to be accepted in its entirety. I need not dwell upon it for it is also not necessary for purposes of my decision.

With respect both counsel have misconstrued the situation by concentrating upon the arbitration aspect of the matter. Both counsel have overlooked that in referring the matter for decision to Ismailia Provincial Council, that Council exercises or will exercise a judicial or a quasi judicial function in substitution for this court and there is no question of the Council acting as a referee or arbitrator. Its decision would have the effect of a judicial decision though it may not enjoy the same rights in enforcing it as this court. It would be totally erroneous to say, for example, that the Ismailia Provincial Council pronounces a decree of dissolution of marriage by arbitrating or acting as a referee between two of its members.

This court is especially endowed with jurisdiction to safeguard the interests of infants. As Mr. Khanna said the court is the parent of all infants. The welfare of infants is paramount and it is dear to the heart of the court. There could be no better tribunal to perform the task more wisely as well as affectionately. All infants in Kenya of whatever community, tribe or sect fall within the ambit of the Guardianship of Infants Act and the court is charged with the sacred duty of ensuring that their interests remain paramount and are duly preserved.

The application is dismissed with costs. There will be a direction that the defendant file an affidavit in reply within 15 days if he so wishes, and liberty to plaintiff to file a reply within ten days of service of the defendant's affidavit. Thereafter the proceedings ought to proceed to hearing in the normal way.

*Order accordingly.*

For the plaintiff:
*D. N. Khanna* and *B. J. Hawkes*

For the *defendant*:
*C. Salter, Q.C.* and *A. Lakha*

# Mwaura and others v Republic
[1973] 1 EA 373 (HCK)

| | |
|---|---|
| **Division:** | High Court of Kenya at Nairobi |
| **Date of judgment:** | 11 May 1973 |
| **Case Number:** | 36/1973 (94/73) |
| **Before:** | Sir James Wicks CJ and Simpson J |
| **Sourced by:** | LawAfrica |

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*[1] Criminal Law – Dangerous or offensive weapon – Possession of weapon with intent to commit felony – Weapon solely for causing injury to person – Does not cover house-breaking implements – Penal Code, s.* 308 (1) (*K.*).

**Editor's Summary**

In the early hours of the morning the police arrested the six appellants who were seen to rush into a Ford Zephyr car from outside a shop.

The police found in the car a panga, an iron bar, a wheel spanner, a king shaft, a screw-driver and a stone. A chisel was tucked in the trousers of one of the appellants.

There was no evidence that any of the appellants used or attempted to use any of these articles as offensive weapons upon the person of another or for any other purpose.

The appellants were convicted of being found armed with dangerous or offensive weapons in circumstances that indicated that they were so armed with intent to commit a felony.

An offensive weapon is defined as an article made or adapted for use for causing injury to the person, or intended by the person having it in his possession or under his control for such use.

On appeal:

**Held –**

(i) a dangerous or offensive weapon is one solely for causing injury to the person and does not cover housebreaking tools (*Smaje v. Balmer* (4) followed);

(ii) the articles were not made or adapted for use for causing injury to the person and there was no evidence that they were intended for use for this purpose.

Appeals allowed.

**Cases referred to in judgment:**

(1) *Woodward v. Koessler*, [1958] 1 W.L.R. 1255; [1958] 3 All E.R. 557.

(2) *R. v. Petrie*, [1961] 1 W.L.R. 358; [1961] 1 All E.R. 466.

(3) *R. v. Powell*, [1963] Crim. L.R. 511.

(4) *Smaje v. Balmer*, [1965] 2 All E.R. 248.

**Judgment**

The considered judgment of the court was read by **Sir James Wicks CJ:** The appellants were convicted by the senior resident magistrate, Nairobi, on a charge of preparation to commit a felony contrary to s. 308 (1) of the Penal Code and sentenced to various terms of imprisonment and corporal punishment. They appeal against their conviction and the sentences.

At about 1.30 a.m. on 6 July 1972, a police patrol car came upon a Zephyr car parked in Varma Road, Nairobi. On the approach of the police car three

men were seen to rush from outside a shop and enter the Zephyr car. The police car was driven to block the car and the police party, who were armed with revolvers, ordered the six men out of the car and arrested them. They were the appellants. At various places in the car were found a panga, an iron bar, a wheel spanner, a king shaft, a screw-driver and a stone. A chisel was found tucked into the trousers of one of the appellants, but it was not alleged that he used it or attempted to use it for any purpose. The other articles were found in the car after the appellants had left it and again it was not suggested that they used them or attempted to use them for any purpose. The evidence of Inspector Malimo was that each one of the items was capable of being used as an offensive weapon against the person, also that each one had a specific use for breaking into buildings, in particular the panga having a use to cut door frames. This is a sufficient statement of the facts for the purpose of this appeal.

Were the appellants properly charged with an offence contrary to s. 308 (1) of the Penal Code? The sub-section is:

> "Any person found armed with any dangerous or offensive weapon in circumstances that indicate that he was so armed with the intent to commit any felony is guilty of a felony and is liable to imprisonment with hard labour for a term of not less than ten or more than fourteen years together with corporal punishment."

There is no definition of "dangerous or offensive weapon" specifically applicable to the provision. For the purposes of s. 89 of the Penal Code "offensive weapon" is defined to mean:

> "any article made or adapted for use for causing injury to the person, or intended by the person having it in his possession or under his control for such use."

An identical definition of the same term is to be found in s. 2 of the Public Order Act (Cap. 56).

We can find no precedent for s. 308 (1) of the Penal Code nor decided cases on the interpretation of its terms and it is necessary to look at decision on similar provisions, although these are persuasive only. Assistance can be obtained from the case of *Smaje v. Balmer*, [1965] 2 All E.R., 248, which was concerned with s. 28 of the Larceny Act, 1916 of England, the material part of which is:

> "Every person who shall be found by night – (1) armed with any dangerous or offensive weapon or instrument, with intent to break or enter into any building or to commit any felony therein; or (2) having in his possession without lawful excuse (the proof whereof shall lie on such person) any key, picklock, crow, jack, bit, or other implement of house-breaking . . . shall be guilty of a misdemeanour . . ."

The appellant in that case was convicted of an offence contrary to s. 28 (1), the evidence being that he was found at night battering, unsuccessfully, at the window of a shop with a stone. It was held that the words "any dangerous or offensive weapon or instrument" postulated a weapon or instrument made or adapted or intended for causing injury to a human being. Judge Chapman upheld the submission by counsel that, being armed with any dangerous or offensive weapon or instrument with intent to break or enter into any building and to commit a felony therein, is correlated with the offence of armed robbery, that is, it becomes more serious if the person is carrying arms. That

> "if the words 'dangerous or offensive weapon or instrument' had been intended to indicate a weapon or instrument designed for breaking into the

> premises, they would not be necessary, because the very next paragraph is dealing with instruments of housebreaking, and anything which would come within para. (1) would ipso facto come within para. (2)."

In the case of *R. v. Petrie*, [1961] 1 W.L.R. 358 it was pointed out that articles made or adapted for use for causing injury to the person are such as a cosh, knuckleduster or revolver, and articles not made or adapted for such use are such as a sandbag or razor, which must be shown to be intended for such use. In the case of *Smaje v. Balmer* Judge Chapman, made one observation in his judgment which is relevant to the facts of the case before us. It is at p. 249:

> "In the present case it seems to me impossible to regard a piece of stone as something designed or made or adapted for use for causing injury to the person of anybody, and there is no evidence from which one could infer that the appellant had the intention of using it for that purpose."

In the case before us this proposition applies to all the articles found in the car, and to the chisel found on one of the appellants, and to the absence of evidence of intention of the use of the articles on the part of any of the appellants.

It is relevant to look at s. 308 (2) of the Penal Code which is:

> "Any person who, when not at his place of abode, has with him any article for use in the course of or in connexion with any burglary, theft or cheating is guilty of a felony, and where any person is charged with an offence under this subsection proof that he had with him any article made or adapted for use in committing a burglary, theft or cheating shall be evidence that he had it with him for such use."

Following the reasoning in *Smaje v. Balmer* can it not be said that if dangerous or offensive weapons included instruments designed for breaking into premises, irrespective of the use for which they are intended, sub-section (2) serves no useful purpose?

In our view "dangerous or offensive weapons" means any articles made or adapted for use for causing injury to the person, such as a cosh, knuckleduster or revolver; or any articles intended, by the persons being found with them, for use in causing injury to the person. In regard to the latter, that is intent, see *Woodward v. Koessler*, [1958] 1 W.L.R. 1255 and *R. v. Powell*, [1963] Crim. L.R. 511.

The magistrate having found that the appellants were in joint possession of the articles, and that they were bent on a common purpose of theft, misdirected himself by finding further that such possession amounted to their being armed with dangerous weapons, in the absence of any evidence that the appellants had the articles in their possession or under their control for use for causing injury to the person. On the facts of the case, the articles not being made or adapted for use for causing injury to the person, and there being no evidence that the articles were intended by the appellants for use for causing injury to the person, they did not commit any offence contrary to s. 308 (1) of the Penal Code.

It is, as a result, not necessary for us to consider the other evidence in the case nor the remaining grounds of appeal.

Miss Rattansi, who appears for the State, pointing out that it had been established that the appellants were found with articles for use in the course of or in connection with theft, asks us to substitute a conviction of an offence under s. 308 (2) of the Penal Code. This we cannot do for the reason that the particular contained in s. 308 (2) "article for use in the course of or in connection with any burglary, theft or cheating" is not a particular contained in s. 308 (1). It is necessary that some of the particulars of the offence with which a person is

actually charged constitute a complete minor offence before it is possible to convict on the minor offence. Here *facts* may have been found which were sufficient to support the particulars of a minor offence but those particulars are not part of the *offence* with which the appellants were charged and convicted. This being so the appeals must be allowed.

The convictions of the appellants are quashed and the sentences set aside.

*Order accordingly.*

For the appellants:
*S. M. Otieno* and *Swaraj Singh*

For the *respondent*:
*Miss P. Rattansi* (State Counsel)

## Nyamhanga v Republic
[1973] 1 EA 376 (CAM)

| | |
|---|---|
| **Division:** | Court of Appeal at Mwanza |
| **Date of judgment:** | 25 July 1973 |
| **Case Number:** | 50/1973 (95/73) |
| **Before:** | Sir William Duffus P, Spry VP and Law JA |
| **Sourced by:** | LawAfrica |
| **Appeal From:** | The High Court of Tanzania – Saidi, J. |

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*[1] Criminal Practice and Procedure – Compensation – Manslaughter – Customary blood money can be awarded as compensation – Criminal Procedure Code, s.* 176 (*T.*).

**Editor's Summary**

The appellant appealed against his conviction for manslaughter upon which conviction he was ordered to pay compensation to the elder brother of the deceased of the amount which would be recoverable by customary law as blood money.

**Held –** (Spry, V.-P., dissenting) blood-money is recoverable as compensation.

**No cases referred to in judgment.**

**Judgment**

The considered majority judgment of the court was read by **Sir William Duffus P:** This is an appeal by the second accused against conviction and sentence. There were three accused, a father and two sons. All three were convicted but only the second accused, one of the sons, has appealed. There was no merit in the appeal against conviction but we heard State Attorney on the question of sentence.

The three accused were convicted of manslaughter and were sentenced to imprisonment and each ordered to pay compensation under s. 176 of the Criminal Procedure Code. The first accused, the father, was on account of his advanced years only sentenced to two years' imprisonment, while the appellant and the other son were each sentenced to 9 years imprisonment. The deceased had eloped with the daughter of the first appellant. The capture of the deceased, his being tied up, dragged along the ground and beaten with sticks followed. The deceased died as a result of the injuries. There was considerable provocation in this case and the medical evidence showed that the deceased had an enlarged spleen which presumably contributed to his death. No lethal weapons were used. There is a great disparity between the sentences of the father and the sons. The judge had the advantage of seeing the parties but the sentence is in our view excessive especially having regard to the facts which we have already

mentioned and also the fact that substantial compensation was ordered. We would therefore allow the appeal against sentence, set aside the sentence of 9 years' imprisonment on the appellant and substitute in lieu thereof a sentence of 5 years' imprisonment.

S. 176 of the Criminal Procedure Act gives an effective and expedient method of securing compensation for a person injured or suffering material loss from a crime. The requirements as set out in the section are:

(i) A conviction for a crime, and

(ii) That the person benefiting from the order suffers

(*a*) a material loss or personal injury,

(*b*) for which he is entitled to substantial compensation,

(*c*) recoverable by a Civil Suit.

The court then fixes fair and reasonable compensation in kind or money.

This court has held that the trial court must hold an inquiry to determine that compensation is payable and that the accused person must take part in the inquiry and be allowed to show cause against the order. The record in this case shows that an inquiry was held and it is to be noted that:

(*a*) the matter was adjourned to allow the accused persons to consult their advocate,

(*b*) on the return of the parties to court the assessors advised the court that "blood money" was by customary law recoverable,

(*c*) the appellants' advocate then offered to pay 16 cattle as "blood money",

(*d*) the court made it clear that this was an order for compensation in addition to punishment for the crime, and

(*e*) that this was understood by the defence (see Mr. Tukunjoba's statement).

The person to be compensated was also heard. This was Munanka, the elder brother of the deceased who was apparently acting as head of the family. The father was in Kenya.

The main issue here is whether Munanka suffered any material loss and whether his loss was recoverable in a Civil court.

There is no definition of "blood money" but this term as used in the context of this case clearly refers to compensation payable to the family of the deceased for his death. The judge accepted that this was payable and was recoverable as a civil debt and as basis for this there was the assessors' advice and the guide to customary courts to which he referred (Local Government Memoranda No. 2 of 1953).

The accused persons who were represented by an advocate did not dispute the order. The only dispute was as to the quantity of cattle payable. Their advocate made the offer to pay 16 head, there was also no dispute that these cattle as "blood money" were payable to Munanka apparently as the head of the family. It was never disputed that compensation was payable to the family by way of "blood money".

All the necessary essentials were proved and accepted by the trial judge. Thus the death of the deceased by the appellants' crime, the accepted loss to Munanka representing the deceased family, the fact that this was recoverable as a civil debt in customary law, the inquiry held by the court in which the accused person took part and the accused's offer as to the amount payable. We would not interfere with the order for compensation.

The appeal against conviction is dismissed. The appellant's appeal against his sentence of imprisonment is allowed and the sentence of 9 years' imprisonment

quashed and in lieu thereof he will be sentenced to 5 years' imprisonment. The appeal against the order of compensation is dismissed.

This decision against sentence affects the third accused, who has not appealed. We therefore direct that the Registrar send a copy of this judgment to the officer in charge of the prison where the accused is confined, and this judgment shall be immediately handed over and explained to the third accused. We grant the third accused leave to appeal against sentence out of time. He is allowed an extension of 14 days from the date this judgment is brought to his attention within which to appeal.

**Spry VP:** I agree that the appeal against conviction must fail and I agree that the sentence of imprisonment should be reduced. I regret that I cannot agree that the award of blood money is authorised by s. 176 of the Criminal Procedure Code.

*Appeal allowed in part.*

For the appellant:
*S. M. B. Tukunjoba*

For the respondent:
*D. S. Meela* (Senior State Attorney)

## Joram v Republic
[1973] 1 EA 378 (CAM)

| | |
|---|---|
| **Division:** | Court of Appeal at Mwanza |
| **Date of judgment:** | 25 July 1973 |
| **Case Number:** | 34/1973 (96/73) |
| **Before:** | Sir William Duffus P, Spry VP and Law JA |
| **Sourced by:** | LawAfrica |

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*[1] Criminal Law – Murder – Provocation – Test objective – Penal Code, s.* 202 (*T.*).

*[2] Criminal Practice and Procedure – Charge – Amendment – In High Court – No necessity for accused to plead to amended charge – Criminal Procedure Code, s.* 260 (*T.*).

**Editor's Summary**

The appellant had been convicted of murder, and appealed contending that when the charge was altered he had not been asked to plead to it, and that it should have been held that he had been provoked.

**Held –**

(i) there is no requirement that an accused plead to a charge altered in the High Court;

(ii) provocation has to be such as to produce a similar reaction in an ordinary person of the same community.

Appeal dismissed.

**Case referred to in judgment:**

(1) *Mancini v. Director of Public Prosecutions*, [1942] A.C. 1.

**Judgment**

The considered judgment of the court was read by **Spry VP:** The appellant was convicted of murder and, being under age, was sentenced to be detained during the President's pleasure. He appealed to this court. We heard and dismissed his appeal on 19 June 1973. We now give our reasons.

Mr. Rugarabamu, who appeared for the appellant, began by submitting that the trial had been a nullity. At the opening of the trial, the information was

read over to the appellant, who pleaded not guilty. Assessors were then appointed and the hearing adjourned. It was resumed eight days later, when the prosecutor applied to amend the information by correcting the name of the deceased from “Joram s/o Richard” to “Jamin s/o Richard”. There was no objection, the amendment was allowed and the prosecution opened its case.

Mr. Rugarabamu submitted that a fresh plea should have been taken after the amendment of the information. He relied on two cases relating to similar situations in magistrates’ courts, arguing that the same principles should apply. With respect, we cannot agree. The provisions for the amendment of charges in magistrates’ courts, contained in s. 209 of the Criminal Procedure Code, are very much wider than those for the amendment of information in the High Court, contained in s. 260. In particular, the former allow the substitution or addition of a new charge, which the latter do not. It is, we think, for this reason that s. 209 contains an express requirement that where a charge is altered, the accused person must be required to plead to it, while there is no such requirement in s. 260.

There may, of course, be cases where the effect of an amendment is considerable and the failure of the accused person to appreciate it might operate prejudicially to him. For this reason, we think it will generally be prudent, when an information has been amended, for the information, as amended, to be read to the accused person and that he be asked to plead again to it. But there is no rule to this effect and it is a matter in the judge’s discretion.

So far as the present case is concerned, there can have been no possible prejudice. There was never any question as to the identity of the deceased and four days after the incident the appellant made an extrajudicial statement to a magistrate in which he admitted spearing the deceased, referring to him by his correct name. Clearly, he was never in any doubt as to the charge against him.

Mr. Rugarabamu also complained that there was nothing in the judge’s notes of his summing-up to the assessors to indicate that he had dealt adequately, or at all, with the possible defence of justifiable homicide, self-defence, provocation and accident. So far as justifiable homicide, provocation and accident are concerned, we think there was nothing either in the case for the prosecution or that for the defence to raise any of these matters and it is neither desirable nor proper for a judge to address the assessors on questions that do not arise out of the evidence. As regards self-defence, the only relevant note is “Defence case of each accused summarised”. The appellant in a brief unsworn statement said that the deceased was running towards him and as he was afraid of the deceased, he threw his spear at him. It is clear that the only defence seriously put forward was that of self-defence, and therefore that the judge could not have put the defence case to the assessors without dealing with self-defence. We think there is no merit in this ground of appeal, although we think the judge’s notes might have been a little more explicit.

The only other ground of appeal was that malice aforethought had not been proved, and here Mr. Rugarabamu relied on the opinion expressed by one of the assessors, that the appellant’s “anger was childish and too early”. He submitted that the fact that the appellant had been under 15 years of age at the time of the offence, and so more easily moved by fear or passion, should have been taken into account in considering whether he was provoked. Mr. Meela relying on *Mancini v. Director of Public Prosecutions*, [1942] A.C. 1, submitted that the appellant was not entitled to rely on his own temperament or impulsiveness. We think the answer is to be found in s. 202 of the Penal Code: it is not enough that an accused person was actually provoked, the provocation must have been such that it would have produced a similar reaction in an ordinary

person of the same community. In any case, as we have said, there was no evidence of any wrongful act or insult capable of constituting provocation in law.

For these reasons we could find no merit in the appeal.

*Appeal dismissed.*

For the appellant:
*R. Rugarabamu*

For the respondent:
*D. S. Meela* (Senior State Attorney)

## Mulco Textiles Ltd v Yonasani
[1973] 1 EA 380 (CAK)

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| **Division:** | Court of Appeal at Kampala |
| **Date of judgment:** | 3 August 1973 |
| **Case Number:** | 20/1973 (97/73) |
| **Before:** | Sir William Duffus P, Spry VP and Law JA |
| **Sourced by:** | LawAfrica |
| **Appeal from:** | The High Court of Uganda – Oteng, J. |

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*[1] Negligence – Res ipsa loquitur – Article thrown by fellow worker – Not under control of employer.*

*[2] Negligence – Employer – Safe place of work – Whether failure to provide alternative lighting system negligent.*

*[3] Negligence – Employer – Safe place of work – Horseplay of unknown workmen – Whether any duty to guard against.*

**Editor's Summary**

The respondent was employed by the appellant in its factory. During a period when the lights failed, he was injured by an object thrown by a fellow employee. He sued the appellant in negligence, alleging breach of duty to provide an alternative lighting system, failure to provide a safe place of work, and relying on the doctrine of res ipsa loquitur. The judge found for the respondent only on the last allegation.

On appeal:

**Held** –

(i) the thrown object was not under the control of the appellants and the doctrine of res ipsa loquitur did not apply;

(Law, J.A. dissenting.)

(ii) it had not been proved that the appellants were negligent in failing to provide alternative lighting;

(iii) it had not been proved that the appellants were under a duty to take steps to prevent the recurrence of incidents of throwing (*Hudson v. Ridge Manufacturing Co*. (2) distinguished).

Appeal allowed.

**Cases referred to in judgment:**

(1) *Britannia Hygienic Laundry Co. v. Thorneycroft & Co.*, [1925] L.J.K.B. 237.

(2) *Hudson v. Ridge Manufacturing Co.*, [1957] 2 All E.R. 229.

(3) *Antoniak v. The Commonwealth*, [1964] C.L.Y. 2559.

(4) *O'Reilly v. National Railway & Tramway Appliances*, [1966] 1 All E.R. 499.

(5) *Coddington v. International Harvester Co. of Great Britain*, [1969] C.L.Y. 2438.

(6) *Bikwatirizo v. Railways Corporation* [1971] E.A. 83.

**Judgment**

The following considered judgments were read. **Law JA:** This is an appeal by the defendants in a civil suit. The plaintiff's claim was for damages occasioned by reason of the alleged negligence or breach of duty of the defendants, their servants or agents; in the alternative, the plaintiff relied on the doctrine of res ipsa loquitur as providing proof of the defendants' negligence.

The facts giving rise to the suit were unusual. The defendants (hereinafter referred to as the appellants) are the owners of a textile mill at Jinja in which the plaintiff (hereinafter referred to as the respondent) was employed as operator of a cone-winding machine. At about 1 a.m., on 17 September 1971, during the night shift, the lights in the factory went off. There is no evidence as to whether they were switched off or whether the main power supply failed temporarily. Whatever the cause, the workmen took advantage of the darkness to indulge in the irresponsible and dangerous conduct of throwing at random anything that came readily to hand, such as tins and bobbins. When a few minutes later the lights came on again, the respondent was seen to be lying unconscious near his machine. He was taken to Mulago Hospital and found to be suffering from an injury in the region of the left eye involving a rupture of the left eye-ball, which had to be removed. The respondent suffered considerable pain for about a fortnight, and now wears an artificial left eye. By his plaint, the respondent alleged that this injury was caused by a flying object thrown by a fellow employee. This was denied in the defence, but in the course of the trial the advocate for the appellants formally admitted that the accident had happened and that the respondent had suffered the injuries described in the plaint, and it was agreed between the advocates that the only issue remaining for decision was that of negligence.

In the course of a long but, it must be said, somewhat confused judgment, the judge found that the lights in the factory had failed on previous occasions. The evidence as to this was imprecise; the respondent said that it had happened on one other occasion, but a supervisor at the factory called as a witness for the respondent deposed as follows:

> "So often as lights used to go off such things used to happen"

which suggests that the failure of lights in the factory, and the indiscriminate throwing of tins and bobbins in the dark, had occurred on more than one occasion. No evidence whatsoever was called on behalf of the appellants.

With this in mind, the judge held that it was incumbent upon the appellants to have done something to prevent a recurrence of such inherently dangerous behaviour, either by providing an alternative system of lighting or by taking effective steps to prevent rowdyism in the event of the lights failing. He found that two of the pleaded particulars of negligence had been established, failing to take any or any adequate precautions to provide an alternative supply of lights, and failing to control, manage or supervise properly the employees in the factory. He held however that the respondent's claim in negligence failed, as it had not been proved that the object which injured the respondent had been thrown by a company employee. In arriving at this finding, the judge overlooked the admission that the accident to the respondent was admitted, and that the only issue was negligence. This means that the facts of the accident as pleaded were admitted, including the allegation that the injury was caused by an object thrown by a fellow employee. It was not open to the judge to come to any other finding on this point. It was therefore his duty, having found negligence proved, to have entered judgment for the respondent under this head of claim. Instead he did so under the alternative head of claim, that the appellants were liable on the application of the doctrine of res ipsa loquitur. In *Bikwatirizo v. Railways Corporation*, [1971] E.A. 83, Spry, Ag. P. cited with approval the

following definition of the application of the doctrine of res ipsa loquitur set out by Scrutton, L.J. in *Britannia Hygienic Laundry Co. v. Thorneycroft & Co*., [1925] L.J.K.B. 237 in the following terms:

> "The doctrine of res ipsa loquitur, as I understand it, is this: where you have a subject matter entirely under the control of one party and something happens while it is under the control of that party, which would not in the ordinary course of things happen without negligence you may presume negligence from the mere fact that it happens."

The "subject matter" which caused the accident in this case was an unidentified object wantonly thrown by a workman during a stoppage of work caused by a temporary lighting failure. It was not something under the control of the appellants. I have no doubt that in holding that the doctrine of res ipsa loquitur applied in the circumstances of this case the judge was in error.

However, as I have already pointed out, the judge found that in two particulars negligence was established against the appellants, and in my view there was just sufficient evidence to support this finding. This was enough to entitle the respondent to judgment.

In my opinion the appeal fails and should be dismissed.

**Spry VP:** The facts out of which this appeal arises are fully set out in the judgment of Law, J.A. As he had pointed out, counsel for the appellant company expressly conceded during the course of the hearing that an accident had occurred as alleged in the plaint. The suggestion of contributory negligence was not seriously pursued. The assessment of damages has not been challenged. There is, therefore, only one issue to be decided, that is, whether negligence on the part of the appellant company was established.

I entirely agree with Law, J.A. that the doctrine of res ipsa loquitur had no application to this case. The onus was, therefore, on the plaintiff to prove negligence.

The judge found negligence both in the failure of the appellant company to provide an alternative system of lighting and in its failure to supervise and control its employees.

With respect, I am not satisfied that it was proved that the failure to provide an alternative system of lighting constituted negligence. It is clear from the evidence that the lights had failed on at least one previous occasion but no attempt was made to prove how often or for how long. Also, no attempt was made to show what alternative system of lighting would have been appropriate or necessary or what such a system would have cost. It would, I think, be quite unreasonable to expect the appellant company to have installed a highly expensive system if the lighting had only failed on two or three occasions and then only for a few moments.

The judge also found negligence in the failure of the company to supervise and control its employees. He dismissed, in a mere passing reference, the proposition that the company was vicariously liable for the negligence of its employees. This turns on the question whether the employees, and particularly the one who threw the object that injured the respondent, were acting within the scope of their employment. I am emphatically of the opinion that they were not. It is true that they were on the company's premises for the purposes of their employment but they used an enforced interval due to lack of lighting to indulge in irresponsible and potentially dangerous activities for which they had no authority, actual or implied, and which were entirely unconnected with their duties. (In this connection, see *O'Reilly v. National Railway & Tramway Appliances*, [1966] 1 All E.R. 499.)

The judge found negligence, however, in that the company had failed in its common law duty to provide a safe place of work for the respondent. He appreciated that the danger was transient and exceptional, but distinguished the present from *O'Reilly's* case, in that in that case there were no chargehands or foremen present, whose knowledge of the danger could be imputed to the employer, whereas in the present case, there was a supervisor present. I am not sure that this distinction is a valid one. If it relates only to knowledge of the particular occasion, I do not think the company, even if imputed with knowledge, can be said to have been in breach of duty, because the accident appears to have happened almost immediately after the failure of the lights, and the company can have had no reasonable opportunity of putting the matter right.

There is, however, a slightly different approach to what is essentially the same problem. The responsibility of an employer towards his employees includes a duty to take reasonable care to prevent injury by fellow employees. The general rule appears to be that an employer will not be liable for a single act of misconduct by an employee (*Coddington v. International Harvester Co. of Great Britain*, [1969] C.L.Y. 2438, a case of which no report is available here), and the fact that an employee has on one occasion shown himself a danger to his fellow employees will not impose a duty on the employer to dismiss him immediately and on the first report (*Antoniak v. The Commonwealth*, [1964] C.L.Y. 2559, an Australian case of which, again, no report is, unfortunately available). On the other hand, in *Hudson v. Ridge Manufacturing Co*., [1957] 2 All E.R. 229, when an employee had repeatedly misbehaved over a period of several years, indulging in foolish pranks which, although they had not resulted in injury to anyone, were almost certain sooner or later to have that result, his employer was held liable when eventually a fellow employee was injured through such a prank, for failing to take proper steps to put an end to such behaviour. Streatfield, J., held that the principle was the same as that imposing a duty to provide a safe system of working, and remarked that if a fellow workman

> "is not merely incompetent but, by his habitual conduct, is likely to prove a source of danger to his fellow employees, a duty lies fairly and squarely on the employers to remove that source of danger."

I would respectfully agree.

The circumstances of the present case are, however, materially different from those in *Hudson's* case. There, the culprit was known, his misconduct extended over a period of years and he had repeatedly been reprimanded. Here, there is no known culprit, a large number of workmen appear to have been involved and the evidence is most unsatisfactory regarding previous episodes. All that the respondent said on this was in cross-examination, when he appears to have been asked why he thought the object that struck him had been thrown by a fellow employee and he said he felt sure of it.

> "because on one other day the lights went off and the employees threw about objects in the same way they threw them that time."

The only other relevant evidence was given by a fellow worker. He did not describe himself as a supervisor, but in the course of his evidence he said that he was "supervising that particular shift". In the course of examination in chief, he said:

> "So often as lights used to go off such things used to happen. I could not see the objects which were being thrown but usually they were some old tins and bobbins on which thread is wound."

And in cross-examination, he said:

> "It was dark and I could not see which objects were being thrown, but I do know that such objects as old tins and bobbins are usually what is [thrown]. On previous occasions when the lights went out and objects were thrown, no one had been injured."

It will be seen that the respondent only testified to one previous occasion, when clearly he had been present. The fellow worker's evidence is far from clear; it appears to relate to several incidents but it is not even certain that he had been present on the other occasions. It is most unfortunate that more specific questions were not put to him, in particular to elicit whether he had been present on previous occasions and whether there had been a number of such incidents or merely one or two.

The company was obviously in a more difficult position than the employers in *Hudson's* case, who had a single, known, culprit to deal with but I think that if it once became known to the company's officers that an incident such as this had occurred, they were under a duty to give a stern warning to all concerned against any repetition. Then, if there were a repetition, the proper course would be to hold an inquiry and try to identify the guilty workmen. If any individual were proved guilty after repeated warnings, it would be the duty of the company to dismiss him. The duty on the company is only to do what is reasonably necessary and this is, of course, a matter of degree in each case.

It is most unfortunate that no evidence was given for the company on this aspect of the case. This appears to have been due to a mistaken belief by the company's advocate that the earlier episode or episodes was, or were, irrelevant. The respondent's advocate seems to have been under the same impression and accordingly failed to ask either of the witnesses whether, to their knowledge, any action had been taken by the company following the earlier incidents.

The respondent's own evidence does not materially assist in establishing that earlier incidents had imposed a duty on the company to take action. It shows that there had been one previous similar incident but it does not show, or indeed purport to show, that the company had any knowledge of it. If the company had no knowledge of it, it can have been under no duty to take any action to prevent recurrences (*O'Reilly's* case). The evidence of the fellow worker also presents difficulties. In the first place, I am by no means sure that the knowledge of this witness can properly be imputed to the company, since it was not established that he held a post of responsibility. Secondly, his evidence was so very vague. We do not know how many other incidents there had been, or at what intervals, and if the witness' knowledge cannot be imputed to the company, we do not know whether or not the company had any knowledge of those incidents.

The onus was on the respondent to establish, first, that there was a duty on the company and secondly, that the company was in breach of that duty. After some hesitation, I have come to the conclusion that he failed to discharge that onus. I would allow the appeal.

**Sir William Duffus P:** I have had the advantage of reading the judgments of Law, J.A. and Spry, V.-P. AS Law, J.A. points out the defence admitted that the accident occurred and the only issue was negligence; I entirely agree with Law, J.A. that the doctrine of res ipsa loquitur cannot apply in this case. It was agreed that the incident occurred during a temporary failure of the lights in the factory and was due to the other employees or some of them acting irresponsibly, like a crowd of unruly school children, shouting and throwing articles around, one of which hit the respondent's eye.

The negligence complained of was the neglect of the employer to provide a

safe system of work and in particular the failure to provide an alternative system of lights and the failure to control the other employees. There was no evidence to show why the lights failed nor how often this failure occurred nor for how long it lasted. This incident occurred in a textile mill and there was no evidence to suggest that the machinery used was intrinsically dangerous nor that there was any danger on account of the failure of the lights alone. In fact the accident was not caused by the failure of lights except in so far as this failure started off the stupid behaviour of the workers. This head of negligence was not established and must fail.

There remains the question of the employer's duty to control the behaviour of the workers in the factory. A master is not liable for injuries caused to the worker by the negligence or wilful act of a fellow servant unless this act is done in the course of his employment or under the general head of it being the employer's duty to provide a safe system of work. The facts here clearly show that the irresponsible act of the respondent's co-workers was not done in the course of employment. The duty to provide a safe system of work would include a duty to take reasonable care for the workers' safety. The onus of proof is on the employee to establish that the employer has failed to carry out this duty. The evidence in this case has been extremely vague, thus there is no evidence of how many workers were employed in that particular section of the factory, nothing to show how many of these workers took part in throwing things about. There is also no evidence to show how often this type of behaviour had previously occurred, it might only have happened once before, and again nothing to show when or in what part of the factory this incident occurred and whether the same workers were involved on both occasions. There is also no evidence to establish that this incident became known to the appellant company. The employer did have a duty to take reasonable care for safety and this might have included steps being taken to prove a recurrence of the incident of throwing things about the factory when the lights went out, but the onus is on the employee to establish that there had been a breach of this duty. On consideration I agree with Spry, V.-P. that the respondent failed to establish negligence in this case. The evidence is altogether too vague and uncertain. I agree therefore that this appeal should be allowed and the judgment and decree of the High Court set aside and in lieu thereof that the action be dismissed with costs in the court below, and that the appellant be awarded the costs of this appeal, and as Spry, V.-P. agrees it is so ordered.

*Appeal allowed.*

For the appellant:
*Y. Mugenyi*

For the defendant:
*J. Kityo*

## Somji v Republic
[1973] 1 EA 386 (HCK)

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| **Division:** | High Court of Kenya at Mombasa |
| **Date of judgment:** | 7 June 1973 |
| **Case Number:** | 206/1973 (98/73) |
| **Before:** | Sir Dermot Sheridan J |
| **Sourced by:** | LawAfrica |

*[1] Immigration – False declaration to obtain passport – Offence not created by section – Immigration Act* (*Cap*. 172), *s*. 13 (*K*.).

**Editor's Summary**

The appellant was convicted of making a false declaration for the purpose of obtaining a passport contrary to s. 13 (1) (*a*) of the Immigration Act (Cap. 172) and of being unlawfully in Kenya and of being unlawfully employed.

On appeal:

**Held** –

(i) the section does not create the offence of making a false declaration for the purpose of obtaining a passport;

(ii) the other charges depended on the first one and must be set aside.

Appeal allowed.

**No cases referred to in judgment.**

**Judgment**

**Sir Dermot Sheridan J:** On 25 October 1972, before the senior resident magistrate Mombasa, the appellant was charged with the following offences:

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| "Count I | Being unlawfully present in Kenya contrary to s. 13 (2) (*c*) of the Immigration Act (Cap. 172) |
| | Abdul Hamid Gulamali Somji: On or about 24 October 1972 at Mombasa, in the Coast Province was unlawfully present in Kenya in contravention of the Immigration Act. |
| Count II | Unlawful engagement in an employment contrary to s. 13 (2) (*f*) of the Immigration Act |
| | On divers days between 15 July 1970 and 24 October 1972, at Mombasa in the Coast Province of Kenya, while not being a citizen of Kenya, engaged himself in the employment of Express Transport Limited without being authorised to do so by an entry permit and without being exempted by regulations made under the Immigration Act. |
| Count III | Making a false declaration for the purpose of obtaining a passport contrary to s. 13 (1) (*a*) of the Immigration Act |
| | On or about 29 November 1969 at Mombasa in the Coast Province of Kenya, made a false declaration to wit that he did not have any other her passport which declaration the said Abdul Hamid Gulamali Somji knew or had reasonable cause to believe to be false or misleading for the purpose of obtaining a passport." |

He was convicted, on his pleas, on the three counts. He was sentenced as follows:

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| Count I | Fined Shs. 2500/- or 6 months imprisonment in default. |
| Count II: | Fined Shs. 2500/- or 6 months imprisonment in default. |
| Count III: | 12 months imprisonment. |

On 6 November he applied for bail pending appeal under s. 357 (1) of the Criminal Procedure Code.

On 7 November Harris, J. granted the application. In doing so he observed that whereas the word "passport" has been added to the words "entry permit pass, written authority, consent or approval" appearing in paras (*c*), (*d*), (*e*) and (*f*) of s. 13 (1) of the Act its omission in para (*a*) raised a strong possibility of success in regard to the conviction under count III. This was an accurate prediction as Mr. Mulla, for the respondent, does not now support that conviction. The reason for the omission of the word "passport" in para (*a*) is to be found in s. 321 of the Penal Code which makes it a separate offence for any person knowingly to make a false declaration for the purpose of procuring a passport. I allow the appeal on count III and set aside that conviction and sentence.

The question now arises what happens to the two remaining convictions. Mr. Mulla submits that on the facts as outlined by the prosecutor, which were admitted by the appellant, who was legally represented, he knew that he had fraudulently obtained his present Kenya passport which was issued on 30 December 1969 at Mombasa and that his presence and employment as a Kenya citizen in unlawful. I do not think that these convictions can be regarded in isolation. Nor can the appellant be now precluded from challenging the admitted facts if there is nothing on the record to show that he committed these offences. The mere assertion by the prosecutor that he must have acted fraudulently is not sufficient. Until the passport is withdrawn or he is prosecuted and convicted in relation to it under the relevant provision of the law his presence in Kenya is not, in my view, unlawful. In answer to Mr. Mulla's submission I respectfully adopt the following passage from the order of Harris, J. "Thirdly he (Mr. Karugu) maintained that, quite apart from passports in general, the applicant must have almost certainly in the course of obtaining his passport have made a false declaration and that the court should take this into account. No evidence, however, was produced or document submitted to give any substance to this allegation nor was the applicant charged with or convicted of any offence under para (*a*) other than there particularised as already set out." Once the conviction on count III falls away the convictions on counts I and II fall away with them.

I allow the appeals on these two counts and set aside the convictions and sentences. The fines, which have been paid, must be refunded to the appellant.

*Order accordingly.*

For the appellant:
*A. Suchak*
For the respondent:
*A. A. Mulla* (State Counsel)

## Esiroyo v Esiroyo and another
[1973] 1 EA 388 (HCK)

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| **Division:** | High Court of Kenya at Kisumu |
| **Date of judgment:** | 23 June 1972 |
| **Case Number:** | 78/1971 (100/73) |
| **Before:** | Kneller J |

**Sourced by:** LawAfrica

*[1] Land – Registered – Over-riding interests – Customary law rights not over-riding interests – Registered Land Act* (*Cap*. 300), *s.* 30 (*K*.).

**Editor's Summary**

The plaintiff sued the defendants for an injunction restraining them from trespassing on land registered in his name under the provisions of the Registered Land Act.

The defendants proved that under Luhya customary law they would have an interest in the land.

**Held** –

(i) the plaintiff's title was free of all encumbrances;

(ii) rights under customary law are not over-riding interests (*Obiero v. Opiyo* (1) followed).

Judgment for the plaintiff.

**Cases referred to in judgment:**

(1) *Obiero v. Opiyo*, [1972] E.A. 227.

**Judgment**

**Kneller J:** The plaintiff claims from the two defendants an order for their ejectment from a piece of land approximately 22 acres in size which is in East Bunyore location, registered under the Registered Land Act (Cap. 300), damages for their trespass on it for the past two years and an injunction to restrain them, their wives and children or servants from continuing or repeating any acts of trespass.

This is resisted by each of the two defendants. They declare that because they are the natural sons of the plaintiff, they are entitled to certain portions of the plaintiff's land and to occupy those portions and to cultivate them together with their wives and children and servant because it is the land which came to their father from his father and grandfather and so forth.

The defendants say that they are all Luhyas and the land is in an area where Luhya customary law obtains and their titles to the portions of these acres are well-founded in that customary law.

The plaintiff and the defendants all gave evidence. One witness was called by the first defendant, namely, Masudi Nyonje.

The upshot of all this is that the plaintiff married twice and by his first wife had at least three sons in this order: the first defendant, then someone called Jones Williams, and then the second defendant. When the first defendant was born, according to the plaintiff, it was on plot 226 that this happy event occurred but the first defendant, as I understand it, claims that he first set eyes on this world when his mother was living with the plaintiff on the land which is the subject matter of this dispute, i.e. plot 309. Where the second defendant was born never quite took the same importance in all this but, presumably, he maintains he was born on plot 309 and the plaintiff would say that he was born on plot 226. At any rate, they all agree in the end that the first wife, the mother of these two defendants, died and was buried on plot 226. This plot has been registered in the name of the second son by the first wife, namely, Jones

Williams. This is approximately 0.4 hectares. The plaintiff says this is the land which the two defendants and their brother in the middle, Jones Williams, have and it is quite enough for them. The two defendants and Jones Williams arranged that it should be registered in the name of the middle brother.

The two defendants say that this is not enough land for them: so does their witness Masudi. They say that they did not get it registered in the name of Jones Williams for all three. They claim that Jones Williams had it registered in his name because he was able to afford Shs. 200/- to buy it from a brother of the plaintiff called Emungaya Nyonje to whom the plaintiff had sold this land despite the fact that his first wife's burial place was in the middle of it. The plaintiff denies selling this land to anybody and denies having a brother of that name or anything like it.

Now, we come back to plot 309 which is of 22 acres. This is registered in the name of the plaintiff. The defendants admit that. They say it should really be registered in the names of all three because not only are they entitled to this by Luhya custom and the law of the land but also because throughout the years, they have both helped the plaintiff beat off other claimants to these 22 acres. They assert that all they are doing is helping one another to cultivate and occupy about 5 acres each of the 22 acres. This leaves about 12 acres for the plaintiff and his second wife and their three sons.

Countering this, the plaintiff admits having a second wife and three more sons but says that the two defendants had marched on all this plot of his without his permission and against his wish. They have not been registered on this certificate. They do not deserve to be even if they are his sons. There have been various cases between him and the two defendants over the years before this land was registered. Their family rows over this matter have led to complaints being made to the police. The consequence was that the plaintiff was prosecuted in the local courts for alleged wilful and malicious damage to the property of one or both the defendants. He was said to have cut down trees that they planted there. He was said to have smashed a radio belonging to one of them. These two defendants had their old father remanded in the cells or sentenced to prison in one case. He was acquitted in another case with the help of Mr. Kohli, his advocate. Their behaviour as sons has led him to exclude them at this stage from any share in his plot 309. What he does later, remains to be seen.

The defendants claim that at one stage, the plaintiff wrote to the Land Control Board and asked them to come and mark out six or seven portions of plot 309. One portion would be given, no doubt, to each of his six sons. The Land Control Board refused to allow this plot to be divided up into so many portions because it would be uneconomical. The plaintiff had a right of appeal from that but he did not exercise it. He had decided then that it would not be divided at all though the Land Control Board said they were quite prepared for it to be divided into three or less portions. The plaintiff decided that if he could not divide it into six portions, he would not divide it into any. He was led to take this course because the defendants had behaved so outrageously towards him during the last few years. He insisted that he had bought this land 309 and he did not inherit it from his father or grandfather.

He had bought it as long ago as 1929. Next year was the year in which the first defendant was born.

So much for the evidence and arguments put forward by each side. Clearly, the plaintiff and these two defendants have fallen out and some part of what they now say on oath is coloured by their dislike of one another. It is a little difficult to decide on each point where the truth lies. I shall have to decide it as best I can on what each witness said and how it was said. It may be that

on some points I believe one side and on other points I believe the other. This will be due to the fact that neither side has told the complete truth about everything as they swore to do.

I find that the plaintiff, on the balance of probabilities, was not speaking the truth about how he came to get this land. I hold that he inherited it from his father and grandfathers and so forth before him. 22 acres was probably more than he could afford to buy at any time. So, on that score, I would find the defendants were correct. I would find, however, that the defendants were born on plot 226 where their mother was and where she was buried. I would find that the plaintiff decided to sell plot 226 to Nyonje whether or not he is a brother and that Jones Williams bought it back from him or was able to ransom it for Shs. 200/- and that is why he is the registered owner of it. I can see no reason why the two defendants should get together and put up the middle brother as the registered owner of it. I also find that 0.4 hectares is not sufficient for these three sons by the first wife.

According to the customary law, the father should indicate which part each son has to cultivate and occupy and he would have to do this before he died, of course. This right of the sons to some portion of the family's land would, of course, be forfeited according to customary law, if their behaviour was such that their father owed no more duty to them. I am unable to find on the evidence before me that the sons by their behaviour have in any way forfeited their right under customary law to such portions of land. They probably had a very difficult father to deal with during all this. Their sole remedy against him for smashing a radio or tearing up trees and so forth was probably to report him to the local police or take him before the local courts. I also find that 5 acres each out of the 22 acres, remembering all the other sons who have to have some land and Jones Williams who has his 0.4 hectares elsewhere, would, under customary law, be reasonable and sufficient for each of these defendant brothers. I would also find that these customary laws, apart from an exception which I will deal with next, still obtain in that area. It may be that the plaintiff, if he is reconciled to the two defendants, may come to have this portion of land re-registered or, at any rate, may leave some directions in his will about this and so forth. Nevertheless, according to the law and the exception which I now turn to, he is not bound to do this any longer.

The matter is taken out of the purview of customary law by the provisions of the Registered Land Act. The plaintiff is the registered proprietor of the plot 309. The rights of the defendants under customary law have been extinguished. S. 28 of the Registered Land Act confers upon a registered proprietor "a title free from all other interests and claims whatsoever", subject to the lease, charges and encumbrances shown in the register and such over-riding interests as are not quoted in the register. There are no encumbrances noted on the land certificate. The plaintiff's title is free of encumbrances. Rights arising under customary law are not among the interests listed in s. 30 of the Act as over-riding interests.

Bennett, J. in *Obiero v. Opiyo*, [1972] E.A. 227 stated at p. 228:

> "Had the legislature intended that the rights of a registered proprietor were to be subject to the rights of any person under customary law, nothing could have been easier than for it to say so."

The facts in that case were that the plaintiff was the widow of someone called Opiyo who died in 1938-39 and the defendants were the sons of her co-wives. She was the registered proprietor of about 9 acres of land in North Gem Location and had been registered since January 1968. She claimed damages for trespass against the four defendants and an injunction to restrain them from

continuing or repeating the acts of trespass. The defendants in that case admitted in their defence that they were in possession of the land in dispute and had cultivated it for a long time past. They claimed to be the owners of the land in dispute under customary law and denied her title to it. These claims were heard and determined in her favour by a Land Adjudication Committee.

So, in effect, the facts in that case and in this one are almost on all fours. Bennett, J. decided that in *Obiero v. Opiyo* the defendants had made no serious attempt to prove that the plaintiff widow obtained registration by fraud or mistake. He was not satisfied on the evidence that the defendants ever had any right to the land under customary law.

In this case, I have decided that the defendants had rights under customary law.

One further point of distinction is that the defendants in this case never went to any Land Adjudication committee or authority to ask for any decision in their favour.

Bearing in mind these distinctions which I do not find material, I propose to follow, with respect, the decision of bennett, J.

The plaintiff has proved, on the balance of probabilities, that he is entitled to the relief which he seeks. There will be an order for the eviction of each defendant from plot 309.

If they do not remove themselves, their wives or children or agents within the next 60 days from the date of this order, there will be a perpetual injunction to restrain them, their wives and children or servants from continuing or repeating any acts of trespass on the land in dispute with effect from 60 days from the date of this order.

One point that always arises in cases like this, and I think I had better make provision for it, is the right of the members of the family of each defendant to re-enter on the land for harvesting over a period of two days any crop that may mature on that land. This will be restricted, of course, to crops which they have planted themselves. It will be subject to arrangement with the plaintiff and will only arise if the plaintiff does not harvest the crops himself and hand them to each defendant or his family. This will terminate at the end of 90 days from the date of this order.

The assessment of damages will be on the basis that for each acre, 10 bags of maize can be harvested by a diligent labourer each year. There were two years which the plaintiff could not use this land for the planting of this maize. The profit on each bag of maize was Shs. 20/-. Each defendant was cultivating, occupying and harvesting 5 acres or they were doing 10 between them. None of this was controverted by any defendant.

Bearing in mind all the circumstances of this case and doing the best I can, I would calculate the damages at Shs. 4,000/- for trespass on this land from the date set out in the plaint, namely, 19 May 1970, up till the time of this judgment. There will be judgment for the plaintiff for that sum and costs together with interest and there will be orders that I have already set out.

*Order accordingly.*

## Republic v Odera
[1973] 1 EA 392 (HCK)

**Division:** High Court of Kenya at Kisumu

**Date of judgment:** 29 February 1972

**Case Number:** 59/1972 (101/73)

**Before:** Kneller J

**Sourced by:** LawAfrica

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*[1] Criminal Law – Failing to comply with compulsory supervision order – Not an offence – Prisons Act* (*Cap.* 90), *s.* 47 (*K.*).

*[2] Criminal Practice and Procedure – Failing to comply with compulsory supervision order – Procedure to be followed – Prisons Act* (*Cap.* 90), *s.* 47 (*K.*).

*[3] Criminal Practice and Procedure – Sentence – Failing to comply with conditions of police supervision – Sentence not mandatory and discharge possible – Criminal Procedure Code*, *s.* 345 (*K.*).

**Editor's Summary**

The respondent was convicted of two charges of failing to comply with a compulsory supervision order and of failing to comply with the requirements of police supervision. The magistrate entered an absolute discharge on both counts. The Republic asked that the sentence be revised, contending that the magistrate was required to pass a sentence equivalent to the amount of remission the respondent had earned and that this could be concurrent with the sentence being served by the respondent, and that for breach of the requirements of police supervision under the Criminal Procedure Code, s. 345, imprisonment was mandatory.

**Held –**

(i) imprisonment for breach of police supervision is not mandatory and a discharge can be given;

(ii) failure to comply with the terms of a compulsory supervision order made by the commissioner of prisons is not an offence and no charge lies in respect of it (*Mutamia Kasivai v. R.* (4) followed);

(iii) the commissioner may revoke the order whereupon the prisoner may be brought before a magistrate who, if satisfied after enquiry, that the prisoner has committed a further offence or failed to comply with the order, shall commit him to prison for the period prescribed;

(iv) the magistrate has no discretion, and the term of imprisonment cannot be concurrent with that being served.

Convictions quashed.

**Cases referred to in judgment:**

(1) *R. v. Yonasani Egalu* (1942), 9 E.A.C.A. 65.

(2) *Hando Amunaay v. R.* (1953), 18 E.A.C.A. 307.

(3) *Obiero v. R.*, [1962] E.A. 650.

(4) *Mutamia Kasivai v. R.* H.C. Cr. A. 497 of 1968 (unreported).

**Judgment**

**Kneller J:** The provincial senior state counsel, on 13 January 1972, applied to the Deputy Registrar of this court for a decision to be placed before this court for consideration under s. 362 of the Criminal Procedure Code. The respondent accused was charged before the magistrate on 14 December 1971

with two offences: first, that he failed to comply with the conditions of a compulsory supervision order made under ss. 47 (3) and 47 (4)

of the Prisons Act (Cap. 90) and, secondly, that he failed to comply with the requirement prescribed by ss. 344 (1) and 345 of the Criminal Procedure Code (Cap. 75). The magistrate had the charge read over and explained in all its details with the aid of an interpreter and then recorded the answer of the respondent accused as follows:

> "It is true. Both counts are correct. I failed to report."

The magistrate then entered a plea of guilty on these words for the respondent and convicted him of the two charges as laid.

Some time later, the respondent admitted 12 out of 13 previous convictions and sentences put to him. These previous convictions and sentences ranged from a fine of Shs. 100/- to a sentence of 5 years imprisonment and a 5 years reporting order to follow that and related to either theft or theft from a person. The period covered was from October 1955 to March 1967. There was an alleged previous conviction in 1956 which the respondent did not admit and the magistrate rightly deleted that and took no account of it. The Republic agreed to that course being taken.

When it came to passing sentence or making an order, the prosecutor had nothing more to say on behalf of the Republic and the respondent in mitigation spoke of being bewitched by some members of his tribe and the fact that he was already serving a 6 year prison sentence. The magistrate then wrote that he did not think that any further custodial sentence would meet the requirements of this case. He indicated that the respondent had an appalling record and seemed to be without any hope for his own future. The magistrate declared that he would show compassion to the respondent in the sincere hope that there would be some response in the form of a constructive life when the respondent emerged from prison. The magistrate then gave the respondent an absolute discharge on each count in the charge sheet.

Now, it is the contention of the Republic that so far as the first count was concerned, the magistrate had no discretion in the matter but was required by the Prisons Act to pass a sentence of one year and a 171 days imprisonment upon the respondent. Mr. Tunoi pointed out that an absolute discharge is a sentence and can be revised: See *Obiero v. R.*, [1962] E.A. 650. He had no objection to the one year and 171 days being made to run concurrently with the period the respondent had already served. He appreciated that under s. 35 (1) of the Penal Code, the magistrate had a discretion to discharge conditionally or absolutely the respondent found guilty of various offences but pointed out that s. 47 of the Prisons Act overrode the provisions of s. 35 (1) of the Penal Code.

The second count, Mr. Tunoi urged, carried a sentence of imprisonment of 6 months increased to 12 months for a second or subsequent conviction and that this was mandatory.

The respondent replied to all this by outlining again how a man of his intelligence came to commit such offences again and how really it was all due to the fact that satan had tempted him through the agency of some members of his tribe. He had a long sentence to serve already and was the sole support of his frail, widowed mother and threw himself upon the mercy of the court.

The second count should have been set out as the first one because it relates to events which began in March 1967. The Senior Resident Magistrate in Criminal Case 56 of 1967 is said to have convicted the respondent and sentenced him to 5 years imprisonment and made him the subject of a reporting order for 5 years when he came out of gaol. This would be No. 13 on the list of previous convictions. The particulars said that the respondent failed to report to the Officer i/c of Ahero police station during the months of June and October 1971.

That was bad for duplicity, in my view. The particulars should have alleged that he had failed to report for one specific month and, if necessary, the particulars should have set out a separate month for each separate count if more than one was selected. Ss. 344 (1) and 345 of the Criminal Procedure Code set out the requirements from persons subject to police supervision and what happens if they fail to comply with those requirements. The respondent is supposed to prove to the satisfaction of the court before which he is tried that he tried his best to comply with the law and if he fails to do so he is guilty of an offence and liable to imprisonment to a term not exceeding 6 months and on the second or any subsequent conviction on such offence to imprisonment to a term not exceeding 12 months. I do not follow Mr. Tunoi's reasoning on s. 345 (1) of the Criminal Procedure Code namely, that the sentence is mandatory. I prefer to read the section as showing that the respondent when he was convicted of this offence was liable to imprisonment and that the provisions of s. 35 (1) of the Penal Code could be applied by the magistrate in the circumstances surrounding that charge or count. S. 35 (1) declares:

> "35(1) Where a court by or before which a person is convicted of an offence is of opinion, having regard to the circumstances including the nature of the offence and the character of the offender, that it is inexpedient to inflict punishment and that a probation order under the Probation of Offenders Act is not appropriate, the court may make an order discharging him absolutely, or, if the court thinks fit, discharging him subject to the condition that he commits no offence during such period, not exceeding twelve months from the date of the order, as may be specified therein."

Nothing has been placed before this court showing that the provisions of s. 35 (1) of the Penal Code so far as ss. 344 and 345 of the Criminal Procedure Code are concerned, are in any sense inappropriate or illegal.

The first count which I believe should have been made the second count, on a matter of dates concerned in it, alleged that the respondent did not report to the Officer i/c of Ahero police station during the month of June 1971, and that he had been released on a compulsory supervision order which was No. 186 of 1971, and so the respondent had failed to comply with the provisions of this order without a reasonable cause. S. 47 of the Prisons Act obliged the Commissioner of Prisons to make an order to be known as a compulsory supervision order providing for the compulsory supervision of a prisoner for any period not exceeding one year in the case of a prisoner who has been sentenced to imprisonment on not less than two previous occasions when he is subsequently serving a sentence of imprisonment for a term of or exceeding three years. The Commissioner may do the same in the case of any other prisoner where the Commissioner considers it necessary or desirable in the interest of rehabilitation of that prisoner. This order must be made on the day the prisoner is discharged or before he is discharged. When the Commissioner is satisfied that any prisoner in respect of whom such an order has been made during the continuance in force of the order, has been convicted of any further offence or has failed to comply with the terms and conditions of the order, he may revoke the order and issue a certificate saying that he has revoked it. He is also supposed to set out in that certificate the amount of remission earned by the prisoner before he was released when this compulsory order made upon him. This certificate is conclusive evidence of its contents. This certificate of revocation can then be laid before a magistrate who must then issue a warrant for the arrest of the person in respect of whom the compulsory supervision order was made. When this person has been arrested he has to be brought before the magistrate or any other magistrate who has jurisdiction. The magistrate must then conduct an inquiry but not a trial. If the magistrate is satisfied after proper

inquiry that the person before him has been convicted of an offence or has contravened or failed to comply with any of the terms and conditions of the compulsory supervision order, the magistrate "shall commit him to prison for the term provided in" s. 47 (4) of the Prisons Act. The term provided is that the prisoner must undergo the punishment to which he has been sentenced and then undergo a term of imprisonment equal to a period of three months or to the period of remission he has earned under s. 46 of the Act just before the making of the compulsory order. He has to serve whichever is the greater namely, the three months or the period of remission. Again, I think, Mr. Tunoi is not, with respect, correct when he says that the term provided for in s. 47 (4) can be made to run concurrently with the term of imprisonment the respondent is already serving. The section says that he must first of all undergo any other punishment to which he has been sentenced.

Now, I think the letter of the provincial senior state counsel was directed to this one point, namely, that under s. 47 of the Prisons Act, the magistrate had no discretion in the matter. He could not apply s. 35 (1) of the Penal Code. All he could do when he had conducted his proper inquiry was to declare if he was satisfied that the respondent had committed no offence or had not complied with the provisions of the order, that the respondent must finish the sentence he was now serving and then serve another three months or the period of remission which he had earned before he was released whichever was the greater.

Now, a reading of s. 47 and a consideration of the principles behind this legislation persuade me that the provincial senior state counsel is correct. The words of the section support his contention. This legislation is designed to allow prisoners to be released before the period of their sentence is concluded provided they do not commit any further offences and adhere to the provisions of their supervision orders. Should they fail and should the magistrate be satisfied after proper inquiry that they have failed, then they must go back to gaol and finish off their present sentence and then serve either the three months or the period of remission they had earned whichever is the greater.

The magistrate unfortunately recorded the answer of the respondent in a form which suggests that the two counts were not put to him separately. The respondent appears to have waited till the end of the reading of both counts and then to have said that they were both correct. He said that he failed to report. Now, this will not do. It has been said that before convicting on a plea of guilty, it is highly desirable not only that every constituent of the charge should be explained to the accused but that he should be required to admit or deny every such constituent. *Hando Amunaay v. R.* (1953), 18 E.A.C.A. 307. Furthermore, what the respondent says should be recorded in a form which will satisfy an appeal court that he fully understood the charge and pleaded guilty to every element of it unequivocally. *R. v. Yonasani Egalu* (1942), 9 E.A.C.A. 65. These were rather technical offences and it was, therefore, necessary to make sure that the respondent admitted each element of them as was correct and that the appeal court would be satisfied that it was so.

The procedure for dealing with allegations under s. 47 (3) of the Prisons Act was considered in an unreported case *Mutamia Kasivai v. R.* which is a High Court of Kenya Criminal Appeal 497 of 1968, in which there were two judges, namely, Farrell, Ag. C.J. and Dalton, J. This case has not been reported yet. During the course of the judgment, it was declared that the charge was on its face bad for duplicity in that it alleged in the particulars failure to report each month instead of referring to a particular month. This alone would have been sufficient ground for quashing the conviction of the appellant in that case for he did not plead guilty to the offence and that it was arguable that the plea was a nullity because it disclosed no offence as defined in the section. The

matter was not dealt with on that basis, however, but on that another, namely, that the proceedings were wholly misconceived. The provisions of the Prisons Act do not provide for any procedure and it was said in that appeal, and it is to be repeated in this one, that no blame can be attached to the magistrate if he has failed to understand them. It was held that s. 47 (4) of the Prisons Act does not define an offence but sets out the consequence of the revocation of the order. The former prisoner is obliged to serve a further term of imprisonment equal to three months or to the period of remission earned – whichever is the greater – and this further term of imprisonment is to be consecutive to any other sentence which may have been imposed upon him in the meantime.

Sub-section (5) provides for the machinery for bringing those provisions into operation. It does not require or authorise the framing of any charge. All that the magistrate is required to do is to satisfy himself "after proper inquiry" either that the prisoner has been convicted of an offence or has failed to comply with the conditions of the compulsory supervision order. If the prisoner does not admit the conviction or the breach, evidence should be called and the prisoner given an opportunity to answer the allegation. Once the magistrate is satisfied, he is obliged to commit the prisoner for the term provided for in sub-section (4).

It was further held that the magistrate in that case went wrong when a charge was preferred and the respondent was called upon to plead to it. The proceedings from that point onwards were a nullity and so the conviction had to be quashed and the sentence set aside. An application for enhancement could not be entertained since what is in the first place a nullity cannot be enhanced. The consequence was that the appellant was directed to be discharged from the sentence he was serving at that time but this order was without prejudice to the right of the prison authorities to apply for a warrant of arrest in accordance with sub-section (5) and to invoke the further provisions of s. 47. The court in that appeal invited the Commissioner of Prisons to consider whether he should at some stage exercise his powers under s. 47 (6). This was a strong court. Both judges had at some period in their careers served as Attorney-Generals in other parts of the world and the acting Chief Justice in particular had been a legal draughtsman in the Federation of Malaya. I have no hesitation, with respect, in following that decision.

Turning back to the position in this case, the correct order in this matter is that the conviction of the respondent accused on each count is quashed and the order of absolute discharge is set aside.

According to the record of the court below, the respondent is serving a long sentence of imprisonment at the moment. This seems to be for a subsequent conviction for an offence relating to the period when he was out of prison and subject to the compulsory supervision order. He will continue to serve that sentence and, no doubt, earn such remission as the law provides for. Meanwhile, the Commissioner of Prisons can proceed against the respondent, if he wishes, under s. 47 or any other appropriate section of the Prisons Act in relation to the allegations in count 1.

The second count was bad for duplicity and was, therefore, a nullity. It thus becomes a matter of discretion for this court as to whether or not a retrial should be ordered. The respondent faces not only the sentence he is now serving but also the possibility of an extra year and 171 days on the allegations set out in the former first count. This being so, it seems to this court that it would be unduly burdensome for the respondent to make him stand trial on the second count again and that no profit would be the consequence of making such an order. Consequently, exercising this discretion, this court declines to make an order for a retrial on the second count.

*Order accordingly.*

For the applicant:
*Tunoi* (State Counsel)

The respondent appeared in person.

# T v Income Tax
[1973] 1 EA 397 (HCK)

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|---|---|
| **Division:** | High Court of Kenya at Nairobi |
| **Date of judgment:** | 30 May 1973 |
| **Case Number:** | 31/1972 (102/73) |
| **Before:** | Harris J |
| **Sourced by:** | LawAfrica |

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*[1] Income Tax – Direction by Commissioner – Taxpayer entitled to copy of direction.*

*[2] Income Tax – Direction by Commissioner – Appeal – Taxpayer can challenge direction on appeal against assessment based on it – Income Tax Management Act* (*Cap.* 24), *s.* 101.

*[3] Income Tax – Direction by Commissioner – Aimed at two distinct transactions – Direction bad if one transaction not for avoidance of tax – Income Tax Management Act* (*Cap.* 24), *s.* 22.

*[4] Income Tax – Direction by Commissioner – Settlement on children – Settlor divested of capital and all interest – Settlement not challengeable.*

*[5] Income Tax – Direction by Commissioner – Expectation of tax advantage – Must be assessed as at time of transaction.*

*[6] Income Tax – Direction by Commissioner – Just and reasonable – Court must ascertain whether the direction just and reasonable.*

**Editor's Summary**

The appellant appealed against income tax assessments based on a direction given by the Commissioner-General under s. 22 of the Income Tax Management Act (Cap. 24).

The respondent refused to supply the appellant with a copy of the direction itself until after the appeal was filed and contended that the direction could not be challenged on an appeal against the assessment based on that direction and that its reasonableness could not be examined by the court.

For the appellant it was contended that the agreements the subject of the direction had the sole purpose of removing certain assets from the control of Kenya companies and could not have been expected to have any effect on tax paid, nor were they corollary to any transaction the purpose of which was the avoidance or reduction of tax. As regards the settlement of money on the taxpayer's children that he retained no interest in the settlement.

Generally it was contended that the direction was neither just nor reasonable.

The full facts are set out in the judgment.

**Held** –

(i) the taxpayer is entitled to a copy of the full terms of any direction under s. 22 of the Act;

(ii) on appeal the taxpayer can challenge the direction upon which the assessment is based;

(iii) if any of the transactions upon which a direction is based do not come within the section the direction is wholly void (*Income Tax v. Armstrong* (1) followed);

(iv) the agreements were designed to protect assets from interference and had no tax implications;

(v) the children's settlement could not be attacked as the settlor had completely divested himself of the capital sum and all interest in it;

(vi) although a measure of saving of tax resulted from the attempt to avoid estate duty this was not the main purpose of the transaction;

(vii) the expectation of benefit had to be assessed at the time of the transaction and not in the light of subsequent happenings;

(viii) whether the direction is just and reasonable must be examined by the court in order that the court can keep a check on the wide powers of the Commissioner.

Appeal allowed.

**Cases referred to in judgment:**

(1) *Income Tax v. Armstrong*, [1963] E.A. 505.

(2) *M. v. Income Tax*, [1971] E.A. 338.

**Judgment**

**Harris J:** In these four consolidated appeals the material facts and legal considerations are identical and it will be sufficient for me to refer, where necessary, to the pleadings and documents in the first appeal. The appeals are brought against four additional assessments to income tax on the appellant for the years of income 1965 to 1968 inclusive, amounting to Shs. 117,600/-, Shs. 100,200/-, Shs. 74,689/- and Shs. 61,422/- respectively. Each of the assessments arises by virtue of a direction dated 26 October 1970 given by the respondent under s. 23 of the East African Income Tax (Management) Act 1958. The direction is in the following terms:

> "The Commissioner-General of Income Tax, having considered the following transactions viz:
>
> 1. The Agreement concluded in 1964 between Travis Investments Limited and Travis (E.A.) Limited;
> 2. The Agreement concluded in 1964 between Travcom Limited and Travis (E.A.) Limited;
> 3. The allotment of shares in Travis (E.A.) Limited to an overseas company, Athene Investments Limited, in 1964;
> 4. The two settlements made in June 1964 between T. and the Royal Trust Company of Canada (C.I.) Limited;
>
> and being of the opinion that the main purpose or one of the main purposes of the said transactions was the avoidance or reduction of liability to tax or that the main benefit which might have been expected to accrue from the said transactions in the three years immediately following the completion thereof was the avoidance or reduction of liability to tax hereby directs under and in accordance with s. 23 of the East African Income Tax (Management) Act 1958 that the following adjustments shall be made to counteract the avoidance or reduction of liability to tax which would otherwise be effected by the transactions, namely, that the income arising from any dividend declared by T. (E.A.) Limited following the completion of the above mentioned transactions shall be treated as the income of T."

The two agreements referred to in the direction were both dated 11 March 1964. One was made between Travis Investments Ltd. and T. (E.A.) Ltd. (both companies being registered in Kenya) and the other between Travcom Ltd. and T. (E.A.) Ltd. Of the two settlements referred to in the direction, both dated 23 June 1964, one (to which I will refer as "the children's settlement") was made between the appellant as settler and the Royal Trust Company of Canada (C.I.) Ltd.

1. The agreements of March 1964 were part of a scheme designed to take the investments outside East Africa which belonged to T. Investments Ltd. and Travcom Ltd. into the ownership of someone outside East Africa and beyond the control of anyone in East Africa so as to be immune from any interference by any authority in East Africa, with an eye particularly to exchange control exercised or likely to be exercised by the Governments of Kenya, Uganda and Tanzania. The scheme involved inter alia the liquidation of T. Investments Ltd. and Travcom Ltd. the distribution of the investments outside East Africa belonging to both companies in specie by the liquidator to the appellant as part of his entitlement to repayment of capital and surplus in the windings-up, the transfer of such investment by the appellant to a company incorporated in Jersey, and the settlement by the appellant of the considerations for such transfer on trustees in Jersey on certain discretionary trusts under the laws of Jersey.

2. The liquidation of T. Investments Ltd. and of Travcom Ltd. was an essential part of the scheme, and T. (E.A.) Ltd. was established to replace the liquidated companies so as to continue the ownership of the property and investments in East Africa of the liquidated companies in the hands of an East African company. In relation to the appellant and the property and investments in East Africa the replacement of T. Investments Ltd. and Travcom Ltd. by T. (E.A.) Ltd. as a holder of such property and investments merely served to preserve a long-standing business arrangement whereby what could fairly be called family property and investments continued to be owned by a private or family company. The scheme was not designed to avoid or reduce liability to tax nor did it or could it have been expected to have that result. Accordingly, the agreements of March 1964 were unconnected with avoidance or reduction of liability to tax.

3. The above scheme was first mooted in January 1963 following detailed consideration and much consultation by the appellant with his advisers. It was amended in detail in particular so that the appellant took the investments outside East Africa from T. Investments Ltd. and Travcom Ltd. prior to the commencement of the windings-up of those two companies (being debited by them for their full value) so as to be able to dispose of these investments as a matter of urgency in the manner set out above, and the appellant issued instructions for the scheme to be implemented as soon as possible in May 1963. After he had issued these instructions, estate duty was re-imposed in Kenya and it was this fact that prompted the formation in Jersey of the company known as Athene Investments Ltd. (which was mentioned in the direction and to which I will refer as “Athene”), the allotment of shares in T. (E.A.) Ltd. to that company and the establishment of the two settlements between the appellant and Royal dated 23rd June 1964.

4. At that time the appellant was in poor health, and he felt that he should do all he could as a matter of urgency to protect his family from estate duty on his death. He was advised that the best way of obtaining protection from that duty was to transfer as much as possible of his possessions in East Africa into the ownership of a company incorporated in a suitable tax haven outside East Africa and, at the same time, to settle the consideration for such transfer under discretionary trusts for the benefit of his family (and to a limited extent himself) on trustees also in a suitable tax haven outside East Africa. The appellant was informed that the effect of this would be to ensure that on his death, ownership of none of the East African possessions so disposed of would pass and that, if on such death, ownership of any interest in the outside company passed or could be deemed to pass, such interest would not be subject to Kenya estate duty. The scheme was devised before the re-imposition of estate duty in East Africa and was designed to achieve the maximum of protection from estate duty imposed by countries outside East Africa, although such protection was not a main

purpose of the scheme, and it afforded in addition the required protection against Kenya estate duty, so that it required no alteration to deal with the re-imposition of that duty. In accordance with the advice received the appellant caused Athene to be incorporated in Jersey on 24 April 1964, after which that company paid cash to T. (E.A.) Ltd., a small part of which was applied in paying up shares of T. (E.A.) Ltd. allotted to Athene on 25 June 1964, the major part of the cash paid remaining on loan by Athene to T. (E.A.) Ltd. Both the shares in and the loan to T. (E.A.) Ltd. were effectively transferred to Royal on discretionary trusts under Jersey Law under the two settlements of June 1964.

5. The main purpose of the allotment of shares in T. (E.A.) Ltd. to Athene was to obtain protection from estate duty, and the main benefit which might have been expected to accrue therefrom was the ability to remit dividends to non-resident holders outside East Africa in the event of the imposition of exchange control by the Kenya Government. The expectation of this benefit was in fact fulfilled when exchange control was subsequently imposed on 11 June 1965. The exemption from income tax in Kenya on dividends payable to a non-resident holder was incidental to the main purposes and the main benefit of the transactions. The two settlements of 23 June 1964, did not have and could not be expected to have any effect on liability to tax in East Africa, since dividends received by Athene as a non-resident holder would be exempt from tax in East Africa, and any dividends paid by Athene would not accrue in or be derived from East Africa and so would not come into charge to tax.

Consequent upon the direction the amended assessments already mentioned were served upon the appellant and, despite objections by him were confirmed by the principal assessor. The appellant then appealed to the tribunal appointed under section 108A of the Act of 1958, sitting at Nairobi, which, by its decision dated 26 January 1972, unanimously confirmed the assessments and dismissed the appeals.

The appellant now appeals again against the assessments and it was agreed by counsel that the present appeals would be decided on the basis of the contents of the respective statements of facts filed in the appeals to that tribunal and in this Court together with the oral evidence tendered to this Court and the documents referred to.

The grounds of appeal as amended at the hearing are as follows:

(*a*) The sole purpose of the agreements of March 1964 was the removal of certain assets in the United Kingdom from ownership by companies incorporated in Kenya, so as to render such assets immune from exchange control or other interference by any authority in East Africa.

(*b*) Neither of the agreements had or could have been expected to have had any effect whatsoever on the amount of income tax payable in East Africa by any person or company on the income derived from such assets or otherwise.

(*c*) Neither of the agreements was a necessary corollary to any other transaction of which any purpose was the avoidance or reduction of liability to income tax, or the main benefit of which might have been expected to be the avoidance or reduction of liability to income tax.

(*d*) The direction, having been based partly on the said two agreements, is therefore wholly bad in law.

(*e*) The main purposes of the allotment of shares in T. (E.A.) Ltd. to Athene in 1964 were:

(i) to avoid liability for estate duty on the death of the appellant in respect of the value of such shares; and

(ii) to enable dividends paid by T. (E.A.) Ltd. to be remitted abroad.

(*f*) The avoidance or reduction of liability to tax was not any main purpose of the said allotment nor was it the main benefit which accrued or might have been expected to accrue therefrom.

(*g*) The main purpose of each of the two settlements of June 1964 of cash received by the appellant from T. (E.A.) Ltd. was to make provision partly for the benefit of the appellant and his wife and partly for the benefit of their children in such a manner as also to achieve avoidance of liability for estate duty and remittance of dividends abroad for their respective benefits.

(*h*) The avoidance or reduction of liability to income tax was not any main purpose of either of the settlements, nor was it the main benefit which accrued or might have been expected to accrue therefrom.

(*i*) The children's settlement was for the benefit of the children of the appellant and others to the complete exclusion of both the appellant and his wife and could not benefit the appellant by avoidance or reduction of liability to income tax in respect of income belonging or possibly belonging to him or to his wife.

(*j*) The children's settlement was not a necessary corollary to any other transaction of which any purpose was the avoidance or reduction of liability of the appellant to income tax or the main benefit of which might have been expected to be such avoidance or reduction.

(*k*) The direction having been partly based on the children's settlement, is therefore wholly bad in law.

(*l*) Since the whole of the income of Athene arising from dividends declared by T. (E.A.) Ltd. was at all times subject to the sole discretionary control of the trustees of the two settlements, and since the appellant had no control whatsoever over the exercise of this discretion by the trustees the whole of such income could have gone to the children or other beneficiaries of the two settlements to the complete exclusion of the appellant, and thus it was not "appropriate" within the meaning of s. 22 (formerly s. 23) of the Act to direct that all such income should be treated as the income of the appellant.

(*m*) The direction was neither just not reasonable.

The last of these grounds of appeal was added at the hearing at the request of the appellant who submitted that it was implicit in the memorandum of appeal as filed but nevertheless should be specifically included in the grounds ex abundante cautela. Its addition was opposed by the respondent on the ground that it had been "deliberately omitted" but there was nothing whatever to support the suggestion that its omission was deliberate. Whether or not this ground can be said to be implicit in the memorandum as filed, it is a material ground of appeal for, as was said by Newbold, J.A. (as he then was) in *Income Tax v. Armstrong*, [1963] E.A. 505 at p. 515, the establishment of this factor to the satisfaction of the court is one of the three requirements to be fulfilled if the appeal is to succeed. In allowing the amendment I gave leave to the respondent to amend his statement of facts (which in the event he did not require to do) and reserved the question of costs.

At the commencement of the fourth day of the hearing counsel for the respondent without prior notice raised an objection in limine to the entire proceedings and it will be convenient if, without intending to indicate approval of the bringing forward of what is in substance a preliminary objection in this way, I now deal with this matter. The point taken is that by reason of changes in the legislation, particularly those occurring since the decision in *Armstrong's* case (supra), the practice followed in that case has been altered, that it is no longer open to a tax-payer, in an appeal against an assessment based on a direction by

the Commissioner-General given under s. 22 (formerly s. 23) of the Act, to challenge the correctness of the direction. This is, indeed, a far-reaching proposition, for an assessor when preparing an assessment in compliance with such a direction merely does what he is told to do and, provided that the assessment is in a correct form and faithfully carries out the terms of the direction, whatever they may be, there would then, if this contention be sound, be no possible ground of appeal by virtue of which the correctness of the direction itself could be challenged.

It is true, no doubt, that the provisions of the former s. 115 (1) (*b*) of the 1958 Act, specifically conferring a right of appeal from such a direction and by virtue of which the *Armstrong* case (supra) came before the court, are no longer retained in that form, but s. 101 expressly provides for an appeal against an assessment "based upon or consequent upon" such a direction. Subsection (1) of that section carefully distinguishes between appeals against such assessments and appeals against all other assessments, the former being declared to lie to a tribunal appointed for the relevant Partner State of the East African Community (the course which was adopted in the present case) or to a judge, while the latter go to a local committee or a judge. If in each case the appeal were limited to challenging the assessment alone there would be no purpose to be served by drawing this procedural distinction as to the forum for determination.

Having considered the matter I am satisfied that the preliminary objection must fail and that the practice followed here of permitting the direction itself to be challenged on appeal against the resulting assessment, is correct. The memorandum of appeal now before me is properly framed for this purpose by stating that the appeal is against the additional assessment "which said assessment resulted from a direction made by the respondent". I should perhaps add that during the argument reliance was placed by the appellant upon the decision of Chanan Singh, J. in *M. v. Income Tax*, [1971] E.A. 338, but that, having perused the file and discussed the matter with the judge, I am satisfied that no question of a direction under ss. 22 or 23 arose or was considered in that case.

The issues which arise for determination are as follows:

(1) Is the direction of the Commissioner-General dated 26 October 1970 bad in law?

(2) Was the avoidance or reduction of liability to income tax the main purpose, or one of the main purposes, of the transactions referred to in the direction?

(3) Was the main benefit which might have been expected to accrue from those transactions in the three years immediately following the completion thereof the avoidance or reduction of liability to tax?

(4) Did the Commissioner-General determine it to be just and reasonable to issue a direction to counteract the avoidance or reduction of liability to tax?

(5) Was the direction just and reasonable?

(6) Was the adjustment, purported to be effected by the direction, appropriate?

Of these issues the fourth is formally raised at the request of the respondent and the appellant concedes that it should be answered in the affirmative.

Before considering the issues I should perhaps refer as a point of practice to the course adopted by the respondent in the initial stages of the case. By a letter dated 21 December 1970 the appellant's advisers wrote on his behalf to the respondent giving notice of objection to the additional assessments now under appeal and requesting that they be furnished with a copy of the direction

upon which the assessments were based. On 5 January 1971 they received a letter from the respondent purporting to inform the appellant as to the contents of the direction but not furnishing him with a copy as requested. This might well have been regarded as an oversight had not counsel for the respondent endeavoured in this court to justify the respondent's omission by contending that a taxpayer, with respect to whom such a direction has been issued, is not entitled to see or receive a copy of the terms of the direction, even, it would seem, for the purpose of challenging the correctness or propriety of those terms in a court of law. It did not become clear whether it was also being suggested that the court itself, in determining the validity of such a direction, is expected to do so without being permitted to peruse its terms for fortunately the respondent's objection to the appellant being furnished with a copy was not pressed and during the course of the hearing counsel for the respondent furnished both the court and the appellant with copies of the direction. I need say no more therefore than to express the view that the course initially adopted was incorrect.

Although the direction was expressed to be based upon s. 23 of the Act of 1958 it now falls, by virtue of the subsequent legislation, to be dealt with under s. 22, the former s. 23 having been renumbered and amended. The provisions of this section, so far as material now are:

> "22(1) Where the Commissioner-General is of the opinion that the main purpose or one of the main purposes for which any transaction or transactions was or were effected (whether before or after the passing of this Act) was the avoidance or reduction of liability to tax, for any year of income, or that the main benefit which might have been expected to accrue from the transaction, or transactions in the three years immediately following the completion thereof was the avoidance or reduction of liability to tax, he may, if he determines it to be just and reasonable, direct that such adjustments shall be made as respects liability to tax as he considers appropriate to counteract the avoidance or reduction of liability to tax which would otherwise be effected by the transaction or transactions.
>
> (2) . . .
>
> (3) Any direction of the Commissioner-General under this section shall specify the transaction or transactions giving rise to the direction and the adjustments as respects liability to tax which the Commissioner-General considers appropriate."

It will be observed that the section provides a choice of two grounds upon either of which the Commissioner-General may give a direction, namely, that in his opinion *either* the main purpose or one of the main purposes behind the transaction or transactions was the avoidance or reduction of liability to tax *or* the main benefit which might have been expected to accrue therefrom within the period of three years immediately following was the avoidance or reduction of liability to tax. The present direction does not specify which of the two grounds the respondent was purporting to rely upon, which constitutes somewhat careless drafting for if the intention were to rely upon one only of the two grounds that ground should have been designated while if both grounds were being relied upon the direction should have said so. It is perhaps debatable whether the direction might not have been challenged as being void for uncertainty but as this factor was not raised (possibly because of the respondent's failure, already noted, to supply a copy of the direction to the appellant before the appeal was filed), I will assume for the purpose of the case that the direction was effectively based upon both grounds.

It is noteworthy that the tribunal, in dismissing the appeal, did so solely on the basis that one of the *main purposes* of the impugned transactions was the

avoidance or reduction of liability to tax and made no reference to the question of the main benefit accruing therefrom. On the other hand the respondent, in his statement of facts in this Court, sought to resist the appeal solely on the alternative ground that the *main benefit* which might have been expected to accrue, and which did in fact accrue, to the appellant in the three years immediately following the completion of the transactions was the avoidance or reduction of liability to tax. Not having heard argument upon the matter I am not satisfied that I can properly restrict the respondent to advancing his case exclusively upon the issue of main benefit and accordingly I will assume that there rests on the appellant the burden of satisfying the Court that the direction cannot be sustained upon either ground. As I understood him to say, counsel for the appellant accepted this burden.

Turning now to the issues, the appellant contends on the first issue that where a direction under s. 22 is expressly based, even partly, upon an "innocent" transaction, that is, one not vitiated by either the "purpose" or the "benefit" contemplated by the section, the direction is wholly void. He next contends that in this context the two agreements of March 1964 were "innocent" transactions and in no way related to the remaining three with the result that, even if those three transactions are such as to attract the operation of the section, the direction as it stands is bad law. For the proposition here involved reliance is placed upon a short passage in the judgment of Newbold, J.A. in the *Armstrong* case (supra) where, at p. 518, he said:

> "I consider, as was urged by the taxpayer, that a direction stands or falls as a whole. In other words each transaction referred to in a direction must either be effected with avoidance purposes or must be a necessary corollary to another transaction effected with avoidance purposes. This being so the direction is bad in law and the decision of the learned judge to that effect should, I consider, be affirmed on grounds other than those relied upon by him."

Gould, V.-P. in the same case, said at p. 522:

> "The learned judge found that one of the two transactions specified in the direction was not entered into for avoidance purposes and not connected with the other transaction and there has been no appeal from these findings. This position must, therefore, be accepted in this court and I find it superfluous to discuss the correctness or otherwise of the learned judge's decisions on the evidence. A substantial part of the basis of the direction having gone, it is not possible for this Court to say whether, on what remains, the Commissioner would have considered it just and reasonable or appropriate to make this or any direction. For this reason and for those given by the learned Justice of Appeal I agree that the direction must be considered as bad in law."

Crawshaw, J.A. would appear to have been of the same view and in the result the appeal was allowed.

Counsel for the respondent in the present case appeared not to accept as entirely correct the views expressed in *Armstrong's* case, which he described as "misleading", but being a decision of the former Court of Appeal for Eastern Africa this court is bound by it and I must hold that the proposition of law advanced by the appellant on the first issue falls within the principle of *Armstrong's* case and is correct. Accordingly what I have next to consider on this issue is whether any one or more of the five transactions mentioned in the direction can properly be said to be innocent of the mischief contemplated by s. 22.

The transactions upon which the appellant primarily relies in this context are the two agreements of March 1964 (grounds (*a*) to (*d*) of the memorandum of appeal) and the children's settlement (grounds (*g*) to (*k*)). It will be convenient to deal first with the two agreements.

Evidence was given by the appellant and by Mr. Gill, a chartered accountant, and Mr. J.H. Wilkinson, an advocate of the High Court of Kenya. No evidence was called by the respondent.

[The judge considered the evidence and continued.]

None of the three witnesses was shaken in cross-examination and indeed to some extent their evidence under cross-examination gave added strength to what they had stated during examination-in-chief. I accept their testimony as correctly recording both what was in the mind of the appellant when he initiated and brought to fruition the several operations upon which the direction is based and the benefit expected to accrue therefrom, and I make the following findings of fact:

(1) The two agreements of March 1964 had for their sole purpose the safeguarding of the appellant's overseas assets against the possible effects of exchange control should it be introduced into this country, while the remaining transactions referred to in the direction were designed primarily to protect the appellant's assets against the effect of estate duty in both Kenya and to a lesser extent the United Kingdom.

(2) Despite the delay in the actual execution of the two agreements until after the initiation of the moves towards the remaining transactions, there was no connection either as to purpose or effect between the agreements on the one hand and the remaining transactions on the other and either set of operations could have proceeded to fulfilment without the other having been brought into existence or completed.

(3) No avoidance or reduction of liability to income tax resulted from the two agreements and the main benefit of the agreements had no tax implications.

From these findings it follows that the first issue must be answered in the affirmative for, irrespective of the position of the "second package", the two agreements of March 1964 do not fall within the mischief contemplated by s. 22 and, since the direction is based partly on these agreements, the direction is bad in law.

This is sufficient to dispose of the appeal but in view of the volume of evidence adduced and of the comprehensive way in which the remaining matters were dealt with by counsel it is expedient that I should deal with them also.

I shall therefore turn to consider as a second limb of the first issue the children's settlement. Here it is not necessary to do more than to examine the terms of the instrument itself. By it the appellant as settlor transferred absolutely and irrevocably to Royal as trustee a sum of £52,000 to hold upon discretionary trusts for certain beneficiaries (including issue of the settlor but expressly excluding the settlor himself), no estate or interest in either the capital or the income being retained for the settlor or his wife. I am satisfied that this was an absolute gift by the settlor for the purpose of benefiting the designated beneficiaries and that the transaction does not fall within s. 22. Manifestly, by completely divesting himself of this capital sum the settlor will have deprived himself of the income from it and this in turn will have relieved him of liability to tax on that income but there is nothing to suggest that the obtaining of this tax relief was either one of the main purposes of the settlement or the main benefit accruing from it, and I am satisfied that such was not the position. The case is readily distinguishable from that illustrated by Newbold, J.A. in *Armstrong's*

case (supra) at p. 516, where he instanced a taxpayer entitled to income which attracts tax who enters into transactions which result in the income ceasing to be his and the tax thereon being either avoided or reduced *while he still retains directly or indirectly the benefit of that income*.

The result is that, for the additional reason now stated, the first issue must be answered in the affirmative.

In regard to the second and third issues I hold on the evidence that although a measure of saving of tax did result the avoidance or reduction of liability to tax was not one of the main purposes of any of the transactions referred to in the direction, for those purposes, I am satisfied, were confined to the desirability of seeking protection against the threatened introduction of exchange control and the introduction of estate duty. Likewise the main benefit which might have been expected to accrue from the transactions in the immediately succeeding three years was the securing of protection against the same hazards and not the avoidance or reduction of liability to tax. The fact that in relation to estate duty this danger was in any event circumvented by the survival of the appellant for those three years is immaterial since the criterion is not the main benefit which actually accrued from the transaction but that which might have been expected, as seen at the time of the transaction, to accrue. These two issues therefore will be answered in the negative.

The fourth issue was not contested by the appellant and will be answered in the affirmative.

As to the fifth issue, I am unable to accept the respondent's contention, unsupported by authority, that the Court has no power to examine the justness and reasonableness of the direction. What would appear to have been a somewhat similar submission was put forward by the Commissioner in *Armstrong's* case (supra) and was dealt with by Newbold, J.A. at p. 516, where he said:

> "I do not accept as was submitted for the Commissioner, that the words 'just and reasonable' are mere surplusage or, at most, indicative of the permissive nature of the power given by the section. In my view it is the requirement contained in these words which enables the court to keep a check on the very wide powers of the Commissioner."

Having considered all the circumstances I find that the direction in the present case was neither just nor reasonable and that the fifth issue must therefore be answered in the negative.

The sixth issue can scarcely be said to arise but if I am mistaken in the findings which I have already made and a case for adjustment can be said to have been established, my view would be that the adjustment purported to have been effected by the direction was unduly harsh upon the appellant and could not be said to be appropriate. I do not however consider myself in a position to fix the terms of a proper adjustment without further argument and accordingly I give leave to the parties, or either of them, to have the matter set down for further hearing in chambers if desired.

In the result the four appeals succeed, the four additional assessments will be set aside and the appellant will have the taxed costs of the appeals with a certificate for two counsel. There will be liberty to the parties to apply in Chambers, should it be necessary, to settle the terms of the order.

*Order accordingly.*

For the appellant:
*H. Slade* and *T. C. Noad* (instructed by *Daly & Figgis*, Nairobi)

For the respondent:
*Sebalu* (Counsel to the Community)

## Kawesa v Attorney-General

# [1973] 1 EA 407 (HCU)

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| **Division:** | High Court of Uganda at Kampala |
| **Date of judgment:** | 18 June 1973 |
| **Case Number:** | 922/1972 (104/73) |
| **Before:** | Opu J |
| **Sourced by:** | LawAfrica |

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*[1] Civil Practice and Procedure – Pleading – Cause of action – May be shown even when not containing all facts constituting the cause of action.*

**Editor's Summary**

The plaintiff claimed general damages, claiming that he had been shot by a government servant.

The defendant applied to have the plaint rejected on the ground that it disclosed no cause of action, it not being stated whether it was alleged that the shooting was negligent or intentional.

**Held –** the failure to state whether the shooting was negligent or intentional did not mean that a cause of action was not shown.

Application dismissed.

**Cases referred to in judgment:**

(1) *Hasmani v. National Bank of India* (1937), 4 E.A.C.A. 55.

(2) *Sullivan v. Alimohamed Osman*, [1959] E.A. 239.

(3) *Lake Motors v. Overseas Motor Transport*, [1959] E.A. 603.

(4) *Amin Electrical Service v. Ashok Theatres*, [1960] E.A. 298.

(5) *Auto Garage v. Motokov*, [1971] E.A. 514.

(6) *Constant Munyegera v. General Motors*, H.C.C.C. 712 of 1971 (unreported).

(7) *Kazora v. Attorney-General*, H.C.C.C. 1 of 1972 (unreported).

**Judgment**

**Opu J:** This is an application by the defendant under O. 7, r. 11 (*a*) of the Civil Procedure Rules, that the plaint be rejected on the ground that it is vague and does not disclose any cause of action.

The plaintiff sues for the recovery of general damages. His cause of action is set out in paragraphs 5, 6, 8 and 11 of the plaint. Paragraphs 5, 6 and 8 lay down the events which led to the shooting of the plaintiff. Paragraph 8 details the injuries suffered by the plaintiff as a result of being shot. The defendant relies on the provisions of O. 7, r. 11 (*a*) of the Civil Procedure Rules on the ground that the plaint as it is does not disclose whether the shooting was negligent or intentional. O. 7, r. 11 (*a*) reads:

> "11. The plaint shall be rejected in the following cases:
>
> (*a*) Where it does not disclose a cause of action."

There is no question that in the case of *Hasmani v. National Bank of India* (1937), 4 E.A.C.A. 55 and

the case of *Sullivan v. Alimohamed Osman*, [1959] E.A. 239, the Court of Appeal has held that the provisions of O. 7, r. 11 (*a*) are mandatory. In fact, the Court of Appeal has gone further and held that when deciding whether the plaint discloses a cause of action or not, the court has to confine itself to the plaint assuming that what is alleged therein is true. In so far as the provisions of O. 7, r. 11 (*a*) are concerned, the defendant seems to be standing on firm ground. The defendant's contention is further strengthened by two decisions of this court in the cases of *Constant Munyegera v.*

*General Motors*, H.C.C.C. 712 of 1971 and *Kazora v. Attorney-General*, H.C.C.C. 1 of 1972. So much for the provisions of O. 7, r. 11 (*a*) of the Civil Procedure Rules and the decisions which bolster the defendant's contention.

However, before I leave the authorities which favour a strict interpretation of O. 7, r. 11 (*a*) of the Civil Procedure Rules, let me refer to the case of *Sullivan v. Alimohamed Osman*. In that case the question was whether failure by the plaintiff to plead in his plaint the allegation of force or duress was fatal to his cause of action in which he had alleged tresspass to his goods by the defendant who had unlawfully ordered the plaintiff's servants to drive away the plaintiff's lorry to the police station. Still adhering to a strict interpretation of what should be pleaded, Windham, J. observed:

> "The plaint must allege all facts necessary to establish the cause of action. This fundamental rule of pleading would be nullified if it were held to be that a necessary fact not pleaded must be implied because otherwise another necessary fact that was pleaded could not be true."

Let me now turn my attention to a trend of cases which in my view have laid a more liberal approach to the interpretation of the provisions of O. 7, r. 11 (*a*). In this regard the cases of *Amin Electrical Service v. Ashok Theatres*, [1960] E.A. 298 and *Lake Motors v. Overseas Motor Transport*, [1959] E.A. 603 are relevant. In the above cases, the plaintiffs sued to recover the price of goods sold and delivered. In each case, the plaint did not aver that the price had been agreed or that it was reasonable. Both judges observed that the observation of Windham, J.A. in the case of *Sullivan v. Alimohamed Osman* quoted above did not lay a general principle that in all cases inferences of facts which ought to have been pleaded are excluded if the facts so omitted do not go to the root of the cause of action. It is my view that whatever can be necessarily implied from its context should be read into the plaint.

In the case of *Auto Garage v. Motokov*, [1971] E.A. 514, the Vice-President of the Court of Appeal considered whether a failure to plead by the plaintiff in his plaint that he is the holder of the bill of exchange upon which his suit is brought is fatal on the ground that the plaint did not disclose a cause of action. The Vice President observed:

> "I would summarise the position as I see it by saying that if a plaint shows that the plaintiff enjoyed a right, that that right has been violated and that the defendant is liable, then, in my opinion, a cause of action has been disclosed and any omission or defect may be put right by amendment. If, on the other hand, any of these essentials is missing, no cause of action has been shown and no amendment is permissible. I think this accords with the words I have quoted from Law, J. in *Lake Motor's* case, with which I respectfully agree."

Now it must be clear that the above cases show that the Court of Appeal has adopted a more liberal approach to the interpretation of the provisions of O. 7, r. 11 (*a*) of the Civil Procedure Rules. For disposing with the present application, I would prefer a liberal approach as opposed to a rigid one. The present suit is based on vicarious liability. The defendant is being held responsible for the acts of his servant which on the face of it were done in the course of his employment. In fact, the written statement of defence does not deny that the plaintiff was shot by the servant of the defendant. If this is so, then, there is no doubt that a right enjoyed by the plaintiff has been violated. It is my view that the plaint as it is discloses a cause of action. I hold that the omission of the words intentionally or negligently to describe the action of the defendant's servant is not fatal in the present case.

I have observed that paragraph one of the written statement of defence involves the provisions of Decree No. 8/72. I do not know whether the representative of the Attorney General intentionally or by oversight omitted to argue paragraph (1) of the written statement of defence when he made his application. However, whatever the reason, judging from the facts as stated in the plaint and the reply of the defendant in his written statement of defence, I can say categorically that the provisions of Decree No. 8/72 cannot, by any stretch of the imagination, be invoked to bar the plaintiff's cause of action. For reasons given above, the application to strike out the suit as disclosing no cause of action is rejected. I direct that the hearing of the suit should proceed as soon as possible.

*Order accordingly.*

For the plaintiff:
*P. K. Mpungu*

For the defendant:
*T. Mugerwa*

## Salongo v Allibhai's Garage Ltd and others
[1973] 1 EA 409 (HCU)

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| **Division:** | High Court of Uganda at Kampala |
| **Date of judgment:** | 18 May 1973 |
| **Case Number:** | 179/1972 (105/73) |
| **Before:** | Nyamuchoncho J |
| **Sourced by:** | LawAfrica |

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*[1] Negligence – Vicarious liability – Owner of vehicle let under hire-purchase – Not liable for operator of vehicle.*

*[2] Negligence – Vicarious liability – Owner of taxi-cab licence – Liable for operator whom he has allowed to operate vehicle.*

**Editor's Summary**

The plaintiff claimed damages from the driver of a motor-vehicle who was found responsible for the accident. Claim was made against the three registered owners of the vehicle, the first being the hire-purchase company which had hired the vehicle to the third. The second was a corporate body which held a taxi-cab operator's licence under which the vehicle was operated. The vehicle and the licence had been handed over to the third defendant who employed the driver and the second defendant retained no control and did not share in the earnings.

**Held** –

(i) the first defendant had no interest in the operation of the vehicle being entitled to its instalments whether the vehicle was operated or not;

(ii) third defendant was liable as the driver's employer;

(iii) the second defendant could not legally transfer its licence and was therefore operating the vehicle through the third defendant and was also liable.

Judgment against the second and third defendants.

**Cases referred to in judgment:**

(1) *Quarman v. Burnett*, [1835-42] All E.R. Rep. 350.

(2) *Hewitt v. Bonvin*, [1940] 1 K.B. 188.

(3) *Ormrod v. Crosville Motor Spares*, [1953] 2 All E.R. 753.

(4) *Selle v. Associated Motor Boat Co.*, [1968] E.A. 123.

(5) *Morgans v. Launchbury*, [1972] 2 All E.R. 606.

(6) *Matia Sentamu v. Harshad Auto Spares*, H.C.C.C. 368 of 1969 (unreported)

**Judgment**

**Nyamuchoncho J:** This action arose out of a motor accident in which the plaintiff sustained personal injuries. The facts, as related by the plaintiff, are as follows:

On 16 October 1971 the plaintiff was on his way to Mawokota. He stopped at Mukoko, at about 12.30 p.m., to greet a friend. As they were standing near the precincts of a petrol station on the right side of the road, facing Masaka, exchanging greetings, they saw two vehicles, a lorry and a Toyota mini-bus registration number UQZ.902, coming from the direction of Kampala. The Toyota mini-bus was following the lorry. The lorry proceeded to park, and when slowing down, the Toyota mini-bus hit it and got out of control. It ran across the road, towards where the plaintiff was standing, and knocked him down. As a result of the accident, the plaintiff was rendered unconscious, and when he recovered his consciousness, he found himself in Masaka Hospital. He sustained a simple fracture of the right humerus and fracture of the 3rd, 4th and 5th ribs of the right side chest. He also lost some property. He was detained in hospital for six days, and after his discharge he continued to attend the hospital as an out-patient.

The plaintiff now brings an action for damages and special damages for Shs. 930/-, for the negligence of the driver, Issa Kagwa, against the three defendants on the grounds:

> that they were, at the material time, the registered owners of the Toyota mini-bus (which, for brevity, I will refer to as the "motor-vehicle");
>
> that the third defendant had, at the material time, possession of the motor-vehicle and used it with the permission and/or consent, express or implied, of the 1st and/or the 2nd defendant; and
>
> that the driver was, at the material time, the servant or agent of the third defendant.

All the three defendants admit that they were the joint registered owners of the motor-vehicle, but the first defendant denies having or exercising any control over the motor-vehicle at the material time; it also denies that the driver was, at the material time, the servant or agent of the first defendant; the second defendant also denies having or exercising any control over the motor-vehicle, and that the third defendant and the driver were neither the servant nor the agent of the second defendant; and that the motor-vehicle was not being used for the benefit of the third defendant; the third defendant denies negligence on the part of the driver.

On the evidence, it is clear that the accident was due to the negligence of the driver; moreover, no defendant has led evidence to dispute it.

The only question to decide in this case is, therefore, the liability of each defendant, if any.

I will consider the liability of the first defendant, first. According to the evidence of Mathias Mulumba, the first defendant is a company of motor dealers. On 12 January 1971, it signed a hire-purchase agreement, with the third defendant, under which the third defendant purchased the motor-vehicle at a total price of Shs. 32,500/-. The third defendant took delivery of the motor-vehicle at a total price of Shs. 30,543/- and, under the terms of the agreement, the balance was to be paid in instalments. It is by virtue of this agreement between the first and third defendants that the first defendant denies liability. It maintains

that so long as the instalments were being paid, the first defendant had no control over the use of the motor-vehicle at the material time and that the third defendant was neither its servant nor agent.

Mr. Kateera, for the first defendant, argued that the mere ownership of the motor-vehicle per se does not render the owner of the motor-vehicle liable for any injury that it may cause on the road unless the relationship of master and servant exists between the owner and the driver: *Quarman v. Burnett* [1835-42], All E.R. Rep. 350, or that the driver was driving the motor-vehicle for the benefit of the owner: *Hewitt v. Bonvin*, [1940] 1 K.B. 188. He also cited *Ormrod v. Crosville Motor Spares*, [1953] 2 All E.R. p. 753. These decisions, he said, were followed in *Selle v. Associated Motor Boat Co*., [1968] E.A. 123, and approved by the House of Lords in *Morgans v. Launchbury*, [1972] 2 All E.R. 606. He urged the Court to follow the decision of the High Court in *Matia Sentamu v. Harshad Auto Spares*, H.C.C.C. 368 of 1969 (unreported). In this case the first defendant sold a motor-vehicle under a hire-purchase agreement to the second defendant. While the plaintiff was riding his motor-cycle home, he was knocked down by the second defendant who was negligently driving the motor-vehicle. In an action to recover damages from the first defendant as the owner of the motor-vehicle, Mukasa, J. held that:

> "A hire-purchase agreement does not make defendant No. 2 a servant of defendant No. 1, nor does the letting of the motor-vehicle by defendant No. 1 to defendant No. 2. There must be evidence showing the control which defendant No. 1 had over defendant No. 2."

Counsel for the plaintiff urged the Court to infer such control on two grounds, namely:

(1) that the motor-vehicle was registered in the names of the three defendants; and

(2) that the first defendant was receiving instalments in respect of the said motor-vehicle from the third defendant, a thing which not only shows that the first defendant had control over the motor-vehicle, but also that the motor-vehicle was being driven for the joint benefit of the first and third defendants.

The first ground can be disposed of at once on the ground that it is not supported by any of the authorities cited above. The second ground seems to me to be based on a false assumption. The first defendant was entitled to receive the instalments, whether or not the motor-vehicle was running as a taxi or was in a garage, under repair. In his statement of defence, the first defendant expressly denied that the driver, Issa Kagwa, was at the material time his servant. No evidence was led by the plaintiff to connect the driver with the first defendant or to show that he was a servant or agent of the first defendant. And in the absence of any evidence showing that the first defendant had control over the use of the motor-vehicle or that the motor-vehicle was being used for the benefit of the first defendant, that the driver was a servant or agent of the first defendant, the plaintiff's suit against the first defendant is dismissed with costs.

The position of the second defendant is rather peculiar. According to B. Kazinda, the Secretary of the second defendant, the second defendant is a corporate body, registered under the Co-operative Societies Act, 1970. It is composed of 100 members. It is the only body which can be issued with a taxi cab operators' licence. For this reason, any person who desires to operate a taxi service becomes a member of the company. The company itself owns no vehicles of its own, but members' vehicles are registered in its name. Licences are issued not to individual members, but to the company. After a licence has

been issued, the company hands over the licence and the vehicle to its member to operate the taxi service. The company retains no control over the member, and does not share in the member's earnings.

The question now is whether or not the second defendant operated the taxi service itself or through the third defendant, or whether it transferred or assigned the licence to the second defendant so as to escape liability. From the evidence, it is clear that the licence was granted to the second defendant under s. 101 of the Traffic and Road Safety Act, 1970, to operate a taxi service. By s. 99 (1) and (2) and s. 101 (2) (*d*) of the Traffic and Road Safety Act, 1970, an applicant for a taxi cab operator's licence must own a vehicle – this explains why members' vehicles are registered in the name of the second defendant. And under s. 92 of the said Act, a taxi cab operator's licence cannot be transferred or assigned except with the permission of the Transport Licensing Board. No evidence was led to show whether this permission was obtained from the Board to effect the transfer or assignment, and unless such permission was obtained, the second defendant could not legally transfer or assign its licence to the third defendant, and it seems to me that by the provisions of this section the second defendant could not assign its licence to the third defendant so as to escape liability for negligence in its performance. The provisions of this section had to be complied with before such transfer or assignment could be effected. As I see it, the second defendant was, at all material time, the holder of the licence, and it alone had authority to operate a taxi service on the route specified in the licence. The second defendant chose to discharge its legal duty through its member, the third defendant, rather than do it by itself. The purported transfer or assignment of the licence to the third defendant was ultra vires s. 92 of the Act. I hold that the third defendant was operating the taxi service on behalf of the second defendant. The fact that the second defendant did not share in the daily earnings of the service made by the third defendant is immaterial. The third defendant, although not the holder of the licence, is also liable as the joint owner of the motor-vehicle with the second defendant.

The driver was at the material time a servant of the third defendant, and was driving the motor-vehicle for or on behalf of the second and third defendants. They are therefore vicariously liable for the negligence of the driver. Accordingly, I hold that the second and third defendants are liable in damages to the plaintiff.

*Order accordingly.*

For the plaintiff:
*N. Nsubuga* (instructed by *Nsubuga & Luganda*, Kampala)

For the first and second defendants:
*J. Kateera* (instructed by *Hunter & Greig*, Kampala)

For the third defendant:
*C. Kakooza*

## Namirembe v Kizito
[1973] 1 EA 413 (HCU)

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| **Division:** | High Court of Uganda at Kampala |
| **Date of judgment:** | 29 March 1973 |
| **Case Number:** | 611/1972 (106/73) |

**Before:** Saied J

**Sourced by:** LawAfrica

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*[1] Civil Practice and Procedure – Service of summons – Originating summons – Must be of the summons and not of a hearing notice.*

*[2] Civil Practice and Procedure – Originating summons – Issues relating to wilful default – May not be raised – Civil Procedure Rules, O.* 34 (*U.*).

**Editor's Summary**

The plaintiff applied by originating summons for relief against the executor of a will alleging wilful default among other allegations.

A hearing notice but not the summons itself was served.

**Held** –

(i) service of a hearing notice without the summons is not good service;

(ii) where wilful default is alleged an inquiry should not be ordered by originating summons.

Application dismissed.

**Cases referred to in judgment:**

(1) *Craig v. Kanseen*, [1943] 1 All E.R. 108.

(2) *Standard Goods Corporation Ltd. v. Harakchand Nathu* (1950), 17 E.A.C.A. 99.

(3) *Bhamri v. Khan*, [1965] E.A. 94.

(4) *Nanjibhai Prabhudas v. Standard Bank*, [1968] E.A. 670.

(5) *Premchand Raichand v. Quarry Services*, [1969] E.A. 514.

(6) *Official Receiver v. Sukhdev*, [1970] E.A. 243.

**Judgment**

**Saied J:** This is an originating summons taken out under O. 34, rr. 1 and 2 seeking various reliefs with regard to the administration of the estate of the plaintiff's late father Samuel Wavamuno Kasujju, the probate of which was granted to the defendant by this Court in Administration Cause 35 of 1970 on 5 November 1970.

The application is founded on the plaintiff's affidavit, which is in the following terms:

"1. That I am the daughter of the late Samuel Wavamuno Kasujju and Losira Nakibuuka.

2. That I know my father died on 12 August 1969.

3. That in his last will the residue of his estate was given to me, and about Shs. 10,559/10 that were in the post office were all mine.

4. That I know Musa Kizito as my executor but any time I go to him for money he says there is no money and yet there is money in the post office.

5. That I know there is money in the post office and that the balance of the money was also given to me.

6. That Musa Kizito has refused to give me any assistance.

I hereby certify that what is stated above is true to the best of my knowledge, information and belief."

The plaintiff seeks three orders which may be summarised thus:

(1) that the probate granted to the defendant be "cancelled" and the plaintiff appointed executor instead;

(2) that the defendant do file an inventory of the administration of the deceased's estate; and

(3) that the plaintiff be given her share of the money left by the deceased in accordance with the provisions of the Will.

The originating summons was presented ex parte to one of my brother judges in chambers who signed it on 30 June 1972, and the summons was issued for 14 July 1972.

On 14 July 1972 the judge ruled that service of the summons on the defendant was defective.

Another summons was then signed by another judge returnable on 22 September 1972. It was subsequently removed from the list to suit the convenience of the court.

It was not till 11 January 1973 that another date for the hearing of the summons was fixed for 14 March 1973. This time, a hearing notice was issued and served on the defendant.

The defendant did not appear on the day of the hearing, and the proceedings started ex parte.

I feel that I must decline to give the orders which are being sought by the plaintiff for the following reasons.

The first point which arises is whether there has been proper service. O. 34, r. 7 deals with the practice and states that the judge being satisfied that the facts as alleged are sufficient and the case is a proper one to be dealt with on an originating summons, shall sign the summons and "give such directions for service upon persons or classes of persons and upon other matters as may then appear necessary". It is clear that the process which is to be served is the originating summons which has been signed by the judge under this rule. An originating summons is a summons by which proceedings are commenced without a writ. This is a unique procedure limited to certain matters set out in rr. 1 and 2 to enable simple matters to be settled by the court without the expense of bringing an action in the usual way. It is fundamental that the defendant must be notified of the application and all necessary documents upon which it is founded be served upon him so that he can, if he so wishes, defend himself. Where this is not done and he is served with an ordinary hearing notice which issues in litigation begun by the filing of a plaint which has already been served upon the defendant, he is in fact given no notice of the nature of the proceedings against him. This matter is dealt with lucidly by Lord Greene, M.R., in *Craig v. Kanseen*, [1943] 1 All E.R. 108 as follows:

> "The question we have to deal with is whether the admitted failure to serve the summons upon which the order in this case was made was a mere irregularity, or whether it was something worse, which would give the defendant the right to have the order set aside. In my opinion, it is beyond question that failure to serve process where service of process is required, is a failure which goes to the root of our conceptions of the proper procedure in litigation. Apart from the proper ex parte proceedings, the idea that an order can validly be made against a man who has had no notification of any intention to apply for it is one which has never been adopted in England. To say that an order of that kind is to be treated as a mere irregularity, and not something which is effected by a fundamental vice, is an argument which, in my opinion, cannot be sustained."

I respectfully agree, and would hasten to say emphatically that in this country also the practice always has been the same. The facts in *Nanjibhai Prabhudas v. Standard Bank*, [1968] E.A. 670 are clearly distinguishable but it will not be amiss if I were to quote from the judgment of the President of the Court of Appeal at p. 683 B:

> "The courts should not treat any incorrect act as a nullity, unless the incorrect act is of a most fundamental nature. Matters of procedure are not normally of a fundamental nature. To treat the service on a person of the summons itself instead of a notice, to which the summons itself is attached, as of so fundamental a nature that it results in a complete nullity and vitiates everything following would appear to me to be completely unreal unless there is a very good reason for this distinction between the service of the summons and the service of a notice."

I am of the opinion that there would have been no objection had a copy of the originating summons and the affidavit been attached to the hearing notice which was served on the defendant. As this was not done and following *Craig's* case I hold that the defendant was not properly served with the summons and, as he did not have notification of any intention to apply for the orders now being sought, the proceedings so far taken are a nullity. Any order which I could have lawfully made pursuant to these proceedings in such circumstances would likewise be a nullity.

The second reason why I am not disposed to make the orders refers to the affidavit which, under r. 7, is required to set forth "concisely the facts upon which the right to the relief sought by the summons is founded". I am of the opinion that the affidavit does not set forth such facts and whatever is stated does not support the reliefs sought. There is another objection to the affidavit. It is deficient because it did not set out the deponent's means of knowledge or her grounds of belief regarding the matters stated on information and belief, and it did not distinguish between matters stated on information and belief and matters deposed to from the deponent's knowledge – see O. 17, r. 3 (1) and *Standard Goods Corporation Ltd. v. Harakchand Nathu* (1950), 17 E.A.C.A. 99. It has been repeatedly held that an affidavit of this kind ought never to be accepted by a Court as justifying an order based on the so called "facts". It seems that those concerned with the drafting of such affidavits have little or no regard to these fundamental requirements. As was said in *Premchand Raichand v. Quarry Services*, [1969] E.A. 514, at p. 516, "This is not merely a matter of form, but goes to the essential value of the affidavit". The affidavit was thus of no evidential value and, with respect, I would have refused to act on it.

Notwithstanding the foregoing and considering whatever meagre facts that appear from the affidavit, it seems clear to me that the deponent based the reliefs which she seeks on imputations of wilful default on the part of the defendant in the administration of the estate. Sufficient authority exists to the effect that an inquiry should not be ordered under O. 34 where wilful default is alleged on the part of the administrator – *Bhamri v. Khan*, [1965] E.A. 94, and *Official Receiver v. Sukhdev*, [1970] E.A. 243.

For all these reasons I am of the opinion that this application should be dismissed and I do so order.

*Order accordingly.*

For the applicant:
*P. S. Kawere*

## Odhiambo v Odenyo and another
[1973] 1 EA 416 (HCK)

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|---|---|
| **Division:** | High Court of Kenya at Nairobi |
| **Date of judgment:** | 15 June 1973 |
| **Case Number:** | 758/1973 (108/73) |
| **Before:** | Muli J |
| **Sourced by:** | LawAfrica |

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*[1] Land – Adjudication – Machinery of appeals – Whether exhausted – Land Adjudication Act* (*Cap*. 234), *ss*. 20, 21, 22 (*K*.).

*[2] Land – Adjudication – Officers appointed under Land Adjudication Act – Extent of immunity from civil process – Land Adjudication Act* (*Cap*. 234) *s*. 34 (*K*.)

*[3] Constitutional Law – Government – Proceedings against – In respect of persons immune from civil process – Not maintainable – Land Adjudication Act* (*Cap*. 234), *s*. 34 (*K*.)*; Government Proceedings Act* (*Cap*. 40) (*K*.).

**Editor's Summary**

A land dispute between the plaintiff and the first defendant was decided in favour of the first defendant by an adjudication committee under the Land Adjudication Act (Cap. 284). The Act provides for an appeal to an arbitration board and thereafter to the Minister. These further steps were not taken.

The plaintiff filed action for a declaration concerning his rights in the land in dispute, for an order for rectification of the register and for damages in tort from the Attorney-General in respect of the acts of the arbitration board. The plaintiff alleged that the members of the board were public officers or government servants for whose acts the Attorney-General was responsible.

The Attorney-General applied to be struck out from the suit on the ground that no cause of action was shown against him, the procedure for appeal having been laid down under the Land Adjudication Act and officers under the Act being protected from liability for acts done in good faith in the exercise of their duties under the Act.

**Held** –

(i) the machinery provided by the Land Adjudication Act on a dispute had not been exhausted;

(ii) officers appointed under the Act are protected from liability for acts done or omitted in good faith in the exercise of their duties under the Act;

(iii) therefore, even if the officers were government servants, the Attorney-General could not be liable for their acts.

Second defendant struck out.

**Cases referred to in judgment:**

(1) *Kimani v. Attorney-General*, [1969] E.A. 502.

**Judgment**

**Muli J:** This is an application by way of chamber summons in which the second defendant in this

suit applied to have his name struck out on the grounds that he is improperly joined as a party to these proceedings and that the plaint discloses no reasonable cause of action against him.

The application is grounded on the provisions of O. I, rr. 10 (2) and 13, and also under O. 6, r. 13 of the Civil Procedure (Revised) Rules 1948. The inherent jurisdiction of this Court is also invoked.

Under O. 6, r. 13, the court has discretion to order to be struck out any pleadings on the grounds that it discloses no reasonable cause of action or

defence; or it is scandalous, frivolous or vexatious or that it may prejudice, embarrass or delay the fair trial of the action or that it is an abuse of the process of the Court.

Under O. I, r. 10 (2) the court may order the name of an improperly joined party to be struck out or that the name of a party who ought to have been joined to be added.

However under O. I, r. 10 A of the rules the provisions of O. I have effect subject to the provisions of s. 12 of the Government Proceedings Act. Under s. 12 of the Government Proceedings Act civil proceedings by or against the Government must be instituted by or against the Attorney-General subject to any other written law.

The second defendant herein is the Attorney-General empowered to sue or be sued on behalf of the Government. It follows therefore that any civil proceedings against the Government must be construed as civil proceedings within the scope of s. 19 (2) of the Government Proceedings Act (Cap. 40).

The present suit is in the nature of civil proceedings seeking a declaration that the plaintiff's rights and interest in the land, which is the subject matter of this suit, were not ascertained or recorded in accordance with the Land Adjudication Act (Cap. 284); that the plaintiff is the lawful owner of the land and an order for rectification of the register be made.

The plaintiff also prays in the alternative for relief in damages arising from what appears to be a tort committed by the members of the Land Arbitration Board.

Mr. Okuom submitted that members of the Arbitration Board are public officers or at least agents or servants of the Government while discharging their duties under the Adjudication Act.

Whether they may be public officers or not, it is clear from the provisions of s. 12 of the Government Proceedings Act that civil proceedings against the Attorney-General must be subject to the provisions of any other written law. The Land Adjudication Act provides procedural machinery for the ascertainment and recording of rights and interests in Trust Land. It cannot be disputed that the provisions of the Land Adjudication Act are any other written law. It follows from this that any civil proceedings brought under the Act must rank in priority with the result that the Attorney-General is precluded from being joined as a party in civil proceedings brought under the Land Adjudication Act. S. 12 of the Government Proceedings Act makes it clear that civil proceedings by or against the Attorney-General must be subject to the provisions of any other written law. There exists the Land Adjudication Act to which civil proceedings under the Government Proceedings Act must be subject.

The facts in this case are that a land dispute between the plaintiff and the first defendant was referred to the adjudication committee for Ramunde Adjudication section pursuant to the provisions of the Land Adjudication Act, that the dispute was determined by the committee in favour of the first defendant, and that the plaintiff being dissatisfied by the decision of the adjudication committee alleged that he "complained to the executive officer of the said committee" within 14 days after the date of the committee's decision.

There was no evidence to show the nature of the complaint and whether it was received by the executive officer. Although s. 20 (3) of the Land Adjudication Act does not state that the complaint should be in writing, it is clear from sub-section (4) thereof that "upon receipt of a complaint the executive officer shall refer it with all the particulars of the case to the executive officer of the Arbitration Board who shall submit it to the Board". Quite apart from the

averment in the plaint that the plaintiff complained to the executive officer of the committee, there was no evidence to show that he actually received the complaint or that he actually referred it to the executive officer of the board as required under s. 20 (4) of the Land Adjudication Act. In the absence of evidence to show that the executive officer of the committee did in fact receive the complaint and did in fact refer the matter to the executive officer of the board, it is doubtful to conclude that a valid appeal to the board existed and the board failed to do what it was required of it under ss. 21 and 22 of the Land Adjudication Act.

I am not considering the case on merits, but these facts are relevant to the present application in so far as they relate to the question as to whether the statutory procedural machinery under the Land Adjudication Act was exhausted. If the procedure under the Act was not exhausted then it is clear that no civil proceedings would lie against the Attorney-General for matters perfectly within the ambit of the Land Adjudication Act.

The plaintiff alleged that the Arbitration Board did not perform its statutory functions. Whether this was due to the fact that it was not seized with the complaint or whether it failed to exercise its function while fully seized with the complaint, it would appear from the plaintiff's averment that the matter never went beyond the adjudication committee stage. I say so because there was no evidence to suggest otherwise.

It is clearly laid down under the Act that a party aggrieved by the decision of the adjudication committee may appeal to the Arbitration Board who must determine any matter or complaint referred to it. Then there is the preparation of the adjudication record which together with the demarcation map forms the adjudication register.

There is the procedure under the Act for submitting objections in writing to the adjudication officer and the procedure for an appeal to the Minister against the determination of the adjudication officer.

It was not disputed that the statutory procedural machinery under the Act was not exhausted. It appears from the plaint that the matter came to a stand-still after the committee stage or thereabout. This averment alone is sufficient to conclude that the procedural machinery was not exhausted.

The next question for determination is whether the Attorney-General would be joined in civil proceedings for acts or omissions done within the laid down procedural machinery under the Act before it was exhausted.

I have no doubt whatsoever that the Attorney-General would be improperly joined in any civil proceedings to bridge a gap in the procedural machinery. If the Act intended that he could be so joined at any stage, then it should have specifically provided so. Any attempt to bring in the Attorney-General within the laid-down procedure by virtue of s. 12 of the Government Proceedings Act would clearly be tantamount to reading into the procedural provisions of the Land Adjudication Act something which was not provided for and thereby using the machinery under the Government Proceedings Act to achieve what the Land Adjudication Act was intended to achieve. The Government Proceedings Act, being subject to any other written law cannot properly be invoked so as to render the Attorney-General answerable for acts or omissions done by officers or persons appointed under the Land Adjudication Act.

I venture no opinion as to whether the Attorney-General could be joined after the machinery under the Adjudication Act had been exhausted.

There is another aspect of the matter, namely that under s. 34 of the Land Adjudication Act, any officer appointed under the Act and any other person

appointed for the purpose of adjudication proceedings is protected from liability for any action, suit or proceedings for any act or matter in good faith done or omitted to be done in exercise or supposed exercise of their duties under the Act.

By virtue of s. 34 of the said Act the officers and any persons appointed for the purpose of the adjudication proceedings enjoy absolute protection. It follows, therefore, that whether they be public officers or not, no action would lie for their actions or omissions done in good faith. If they be officers in the service of the Government, then the Attorney General cannot properly be joined in purported civil proceedings based on non-performance of statutory duties for which the protection under s. 34 applies. In the present case members of the Arbitration Board are absolutely protected from any action, suit or proceedings for acts or omissions done in exercise of their duties under the Act. The protection is complete extinction of any right to sue or to institute proceedings against any officers or persons appointed for the purposes of adjudication proceedings. By extension of this argument the person who would be sued on their behalf if they are officers in the Government service, in this case the Attorney-General, enjoys similar absolute protection.

It must not be assumed that I have held that members of the Arbitration Board are officers of the Government within the ambit of the Government Proceedings Act. For the purpose of this application it matters not whether or not they are. The same protection would appear to cover both officers of the Government or agents in which case no action would lie against the Attorney-General as the authorised officer to sue or be sued on behalf of the Government.

The same protection would also cover other persons than Government officers or servants appointed for the purpose of the adjudication proceedings in their own right.

Members of the Arbitration Board established by the Land Adjudication Act are appointed by the provincial commissioner.

The function of the board is to determine matters and complaints referred to it from the decisions of the adjudication committee. The board is therefore a quasi-judicial body charged with specified statutory duties under the Act.

Mr. Okuom submitted that the members of the Board are public officers acting in the exercise of their duties under the Act. This may very well be so. However, the converse is not true that because they may be public officers it necessarily follows that they are officers or servants of the Government within the ambit of the Government Proceedings Act. The fact that they are paid allowances etc. from public funds does not alone render them officers or servants of the Government.

Mr. Okuom referred me to the decision in *Kimani v. Attorney-General*, [1969] E.A. 502. With respect this case is distinguishable on the facts from the present case. In that case an officer of the Government was involved and the Attorney-General was properly joined in the proceedings.

The decision is an authority for the proposition that a specific loss of profits consequent upon the loss of use of an article prior to the institution of action is special damage which must be pleaded and proved; that where the value of the land was not received by the complainant at the time of dispossession he was not entitled to value of the land and damages for loss of its use but only to interest from the date of dispossession until judgment.

In the instant case the plaintiff prays for a declaration aforesaid as well as special damages based on the value of the land. He also prays for general damages based on what appears to be a tort. With respect, it is clear that the Attorney-General is not the proper party against whom either of the reliefs

sought would be ordered. This is partly because of the protection afforded to the officers and persons appointed for the purposes of the Adjudication Act, and partly because these proceedings would appear to be improperly before the court as far as the second defendant is concerned. With respect to this latter point, until and unless the procedural machinery for determination of disputes and complaints is exhausted, an action by way of a suit is clearly misconceived and the court would not properly be seized with what could perhaps be a matter brought by way of one of the prerogative orders.

It should be mentioned in conclusion that s. 4 of the Government Proceedings Act and in particular sub-sections (5) and (6) thereof limit the liability of Government by protection afforded to persons discharging responsibilities of a judicial nature or officers appointed directly or indirectly by the Government and wholly paid from the Consolidated Fund or holding any office in respect of which the Minister has certified that the holder thereof should be so paid. With respect to the former, the members of the Arbitration Board discharge responsibilities of quasi-judicial nature and are therefore protected. With respect to the latter there was no evidence to show that the members of the Arbitration Board are paid, or certified by the Minister that they would normally be paid, out of the Consolidated Fund.

This being so no action lies against the Government in respect of acts or omissions done by members of the Arbitration Board.

I have considered all the aspects of these proceedings, the submissions made by both counsel and I am satisfied that the Attorney-General was improperly joined as a party to these proceedings. I am also satisfied that the plaint herein discloses no reasonable cause of action against the second defendant. I accordingly order that the name of the Attorney-General as second defendant in this suit be struck out. The plaintiff's suit against the second defendant is dismissed with costs.

I order that the plaintiff do pay to the second defendant the costs of the suit including the costs of this application. It is so ordered.

For the avoidance of doubt, I have not ordered the plaint to be struck out as this would affect the first defendant who is not a party to this application.

*Order accordingly.*

For the plaintiff:
*B.A. Okuom* (instructed by *Onyango Otieno & Co*., Nairobi)

For the second defendant:
*G.F. Harwood* (Senior State Counsel)

## Standard Bank Ltd v Kenya Crafts
[1973] 1 EA 421 (HCK)

| | |
|---|---|
| **Division:** | High Court of Kenya at Nairobi |
| **Date of judgment:** | 22 September 1972 |
| **Case Number:** | 75/1971 (109/73) |
| **Before:** | Chanan Singh J |
| **Sourced by:** | LawAfrica |

*[1] Appeal – Fresh evidence – Finding by Tribunal that evidence not required – Whether evidence to be admitted on appeal.*

*[2] Appeal – Jurisdiction – Certified copy of judgment – Not containing assessment of costs – Appeal competent – Civil Procedure* (*Revised*) *Rules* 1948, *O.* 41, *r.* 1 (*K.*).

*[3] Rent Restriction – Business premises – Tribunal – Procedure of – Need only conduct inquiry in manner conformable with justice equity and good conscience.*

*[4] Rent Restriction – Business premises – Notice – Proof of service – Landlord need not prove service on reference by tenant.*

*[5] Rent Restriction – Business premises – Second notice within one year – Previous notice must be valid for further notice to be prohibited – Must be an inquiry on first notice – Landlord and Tenant* (*Shops, Hotels & Catering Establishments*) *Act* (*Cap.* 307), *ss.* 6, 8 (*K.*).

*[6] Rent Restriction – Business premises – Reconstruction – Intention of landlord – A fact to be determined by tribunal – Intention and readiness to start work at date of order of tribunal not on expiry of notice.*

**Editor's Summary**

The appellant obtained from the Business Premises Rent Tribunal an order for the possession of premises occupied by the respondent on the ground that it wished to demolish them and rebuild.

On second appeal the points for decision were whether the appeal to the High Court was competent, the judgment filed containing only the order for costs and not the argument on or quantification of the costs, whether the landlord has to prove service of the notice determining the tenant's tenancy, whether the magistrate should have allowed evidence of the date of service of the notice, whether a further notice can be given within one year of a notice which had been held to be bad, whether the intention of a limited company must be proved by the evidence of a director and the production of the minutes of the board, and whether the intention of the landlord must be to start work on the date of expiry of the notice he has served.

**Held** –

(i) a complete copy of the judgment was filed and the appeal is competent;

(ii) the tribunal has only to conduct an inquiry in a manner conformable with justice equity and good conscience;

(iii) where a notice is valid on the face of it, it is for the tenant to prove his case and must state the grounds of his objection;

(iv) the date of receipt of a notice is a fact especially within the knowledge of the tenant and to be proved by him;

(v) the magistrate would not have been wrong to admit evidence of the date of service of the notice;

(vi) the requirements that a notice may be referred and that the tribunal approve or refuse the termination apply to a valid notice;

(vii) no inquiry had been made into the grounds of the original notice, any consideration of the validity of the notice being merely preliminary to the enquiry;

(viii) the question of the intention of a landlord is a fact best determined by the tribunal hearing the evidence;

(ix) the evidence of a director or the minute book of a company incorporated in England was not essential;

(x) the landlord's intention to do the work must be established at the date of the hearing (*Betty's Cafes v. Phillips Stores* (7) followed);

(xi) the landlord must intend and be in a position to start the work when the tribunal announces its decision and not when the notice expires.

Appeal allowed.

**Cases referred to in judgment:**

(1) *Kisumu Motor Works v. Manji* (1940), 19 K.L.R. 8.

(2) *Ali v. Sheth* (1950), 17 E.A.C.A. 88.

(3) *Cunliffe v. Goodman*, [1950] 2 K.B. 237 [1950] 1 All E.R. 720.

(4) *Fisher v. Taylors Furnishing Stores*, [1956] 2 Q.B. 78; [1956] 2 All E.R. 78.

(5) *Tanitalia v. Mawa Handels Anstalt*, [1957] E.A. 215.

(6) *Quick Service Stores v. Thakrar*, [1958] E.A. 357.

(7) *Betty's Cafes v. Phillips Stores*, [1959] A.C. 20; [1958] 1 All E.R. 607.

(8) *Kotak v. Kooverji*, [1967] E.A. 348.

**Judgment**

**Chanan Singh J:** This is an appeal from a judgment of the Senior Resident Magistrate, Nairobi, on an appeal from a decision of the Business Premises Rent Tribunal. Messrs. Esmail & Esmail, for the respondent, gave notice of a preliminary point which read as follows:

> "The Memorandum of Appeal is not accompanied by the entire judgment of the Resident Magistrate namely the portion relating to costs is missing."

The document that was filed with the Memorandum of Appeal consists of 8 pages. It bears the seal of the Magistrate's Court and a certificate reading as follows:

> "I certify this is a true copy of the original.
>
> Sg. A. M. COCKAR
>
> Resident Magistrate, Nairobi.
>
> 27.4.71."

The document so certified gives reasons for the decision of the Senior Resident Magistrate on each point and ends with the following paragraph:

> "This appeal must succeed and is therefore allowed with costs to the Appellants to be assessed. The Tribunal's Judgment is hereby set aside in its entirety."

This judgment does not give anyone the impression that it is not complete. But Mr. Esmail stated from

the Bar that after the Senior Resident Magistrate had delivered the judgment as contained in the document attached to the Memorandum of Appeal, he (Mr. Esmail) had raised certain points in relation

to costs and that the magistrate had heard both sides and had made an additional order which is missing from the document filed.

Mr. Le Pelley agreed that the position was as stated by Mr. Esmail and Mr. Esmail, by consent, put in a certified copy which he had obtained from the court. This certainly contains Mr. Esmail's additional submissions on costs, Mr. Le Pelley's reply, and the Senior Resident Magistrate's Order on costs.

Mr. Esmail refers me to O. 41, r. 1 (1) which says that "The memorandum shall be accompanied by a certified copy of the decree or order appealed from". He argues that the "Judgment" (which for the purposes of an appeal is equated to a "decree" by the definition section) is only part of the judgment because it does not contain later arguments and order on costs. It is common ground that this rule requires "a certified copy of the decree" to be attached to the memorandum of appeal. The only question is whether the document attached in this case constitutes "a certified copy". Mr. Esmail says that it does not because it is not complete. Mr. Le Pelley says that the document is a complete judgment and that it is certified by the magistrate himself.

No case has been brought to my notice which is on all fours with the present one. In *Kisumu Motor Works v. Manji* (1940), 19 K.L.R. 8 a copy of the judgment certified by a wrong officer had been filed. The appeal was dismissed but the judge gave the appellant a month's extension to file another appeal.

Mr. Esmail has also quoted *Ali v. Sheth* (1950) 17 E.A.C.A. 88 in which the judgment delivered had made no mention of costs. The matter was raised immediately, the magistrate heard the two advocates, but did not deliver his order on costs until two days later. The party aggrieved by the order on costs appealed. The opposing party objected that this was not an appeal from the "judgment" but from an "order" and that the appeal was incompetent because no leave had been obtained. It was held by the Court of Appeal (Sir Barclay Nihill dissenting) that the subsequent order was part of the judgment, that judgment would not be complete (once the question of costs had been reserved in that manner) until an order had been made. All the three members of the Court agreed, however, that costs would automatically follow the event if the judgment made no reference to costs or if the Court refused to make an order when the matter was raised at the time of the delivery of the judgment.

*Tanitalia v. Mawa Handels Anstalt*, [1957] E.A. 215 was a Zanzibar case which concerned a judgment with costs entered against the plaintiff by consent. The defendant immediately applied for costs on the higher scale and the court allowed the application. The plaintiff now applied for a review of the order. The Court refused to review the order because the matter did not fall within the civil procedure rules but stated that the aggrieved party could appeal to the Court of Appeal since an order as to costs "is undoubtedly part of the judgment or decree to which it relates" (p. 217).

In *Kotak v. Kooverji*, [1967] E.A. 348 the appellant had appealed from an order but had attached to the memorandum only a certified copy of the "ruling", not of the formal order. The appeal was dismissed because the requirement of rules was mandatory.

In *Quick Service Stores v. Thakrar*, [1958] E.A. 357 the judgment contained no order on costs and no application for costs was made at the time the judgment was delivered. Later, an application was made for "the correction of an accidental error or omission in the judgment". This application failed because the magistrate stated expressly that he had given no thought to the matter and that therefore, there could be said to be no accidental error or omission in the judgment. A further application to the High Court of Tanganyika for revision was dismissed.

Thus, none of the cases cited covered facts with which I am concerned in this case. What the previous cases have decided is (1) that any accidental omission to consider the question of costs may be rectified; (2) that any order as to costs made in the judgment may be reconsidered; provided an application is made to the Court immediately after the judgment is delivered. The cases also decide (3) that failure to attach to the memorandum a certified copy of the judgment or the attaching of a wrong document (e.g. a ruling instead of a formal order) or even a proper document not certified by a proper officer renders the appeal incompetent.

In the present case, the memorandum of appeal was accompanied by a document which on the face of it was properly certified and was a complete copy of the judgment which included an order on costs.

I cannot, in these circumstances, dismiss the appeal as incompetent. But the appellant Bank can be permitted to argue only those grounds of appeal which arise from the document which it has filed with its memorandum.

Since, however, this is an appeal from a magistrate's court and parties are not required to prepare or file a record of proceedings, the original case files of the Business Premises Rent Tribunal and the Senior Resident Magistrate are available to this court, and the parties are free to quote from the entire record including the supplementary proceedings and order on costs. Under the rule in *Ali's* case, the supplementary order on costs would be regarded as part of the judgment for the purposes of an appeal on the subject of costs, although it is doubtful if the magistrate was entitled under the rule of practice described in *Ali's* case to award the costs of the Tribunal: he could certainly amplify or modify his own order on costs of the proceedings before him; the costs of the Tribunal were one of the points raised in the appeal and should have been dealt with in the body of the main judgment.

But that question does not arise because I have ruled that, for the purposes of the present appeal, the appellant is entitled to rely only on the "judgment" it has filed with the memorandum. The respondent could cross-appeal on the subject of costs decided in the supplementary order and then he would have to file a certified copy of the order or, perhaps, the "judgment" – plus the order.

The next point that falls for consideration is the appellant's first ground of appeal, namely, that the magistrate erred in holding that the appellant must prove service of the notice given under s. 4 of the Act before the Tribunal had jurisdiction. The magistrate says this in his judgment:

> "The Landlord having given the notice it is for him to prove that the requirements of s. 4 (2) have been complied with. Unless the tenant at the time of the hearing concedes, in order to save time and expense normally involved in proving the same, it is mandatory for the Landlord to prove that the requirements of s. 4 (2) have been strictly complied with before it can be established or found, the other requirements having been complied with, that the notice was valid in all respects and that he is therefore entitled to get vacant possession on grounds stated by him under s. 7 of the Act."

S. 4 (1), as it stood at the time the notice in question was given, required a landlord wishing to terminate a tenancy to give notice to the tenant. Sub-section (2) to which the magistrate refers read as follows:

> "(2) A notice under subsection (1) of this section shall not take effect until a date to be specified in such notice, which shall not be less than two months after the date of service of such notice."

It is common knowledge – and there are numerous reported cases on this – that under the Rent Restriction law in force during the Second World War and for

several years after the War no order for possession could be made unless the contractual tenancy had been determined, so that the matter did not come within the jurisdiction of the Rent Control Board so long as the contractual tenancy existed. It was, therefore, necessary for the landlord invoking the jurisdiction of the Board to prove the determination of the contractual tenancy. He did this by producing evidence to show:

(1) service of a notice

(2) periodicity of the tenancy

(3) the date of commencement of the tenancy.

These facts would enable the Board to decide whether or not the notice to quit had effectively terminated the contractual tenancy. If the contractual tenancy had thus been established to have ended, the Board had jurisdiction to consider the matter on merits. But, even under that legislation, if the tenant did not expressly challenge the validity of the notice and allowed the matter to be heard and decided on merits it was taken for granted that he admitted that the notice was valid.

The Landlord and Tenant (Shops, Hotels and Catering Establishments) Act (Cap. 301) which governs the premises in question is a simpler law. In a case like the present one, the steps to be taken by parties are as follows:

(1) S. 7 (1) describes the grounds on which the landlord may seek to terminate the tenancy. His case must fall within the clauses of this section.

(2) The next step for him to take is to give a notice to the tenant complying with the requirements of s. 4.

(3) If the tenant does not wish to vacate, he must, under s. 6 (1), give to the landlord a notice of his unwillingness, refer the matter to the tribunal, and give to the landlord a notice of such reference.

(4) S. 8 (1) says that the tribunal may, after such inquiry as may be required by law “or as it deems necessary” either approve or refuse the termination of the tenancy.

This last provision of law seems to give the tribunal a wide discretion or initiative in the matter of procedure. The tribunal is to conduct an “inquiry” and there are no detailed rules like those prescribed in the Civil Procedure. In fact, the only requirement in this respect is that the practice and procedure shall be “conformable with justice, equity and good conscience” (Regulation 28). The tribunal can hear evidence in what order they think best. There is no requirement that the landlord should at first prove that his notice complied with s. 4. If the notice is defective on the face of it, then the tribunal will presumably dispense with inquiries and refuse the termination. If the notice is valid on the face of it, then it is for the tenant (who invoked the jurisdiction of the tribunal) to prove his case. He can challenge the validity of the notice but should state the grounds of his objection.

He knows when the notice was served on him and, if this gave him “less than two months” to comply with it, he can say so very easily. this is a fact especially within his knowledge, if, as in this case, the notice was sent by post – see s. 112 of the Evidence Act. The landlord can at best give the date of posting and then argue on the basis of s. 4 (4) that the notice must be “deemed to have been served” on a certain date. The tenant can certainly give more definite evidence.

The tribunal on the date of hearing made an order reading as follows: “Service of notice need not be proved having been attached to the references which have been attached to the tribunal record”.

It is not clear from the record whether this order was made by the tribunal suo moto or on the application of one of the parties and after hearing parties, Mr. Esmail says from the Bar that his client told the tribunal that the landlord had not complied with s. 4 (2). The tribunal's order would be consistent with the tenant's having argued that the landlord must prove "service". The tribunal probably thought this was not a valid objection because the reference itself was proof of service.

I think the basis of the whole argument is the belief of the tenant that the landlord, once the notice was challenged – howsoever vague the terms in which the challenge was framed – must fail unless he gives evidence which establishes all the ingredients described in s. 4. That is not how I read the present law. It is the tenant who comes to the tribunal and it is for him to establish by evidence his own case against the notice.

References by several tenants of the appellant were tried together. Mr. Esmail's client did not give any evidence. All that happened, according to the record, was this. The tribunal gave a ruling that the "service of notice" did not need to be proved. This was presumably to dispose of an objection by Mr. Esmail that "service" should be proved. Then two witnesses gave evidence on behalf of the appellants. No point suggesting that the notice was invalid was put to them by Mr. Esmail. One of the tenants – not Mr. Esmail's client – gave evidence in support of his own case.

The point was mentioned in final addresses. Mr. Mackie-Robertson, for the appellants, referred to a previous notice "held bad" and then stated: "New notice served. No point taken about the notices in these cases". This seems to mean that the validity of this second notice had not been attacked.

Mr. Esmail spoke twice. On the first occasion, he said inter alia: "Burden of proof on landlord". This is ambiguous and might mean either the burden of proving the notice or the burden of showing that the case was covered by s. 7 which details the grounds on which possession may be claimed. On the second occasion, Mr. Esmail's points include the following: "No evidence to show when the notices were served. Proof of date of service to be given".

The tribunal's decision contained the following:

> "There are three issues raised by all the advocates for the applicants which are common in all the cases which I will deal with first. The first one is that the service of notice was not proved. After the notices were issued the applicants made a reference to the Tribunal which means they must have received the notices. The Act provides the method for service of notices under s. 4 (4). No evidence has been produced to indicate that another method other than what is prescribed was used. The notices were produced in evidence and signed by a representative of the respondents. There is sufficient evidence to show that notices were served."

Mr. Esmail repeated his objection to the magistrate and before him it succeeded because the court thought "it was mandatory for the tribunal to be satisfied that the notice of termination had been given in accordance with the requirements of s. 4 of the Act"; that it was "mandatory for the Landlord to prove that the requirements of s. 4 (2)" had been complied with; and also that an "important part of the inquiry as envisaged in s. 8 (1) of the Act is the consideration that the notice complies with the statutory requirements of s. 4."

With respect, this brings in by the backdoor the wartime law on the termination of tenancies, The present law is different. It makes it mandatory for the Landlord to *give* a notice which complies with s. 4. It does not make it mandatory for him to *prove*, as a precondition to his being heard, that the notice complies with all the requirements of s. 4.

Mr. Esmail did not tell either the tribunal or the magistrate or me what in his view was wrong with the notice. He continues to say that the landlord could not succeed without proving service or date of service. This attitude of a party militates against the efficient working of a tribunal whose function is to do substantial justice, not to solve legal conundrums. If Mr. Esmail or his client had given to the tribunal the date of service of the notice and that date did not allow the tenant the full period of notice provided for in s. 4, the tribunal was bound to call upon the landlord to offer any evidence relevant to this issue.

In my opinion the tribunal's initial order was correct as it is obvious that Mr. Esmail had only asked for "service" to be proved. Absence of proof of *date* of service was mentioned only in the final address. It is clear from Mr. Mackie-Robertson's address, and he was the first to speak, that the validity of the notice had been challenged on "no point". In these circumstances, the notice must be taken to be valid, and the magistrate was wrong in the conclusion that he reached.

The second ground of appeal can be dealt with shortly. The need of calling evidence to prove that the notice complied with the requirements of s. 4 did not arise before the tribunal. This is clear from Mr. Mackie-Robertson's statement "No point taken about the notices in these cases". If the tenant offered evidence to show that the notice was invalid in any particular respect, or even if he stated that he would contend that the notice was bad for a specified defect or defects, I have no doubt that the landlord would have produced the necessary evidence. The need for evidence really arose only before the magistrate. He could, if he was so minded, return the matter to the tribunal to take further evidence. Admission of fresh evidence on appeal is always a matter for discretion. I can only say that, in my opinion, the magistrate would not have been wrong if he had admitted fresh evidence.

The third ground of appeal is that "The magistrate erred in holding that the tribunal could not allow termination because of the previous notice". It appears the appellants had previously served on the respondents a notice of termination dated 18 May 1967. The respondents then filed a reference which was allowed on the ground that the notice was bad because it did not comply with s. 4 (3) of the Act.

Later, the appellants served the notice which gave rise to the present proceedings. This second notice was dated 25 October 1967 and contained a "Note" reading as follows: "This Notice is given to expire contemporaneously with the Notice already given to you dated 18 May 1967 and without prejudice to the efficacy and validity thereof".

The provision of law which has given rise to controversy on this point is s. 8. Subsection (1) gives the Tribunal power, "where a reference is made" to it to approve or to refuse the termination or to make other appropriate order, but this is to be done only "after such inquiry as may be required under this Act or any rules made thereunder, or as it deems necessary". If the termination is refused, the notice given "shall be of no effect". Subsection (2) reads as follows:

> "(2) Where, as a result of a reference to it, a Tribunal has refused the termination of a tenancy, the landlord shall not serve any other notice of termination of such tenancy on the tenant, on the same grounds as were specified in the notice in respect of which the reference was made, for a period of one year from the date of such refusal by the Tribunal, unless the Tribunal at the time of such refusal specifies a shorter period."

It is true that the decision of the tribunal – I do not know the terms of it – was made "as a result of a reference". Again, Mr. Esmail argues that it was open to the appellants to ask the tribunal to shorten the period of one year, but they did

not take advantage of that provision. Since the appellants served another notice before the expiration of a year, that notice, Mr. Esmail says, was invalid being contrary to law.

That the first notice was invalid is beyond question. There was, therefore, no real need for the respondents to do anything about it. If they were sued on it for possession they could argue that no valid notice had been given as required by s. 4. But they chose the file a reference before the Tribunal under s. 6 (1) which says that "A tenant who wishes to oppose a notice of termination . . . may . . . refer the matter to a Tribunal". In my opinion, the word "notice" here means a valid notice. In s. 8 also the word has the same meaning.

This is one aspect of the matter. Another is raised by Mr. Le Pelley. he says that s. 8 (1) empowers the tribunal to make a decision only after an "inquiry". An inquiry, in a case like the present means obviously an inquiry into the grounds on which possession is claimed under s. 7 and into the grounds of the tenants' "unwillingness to give up possession". No such inquiry was needed in relation to the first notice. There is no evidence that any such inquiry was made. Although the grounds on which possession was sought were the same as in the case of the second notice the matter was not considered on merits on the first occasion.

Mr. Esmail argues that consideration of the validity of a notice is also an inquiry. In my view, any such consideration or argument or even factual evidence would be preliminary to the "inquiry" envisaged by s. 8 (1). The magistrate says this: "To my mind, however, a consideration of grounds mentioned in the notice alone does not constitute a complete inquiry but constitutes only an important part of it. An equally important part of the inquiry as envisaged in s. 8 (1) of the Act is the consideration that the notice complies with the statutory requirements of s. 4 of the Act." With respect, I do not agree, for the reasons which I have already given.

Mr. Esmail has argued certain other grounds which were included in his memorandum of appeal but which were not decided by the magistrate because he was able to decide the appeal on the other grounds raised. Before dealing with these additional points, I wish to refer to the clause of s. 7 (1) under which the appellants claimed possession. It reads as follows:

> "(*f*) that on the termination of the tenancy the landlord intends to demolish or reconstruct the premises comprised in the tenancy, or a substantial part thereof, or to carry out substantial work of construction on such premises or part thereof, and that he could not reasonably do so without obtaining possession of such promises."

This clause is more or less similarly worded to clause (*f*) of s. 30 of the English Landlord and Tenant Act, 1954, and the provisions of it have been discussed and interpreted in several English cases. Mr. Esmail says that the appellants have not proved their "intention" to demolish and reconstruct. Lord Denning, L.J. (as he then was) stated in *Fisher v. Taylors Furnishing Stores*, [1956] 2 All E.R. 78 at p. 80: "the court must be satisfied that the intention to reconstruct is genuine and not colourable, that it is a firm and settled intention, not likely to be changed; that the reconstruction is of a substantial part of the premises, indeed so substantial that it cannot be thought to be a device to get possession that the work is so extensive that it is necessary to get possession of the holding in order to do it; and that it is intended to do the work at once and not after a time. Unless the court were to insist strictly on these requirements, tenants might be deprived of the protection which Parliament intended them to have. It must be remembered that, if the landlord, having got possession, honestly changes his mind and does not do any work of reconstruction, the tenant has no remedy. Hence the necessity for a firm and settled intention".

In *Betty's Cafes v. Phillips Stores*, [1958] 1 All E.R. 607, Lord Simonds quoted with approval the following passage from the judgment of Asquith, L.J., in *Cunliffe v. Goodman*, [1950] 1 All E.R. 720:

> "An 'intention', to my mind, connotes a state of affairs which the party intending' – I will call him X – does more than merely contemplate. It connotes a state of affairs which, on the contrary, he decides, so far as in him lies, to bring about, and which, in point of possibility, he has a reasonable prospect of being able to bring about by his own act of volition."

With respect I accept this and Lord Denning's judgment in the *Fisher* case as giving the correct interpretation of the word "intention".

But how is that intention to be determined by a court of law? Lord Simonds says in the *Betty's Cafes* case at p. 612 that "It is a question of fact what intention a man has at a given time, difficult, it may be, to ascertain, but still a question of fact".

Questions of fact are best determined by the tribunal that takes or hears evidence. An appellate court will not upset findings of fact except for reasons which are explained in decided cases and which do not exist in this case. The tribunal's decision on this point was this: "The second point was the question of intention. It was stated on behalf of the applicants that the intention must be firm and settled. From the evidence of Mr. Mann and Mr. Brown the tribunal is satisfied that the intention to reconstruct is firm and definite. The plans produced show that the necessary preparatory steps have been taken. The question of the availability of funds is not a problem either."

There could not be a clearer finding of fact than this. But Mr. Esmail argues that the intention had not been sufficiently proved because it was not proved in the way it is usually proved, i.e. by directors' evidence or by the production of minutes. Authorities on this subject are summarised in *Woodfall's Law of Landlord and Tenant*, 26th ed., at pp. 1434-5, in the following words:

> "The existence of an intention on the part of a company must be established through its directors or other principal officers. Usually a company's intention will be proved by the minutes of a directors' meeting but this is not the only means. A company can form an intention without necessarily calling a board meeting. Directors can make decisions informally and, where the mode of conducting business adopted by a company is to leave everything to its agents (whether they be directors or managers), the state of mind of those agents is the state of mind of the company and their evidence as to the company's intention is admissible."

The appellant bank is a company incorporated in England. It must of necessity carry on business through agents and managers. The failure of a director to give evidence or the non-production of the minute book of the board in London can be understood. Indeed, it is not, as the quotation from *Woodfall* shows, always necessary for a director to give evidence or for the minute book to be produced. In the present case, an architect gave evidence on behalf of the bank. He was obviously speaking from personal knowledge. The other witness was Mr. James Brown, the assistant chief accountant of the bank in Kenya. He has custody of papers in relation to this matter. He gave evidence on the basis of information he must have received from London and on the basis of what he himself did in Kenya.

The tribunal accepted the evidence of these two witnesses and I can see nothing wrong with this, even if part of it was hearsay. The tribunal has, under regulation 28, power to act on such evidence as it itself regards as satisfactory and as it believes. The English cases quoted by Mr. Esmail are all cases decided by

"courts" which have to be guided by strict rules of evidence and procedure. But, as *Woodfall* states, there are several ways of proving a company's intention even in a court of law. The latitude allowed to our tribunal is still greater.

Mr. Esmail has also drawn my attention to the following part of the judgment of Morris, L.J., in the *Fisher* case at pp. 80-1:

> "The opening words are to be noted – the words 'that on the termination of the current tenancy the landlord intends'. There must, therefore, be an intention which in point of time is related to the termination of the current tenancy. It seems to me that the intention must be to do one of the following things: (i) to demolish the premises comprised in the holding, or (ii) to reconstruct the premises comprised in the holding; or (iii) to demolish a substantial part of the premises comprised in the holding; or (iv) to reconstruct a substantial part of the premises comprised in the holding; or (v) to carry out substantial work of reconstruction on the holding; or (vi) to carry out substantial work of construction on a part of the holding. If the landlord proves an intention to do one of those things, and to do it on the termination of the current tenancy, he must then prove that he could not reasonably do it without obtaining possession of the holding."

On the basis of this, Mr. Esmail argues that the appellants failed to prove "intention" because they were unable to start work at the expiry of the notice. He referred to the architect's evidence to the effect that the appellants would be able to start work on the first phase in February 1969, whereas the notice was to expire at the end of 1967.

So far as English case law is concerned, it is sufficient to point out that the view finally accepted is that the relevant time at which a landlord's intention as described by s. 30 (1) (*f*) of the Landlord and Tenant Act 1954, must be shown to exist for the purposes of that paragraph is the time of the hearing of the application for a new tenancy – *Betty's Cafes v. Phillips Stores*, [1958] 1 All E.R. 607. Of course, in England the matter comes before courts by way of an application by the tenant for a new tenancy and opposition by the landlord on the ground that he needs possession to demolish or reconstruct the premises.

The tribunal's decision in the present case is in these words:

> "The other point raised is that as at the end of December 1967, the bank was not ready with all the details to go on if possession was given. The point here is the notice to terminate the tenancy does not terminate the tenancy automatically. Under the Act, it is only the tribunal which can terminate the tenancy once a notice is given and the proper procedure is followed as was done in these cases. Intention therefore must take into account other circumstances. The time it has taken to get a hearing of these cases cannot be overlooked."

I think this view is essentially correct. "On termination of the tenancy" does not mean "on the day following the day on which the tenancy comes to an end". It also does not mean "sometime after the end of the tenancy". The intention can, naturally, not be effectuated until after the end of the tenancy; but in my view the landlord must have formed a definite intention to carry out the work of demolition and reconstruction, and must be in a position to start the work, immediately the tribunal announces its decision on the reference. I have used the expression "must be in a position" because I think the requirement of law will be met if the landlord is in a position to pay for materials and labour if they are available for work on the day following the decision. Whatever the landlord's own resources and whatever his will, practical difficulties will delay work for a while.

The essential idea is that the law must not be used as a cloak for getting rid of a tenant.

In the result, I allow the appeal, set aside the judgment of the magistrate, and restore the decision of the Business Premises Rent Tribunal. The appellants will have the costs of this appeal and also the costs of the appeal before the magistrate.

*Order accordingly.*

For the appellant:
*P. Le Pelley* (instructed by *Hamilton Harrison & Mathews*, Nairobi)

For the respondent:
*A .A. E. Esmail* (instructed by *Esmail & Esmail*, Nairobi)

## Mayers and another v Akira Ranch Ltd (No 3)
[1973] 1 EA 431 (CAN)

| | |
|---|---|
| **Division:** | Court of Appeal at Nairobi |
| **Date of judgment:** | 31 August 1973 |
| **Case Number:** | 14/1973 (110/73) |
| **Before:** | Sir William Duffus P, Spry VP and Law JA |
| **Sourced by:** | LawAfrica |
| **Appeal from:** | The High Court of Kenya – Simpson, J. |

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*[1] Land – Caveat – Extension – Order cannot be made in absence of registered owner of land.*

*[2] Land – Caveat – Registration – Should not remain on register after registration of interest protected – Registration of Titles Act* (*Cap.* 281), *s.* 57 (*K.*).

**Editor's Summary**

The appellant appealed from an order refusing to extend to caveat under the Registration of Titles Act (Cap. 281) and ordering its removal. An extract from the register was called for and it showed two transfer of the land since the removal of the caveat.

**Held –**

(i) the present owner of the land has a title free from challenge except on the ground of fraud or misrepresentation to which it is proved to be a party and no order could be made affecting its title;

(ii) a caveat should not remain on the register after the claim which it protected has been projected by registration.

**Observations** by the court on the necessity for an extract of the register whenever an order making or cancelling an entry is asked for.

Appeal dismissed.

**No cases referred to in judgment.**

**Judgment**

The following considered judgments were read. **Spry VP:** This is an appeal from a judgment and order of the High Court refusing to extend a caveat entered under the Registration of Titles Act (Cap. 281) and ordering the registrar to remove it from the register.

The record of appeal contained nothing to show the state of the register of titles and, at the beginning of the hearing, we indicated that we should require up-to-date evidence of it. Accordingly, an uncertified extract from the register was put in by consent. We would stress that in all appeals where we are asked

to make an order that would result in the making or cancellation of an entry on the register, a search certificate must be produced.

The extract from the register produced to us shows that since the decree appealed against, the caveat has been removed and two successive transfers for value have been registered, one on 29 December 1972 and the other on 28 March 1973. No formal application was made for a stay of the order pending appeal; we were informed from the bar that an oral application was made and refused. This appeal was lodged on 12 April 1973; that is, after the registration of both transfers. In these circumstances, it seems to me that the appeal as presented is misconceived. The appellants ask us to restore the caveat to the register, but even if we were fully persuaded that the judge was wrong in ordering its removal, we could not possibly order its restoration without hearing the present registered proprietor, a company which is not a party to these proceedings. It has a title which is not subject to challenge, except on the ground of fraud or misrepresentation to which it is proved to be a party (Registration of Titles Act, s. 23 (1)). The restoration of the caveat would clearly be prejudicial to that title.

In my opinion, that is sufficient to dispose of this appeal, but as it is not a ground on which the appeal was argued (although raised by the Court), and as any award of costs will be affected by the correctness or otherwise of the judge's decision, I think I must deal with the arguments addressed to us, and this, unfortunately, entails setting out the sorry history of these proceedings.

On 30 September 1958, Akira Ranch Ltd. deposited its certificate of title to certain land near Naivasha with the Standard Bank Ltd. to secure all moneys then owing or thereafter to become due from the company to the bank. Between May 1959, and November 1963, Akira gave guarantees to the bank to secure advances made by the bank to certain other companies.

In 1967, the appellants filed a suit (No. 406 of 1967) to recover certain moneys owing to them by Akira and on 10 October 1968, a consent judgment was entered, which provided for the execution by Akira of a second charge in favour of the appellants. This second charge was executed on 17 April 1969, but for various reasons could not then be registered. To protect their interest, the appellants lodged a caveat against Akira's title and this was entered on 1 July 1969.

On 24 October 1969, the bank filed an originating summons (Civil case No. 1337 of 1969) seeking a declaration as to the indebtedness to it of Akira and for an order for sale in default and on 17 November 1969, a preliminary decree was granted by Trevelyan, J. This, presumably by consent, fixed 1 December 1969, as the date for redemption. On 15 December 1969, an order absolute was made by Miller, J. (it was not so described, but that was clearly its effect), approving the sale of the land by private treaty to Ol Magogo Estate Ltd. for £40,000. This was subsequently corrected to £50,000. The appellants were not made parties to these proceedings and were given no opportunity of being heard. One of their complaints is that this was a gross undervaluation.

On 27 October 1969, Akira filed a suit against the appellants (Civil Case No. 1353 of 1969), seeking to set aside the arrangements made pursuant to the consent judgment of 10 October 1968, in Civil Case No. 406 of 1967, for securing the judgment debt. This suit is apparently still pending.

On 28 May 1970, the appellants, who had been served with notice by the registrar under s. 57 (6) of the Registration of Titles Act, instituted proceedings by way of originating summons (Civil Case No. 682 of 1970), asking for the extension of their caveat pending the determination of Civil Case No. 1353 of 1969 and for certain other orders and directions. On 3 June 1970, Chanan

Singh, J., adjourned the hearing of the application but extended the caveat pending the further order of the court.

On 23 June 1970, on the application of the bank, a vesting order was made in favour of Ol Magogo Estate Ltd. by Miller, J., but on 16 December 1970, this was set aside at the instance of the registrar of titles and by consent.

In the meanwhile, on 8 October 1970, the appellants had succeeded in obtaining the registration of the charge in their favour. The register shows this as being subject, inter alia, to the bank's charge and to the appellants' own caveat.

On 3 May 1971, the appellants filed a notice of motion in Civil Case No. 1337 of 1969, seeking to have the judgment in that suit set aside and the appellants joined as parties. I presume that the reference to a judgment was intended to relate to the preliminary decree and final order. This application has apparently not been heard and it would seem that it has now been overtaken by events.

After various delays, objections and procedural arguments, the originating summons of 28 May 1970, in Civil Case No. 682 of 1970, eventually came on for hearing before Simpson, J., on 1 November 1972. The judge went into the merits of the case in some detail before concluding that while there might be bona fide matters in dispute, he was not satisfied that there were reasonable grounds for continuing the caveat. He thought that the more appropriate remedy, if any were open to the appellants, would be by way of damages. He ordered the registrar to remove the caveat from the register of titles. The order was duly registered on 29 December 1972.

At the same time, that is to say on 29 December 1972, three other instruments were registered: one was a memorandum of discharge of the charge in favour of the bank; one was the order of the court in Civil Case No. 1337 of 1969 authorising the sale of the land; and the third was a transfer in favour of Ol Magogo Estate Ltd. expressed to be for a consideration of Shs. 1,000,000/-. On 28 March 1973, a further transfer was registered. This was in favour of Kedong Ranch Ltd. and was also expressed to be for a consideration of Shs. 1,000,000/-.

Before Simpson, J., it was argued that the caveat ought to be kept alive until Civil Cases Nos. 1337 and 1353 of 1969 had both been decided. The judge said that he could see no reason to extend the caveat pending case No. 1353 and, with respect, I agree. The charge was on the register and Akira was trying to have the registration cancelled. As regards case No. 1337, the judge referred to s. 85 of the applied Indian Transfer of Property Act, which requires "all persons having an interest in property comprised in a mortgage" to be joined in any suit for foreclosure or sale. He commented that "interest" is not defined in that Act; he then looked to s. 32 of the Registration of Titles Act, which provides that an unregistered instrument is not effectual to pass any interest in land or to render any land liable as security for the payment of money. He concluded that it was very much to be doubted if any court would hold that the appellants should have been joined in the proceedings.

With respect, I do not think the word "interest" in the Transfer of Property Act should be given quite so restricted a meaning as it has in the Registration of Titles Act. I accept that wherever there is any conflict between the two Acts, the provisions of the Registration of Titles Act must prevail. But the Transfer of Property Act did not contemplate a system of registration of title and its general provisions must be interpreted with that fact in mind. In my opinion, a claim to an unregistered charge protected by caveat should be regarded as an "interest" for the purpose of s. 85.

I think, with respect, that the advocates concerned in case No. 1337 were at fault in not furnishing the court with information as to the state of the register

and that the judges concerned were at fault in not requiring such information. Once a judge had become aware of the existence of the caveat, I think he should have given the caveators an opportunity of being heard.

At the same time, I think Simpson, J., was right in refusing to extend the caveat, but for a different reason. The caveat did not purport to do anything other than protect a claim to a second charge pending registration. It seems to me quite wrong for it to have remained on the register after the claim which it protected had been perfected by registration. In saying this, I am not criticising the registrar, whom we have not heard and who may have had no power to do other than what he did. But if I am right in thinking that the caveat and the second charge should not have been on the register at the same time, it must follow that it would have been wrong to extend the caveat. For this reason, I think it was right to refuse to extend the caveat. It follows that there is no reason to interfere with the order for costs in the High Court.

We are not concerned with the vesting order, since it was set aside, but here again I would remark that I think the caveators should have been given an opportunity of being heard. Here, the court was aware of the caveat, which was expressed to be the reason for the application before it.

I think I should comment also on the present state of the register, as it appears from the uncertified extract produced to us. This shows a transfer to the present registered proprietor subject to two encumbrances. Yet two other encumbrances, one of them the charge in favour of the appellants and the other a charge in favour of the Commissioner-General of Income Tax, do not appear from the extract to have been cancelled. Here, again, we have not heard the registrar and certainly he appears to have no express power to cancel entries which no longer affect the land. If this is so, I think the attention of the appropriate authorities might be drawn to it so that consideration may be given to a suitable amendment, as has been done in other jurisdictions. One of the objects of the Torrens system is to simplify title and obviate the need on a transaction for the investigation of title which is necessary when dealing with unregistered land: this object is defeated if obsolete entries are not removed from the register.

However, as I said earlier, the changes that have taken place on the register since the judgment of the judge effectively preclude the allowing of this appeal, since Akira is no longer the registered proprietor of the land. I agree with the judge that the appellants' remedy, if any, must lie in damages, unless they can show in a suit against the present registered proprietor that it acquired its title through fraud to which it was a party. I would dismiss the appeal, with costs.

**Sir William Duffus P:** I have had the advantage of reading the judgment of the Vice-President.

I agree that it is necessary to file an up to date search certificate in all appeals relating to title to land registered under the Registration of Titles Act (Cap. 281). This search certificate should be up to the date of the hearing of the appeal and should show all entries affecting the land appearing on the register. An example of the necessity in this occurs in this case. This appeal seeks to set aside the order of the High Court removing a caveat and asks that this Court order the caveat to be restored on the register. The parties at the request of the court, and by consent, put in an agreed extract showing the present state of the register and this extract shows inter alia that the order of the High Court removing the caveat was duly entered on the register on 29 December 1972 and that following this order a court order authorising the sale of the land was entered and then the title was transferred to Ol Magogo Estate Ltd. and registered on the same date, 29 December 1972, and then on 28 March 1973 a further transfer was registered transferring the title to Kedong Ranch Ltd. The present

position then is that Kedong Ranch Ltd. are by virtue of s. 23 of the Act the absolute and indefeasible owners of the land subject only to the encumbrances, easements, restrictions and conditions contained in the register. Those that affect the title of the new owners are set out in the register and the charge to the appellants (registered on 8 October, 1970), is not included.

I am clearly of the opinion that this court cannot now make an order restoring the caveat even if it found that the High Court was wrong in ordering its removal. There was no stay of proceedings against the order removing the caveat. The caveat was lawfully removed and then subsequent dealings with the land took place. The whole system of land registration is based on the premise that a party obtains a good title to the land subject only to the encumbrances or restrictions on the register. The appellant would, if he has wrongfully suffered damage, have a remedy but he must seek his remedy in accordance with the provisions of the Act. Thus he may have an action for damages under s. 24 of the Act or may be able to ask for the rectification of the title in accordance with the provisions of Part XIII of the Act.

The appellant, however, still has the right to bring and prosecute this appeal even though subsequent events may as in this case, prevent this court ordering the restoration of the caveat. The decision of this court would, in any event, have to deal with the costs in the court below.

Caveats are provided for by s. 57 of the Act. I find some difficulty in deciding whether a caveat can continue to exist after the registration of the interest which it is intended to protect. This depends on the construction of s. 57 which provides inter alia:

> "Any person claiming the right, whether contractual or otherwise, to obtain an interest in any land, that is to say, some defined interest in such land capable of creation by an instrument registrable under this Act . . ., may lodge a caveat with the registrar of the registration district within which such land is situated forbidding the registration of any dealing with such land either absolutely or unless such dealing shall be expressed to be subject to the claim of the caveator as may be required in such caveat, or to any conditions conformable to law expressed therein."

This section does appear to apply to an interest not yet registered. It refers to "any person claiming the right . . . to obtain an interest in any land". This would refer to a right that already existed but has not yet been registered under the Registration of Titles Act. Under s. 32 of the Act no land or interest in land can pass unless it is registered. S. 32 reads as follows:

> "No instrument, until registered in manner hereinbefore described, shall be effectual to pass any land or any interest therein, or render such land liable as security for the payment of money, but upon the registration of any instrument in manner hereinbefore prescribed the land specified in such instrument shall pass, or, as the case may be, shall become liable as security in manner and subject to the agreements, conditions and contingencies set forth and specified in such instrument, or by this Act declared to be implied in instruments of a like nature."

It does appear to me, therefore, that the purpose of entering a caveat under s. 57 of the act is to protect a right to obtain an interest in the land before this interest is registered under the act and that caveats under this section could not be taken out in respect of interests which have already been registered and thus protected under the act. The Registration of Titles Act in Kenya is based on the Torrens system of registration of titles in Australia. I note that in "Torrens Title in Australasia" by Francis (volume 1, at p. 321) the author stated that there is nothing to prevent a registered proprietor lodging a caveat

against dealings with his own land, but the provisions governing caveats in the various states in Australia differ amongst themselves and are different from the provisions in Kenya and the position here is set out in our Registration of Titles Act (Cap. 281).

The trial judge, whilst recognising that the main purpose of the caveat was to protect the appellants' charge before it was registered, went into the merits in deciding whether the caveat should be continued and he refused the extension on this ground. He considered the main issue in dispute between the interested parties, i.e. whether the sale of the property by the Standard Bank under a prior charge defeated the appellants' claim under their charge. He held that the appellants' more appropriate remedy, if any, would be an action for damages against the Standard Bank. He found that there were no reasonable grounds for continuing the caveat and ordered it to be removed.

I agree that the judge was correct in refusing to extend the caveat but I agree with Spry, V.-P. that the caveat should not have been kept on the register once the charge it was protecting was registered and that the judge should have refused an extension for this reason without going into the merits of the dispute between the parties.

The appellants' rights to protect their interest under the registered charge are given in the Registration of Titles Act and these do not include the order sought in this appeal.

I agree, therefore, with Spry, V.-P. that this appeal be dismissed with costs and as Law, J.A. also agrees, it is so ordered.

**Law JA:** I agree with the judgment prepared by the Vice-President and have nothing to add. I agree with the order proposed.

*Appeal dismissed.*

For the appellants:
*C. Salter*, *Q.C.* and *D.N. Khanna* (instructed by *Khanna & Co.*, Nairobi)

For the respondent:
*P. Le Pelley* (instructed by *Hamilton, Harrison & Mathews*, Nairobi)

## Jubilee Insurance Co Ltd v Rex Hotel Ltd
[1973] 1 EA 437 (CAN)

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|---|---|
| **Division:** | Court of Appeal at Nairobi |
| **Date of judgment:** | 20 September 1973 |
| **Case Number:** | 17/1973 (111/73) |
| **Before:** | Spry VP, Law and Mustafa JJA |
| **Sourced by:** | LawAfrica |
| **Appeal from:** | The High Court of Kenya – Nyarangi, J. |

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*[1] Estoppel – Judgment by – Declaratory action – Gives rise to estoppel.*

*[2] Land – Possession – Claim for – Trespasser cannot rely on right of third party.*

**Editor's Summary**

The appellant obtained a declaration in the High Court that it would be entitled to vacant possession of the suit premises on the expiry of the respondent's lease, and this declaration was upheld on appeal.

The respondent refused to vacate and obtained leave to defend the second suit on the grounds that the matter was not res judicata since the original case was for a declaration only and not for possession and that it could not give vacant possession of the whole premises, there being a subtenant in part of them.

On appeal:

**Held –**

(i) there is no distinction between a declaration and an order for possession and the question was res judicata;

(ii) the respondent as a trespasser could not rely on the right of any third party.

Appeal allowed.

**Case referred to in judgment:**

(1) *Rex Hotel v. Jubilee Insurance*, [1972] E.A. 211.

**Judgment**

The following considered judgments were read. **Law JA:** The appellant is the owner of a building in Mombasa used as an hotel. The respondent was the tenant of those premises under a lease, subsequently extended, which expired on 31 August 1970. Before the expiry of the lease, the appellant filed a suit in the High Court (hereinafter referred to as the first suit) asking for a declaration that it was entitled to vacant possession of the premises on the lease expiring. The High Court (Mosdell, J.) made a declaration that the appellant was entitled to vacant possession on 31 August 1970. This part of the High Court's decree was affirmed in this Court, *see Rex Hotel v. Jubilee Insurance*, [1972] E.A. 211. Notwithstanding this decision, the respondent has remained in possession. The appellant accordingly filed a suit (hereinafter referred to as the second suit) on 13 June 1972 claiming vacant possession of the premises from the respondent, together with mesne profits and arrears of rates, with interest thereon from the date of filing suit. On 5 September 1972, the appellant filed an application by notice of motion in the High Court, under O. 35, rr. 2 and 3 of the Civil Procedure (Revised) Rules for summary judgment. On 9 September 1972, the respondent filed its defence to the plaint in second

suit, raising as its main defence the contention that it was not in a position to give vacant possession of the whole premises as a portion thereof was occupied by a third party under a sub-lease, lawfully granted by the respondent and duly registered, to which the appellant had given its consent. On 15 September 1972, the appellant filed a second application, under O. 6, rr. 17 and 29, asking that the defence be struck out on the grounds, inter alia, that the points raised by the defence were res judicata having regard to the decision in the first suit. Both applications were heard together in the High Court. The judge dismissed them. He held inter alia that the matter was not governed by res judicata as the order in the first suit was merely declaratory and as the rights of a third party, the sub-tenant, had not been considered in the first suit, and that the claims for mesne profits and rents had to be litigated. He dismissed both applications with costs.

From this order the appellant has appealed, Mr. Le Pelley submitted that the respondent's obligation to give vacant possession was res judicata; and that the rights of the third party, if any, could not be called in aid by the respondent in the second suit:

(*a*) because if they could provide a defence, they should have been raised in the first suit, see s. 7 of the Civil Procedure Act, and in particular explanation 4, and

(*b*) because the respondent, as a trespasser, could not invoke the jus tertii by relying on the alleged rights of a third party.

Mr. Gautama, for the respondent, supported the order of the judge. He submitted that as in the first suit no order for possession was made, but merely a declaratory order as to future rights, res judicata did not arise. He argued that as the claim was for vacant possession of the whole premises, and as the respondent could not give vacant possession of the portion occupied by the sub-tenant, the claim was misconceived and bad in law. He also submitted that there was no foundation for the claims for mesne profits and arrears of rates, and that the second suit must go for trial in these respects in any event.

In my opinion, so far as the claim for vacant possession is concerned, the appellant was clearly entitled to summary judgment. The rights of the parties inter se were decided in the first suit. I can see no distinction in this respect between a declaration that a landlord is entitled to possession at a future date, and an actual order for possession. Any alleged rights vested in a third party, which might have provided a defence to a claim for possession, existed at the time of the first suit and could and should have been raised then. It has not been pleaded that the right to possession has been waived by acceptance of rent, and it is clear from the correspondence that rent has not been accepted. The respondent is accordingly a trespasser, and cannot rely on the jus tertii. I have no doubt at all that the matter of possession is subject to res judicata, and that the appellant is entitled to an order for vacant possession. It is no answer for the respondent as a trespasser to say that it is unable to give vacant possession of the whole premises; it must give physical possession of the part it occupies and legal possession of the rest. If the sub-tenant enjoys contractual or statutory rights under his sub-lease, they will no doubt subsist, but the respondent as a trespasser cannot claim any benefit from such rights. As regards mesne profits, it is apparent from the judgment of this Court on appeal from the decision in the first suit that they are being claimed at the same rate as the contractual rent. The quantum is not challenged in the defence, and the same applies to the arrears of rates. The appellant is, in my view, clearly entitled to summary judgment in these respects. The computation of the amounts involved, until possession is given, is merely a matter of arithmetic. If any difficulty arises, either party may apply to the High Court for a ruling.

I would allow this appeal, with costs. I would reverse and set aside the order in the court below strike out the defence, and substitute an order giving the appellant summary judgment as prayed. I would give the appellant the costs of the second suit, including the proceedings in the High Court.

**Mustafa JA:** The relevant facts have been set out in the judgment of Law, J.A. which I have had the opportunity of reading in draft, and I will not repeat them.

The appellant had obtained a declaration in the High Court, and affirmed by this Court, that it was entitled to possession of the subject premises on the expiry of the lease entered into between the appellant and the respondent. The lease had expired on 31 August 1970. Despite the said declaration the respondent refused to vacate and the appellant duly filed a suit for vacant possession of the premises together with mesne profits and arrears of rates and interest thereon. The appellant applied for summary judgment. In the meantime the respondent filed a defence, raising the plea that as there was a lawfully constituted sub-tenant, it was not in a position to give vacant possession of the whole premises as demanded and that the claim was therefore bad in law. The respondent also alleged that as the period for the mesne profits and rates was not specified, such claim was not maintainable. Thereupon the appellant filed a second application to have the defence struck out on the grounds that the issue of the sub-tenant was res judicata and that in any event the rights of the sub-tenant could not affect the suit between the appellant and the respondent.

The trial judge dismissed both the applications of the appellant on the grounds that the issue of the sub-tenant was not res judicata as the appellant, in its suit for a declaratory judgment, had not asked for possession of the premises, and secondly, as the sub-tenant was not a party to the suit before him, he would not make an order which could affect the sub-tenant's rights as that would offend natural justice.

I am satisfied that the issue of the sub-tenancy was res judicata. The respondent could and should have raised it in the earlier suit; it is not altogether true to say that the issue of possession was not raised in the earlier suit for a declaration. In the declaratory suit, the High Court had granted possession of the premises to the appellant, although that part of the judgment and decree was set aside by this court on appeal.

As regards the rights of the sub-tenant, I cannot see how they can be affected by an order for possession against the respondent. The respondent can only hand over vacant possession of the portion of premises it occupies; the portion occupied by the sub-tenant would be a matter between the sub-tenant and the appellant.

There is a matter I would like to mention. The trial judge raised the point that there appears to be some doubt as to whether a court has jurisdiction under O. 35, r. 2 of the Civil Procedure (Revised) Rules 1948 to make an order for possession of premises under summary procedure. He came to the conclusion that it has. Reading s. 81 (2) and O. 35, r. 2 of the Civil Procedure (Revised) Rules 1948 together, I am, with respect, of opinion that the judge's conclusion is right.

In respect of the claim for mesne profits and rates, I agree with the view expressed thereon by Law, J.A.

I would allow the appeal, and I concur in the order proposed by Law, J.A.

**Spry VP:** I agree with the judgment of Law, J.A., and as Mustafa, J.A., also agrees, there will be an order in the terms proposed by Law, J.A.

*Appeal allowed.*

For the appellant:
*P. Le Pelley* (instructed by *Hamilton, Harrison & Mathews*, Nairobi)

For the respondent:
*S.C. Gautama* (instructed by *Atkinson Cleasby & Satchu*, Mombasa)

# D P P v Felician
## [1973] 1 EA 440 (CAM)

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|---|---|
| **Division:** | Court of Appeal at Mwanza |
| **Date of judgment:** | 18 August 1973 |
| **Case Number:** | 33/1973 (112/73) |
| **Before:** | Sir William Duffus P, Spry VP and Law JA |
| **Sourced by:** | LawAfrica |
| **Appeal from:** | The High Court of Tanzania – Kisanga, J. |

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*[1] Criminal Law – Corruption – By public servant – Possession of property reasonably suspected of being corruptly acquired – Whether reasonable suspicion proved – Burden on Accused.*

**Editor's Summary**

The respondent was employed by the police as a driver. In an enquiry into his wealth it was established that he had acquired assets valued at over three times his earnings for the period concerned.

He was charged with being in possession of property corruptly acquired in that he might reasonably be suspected of having corruptly acquired the property.

He was convicted but the conviction was quashed by the High Court on the ground that it was possible that he had acquired the property by offences other than corruption.

On appeal by the state:

**Held** –

(i) there must be reasonable suspicion that the officer has corruptly acquired property;

(ii) if there is such suspicion, the officer must show on a balance of probabilities that he did not acquire the property corruptly;

(iii) on the facts proved, no reasonable suspicion of corruption had been shown and no burden shifted to the respondent.

Appeal dismissed.

**No cases referred to in judgment.**

**Judgment**

The considered judgment of the court was read by **Law JA:** This is an appeal by the Director of Public Prosecutions against a decision of the High Court of Tanzania allowing an appeal by the respondent, police corporal Felician Tibilikirwa, from his conviction by the senior resident magistrate,

Shinyanga, on a charge laid under s. 7 B(1) of the Prevention of Corruption Ordinance (Cap. 400). This Ordinance was repealed and replaced by the Prevention of Corruption Act, 1971, which came into force on 7 May 1971. The charge against the respondent was dated 18 February 1971, and was laid under the Ordinance; and when the trial opened on the 21 June 1971, the prosecutor made it clear that the trial would proceed under the Ordinance, and not the Act, a course he was entitled to take although the Ordinance had then been repealed, having regard to the provisions of s. 10 (2) (*e*) of the Interpretation and General Clauses Act (Cap. 1). This election by the prosecutor is of importance, because having convicted the respondent of the offence charged, the magistrate proceeded to make a number of forfeiture orders, none of which

he had authority to make under s. 7B of the Ordinance, although such authority would have existed had the charge been laid under the Act. It follows from this that should the appeal succeed, the magistrate's judgment can only be restored to the extent of the prison sentence imposed by him; the orders of forfeiture will have to be set aside.

The charge against the appellant was stated as follows:

"*Statement of Offence*

Being in possession of property corruptly acquired contrary to s. 7B (1) of the Prevention of Corruption Ordinance (Cap. 400).

*Particulars of Offence*

Corporal Felician Tibilikirwa being a public officer for the purposes of the Ordinance, in consequence of an investigation made pursuant to s. 7A of the Ordinance, between the period of 30 December 1967 to May 1970 was found to have in his possession property reasonably suspected of having been corruptly acquired to wit:

(*a*) a deposit of Shs. 41,095/- at the National of Commerce, Shinyanga Branch;

(*b*) a motor car Peugeot 204 bearing registration number MZP 204 for which he paid Shs. 20,433/75; and

(*c*) a sum of Shs. 25,000/- which he paid to Benedict Paulo in October 1969."

The requisite consent to prosecute signed by the Director of Public Prosecutions was attached.

S. 7B (1) reads as follows:

| | |
|---|---|
| "*Being in possession of property corruptly acquired* | 7B.(1) Where, in consequence of any investigation made pursuant to section 7A, or of a search conducted pursuant to section 7D or of an investigation of a bank account in accordance with section 10 or of any investigation carried out by or under the directions of the Director of Public Prosecutions, any public officer found to be or to have been in possession of any property or is found to be or to have been in possession of any property or is found to have received the benefit of any services which he may reasonably be suspected of having corruptly acquired or received when he held a public office, such public officer may be charged with having or having had in his possession property reasonably suspected of having been corruptly acquired or, as the case may be, with having received the benefit of services reasonably suspected of having been corruptly received, and if such public officer fails to satisfy the court that he did not corruptly acquire the property or, as the case may be, that he did not corruptly receive the benefit of services, he shall be liable on conviction to imprisonment for a term not exceeding five years." |

On a true construction, we think this means that before a charge can be brought, there must be a reasonable suspicion that a public officer has, while in office, corruptly acquired property or the benefit of services. If that condition is shown to have been satisfied, the onus of proof passes to the accused person to establish, on a preponderance of probability, that he acquired the property or the benefit of the services in a way that was not corrupt. If, however,

the basis for the charge is not shown to have existed, the onus never passes and there cannot be a conviction.

The facts of the case are that the respondent, who was born in Bukoba, joined the police force in 1960 and from then until July 1970 was attached to the Mwadui police division as a driver, first on general duties and subsequently as the divisional police commander's personal driver. He was married, and from December 1967 to May 1970 his wife was employed by Williamsons Diamonds Ltd. at Mwadui as a shop assistant. The respondent opened a bank account at the National Bank of Commerce, Shinyanga, into which he paid, during the period covered by the charge, sums amounting to over Shs. 41,000/-. In 1969 he paid Shs. 25,000/- for the building of a house at Bukoba, and in May 1970 a car was bought in Mwanza for about Shs. 20,000/-, registered in the name of the respondent's brother, and taken to Bukoba where it was left with a priest for safe custody by the respondent, who said it was his property. In September 1970, when an inquiry into the respondent's apparent wealth was instituted, his bank balance stood at around Shs. 22,700/-. He would thus appear to have owned assets of some Shs. 67,700/-, acquired during a period when his and his wife's earnings totalled less than Shs. 20,000/-. It was for the prosecution to establish that there were reasonable grounds for suspecting that this property had been corruptly acquired. The magistrate directed himself as to this, and after a careful review of the prosecution evidence came to the following conclusion:

> "Having regard to the foregoing and to the undisputed fact that the accused had a family to spend on, that he drank pombe, that he went to cinemas, that he entertained friends and that he purchased goods like a wrist watch, a tape recorder, a bicycle, a transistor radio and some furniture, I am satisfied that there was evidence prima facie, to suspect him of having corruptly acquired the property. It behoves me at this stage to explain to myself as to the incidence of the burden of proof in this case. It is evidently a statutory burden case, the prosecution burden being only to prove (*a*) that accused as a public officer was found to be or to have been in possession of the property, and (*b*) that he may be reasonably suspected of having corruptly acquired the property, i.e. that the said property was disproportionate to his known sources of income. When prosecution had done this, as it had succeeded to do in the instant case, the burden then shifts to accused to show, on the balance of probabilities, that he did not corruptly acquire the property. It still, of course, remains for the court to be satisfied beyond reasonable doubt as to whether the accused is guilty on the evidence as a whole."

We think with respect that there are two misdirections in law in the passage quoted above. In the first place, when the magistrate said: "i.e. that the said property was disproportionate to his known sources of income", he appears to have been saying that the possession of property of a disproportionate value is enough by itself to raise the suspicion of corruption. But the section does not say this, and it must be interpreted strictly. An official found in possession of property apparently disproportionate to his means may have acquired it by corruption, or in some way which is illegal but not corrupt, or possibly in a way which, although not illegal, might be regarded as discreditable. There must be something in the circumstances that raises a reasonable suspicion of corruption. It may be sufficient to show that the accused person was in a position where he would be able to solicit or would be likely to be tempted by bribes or other corrupt rewards. Evidence as to his known associations may also be relevant. The facts in each case will vary but it is essential that the facts and circumstances as established in the prosecution's case are sufficient to raise a reasonable suspicion of corruption against the accused.

Secondly, we think the final sentence of the passage quoted above is incorrect. If the onus once shifts, we do not think there is any residual onus on the prosecution. The accused person must show that the probability that he acquired the property otherwise than corruptly, is greater even if only very slightly greater, than the probability that it was acquired corruptly. If he fails to discharge that onus, he must be convicted.

The magistrate considered the defence case in great detail, and found himself unable to accept it as true on a balance of probabilities. He gave good reasons for rejecting it, and found on a consideration of evidence as a whole that the prosecution had proved the case against the respondent beyond all reasonable doubt. He convicted the respondent, sentenced him to 3 years imprisonment, and ordered the forfeiture to the Government of the balance of the respondent's bank account, the Peugeot car and the house at Bukoba. We have already expressed the opinion that the order of forfeiture was invalid, no power to order forfeiture being contained in s. 7B of the Ordinance under which the respondent was charged. Even if there had been authority for an order of forfeiture, we do not think that the car, which was registered in the name of a person other than the respondent, should have been ordered to be forfeited without the registered owner being given an opportunity to show cause why the order should not be made.

The respondent appealed to the High Court. In a carefully considered judgment, the judge associated himself with the magistrate's findings of fact, and there is no reason for us to come to any different conclusion from these concurrent findings. The judge, however, allowed the appeal and quashed the conviction because, in his view, the respondent's disproportionate wealth could just as well have arisen from dishonesty as from corruption. To quote from the judgment:

> "For example, he may have acquired it through illicit dealing in diamonds although he may have refrained from admitting the same for the obvious reason that he would be incriminating himself if he did. The possibility that he may have acquired the money through illicit dealing in diamonds appears plausible because during the entire period in question the appellant was stationed in Mwadui which is a diamond mining area, and in my opinion there is no good reason for thinking that this possibility is less likely than the possibility that the appellant acquired the money through corruption as envisaged by the prosecution."

The judge went on to point out that dishonesty did not necessarily involve corruption as defined in the Ordinance, and he concluded:

> "I am of the view that the circumstances so far adduced do cast some suspicion on the appellant but that they are not sufficient from which it could reasonably be inferred that the appellant received the money corruptly because, as I endeavoured to show earlier on, it is possible that the appellant may have acquired the money through the commission of offences other than corruption."

He accordingly allowed the appeal, quashed the conviction and set aside the sentence and orders of forfeiture.

From this decision the Director of Public Prosecutions has appealed. The main ground of appeal, argued by Mr. Meela, Senior State Attorney, is that the prosecution having proved that the respondent was a public servant, and that he was in possession of property disproportionate to his income, the onus of proving on a balance of probabilities that the property was not acquired corruptly shifted to the respondent. As he failed to discharge this burden, he

was in Mr. Meela's submission properly convicted and his appeal to the High Court should not have been allowed. Mr. Hindocha for the respondent submitted that the prosecution case was defective in that there was no evidence whatsoever on which to base a reasonable suspicion that the respondent, during the material time, was in a position to act corruptly. As to this, the only evidence was that the respondent was a driver, at first generally so employed and later exclusively as driver for the divisional police commander. There was no evidence that his duties brought him into contact with the public and his own evidence that they did not was uncontroverted. It would have been very different if he had been employed, say, as a traffic policeman or as a plain-clothes detective, in which case there would obviously be opportunities for soliciting bribes. A policeman employed exclusively on driving does not have the same opportunities, especially when accompanied by a senior officer. We think it was open to the judge to take judicial notice of the fact that Mwadui is a diamond producing area, and that the possibility of the respondent's enrichment being due to illicit dealing in diamonds was no less than to corruption.

Where, with respect, we think the judge was wrong is that after finding a reasonable suspicion of corruption, which would be enough to switch the onus of proof, he acquitted the respondent on a mere finding that the possibility of a non-corrupt source was as likely as a corrupt one. If the onus was on the respondent, that would not have been enough to discharge it and would not have justified an acquittal.

We think, however, that in the present case the onus never shifted, because the prosecution never attempted to show that the respondent was in a position in which he might have been able to solicit or might have been tempted by the offer of sums such as those he appears to have received in excess of his salary, or might otherwise have acted corruptly, or even that his associations gave rise for suspicion. In other words, we do not consider that the facts and circumstances in this case were sufficient to justify the trial magistrate's finding that there was a reasonable suspicion that the property had been corruptly obtained. We think that one of the essential requirements of the section before a charge can be laid missing, and that the onus accordingly never shifted, and therefore that this appeal must fail. It is accordingly dismissed.

We would like to place on record our appreciation for the care with which this matter was dealt with in both courts below, and in particular for the admirable judgments which have been of great assistance to us.

*Appeal dismissed.*

For the appellant:
*D. S. Meela* (Senior State Counsel)

For the respondent:
*K. K. Hindocha* and *V. N. Desai* (instructed by *Dhanani & Co.*, Mwanza)

## Adan v Republic
## [1973] 1 EA 445 (CAN)

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| **Division:** | Court of Appeal at Nairobi |
| **Date of judgment:** | 20 September 1973 |
| **Case Number:** | 58/1973 (113/73) |
| **Before:** | Sir William Duffus P, Spry VP and Mustafa JA |

**Sourced by:** LawAfrica

**Appeal from:** The High Court of Kenya – Simpson, J.

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*[1] Criminal Practice and Procedure – Plea – Of guilty – Manner of recording and steps to be taken thereon.*

**Editor's Summary**

The appeal of the appellant was allowed on the ground that his plea of guilty was equivocal. The court considered the manner in which pleas of guilty should be recorded and the steps which should be followed.

**Held** –

(i) the charge and all the essential ingredients of the offence should be explained to the accused in his language or in a language he understands;

(ii) the accused's own words should be recorded and if they are an admission, a plea of guilty should be recorded;

(iii) the prosecution should then immediately state the facts and the accused should be given an opportunity to dispute or explain the facts or to add any relevant facts;

(iv) if the accused does not agree the facts or raises any question of his guilt his reply must be recorded and change of plea entered;

(v) if there is no change of plea a conviction should be recorded and a statement of the facts relevant to sentence together with the accused's reply should be recorded.

**Cases referred to in judgment:**

(1) *Byarufu Gafa v. R.* (1950), 17 E.A.C.A. 125.

(2) *Waiziri Musa v. R.* (1954), 2 T.L.R. (R) 30.

(3) *Malinda Muvua v. R.* (1956), 23 E.A.C.A. 590.

(4) *M'Mwenda v. R.*, [1957] E.A. 429.

(5) *Kibilo v. Republic*, [1971] E.A. 101.

**Judgment**

The considered judgment of the court was read by **Spry VP:** This is a second appeal. On 6 September 1973, we allowed it, quashed the conviction of the appellant and set aside the sentence passed on him. We now give our reasons.

The appellant was charged in the resident magistrate's court of Wajir with the offence of stock theft contrary to s. 278 of the Penal Code. His plea is recorded in the following words.

> "It is true I stole that bull. It was in the boma with others and I stole it. I was arrested with it." This was entered as a plea of guilty and a conviction was recorded.

Pausing here, we were surprised when Mr. Rebelo, who appeared for the Republic, informed us that there is some uncertainty among magistrates as to the procedure to be followed when an accused person offers a plea of guilty.

It is true that the Criminal Procedure Code only deals very briefly with the matter, s. 281 merely saying that the plea is to be recorded and that the accused may be convicted thereon.

The courts have always been concerned that an accused person should not be convicted on his plea unless it was certain that he really understood the charge and had no defence to it. The danger of a conviction on an equivocal plea is obviously greatest where the accused is unrepresented, is of limited education and does not speak the language of the court. For this reason, it has long been a rule of practice that where a plea appears to be one of guilty, it must be recorded in the words of the accused (see, for example, Circular to Magistrates, No. 1 of 1911 of the High Court of East Africa). This is now a statutory requirement in all the three jurisdictions. The word "guilty" is one to be treated with the greatest caution: it is a technical expression and it was said, in *Byarufu Gafa v. R.* (1950), 17 E.A.C.A. 125, and *M'Mwenda v. R.*, [1957] E.A. 429, that there is no word exactly corresponding to it in any of the languages of Uganda or Kenya respectively. It might be added that while the idea of stealing is one universally known, it does not follow that every language has a word corresponding to the English word "steal" which excludes a taking under a bona fide claim of right.

In Tanganyika, the further precaution was adopted of requiring the prosecutor to outline the facts of the alleged offence after the recording of the plea and before the entry of a conviction and of asking the accused if he agreed with it or wished to comment on it, and this became the accepted and general practice (see *Waiziri Musa v. R.* (1954), 2 T.L.R. (R.) 30).

It appears that no such practice became general in Kenya, although there is one reported case (*Malinda Muvua v. R.* (1956), 23 E.A.C.A. 590) which shows it to have been followed, and it was recommended by Mosdell, J., in *Kibilo v. Republic*, [1971] E.A. 101. Since we heard this appeal, our attention has been drawn to Criminal Appeal No. 743 of 1972 of the High Court, in which the Chief Justice and Muli, J., expressed approval of it.

We think the practice is desirable and should generally be followed throughout East Africa. So that there may be no doubt in the matter, we set out the procedure in the following paragraph. We would add also, with respect, that we are in complete agreement with a further observation by the Chief Justice and Muli, J., also in Criminal Appeal No. 743, that a plea should not be taken unless the prosecution are in a position to state the facts. An adjournment between the plea and the statement of facts ought never to be necessary and is most undesirable.

When a person is charged, the charge and the particulars should be read out to him, so far as possible in his own language, but if that is not possible, then in a language which he can speak and understand. The magistrate should then explain to the accused person all the essential ingredients of the offence charged. If the accused then admits all those essential elements, the magistrate should record what the accused has said, as nearly as possible in his own words, and then formally enter a plea of guilty. The magistrate should next ask the prosecutor to state the facts of the alleged offence and, when the statement is complete, should give the accused an opportunity to dispute or explain the facts or to add any relevant facts. If the accused does not agree with the statement of facts or asserts additional facts which, if true, might raise a question as to his guilt, the magistrate should record a change of plea to "not guilty" and proceed to hold a trial. If the accused does not deny the alleged facts in any material respect, the magistrate should record a conviction and proceed to hear any further facts relevant to sentence. The statement of facts and the accused's reply must, of course, be recorded.

The statement of facts serves two purposes: it enables the magistrate to satisfy himself that the plea of guilty was really unequivocal and that the accused has no defence and it gives the magistrate the basic material on which to assess sentence. It not infrequently happens that an accused, after hearing the statement of facts, disputes some particular fact or alleges some additional fact, showing that he did not really understand the position when he pleaded guilty: it is for this reason that it is essential for the statement of facts to precede the conviction.

In the present case, not only was the statement of facts not made at the proper time, but no such statement was made at any stage. The prosecutor informed the court that the accused was a first offender, remarked that stock theft is a serious offence and then asked for a deterrent sentence. The magistrate then passed sentence of seven years' imprisonment with hard labour and ten strokes of corporal punishment.

This shows a very wrong approach. Of course, stock theft is, in general, a serious offence, but the gravity of any particular offence depends on all the circumstances. In the present case, the magistrate did not know the circumstances and neither do we. We only know that the appellant is a young man – his age does not appear in the record but he informed us that he is now, a year after the alleged offence, 22 years of age and, having seen him, we are prepared to accept it; that he has not been convicted of any previous offence and that he was recorded as pleading guilty. It may well be that had the magistrate been in possession of all the relevant facts and still convicted, he might have considered probation appropriate. At least he should have considered it.

In his appeal to the High Court, the appellant put forward a single ground of appeal, the essence of which is as follows:

> "I have pleaded guilty because of misunderstand. The cattle in question was my own cattle and my brother does not wanted me to sell that cattle."

The appeal was summarily dismissed. Mr. Rebelo submitted that the judge had no jurisdiction to dismiss the appeal summarily, as it raised an issue of law and therefore did not fall within the terms of s. 352 (2) of the Criminal Procedure Code. We do not, of course, know what the judge had in mind, but we think it likely that he considered the appeal, so far as it was against conviction, incompetent by reason of s. 348 of the Code, which precludes such appeals by a person who has pleaded guilty and been convicted on that plea. The question whether the appeal was competent has not been fully argued and we prefer to express no opinion on it: it is unnecessary to consider it in this appeal because the judge could, had he thought fit, have proceeded by way of revision.

Before us, the appellant again put forward, both in his grounds of appeal and orally in court, what amounted to a submission that this was a family quarrel and that, while he admitted taking the bull, he did so under a bona fide claim of right.

We were not satisfied that, had the plea been more thoroughly examined, it might not have been changed to one of not guilty and we felt, therefore, that the conviction could not safely be allowed to stand. We were at first inclined to order a new trial, but as the appellant has already been in prison for over a year, we felt that this might lead to a grave injustice, if the appellant should ultimately be acquitted. Mr. Rebelo indicated that the Republic would not be opposed to an acquittal and we thought in all the circumstances that this was the proper course. Accordingly, we allowed the appeal.

*Order accordingly.*

The appellant appeared in person.

For the respondent:
*A. R. Rebelo* (State Counsel)

# S Ltd v Income Tax
[1973] 1 EA 448 (HCK)

| | |
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| **Division:** | High Court of Kenya at Nairobi |
| **Date of judgment:** | 17 March 1970 |
| **Case Number:** | 85/1969 (93/71) |
| **Before:** | Chanan Singh J |
| **Sourced by:** | LawAfrica |

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*[1] Income Tax – Deduction – Investment allowance – Ship – Must be used by purchaser – East African Income Tax Management Act* 1958, 2*nd Schedule para.* 27.

*[2] Income Tax – Deduction – Investment allowance – Ship – Cost of refitting must exceed* 25 *per cent of total capital expenditure – East African Income Tax Management Act* 1958, 2*nd Schedule para.* 27.

**Editor's Summary**

The appellant ship owning company bought two ships and incurred expenditure on refitting them. One ship was immediately resold and was never used by the appellant. The second ship was used by the appellant.

The respondent contended that no entitlement to a deduction arose as the cost of refitting the second ship was less than 25 per cent of the total capital expenditure.

**Held** –

(i) a ship has to be used by the purchaser for an investment deduction to be allowable;

(ii) the cost of refitting a ship must exceed 25 per cent of the total capital expenditure for an investment deduction to be allowable.

Appeal dismissed.

**No cases referred to in judgment.**

**Judgment**

**Chanan Singh J:** These two appeals, which were consolidated and heard together, involve two points of interpretation of law. The appellant company purchased two ships in two separate years of income and claims investment allowance under para. 27 (*a*) of the Second Schedule to the East African Income Tax (Management) Act, 1958. This paragraph (omitting parts not relevant here) reads as follows:

> "27. Subject to this Schedule, where:
>
> (*a*) a resident person carrying on the business of a shipowner incurs capital expenditure in any year of income on the purchase, and subsequent refitting for the purpose of such business, of any power-driven ship of more than 495 tons gross where the expenditure on such refitting is incurred prior to the use of such ship by the purchaser and represents not less

than 25 per cent of the total capital expenditure so incurred; or

. . . .

there shall be deducted in computing his gains or profits for the year of income in which the ship . . . is first so used, a deduction (referred to as an "investment deduction") equal –

(i) in the case of capital expenditure upon such a ship to forty per cent of such expenditure,. . ."

It is common ground that each of the two ships was over 495 tons gross and

that the expenditure on refitting was in each case less than 25 per cent of the total capital expenditure incurred.

The appellant company is "carrying on the business of a shipowner" but the law requires "the user of such ship by the purchaser" and the deduction of 40 per cent is allowed "in computing his gains or profits for the year of income in which the ship . . . is first so used". There is a dispute about the interpretation of this provision – at least about the applicability of this provision to the ship "Harambee".

This ship was purchased with the object of selling it immediately to the Eastern African National Shipping Line Ltd. (hereinafter called the National Line). Indeed, it was so sold. One would have thought this simple fact would show that the ship was never intended to be used, and was not used, by the taxpayer for its own business and that the question of claiming an investment deduction did not arise. The "user of such ship by the purchaser" was never envisaged. This is the substance of the transaction. The form it takes in papers is somewhat complicated and has led to a difference of opinion between the parties. The appellant bought this vessel with money borrowed by it from the Standard Bank which held a mortgage on it. By an agreement made between the National Line and the appellant company the latter promised to transfer the vessel to the former on payment of the capital sum with interest. The agreement went on to provide this:

> "(5) By a Charterparty of even date herewith the Vessel is let by and hired from S. to the National Line from 16 January, 1967 until such time as the capital sum and interest payable under this Agreement shall be paid in full."

Thus, the charterparty is tied up with payment; and, quite apart from the charterparty, the appellant has agreed to transfer the vessel to the National Line on payment of the full capital sum with interest. This fact considered in the light of the further fact that the hire charge to be paid to the appellant by the National Line is only Shs. 1/- per annum leads one to the conclusion that the charterparty is merely illusory. It makes what in fact is a sale look like a hire.

I do not think this view of the matter affects the title or the security of the appellant in any manner. As the agreement recites, the vessel is mortgaged with the Standard Bank. And the vessel is not to be transferred to the National Line until it has been paid for fully.

I accept the evidence given on behalf of the appellant that a shipowner may instead of operating a vessel himself, give it on charter. He would not thereby lose the advantage of the investment deduction if he complied with the conditions of para. 27. The charter fee would, in that event, be his income and he would pay income tax on it. He would be "carrying on the business of a shipowner" and would be using the vessel "for the purposes of such business".

I do not agree, however, that a shipowner who buys a vessel only to sell it to another can be said to be using such vessel for the purposes of his business as a shipowner, even though he enters into an agreement of hire for a nominal rental of Sh. 1/- a year in addition to the agreement of sale. The transaction is in substance one of sale and not of hire.

I hold therefore that the appellant company is not entitled to the investment deduction under para. 27 of Second Schedule to the East African Income Tax (Management) Act 1958 in respect of the ship "Harambee". In view of this finding, it is not necessary in respect of this vessel to consider the further point namely, whether the appellant would be entitled to the investment deduction irrespective of the amount spent on refitting the vessel.

The second vessel, the "Southern Spray", is, I am satisfied, being used by the appellant for the purposes of its business as a shipowner. Indeed, this point is not contested by the counsel for the respondent. This vessel was purchased for £80,119 and a further sum of £3,177 was spent on refitting. The respondent says that this fact takes the case out of para. 27.

Mr. Couldrey, for the appellant, contends on the other hand that the investment deduction is allowable on capital expenditure on the purchase of ships in all cases but that the cost of refitting before use is also regarded as capital expenditure if it is not less than 25 per cent of the total capital expenditure. The idea is, he thinks, to encourage the acquisition of ships by residents. The argument is attractive. The question is whether it is supported by the words used. The capital expenditure must be incurred "on the purchase, and subsequent refitting for the purposes of such business". The first difficulty is the existence of the comma after the word "purchase". The conjunctive "and" would not require a comma before it. Again, does the phrase "for the purposes of such business" qualify "refitting" only or both "refitting" and "purchase"? I think both the purchase and the refitting must be for the purposes of shipowner's trade.

The use of "and" does suggest I think the capital expenditure must be a total of the purchase price and the cost of refitting. The refitted ship must be for use in the shipowner's business and the entire capital expenditure must have been incurred before such use. This, in my view, is the plain meaning of the paragraph.

Mr. Couldrey seems to agree with this interpretation. And that is why he suggests the word "and" should be read "or". He has quoted authorities in support of this proposition. I have no doubt that the word "and" must sometimes be read "or" to give a sensible meaning. If Mr. Couldrey's suggested reading is accepted, then the paragraph in its essential parts will be as follows:

> ". . . where a resident person . . . on the purchase, or subsequent refitting . . . of any power driven ship . . . there shall be deducted . . . a deduction . . . equal . . . to forty per cent of such expenditure."

It seems to me the paragraph now says something entirely different. The word "or" in this context must be interpreted disjunctively because the purchase price is not the same thing as the cost of refitting. Therefore the 40 per cent deduction must be allowed on either the purchase price or the cost of refitting but not on both. This is not Mr. Couldrey's intention. This rendering of the paragraph would make all reference to the cost of refitting meaningless, because 40 per cent of the purchase price will always exceed 40 per cent of the cost of refitting.

Another difficulty is presented by the use of the word "and" in other clauses of the same paragraph. In clauses (*b*), (*c*) and (*d*) investment deduction is to be calculated on the cost of construction of industrial buildings "and on the purchase and installation of machinery". The whole arrangement will become useless if the word "and" is here read "or".

The ideal arrangement would be to allow 40 per cent on the purchase price of ships and in the case of refitting being necessary then on the total cost of purchase and refitting. But this is not the law as I read it. To make para. 27 give this meaning will necessitate more substantial changes than merely reading "or" for "and".

For these reasons I dismiss the appeal in respect of the "Southern Spray" also. The respondent will have the costs of both appeals.

*Appeals dismissed.*

For the appellant:
*J. A. Couldrey* (instructed by *Kaplan & Stratton*, Nairobi)

For the respondent:

*M. G. Muli* (Deputy Counsel to the Community)

# Barclays Bank D C O v Shamsudin
[1973] 1 EA 451(HCK)

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| **Division:** | High Court of Kenya at Nairobi |
| **Date of judgment:** | 11 January 1973 |
| **Case Number:** | 1633/1970 (46/73) |
| **Before:** | Chanan Singh J |
| **Sourced by:** | LawAfrica |

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*[1] Civil Practice and Procedure – Pleading – Amendment – Limitation – Whether plaint will be amended after expiry of limitation period.*

**Editor's Summary**

The plaintiff gave to the defendant notice within 6 years of the cause of action that it intended to amend its plaint by increasing the sum claimed, and filed its amended plaint so doing after the expiry of six years. The defendant applied to have the amended plaint struck out. The full facts are set out in the judgment.

**Held –**

(i) in special circumstances amendment of a plaint will be allowed, notwithstanding that the effect will be to defeat a defence of limitation;

(ii) such special circumstances existed in this case.

Application dismissed.

**Cases referred to in judgment:**

(1) *Hill v. Wilson* (1873), L.R. 8 Ch. 888.

(2) *Weldon v. Neal* (1880), 19 Q.B.D. 394.

(3) *Re Whittaker* (1882), 21 Ch. D. 657.

(4) *Kisandas v. Rachappa* (1909), 33 Bom. 644.

(5) *Charan Das v. Amir Khan* (1920), 47 I.A. 255.

(6) *Sevugan v. Krishna* (1913), 36 Mad. 378.

(7) *Gurlingappa v. Sahu Ramappa* (1931), 33 Bom. 141.

(8) *Leach & Co. v. Jardine Skinner & Co.*, 1957 S.C.R. 438.

[**Editorial Note**: For the present law see O. 6A, r. 3 as amended by L.N. 66 of 1973.]

**Judgment**

**Chanan Singh J:** Barclays Bank D.C.O. as Executor of the will of Raymond Hook filed on 31

December 1970 an action against Shamsudin Noor Mohamed for the recovery of a sum of Shs. 72,720/- and interest and costs. The claim was stated in the plaint to be for “the balance” of the moneys lent and advanced to the defendant by the plaintiff.

The defendant, it appears, asked for further and better particulars. There were given in a document dated 24 January 1972 which stated inter alia that the amount claimed was to be amended to Shs. 82,720/- which was the value of a cheque dated 4 February 1966 drawn by the deceased at the request of the defendant in favour of Ratilal G. Patel and represented payment for 8,272 shares in the Sportsman’s Arms Hotel to be transferred by the said Ratilal G. Patel to the defendant and also that the transfer of shares took place on 30 June 1966.

On 12 February 1972 the defendant filed his defence which stated, inter alia, that “The particulars of the claim do not support the claim alleged in the plaint” and also that the claim being time-barred on 4 February 1972 could not now be increased by Shs. 10,000/-.

On 25 February 1972 the plaintiff filed an amended plaint under the provisions

of O. 6, r. 19 of the Civil Procedure (Revised) Rules 1948. This increased the claim to Shs. 82,720/- "being the amount due for moneys lent and advanced to the defendant by the deceased as a loan" and referred to the further and better particulars of the plaint as the document in which the claim was "more particularly set forth". The amended plaint also introduced an alternative claim for Shs. 82,720/- "as moneys paid by the deceased to one Ratilal G. Patel . . . for and on behalf of and at the request of the defendant".

Paragraph 5 of the amended plaint listed four payments made by the defendant in respect of interest on the said loan or payment. These payments were

| *Date* | *Amount* Shs. |
|---|---|
| End-March, 1968 | 1,800/- |
| 1-4-68 | 500/- |
| 27-4-68 | 2,000/- |
| 10-8-68 | 10,000/- |

By these payments, the defendant is alleged in the amended plaint to have "acknowledged that the debt was still due".

Mr. D. N. Khanna, for the defendant, has now moved this Court under O. 6, r. 21 and s. 97 of the Civil Procedure Act to disallow and strike off the amended plaint and thus to restore the original plaint.

The parts of the amended plaint to which Mr. Khanna objects are essentially two:

(1) The claim is increased from Shs. 72,720/- to Shs. 82,720/-.

(2) The original claim was for "the balance" of moneys lent and advanced "to the defendant by the plaintiff". The amended claim is for "moneys lent and advanced to the defendant by the deceased", and, in the alternative, for "moneys paid by the decreased to one Ratilal G. Patel . . . for and on behalf of and at the request of the defendant".

It is quite clear that what led to the amendments were the inquiries needed to furnish the further and better particulars demanded by Mr. Khanna. He wanted to know, according to the further and better particulars filed in court on 26 January 1972 how the alleged "balance" of Shs. 72,720/- was arrived at, the date of the loan, whether the loan was made in one lump sum, and particulars of the cheque issued. The inquiries must have revealed the information supplied by the plaintiff, namely, that one cheque for Shs. 82,720/- was drawn on Barclays Bank D.C.O., Nanyuki, by the deceased and that the cheque was numbered 575 and dated 4 February 1966 and was made payable to Ratilal G. Patel and not to the defendant.

The particulars indicated that the amount of the claim was "to be amended to Shs. 82,720/-". This was within the six-year period. Mr. Khanna, without waiting for the amended plaint filed his defence which stated inter alia the following:

"8. . . . . no loan was ever made to him, and although the defendant acquired from R. G. Patel, 8,272 shares in Sportsman's Arms Hotel, namely 4,136 owned by R. G. Patel, and 4,136 owned by the Estate of Ramkrishna G. Patel deceased (whose personal representative was the said R. G. Patel), with a cheque for Shs. 82,270/- issued by the deceased in favour of R. G. Patel, the deceased issued the said cheque, without looking to the defendant to pay back the said sum or any part thereof.

"9. The deceased bought the said shares for the defendant as a gift, and/or as voluntary compensation

for breach of certain partnership articles.”

The figure of Shs. 82,270/- should no doubt, read Shs. 82,720/-. The word "deceased" is used thrice in para. 8. In line 8 of this paragraph, it is used twice, and, here, it refers to the late Raymond Hook. In line 6, the meaning is obvious.

The defence goes on to explain the circumstances in which a "gift and/or" "voluntary compensation" was, according to the defendant due to him by the deceased. Be that as it may, the defendant, even before the amended plaint was filed, knew the facts which led the plaintiff to amend its plaint. In para. 4 of the defence he even suggested one possible explanation for suing for Shs. 72,720/- in the first instance.

I cannot help feeling that if Mr. Khanna had not asked for further and better particulars, but had pleaded to the plaint as originally drawn up, the case would have gone to hearing on unrealistic pleadings and difficulties would have occurred during the trial. Then, facts as now disclosed were bound to come to light.

The position as I see it now is that the plaintiff wants to amend the plaint, inter alia, to plead the two matters referred to above. The defendant has already in his defence dealt with both these matters. He objects to amendments on the ground of limitation. I shall examine this presently. Meantime, the following facts appear admitted:

(1) A cheque for Shs. 82,720/- (not Shs. 72,720/-) was drawn on Barclays Bank D.C.O., Nanyuki, on 4 February 1966.

(2) The drawer was the deceased, not the plaintiff.

(3) The cheque was made payable to Ratilal G. Patel and was given to him and not to the defendant.

(4) Shs. 82,720/- represented the value of 8,272 shares in Sportsman's Arms Hotel.

(5) 8,272 shares in Sportsman's Arms Hotel were transferred by the said Ratilal G. Patel to the defendant.

If the matter were to be decided on the basis only of what justice required, I would unhesitatingly allow two vital amendments. If Shs. 82,720/- was paid, what is the use of saying that Shs. 72,720/- was paid? Maybe, the plaintiff thought Shs. 10,000/- paid by the defendant was a proper set-off. I do not know. No affidavit has been filed on behalf of the plaintiff explaining how the original plaint came to be drafted and why amendments became necessary later.

To come now to Mr. Khanna's main objection on the ground of limitation. The amendments in this case were made under O. 6, r. 19 which enables a plaintiff to amend his plaint without leave "within 14 days from the filing of the written statement of defence". The present application is made under r. 21 of the same Order which reads as follows:

> "21. Where a party has amended his pleading under either of the last two preceding rules, the opposite party may . . . apply to the Court to disallow the amendment or any part thereof, and the Court may, if satisfied that the justice of the case requires it, disallow the same or allow it subject to such terms as to costs or otherwise as may be just."

Mr. Khanna argues that the principles to be applied to cases under this rule are the same as those applicable to cases where court's leave is sought to make amendments under r. 18. I accept that proposition. R. 18 reads:

> "18. The Court may, at any stage of the proceedings, allow either party to alter or amend his pleadings in such manner and on such terms as may be just, and all such amendments shall be made as may be necessary for the

> purpose of determining the real question in controversy between the parties."

There is now no doubt about the questions really in controversy between the parties, but I agree that these questions or some of them were not envisaged by the person who drafted the original plaint. Nor have I any doubt about what is just in this case. But "just" means "just" in relation to the case which is properly before the court.

The amended plaint was filed on 25 February 1972. If it had been the original plaint filed on that date, the plaintiff would be out of court at once because the whole claim would be time-barred. This is essentially Mr. Khanna's point.

R. 18 which I have quoted gives very wide powers to courts, but similarly worded rules in India (O. 6, r. 17) and England (old O. 28, r. 1) have been interpreted as meaning that time-barred amendments should not as a rule be allowed. Lord Esher, M.R., stated in *Weldon v. Neal* (1880), 19 Q.B.D. 394: "We must act on the settled rule of practice, which is that amendments are not admissible when they prejudice the rights of the opposite party as existing at the date of such amendments. Under very peculiar circumstances the Court might perhaps have power to allow such an amendment, but certainly as a general rule it will not do so."

In the Indian case of *Charan Das v. Amir Khan* (1920), 47 I.A. 255, the Privy Council said:

> "Though [the power of the Court to amend the plaint] should not as a rule be exercised where its effect is to take away from a defendant a legal right which has accrued to him by lapse of time, yet there are cases: see, for example, *Mohumed Zahir Ali v. Rutta Koer* (11 M.L.A. 468, 485) where such considerations are outweighed by the special circumstances of a case."

In the *Weldon* case, it was held that claims in respect of assault and false imprisonment could not be added to a claim for damages for slander when the new claims were time-barred at the date of application. The amendments sought introduced a new case. There were, in other words, no "very peculiar circumstances" to justify the amendment. In the *Charan Das* case, the plaintiffs had sued for a declaration of their right of pre-emption over certain land but had omitted to ask for consequential relief, namely, possession. Amendment was allowed in spite of the time-bar. On omission to ask for consequential relief, see also *Gurlingappa v. Sahu Ramappa* (1931), 33 Bom. 141.

*Kisandas v. Rachappa* (1909), 33 Bom. 644 was another case of special circumstances. The plaintiff had stated that he had brought in Rs. 4,000 as his capital contribution under a partnership agreement. He had sued for dissolution and accounts. It was clear from the proceedings that the plaintiff had from the first intended to sue only for the recovery of his money and the defendant had actually pleaded to the money claim on which an issue had been framed and evidence taken. Leave was given to add a prayer for the recovery of Rs. 4,000, although at that date the claim was time-barred.

In the present case also, the defence filed admits all the essential facts namely that the cheque was for Shs. 82,720/-, that it was issued by the deceased, that it was given to Ratilal G. Patel, and that it was in payment of shares transferred to the defendant. A payment of Shs. 10,000/- by the defendant to the deceased is also mentioned.

Another Indian case is of help. This was *Sevugan v. Krishna* (1913), 36 Mad. 378 which was a claim for possession of books of accounts from the defendants alleged to be the servants of the plaintiff. The plaintiff had stated in the plaint

that he would bring a separate suit for the money due to him by the defendants. Later, (when the claim for money was time-barred), the plaintiff applied for leave to amend the plaint by adding a claim for recovery of money. Amendment was allowed.

Here also, there is an analogy. In the particulars the plaintiff stated that "The amount claimed is to be amended to Shs. 82,720/-" and also that the cheque was "drawn by the deceased . . . in favour of Ratilal G. Patel" and that it was so "drawn at the request of the defendant to enable the defendant to purchase from Ratilal G. Patel, 8,272 shares." On 25 January 1972 the claim was still within time.

This part of the argument can be summed up in the words of the Indian Supreme Court in *Leach & Co. v. Jardine Skinner & Co*. 1957 S.C.R. 438:

> "It is no doubt true that Courts would, as a rule, decline to allow amendments, if a fresh suit on the amended claim would be barred by limitation on the date of the application. But that is a factor to be taken into account in exercise of the discretion and to whether amendment should be ordered and does not affect the power of the Court to order it, if that is required in the interests of justice."

Cases can be multiplied but I stop here. The principle is clear. I must take into account the fact urged by Mr. Khanna that, at the date the amended plaint was filed, a suit for the additional amount and for the additional ground of relief would be time-barred. I think, however, special circumstances exist in this case and these are mainly two:

(1) This is a claim involving a dead man's estate and difficulties of obtaining instructions and producing evidence can be imagined. In reply to one of Mr. Khanna's questions, the document of particulars to which I have referred more than once states in para. (*g*): "The terms of repayment of the loan were solely within the knowledge of the deceased and the defendant. The plaintiff has been unable to trace any document signed by the defendant setting out the terms of repayment." This indicates the point I have in mind.

(2) The defendant does not deny the essential facts urged in the amended plaint but he says that the amount now claimed was either a gift to him or compensation for certain alleged breaches of an agreement. He also alleges payment of Shs. 10,000/-. In these circumstances, I should not I think accept the story of the defendant as true on an interlocutory application. Evidence must be taken to decide the issues. What the defendant urges is, in effect, a claim against a dead man's estate and courts do not accept such claims on the basis of uncorroborated evidence of the claimant (*Hill v. Wilson*, (1873) L.R. 8 Ch. 888; *Re Whittaker*, (1882) 21 Ch. D. 657).

In my opinion there are present in this case "very peculiar circumstances" as envisaged in the *Weldon* case or "special circumstances" as envisaged in the *Charan Das* case and these outweigh the general rule against allowing time-barred amendments.

Before I conclude, I must deal with one or two miscellaneous points that arise. The original plaint claimed the amount therein mentioned as "the balance" of a loan. The amended plaint claims the amount (now increased) as a loan. This is in accordance with the fact that the total sum was paid for shares. The two sides differ as to whether this sum was intended to be repaid. I think the plaintiff is entitled to have this amendment allowed because it will bring before the Court "the real questions in controversy". It will still be open to the defendant, if the amount is held to be repayable, to argue that the correct amount is Shs. 72,720/- and not Shs. 82,720/- – that is, if this matter is properly pleaded.

Mr. Khanna also objects to the insertion of the new paragraph 5 which seeks to plead that four payments made by the defendant represented interest on the loan. As I understand the matter, the plaintiff is saying only that the alleged payments amounted to acknowledgement bringing the claim within time. There is no claim for interest except at court rates. The defendant denies that any interest was paid or payable. He has his own explanation of the payments and evidence will show whose version is true.

I have also been urged by Mr. Khanna to disallow the amendments because they are made mala fide.

In view of the special circumstances of this case, I do not accept this submission. There are always difficulties in claims by personal representatives in matters like these. Perhaps, the claims now made could, with a little more inquiry, have been made in the first instance but I do not doubt the bona fides of the Bank executor.

In the result, I dismiss the defendant's application.

*Order accordingly.*

For the plaintiff:
*K. A. Fraser* (instructed by *Hamilton Harrison & Mathews*, Nairobi)

For the respondent:
*D. N. Khanna* (instructed by *Khanna & Co*., Nairobi)

## Income Tax v P and others
[1973] 1 EA 456 (HCK)

| | |
|---|---|
| **Division:** | High Court of Kenya at Nairobi |
| **Date of judgment:** | 20 July 1973 |
| **Case Number:** | 44/1972 (107/73) |
| **Before:** | Hancox J |
| **Sourced by:** | LawAfrica |

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*[1] Income Tax – Deduction – Investment allowance – Industrial machinery – Expenditure on machinery must be by tax-payer who erected building – East African Income Tax Management Act* (*Cap*. 24) *Schedule* 2, *para*. 27.

**Editor's Summary**

The respondents owned an industrial building which they leased to a company which they owned. The company bought and installed machinery in the building.

The respondents contended that they were entitled to an investment allowance, and the appellant argued that the expenditure both on the building and on the machinery had to be incurred by the same tax-payer, "and" having its usual conjunctive meaning.

**Held –**

(i) the usual meaning of "and" is conjunctive unless there are compelling reasons to the contrary (*Re Welford's Will Trusts, Davidson v. Davidson* (2) considered);

(ii) both sets of expenditure had to be incurred by the same tax-payer.

Appeal allowed.

**Cases referred to in judgment:**

(1) *Attorney-General for New Zealand v. Brown*, [1917] A.C. 393.

(2) *Re Welford's Will Trusts, Davidson v. Davidson*, [1946] 1 All E.R. 23.

(3) *P. Ltd. v. Income Tax*, H.C.C.A. 29 of 1967 (unreported).

(4) *Income Tax v. Kiganga Estates*, [1968] E.A. 464.

(5) *P. Ltd. v. Income Tax*, [1969] E.A. 531.

(6) *U. Ltd. v. Income Tax*, [1973] E.A. 314.

(7) *Income Tax v. B. Ltd*., [1973] E.A. 322.

(8) *S. Ltd. v. Income Tax*, [1973] E.A. 448.

**Judgment**

**Hancox J:** These three income tax appeals have been consolidated, the individual respondents (hereinafter called "the taxpayers") being members of the same family, partners in the firm of P. Company (Kenya) and directors of P. Industries Ltd., and the point at issue being common to all three appeals.

The Commissioner General of Income Tax appeals against the decisions of the Nairobi local Committee dated 16 February 1972 and 15 March 1972 respectively, whereby it allowed the taxpayers' respective appeals against three amended assessments. In those amended assessments the appellant had disallowed an investment deduction claimed by the taxpayers in respect of certain machinery for the year of income 1970.

Briefly what has happened is that the building in which the machinery was installed is, I do not think there is any dispute, an industrial building within the meaning of the definition in the Second Schedule to the East African Income Tax Management Act (Cap. 24). It was constructed in 1970 at a cost of Shs. 125,709/45, incurred by the firm. The building was then leased to the company which incurred capital expenditure on the purchase and installation of machinery therein. Thus the firm incurred the capital expenditure on the building and the company incurred it on the purchase and installation of the plant.

The appellant contends that both sets of expenditure must have been incurred by the *same taxpayer*, that is to say the firm (and its partners), before either can qualify for an investment deduction within sub-paragraph (*b*) of paragraph 27 of the Schedule.

The taxpayers submit that on a true reading of sub-paragraph (*b*), together with the preceding and following sub-paragraphs, and in the light of recent decisions cited to me, this is not an essential pre-requisite to an investment deduction under this head; that the concluding words of sub-paragraph (*b*)

> " . . . and on the purchase and installation of machinery in such building for the purposes of such trade. . . . "

merely describe an additional independent category of expenditure – that is, additional to the building.

This case really turns on the use of the word "and" for the second time in the sub-paragraph, (the first being purely introductory to a clause dealing with the use of the building) and Mr. Bishota for the appellant contends that the sub-paragraph has to be read as a whole and that if this is done it is clear that the second "and" connotes an additional and not an alternative basis for qualification. He contrasted the disjunctive "or" which appears in both sub-clauses (i) and (ii) of sub-paragraph (*d*) which, in the case of hotels, refers to the construction or extension of a building and to the purchase and installation of machinery.

Mr. Deverell submits that there is an ambiguity in the sub-paragraph and that if the appellant's contention is correct it does lead to an absurdity and an illogical result, in that simply because the installation was done by the company and not the firm, (the manufacturing process being carried out by the company purely for the sake of convenience) of whom the partners were precisely the same people as held directorships in the company, the deduction is not allowed. It is further submitted that the policy and object of the legislature underlying this enactment clearly is to encourage investment, and no violence is done to either if the sub-paragraph is read in the way for which he contends. And it is, so he says, incumbent on the court to give the sub-paragraph a sensible and logical

meaning. As was said by Sir Charles Newbold, P. in *Income Tax v. Kiganga Estates*, [1968] E.A. 464 at p. 466 (which appears on the taxpayers' list of authorities but which was not quoted)

> " . . . and the courts lean against any construction of legislation which leads to an extraordinary result unless it is quite clear that the legislature intended that the extraordinary result might arise in certain cases."

Now one very interesting addition has been made to the preceding sub-paragraph, (*a*). In 1964 it read

> "where:
>
> (*a*) a resident person carrying on the business of a shipowner incurs capital expenditure in any year of income on the purchase, and subsequent refitting for the purposes of such business, of any power-driven ship of more than 495 tons gross where the expenditure on such refitting is incurred prior to the user of such ship by the purchaser and represents not less than 25 per cent of the total capital expenditure so incurred."

Now it reads

> "where:
>
> (*a*) a resident person carrying on the business of a shipowner incurs capital expenditure to which this Schedule applies on *both* the purchase and before it is used for any purpose, the subsequent refitting for the purposes of such business, of any power-driven ship of more than 495 tons gross, where the expenditure on such refitting represents not less than 25 per cent of the total capital expenditure so incurred."

Mr. Deverell submits that the addition of the word "both" is strongly in his favour. When recasting the paragraph completely in 1969, had the legislature wished to provide that for which the appellant contends, nothing would have been easier than to have inserted the word "both" immediately before or after the first "on" in sub-paragraph (*b*). Or it could have inserted words so that the final part of the paragraph would read ". . . and where a person incurs capital expenditure on the purchase and installation of machinery . . ." But neither has been done. Mr. Deverell referred to the word "or" which is used specifically in relation to the categories of investment deduction in the controlling words at the end (the threefold use of the disjunctive "or" as Trevelyan, J. describes it in *P. Ltd. v. Income Tax*, [1969] E.A. 531 at p. 532). I at first felt that he meant that there were several ellipses in that passage which, being expanded, would read

> "there shall be deducted . . . for the year of income in which the ship *and subsequent refitting*, building *and purchase and* installation. . . ."

and so on. But this clearly is not so because it is the user by the taxpayers that is clearly the controlling verb in that passage.

However Harris, J. in *U. Ltd. v. Income Tax*, [1973] E.A. 314, clearly regarded the threefold use of the disjunctive "or" as significant in interpreting sub-paragraph (*b*), and he was reinforced in his conclusion that the construction of the building and the installation of the machinery need not necessarily take place in the same year of income, by the multiple use of the word "on" therein. In my opinion that is what he meant when he used the phrase at p. 317 "this suggests that the references in sub-paragraph (*b*) to the construction of the building and to the purchase and installation of machinery are to be construed independently of each other". I do not read this passage as supporting the contention that the word "and" in sub-paragraph (*b*) is meant disjunctively.

There then follows the passage in Harris, J.'s judgment dealing with the decision of Chanan Singh, J. in *Income Tax v. B. Ltd.*, [1973] E.A. 322, of which Mr. Deverell particularly complains, as being per incuriam, that is to say he is submitting that the judge clearly did not have in mind the statutory definition of industrial building in paragraph 5 of the Schedule. Since that was the basis for the judge's decision, which, on the face of it, though not on all fours, would appear to be against him, Mr. Deverell urges that Chanan Singh, J.'s words at the end of page 2 of the judgment, so strongly relied on by Mr. Bishota, are not to be applied in this case.

I have read the memorandum of appeal in that case and certainly it would seem that the definition of an industrial building was only indirectly in point. In that case of course no machinery was installed at all, which is a quite different position, so the taxpayers say, from the present one where it was installed by a company of whom they were the directors.

Returning to the *U. Ltd.* case, Harris, J. rejected the Commissioner-General's contention that the investment deduction is intended to constitute a "once and for all" exercise, and upheld the taxpayers appeal with the result I have already stated.

Mr. Deverell earlier submitted that if the appellant's contention were correct, it would follow that if the firm installed some minor piece of machinery and the company, as lessee, installed the rest, that would be sufficient for deduction. He may have had in mind some analogy based on *Income Tax v. Kiganga Estates* (supra). But this case was not cited and as in my view it is not in point I do not propose to consider it further. Neither do I wish to be taken as agreeing with Mr. Deverell's submission that the appellant's contention would have this result. I think the court would have to look at the realities of the matter in each particular case.

While it was not directly submitted, it was certainly suggested that the insertion by the legislature of the word "both" in sub-paragraph (*a*) had some thing to do with the argument advanced for the taxpayer in *S. Ltd. v. Income Tax*, [1973] E.A. 448, which was then, so to speak, sub judice. It is noteworthy that the old section was operative when that case was being considered and yet the court decided in favour of the Commissioner-General. Portions of this judgment were strongly relied on by Mr. Bishota. At page 4 there occurs the following passage

> "The use of 'and' does suggest I think the capital expenditure must be a total of the purchase price and the cost of refitting. The refitted ship must be for use in the shipowner's business and the entire capital expenditure must have been incurred before such use. This, in my view, is the plain meaning of the paragraph."

Just a moment before Chanan Singh, J. said

> "The capital expenditure must be incurred 'on the purchase, and subsequent refitting for the purposes of such business'. The first difficulty is the existence of the comma after the word 'purchase'. The conjunctive 'and' would not require a comma before it."

So despite the use of the comma in the then existing legislation, Chanan Singh, J. regarded the use of the word "and" as conjunctive and cumulative. He agreed however that the word must sometimes be read as "or" to give the law a sensible meaning. This is what happened in relation to a will in *Attorney-General for New Zealand v. Brown*, [1917] A.C. 393, where it was held that the words "such charitable benevolent religious and educational institutions" should be read as

if the words were read disjunctively, in other words as if there was an "or" inserted between "charitable" and "benevolent". Accordingly the gift failed for uncertainty. It was, their lordships held, impossible to use the word "and" in that case as a link intended to join all the words together and make the gift available only for such institutions and objects as satisfied each one of the conditions represented by each of the separate words. It is quite true that that decision was governed by precedent, but it is equally clear from the judgment that their Lordships regarded the gift as impossible to construe unless the word "and" was meant disjunctively.

In *S. Ltd.* at p. 450 there occurs a passage which, though Mr. Bishota concedes it is obiter, is one upon which he strongly relies.

> "Another difficulty is presented by the use of the word 'and' in other clauses of the same paragraph. In clauses (*b*), (*c*) and (*d*) investment deduction is to be calculated on the cost of construction of industrial buildings 'and on the purchase and installation of machinery.' The whole arrangement will become useless if the word 'and' is here read 'or'."

The last case cited by Mr. Bishota was *P. Ltd. v. Income Tax*, H.C. (unreported) C.A. 29 of 1967 where Miller, J. said at pp. 6 and 7

> "I have not the slightest doubt that the true purpose and intention of this Part V of the Schedule is to grant deduction with respect to expenditure through investment for the industrial purposes treated in this part of the Schedule. I would go further and suggest that throughout the relevant sub-paragraphs there is an unmistakable accent of a call upon the prospective claimant to show that as distinct from other preparatory matters he has purchased and installed industrial machinery now in use as part of the entire country's industrialisation. I believe that the principle dealt with in the Schedule forms part of what in some jurisdictions is covered in their industries Aid and Encouragement Acts. Put simply the object is money deduction in view of money invested in industry."

However that case was concerned with a claim for deduction under sub-paragraph (*e*), and in my view the above quotation is, to that extent, obiter.

In my opinion there can be no doubt that, whether it is a statute, will or other document which is being considered the word "and" has primarily a conjunctive meaning – see Romer, J. in *Re Welford's Will Trusts, Davidson v. Davidson*, [1946] 1 All E.R. 23 at p. 25. The judge felt that this primary meaning should be attributed to the word, rather than a secondary and unusual meaning, in the absence of some compelling text to the contrary. He went on to give the word "and" a conjunctive meaning notwithstanding that, so construed, it involved an ellipsis.

This view gains support from the case quoted at the beginning of the definition of "and" in Stroud's Judicial Dictionary, 4th ed. at page 131.

> "*AND.* (1) 'And' has generally a cumulative sense, requiring the fulfilment of all the conditions that it joins together, and herein it is the antithesis of OR. Sometimes, however, even in such a connection, it is, by force of a context, read as 'or'. Thus where a lessee underlet, with a proviso, on breach of covenant, enabling him and his lessor to re-enter; held, that he or his lessor might re-enter on breach (*Doe d. Bedford v. White*, 4 Bing. 276)."

Dealing with the latter part of that quotation, it is obvious that that must be so, since it would clearly be absurd to require that *both* the lessor and the lessee should have to re-enter on breach. There was, therefore, in that case, a compelling

reason to the contrary, so the secondary meaning of this primarily conjunctive word had to be applied.

Coming back to Chanan Singh, J.'s judgment in the *S. Ltd.* case the comma preceding the word 'and' which he regarded as a difficulty, has been transposed in the present sub-paragraph (*a*), but presumably his decision, particularly with the insertion of the word "both", would apply a *fortiori* to the present sub-paragraph (*a*).

With regard to the present section (*b*) formerly (*c*) I am bound to say that I find myself in respectful and complete agreement with his views, even though they were obiter, in the *S. Ltd.* case. I see no ground whatever for construing the word "and" in any way other than its primary meaning. In my view neither the context nor the surrounding circumstances compel any interpretation other than a conjunctive and cumulative one.

It follows that, in my view, it is necessary for the same taxpayer to have incurred both expenditures before the respective investments may qualify. There is nothing in *Income Tax v. B. Ltd.* [1973] E.A. 322 that I can see that conflicts with this. It may be that had the taxpayers consulted advocates before the transactions concerned rather than afterwards, the result would have been different. But that is another matter.

In the result the Commissioner General's appeal in all 3 cases is allowed with costs.

*Order accordingly.*

For the appellant:
*D. M. K. Dishota* (Principal Assistant Counsel)

For the respondent:
*W. S. Deverell* (instructed by *Kaplan & Stratton*, Nairobi)

## Barclays Bank of Uganda Ltd v Lugobe
[1973] 1 EA 461 (CAK)

| | |
|---|---|
| **Division:** | Court of Appeal at Kampala |
| **Date of judgment:** | 24 September 1973 |
| **Case Number:** | 28/1973 (114/73) |
| **Before:** | Sir William Duffus P, Spry VP and Law JA |
| **Sourced by:** | LawAfrica |
| **Appeal from:** | The High Court of Uganda – Lubogo, Ag. J. |

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*[1] Civil Practice and Procedure – Dismissal of suit – No fresh suit may be instituted – Does not apply to counterclaim already in existence – Civil Procedure Rules O.* 9, *rr.* 19, 20 (*U.*).

**Editor's Summary**

The appellant filed an action claiming money from the respondent. While this action was still in the court file the respondent filed action against the appellant who in the second suit counterclaimed for

the amount originally claimed in the first suit. Thereafter the first suit was struck out on the non-appearance of the appellant.

The respondent then contended that the counterclaim should be struck out and the High Court held that it was subject to the provisions of O. 9, rr. 19 and 20.

On appeal the appellant submitted that the counterclaim was already in existence at the date of the dismissal of the first suit.

**Held –**

(i) the rule only prohibited the bringing of a fresh suit and did not allow the striking out of a counterclaim already on the record.

Appeal allowed.

**No cases referred to in judgment.**

**Judgment**

The following considered judgments were read. **Sir William Duffus P:** This appeal arises out of a dispute between the appellant bank and one of its customers the respondent William Lugobe. In this action the respondent seeks to recover Shs. 180,965/- for amounts withdrawn from his account by one of the appellant bank's staff by means of forged cheques.

In its defence the appellant admitted liability to the extent of Shs. 77,200/- but counterclaimed for Shs. 182,271/25 for the balance due on an overdraft given to the respondent. Before this date the appellant had already sued the respondent in another action to recover the balance then due on the overdraft, and this action had, on the non-appearance of the appellant been dismissed with costs under the provisions of O. 9, r. 19 of the Civil Procedure Rules.

The respondent then applied by motion to dismiss the appellant's counterclaim on the ground that their claim was barred by the doctrine of res judicata as set out in s. 7 of the Civil Procedure Act. In his decision the judge decided that the matter was not res judicata but he held that the counterclaim was subject to the provisions of O. 9, rr. 19 and 20, and that a fresh suit could not be brought and he struck out the counterclaim to the extent that it included amounts covered in the former suit. This appeal is against that order.

I would here set out the dates of the relevant proceedings.

| | *Filed* |
|---|---|
| First action – (suit 890 of 1971) by appellant Bank. | November 1971 |
| Second action (suit 108 of 1972) by respondent. | February 1972 |
| Counterclaim – (suit 108 of 1972) by appellant Bank. | June 1972 |
| Suit 890 of 1971 struck out under Order 9 rule 19. | September 1972 |

A counterclaim would for the purposes of this appeal be a separate suit, so that there were in fact two subsisting claims or suits for the same cause of action by the respondent Bank against the respondent at the time when suit 890 of 1971 was called on for hearing in September 1972.

The motion was based on the doctrine of res judicata. The trial judge quite rightly, in my view rejected this claim and there has been no cross appeal. The defence of res judicata is set out in s. 7 of the Civil Procedure Act and clearly the issue had not been heard and finally decided by the Court.

It is agreed that the court in dismissing the former suit 890 of 1971 acted under the provisions of O. 9, r. 19. The judge in hearing this motion applied the provisions of r. 20, the relevant portion of which states:

> "20(1) Where a suit is wholly . . . dismissed, under rule 19 of this Order, the plaintiff shall be precluded from bringing a fresh suit in respect of the same cause of action. But he may apply for an order to set the dismissal aside. . . ."

The issue depends on the interpretation of the words

> "be precluded from bringing a fresh suit."

Mr. Kateera for the appellant submitted the counterclaim was already in existence and that therefore that r. 20 could not apply. I agree that this appears to be the plain and simple meaning of the rule. A "fresh" suit must apply to a suit not brought and not in existence. The appellant, in pursuing its counterclaim,

is maintaining and continuing with an already "existing" suit. The rule specifically relates to a "fresh" suit and not to an "existing suit".

If the judge's ruling was correct then the appellant would have to seek to set aside the order of dismissal and have the suit re-instated, and the same position would again arise of having two existing suits for the same issue, and the appellant would likely to be again further penalized, for the appellant had to pay the costs on the dismissal of suit 890 of 1971, by either having one or other of the trial of the suits stayed under s. 6 of the Civil Procedure Act or struck out or otherwise dealt with under O. 6, r. 29, or perhaps dealt with by the Court under its inherent jurisdiction to prevent an abuse of its process.

I am of the view that the judge was wrong in ordering that a portion of the counterclaim be struck out and I would therefore allow the appeal and I would quash the order striking out a portion of the counterclaim and in lieu thereof substitute an order dismissing the motion with costs to the appellant and I would further grant the appellant the costs of this appeal, and as the other members of the Court agree it is so ordered.

**Spry VP:** I agree.

**Law JA:** I also agree.

*Appeal allowed.*

For the appellant:
*J. Kateera* (instructed by *Hunter & Greig*, Kampala)

For the respondent:
*L. Sebalu*

## Davies and another v Mistry
[1973] 1 EA 463 (CAN)

| | |
|---|---|
| **Division:** | Court of Appeal at Nairobi |
| **Date of judgment:** | 15 September 1973 |
| **Case Number:** | 24/1973 (115/73) |
| **Before:** | Sir William Duffus P, Spry VP and Law JA |
| **Sourced by:** | LawAfrica |
| **Appeal from:** | The High Court of Kenya – Madan, J. |

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*[1] Architect – Fees – Suit for – Not barred by ultra vires by-law providing for arbitration – Architects & Quantity Surveyors By-Laws, A.* 7 (*K.*).

*[2] Jurisdiction – Court, of – Ousted by by-law providing for arbitration – By-Law ultra-vires – Architects & Quantity Surveyors By-Laws, A.* 7 (*K.*).

**Editor's Summary**

The appellants were architects. They sued the respondent for fees for their professional services. After filing a defence the respondent applied for the plaint to be struck out on the ground that such a claim could only be made by arbitration under the Architects and Quantity Surveyors By-Laws. The judge struck out the suit and the appellants appealed contending that by-law A. 7 was ultra vires as being outside the rule-making power and as ousting the jurisdiction of the court to hear disputes. The respondent contended that the by-law merely provided a machinery for settlement of disputes arising out of fees which it had power to prescribe, that it was only binding on the architect and was only a condition precedent to the bringing of a suit.

**Held –**

(i) the by-law provides that either party must go to arbitration and so purports to oust the jurisdiction of the court;

(ii) the Act is not intended to govern the contractual relations of architects and clients other than by regulating the fees architects may charge;

(iii) there was no power to enact rules depriving any party of his access to the courts (*Pyx Granite Co. v. Ministry of Housing* (5) followed).

Appeal allowed.

**Cases referred to in judgment:**

(1) *Attorney-General v. Great Eastern Railway Co.* (1880), 5 A.C. 473.

(2) *Goldsack v. Shore*, [1950] 1 K.B. 708; [1950] 1 All E.R. 276.

(3) *District Commissioner Kiambu v. R.*, [1960] E.A. 109.

(4) *Francis v. Yiewsley and West Drayton U.D.C.*, [1957] 2 Q.B. 136; [1957] 1 All E.R. 825.

(5) *Pyx Granite Co. v. Ministry of Housing*, [1958] 1 Q.B. 554; [1958] 1 All E.R. 625; [1960] A.C. 26; [1959] 3 All E.R. 1.

**Judgment**

The following considered judgments were read. **Spry VP:** The appellants are architects. They filed a suit against the respondent, claiming a sum alleged to be due for professional services and disbursements. The respondent entered an appearance and filed a defence. Before the suit came on for hearing, the respondent filed a notice of motion, asking that the plaint be struck out on the ground that the suit was incompetent in that the appellants' claim could only be determined by reference to arbitration under the Architects and Quantity Surveyors By-Laws. The application was heard and allowed, the plaint was struck out and the respondents were awarded the costs of the suit and the application.

On the hearing of the application, one of the arguments for the appellants was that the by-law on which the respondent was relying was ultra vires. The judge ruled that it was not. The first ground of appeal argued by Mr. Deverell, for the appellants, was that the judge was wrong in so holding and it will be convenient to begin by considering this question.

The Architects and Quantity Surveyors Act (Cap. 525) is described in the long title as "An Act to provide for the registration of architects and quantity surveyors". It is a short act of sixteen sections. These restrict the right to use the terms "architect" and "quantity surveyor", establish a Board to control the two professions, provide for registration of architects and quantity surveyors, prescribe the necessary qualifications and give the High Court power to review any refusal of registration and, on the application of the Board, to sanction the suspension of any architect or quantity surveyor guilty of professional misconduct. There is a section empowering the Board to make by-laws, in the following terms:

> "5. The Board may from time to time, subject to the confirmation of the Minister, make by-laws for all or any of the following purposes."

There follow thirteen paragraphs, of which it is agreed that the only one relevant to the present issue is:

> "(*f*) for the scale of fees to be charged by architects and quantity surveyors for professional advice, services rendered, and work done;"

In exercise of the power to make by-laws, the Board enacted the Architects and Quantity Surveyors By-Laws, which were duly confirmed by the Minister. These include the following:

> "38. Subject to the provisions of the Act and of these By-Laws, the

> Conditions of Engagement and the Scale of Professional Charges shall be those contained in the Fourth Schedule to these By-Laws as from time to time amended or reproduced by the Board."

The Fourth Schedule as originally enacted was replaced by the Architects and Quantity Surveyors (Amendment) By-laws 1968, which includes the following clauses:

> "A.6. Disputes
>
> (*a*) Any difference or dispute may by agreement between the parties be referred to the Board for an opinion, provided always that such an opinion is sought on a joint statement of undisputed facts, and the parties undertake to accept it as final.
>
> A.7. *Arbitration*
>
> (*a*) Where any difference or dispute arising out of the Conditions of Engagement and Scale of Professional Fees and Charges cannot be determined in accordance with paragraph (*a*) of clause A.6, it shall be referred to the arbitration by a person to be agreed between the parties, or failing agreement within fourteen days after either party has given the other a written request to concur in the appointment of an arbitrator, to a person to be nominated at the request of either party by the President of the East Africa Institute of Architects."

Mr. Deverell's argument on this aspect of the appeal was based on two propositions: first, that the Conditions of Engagement were outside the powers conferred on the Board by section 5 and outside the scope of the Act, and, secondly, that if, as the judge held, by-law A. 7. "ousts the jurisdiction of the court to hear such a dispute", it was bad, in that the jurisdiction of the court could only be ousted by the Act itself. For this latter proposition, Mr. Deverell relied on the English case of *Goldsack v. Shore*, [1950] 1 K.B. 708 and the East African case of *District Commissioner Kiambu v. R.*, [1960] E.A. 109.

Mr. Lakha, for the respondent, contended that the by-law was validly made under s. 5 (*f*) because it did no more than provide a machinery for the settlement of disputes incidental to or consequent upon the scale of fees which the Board had, unquestionably, power to prescribe. He relied on the English case of *Attorney-General v. Great Eastern Railway Co.* (1880), 5 A.C. 473 for the proposition that the doctrine of ultra vires ought not to be unreasonably applied to matters which might fairly be regarded as incidental to or consequential upon that which the legislature has authorised. In answer to a question (he had not given notice of grounds for affirming the decision other than or additional to those relied on by the trial judge), he submitted that the judge had gone beyond what the issues of the case required in saying that the by-law ousted the jurisdiction of the court: he suggested that it was only binding on the architect and not on the client and that it was really more of the nature of a condition precedent to the bringing of a suit.

With respect, I am not persuaded by Mr. Lakha. I think that the plain meaning of by-law A. 7. is that either party to a dispute must go to arbitration and therefore that the judge was right in regarding it as purporting to oust the jurisdiction of the court and wrong in holding that it was intra vires. The Act is clearly intended to regulate the professions of architects and quantity surveyors and that reasonably includes regulating the fees which they may charge. There is not a word in the Act to suggest that it is intended to govern the contractual relations of architects and their clients. S. 5 is expressed in narrow terms and shows clearly that the legislature only intended to give the Board limited powers to legislate for the profession by by-laws. I cannot accept that a by-law which

purports to compel architects and client to go to arbitration and deprive them of their right of recourse to the courts is incidental to the fixing of scales of fees. S. 5 empowers the Board to lay down a scale of fees and an architect who contravenes any such by-law exposes himself to the risk of disciplinary proceedings. But in my opinion, s. 5 gives the Board no power to interfere in the contractual arrangements between architect and client and no power to deprive either of his access to the courts to resolve any dispute with the other. I would repeat the words of Viscount Simonds in the English case of *Pyx Granite Co. v. Ministry of Housing*, [1960] A.C. 260:

> "It is a principle not by any means to be whittled down that the subject's recourse to Her Majesty's courts for the determination of his rights is not to be excluded except by clear words."

I would adopt those words, substituting only "the courts of the Republic" for "Her Majesty's courts", to Kenya and hold that the right of access to the courts of the Republic may only be taken away by clear and unambiguous words of the Parliament of Kenya.

If I am right in this, it is unnecessary to deal with the numerous arguments submitted to us for consideration in the event of our holding the by-law to be intra vires.

I would allow the appeal, set aside the ruling and decree of the High Court, restore the plaint and remit the proceedings to the High Court to hear and determine the suit in the normal way. I would award the appellants their costs of the notice of motion and their costs of this appeal.

**Law JA:** I have had the advantage of reading in draft the judgment prepared by Spry, V.-P. with which I am in full agreement.

The Architects and Quantity Surveyors Act (Cap. 525) was enacted to provide for the registration of architects and quantity surveyors, and by s. 5 the Board established under s. 4 is empowered to make by-laws for various specified purposes, one of which is the following:

> "(*f*) for the scale of fees to be charged by architects and quantity surveyors for professional advice, services rendered, and work done."

The Architects and Surveyors By-Laws, as amended in 1968, contain a by-law numbered A. 7 purporting to provide for compulsory arbitration in the event of any difference or dispute arising out of conditions of engagement and scale of professional fees and charges. The trial judge held that this by-law was validly made and had the effect of ousting the jurisdiction of the courts. With respect, I cannot agree. There is a presumption in favour of jurisdiction, and in the words of McNair, J. in *Francis v. Yiewsley and West Drayton U.D.C.*, [1957] 2 Q.B. 136 at p. 148:

> "It is a fundamental rule that if a subject is to be deprived of a right of coming to these courts it must be in clear words,"

a dictum which was approved by Lord Denning M.R. in *Pyx Granite Co. v. Ministry of Housing*, [1958] 1 All E.R. 625 and by the House of Lords on appeal in the case of the same name reported in [1960] A.C. 260.

I can see nothing in the Act, or in the section conferring the power to make by-laws, which justifies even the remotest implication that the legislature intended to withdraw from the jurisdiction of the courts disputes between architects and their clients relating to the payment of fees and charges. I entertain no doubt whatsoever that in so far as it purports to do so, by-law A. 7 is ultra-vires.

For these reasons I agree that this appeal succeeds, and I concur in the order proposed by the Vice-President.

**Sir William Duffus P:** I have read and entirely agree with the judgments of Spry, V.P. and Law, J.A. The appeal will be allowed in accordance with the order set out in the judgment of the learned Vice-President.

*Appeal allowed.*

For the appellants:
*W. S. Deverell* (instructed by *Kaplan & Stratton*, Nairobi)

For the respondent:
*A. A. Lakha*

# Usin and another v Republic
[1973] 1 EA 467 (CAK)

| | |
|---|---|
| **Division:** | Court of Appeal at Kampala |
| **Date of judgment:** | 24 September 1973 |
| **Case Number:** | 48/1973 (116/73) |
| **Before:** | Sir William Duffus P, Spry VP and Law JA |
| **Sourced by:** | LawAfrica |
| **Appeal from:** | The High Court of Uganda – Opu J. |

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*[1] Evidence – Plea – Words used by accused when pleading not guilty – Must be ignored.*

*[2] Evidence – Unsworn statement by accused – Not evidence against co-accused.*

*[3] Evidence – Unsworn statement by accused – Not a confession – Cannot be taken into consideration against co-accused.*

**Editor's Summary**

The appellants were convicted of attempted murder on the evidence set out in the judgment. The judge stated that he took into account the words in which the first appellant pleaded not guilty and he relied upon the unsworn statement of the second appellant as evidence against the first appellant. This statement was entirely exculpatory and was not a confession.

For the second appellant it was submitted that there were discrepancies between the complainant's statement to the police and his sworn evidence.

**Held –**

(i) when a plea of not guilty is entered any words spoken in answer to the charge must be ignored;

(ii) an unsworn statement is not evidence against a co-accused;

(iii) as the statement was not a confession it could not be taken into consideration against a co-accused;

(iv) in the circumstances the judge was entitled to rely on the sworn evidence given by the complainant.

Appeal of first appellant allowed.

**Cases referred to in judgment:**

(1) *R. v. Pirmin bin Kunjanga* (1935), 2 E.A.C.A. 64.

(2) *R. v. Mgundulwa Jalu* (1946), 13 E.A.C.A. 169.

(3) *Patrisi Ozia v. R.*, [1957] E.A. 36.

(4) *Ezera Kyabanamaizi v. R.*, [1962] E.A. 309.

**Judgment**

The considered judgment of the court was read by **Law JA:** The appellants were convicted of the offence of attempted murder,

contrary to s. 197 (*a*) of the Penal Code, and were each sentenced to 10 years imprisonment and 24 strokes of corporal punishment. We would say at the outset that the sentences of corporal punishment were illegal. This is conceded by the state attorney. The punishment for attempted murder contrary to s. 197 is a maximum of life imprisonment. S. 198, which creates the offence of attempted murder by a convict, provides for the same maximum sentence of imprisonment, "with or without corporal punishment". Those words are omitted from the text of s. 197, so that the imposition of corporal punishment on a conviction under that section is not authorised by law. The appeals against sentence by both appellants must in any event succeed to the extent of setting aside the sentences of corporal punishment.

The main question in this appeal however is whether the convictions passed on the appellants can be supported. The case against them is to be found mainly in the evidence of the complainant Matayo Chelopot. He deposed that on 18 March 1972, at Swam Trading Centre, he was accused by a shop-keeper of stealing clothes. he was taken before the Muluka chief, the second appellant, who ordered him to be tied up. He was then slashed several times by the first appellant, who is a soldier in the Uganda Army, in the presence and on the instructions of the second appellant. The complainant was then dragged by both appellants to the Swam river, and pushed into the river. The appellants went away. The complainant was able to hold on to a piece of wood, and after some time freed himself from his bonds and dragged himself out of the river. He spent three days on the banks of the river, after which time he was found by passers-by and taken to hospital. The medical evidence is that he was suffering from 7 cut wounds to various parts of his body. If the complainant's evidence can be relied on, then in our opinion he was clearly the subject of an attempted murder. The pushing of a severely wounded man, whose hands are tied, into what was described as a big and fast-flowing river, can only have been with the intention that he should be killed and his body washed away downstream.

Mr. Odimbe, who represented both appellants on the hearing of this appeal, submitted that by reason of various misdirections and nondirections in the judgment, the convictions in the case of each of them should be set aside. In respect of the first appellant, Mr. Odimbe made the following points. When charged, the first appellant is recorded as having said, inter alia "it is the Muluka chief who induced me to attempt to kill this man". A plea of not guilty was entered on his behalf. In the course of his judgment, the judge said, with reference to the words quoted above:

> ". . . . his plea must be taken into account."

Mr. Odimbe complained that this remark represents a grave misdirection, and we agree with him. When a plea of not guilty is entered, any words used by the accused in answer to the charge, which amount to a derogation of the plea, must be disregarded completely, see *R. v. Pirmin bin Kunjanga* (1935), 2 E.A.C.A. 64 and *R. v. Mgundulwa Jalu* (1946), 13 E.A.C.A. 169. Secondly, Mr. Odimbe pointed out that the judge had relied, in convicting the first appellant, on the unsworn statement made by the second appellant in his defence, which the judge said amounted to evidence against the first appellant which was corroborated by the evidence of the complainant. Again we agree with Mr. Odimbe that in these respects the judge misdirected himself. An unsworn statement by a co-accused is not evidence against another accused (*Patrisi Ozia v. R.*, [1957] E.A. 36), nor does it amount to accomplice evidence capable of acceptance after corroboration (*Ezera Kyabanamaizi v. R.*, [1962] E.A. 309). Furthermore, the second appellant's unsworn statement was entirely exculpatory, and could not be taken into consideration against the first appellant under s. 28 of the Evidence Act, which applies only to confessions.

As regards the second appellant. Mr. Odimbe submitted that discrepancies in the evidence against him given by the complainant at the trial, and in the complainant's statement to the police one month after the alleged offence, were so great as to render his evidence in court unworthy of credit. This matter was considered by the judge, who noted that the complainant's statement to the police was made at a time when he was gravely ill, and in a language (kiswahili) with which the complainant was unfamiliar, because no interpreter familiar with his own language was available, and it was recorded in English. As this court has often held, it is desirable that statements should, so far as possible, be recorded in the language of the maker. The judge preferred to rely on the evidence given at the trial by the complainant, and we agree with him in this respect. This evidence fully implicated the second appellant, and was believed both by the assessors and the judge. We can see no reason for thinking that the second appellant was wrongly convicted, and his appeal against conviction must in our opinion be dismissed, and we order accordingly. As regards sentence, we agree with the judge that this was a serious offence, especially having regard to the second appellant's official position as a Muluka chief, and we dismiss his appeal against the sentence of 10 years imprisonment. The sentence of 24 strokes of corporal punishment is however set aside for the reasons given earlier in this judgment.

The position of the first appellant has caused us real concern. In the light of the judge's acceptance of the reliability and veracity of the complainant's evidence, there seems to be no real doubt as to his guilt. On the other hand, as has already been noted in this judgment, the judge misdirected himself in several respects in his consideration of the first appellant's case. He took into consideration words spoken by the first appellant when making his answer to the charge, which in the event was entered as a plea of not guilty. He relied, in convicting the first appellant, on an unsworn, exculpatory statement made in his defence by the second appellant. What is more, he misdirected himself in saying that the first appellant had admitted being at the Swam river on the day the complainant was thrown in. He did not say this. He said he heard that people had thrown the complainant into the river, whereupon he went away.

The state attorney, whilst appreciating the existence and effect of these misdirections, submitted that in view of the acceptance by the assessors and judge of the complainant's evidence, these errors had not occasioned a failure of justice and could be cured having regard to the provisions of s. 347 of the Criminal Procedure Code. We have given careful consideration to this submission, and find ourselves unable to hold, with any degree of certainty, that the appellant must have been convicted had the judge not misdirected himself in the particulars set out above. We accordingly find ourselves constrained to hold, with some reluctance, that the appeal of the first appellant must succeed, and we order accordingly. The conviction passed on him is quashed, and the sentence set aside. Unless held on some other charge, he must be released from custody forthwith.

*Order accordingly.*

For the appellants:
*M. Odimbe*

For the respondent:
*F. Lulume*

## Uganda v Zubairi and another
[1973] 1 EA 470 (CAK)

**Division:** Court of Appeal at Kampala

| | |
|---|---|
| **Date of judgment:** | 24 September 1973 |
| **Case Number:** | 93/1973 (117/73) |
| **Before:** | Sir William Duffus P, Spry VP and Law JA |
| **Sourced by:** | LawAfrica |
| **Appeal from:** | The High Court of Uganda, Musoke, J. |

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*[1] Criminal Practice and Procedure – Bail – Capital offence – Bail must be granted by any court after one year.*

*[2] Criminal Practice and Procedure – Bail – Appeal – No appeal from grant of bail by High Court.*

*[3] Criminal Practice and Procedure – Committal – Magistrate must either remand in custody or on bail and is thereafter functus officio – Magistrates' Courts Act,* 1970, *s.* 177 (*U.*).

**Editor's Summary**

On 1 February 1973 the respondents were committed to trial on charges of murder. They had been remanded in custody since 7 June 1973. On 22 June 1973 application was made for bail to a magistrate under s. 74 (*a*) of the Magistrates' Courts Act, 1970. It was contended that as they had been in custody over 365 days there could be no further remand.

The magistrate held that the maximum period of remand related to remand into custody while the police were investigating and it did not apply after the preliminary enquiry had been held and the respondents had been committed to trial.

The decision was referred to the High Court by means of an affidavit called "Application/Appeal". The judge dealt with it as an application while referring to it as an appeal. Bail was granted to both respondents.

On appeal to the Court of Appeal against the decision,

**Held –**

(i) any court is required to grant bail in respect of an offence punishable with death where an accused has been in custody for 365 days following the first order of remand unless he has pleaded guilty;

(ii) on any application for bail the court must take into account the provisions of either s. 14A or s. 74A of the Magistrates' Courts Act, 1970;

(iii) when a magistrate commits a person for trial he is required to remand or release him on bail and at that time must consider the provisions of s. 74A;

(iv) a magistrate who has committed for trial is functus officio and cannot entertain an application for bail;

(v) thereafter the accused has a right to apply to the High Court for bail;

(vi) the proceedings in the High Court were in substance an application for bail;

(vii) no appeal lies from the High Court's decision to grant bail.

Appeal struck out.

**No cases referred to in judgment.**

**Judgment**

The considered judgment of the court was read by **Spry VP:** The respondents were first brought before the court of a chief magistrate on 7 June 1972, on a charge of murder. There were seventeen

adjournments, because the Republic was not ready to proceed, before the committal proceedings began on 1 February 1973, and ended with the committal for trial of both respondents.

On 22 June 1973, an application for bail was made to a magistrate grade I on behalf of Zubairi Sentongo, the first respondent. The basis of the application was that under s. 74A of the Magistrates' Courts Act, 1970 (as inserted by Decree No. 11 of 1972), the respondents could not lawfully be further remanded in custody, as they had already been in custody for more than three hundred and sixty-five days. The application was opposed by the Republic, the State Attorney arguing that the section ceased to be relevant when the respondents were committed for trial by the High Court. This submission was upheld by the magistrate, who held that the section related only to persons who were still the subject of police investigation and not to persons committed for trial. The application was dismissed.

The matter was then referred to the High Court by means of an affidavit, which was described as an "Application/Appeal". The judge referred to it as an appeal, but in fact dealt with it as an application, and in the event granted bail to both respondents. From that decision, the Republic now seeks to appeal.

Before us, Mr. Kayondo raised a preliminary objection that the appeal was incompetent, as there is no right of appeal from a grant of bail by the High Court. Mr. Tsekooko conceded that if the proceedings before the High Court had been the hearing of an application, the appeal was incompetent, but he contended that these proceedings ought to be regarded as an appeal, and submitted that if the proceedings were appellate by nature, an appeal lay from the decision of the High Court by virtue of s. 337 of the Criminal Procedure Code.

The general power to grant bail where a person is brought before a magistrate's court is contained in s. 74 of the Magistrates' Courts Act, 1970, but that section does not empower any magistrate to grant bail where the accused person is charged with an offence punishable with death.

S. 74A, however, empowers any court to grant bail to a person charged with an offence punishable with death in certain circumstances, that is to say, where the accused has been in custody for three hundred and sixty-five days following the first order of remand, except in the case of a person who has pleaded guilty. Indeed, the court is required to grant bail in such cases, save in certain exceptional circumstances set out in s. 74B.

Both s. 74A of the Magistrates' Courts Act and s. 14A are expressed as restricting the power of courts to remand accused persons in custody and neither is expressed to confer on accused persons any right to apply for bail, but we think that where under any other provision a court may grant bail, it must, on an application for bail, take into account the provisions of s. 74A or 14A, as the case may be.

The High Court has a general power to grant bail, either before committal, under s. 74 (2) (*b*) of the Magistrates' Courts Act, 1970, or after committal, under ss. 14 and 51 (4) of the Trial on Indictments Decree, and is, in addition, bound by the provisions of s. 74A of the Magistrates' Courts Act, 1970, and the corresponding provision, s. 14A of the Trial on Indictments Decree (as amended by Decree No. 11 of 1972).

We would remark at this stage that at the end of the committal proceedings, the magistrate is required by s. 177 of the Magistrates' Courts Act, 1970, to commit the accused person for trial at the next convenient sessions of the High Court and to remand him in custody or admit him to bail. As we have already remarked, the magistrate cannot admit a person charged with a capital offence

to bail, except under s. 74A. We think that once a magistrate has complied with s. 177, he is functus officio and cannot entertain an application for bail.

It follows that, in our opinion, the decision of the magistrate on the application of 22 June 1973, was correct, although as a matter of form he should have struck it out as incompetent, rather than dismiss it. We have thought it proper to deal with this, although not strictly part of the issue before us, in the hope of clarifying the position.

Mr. Tsekooko based his submission on s. 75 (3) of the Magistrates' Courts Act, 1970. That sub-section reads as follows:

> "(3) Where bail is not granted under the provisions of section 74 of this Act, the court shall:
>
> (*a*) record the reasons why bail was not granted; and
>
> (*b*) inform the applicant of his right to apply for bail to the High Court or to a Chief Magistrate, as the circumstances may require."

Mr. Tsekooko tried to persuade us that the word "apply" in paragraph (*b*) should be read as "appeal", largely on the ground that the recording of reasons would be preliminary to an appeal, rather than to a new application.

With respect, we are not persuaded by these arguments. In the first place, sub.s. (3) is not strictly relevant because, as we have said, the magistrate could not grant bail under s. 74 but only under s. 74A. Secondly, paragraph (*b*) does not purport to create any right, whether of application or appeal, but merely requires the accused person to be informed of such right as he has, and he has a right of application, as set out above, but, so far as we are aware, no right of appeal. In any case, it would require very weighty reasons to persuade us that the legislature had inadvertently used the word "apply" when it intended the word "appeal". We are quite satisfied that s. 75 does not create any right of appeal.

We are fully satisfied that the proceedings in the High Court were in substance an application for bail under ss. 14 and 14A (1) of the Trial on Indictments Decree, even though not so described, and we think that it was as such that they were determined by the judge. That being so, it is unnecessary to consider whether s. 337 of the Criminal Procedure Code Act would have given a right of second appeal to this Court.

The final question, then, is whether any appeal lies from the grant of bail by the High Court. Mr. Tsekooko conceded that there was none and we have studied all the provisions conferring jurisdiction on this Court in Uganda and we are satisfied that there is no right of appeal to us from the grant of bail by the High Court and that we have no jurisdiction to entertain any such appeal. Accordingly, the appeal is struck out as incompetent.

*Order accordingly.*

For the appellant:
*J. W. N. Tsekooko* (Senior State Attorney)

For the respondents:
*H. M. B. Kayondo*

## Raphael v Republic
[1973] 1 EA 473 (CAD)

| | |
|---|---|
| **Division:** | Court of Appeal at Dar es Salaam |
| **Date of judgment:** | 13 August 1973 |
| **Case Number:** | 55/1973 (118/73) |
| **Before:** | Sir William Duffus P, Spry VP and Law JA |
| **Sourced by:** | LawAfrica |
| **Appeal from:** | The High Court of Tanzania – Mwakasendo, Ag. J. |

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*[1] Appeal – Dismissal – Summary – Can be ordered only when no doubt of guilt and appeal manifestly frivolous or without substance – Criminal Procedure Code s.* 317 (*T.*).

*[2] Evidence – Burden of Proof – Alibi – No burden of proof on accused.*

*[3] Evidence – Alibi – Late disclosure of – Goes merely to weight.*

*[4] Evidence – Affidavit – Criminal prosecution – Affidavit not receivable in evidence.*

**Editor's Summary**

The appellant was convicted of forgery, uttering false documents and personation.

He appealed to the High Court raising a number of points of law. The appeal was summarily dismissed under s. 317 (1) of the Criminal Procedure Code.

On further appeal the appellant raised the same points, that affidavit evidence had been received of the non-existence of a witness the appellant had asked to be summoned, and misdirections that the appellant should have disclosed his defence of alibi at the earliest possible opportunity, and that the burden of proof was on him to account for so much of the time of the transaction as to render it impossible for him to have committed the crime.

**Held –**

(i) not only must there be no doubt of the appellant's guilt but also the appeal must be manifestly frivolous or without substance before it can be dismissed summarily;

(ii) the affidavit should not have been received in evidence;

(iii) late disclosure of an alibi may go to weight, but in this case there was a reason for the late disclosure;

(iv) an accused putting forward a defence of alibi does not assume any burden of proof (*Aniseth v. Republic* (2) followed);

(v) the cumulative effect of the irregularities and misdirections together with the unjustified summary rejection of the appellant's first appeal left doubt on whether there had been a failure of justice.

Appeal allowed: Convictions quashed.

**Cases referred to in judgment:**

(1) *R. v. Johnson* (1962), Cr. App. R. 55; [1961] 3 All E.R. 969.

(2) *Aniseth v. Republic*, [1963] E.A. 206.

**Judgment**

The considered judgment of the court was read by **Law JA:** The appellant Raphael Alphonce was convicted on a number of counts of forgery, uttering false documents, and personation and was sentenced to various concurrent terms of imprisonment amounting to an effective total of two years imprisonment. He appealed to the High Court, and his appeal was summarily

dismissed under s. 317 (1) of the Criminal Procedure Code. We would say at once that we do not consider that the procedure for summary dismissal was appropriate in this case. The jurisdiction to dismiss summarily arises only when, in the opinion of the appellate judge, the evidence before the lower court leaves no reasonable doubt as to the appellant's guilt, and that the appeal is frivolous or without substance. The appellant's memorandum of appeal to the High Court raised many points of law, inter alia that there had been misjoinder of charges and of parties; that the magistrate had relied on inadmissible evidence in rejecting the defence of alibi; that he had misdirected himself as to the onus of proof on the defence of alibi; that judgment was delivered before the appellant had closed his case, and so on. We do not say the judge was wrong in thinking that the evidence in the lower court left no reasonable doubt as to the appellant's guilt, but that is not enough to justify the summary rejection of a criminal appeal. It must also be manifestly either frivolous or without substance. In our view neither of these two preconditions existed in this case, and the appeal should have been admitted for hearing in the usual manner, especially as the appellant had indicated his intention of being present at the hearing. In these circumstances we considered remitting the appeal to the High Court for hearing according to law, but as almost two years have elapsed since the appellant was convicted we were anxious not to cause further delay and decided to dispose of the matter ourselves.

Before us the appellant relied on two main grounds. Firstly, he objected to the admission of affidavit evidence, on which the magistrate relied, and to which the appellant was given no opportunity of replying. The appellant had applied to call one J. S. Bosco, whom he described as a sales representative of the East African External Telecommunications Ltd. The magistrate ruled as follows on 17 June 1971:

> "As for J. S. Bosco whom 1st accused wishes to call, I hereby order that attempts be made by the police to trade him. As I am proceeding back to my station Moshi this case will be mentioned on 12.7.71. Bail continues as before. If the said Bosco is not traced or even if he is but it is found that he will not be returning to Tanzania until 1972, January, this case will be fixed for judgment."

Police inquiries revealed that no such person as J. S. Bosco was known to East African Telecommunications Ltd., and they obtained two affidavits to this effect, which were supplied to the magistrate. Endorsed on each affidavit is a statement that a copy was served on the appellant, but he denies this, and no acknowledgment of service by him has been shown to exist. The magistrate accepted these affidavits as evidence, and used them to support the following finding of fact in his judgment:

> "The affidavits before me show that J. S. Bosco is a fictitious character."

The court did not reconvene on the mention date, and on 3 September, 1971, the magistrate delivered a long and, in the main, careful and accurate judgment, the outcome of which was that he convicted the appellant and sentenced him.

It is clear that the above recital reveals a number of irregularities of procedure. There is no authority for the reception of affidavit evidence in criminal cases. By s. 191 of the Criminal Procedure Code evidence in criminal cases shall be taken in the presence of the accused. There are of course exceptions to the general rule, such as in the case of certain medical and other certificates, but there is no provision for the admission of evidence in rebuttal by affidavit. The court should have reconvened on the mention date, and the deponents to the affidavits should have been called as witnesses so as to be available for cross-examination. It would then have been open to the magistrate, if the evidence

so warranted, to hold that the application for an adjournment to enable J. S. Bosco to be called was not reasonable, whereupon the appellant's case would have been closed. As it is, it was never closed.

The second group of grounds of appeal related to two plain misdirections in the judgment. The first is the statement that:

> ". . . the position at law is that the defence should be disclosed at the earliest possible opportunity."

So far as we are aware, there is no provision in the law of Tanzania to this effect, and none has been brought to our notice. Non-disclosure of an alibi until a late stage in the proceedings is a factor going to the weight to be attached to such an answer, but does not exclude it. This misdirection was, however, more apparent than real, as the magistrate did not draw any adverse inference against the appellant from his failure to disclose his alibi at the earliest opportunity as he was unrepresented. Incidentally, when we asked the appellant why he did not disclose his alibi at an early stage, he pointed out that it only covered the period from 31 October 1969 to 5 November 1969, and that the charges against him originally specified 11 November as the date when the offences were committed; and it is not until the trial opened that 3 and 4 November were substituted as the material dates. We have checked the original record and find this statement to be-correct.

The second misdirection in the judgment is contained in the following passage:

> "It is the law that the burden of proof is on the person setting up the defence of alibi to account for so much of the time of the transaction in question as to render it impossible that he could have committed the imputed act.
>
> However, the said burden is not as heavy as it is when the prosecution are to establish the case; all the accused person has to do is to raise a reasonable doubt."

With respect, this is incorrect. In *Aniseth v. Republic*, [1963] E.A. 206 the following part of the headnote in *R. v. Johnson* (1962), 46 Cr. App. R. 55 was cited with approval:

> "A prisoner who puts forward an alibi as answer to a charge does not assume any burden of proving that answer, and it is a misdirection to refer to any burden as resting on a prisoner in such a case."

This decision has been consistently followed by the courts in East Africa since 1963 and should continue to be followed. Mr. Lubuva for the Republic conceded the validity of the grounds of appeal raised by the appellant, but he submitted that on a perusal of the record as a whole there could be no reasonable doubt as to the appellant's guilt, and that as the undoubted irregularities and misdirections had not led to a failure of justice, this was a proper case for the application of the curative provisions of s. 346 of the Criminal Procedure Code. As to this, the appellant in his reply reminded us, perhaps unnecessarily, that not only must justice be done, but it must be seen to be done.

We have given this aspect of the case very careful consideration, and have come to the conclusion that the cumulative effect of those irregularities and misdirections, and of the unjustified summary rejection of the appellant's first appeal, is that the provisions of s. 346 aforesaid should not be called in aid in this case, as we cannot say that they have not resulted in a failure of justice. We do so with some regret, as the case was well investigated and, on the whole, carefully and patiently tried. We are however of the opinion that the appeal must succeed,

for the reasons set out above, and we order accordingly. The convictions passed on the appellant are quashed and the sentences set aside. We do not order his release from custody as we understand he is lawfully detained in connection with another matter.

*Appeal allowed.*

The accused appeared in person.

For the respondent:
*D. Z. Lubuva*

## Barclays Bank International Ltd v Acif Ltd
[1973] 1 EA 476 (HCK)

| | |
|---|---|
| **Division:** | High Court of Kenya at Mombasa |
| **Date of judgment:** | 10 April 1973 |
| **Case Number:** | 269/1971 (119/73) |
| **Before:** | Sir Dermot Sheridan J |
| **Sourced by:** | LawAfrica |

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*[1] Bill of Exchange – Alterations – Addition of bank's name to bill – Not alteration of place of payment nor of description of payee – Constitutes addition of new payee – Bills of Exchange Act* (*Cap.* 27), *s.* 64 (*K.*).

**Editor's Summary**

The plaintiff bank sued the defendant company on a promissory note of which it claimed to be the holder in due course and of which the defendant was the drawer. The note had been endorsed once in favour of a third party who endorsed it again in favour of the plaintiff. On the front of the note appeared the name of the plaintiff and it was proved that the insertion of the name had not been made at the time the note was endorsed in favour of the plaintiff.

The defendant contended that the note had been materially altered without the authority or consent of the defendant, in that the place of payment had been altered and the description of the payee had been altered, alternatively that a new payee had been added. For the plaintiff it was contended that as it was the endorsee the addition was immaterial.

**Held –**

(i) no place of payment had been inserted, the place remaining the defendant's business address;

(ii) the subscription of the plaintiff's name beneath the payee's name did not alter the description of the payee;

(iii) the subscription of the plaintiff's name made it an additional payee;

(iv) an unauthorised alteration does not have to be made fraudulently in order to discharge subsequent parties.

Case dismissed.

**Cases referred to in judgment:**

(1) *Macintosh v. Haydon* (1826), 171 E.R. 1050.

(2) *Burchfield v. Moore* (1854), 23 L.J.Q.B. 261.

(3) *Gardner v. Walsh* (1855), 119 E.R. 412.

(4) *Overman and Co. v. Rahemtulla Premji* (1929), 12 K.L.R. 131.

(5) *Slingsby v. District Bank,* [1932] 1 K.B. 544; [1931] All E.R. Rep. 143.

**Judgment**

**Sir Dermot Sheridan J:** On 28 December 1971 the defendant company made a promissory note for Shs. 64,669/- payable to

Mohamedali Taibji Ltd. Mombasa 75 days after date or on or before 17 March 1972 payable to the said Mohamedali Taibji Ltd., or its order. Paragraph 4 of the amended plaint avers:

> "4. The plaintiff became and is the bearer and holder in due course of the said note it having been endorsed by the said Mohamedali Taibji Limited in favour of one Abdul Mohamedali Taibji who in his turn endorsed the said note in favour of the plaintiff."

The further amended defence avers:

(1) lack of consideration,

(2) failure to give notice of dishonour, and

(3) the invalidation of the note by reason of a material alteration.

At the commencement of the hearing grounds (1) and (2) were abandoned leaving only ground (3) which is pleaded as follows in the further amended defence:

> "4. In the alternative, the said promissory note sued on, if ever valid, was rendered void, invalid, inoperative and inadmissible in evidence by reason of a material and apparent alteration made by the plaintiff therein after the issue thereof, namely, by the addition of a place of payment or by the addition to the description of the payee without the authority or consent of the defendant."

In the course of the hearing leave was granted to amend this paragraph by inserting between the words "payee" and "without" in the penultimate line thereof the words "or the addition of another payee".

In reply to the further amended defence the plaintiff avers:

> "3. In reply to paragraph 4 of the further amended defence the plaintiff denies having made any alteration material or otherwise as alleged or at all and puts the defendant to the strict proof thereof. Without prejudice to the foregoing the plaintiff will contend that alterations if made which are denied were not material or of such a nature as to render the said promissory note void or inoperative or inadmissible in evidence."

The alleged material alteration consists of a red rubber stamp "BARCLAYS BANK D.C. & O" inserted beneath the words "Mohamedali Taibji Ltd. Mombasa or Order". In fact "D.C. & O" has been crossed out and "International" written in its place. Nothing turns on this. There is a similar endorsement on the back of the note to show that Abdul Mohamedali Taibji, had endorsed the note in favour of the plaintiff. Both Taibji and Tribhovan Kotecha, a director of the defendant company, gave evidence to establish that the rubber stamp was not on the face of the note by the time it was endorsed to the plaintiff. Kotecha stated that he was unaware of the alteration until 19 February 1973 when he first saw a photostat copy of the note and that is why in reply to the plaintiff's demand for payment dated 19 April 1972 he replied on behalf of the defendant that non-payment was due to a dispute between it and Mohamedali Taibji Ltd. without reference to any alteration.

On 21 March the note had been presented for payment at the defendant's registered office in Nairobi.

The plaintiff elected not to call any evidence. From this I think it is a reasonable inference that the note must have been altered by the plaintiff after it had left Taibji's hands. If the plaintiff maintains that it did not make the alteration it could have called evidence to say so. Failure to do so gives rise to an adverse inference and the court is entitled to presume that this is in all probability what

happened: Evidence Act (Cap. 80) s. 119. It would be expecting too much for the defendant to adduce positive evidence that it saw the plaintiff affix the rubber stamp on the face of the note.

The only issue is whether the plaintiff, as endorsee of the note, is suing on it in a form which has been materially altered without the authority or consent of the defendant in which case it is vitiated and is void at law.

S. 64 of the Bills of Exchange Act (Cap. 27) provides:

> "64(1) Where a bill or acceptance is materially altered without the assent of all parties liable on the bill, the bill is avoided, except as against a party who has himself made, authorized, or assented to the alteration, and subsequent endorsers:

Provided that where a bill has been materially altered but the alteration is not apparent, and the bill is in the hands of a holder in due course, such holder may avail himself of the bill as if it had not been altered, and may enforce payment of it according to its original tenor.

> (2) In particular the following alterations are material, namely, any alteration of the date, the sum payable, the time of payment, the place of payment, and, where a bill has been accepted generally, the addition of a place of payment without the acceptor's consent."

Mr. Lakha for the defendant submitted that the alteration

(1) altered the place of payment; or

(2) altered the description of the payee; or

(3) added a new payee.

I will deal with these submissions in turn.

(1) The note is silent as to the place of payment which means that the note unaltered would have been duly presented for payment when it was presented at the defendant's address which is given in the note:

Bills of Exchange Act ss. 45 (2) (*d*) (ii) and 90.

Although the alteration does not specify at which branch of Barclays Bank e.g. Mombasa, Kisumu, payment is to be made the submission is that payment could be made at any branch of the bank in Kenya. If this were the meaning of the alteration it would come within s. 64 (2) of the Bills of Exchange Act.

In *Burchfield v. Moore* (1854), 23 L.J.Q.B. 261 where a bill of exchange was, without the privity of the acceptor, altered by inserting the words "payable at A" and afterwards endorsed to the plaintiff for value, who took in bona fide and without knowledge of the alteration it was held that this was a material alteration which discharged the acceptor. The plaintiff's remedy was confined to a right to recover the consideration for the bill as between himself and his immediate endorser.

This case is important for the general observations of Lord Campbell, C.J. on the inviolability of bills of exchange at p. 263 "such words, although they do not alter the direct liability of the acceptor, do vary the contract between others who are parties to the bill; therefore, that if interpolated without his consent, they may prejudice the acceptor; that they amount to a material alteration of the bill, and that they discharge the acceptor. . . . The negotiability of bills of exchange is to be favoured; but with this view, it is material that their purity should be preserved." *Macintosh v. Haydon* (1826), 171 E.R. 1050 is to the same effect. There the drawer of a bill of exchange accepted generally added the words "payable at Ransom and Co., bankers, London" without the knowledge of the acceptor, and then endorsed it for valuable consideration, the bill being

overdue and the endorsee privy to the alteration. It was held that the acceptor was discharged.

Mr. Satchu, for the plaintiff, points out that in these two cases the word “at” made it clear that the place of payment was being altered. Owing to the omission of this word in the present case it cannot be said that the place of payment was being altered. The noting of the bill shows that the place of payment remained the defendant’s business address. I agree with this submission. Whatever the addition of the words “Barclays Bank D.C.O.” did they did not alter the place of payment.

In support of his second submission Mr. Lakha relies firstly on Byles on Bills of Exchange (22nd ed.) p. 241 where it is stated that the provisions of s. 64 (2) of the Act are not intended to be exhaustive and secondly on *Slingsby v. District Bank*, [1932] 1 K.B. 544 where an unauthorized addition to the description of the payee was held to be a material alteration. There the plaintiff’s, executors of a will, had an account with the defendant and retained a firm of solicitors Messrs C & P of whom C was a member. They decided through Messrs J & P stock brokers to invest £5,000 part of the estate lodged on deposit with the defendant. C drew out a cheque in the form “Pay J.P and Co. . . . or order” which the plaintiff signed. C fraudulently inserted the words “per C & P” in the blank space, endorsed it with the names C & P and paid it into the bank. It was held that the cheque had been materially altered. In the instant case I am unable to see how the mere subscription of “Barclays Bank D C & O” beneath the name of the payee altered the description of the payee. How did it indicate that the payee and the bank had anything in common or that the bank was authorized to act on its behalf? This submission fails.

The third submission that the words add a new payee raises a substantial and difficult matter of law. Mr. Lakha relies on *Gardner v. Walsh* (1855), 119 E.R. 412. There a note was made by B and the defendant only but the plaintiff altered it in a material part by causing C to sign it as a joint and several maker. B being indebted to the plaintiff, agreed to get two sureties, the defendant and C, to join her in a joint and several note to the plaintiff. B and the defendant signed the note together and gave it to the plaintiff. The evidence tended to show that when the defendant signed it, plaintiff and B both intended that C should afterwards sign but that the defendant was not informed of this. Held that the addition of C’s name was a material alteration and if made after the note was issued, would avoid it. The rigidity of the law against making unauthorized alterations of notes is illustrated by Lord Campbell, C.J. in his judgment at p. 415 “But we conceive that he is discharged from his liability if the altered instrument, supposing it to be genuine, would operate differently from the original instrument, whether the alteration be, or be not to his prejudice. If a promissory note payable at three months after date were altered by the payee to six months, or if being made for £100 he should alter it to £50, we conceive that he could not sue the maker upon it after the alteration either in its altered or original form. The alleged maker was no party to a note at three months or for £50 and the note at six months for £100, to which he was a party, is vitiated by the alteration.” In *Overman and Co. v. Rahemtulla Premji* (1929), 12 K.L.R. 131 it was held that the alteration of the bill by erasing the name of the payee and inserting another name in lieu thereof, without the consent of the acceptor, was a material alteration which discharged the bill as far as the acceptor was concerned.

In the absence of any explanation by the plaintiff as to how it, through its servant, affixed its rubber stamp on the face of the note I do not consider that I would be entitled to regard it as meaningless. Nor can I speculate that it might have been done mistakenly by an overzealous clerk when he correctly stamped

the back of the note. Further in its reply the plaintiff did not plead that the alteration was meaningless but rather that it was not material. The plaintiff must have intended to give the alteration some meaning and I must endeavour to do so. By its juxtaposition after and below the words "or Order" its effect was to make the plaintiff an additional payee whether that was the intention or not. Mr. Lakha submits that the defendant's liability to pay the amount is irrelevant. The contract between the drawer and the original payee has been varied without the former's consent. He never agreed to pay the plaintiff. He never made a contract to pay him. The plaintiff acquired its rights subsequently to the execution of the note as an endorsee, bona fide holder for value. He had no right to alter the note.

Mr. Satchu submits that before an alteration can be material it must alter the business effect of the instrument if used for any business purpose for which such an instrument is used: Byles on Bills of Exchange (22nd ed.) p. 241. He asks if the alteration on the note has altered its business effect as between the plaintiff and the defendant. Or in the words of *Gardner's* case the altered instrument would operate differently from the original instrument. The original contract was to pay the original payee "or order". The plaintiff is the endorsee so the addition of the rubber stamp on the face of the note does not alter it but merely confirms that the amount covered by the note will now be paid to the plaintiff. If the plaintiff were not the endorsee then the alteration would have been material. Mr. Satchu distinguishes *Slingsby's* case where the alteration was made fraudulently and by a party who was stranger to the note or contract. Mr. Lakha's answer is that *Slingsby's* case was not decided on the ground of fraud and that s. 64 of the Act makes no reference to fraud. Further he argues, entitlement to payment is no criterion to the determination of the question of the alteration of the note as being material or not. It is sufficient to say that by adding the rubber stamp on the face of the note – probably inadvertently – the plaintiff has caused it to operate differently as between the drawer and the payee by adding another payee, whether this is to the drawer's prejudice or not. I agree with Mr. Lakha's third submission.

In the result the suit is dismissed with costs.

*Order accordingly.*

For the plaintiff:
*A. C. Satchu* (instructed by *Atkinson Cleasby & Satchu*, Mombasa)

For the defendant:
*A. Lakha* (instructed by *N. P. Sheth*, Nairobi)

## Machenje v Kibarabara
[1973] 1 EA 481 (HCK)

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|---|---|
| **Division:** | High Court of Kenya at Mombasa |
| **Date of judgment:** | 22 June 1973 |
| **Case Number:** | 5/1973 (120/73) |
| **Before:** | Sir Dermot Sheridan J |
| **Sourced by:** | LawAfrica |

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*[1] Rent Restriction – Business premises – Appeal – No appeal from order made on complaint –*

*Landlord & Tenant (Shops, Hotels & Catering Establishments) Act* (*Cap*. 301), *s*. 15 (*K*.).

*[2] Rent Restriction – Business premises – Tribunal – Powers of – On complaint – Whether power to make mandatory orders.*

*[3] Costs – Business premises – Tribunal – Power to increase costs awarded on reference – Manner of award – Advocates* (*Remuneration*) *Order, Sch. VIII* (*K*.).

**Editor's Summary**

The respondent tenant made a complaint to the Business Premises Rent Tribunal that under pretext of doing repairs the landlord had removed the partition between their shops and had dispossessed the respondent.

The tribunal ordered the landlord to rebuild the premises as they were before and to reinstate the tenant.

The landlord appealed, submitting that the tribunal had no power to make the mandatory injunctions. The respondent contended that there was no appeal from the order of the tribunal which was not made on a reference to it.

**Held –** no appeal lay from the order of the tribunal (*Choitram v. Mystery Model Hair Saloon* (1) followed).

*Observations* on

(*a*) the power of the tribunal to make mandatory orders on a complaint;

(*b*) the power of the tribunal to increase fees awarded to an advocate.

Appeal struck out.

**Cases referred to in judgment:**

(1) *Choitram v. Mystery Model Hair Saloon*, [1972] E.A. 525.

**Judgment**

**Sir Dermot Sheridan J:** This is an appeal from the ruling – it should have been an order – of Business Premises Rent Tribunal (hereinafter referred to as "the tribunal") delivered on 25 January, 1973 at Mombasa.

The appellant is the landlord of premises on Plot No. 505 Malindi. The premises are divided into two shops with a partition wall in between. The appellant occupies one portion as a shop and the other portion is let to the respondent, also as a shop.

Since March 1970 the appellant has been trying to evict the respondent. In Tribunal Cases 190 of 1970, 13 of 1971 and 50 of 1972 between the same parties the respondent successfully referred tenancy notices to the tribunal under ss. 6 and 10 of the Landlord and Tenant (Shops, Hotels and Catering Establishments) Act (Cap. 301) (hereinafter referred to as "the Act").

In Tribunal Case 77 of 1972 the respondent made a complaint under s. 12 (4) of the Act regarding the failure of the appellant to carry out repairs to the

premises and the tribunal ordered that the appellant should carry out repairs to the roof, ceiling and verandah within a specific period, failing which the respondent was at liberty to carry out the repairs and deduct the cost from the rent. It appears from a certified copy of the record in that case that the repairs were to be carried out while the respondent was in occupation.

In the present case the respondent made a fresh complaint again under s. 12 (4) of the Act relating to the appellant's failure to reinstate him in the premises which he had temporarily vacated to enable the appellant to carry out the repairs.

In the absence of the appellant the proceedings were ex parte. The relevant part of the proceedings is quite short and I set it out:

> "In case No. 77/72 was heard by the tribunal on 21/8/72. Order was made to carry out repairs. When I went to Malindi I found that roof was removed. I thought that he had started the repairs. On 29/8/72 it rained and I reported the matter to the Administration.
>
> The district officer told him to go and repair. He did not carry out the repairs. D.O. ordered the landlord to provide a store where to keep the goods. Goods were stored in a store and key kept by D. O. Mr. Martin Mololo. Thereafter the landlord repaired the premises, he removed the partition wall and is now using the shop including my portion and my machines also.
>
> There has been several cases before the Tribunal and I have succeeded in all of them. I want to be reinstated to my original premises. I have filed a separate suit for damages in the resident magistrate's court at Malindi. I want to go back to my premises. The removed wall can be replaced within two days.
>
> *RULING:*
>
> The tribunal finds that the tenant is unlawfully dispossessed by a landlord who has no regard for the law. A very serious view is taken by the tribunal of the behaviour of this landlord. We order as follows:
>
> *a*) The landlord to put the premises in the same condition as before i.e. build the partitioning wall which has been removed.
>
> *b*) Reinstate the tenant on his premises after building the wall.
>
> *c*) Part (*a*) and (*b*) to be complied with within 10 days after serving this order upon the landlord.
>
> *d*) Costs of Shs. 500/- allowed to Mr. Joshi.
>
> *PRESENT*
>
> *CHAIRMAN* Mr. H. C. Wariithi – 25/1/73
>
> *ASSESSORS* Mr. G. G. Nthenge
>
> Mr. W. Wabuge
>
> Mr. M. W. Kaigwa
>
> signed
>
> *CHAIRMAN*"

The grounds of appeal are:

> "1. That the order of the tribunal to the effect that 'the landlord/appellant to put the premises in the same condition as before i.e. build the partitioning wall which was removed' was bad in law and ultra vires the powers of the tribunal.

2. That the order of the tribunal to the effect that the appellant should 'reinstate the tenant on his premises after building the wall' was bad in law and beyond the jurisdiction of the tribunal.

3. That in all circumstances of the case costs awarded by the tribunal against the appellant were excessive."

Mr. Omwitsa, for the appellant, submits that the tribunal had no power to make these mandatory injunctions and that there is nothing in s. 12 of the Act to enable it to do so. The only specific provision relating to repairs is s. 12 (1) (*g*) which provides:

"(*g*) Where the landlord fails to carry out any repairs for which he is liable:

(i) to have the required repairs carried out at the cost of the landlord and, if the landlord fails to pay the cost of such repairs, to recover the cost thereof by requiring the tenant to pay rent to the Tribunal for such period as may be required to defray the cost of such repairs, and so that the receipt of the Tribunal shall be a good discharge for any rent so paid;

(ii) to authorize the tenant to carry out the required repairs, and to deduct the cost of such repairs from the rent payable to the landlord;"

This enables the tribunal to carry out the repairs at the cost of the landlord. If he fails to pay the cost the tribunal can recover the cost by requiring the tenant to pay rent to the tribunal. Alternatively it may authorize the tenant to carry out the repairs and deduct the cost from the rent. S. 12 (1) (*g*) does not empower the tribunal to order the landlord to carry out the repairs himself.

Mr. Omwitsa further submits that if this complaint were made under s. 12 (4), as it in fact was, then it must be read in conjunction with the other subsections and an order for the landlord to carry out the repairs cannot be implied. S. 12 (4) provides:

"(4) In addition to any other powers specifically conferred on it by or under this Act, a tribunal may investigate any complaint relating to a controlled tenancy made to it by the landlord or the tenant, and may make such order thereon as it deems fit."

This matter was considered by Madan, J. in *Choitram v. Mystery Model Hair Saloon*, [1972] E.A. 525 from which I have derived considerable assistance in determining this appeal. There the tenant had made a complaint against the landlord under s. 12 (4) of the Act and the tribunal ordered him to pay compensation for fixtures allegedly damaged by him. He brought an action for a declaration that the order of the tribunal was made without jurisdiction. The judge held that the action lay and that the order of the tribunal for the payment of compensation was ultra vires. He also drew a distinction between a reference under s. 6 of the Act and a complaint made under s. 12 (4). A complaint is unconnected with any tenancy notice and although Form C prescribed by reg. 5 of the Landlord and Tenant (Shops, Hotels and Catering Establishments) (Tribunal) (Forms and Procedure) Regulations is headed "Reference by Landlord or Tenant to Tribunal" it is clearly not a reference as defined by s. 2 of the Act, which limits it to a reference under s. 6 S. 12 (1) (*g*) does not enter into the picture.

In *Choitrams* case Madan, J. stated at p. 530: "The powers given in s. 12 (4) are expressly 'in addition to any other powers specifically conferred'.

> I am of the opinion however that the term 'complaints' is intended to cover only complaints of a minor character.
>
> The term 'investigate' does not necessarily imply a hearing. Such complaints would include complaints by the tenant of turning off of water, obstruction of access, and other acts of harassment by the landlord calling for appropriate order for their rectification or cessation but not including payment of compensation for any injury suffered. If the legislature had intended that the tribunal should have power to award compensation in respect of such complaints it would I think have made specific provision as was done in s. 12 (1) and s. 13. In my opinion power to award compensation must be express and cannot be implied."

Although it might be said that the respondent's complaint was not a minor one it could be argued that the tribunal was entitled to find that he had been subjected by the appellant to harassment which called for appropriate orders of rectification or cessation. Under the pretext of carrying out repairs as ordered by the tribunal the appellant removed the partition wall, dispossessed the respondent of his shop and installed himself in it.

In view of the submission of Mr. Joshi, for the respondent, that no appeal lies from the ruling of the tribunal I do not find it necessary to decide whether it was competent for it to make the orders which it did. The respondent's correct remedy may have been outside the ambit of the Act.

S. 15 of the Act, as amended, provides that only a party to a reference may appeal to the High Court. Mr. Omwitsa argues that as the complaint arose out of earlier cases of references between the parties the appellant may be said to be a party "to a reference aggrieved by any determination or order of a Tribunal". I am unable to agree to this. No appeal lies from the orders of the tribunal. The appellant's remedy was to apply to the tribunal to set aside its ex parte order and this is what I would advise him to do in regard to the order as to payment of costs because I am satisfied that the only order it could make was for the payment of Shs. 63/- plus one third being the fee for an application or complaint not otherwise provided for as laid down by item (3) of Paragraphs A and B of Schedule VIII to the Advocates (Remuneration) Order. It is true that the Chairman may increase the fee for good reason in exceptional cases but there is nothing to suggest that he did so in this case.

Alternatively it is open to the appellant to seek a declaratory judgment as in *Choitrams* case that the orders made by the tribunal were made without jurisdiction.

As it is the appeal is dismissed with costs.

*Order accordingly.*

For the appellant:
*G. A. Omwitsa & M. Kubo*

For the respondent:
*I. Joshi*

## Gaffoor v Shantilal Pethraj & Co
[1973] 1 EA 485 (HCK)

| | |
|---|---|
| **Division:** | High Court of Kenya at Mombasa |
| **Date of judgment:** | 31 July 1973 |
| **Case Number:** | 254/1970 (122/73) |

**Before:** Sir Dermot Sheridan J

**Sourced by:** LawAfrica

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*[1] Civil Practice and Procedure – Parties – Plaintiff – Suing in name of foreign business – Error of description only.*

**Editor's Summary**

The plaintiff applied for his name to be substituted for the firm name registered abroad in which suit had been filed. The plaintiff contended that this was merely an error of description and the defendant alleged that it would substitute a new party as from the date of the order.

**Held –** The error was merely one of description, and the substitution did not add a new party (*Manilal v. Purnshottan Umedbhai* (2) followed*; Neogi Ghose v. Sardar Nahal Singh* (1) not followed).

Order accordingly.

**Cases referred to in judgment:**

(1) *Neogi Ghose v. Sardar Nahal Singh*, A.I.R. 1931 Cal. 770.

(2) *Manilal v. Purnshottan Umedbhai*, A.I.R. 1960 Cal. 15.

(3) *Matharu v. Italian Construction Co.*, [1964] E.A.1.

**Judgment**

**Sir Dermot Sheridan J:** This is an application, under the Civil Procedure Rules O. 6A, r. 1 (3) (4) (5) for the amendment of the name of the plaintiff from "Straits Malaya Produce Company (a firm)" to "Khaiyasdeen Abdul Gaffoor carrying on business in the firm name or style of Straits Malaya Produce Company".

Mr. Talati, for the defendant, does not dispute the power of the court, in its discretion, to grant the amendment, particularly as it is made within the period of limitation, but he contends that the plaintiff will have to pay all the costs thrown away up to the date of the amendment. Mr. Hirji, for the applicant, submits that the respondent is entitled only to the costs of this application. At the moment that is the sole issue.

On 6 November 1970 the plaint was filed. It describes the plaintiff as a firm of commission agents and brokers carrying on business in the Republic of Singapore. The plaintiff claimed Shs. 11,455/75 for work done and services rendered for the defendant between November 1967 and April 1968.

On 7 September 1971 the defendant filed a defence raising the preliminary objection that the plaintiff had no locus standi. The plaintiff is the sole proprietor of a business which is being carried on in Singapore in a name other than his own. Under O. 29, r. 1 any two or more persons claiming as partners and carrying on business in Kenya may sue in the name of the firm but under r. 9 of the same order, whereas any person carrying on business in a name other than his own may be sued as if it were a firm name there is no provision whereby he may sue in that name; he must sue in his own name. In Mulla's Code of Civil Procedure (13th ed.) Vol. II 1358 it is stated in relation to the corresponding Indian O. 30, r. 10 relying on *Neogi Ghose v. Sardar Nahal Singh*, A.I.R. 1931 Calcutta 770, that when a man carrying on business in a firm name sued in that

name he was allowed to amend his plaint by inserting his own name as plaintiff on payment of all costs up to the date of the amendment. In that case the court rejected the submission that the error was one of description but held it was rather one of substitution as plaintiff of an individual for an entity which was not recognised by law. The effect of the amendment would not be retrospective.

Mr. Hirji points out that O. 29, r. 1 (Indian O. 30, r. 1) applies only to partnerships carrying on business in Kenya. "When a suit is instituted in the name of a foreign firm, which does not carry on business in India, the plaint can be amended by substituting the names of the partners in the place of the firm name and such substitution does not involve any addition of new parties:" Mulla p. 1347 referring to *Manilal v. Purnshottan Umedbhai*, A.I.R. 1960 Calcutta 15. In the case of a foreign firm not having a place of business in Kenya the names of all the partners must be stated and in my view the same goes for a sole proprietor firm and that failure to do so amounts to a mere misnomer. The concluding words of O. 29, r. 9 "and, so far as the nature of the case will permit, all rules under this order shall apply" cannot embrace a foreign sole proprietor firm not carrying on business in Kenya. In *Manilal's* case (supra), which was decided nearly 30 years after *Neogi's* case (supra) the court said at para. 46 of its judgment "in the case of A.I.R. 1928 Bombay 191 and in the case of 35 Calcutta W.N. 432 (A.I.R. 1931 Calcutta 770) the court took a harsh view of the matter in not treating the cases before them as cases of misdescription, and in my opinion these cases ought not to be followed" I respectfully agree. The defendant knew all along who it was dealing with: *Matharu v. Italian Construction Co.*, [1964] E.A.1. The plaintiff had made a genuine mistake in suing as he did and as a matter of procedure it can be rectified by allowing the amendment with the respondent's costs limited to the application.

*Order accordingly.*

For the plaintiff:
*H. Hirji* (instructed by *Atkinson Cleasby & Satchu*, Nairobi)

For the defendant:
*P. N. Talati* (instructed by *A. B. Patel & Patel*)

## Kyagonga v Uganda
[1973] 1 EA 486 (HCU)

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|---|---|
| **Division:** | High Court of Uganda at Kampala |
| **Date of judgment:** | 11 July 1973 |
| **Case Number:** | 126/1973 (123/73) |
| **Before:** | Saied J |
| **Sourced by:** | LawAfrica |

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*[1] Criminal Practice and Procedure – Compensation – Prosecutor must be heard – Court may act of its own motion.*

*[2] Criminal Practice and Procedure – Private prosecution – No consent to prosecution recorded – Complainant leading evidence – Consent inferred – Magistrates' Courts Act, s.* 237 (*T.*).

**Editor's Summary**

The applicant made an accusation of theft on a private prosecution initiated by a written complaint to the magistrate. No formal leave of the court for the prosecution was recorded but the complainant was allowed to lead evidence.

The complaint was dismissed and the magistrate found that it was frivolous and vexatious and of his own motion ordered the applicant to pay compensation to the accused. He did not hear the applicant before making this order. The facts showing the complaint to be frivolous and vexatious are set out in the judgment.

On revision

**Held** –

(i) the prosecution was a private prosecution even though no formal consent to prosecute had been recorded;

(ii) the applicant knew that the charge was untrue and it was therefore frivolous and vexatious;

(iii) the court may of its own motion award compensation even though application will normally be made by the accused;

(iv) as the magistrate had not called on the applicant to show cause why the order for compensation was made contrary to the principles of national justice.

Order set aside.

**Cases referred to in judgment:**

(1) *Republic v. Dunn*, [1965] E.A. 567.

(2) *Damiano Ngonzibwa v. Uganda* (1969), M.B. 146 (unreported).

(3) *Amisi Magala v. Uganda* (1971), M.B. 153 (unreported).

(4) *Haining v. Republic* (*No*. 2), [1972] E.A. 133.

**Judgment**

**Saied J:** The applicant was the original complainant in the Court of a Magistrate Grade II. On his written complaint one called Gomelese Wambuga was charged with the theft of the complainant's chicken contrary to s. 252 of the Penal Code. The trial magistrate acquitted the accused at the close of the prosecution case and, finding the prosecution to be "frivolous", ordered the complainant to pay the person accused of the theft Shs. 100/- by way of compensation under the provisions of s. 208 of the Magistrates' Courts Act.

The complainant appealed against this order to the Chief Magistrate who, upon being informed by the state attorney appearing before him that there was no provision in the law to enable him to deal with the matter referred the file to this Court with an application for revision.

The brief facts leading to this prosecution were as follows. The complainant alleged that when he went out to let his chickens out in the morning of 1 August, 1971 he found his two hens and a duck stolen. He reported the theft to his chiefs, One of his neighbours Isabirye then arrested the accused with some chicken meat tied in some banana leaves. He identified the meat as that of his cock which had been stolen. These were the facts set out in the written complaint. His evidence was to the same effect except that he said that he identified the legs of the chicken. Evidence was also adduced which showed that the complainant himself had authorised the accused to take one of his dead chickens. Isabirye testified about arresting the accused on an earlier allegation by the complainant regarding the theft of his chicken.

In acquitting the accused, the trial magistrate said,

> "I fail to see how the accused could be said to have stolen a dead hen which he picked with a clear knowledge of P.1, and P.1 agreed to prosecute him; from the observations of the accd. body, it is clear he was subjected to the usual thief beating which is very serious matter especially after P.1 had been aware of the back-ground of the dead hen. I fail to understand what motive P.1 had in prosecuting the accused in this hopeless case. I find the prosecution to be frivolous."

The Chief Magistrate thought that this was a “borderline” case, adding: “the trial magistrate was perturbed by the punishment meted to accused by villagers, but is complainant (Alimanzani) responsible for this”?

The file was submitted to the Director of Public Prosecutions for his views.

In his reply, a Senior State Attorney was doubtful whether the complainant was the prosecutor as no leave had been given him to prosecute under the provisions of s. 237 of the Magistrates' Courts Act. He felt that the order for compensation had been made "against a wrong person" and, there being no evidence of the trouble and expense to which the accused was put, asked for that order to be set aside.

There can be no doubt that this was a private prosecution initiated by the complainant/applicant by his written complaint to the magistrate under the provisions of s. 41 (3) of the Magistrates' Courts Act. He was thus a private prosecutor, and the fact that he had not specifically sought leave of Court to prosecute under the provisions of s. 237 of the Act does not, in my opinion, render the entire proceedings invalid. The fact that he was allowed by the Court to adduce evidence in support of the charge must mean that such leave had been given to him.

S. 208 of the Act under which the order for compensation was made provides for reasonable compensation "for the trouble and expense" to which an accused may have been put to be ordered against a private prosecutor on the dismissal of the prosecution where the Court is of the opinion that the charge was "frivolous and vexatious". The charge was so dismissed at the close of the prosecution. In *Damiano Ngonzibwa v. Uganda* (1969), M.B. 146, Jones, J., interpreted the phrase "frivolous and vexatious" as follows:

> "For a case to be found frivolous and vexatious it is not sufficient merely to say that the complainant had no cause of action. It must appear that his alleged cause of action is one which, on the face of it, is clearly one which no reasonable person could properly treat as bona fide, and contend that he had a grievance which he was entitled to bring before the Court."

The same conclusion was reached by Saldanha, J., in *Amisi Magala v. Uganda* (1971), M.B. 153 where the judge stated the true test of whether the charge was frivolous and vexatious was "whether the charge was brought bona fide or mala fide or whether it was abusive of the process of the court". In the Kenya case of *Republic v. Dunn*, [1965] E.A. 567 it was held that for a charge to be frivolous "it must be shown that there was a blameworthy failure to devote any serious thought or any thought at all to the situation; there must be stupid or mischievous harassment of the accused before the charge is vexatious". I respectfully agree with these decisions. In this case, the applicant, whose fowls had been stolen, knew at the time of making his complaint that he had allowed the accused to take away one of his dead hens. In the circumstances, his complaint against the accused, based as it was on possession of the dead hen, was clearly mala fide, and the subsequent prosecution of a person whom he knew to be innocent and in which he persisted was stupid and mischievous harassment of the accused. I agree with the trial magistrate that the charge was frivolous and vexatious.

Turning now to the issue of the compensation, it seems to me that an order under s. 208 of the Act would usually be made on the application of the accused who had been acquitted, but the court may act on its own accord. This is according to *Haining v. Republic*, (No. 2), [1972] E.A. 133. There the Court of Appeal considered an order for compensation made by the trial court under s. 176 of the Criminal Procedure Code (T) which is set out in the report. Although this section is materially different from our s. 208 of the Magistrates' Courts Act, the principle enunciated therein is of general application, and is stated at p. 135 as follows:

> "An order under this section would usually be made on the application of the prosecutor but if not a court may clearly act on its own accord but in

> doing so it is performing a judicial act which would materially affect both the party receiving the compensation and the convicted person who has to pay the compensation. It is essential here that these persons, and more especially the convicted person, be given an opportunity of being heard. The convicted person should be called upon to show cause why an order should not be made. To do otherwise would be a breach of natural justice and would amount to a person being condemned without having a hearing."

The same considerations would apply under the provisions of our s. 208 in respect of an accused in a private prosecution who has been acquitted on a charge which in the opinion of the court is frivolous and vexatious. The trial magistrate seems to have acted on his own accord without calling upon the complainant to show cause why the order should not be made. In so doing, the principle of natural justice was breached. It seems to me that he was swayed more by feelings of sympathy towards the accused who, according to his observations for which there was no basis, had been assaulted by members of the public. That order of compensation must therefore be set aside, and I so order. The accused may, if he so wishes, take such civil action as may be appropriate in the circumstances for redressing any wrong which he may think was done to him by this prosecution.

*Order accordingly.*

No appearance for the parties.

# Uganda v Ojok and another
## [1973] 1 EA 489 (HCU)

| | |
|---|---|
| **Division:** | High Court of Uganda at Kampala |
| **Date of judgment:** | 11 July 1973 |
| **Case Number:** | 123/1973 (125/73) |
| **Before:** | Saied J |
| **Sourced by:** | LawAfrica |

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*[1] Criminal Law – Elopement – Charge must allege that person eloped with is married.*

*[2] Criminal Law – Elopement – Wife who has already left husband – Offence cannot be committed – Penal Code s.* 121*A* (*U.*)*.*

*[3] Criminal Practice and Procedure – Compensation – Elopement – Only to be awarded to spouse of person eloped with.*

**Editor's Summary**

The accused were convicted of elopement. The woman was not living with her husband at the time of the alleged offence, having left him some time before. The man was ordered to pay compensation to the woman's father.

On revision

**Held** –

(i) the count against the woman was bad as it did not allege that the man was married;

(ii) it is impossible to elope with a woman who has already left her husband (*Uganda v. Olungu* (3) followed);

(iii) the aggrieved person to whom compensation can be ordered is only the spouse.

Convictions and order set aside.

**Cases referred to in judgment:**

(1) *Uganda v. Francis Ogema*, H.C. Cr. Rev. 436 of 1970 (unreported).

(2) *Uganda v. Solomon*, [1971] E.A. 46.

(3) *Uganda v. Olungu*, [1972] E.A. 136.

(4) *Uganda v. Andera Akua* (1973), M.B. 4 (unreported).

**Judgment**

**Saied J:** The two accused were convicted by a magistrate on individual counts of elopement contrary to ss. 121A (1) and 121A (2) respectively of the Penal Code. The male accused was fined Shs. 200/- or one month's imprisonment in default and was further ordered to pay compensation of Shs. 600/- to the aggrieved party who, in this case, was said to be the father of the female accused. The second accused was cautioned.

The particulars of the two counts were drafted as follows:

> "*Count* 1 – A.1 Wilson Peter Ojok on 9/7/72 at Alielo village, Chawente Subcounty, Kwania County, Lango District, eloped with Rose Aol, a married woman, not being his wife, under the custody of her husband.
>
> "*Count* 2 – A.2 Rose Aol w/o Saimon Eyen on 9/7/72 at Alielo village, Chawente Subcounty, Lango District, eloped with Wilson Peter Ojok who is not her husband."

It was not denied that the accused persons had been staying together. Ojok said that the second accused told him that she had been divorced by her husband. In her unsworn testimony, the second accused repeated that she had been divorced and, during her stay with her parents, had fallen in love with the first accused. She said that she had decided to go and live with him as she had nobody to support her. She admitted that the "bride price" had not been refunded to her former husband.

The trial magistrate found that the accused persons had "married each other while there was a valid marriage behind the woman".

The file was submitted to the Director of Public Prosecutions for his views on whether (1) the second count against the female accused was good in law; (2) the prosecution had proved that the woman was still married at the time of the alleged offence, and (3) whether there was any mens rea in the man.

In his reply a Senior State Attorney, who did not wish to be heard, said,

> "In respect of count II, the particulars of offence should have included that 'she eloped with WILSON PETER OJOK, *a married man*, who is not her husband'.
>
> "In *Uganda v. Solomon*, [1971] E.A. 46 Judge Goudie considered whether the offence of elopement is committed if the woman spouse is separated from her husband. With this case in mind I am of the view that conviction cannot stand.
>
> "I have noticed one interesting thing in this case. It is the father of the second accused that makes the complaint. If the case had been proved then the father would be the aggrieved party! So would a brother of the second accused or for that matter a friend of her husband!"

I agree that the second count is bad in law as the particulars do not allege that the female accused eloped with a married man. Her conviction cannot be supported.

The more serious point which arises is whether, in view of the evidence, the offence of elopement had been proved. The dictum of Goudie, J., in *Solomon's* case (supra), to which the Senior State Attorney referred, was obiter. There during argument, the respondent's counsel queried whether the offence is committed if the woman is separated from her husband. The judge said,

> "There is no clear answer but probably if the separation was intended to be a permanent one no complaint would be made. So the question would never arise. If it did arise the magistrate would refuse to convict for lack of 'mens rea'. If he decided to convict he might take the view that the separated spouse was not an 'aggrieved person' and refuse compensation."

Authority, however, exists in *Uganda v. Olungu*, [1972] E.A. 136 for the proposition that it is impossible to elope with a woman who has already left her husband. Russell, Ag. J., said,

> "In this case the wife had run away from her husband at least four years prior to the alleged offence and it appears to me obvious that once she had permanently left the matrimonial abode the accused could not have committed the offence of elopement."

I respectfully agree. In the instant case there is no clear evidence of the period she had been away from the matrimonial abode. What is clear however is that after her divorce she had moved in with her uncle, and the fact that she had nobody to support her was evidence that she had made a permanent break with her husband. In other words, she had left the matrimonial abode permanently. This would negative any mens rea in so far as the male accused was concerned. The fact that dowry had not been refunded does not, in my opinion, affect the situation in any way. Where a husband has divorced his wife, it is for him to follow up the refund of the dowry through either mutual negotiations or the civil courts. The trial magistrate's comment that there was still a valid and subsisting marriage would make refund of the dowry a condition precedent to a divorce on the same basis as it might perhaps be to a customary marriage. Presumably this was a customary marriage, but there was no evidence of the custom concerning divorce and refund of the dowry. However, as the evidence indicated permanent departure from the matrimonial abode by the female accused negativing mens rea, the offence of elopement could not have been committed.

The Senior State Attorney raised the question of who can properly be described as an aggrieved party in such cases so as to be entitled to compensation. I agree that the class of persons properly to the classified as aggrieved persons under s. 121A must, for obvious reasons, be limited. In view of the wording of this section I am of the opinion that aggrieved person contemplated by the legislature must be the spouse of the offending partner. I am fortified in this by a similar view expressed by Wambuzi, J. (as he then was) in *Uganda v. Francis Ogema*, H.C. Cr. Rev. 436 of 1970 when he said:

> "Although the State is an interested party indeed an aggrieved party it appears ludicrous that in addition to a term of imprisonment or a fine the State should be further compensated by a compensation of six or twelve hundred shillings as an aggrieved party. It follows that aggrieved party in the section must mean the husband of the woman with whom the accused elopes under sub-section (1) or the wife of the man with whom the accused elopes under sub-section (2) of the relevant section. However, I doubt whether the court is entitled to assume that a party is aggrieved unless such party says so."

This was followed in *Uganda v. Andera Akua* (1973), M.B.4. For these reasons the father of the female accused was not an aggrieved party entitled to compensation.

The convictions of both accused persons are accordingly quashed and the sentences set aside. The order of compensation made against the first accused is also set aside. If the fine or compensation was paid, the same is to be refunded to him.

*Order accordingly.*

No appearance for the parties.

## Uganda v Mbazira

[1973] 1 EA 492 (HCU)

| | |
|---|---|
| **Division:** | High Court of Uganda at Kampala |
| **Date of judgment:** | 10 July 1973 |
| **Case Number:** | 606/1972 (126/73) |
| **Before:** | Manyindo Ag J |
| **Sourced by:** | LawAfrica |

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*[1] Criminal Law – Uttering a false document – Banknote not a document – Penal Code, s.* 330 (*U.*).

**Editor's Summary**

The accused was convicted of uttering a false document contrary to s. 330 of the Penal Code in that he uttered a forged banknote in payment of a debt.

On revision

**Held** – a banknote is not a document within the section (*Francisco Tera v. Uganda* (1) followed).

Conviction quashed.

**Case referred to in judgment:**

(1) *Francisco Tera v. Uganda*, H.C. Cr. A. 708 of 1963 (unreported).

**Judgment**

**Manyindo Ag J:** The accused was charged with uttering a false document, contrary to s. 330 of the Penal Code, and unequivocally pleaded guilty and was sentenced to a caution under the provisions of s. 202 of the Magistrates' Courts Act, 1970. He was also ordered by the Chief Magistrate to pay for the drink he had consumed because the bank note of Shs. 100/- with which he had attempted to settle the bill had turned out to be forged.

The Director of Public Prosecutions later petitioned this court for an order in revision on the ground that the accused persons were wrongly charged and the first accused had been wrongly convicted as a bank note is not a document.

This court asked for the Director of Public Prosecutions or his representative to appear and support the argument that a bank note is not a document.

When the matter came up for hearing Mr. Ogwang, who represented the D.P.P. submitted that since there is no positive definition of document in s. 323 of the Penal Code and since s. 3 of the Evidence Act defines document merely in general terms, it could not be said that a bank note is a document. He did not support the conviction. He did not cite any authority.

S. 323 of the Penal Code merely provides that document does not include a trade mark or any other sign used in connection with articles of commence though they may be written or printed. This definition is clearly a negative definition.

S. 4 of the Penal Code which is the interpretation section does not include a definition of document.

In s. 3 of the Evidence Act document is defined as follows:

" 'document' means any matter expressed or described upon any substance by means of letters, figures

or marks, or by more than one of these means intended to be used, or which may be used, for the purpose of recording that matter."

The above quoted section defines document in fairly general terms which may

include a bank note. The Evidence Act does not define a bank note, nor does the Bank of Uganda Act define it.

S. 323A of the Penal Code Act states:

> "In this division of this Code (division VII dealing with Forgery, Coining, Counterfeiting and similar offences) bank note and currency note include any notes (by whatever name called) which are legal tender in the country in which they are issued."

This is obviously an inclusive definition which does not assist in the present case.

A currency note is not in my view a document in the ordinary sense of the word. It is a legal tender or paper money and it was incorrect for the prosecutor to describe the forged currency note as a document. In *Francisco Tera v. Uganda*, H.C. Cr. App. 708 of 1963, Udo Udoma, C.J. who was confronted with a case which was on all fours with the instant one was also of the view that a forged bank note is not a document.

In the present case the accused tendered the bank note to the barman not as a document but as money in exchange for beer. It appears to me therefore that the charge ought to have been laid under s. 6 (1) of the Currency Notes Act (Cap. 151) which provides:

> "6(1) If any person, with the intent to defraud, forges or alters any currency note, or, knowing any note purporting to be forged or altered, utters the same, he shall, on conviction, be liable to imprisonment for a period not exceeding ten years."

Better still the charge could have been laid under s. 336 of the Penal Code which provides:

> "336. Any person who, without lawful authority or excuse, the proof of which lies on him, imports into Uganda or purchases or receives from any person, or has in his possession, a forged bank note or currency note, whether filled up or in blank, knowing it to be forged is guilty of a felony and is liable to imprisonment for seven years."

Holding as I do that the charge was wrongly laid under s. 330 of the Penal Code I quash the conviction and set aside the sentence.

The trial Chief Magistrate made the following order:

> "Accused is ordered to pay for the drinks he consumed."

That order has no basis in law and it is accordingly set aside.

*Order accordingly.*

No appearance for the parties.

## Charman v Republic
[1973] 1 EA 494 (HCK)

| | |
|---|---|
| **Division:** | High Court of Kenya at Nairobi |
| **Date of judgment:** | 2 November 1973 |
| **Case Number:** | 499/1973 (130/73) |
| **Before:** | Trevelyan & Muli JJ |
| **Sourced by:** | LawAfrica |

*[1] Traffic – Parking offence – Meter operated only by coin – Meter properly approved by Minister – Traffic Act* (*Cap.* 403), *ss.* 72, 72 *B* (*K.*).

*[2] Traffic – Parking offence – Excess charge note – Whether attached to vehicle – Traffic Act* (*Cap.* 403), *s.* 72 *C* (*K.*).

**Editor's Summary**

The appellant was convicted of parking for an excessive period at a parking meter erected at a designated parking space in Nairobi. The meter concerned operated automatically on the insertion of a coin. The excess charge note was placed under the windscreen wiper of the appellant's vehicle and was not otherwise attached to it.

On appeal it was contended that the Traffic Act envisaged only meters which required the turning of a handle to operate them, that the particular type of meter had not been approved by the Minister, and that the excess charge note had not been attached to the vehicle.

**Held** –

(i) the Minister may approve parking meters operated in any manner;

(ii) the meter had been approved by the Minister;

(iii) the note had been attached to the vehicle (*Laing v. Bishopwearmouth* (1) considered).

Appeal dismissed.

**Case referred to in judgment:**

(1) *Laing v. Bishopwearmouth* (1877), 3 Q.B.D. 299.

**Judgment**

The considered judgment of the court was read by **Trevelyan J:** The Traffic (Amendment) Act, 1968 was passed, as its long title tells us, to provide for the designation of parking places on roads, and for the regulation of the use of such places when so designated. It inserted a number of sections in the Traffic Act (Cap. 403) and gave local authorities power to make by-laws designating, and regulating the use of, such parking spaces in the areas of their respective jurisdictions as might be so designated. Thus empowered, the Nairobi City Council designated parking places in Nairobi and provided parking meters for each space within them. The council erected meters of two kinds, those brought into operation simply by the insertion of an appropriate coin, and those requiring, not only the insertion of such a coin, but also the manipulation of a handle to engage the mechanism inside them. We are, in this appeal, concerned with the former, automatic type, for it is the appellant's contention that they have been brought into use without benefit of law. He says that they are of a type not contemplated by the legislature, and that even if they are, they have not been approved for use as in the Act provided.

The argument in support of the contention that automatic meters are outside the contemplation of the Act was put to us with disarming simplicity in this way: s. 72 I defines parking meters as parking meters within the meaning of

s. 72 B (4) and, as this subsection envisages only meters requiring both the insertion of a coin and the manipulation of a handle to operate them, any other type of meter must be unlawful. The subsection reads:

> "(4) A parking meter of a type approved by the Minister shall be provided for each space in a designated parking place, and shall be erected as close to that space as is practical; and
>
> (*a*) payment of the initial charge shall be made by the insertion of coins in the parking meter and turning the handle of the parking meter to its full extent so as to indicate the length of time paid for;"

What we are asked to hold is that as the definition of a parking meter in s. 721 I does not say, "unless the context otherwise requires", the wording of s. 72 B (4) admits of no alteration but must be construed strictly, and, as it says that payment of the initial charge shall be made by the insertion of a coin and the turning of a handle, it envisages that the Minister may only validly approve a meter if the initial charge can only be indicated on it after a coin has been inserted and a handle turned. The argument has no intrinsic merit, for it can make no difference to a motorist so long as the meter, when activated, shows that he has bought a certain amount of parking time. But it is superficially attractive, particularly as under s. 72 G (1) (*a*):

> "Where – a vehicle is left in a designated parking place, and any initial charge or excess charge which is thereby incurred is not duly paid . . . the owner of the vehicle and the driver of the vehicle shall each be guilty of an offence . . ."

But the argument is untenable. We are not persuaded that the very wide power given to the Minister in the opening words of subsection (4) was intended to be, or is, limited by what appears in its paragraph (*a*). If the legislature had intended to limit the Minister's discretion as to the type of meter available to him to approve, that limitation would certainly have been included in the wording which appears before the semi-colon, and not after it, and the subsection would have commenced something like this:

> "A parking meter of a type operated by the insertion of a coin and the turning of a handle, approved by the Minister shall be provided for each space in a designated parking place. . . ."

It may, and with respect may validly, be said that the subsection does not disclose drafting at its best, but we can, nonetheless, detect no restriction on the Minister's powers of approval in it.

There is support for our view to be found elsewhere in the Act, as we believe. S. 72 G (6) reads:

> "In a prosecution for an offence under this section, it shall be assumed unless the contrary is shown that any apparatus in or adjacent to a designated parking place, being an apparatus operated by the insertion of coins is a parking meter of a type approved under section 72 B (4) of this Act."

We are asked to hold that this provision cannot, for all that it says, be read with s. 72 B (4) because it refers to apparatus operated by the insertion of coins, and s. 72 B (4) concerns itself only with apparatus operated both by the insertion of coins and the turning of handles. But it is not so. Whether one needs to do no more than to insert a coin or has also to turn a handle makes no difference to the fact that in each case the meter is operated by a coin. But leaving that aside, s. 72 G (6) envisages, as we believe, not only apparatus operated by the insertion of coins, but apparatus otherwise operated as well, perhaps by tickets

(as on London's underground railway system) or a key. We think this must be so because, otherwise, there was no need for the draftsman to have inserted the words, "being an apparatus operated by the insertion of coins" at all. All that would have been needed was:

> "In a prosecution for an offence under this section, it shall be assumed unless the contrary is shown that any apparatus in or adjacent to a designated parking place is a parking meter of a type approved under section 72 B (4) of this Act."

Not only do we think that the Minister is not restricted to meters operated only by the conjoint use of a coin and a handle, but we believe that he is not even restricted to those needing the insertion of coins. We observe that s. 72 G (1) (*a*) (which we have earlier set out) uses the expression "any initial charge" and not "the initial charge". As we see it, what s. 72 G (6) does is to provide a rebuttable presumption in favour of the validity of parking meters operated by coins; and that is all. The penalty section need cause us no concern. In our view, automatic parking meters are within the definition of parking meters within the Act.

But let us consider the matter from the standpoint of the argument put to us by the appellant *and* on the assumption that there was available in Kenya, at the time when the amending Act was passed, only one kind of parking meter, namely that brought into operation only by inserting a coin and turning a handle. The prime object of the amending Act was not the provision of parking meters, but of parking places on roads, which is clear from its long title and s. 2 which says that it has inserted two new Parts into the principal Act, one of which, Part VIB, says nothing about parking meters at all. That being so, it seems to us, that the principle of excessively strict construction is not for application to the definition of a parking meter where it occurs in the Act. The prime object of the Act can be achieved whether the parking meters provided have or do not have handles. If we are right about that, and as the language of a statute is for extension to new things not known and not contemplated when it was passed, the language used in relation to parking meters in the Act would inevitably require to be extended to automatic meters. We say this because the doctrine occurs when an Act deals with a genus, and the thing which afterwards comes into existence is a species of it, and a parking meter without a handle is simply one kind of parking meter. However as the matter was not argued before us, and in view of our earlier finding upon the language of the Act itself, we do not, nor do we need to, rely upon this in arriving at our decision.

So, too, do we believe that the Minister has properly approved those parking meters with which we are concerned. The appellant relied on a letter from the Minister's Permanent Secretary saying that the Minister had approved the use both of automatic and manual meters "in principle" taking the point that the words we have quoted indicate that something more remained to be done. But we do not believe it to be so. The letter simply means that the Minister had approved both types of parking meters and the Council could erect whichever it wished. In any case the Minister's approval, in his own handwriting, was produced in evidence in the court below. Publication is not called for in the Act.

We are urged to say that the convictions cannot, in any event, be allowed to stand because the excess charge notes were placed between a windscreen wiper and the windscreen itself, and so were not "attached" to the vehicle within the meaning of s. 72 C (1) of the Act. This section reads:

> "Where an excess charge has been incurred in respect of a vehicle, an inspector shall attach to the vehicle in a conspicuous position a notice, which shall contain the prescribed particulars."

The argument is that unless a notice is affixed to a vehicle by gum, stuck on with cellotape, or put in a waterproof bag which is tied to a vehicle, it cannot be said to be attached to it. The section does not use the word “affix”, and we do not apprehend that an inspector need go about his duties encumbered by a pot of gum, a roll of cellotape of a collection of waterproof bags. The subsection uses the word “attach”, and, as Cockburn, C.J. pointed out in *Laing v. Bishopwearmouth* (1877), 3 Q.B.D. 299, this word does not always mean physically fastened. He said that it might mean superincumbent upon. In the court below, the magistrate took the view that the word, for the purpose of the Act, meant, “A temporary or slight joining so as to admit of each undoing”, and that to put a notice between a windscreen wiper and the windscreen is an attachment within the Act. We are quite satisfied that the mode impugned is sufficient, and perhaps the best means to employ, for its purpose.

The appellant was correctly convicted.

*Appeal dismissed.*

For the appellant:
*Swaraj Singh*

For the respondent:
*A. R. Rebelo* (State Counsel)

## Shabani v Karada Co Ltd
[1973] 1 EA 497 (HCT)

| | |
|---|---|
| **Division:** | High Court of Tanzania at Dar es Salaam |
| **Date of judgment:** | 30 May 1973 |
| **Case Number:** | 28/1972 (132/73) |
| **Before:** | Onyiuke J |
| **Sourced by:** | LawAfrica |

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*[1] Civil Practice and Procedure – Hearing – Adjournment – Consent letter filed by advocates – Whether adjournment automatic – Possibility of settlement – Whether adjournment should be granted – Civil Procedure Code O.* 9, *r.* 1, *O.* 17, *r.* 1. (*T.*).

**Editor’s Summary**

On 3 March 1973 the case was fixed for hearing on 30 May 1973. On 26 May 1973 the advocates for the parties filed a consent letter requesting that the case be removed from the hearing list of 30 May 1973. This letter was dated 22 May 1973.

Both counsel were informed that the court had directed the case should proceed to trial as originally fixed. When the case was called for hearing on 30 May 1973 the advocates stated that they were not ready to go on with the case as their witnesses were not available. They alleged that where a consent letter was filed before the preparation of the weekly cause list an adjournment was automatic. They also contended that it was not possible after 26 May for witness summonses to be filed and to be

served on witnesses in time to enable them to attend. They also stated that they did not take out summonses because they were trying to settle the case and did not wish to incur unnecessary expense.

**Held** –

(i) a consent letter can be no more than an application for an adjournment or a notice of an intention to apply for an adjournment of a case;

(ii) there is a limit to which the plea of possibility of settlement can be urged as a ground for adjourning a case; in the circumstances the prospect of settlement could not be a valid reason to adjourn the case any further.

Adjournment refused.

**No cases referred to in judgment.**

**Judgment**

**Onyiuke J:** When this case was called up for hearing this morning Mr. Rahim for the plaintiff, referred to a "consent letter" signed by both counsel for the parties and addressed to the Registrar in these terms:

> "With the consent of the plaintiff's advocates hereunder signified, be pleased to remove the above case from the hearing list of 30 May, 1973 and mention the same on 9th June, 1973, for necessary orders."

This letter was dated 22 May, 1973. Both counsel agree that they were informed on 26 May 1973, that the court had directed that the case should proceed to trial as originally fixed. They stated however, that they were not ready to go on with the case as their witnesses were not available. They also indicated there was some possibility of settlement and that negotiations were being currently carried on to effect an amicable settlement. I will deal with this aspect of the matter later in this ruling, after I have disposed of the point raised by counsel for the defendant.

Briefly stated, Mr. Kinariwalla of the Tanzania Legal Corporation states that it is the practice that if counsel "want to remove a case from the hearing list they can do so by filing a 'consent letter' at any time before the weekly cause list is prepared", and according to this practice once this is done "the case should automatically be removed from the hearing list". If this alleged practice is meant to be more than a notice of intention to apply for an adjournment on the date fixed for the hearing of the case, I find myself unable to subscribe to it for the following reasons:

(i) The alleged practice is contrary to the clear provisions of the Civil Procedure Code. O. 9, r. 1 provides as follows:

> "When a summons to appear has been issued on the day fixed in the summons for the defendant to appear or where a summons to file defence has been issued and a day for the hearing is fixed in accordance with the provisions of Rule 15 of Order VIII, on the day so fixed for hearing, the parties shall be in attendance at the court-house in person or by their respective recognized agents or advocates, and the suit shall then be heard unless the hearing is adjourned to a future day fixed by the court."

The power to grant adjournment is governed by O. 17, r. 1:

> "(1) The court may, if sufficient cause is shown, at any stage of the suit grant time to the parties or to any of them, and may from time to time adjourn the hearing of the suit;
>
> (ii) In every such case the court shall fix a day for the further hearing of the suit, and may make such order as it thinks fit with respect to the costs occasioned by the adjournment:
>
> Provided that, when the hearing of the evidence has once begun, the hearing of the suit shall be continued from day to day until all the witnesses in attendance have been examined, unless the court finds the adjournment of the hearing beyond the following day to be necessary for reasons to be recorded."

An adjournment cannot be granted as of right but can only be granted for

sufficient cause. It involves therefore an exercise of discretion by the court and this must be exercised judicially. To allow a "consent letter" to have the automatic effect claimed for it cannot be said to be a judicial exercise of discretion. It is an abdication of function. It takes the trial of a case out of the control of the court and makes the advocates for the parties the final arbiters as to when it shall be tried. It is my view that once pleadings are closed in a case, it is the duty of the court to dispose of it with reasonable despatch. It is, of course, open to the parties to withdraw the case and settle it out of court but so long as the case is pending before the court it is not open to advocates to control the trial of the case or to alter the date fixed for the hearing of the case by filing "consent letters".

(iii) The alleged practice can easily lend itself to abuse and thereby hinder the work of the court. It does not require much foresight to appreciate that "automatic" adjournments by "consent letters" can lead to unnecessary accumulation of case with consequent delay in the administration of justice. It can be used for the convenience of advocates without reference to or even to the prejudice of, the interests of the parties to the case.

For these reasons I rule that a "consent letter" filed by the advocates for the parties can be no more than an application for an adjournment or a notice of an intention to apply for an adjournment of a case. "Each consent letter" has to be considered on its merits. It cannot affect the principle adumbrated in the Civil Procedure Code that an adjournment can only be granted for sufficient cause. It would be wrong for advocates to assume that once a "consent letter" is filed, they are at liberty to advise the parties and their witnesses not to attend on the date fixed for the hearing of the case. It would be equally unwise for advocates to wait till the very last moment to file their "consent letter". This case was mentioned on 3 March 1973, before the registrar in the presence of the advocates for the parties and was then fixed for hearing on 30 May 1973. They had about two months to file witness summonses but they did not do so. It was not until 26 May, that they filed their "consent letter". They now contend that it was not possible after 26 May, for witness summonses to be filed and to be served on the witnesses in time to enable them to attend for hearing on 30 May, as all the witnesses lived about 300 miles away. This cannot be a valid reason to grant an adjournment as they had all the time from 3 March to take such steps. They then stated that they did not take out witness summonses because they were trying to settle the case and did not wish to incur unnecessary expenses by taking out witness summonses while negotiations were going on. This brings me to the second ground for application for adjournment. It was stated that there was some prospect of amicable settlement of the case and that an adjournment should be granted to facilitate settlement. This court should normally encourage and even promote an amicable settlement of a civil case pending before it. A case that is settled amicably is likely to promote harmony between the parties. I have, however, to consider this point against the background of this case. The plaint in this case was filed on the 24 March, 1972. The defence was filed on 6 July 1972. The case was, therefore, ready for hearing in July 1972, and was, in fact, mentioned before the registrar on 8 July, 1972 in the presence of the advocates for the parties. It was mentioned on eight subsequent dates and finally on 3 March 1973 when hearing was fixed for 30 May 1973. On each of these occasions the advocates for the parties were present. They had ample opportunity to have this case settled amicably. I think it would be wrong for this court, to allow a case to be pending before it for an undue length of time merely because it is suggested that there is a possibility of settlement of the case. There is a limit to which the plea of possibility of settlement can be urged as a ground for adjourning a case. A suit ought to be settled with reasonable dispatch or else be disposed of by trial in court. The parties had nine months to

settle it. In the circumstances I hold that this alleged prospect of settlement can not be a valid reason to adjourn this case any further.

In view of the foregoing, I rule that the hearing of this case should proceed.

*Order accordingly*

For the plaintiff:
*M. B. H. Rahim* (instructed by *M. G. Pardhan & Co.*, Dar es Salaam)

For the defendant:
*A. G. Kinariwalla* (instructed by the *Legal Corporation* of Tanzania)

## Republic v Cheya & another
[1973] 1 EA 500 (HCT)

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|---|---|
| **Division:** | High Court of Tanzania at Dar es Salaam |
| **Date of judgment:** | 26 February 1973 |
| **Case Number:** | 51/1972 (133/73) |
| **Before:** | Mfalila Ag J |
| **Sourced by:** | LawAfrica |

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*[1] Evidence – Death – Cause of and fact of – May be proved by other than medical evidence.*

*[2] Criminal Law – Murder – Common intention – Accused part of group – No proof of common intention – Accused not responsible for acts of group – Penal Code, ss.* 23, 200 (*T.*).

*[3] Criminal Practice and Procedure – Minor offence – Assault causing actual bodily harm a minor offence cognate to murder – Criminal Procedure Code, s.* 181 (*T.*).

**Editor's Summary**

The two accused assaulted and tried to remove the deceased from a group of women at a dance because they objected to his behaviour. Other people joined in and assaulted the deceased who later died.

At the trial of the accused for murder no post-mortem report was produced and the prosecution relied on the evidence of eye-witnesses to establish the death of the deceased and its cause. For the accused it was contended that there was no common intention of the mob and no proof that any blow inflicted by the accused caused the death of the deceased.

**Held** –

(i) the fact of death and the cause of it could be established otherwise than by medical evidence;

(ii) the deceased died from the beating he received;

(iii) a common intention to pursue an unlawful purpose is necessary before the numbers of a group are responsible for the actions of the group (*Abdi Alli v. R.* (1) and *Mungai v. Republic* (3)

followed);

(iv) assault causing actual bodily harm is a cognate minor offence to murder of which the accused could be convicted.

Accused convicted of assault causing actual bodily harm.

**Cases referred to in judgment:**

(1) *Abdi Alli v. R.* (1956), 23 E.A.C.A. 573.

(2) *Afia v. R.*, [1963] E.A. 363.

(3) *Mungai v. Republic*, [1965] E.A. 782.

**Judgment**

**Mfalila Ag J:** The two accused stand charged with the murder of Musa, the prosecution alleging that on 16 August 1971 they with malice aforethought caused the death of Musa.

The facts of the case as presented by the prosecution reveal that on 15 August 1971 Jacob Michael, staged an ngoma attended by his fellow Makonde tribesmen to mark the circumcision of his children. A large number of people attended this ngoma including Katarina binti Michael, Mbwana Salum, and numerous other people whose presence is not of immediate importance at the moment. The events that took place while this ngoma was proceeding were largely narrated in evidence by Katarina Michael who said that she was Jacob Michael's sister and that she was also present at this ngoma ceremony. She went on to say that both the accused whom she knows, were present at this ceremony as well as the deceased Daudi Musa. She said that as the ngoma was proceeding, a quarrel erupted principally between the two accused and Daudi Musa. According to her the quarrel started when the deceased went to dance in the women's group and started playing with the women by fondling and patting them on their buttocks. The two accused took objection to this behaviour and they asked the deceased to move away from the women's group and join the men's group if he wished to dance. The deceased refused and continued playing with the women. The two accused persons therefore forcibly tried to remove the deceased from the women's group. The second accused picked up an iron pipe and assaulted the deceased with it; the first accused similarly started beating the deceased and then the whole group of dancers set upon the deceased and viciously assaulted him. At that stage Katarina Michael said that she did not see anything that happened afterwards because the circumcised children were being led into the house and according to the Wamakonde customs the women had to bend their heads as the circumcised children were being led by. Other witnesses related substantially a similar story but with additions which they saw but were missed by Katarina Michael when she and other women had to bend down as the children were being led into the house.

Juma Hassan said that when he heard a lot of noise from the direction of Jacob Michael's home where the ngoma had been staged he proceeded there and saw the deceased whom he knew already badly beaten up but he was holding on to the first accused and insisting that he would not let him free until he mentioned the other Makonde tribesmen who had taken part in assaulting him.

Mbwana Salum stated that while he was at this ngoma he saw the Wamakonde start beating up the deceased because they did not want him to take part in their ngoma as he was a Makua by tribe. He did not see the deceased, as alleged by Katarina Michael, fondling the women. The group of Wamakonde continued assaulting the deceased even after he had run away and entered a nearby house. During the last stages of this assault the deceased held on firmly to the first accused who was one of the assailants and said he would not let him free. Mbwana Salum ran to the police station at Buguruni to make a report. According to Mbwana Salum and the other witnesses the deceased proceeded to the police station while still holding to the first accused. He was later taken to the hospital where he died a day or two later.

The two questions for determination at this stage are: first whether Daudi Musa is in fact dead as alleged and second if so what was the cause of his death. There is no medical evidence proving the deceased's death and the cause of it. The post mortem report which the prosecution sought to introduce in evidence was ruled inadmissible even under s. 275 of the Criminal Procedure Code because in the first place it was not signed by whoever prepared it and secondly the qualifications of whoever prepared it were not shown on the report. In these circumstances I held that the presumption under s. 275 (2) of the Criminal

Procedure Code was inoperative. However the absence of medical evidence as to death and the cause of it is not fatal because as I said at that stage post mortem reports primarily are evidence of two things: the fact of death and the cause of it. Therefore it was open to the prosecution to produce and rely on other evidence to establish these two facts. This is what the prosecution strenuously attempted to do in this case.

[The judge considered the evidence on this point and continued.]

On the evidence of these witnesses I directed the assessors that if they believed this evidence they would be perfectly entitled to arrive at the conclusion that Daudi Musa is in fact dead. The assessors accepted the evidence of these witnesses and they arrived at the conclusion that Daudi Musa is in fact dead. I think this conclusion is necessary once the evidence of these witnesses is accepted and I therefore have nothing but agreement with the views of the assessors and, therefore like them, I find and hold that Daudi Musa is in fact dead.

The second question for disposal is the cause of the deceased's death. Again in the absence of medical evidence one can only fall back on the evidence given by various prosecution witnesses who not only saw the deceased being assaulted but saw him at the hospital and later his dead body.

[The judge considered the evidence and continued.]

On the evidence of these witnesses I directed the assessors that if they accepted the evidence that the deceased Daudi Musa was viciously assaulted and injured to the extent that was alleged and that he was bleeding in places described by Sadiki Iddi, and that he was admitted in hospital with these injuries, and that he died one or two days later, they would be perfectly entitled to find that the deceased Daudi Musa died of the injuries which he received at the hands of the mob which attacked him.

Like the assessors I am perfectly satisfied on the evidence that the deceased Daudi Musa died of the injuries which he sustained after being attacked by a group of people at the ceremonial ngoma staged to mark the circumcision of the children at Jacob Michael's home.

On this evidence and having established that Daudi Musa is dead and that he died from injuries he received after being assaulted at this ngoma, the prosecution case is that the two accused persons who have been sufficiently identified by various prosecution witnesses, who gave evidence that they the accused, were part of the gang or mob which assaulted the deceased inflicting the severe injuries from which injuries the deceased died later and that considering the nature of the injuries inflicted, this mob must have intended either to kill the deceased or at least to cause him grievous bodily harm, the two accused persons who were part of this mob shared this intention thereby making them directly responsible for the death of the deceased which in the circumstances amounted to murder.

[The judge considered the evidence and continued.]

I am therefore satisfied, like the assessors, that the two accused persons attended this ngoma and took part in the assault that was perpetrated against the deceased by the general mob. I therefore find and hold that the deceased was assaulted by a group of people who included the two accused persons and that the deceased died of these injuries later.

On these facts, what offence, if any, can the accused persons be said to have committed, remembering that they are charged before this Court with the murder of the deceased.

Before proceeding further with the determination of the question concerning

the offence with which the accused persons are charged, I will start off by setting out in detail the law that is applicable in the circumstances which will form the basis of the final decision.

S. 23 of the Penal Code provides as follows:

> "23. When two or more persons form a common intention to prosecute an unlawful purpose in conjunction with one another, and in the prosecution of such a purpose an offence is committed of such a nature that its commission was a probable consequence of the prosecution of such purpose each of them is deemed to have committed the offence."

S. 200 of the Penal Code provides as follows:

> "200. Malice aforethought shall be deemed to be established by evidence proving any one or more of the following circumstances:
>
> (*a*) an intention to cause the death of, or to do grievous harm to any person, whether such person is the person actually killed or not;
>
> (*b*) knowledge that the act or omission causing death will probably cause the death of or grievous harm to some person, whether such person is the person actually killed or not, although such knowledge is accompanied by indifference whether death or grievous bodily harm is caused or not, or by a wish that it may not be caused;
>
> (*c*) an intent to commit a felony;
>
> (*d*) an intention by the act or omission to facilitate the flight or escape from custody of any person who has committed or attempted to commit a felony."

S. 203 of the Penal Code provides as follows:

> "203. A person is deemed to have caused the death of another person although his act is not the immediate or sole cause of death in any of the following cases:
>
> (*a*) if he inflicts bodily injury on another person in consequence of which that other undergoes surgical or medical treatment which causes death, in this case it is immaterial whether the treatment was proper or mistaken, if it was employed in good faith and with common knowledge and skill; but the person inflicting the injury is not deemed to have caused the death if the treatment which was its immediate cause was not employed in good faith or was so employed without common knowledge or skill;
>
> (*b*) if he inflicts bodily injury on another which would not have caused death if the injured person had submitted to proper surgical or medical treatment or had observed proper precautions as to his mode of living."

It is in the light of these legal provisions that the respective submissions of counsel will be reviewed. The state attorney submitted that the two accused persons took part in concert with other Wamakonde to assault the deceased thereby inflicting bodily injuries. The assault and the resulting injuries indicated that a great deal of violence was used and from this it was possible to infer that this group of people intended either to kill or to cause grievous harm, and that since the deceased died from these injuries, the two accused persons must be regarded to have caused the deceased's death within the meaning of s. 203 of the Penal Code, and that since the intention to kill or to cause grievous harm can be inferred from the nature of the injuries, they are guilty of murder. He went on to say that there was no need for the prosecution to prove which accused inflicted which particular blow which proved fatal. He relied for this proposition on the

case of *Mungai v. Republic*, [1965] E.A. 782. I will deal with the facts of this case later when I come to consider common intention.

On the other hand defence counsel submitted that there was no evidence to support a charge of murder or manslaughter against the two accused because first the prosecution has not led any evidence to prove malice aforethought as defined under s. 200 of the Penal Code. Secondly in the absence of proof of common intention on the part of the mob either to commit a felony or to kill the deceased there must be proof that the specific blow inflicted by a particular accused caused the death of the deceased. No such evidence exists.

Perhaps at this stage it will be profitable to start off with matters that are not disputed or seriously controversial. It is accepted that the deceased was attacked, assaulted and injured by a mob. This mob included the two accused persons. Therefore, the prosecution contended, under the provisions of s. 23 of the Penal Code, the two accused persons are guilty of murder because they must take joint responsibility for the consequences of the actions of the mob of which they were a part. The state attorney said that the result of the *Mungai* case was that it established joint and equal responsibility for every member of the group which took part in the commission of a certain offence and all that flowed from it.

But I think that the decision in the *Mungai* case presupposes the existence of a common intention in the group and this is what is envisaged before the provisions of s. 23 Penal Code can be brought into play. In the *Mungai* case the court found present a common intention, the common intention being to rob with violence. Therefore when one of the accused in that case used violence and killed the shopkeeper everybody present and who took part in that robbery was guilty of murder. In the same case the Court of Appeal held that in order to make the section applicable it must be shown that the accused had shared with the other perpetrators in the crime a common intention to pursue a specific unlawful purpose which led to the commission of the offence charged.

In another case originating from British Somaliland *Abdi Alli v. R.*, 23 (1956) E.A.C.A. 573 the Court of Appeal dealt with a similar situation under the Indian Penal Code when it specifically held that the test for joint responsibility is common intention: the court continued at p. 575:

> "It is not sufficient for joint responsibility for an offence under this section that the offence actually committed was likely to occur as a result of several persons acting together, but that the existence of a common intention being the sole test of joint responsibility it must be proved what the common intention was and that the common act for which the accused were to be made responsible was acted upon in furtherance of that common intention. The presumption of constructive intention must not be too readily applied or pushed too far. The mere fact that a man may think a thing likely to happen is vastly different from his intending that that thing should happen. The latter ingredient is necessary under this section, the former by itself is irrelevant to the section. It is only when a court can, with some judicial certitude, hold that a particular accused must have preconceived or premeditated the result which ensued or acted in concert with other in order to bring about that result that this section can be applied."

I think that the present case must be viewed in the light of these pronouncements regarding the accuseds' actions with other members of the mob in attacking the deceased and also the necessary ingredient of common intention with regard to both the act and its consequences.

In this case the common intention to be proved is either to kill or to cause grievous bodily harm. I think that the present case is on all fours with the case

of *Afia v. R.*, [1963] E.A. 363 where the Court of Appeal held that a common intention was the necessary pre-requisite before applying s. 22 of the Uganda Penal Code which is similar to our s. 23, and while still on the same point the Court continued:

> "It is also impossible to say that each of the two blows described by the witnesses must necessarily by itself have caused death, the medical evidence that the depressed fracture was under one blow indicates the contrary. It must therefore be accepted that one of the appellants struck the blow with whatever intent which would not have caused death, and that it is not possible to say which appellant that was. It follows that neither is liable to be convicted of murder unless it is proved that the appellants had a *common intention* to attack the deceased with intent to causing grievous harm or that one aided and abetted the other in such an attack with the like intent."

I think that the same can be said for the facts discussed in this case where the assault on the deceased by the mob appears to have been spontaneous. Everybody present at the ngoma joined in the assault with different motives, some no doubt for the fun of it, so that although it is possible for a common intention to develop later in the course of the events, such a course is difficult to arrive at in the present case where a large group of people was involved and each member of this group joined the fracas at different times depending on the time of his arrival at the scene. Therefore I think that a common intention subsequent to the original event can only be inferred in situations which are uniform from the start and such uniformity persists to the end. In the present case all that emerges is the evidence of independent actions by each member of this mob including the two accused persons. Therefore, like the *Afia* case I hold that the case presented against the accused persons in this case cannot support the finding of common intention so as to invoke the provisions of s. 23 of the Penal Code. There is no medical evidence to support the contention by the state attorney that the two accused persons can be said to have caused the deceased's death within the meaning of s.203 of the Penal Code, or that the specific injuries which they inflicted on the deceased in the course of this attack resulted in his death. It is for these reasons that I respectfully agree with the views of the assessors that on the state of the evidence it is not possible to link the two accused with either the murder or the manslaughter of the deceased.

However, s. 181 (2) of the Criminal Procedure Code provides:

> "When a person is charged with an offence and facts are proved which reduce it to a minor offence, he may be convicted of the minor offence although he was not charged with it."

The wording of this section is permissive and as the Court of Appeal re-stated its opinion in the *Afia* case, this power should be sparingly used particularly where as in this case a major offence charged is murder and the alternative offence for which conviction is sought to be entered is one other than manslaughter. It is therefore important that the alternative offence sought to be entered must belong to the same category with the major offence. I think this is a necessary as well as a desirable precaution, because if the alternative minor offence belongs to the same category as the major offence it reduces the chances of the accused's interests being prejudiced.

Now in the present case it is accepted that each accused took part in assaulting the deceased and certainly caused him bodily injuries. This offence is a misdemeanour under s. 241 of the Penal Code punishable with imprisonment for 5 years. Both accused persons offered the same defence completely denying committing the assault on the deceased as alleged by the prosecution. I am therefore satisfied that this is one of those rare cases where the discretionary

power under s. 181 (2) of the Criminal Procedure Code to enter a conviction for an alternative offence to murder can properly be exercised.

In the result I find both accused persons not guilty of the offence of murder, but find them guilty of the alternative offence of assault causing actual bodily harm contrary to s. 241 of the Penal Code and accordingly I convict both of them of this offence.

*Order accordingly.*

For the Republic:
*M. R. Mrema* (State Attorney)

For the accused:
*O. E. C. Chirwa, Q.C.* (instructed by *Chirwa & Co.*, Dar es Salaam)

## Jessa v Zorilla
[1973] 1 EA 506 (HCT)

| | |
|---|---|
| **Division:** | High Court of Tanzania at Dar es Salaam |
| **Date of judgment:** | 14 October 1972 |
| **Case Number:** | 19/1971 (134/73) |
| **Before:** | Onyiuke J |
| **Sourced by:** | LawAfrica |

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*[1] Land – Licence – Agreement to purchase – Purchaser in possession – Licence only [2] Rent Restriction – Standard rent – Assessment – Premises partly residential and partly commercial – Question of main user not resolved by the tribunal – Standard rent fixed cannot stand – Rent Restriction Act* (*Cap.* 479), *s.* 2 (2) (*T.*).

**Editor's Summary**

This was an appeal against the order of the rent tribunal of Dar es Salaam fixing the standard rent in respect of the suit premises. The appellant was the owner of land in Dar es Salaam on a 99 year lease. The appellant agreed to sell the land for Shs. 666,800/-. The respondent went into occupation of the premises. Consent to the agreement was refused by the Commissioner of Lands. Thereupon the respondent applied to the rent tribunal to fix the standard rent of the premises.

On appeal it was argued for the appellant that the position of the respondent was in the nature of a licensee. It was submitted that the transaction between the parties was an agreement of purchase transaction, was rendered void when the Commissioner for Lands refused his consent. The tribunal had not considered whether the premises were mainly used for residential purposes.

**Held** –

(i) the relationship of landlord and tenant never existed between the parties;

(ii) the rent tribunal had no jurisdiction to entertain the application;

(iii) the tribunal had not considered whether the premises were mainly used for residential purposes and their assessment could not stand.

Appeal allowed.

**Case referred to in judgment:**

(1) *Clarke v. Sondhi*, [1963] E.A. 107.

**Judgment**

**Onyiuke J:** This is an appeal against the order of the Rent Tribunal of Dar es Salaam dated 30 April 1971 fixing the standard rent in respect of the suit premises.

> The whole case appeared at first sight to be bewildering and of great complexity. Biron, J. before whom the appeal was argued on 24 September 1971 noted with justification as follows: "Now, gentlemen, before we start I would like to know what your cases are, because I find the proceedings confusing." In spite of strenuous efforts to get counsel for the parties to state what precisely their cases were and the proceedings in this regard covered 8 pages of type no progress was made and further hearing was adjourned by consent. At the resumed hearing the case came before me on 4 April 1972 and I must confess I experienced the same difficulty as Biron, J. The case was argued on various dates within a period of 3 months in an effort to unravel the tangled skein. The truth was that the case started on a doubtful premise namely, that the relationship between the parties was that of landlord and tenant. The rent tribunal was led to act on the assumption that the rent paid was exhorbitant and the real issue was the fixing of a standard rent. The arguments on appeal have exposed the true position and have called in question the very jurisdiction of the rent tribunal to entertain the matter and the correctness of the procedure it adopted in fixing the standard rent assuming it had the jurisdiction to do so.

The appellant was the owner of a parcel of land on Lugalo Road, Upanga, Dar es Salaam, which was converted into a term of 99 years by virtue of the Freehold Titles (Conversion) and Government Leases Act (Cap. 523). The respondent was the Ambassador of the Republic of Cuba in Tanzania. By an agreement dated 29 December 1969 between the appellant and the Embassy of Cuba at Dar es Salaam the appellant agreed to sell and the Embassy of Cuba agreed to buy, subject to the consent of the Land Officer being obtained, at the price of Shs. 666,800/- the said plot together with buildings thereon for "the unexpired residue of a term of 99 years created by virtue of the Freehold Titles (Conversion) and Government Leases Act 1963 now vested in the Vendor. . . ." This agreement was tendered by the respondent in the proceedings before the Board. By the terms of this agreement Shs. 316,800/- was alleged to be already paid by instalments and the purchase was to be completed not later than 31 January 1970 and the balance of the purchase price was to be paid on or before the completion date. The agreement was duly submitted to the Commissioner of Lands for his consent to it. He refused to give his consent apparently on the ground that the purchase price was too high. Thereupon the respondent applied to the rent tribunal of Dar es Salaam to fix the standard rent in respect of the said premises. In the application, it was stated that the current rent was Shs. 52,000/- per annum and the premises were used as partly residential and partly as an Embassy. Acting on the assumption that the relationship of landlord and tenant existed between the parties the rent tribunal made an order on the appellant to comply with s. 13 (1) of the Rent Act. In compliance with the order the appellant made an application for determination of the standard rent in respect of the premises. In his application the appellant stated that the premises were used partly for residential purposes and partly for commercial purposes. He assigned Shs. 36,000/- per annum as the rent for the part used for commercial purposes and Shs. 16,800/- per annum as the rent for residential purposes making a total of Shs. 52,800/- per annum. The rent tribunal considered both applications together and fixed the standard rent for the premises at Shs. 3,366/- per month or Shs. 40,392/- per annum. The appellant has appealed to this court against the order.

Mr. Uzanda for the appellant has raised two main points in this appeal. He submitted that the transaction between the parties was an agreement of purchase of the lease for the residue of the term at the price of Shs. 666,800/- to be paid by instalments. This transaction was rendered void by ss. 19 and 20

of Freehold Titles (Conversion) and Government Leases Act (Cap. 523) since it required the consent of the Commissioner to become operative and the Commissioner had refused to give his consent. S. 19 (1) of the Act provides that "a disposition of a Government Lease shall not be operative without the consent of the Commissioner" and s. 20 provides that where the Commissioner refuses his consent, the transaction shall become void. By s. 19 (2) (*a*) a disposition means "an assignment, sub-lease . . ." and by s. 19 (2) (*d*) it includes an "agreement entitling a party thereto to require any disposition to be made". The position of the respondent, in these circumstances, Mr. Uzanda submitted, was in the nature of a licensee and that if the respondent wished his occupation to be declared a tenancy he should have applied under s. 3A of the Rent Restriction Act to a court of a resident magistrate of competent jurisdiction. He further submitted that the rent tribunal had no longer the jurisdiction to declare the respondent's occupation a tenancy which was what the tribunal had in effect done in this case.

> Mr. Cenge, for the respondent, in reply, submitted that the original transaction under the agreement was a tenancy agreement under which the premises were let to the respondent at Shs. 52,800/- per annum and that thereafter the parties entered into an agreement of purchase and agreed to treat the rents already paid as part of the purchase price. Continuing, he submitted that since the agreement of purchase had become void by reason of the refusal of the Commissioner to give his consent thereto the parties reverted to their original position of landlord and tenant and in that event the rent tribunal had the jurisdiction to entertain the application to fix the standard rent.

There are many flaws in Mr. Cenge's submission. To start with he was unable to produce the earlier Agreement and had given no satisfactory explanation for his inability to do so. At a certain stage of his address he appeared to have given the impression that the respondent had never seen the agreement itself and had no record of it in the Embassy. S. 66 of the Evidence Act provides that a document must be proved by primary evidence which by s. 64 (1) means the production of the document itself for the inspection of the Court. S. 67 provides the circumstances in which secondary evidence may be given of the contents of a document. The respondent cannot bring his case under any of the categories listed in s. 67 and one is at a loss to know how he can give oral evidence of the contents of a document he has never seen. An adjournment was granted to the respondent to produce the agreement or even an office copy of it or any record of it but he was unable to do so. The copy produced by the appellant was rejected by Mr. Cenge as not genuine and the custody from which it was produced as dubious.

Mr. Cenge in an attempt to get over the difficulty submitted that the parties had always regarded their position to be that of a tenancy and secondly that the appellant by making the application wherein he asked for determination of a standard rent was estopped from alleging that their position was other than that of landlord and tenant. As to the first arm of the submission I note that the appellant's witness stated in his evidence before the board that the premises were given to respondent on tenant purchase agreement and that the respondent advanced the appellant Shs. 26,000/- to put up the building. In the context it meant no more than that respondent would remain in occupation until the full purchase price was paid and the lease would then be transferred to him. Although Exhibit A which incidentally was tendered by the respondent was inoperative as an agreement of purchase and the transaction was rendered null and void it was not thereby rendered inadmissible in evidence for other purposes. (*Clarke v. Sondhi*, [1963] E.A. 107 at p. 111.) Exhibit A showed that Shs. 316,800/-

was paid by instalments "as per agreement dated 14/12/63". The agreement of 14/12/63 provided for payment by instalments and this is not the usual way to describe payment of rents. Paragraph 4 of Exhibit A provides that "The purchaser shall be deemed to be let into actual possession of the property of which they are present occupiers on payment of the cheque for the balance of the purchase price as above." This supports the contention that the respondent was in occupation not as a tenant but as a licensee until such time as he could complete the payment of the purchase price and call for the assignment of the lease. Exhibit A was inconsistent with the assertion that the relationship of landlord and tenant ever existed between the parties and on the evidence before me I can only conclude that the relationship of landlord and tenant never existed between the parties.

As to the second arm of Mr. Cenge's submission, namely, estoppel, it is my view that it cannot be invoked against the appellant in the circumstances of this case. In filing the application he was merely complying with the order of the rent tribunal which assumed that the relationship of the parties was that of landlord and tenant. It is interesting to compare the details given in the applications. The respondent quoted the alleged yearly rent as Shs. 52,000/- and the appellant gave Shs. 36,000/- for the rent for the commercial section and Shs. 16,800/- for the residential section making a total of Shs. 52,800/-.

In view of the foregoing I hold that Mr. Uzanda's contention was sound and since the transaction between the parties has been rendered null and void by reason of s. 20 the only course open to the respondent, if he wishes to have his occupation declared a tenancy, is to apply to a court of competent jurisdiction and not to the rent tribunal. I may mention that the jurisdiction to declare a tenancy was originally conferred on the rent tribunal by s. 3A of the Rent Restriction Act (Cap. 479) as introduced by Rent Restriction (Amendment) Act 1963 but this power was subsequently withdrawn from the rent tribunals and conferred exclusively on the Court of a Resident Magistrate by s. 5 of the Rent Restriction Amendment Act 1966.

If I am wrong in holding that the rent tribunal has no jurisdiction to entertain the applications I hold that the standard rent fixed cannot stand as the tribunal did not comply with the procedure for determining the standard rent. The evidence showed that the premises were partly residential and partly commercial and it was the duty of the tribunal to resolve the question of "main user" of the premises in accordance with s. 2 (2) of the Rent Restriction Act in order to ascertain the appropriate prescribed date with reference to which the standard rent would be determined. The tribunal has failed to do this. Mr. Cenge submits that since the tribunal found that the building was erected and let after the prescribed date in the circumstances could only refer to 1 July 1959 (the building was completed in 1963) it should be taken that the tribunal found, by implication, that the premises were used mainly for residential purposes. The short answer to this was that the tribunal did not consider the matter at all and it was a clear case of non-direction. If it did it would be interesting to find out the reason why premises which were used as the Embassy of Cuba should be regarded as mainly residential because some part of it was used to house some members of its staff.

I set aside the order made by the rent tribunal for the reasons given above.

*Order accordingly.*

For the appellant:
*F. H. Uzanda* (instructed *by Donaldson and Wood*, Dar es Salaam)

For the respondent:
*L. Cenge* (instructed by *L. Cenge & Co*., Dar es Salaam)

# Blasius v Republic
[1973] 1 EA 510 (HCT)

| | |
|---|---|
| **Division:** | High Court of Tanzania at Dar es Salaam |
| **Date of judgment:** | 24 January 1973 |
| **Case Number:** | 136/1972 (135/73) |
| **Before:** | Mfalila Ag J |
| **Sourced by:** | LawAfrica |

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*[1] Criminal Law – Cheating – Accused representing falsely that he had fish to sell – Whether offence committed is cheating or obtaining money by false pretences – Penal Code, ss.* 304 *and* 302 (*T.*).

*[2] Criminal Law – False pretences – Accused representing falsely that he had fish to sell – Whether offence committed is cheating or obtaining money by false pretences – Penal Code, ss.* 304 *and* 302 (*T.*).

*[3] Criminal Practice and Procedure – Charge – Defect – Cheating – Trick or device not specified – Charge defective – No miscarriage of justice – Criminal Procedure Code, s.* 346 (*T.*).

**Editor's Summary**

The appellant was convicted of cheating. The prosecution alleged that he had falsely represented to two persons that he had fish to sell. On receiving Shs. 345/- he entered a building and disappeared. The charge as laid did not specify the trick or device used by the appellant. It was also contended that he was not properly identified.

**Held –**

(i) the trick or device used must be specified;

(ii) in this case the failure to specify the trick or device had not caused a failure of justice (*Saidi v. Republic* (3) considered);

(iii) the charge should have been one of obtaining money by false pretences;

(iv) the appellant had not been properly identified.

Appeal allowed.

**Cases referred to in judgment:**

(1) *R. v. Bull* (1877), 13 Cox 608.

(2) *Bandama v. Republic* (1967), H.C.D. 220 (unreported).

(3) *Saidi v. Republic*, [1969] E.A. 280.

(4) *Mohamed Selemani Mzaramo v. Republic* (1969), H.C.D. 127 (unreported).

(5) *John Joseph v. Republic* (1969), H.C.D. 171 (unreported).

**Judgment**

**Mfalila Ag J:** This is an appeal by the appellant Blasius Ndambalilo against both his conviction and sentence of 15 months imprisonment imposed by the district court sitting at Lindi for the offence of cheating contrary to s. 304 of the Penal Code.

The facts in this case as laid by the prosecution in the court below indicate that on 17 August 1972 the complainants Ali Mohamed and Ibrahim Saidi, went to Lindi for the purpose of buying fish. Ali Mohamed had with him Shs. 120/- for this purpose, and Ibrahim Saidi had Shs. 225/25 for the same purpose. According to Ali Mohamed they were also in the company of Juma Bakari who had gone to Lindi to buy what the trial magistrate called, glasses. While they were at Lindi the accused appeared and offered to sell fish to the complainants, alleging that he had fish to sell at his place of work at the Roman Catholic Mission. The complainants agreed to buy such fish from the appellant

and proceeded with him to the Roman Catholic Mission. When they arrived at the mission area the complainants realised that they had no container in which to put the fish which they were going to buy from the appellant. It was therefore decided that Ibrahim Saidi should proceed to the market to buy the container, leaving Ali and the appellant behind at the mission.

Meanwhile the appellant entered the mission premises and when he came out he found Ali and told him that the Europeans in the mission building had agreed to sell fish and that therefore he should make available the necessary money. Ali gave Shs. 345/- to the appellant for the purpose of buying fish in the mission. On receiving the money the appellant entered the mission building and he was never seen again. Only later the complainants left the mission premises after a mission sister had allegedly told them that the appellant had gone away. On 19 August 1972, the complainants reported this incident to police constable Jeremiah, at a pombe shop. They pointed out the appellant in this case, saying that they suspected him to be the very person to whom they had given Shs. 345/- for the purpose of buying fish. On this allegation police constable Jeremiah arrested the appellant and charged him with this offence.

While giving evidence in his own defence, the appellant completely denied the complainants' allegations against him saying that he had nothing to do with fish business, and that he did not work at the mission centre as alleged. Nevertheless, the trial magistrate found that both the complainants were truthful witnesses; he accepted their evidence, rejected the appellant's defence and convicted him.

In his memorandum of appeal, the appellant vehemently denied being involved in this offence and that the whole thing was a mistake by the complainants. The state attorney who appeared for the Republic during the hearing of this appeal stated that he did not wish to support the conviction of the appellant for three reasons: first, that the charge as laid was defective because it did not specify the trick or device perpetrated by the appellant. He said that this defect could not be cured because it goes to the substance of the accusation against the appellant and that this submission is in conformity with what has been held with regard to offences in connection with false pretences where the false pretence was not specified, and he quoted the decision of Mustafa, J. in *Bandama v. Republic* (1967), H.C.D. 220 (unreported). Secondly, that the facts as revealed by the evidence are consistent with the offence of obtaining money by false pretences rather than cheating. But he conceded that if other things had been equal a conviction under s. 302 would have been substituted under the provisions of s. 187 (2A) of the Criminal Procedure Code. Thirdly, that the prosecution in the court below did not establish the appellant's identity beyond reasonable doubt. I will now deal with each of these submissions separately.

The question to be answered with regard to the first submission on the defective nature of the charge is whether such defect is fatal. I agree that in every charge of cheating the nature of the trick or device used in perpetrating the offence must be specified in the particulars of the offence. This in order to enable the accused to know the nature of the charge that he has to answer. But I think that this is not the same thing as saying that whenever such trick or device is not specified the resulting defect is necessarily fatal to the charge. In considering this point, I am indebted to the views expressed by Seaton, J. in *Saidi v. Republic*, [1969] E.A. 280. In that case which concerned causing death by dangerous driving, the particulars laid down in the first count were as follows:

> 1*st Count, particulars of the offence:*
>
> "Saidi s/o Sefu is charged on or about 25th day of November, 1967 at about 12.50 hours at Iborogele area along the Nzega/Singida road, within Nzega District Tabora Region, being a driver in charge of a motor vehicle TD.2957 Land-Rover, the property of Maganga s/o Mahona, did drive

> the said motor vehicle TD.2957 on the road recklessly and in a manner that was dangerous to the public having regard to all the circumstances including the nature condition and use of the road and the amount of traffic which was actually at the time or which might reasonably be expected to be on the road to wit he over-turned the said motor vehicle TD.2957, and killed one Nyamizi d/o Mapigano, Mbalu d/o Shikungu and Maganga s/o Kaseke and caused grave injuries to 12 passengers."

Evidence led in court during the trial indicated that the vehicle in question had overturned following a tyre burst. There was also evidence by a motor vehicle inspector that the road surface was corrugated and that the tyres were in such a condition that they could not be used on such a road surface without bursting. There was also evidence that the appellant was at the time of accident driving very fast.

The state attorney who appeared in that case conceded that the charge as framed was defective in that it did not set out clearly the particulars of the charge and facts on which the prosecution relied as constituting reckless or dangerous driving. Seaton, J. held at p. 283:.

> "It is a matter for regret that the charge was indifferently worded. For while the particulars in the charge on the first count only refer to the reckless and dangerous manner of the appellant's driving, it would seem from the conduct of the case and the evidence that at least equally important factors relied on as constituting the liability of the appellant were the condition of the vehicle and the speed at which it was driven and these were omitted from the charge.
>
> However, it does appear from the record of the proceedings that the appellant was fully aware of the substance of the case he had to meet and the defects in the charge have not in fact occasioned a failure of justice. The defects are curable under s. 346 of the Criminal Procedure Code."

I am in complete agreement with this line of argument because failure to specify in the particulars of offence, some element of the offence should not automatically be fatal to the subsequent proceedings. The test always is whether such omission has resulted in the failure of justice to the prejudice of the accused. If from the proceedings it is clear that the accused knew the substance of the charge he had to answer and he does answer, it cannot in such circumstances be said that the omission of the element in the particulars has prejudiced the accused. Therefore such defect should easily be cured under s. 346 of the Criminal Procedure Code. No doubt the state attorney when making the submission in connection with the remark of Mustafa, J. as he then was, was under the impression that they were intended to refer to every situation where the particulars are incomplete. The remarks of Mustafa, J. in that case should be interpreted to mean that in the case before him he found that the omission to particularise the false pretences in the particulars prejudiced the accused and consequently he had to quash the proceedings. In the instant case, no such failure of justice can be detected from the proceedings because the nature of the false pretence was amply disclosed by the evidence and the appellant fully answered it. He therefore knew the substance of the charge he had to answer, and he did. I will therefore say that in this instant case, failure to specify the trick or device in the particulars is not fatal and I would not disturb the findings on this defect alone. The said defect is curable under s. 346 of the Criminal Procedure Code.

The second defect dealt with by the state attorney concerned the distinction that has troubled the courts, the distinction between the offence of cheating and obtaining money by false pretences. The state attorney submitted that the facts

in this case as revealed by the evidence are consistent with the offence of obtaining money by false pretences rather than cheating.

There are several cases scattered in the reports which attempt in various ways to distinguish these two offences created under different section of the Penal Code, and I do not think I can say that the position is as clear as might have been desirable. The following two cases will serve to illustrate the confusion I am referring to. In a case decided in the High Court of Zanzibar, *Mohamed Selemani Mzaramo v. Republic* (1969), H.C.D. 127 (unreported) the facts were as follows:

> "The accused sold a tin of sand to the complainant with the pretence that it was sugar. A layer of sugar had been spread on top of the tin. Saidi, Ag. C.J. said that the facts disclosed the offence of cheating."

In another case decided in the High Court Arusha, *John Joseph v. Republic* (1969), H.C.D. 171 (unreported), the facts were as follows:

> "The appellant had constructed for himself a sealed tin containing turbid water. He then got a witness Ndesiatau Sindate at a bus stand and explained that he was in difficulty. He asked this witness to advance him Shs. 30/- in return for which the appellant would deposit his tin containing groundnut oil valued at Shs. 60/-. It appeared as if the tin had a few drops of groundnut oil at the top. Ndesiatau agreed to help the appellant as requested.
>
> The appellant put the tin on to the bus and as Ndesiatau was giving him the money a policeman who had been watching the proceedings arrested the appellant. The tin was found to contain only water. It was accepted that Ndesiatau had accepted the appellant's general story and that his security would be the groundnut oil in the tin."

This particular appeal was admitted for hearing to consider whether the offence disclosed by the evidence was one of cheating or obtaining money by false pretences.

After a consideration of the English authorities Platt, J. conceded that the present Penal Code did not follow the position at common law, because under the former, cheating can arise out of a private transaction and it was not necessary to prove a cheat affecting the public at large. But, the judge continued; "in not so doing the distinction between obtaining by false pretences and cheating was largely obscured. All that is left is that cheating is perpetrated by a trick or device while obtaining by false pretences depends on a false statement of an existing fact. But considering that such a false statement may be made by act or conduct, the distinction may be very fine if not non-existent . . ."

After considering the English case of *R. v. Bull* (1877), 13 Cox 608 which indeed involved a false pretence made by both an act and conduct the judge continued:

> ". . . In the instant case the appellant said his tin contained groundnut oil. It appeared from the fact that some groundnut oil was on the top of the tin, that what was stated to be the contents was true. While the manufacture of a tin with water in it might be seen as a trick or device, nevertheless it can hardly be doubted that it was the appellant's statement that was the main deception, no doubt aided to some extent by the state of the tin. Had the appellant merely produced the tin that would not have been sufficient to deceive Ndesiatau. I an imclined to the view that where money is obtained on the strength of a statement as to the contents or quality of some object it is the false statement concerning the contents of the object rather than the presence of the thing that is material. For this reason then I would prefer to base the appellant's conviction on s. 302 of the Penal Code

> that of obtaining money by false pretences rather than cheating. But in saying so, I accept that it might be that either section can be employed according to the circumstances of the particular case. Even in the present case the distinction is narrow indeed."

Here then lies the difficulty of attempting to distinguish between the offence of cheating contrary to s. 304 of the Penal Code and obtaining money by false pretences contrary to s. 302 of the Penal Code. One has only to compare the decisions in these two cases to conclude that such a distinction is non-existent or if there is, is of no consequence. In both cases a trick or strategem or device was used. (In one case a tin of sand in the other a tin of turbid water), in both cases a layer of the actual substance (sugar in one case and oil in the other) was spread over the top to give the impression that the tin contained sugar or oil and finally in both cases the appellants falsely represented to the complainants that the tins contained sugar or oil. These false representations deceived the complainants in both cases. Yet in one case the transaction was said to amount to cheating and in another to obtaining money by false pretences. In my view, the problem underlying the distinction between these two offences is that in every cheating situation there is involved a false pretence for in order to succeed, the trick, device or strategem must be accompanied by false description of it, which therefore is a false statement, leading to the offence of obtaining whatever that is obtained by false pretences. Therefore I think that both the above cases could quite properly have been charged as obtaining by false pretences. The result of this analysis is that all cheating situations contain elements of obtaining by false pretences, although certainly the converse is not true. If this is so, then, no prosecutor can go wrong by always preferring charges under s. 302 and relegating the offence under s. 304 to the background until such time as it is either removed from the statute book or suitably merged with s. 302.

Coming back now to the present case, it is clearly a case of obtaining money by false pretences. The appellant, if he did, obtained this money by falsely pretending that he had fish to sell. In saying so he did not use any trick, strategem or device. He simply made a false statement of an existing fact. The charge under s. 304 in these circumstances was therefore misconceived. There is however power under s. 187 (2A) Criminal Procedure Code to substitute a conviction under s. 302, but before doing so I will deal with another aspect of the case regarding the identity of the appellant.

The state attorney who as I said earlier did not support the conviction of the appellant stated that the identity of the appellant was not established in the court below. He said that the manner in which Ali reported the incident to the police officer shows that he was not sure of the identity of his suspect. Further, the mission sister who is alleged to have spoken about the appellant was not called to testify.

With these submissions I agree. Ali's uncertainty about the appellant's identity would have been removed had the mission sister been called to testify. She would have refuted the appellant's denials that he worked at the mission. Another curious aspect in this case is that although the offence is said to have been committed on 17 August, the complainants did not deem it necessary to report to the police until two days later and this at a pombe shop! There is yet another unhappy aspect regarding the identity of the appellant in this case. Ali stated in his evidence that on 17 August he came to Lindi town with Ibrahim and Juma Bakari. But Ibrahim said in his evidence that on 17 August he was with Ali and that Juma Bakari was with the appellant. He said that he saw Juma Bakari talking to the appellant. Juma Bakari said that he knew the appellant by sight only and that on 17 August he came to Lindi with the complainants. On the following day, that is to say on 18 August, he happened to see the

appellant who asked him if he wanted to buy fish. I think these discrepancies in the evidence of these three witnesses is material to the proper identification of the appellant and should have been specifically considered by the trial magistrate. In these circumstances, I think that it is just possible that the appellant's identification might have been mistaken and certainly this doubt must be resolved in favour of the appellant.

The appeal is accordingly allowed, the conviction quashed, sentence imposed set aside, and it is ordered that the appellant should be released forthwith unless lawfully held in connection with some other matter.

*Order accordingly.*

Appellant appeared in person.

For the respondent:
*M.R. Mshashi* (State Attorney)

## Republic v Madaha
[1973] 1 EA 515 (HCT)

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|---|---|
| **Division:** | High Court of Tanzania at Dar es Salaam |
| **Date of judgment:** | 3 January 1973 |
| **Case Number:** | 9/1973 (137/73) |
| **Before:** | Onyiuke J |
| **Sourced by:** | LawAfrica |

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*[1] Criminal Practice and Procedure – Insanity – Fitness of accused to plead – Distinguished from defence of insanity – Full procedure set out – Criminal Procedure Code, ss.* 164 *to* 166 (*T.*).

*[2] Criminal Law – Insanity – Defence – Distinguished from fitness to plead – Full procedure set out – Criminal Procedure Code, ss.* 168 *&* 168*A* (*T.*).

**Editor's Summary**

The accused was charged with an offence and was remanded by the magistrate for a report on whether he was of unsound mind when he committed the alleged offence. The report was to the effect that he was of unsound mind when he committed the offence but that he was then fit to stand trial and also otherwise fit for unconditional discharge.

Nevertheless the magistrate ordered the accused to be detained as if he had found him unfit to plead.

On revision the High Court considered and set out the whole procedure distinguishing what is to be done when a person is unfit to plead and when the defence of insanity is raised.

**Held –**

(i) it had not been shown that the accused was not fit to plead, and the case would be remitted for

the prosecution to produce its evidence;

(ii) thereafter it would be for the court on the evidence to decide whether the accused was insane at the time of the commission of the act, if that was proved.

Order accordingly.

**Cases referred to in judgment:**

(1) *R. v. Roberts* (1953), 37 Cr. App. R. 86.

(2) *Tarino v. R.*, [1957] E.A. 553.

(3) *Mbeluke v. Republic*, [1971] E.A. 476.

**Judgment**

**Onyiuke J:** The record of this case has been sent to the High Court to consider, in the exercise of its revisional jurisdiction, the orders made by the magistrate.

The accused was charged with the offence of setting fire to indigenous product under s. 321 (*b*) of the Penal Code. The particulars of the offence were that on 20 September 1971 at Mabuki Farm within the District of Kwimba he wilfully and unlawfully set fire to cattle grass and destroyed 500 acres, the property of Mabuki Farm.

The case was called before the district magistrate on 12 December 1971 and the charge was read over to the accused who pleaded as follows: "It is true I did set fire to the grass in the farm but I did this in absence of my mind in that I was beaten so severely by an unknown person and then I lost my mind." Whereupon the magistrate entered this as a plea of not guilty. The magistrate then proceeded to make the following observations and order:

> "The accused has shown in court that he was insane when committing the offence and no evidence has been given of the insanity but having seen the accused before me it appears that it may be true the accused was insane during the act. I order that the accused be detained in a mental hospital at Dodoma for medical examination in accordance with s. 168 A (1) of the Criminal Procedure Code."

When the case was called on 13 March 1972 the magistrate recorded as follows:

> "I have now received a report from the Medical officer (Psychiatry) Dodoma to the effect that the accused is of unsound mind and so I order that the matter be conducted in accordance with s. 164 (6) of the C.P.C. Finding: The Court has received statements of witnesses as recorded by police in regard to the offence the accused is charged with. In the statements of witnesses there are factors regarding the state of mind of the accused which could be relevant to state of mind . . . These incidences by the accused and the medical report which is hereby admitted show that the accused is of unsound mind and consequently incapable of making his defence and this is the finding of the court and the proceedings of the case are hereby postponed. I now order that the accused be detained at Isanga Institute Dodoma in terms of s. 164 (6) of the C.P.C. and the court record is hereby transmitted to the Prime Minister being the Minister for Justice for orders."

The proceedings appeared to be in a confused state and left one in real doubt as to how the magistrate purported to deal with the case before him. They also reflect some lack of appreciation of the distinction between unfitness to make a defence due to insanity and insanity as a defence to a charge and the procedure laid down in the Code in respect of these matters. It will be necessary therefore to consider the provisions of the Code relating to trials before a subordinate court and to the issues of fitness to take trial and of insanity as a defence. Ss. 164 to 166 of the Criminal Procedure Code lay down the procedure to be followed where an accused person is suspected to be of unsound mind and consequently incapable of making his defence. Ss. 168 and 168A deal with the situation where insanity as a defence is in issue. In situations covered by ss. 164 to 166 the issue is as to the unfitness of an accused person to plead and to take his trial due to an alleged unsoundness of mind. The unsoundness of mind must relate to the time of trial and the inquiry must be in relation to an accused's mental condition at time of trial as distinct from his mental condition at time of the alleged offence with which he is being tried. (*Tarino v. R.*, [1957] E.A. 553 at p. 554.) A person may be insane at the time he did an act but sane or at least be enjoying a lucid interval at the time of trial to be able to take his trial. Conversely a person may be sane at the time he did an act but may be of unsound mind at the time of his trial.

The general principle is that a court cannot try an insane person. Where a

person from some disease of mind is incapable of comprehending the course of the proceedings at the trial or understanding the details of the evidence being led against him so as to be unable to make a defence or instruct his defence he is said to be unfit to plead and to make his defence and it would be wrong to try such a person. It would be equally wrong to allow a charge to be pending against an innocent person just because he is insane and consequently unable to defend himself or in a sense to demonstrate his innocence. This grave injustice was canvassed by Devlin, J. (as he then was) in *R. v. Roberts* (1953), 37 Cr. App. R. 86 where he said at p. 89:

> "To insist upon the issue of fitness or not being tried might result in the grave injustice of detaining as a Broadmoor patient a man who was quite innocent; and it might result in the public mischief that a person so detained would be assumed in the eyes of the police and of the authorities, to have been the person responsible for the crime, whether he was or was not, and investigations which might have led to the apprehension of the true criminal would not take place."

The wisdom of this statement is the principle underlying s. 164 of our Criminal Procedure Code. S. 164 (1) provides as follows:

> "Where in the course of a trial the court has reason to believe that the accused is of unsound mind and consequently incapable of making his defence it shall before inquiring into the fact of such unsoundness of mind and notwithstanding the fact that the accused may not have pleaded to the charge, call on the prosecution to give or adduce evidence in support of the charge."

No useful purpose is served by reproducing the relevant provisions of the Code and I will content myself with specifying the procedure laid down in these provisions as follows:

(i) Where a trial court has reason to believe that the question of the fitness of an accused person to plead and make his defence due to unsoundness of mind is in issue it should postpone the inquiry into that issue but should first determine whether a prima facie case has been made out against the accused person.

(ii) If a prima facie case is not made out against the accused person it shall dismiss the charge and acquit the accused person and then proceed to deal with him under the Mental Diseases Ordinance (Cap. 98) as a suspected case of a civil mental patient. s. 164 (2).

(iii) If, on the other hand, a prima facie case is made out against the accused person the court shall proceed to inquire into the accused's fitness to plead and take his trial, and for this purpose the court may (*a*) either order him to be detained in a mental hospital for medical examination or (*b*) admit him to bail on sufficient security as to his personal safety and that of the public and on condition he submits himself to medical examination or observation by a medical officer as may be directed by the court. S. 164 (3).

(iv) The medical officer in charge of the mental hospital or the medical officer to whom the accused has been ordered to submit himself for medical examination or observations shall within 42 days submit a written report on the mental condition of the accused stating whether in his opinion the accused is of unsound mind and consequently incapable of making his defence. s. 164 (4).

(v) On receipt of the report the court shall resume the inquiry into the question of the unsoundness of mind of the accused and for this purpose

may admit the medical report in evidence and shall then state its opinion as to the state of mind of the accused.

(vi) If the court is the opinion that the accused is of sound mind and capable of making his defence the court shall resume the proceedings and shall require the accused to appear or be brought before it and either proceed to hear the case de novo or in certain circumstances treat the case as part heard and then proceed to hear further evidence in the case. Ss. 164 (8), 166 (1) and (2).

(vii) If on the other hand the court is of the opinion that the accused is of unsound mind and consequently incapable of making his defence it shall record its finding, postpone further proceedings in the case and order the accused to be detained in such safe custody as it may think fit and transmit the court record or a certified copy thereof to the Minister who upon consideration of the report may by order directed to the court direct that the accused be detained as a criminal lunatic in a mental hospital or other suitable place of custody and the court shall issue a warrant in accordance with such order. Ss. 164 (6) & (7).

(viii) Where an accused person detained in pursuance of the warrant is subsequently found by the medical officer into whose charge he has been committed to have recovered so as to be capable of making his defence he shall forward a certificate to that effect to the Director of Public Prosecutions stating whether the accused would, but for the charge against him, be fit for unconditional discharge from detention. The matter then lies with the Director of Public Prosecutions whether the case should proceed or not and he shall communicate his decision to the Court. If the director of Public Prosecutions decides that the case should proceed against the accused the Court shall then order the accused to be removed from detention and be brought before it and the proceedings shall continue as in paragraph (vi) above. If on the other hand the Director of Public Prosecutions indicates that the Republic does not intend to continue the proceedings against the accused person the Court shall, in cases where the medical certificate states that the accused is fit for unconditional discharge, discharge him forthwith and in all other cases it shall record the fact of the discontinuance of the case and then proceed to deal with the accused person under s. 8 of the Mental Diseases Ordinance. Notwithstanding that the medical certificates states that the accused has recovered his soundness of mind and is capable of making his defence and despite the intimation by the Director of Public Prosecutions that the Republic intends to continue proceedings against the accused the Court has the power, if it is still not satisfied that the accused is of sound mind and capable of making his defence, to record a finding to that effect and proceed to make a fresh order under s. 164 (6), that is to say, to postpone further proceedings in the case, order the accused to be detained afresh in safe custody and again to transmit the court record to the Minister. s. 166 (4).

Where insanity as a defence is raised at the trial then ss. 168 and 168A of the Code apply. The issue here is as to the state of mind of the accused at the time of the commission of the alleged act. S. 168 (1) provides as follows:

"168(1) Where any act or omission is charged against any person as an offence and it is given in evidence at the trial of such person for that offence that he was insane so as not to be responsible for his action at the time when the act was done or omission made, then if it appears to the Court before which such person is tried that he did the act or made the omission charged,

> but was insane as aforesaid when he did or made the same, the court shall make a special finding to the effect that the accused did the act or made the omission charged but by reason of his insanity, as aforesaid, is not guilty of the offence."

Insanity being a matter of defence, the onus of establishing it lies on the accused. The normal procedure is that the defence, after the close of the case of the prosecution, leads evidence, including medical evidence, to establish the fact according to the standard of proof required of an accused person. Invariably the defence makes arrangements for its own medical experts to examine the accused and to testify on his behalf. Where however medical facilities are limited and psychiatrists are not readily available and an accused may not have the means to procure such medical or psychiatric evidence the defence can be seriously handicapped. I conceive that in order to remedy such a situation s. 168A of the Code was introduced. S. 168A provides as follows:

> "168A (1) Where any act or omission is charged against any person as an offence and it appears to the court during the trial of such person for that offence that such person may have been insane so as not to be responsible for his action at the time when the act was done or omission made, a court may, notwithstanding that no evidence has been adduced or given of such insanity, adjourn the proceedings and order the accused person to be detained in a mental hospital for medical examination.
>
> (2) The medical officer in charge of a mental hospital in which an accused person has been ordered to be detained pursuant to subsection (1) shall, within forty-two days of such detention, prepare and transmit to the court ordering the detention a written report on the mental condition of the accused stating whether, in his opinion, at the time when the offence was committed the accused was insane so as not to be responsible for his action and such written report purporting to be signed by the medical officer preparing the same may be admitted as evidence unless it is proved that the medical officer purporting to sign the same did not in fact sign it.
>
> (3) Where the court admits a medical report signed by the medical officer in charge of the mental hospital where the accused was detained, the accused and the prosecution shall be entitled to adduce such evidence relevant to the issue of insanity as they may consider fit.
>
> (4) If, on the evidence on record, it appears to the court that the accused did the act or made the omission charged but was insane as not to be responsible for his action at the time when the act was done or omission made, the court shall make a special finding in accordance with the provision of subsection (1) of section 168 and all the provisions of section 168 shall apply to every case."

It has been contended that s. 168A (1) has a restricted scope and only applies to cases where in the course of the proceedings the judge or magistrate, from what has taken place before him, suspects insanity. The Court of Appeal has rejected this narrow view of s. 168A (1) and has held that s. 168A (1) applies whether the court acts on its own motion or whether its attention is drawn to the fact of suspected insanity. "Appearing" to the Court need not therefore stem from any evidence adduced in court but may derive from facts observed by the Court or from information given by counsel. (*Mbeluke v. Republic*, [1971] E.A. 476 at p. 481.) There is a growing practice in the High Court whereby, after an accused person has been arraigned and has pleaded to the charge, counsel for the prosecution or defence indicates to the court that the issue of insanity may be raised and applies to have the accused person detained in a mental hospital for medical examination. The court invariably makes an

order under s. 168A (1) on such application and the medical report is put in evidence after the close of the case for the prosecution. The practice appears to be a salutory one as the medical report may be the only medical evidence on the issue of insanity and in any case it enables the defence and the prosecution to decide in advance on their respective positions. After the receipt of the medical report the case proceeds in the normal way. The prosecution leads evidence to establish the charge as laid and closes its case. The defence adduces evidence of insanity and the prosecution may then lead evidence negativing insanity. The Court the decides on the evidence whether insanity has been proved on a balance of probabilities.

I now turn to consider how the district magistrate dealt with the case before him. On 21 December 1971, after the accused had pleaded to the charge, the magistrate stated that it appeared to him the accused was insane "during the act" and made an order under s. 168A (1) of the Code for the accused to be detained in a mental hospital for medical examination. This presupposes that the magistrate was satisfied that the accused was fit to take his trial and the question of his mental fitness to plead and make his defence was not therefore in issue. On that basis the order was perfectly legitimate. On 13 March 1972, the magistrate, after considering the medical report submitted by the psychiatrist under s. 168A (2) and the statements made to the police by witnesses to the commission of the crime, proceeded to make an order under s. 164 (6) of the Code on the ground that he was of the opinion that the accused was of unsound mind and consequently incapable of making his defence. The materials on which the magistrate made the order showed, in my opinion, that he was labouring under some misapprehension as to the nature of the order he made. The relevant portion of the medical report submitted by the psychiatrist under s.168A (2) reads as follows:

> "My impression is that the accused suffered from a mental disease termed Schizophrenic reactional episode of which on admission was on remission. I am also of the opinion that the accused committed the alleged crime while he was of unsound mind. He is now fit to stand in the court of law and also fit for unconditional discharge save for offence charged."

The magistrate, strange to say, treated this report as support for his view that the accused was of unsound mind and consequently incapable of making his defence and as one of the grounds for making an order under s. 164 (6). The other material he relied upon was the statements made to the police by persons whom the police intended to call to prove the offence of setting fire to indigenous crop. The magistrate treated them as "factors regarding the state of mind of accused". They were of course relevant to the state of mind of the accused at the time he committed the alleged act in September 1971 but were not relevant to the state of mind of the accused in March 1972 on the question whether he was capable of making his defence. As I pointed out earlier on, a person is said to be of unsound mind and consequently incapable of making his defence when as a result of the disease of mind he is incapable of comprehending the course of the proceedings in court or of understanding the details of the evidence being led against him as to be able to make a defence or is incapable of instructing his defence or communicating with his counsel. If he is capable of doing these things the fact that he was insane at the time he did the act cannot justify an order under s. 164 (6) of the Code. I am of the view that the magistrate made the order of 13 March 1972, in error and under a misapprehension as to the correct procedure to follow after the receipt of a medical report under s. 168A (2). He was at a loss to know what to do after the receipt of the report. He should have followed the procedure laid down in s. 168A (3) and (4).

I will set aside the said order of the 13 March 1972 made under s. 164 (6) of

the Code and remit the case to the district court with the following directions:

(i) The prosecution should be called upon to adduce evidence in support of the charge by calling their witnesses to testify. Reading out in court of the statements made to the police by persons the prosecution intends to call as witnesses is appropriate to a preliminary inquiry but not to the actual trial of a case. The taking of evidence at a trial in a subordinate court is regulated by Part V of the Code.

(ii) After the prosecution has closed its case, the court should then consider whether a prima facie case has been made out against the accused in terms of ss. 205 and 206 of the Code.

(iii) If a prima facie case has been made out against the accused the court should follow the procedure laid down in s. 206 (2).

(iv) The court will then consider the medical report which it may admit in evidence under s. 168A (2) of the Code.

(v) It should allow the defence and the prosecution to adduce evidence relevant to the issue of insanity. Normally the defence adduces evidence in support of insanity and then the prosecution may adduce evidence negativing insanity.

(vi) The court will then decide, on the evidence on record, in terms of s. 168A (4) whether the accused was sane or insane at the time he did the act. The standard of proof is on a balance of probabilities. If on the evidence the court is of the opinion that insanity was more likely than sanity, “though it may be ever so little more likely”, then the court should make the special finding in terms of s. 168 of the Code. If on the other hand the court should be of the opinion that sanity was more likely than insanity then the court should find that the accused was sane and if the case against him has been proved beyond reasonable doubt it should find the accused guilty. If the court proceeds to conviction it is hoped it will take into consideration in assessing sentence that the accused has been in custody since September 1971.

(vii) I will elaborate a little more on the burden of proof where insanity is in issue. The general principle is that insanity is a matter of defence and it is for the defence to establish it on a balance of probabilities. S. 168A of the Code, however, enables the court to raise the issue and the question may arise on whom the burden of proof lies, where the court raises it. This point has been resolved by the Court of Appeal for Eastern Africa in *Mbeluke v. Republic*, [1971] E.A. 479 at p. 481 as follows:

“As regards the burden of proof where s. 168 has been applied, we think that this must depend on the way the matter has arisen. If the issue has substantially been raised by the defence, we think the burden of proof rests on the defence in the ordinary way. If, on the other hand, the issue has been raised by the court itself, probably against the wishes of the accused person, there can obviously be no burden of proof on the defence. In any case, however, we think the standard of proof must be the same, that is, the balance of probabilities, and on that footing, it is not of great practical importance where the burden lies.”

(viii) A situation may arise during the trial of the case. An accused person may after plea and in the course of the trial suffer a relapse of his mental condition so that he becomes incapable of comprehending the proceedings any longer and/or instructing his defence. This raises

the problem of his continued fitness to take his trial. If such a situation were to arise in this case the court has to fall back on s. 164 of the Code. If the prosecution has closed its case and has made out a prima facie case before the event then the court can order the accused to be detained in a mental hospital for medical examination under s. 164 (3). If the prosecution has not closed its case it is still necessary to continue the case under s. 164 (1) to enable the court to determine whether a prima facie case has been made out against the accused before making an order to detain him in a mental hospital under s. 164 (3). Thereafter the rest of the procedure as laid in ss. 164 to 166 should be followed.

*Order set aside.*

No appearance for the parties.

# Re Salum
## [1973] 1 EA 522 (HCT)

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|---|---|
| **Division:** | High Court of Tanzania at Dar es Salaam |
| **Date of judgment:** | 14 May 1973 |
| **Case Number:** | 46/1972 (138/73) |
| **Before:** | Mfalila Ag J |
| **Sourced by:** | LawAfrica |

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*[1] Probate and Administration – Succession – Deceased an African Muslim not living by custom – Leaving Christian widow – Estate to be administered according to muslim law – Probate and Administration Ordinance* (*Cap*. 445), *s*. 88 (1) (*b*) – *Administration* (*Small Estates*) *Ordinance* (*Cap*. 30), *s*. 19 (1).

*[2] Muslim Law – Succession – Deceased leaving a Christian widow – Marriage recognised by muslim law – Widow entitled to share in estate.*

**Editor's Summary**

The Administrator-General applied to the court for directions whether to administer the estate of the deceased according to customary or muslim law, and if the latter whether the deceased's christian widow was entitled to a share in the estate.

The deceased had been brought up as a muslim, had married outside his tribe by a civil ceremony to a woman who was a christian, did not live according to tribal customs, and brought up his children as muslims.

**Held –**

(i) the estate should be administered according to muslim law;

(ii) as the widow's marriage to the deceased was recognised by muslim law, she must share in the estate (*re Asha Ilamulira* (1) considered).

Order accordingly.

**Case referred to in judgment:**

(1) *re Asha Ilamulira*, H.C.P. & A. 128 of 1966 (unreported).

**Judgment**

**Mfalila Ag J:** The deceased Salum Omari Mkeremi died of bullet wounds in the abdomen on 6 August 1971 and was survived by his widow Nelly Mkeremi and two children as well as an old mother. He died intestate.

On 16 August 1972 the Administrator-General applied for an Order under s. 88 (1) (*b*) of the Probate and Administration Ordinance (Cap. 445) that the provisions of that Ordinance apply to this estate. This order was made by this Court on 6 September 1972 and on 2 January 1973 he filed a petition for the

grant of letters of administration. These were granted to him on 9 January 1973. In the course of the administration of the assets of this estate, the Administrator-General encountered a number of difficulties. These difficulties related to the law applicable, whether customary law or mohamedan law. If it is customary law then Hehe law would apply under which only the deceased's two children would succeed to the residue of the estate. If it is mohamedan law the Administrator-General sought the directions of this court as follows:

> "Whether the said widow Nelly Mkeremi should, despite her being a christian inherit in the deceased's estate taking the 1/8th share as provided for by mohamedan law or whether this court's ruling in *Asha Ilamulira's* case (a christian cannot inherit in the estate of a deceased mohamedan) should apply."

The first question for determination is whether the law to be applied is the mohamedan law or the tribal customary law of the deceased who was an African muslim of the Wahehe tribe. This estate constitutes what is called a "deceased native's estate" in the Administration (Small Estates) Ordinance (Cap. 30). Since this is a deceased native estate to which the provisions of the Probate and Administration Ordinance apply by virtue of an order made under Part IX, s. 88 (1) (*b*) thereof, it must be administered in accordance with the provisions of the Administration (Small Estate) Ordinance in particular s. 19 (1). Under this section the law applicable is the tribal customary law or mohamedan law if the deceased at any time professed the mohamedan religion and there are circumstances which can lead to the inference that he intended his estate to be administered by mohamedan law. The position therefore is that this estate is to be administered by the tribal customary law of the deceased unless, as he professed the mohamedan religion, this Court is satisfied from the written or oral declarations of the deceased or his acts or manner of life that he intended his estate to be administered, either wholly or in part, according to mohamedan law.

The deceased was a Senior Officer in the service of the country's armed forces. He married outside his own tribe and contracted a civil marriage with the widow. His manner and style of life was far removed from the tribal customs and environment. If therefore the deceased had been a christian, I would have had no difficulties in applying the provisions of s. 19 (1) to this estate. At this stage I can only remark with regret that having unified our marriage laws, we should not have taken so long in unifying the succession laws. However, until such time as our law makers come round to removing the anomalies existing in our succession laws, I can only say with regret that the provisions of s. 19 (1) cannot be made available to the present deceased because he was a muslim. It is therefore either tribal customary law or mohamedan law. Under customary law, the widow gets absolutely nothing from her deceased husband's estate. But since their relationship, manner and style of life was not regulated by tribal customary law, it follows that the rest of their relationship regarding property cannot be regulated by customary law. Hehe customary law of succession is therefore not applicable to the administration of this estate.

This leaves me with mohamedan law. The deceased was brought up as a muslim and although he married a christian, he remained a muslim and brought up his two children as muslims. I think these are sufficient indications that he wanted his personal life to be regulated by muslim law and I have no doubt that were he to be asked, he would have preferred his estate to be administered in accordance with mohamedan law. In fact even his old mother expects this estate to be administered in accordance with mohamedan law. I therefore direct that this estate of the deceased be administered in accordance with mohamedan law of succession.

Lastly I will deal with the question whether the widow should, despite her

being a christian inherit in the deceased's estate taking the 1/8th share as provided for by mohamedan law or whether as a christian and non muslim she cannot inherit in the estate of a deceased mohamedan.

During the hearing of this application for directions, the Assistant Administrator-General referred to a recent order by this Court re *Asha Ilamulira* H.C.P. & A. 128 of 1966 (unreported) in which Biron, J. held that a christian or a non-muslim could not inherit in the estate of a deceased mohamedan. In that case Biron J. was dealing with the claims of a christian brother to the estate of a deceased muslim sister.

I am not quite sure whether this prohibition covers relatives and non-relatives alike and Biron J. did not address his attention to this aspect of the matter but speaking for myself I would prefer it to be limited to non-relatives. In any case when one is considering the rights of widows, I think the test of their right to inheritance should be whether their marriage to the deceased was recognised by mohamedan law. If it was, then their legal status as wives should be recognised by the same law even after the husband's death. If they are recognised as wives by mohamedan law, the same law should recognise their right to succession in their deceased husband's estates. To hold otherwise would be tantamount to giving such wives two status different in kind. One legal obtaining during the husband's lifetime and the other illegal after his death.

Therefore I will simply ask myself whether this widow was recognised by mohamedan law as the deceased's wife. A reference to Mulla's Principles of Mohamedan law at page 234, clearly shows that mohamedan law recognises certain marriages between mohamedan males and non-mohamedan females. At paragraph 259 the author has this to say:

> "A Mohamedan male may contract a valid marriage not only with a Mohamedan woman, but also with a Kitabia, that is a Jewess or a Christian, but not with an Idolatress or a fire-worshipper. . . ."

Mrs. Nelly Mkeremi according to the above paragraph is a Kitabia, therefore her civil marriage under the Marriage Ordinance to the deceased was a valid marriage recognised by mohamedan law. She is therefore a "wife" under that law. If this is so then she is entitled to her share as a wife in the deceased's estate.

Apart from this analysis, the widow's right to a share in the estate in this case is further confirmed by the provisions of s. 19 (4) of the Administration (Small Estates) Ordinance (Cap. 30) which is in the following terms:

> "19(4) Notwithstanding any tribal or Mohamedan law to the contrary:
>
> (*a*) . . .
>
> (*b*) a person shall not be deprived of a right to succession to property by reason of that person having renounced or having been excluded from the communion of any religion."

For these reasons it is directed that the distribution of the residue of the deceased's estate should be governed by mohamedan law and that the widow should, despite her being a christian, inherit in the deceased's estate in accordance with the rules laid down by that law.

*Order accordingly.*

For the applicant:
*A. A. Kinguji* (instructed by the Administrator-General)

## Republic v Kidato
[1973] 1 EA 525 (HCT)

| | |
|---|---|
| **Division:** | High Court of Tanzania at Dar es Salaam |
| **Date of judgment:** | 27 January 1973 |
| **Case Number:** | 6/1973 (140/73) |
| **Before:** | Mwakasendo Ag J |
| **Sourced by:** | LawAfrica |

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*[1] Exchange Control – Forfeiture of property – Expenses of accused in defending himself – Not good reason for refusing forfeiture.*

*[2] Exchange Control – Offence – Sentence – Whether custodial sentence appropriate.*

**Editor's Summary**

The accused was convicted of making a false statement in furnishing information when applying for the grant of basic travel allowance by giving a false name. In sentencing the accused, the trial magistrate observed that the accused had committed a technical offence. The accused was sentenced to a fine of Shs. 400/-or 6 months' imprisonment in default. No forfeiture order was made.

**Held –**

(i) the offence was not a technical offence;

(ii) in the circumstances a custodial sentence would not be imposed;

(iii) that the accused had spent money on his defence was not a good reason for non-forfeiture.

Money ordered forfeited to Government.

**Case referred to in judgment:**

(1) *Republic v. Fatehali Lalji Ladha*, H.C. Cr. Rev. 197 of 1971 (unreported).

**Judgment**

**Mwakasendo Ag J:** The accused in this case was charge before the district court of Dar es Salaam with one count:

> "Making a false statement in furnishing information for any purpose of the Exchange Control Ordinance, contrary to paragraph 4 (*b*) of Part II and paragraph 1 (1) of Part II of the Fifth Schedule to the Exchange Control Ordinance, Cap. 294 of the Laws."

The particulars of offence alleged that the accused, a resident in the United Republic of Tanzania, on or about 12 October 1972, in the city and District of Dar es Salaam, Coast Region, in furnishing any information for the purposes of the Exchange Control Ordinance, namely in applying for the grant of basic travel allowance made a statement which he knew to be false in a material particular in that in the said application he stated his name to be Joseph Zakaria when in fact that was not his name.

On this charge being put to him, accused pleaded not guilty and there then followed a short trial at the end of which the accused was found guilty of the charge and convicted. Before passing sentence the court heard a report about the accused from a probation officer and then heard both the prosecuting counsel and the accused. The accused in mitigation of sentence had this to say: "I am able to pay a fine. I am a driver but now I am not employed". The case was then adjourned until the following day when the resident magistrate dealt with the issue of sentence and forfeiture and it is

with these two issues that the proceedings in this court are concerned.

Mr. Tampi, Principal State Attorney, appearing for the Republic, in a lucid and brief submission, stated that it was clear from the observations made by the resident magistrate in the course of his consideration of sentence that he did

not have any or sufficient grasp of the philosophy underlying the whole range of Exchange Control regulations. As evidence of this lamentable though no doubt unconscious lack of appreciation of the need for there being any exchange control regulations at all to regulate and restrict the freedom of the individual in dealing with his own money, Mr. Tampi quoted this passage from the record:

> "In this case, the accused appears to have committed this technical offence out of sheer foolishness, and not with any sinister motive to defraud or sabotage the economy of the country. In fact, the accused paid out Shs. 500/- to the bank, which money is still in the hands of the bank up to now. The provisions of the law are obviously strict, and the punishment prescribed for contravention of these provisions is very severe. However, the court finds that the accused is a person who merits the leniency of the court in respect of the fact that this is his first offence, and that there has been no serious economic damage caused to the nation in view of this offence. . . ."

I am indeed surprised that in this day and times one can still hear people in responsible positions in the State describing contraventions against the Exchange Control Ordinance, a law passed by Parliament, as mere "technical offences", whatever that means. Be that as it may, it is in my opinion, a gross misuse of language and a grievous misdirection for a magistrate to describe an offence punishable on conviction to a fine of Shs. 100,000/- or 14 years' imprisonment or to such fine and imprisonment as a mere technical offence.

Next, I will briefly, for the benefit of the magistrate, deal with what I believe is the philosophy behind our Exchange Control regulations. This court has had occasion before to refer to this matter – vide this Court's Revisional Order No. 197 of 1971 (original Dar es Salaam District Court Criminal Case No. 1864 of 1971) *Republic v. Fatehali Lalji Ladha*, where I said:

> "It is common knowledge that our Government like most Governments in developing countries takes a very serious view of all contraventions of Exchange Control provisions. The seriousness with which these kinds of offences are viewed by the Government can perhaps be gauged from the whole range of measures taken in the past two years, with the primary object of conserving and augmenting our meagre foreign reserves. The importance of this objective cannot be over-emphasized. The continued independence indeed the well being of Tanzania, depends to a large extent on its ability to meet its domestic and international obligations. This she cannot do if her foreign exchange position is precariously weak. If her foreign exchange position is allowed to run down and so will her ability to do business with other nations be weakened. It would therefore appear that any slight flight of capital from this country is and must be a matter of the greatest concern to the Government and every Tanzanian, man, woman and child, resident here. This concern has, to take the most recent example, been reflected in the measures taken with the same view in mind, the restrictions imposed on remittances for tuition fees for overseas students whose parents are resident here; the limitation in the export of capital goods to a prescribed maximum above which the permission of the Bank of Tanzania must be sought and obtained; the reduction in personal allowances for people going on excursion trips outside the country and lastly, but by no means least, the introduction of foreign exchange restrictions against both Kenya and Uganda, our partner States in the East African Community."

This then is the philosophy that should have been borne in mind by the resident magistrate in his consideration of sentence in this case. And if any evidence of Parliament's concern on the matter is still required, one need look no further than the Financial Laws (Miscellaneous Amendments) Act, 1972 in which Parliament has clearly manifested its intention to treat all exchange control

contraventions as grave offences and not as mere infractions of regulations which the courts can ignore with impunity. And while it is true that even under the new amendment to the Exchange Control Ordinance, the magistrate's discretion of passing a sentence which he deems appropriate and befitting to the facts of the particular case remains unfettered, it is trite to observe that here as in any other field of the law, the magistrate in exercising such discretion must act judicially. In the instant case, it is not quite clear whether the magistrate had full regard to all these considerations before passing sentence upon the accused person.

Now, we may turn to consider whether the sentence imposed in this case is or is not adequate. In deciding this issue the court must have regard to a number of factors some of which are: accused's record, the interests of society and those of the offender, the nature of the offence and its incidence in the locality, any mitigating circumstances and so on. Here I may pause to observe that the question what sentence is or is not adequate in each particular case is by no means a simple or easy task. Those upon whom this grave responsibility is placed may well be advised to note these observations from the Home Office Handbook for Courts on the treatment of offenders published in England in April 1964 by Her Majesty's Stationary Office:

> "A grave responsibility is placed upon those who pass sentence on criminal offenders. It is their duty to protect the public and to see that there are effective deterrents to crime, but at the same time they must never lose sight of the personal needs and problems of the individual offenders who come before them. Upon the way in which the court decides to deal with him may depend the offender's chances of turning away from law-breaking and learning to go straight and lead a useful life.
>
> The interests of the public and the offender need not be in conflict; both can be served by matching the treatment to the offender as well as to the offence."

Applying these guidelines to the present case, there can, I think, be little dispute that this is not a fit case in which a custodial sentence is called for. The main reasons for reaching this conclusion are adequately stated by the resident magistrate in the penultimate sentence of paragraph 2, page 5 of the judgment. It is my considered view, therefore, that the sentence of a fine of Shs. 400/- or six months' imprisonment in default is just about adequate to bring home to the accused, an inveterate liar, the danger of engaging to the detriment of this country's economy, whatever the degree of his participation. It is also to be hoped that this punishment will act as a warning to all those who may be tempted to do or are doing what the accused did in this case. There will accordingly be no enhancement of sentence and it is so ordered.

There now remains the ticklish question of the forfeiture of the money in respect of which the accused fell foul of the law. Sub-paragraph (8) of paragraph 1 of Part II of the Fifth Schedule to the Exchange Control Ordinance, Cap. 294, makes it mandatory for the court which convicts any person of an offence under the Ordinance to order the forfeiture to the Government of "any foreign currency, security, gold or other property in respect of which the offence was committed" unless the court is satisfied that a good reason exists for not making such order. At the district court the accused was asked to give reasons why the money now in the hands of the Bank of Tanzania, should not be forfeited to the Government and he said:

> "I usually come from Tanga for this case. I have mortgaged my bicycle, radio and other property to get money to come to the case from Tanga, I therefore request the court to consider this."

He has made similar representations before this Court. The resident magistrate considered these representations as being a good reason for not forfeiting the money to the Republic and says apparently that he was influenced in reaching this conclusion by the alleged failure of the prosecuting State Attorney to press for forfeiture. I do not think the State must or need first press for forfeiture before the court can apply the law as laid down by Parliament. The law being crystal clear on the subject, it is for the court itself to apply the law as it finds it, whether the State has pressed for its application in a particular way or not. And as for the representations advanced by the accused for non-forfeiture of the money, it may well be true that he has had to spend a lot of money in prosecuting his defence but whatever it is, I think it would be ludicrous for the court to accept such representations as founding a good reason for non-forfeiture. It does not, in my opinion, amount to a sufficient or good reason for non forfeiture if all the accused says is that on account of committing the offence in question he has had to undergo a lot of expense and trouble to which he would have otherwise not been subjected. His reasons for the purpose of non-forfeiture to be held good must not only relate to his peculiar domestic or private problems but what is perhaps more important, they must also related to the offence committed by him. I desist from the temptation to speculate what the courts might or might not hold good reasons for this purpose. I do not think one can lay down any general principle applicable in every case. The question must, as it seems to me, be left to be considered and decided on the facts of each individual case. In the instant case, however, I have no doubt in my mind that the reasons given by the accused for non-forfeiture of the Shs. 500/- in respect of which this offence was committed are not good reasons for this court not to make the order for the forfeiture of the money to the Government. The resident magistrate thought they were and in that, in my view, he was wrong. The reasons advanced by the accused are personal problems which have no connection whatsoever with the accused's commission of this offence. This is not a case of a person acting under a genuine misapprehension of the law; on the contrary, the evidence shows plainly that the accused knew what he was doing and the consequences thereof if he were found out, a indeed he was. The subterfuge adopted where there was no need so to act, the many lies he has told to the TANU office at Kigamboni, the Internal Revenue Office, the Bank officials, the District and this Court, are not indicative of a fool acting in ignorance of the law. He may well be a mere cog in a well organised racket which is manipulated by persons smart enough not to stick their necks out, as suggested by the Principal State Attorney. But, in my opinion, I do not think it matters what role the accused played in any such so-called racket. If a person is stupid enough to be duped into crime, he must at least expect to be punished for it. All in all, I am far from being satisfied that any of the submissions made by the accused on the issue of forfeiture are good reasons for not forfeiting the Shs. 500/- to the Government of the United Republic of Tanzania and accordingly the money is ordered forfeited to the Government.

*Order accordingly*.

For the Republic:
*K. R. K. Tampi* (Principal State Attorney)

The accused appeared in person.

## East African Community v Railway African Union (Kenya) and others
[1973] 1 EA 529 (CAN)

**Division:** Court of Appeal at Nairobi

**Date of judgment:** 15 November 1973

| | |
|---|---|
| **Case Number:** | 13/1973 (141/73) |
| **Before:** | Sir William Duffus P, Spry VP and Mustafa JA |
| **Sourced by:** | LawAfrica |
| **Appeal from:** | The High Court of Kenya – Hancox, J. |

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*[1] Master and Servant – Trade dispute – Employees of Community in Kenya – East African Industrial Court – Powers given by Kenya Law – Trade Disputes Act* (*Cap.* 234), *s.* 50*A* (*K.*).

*[2] Prerogative Orders – Certiorari – East African Industrial Court – Certiorari will issue to.*

*[3] Prerogative Orders – Certiorari – Appeal against refusal of leave to apply – Court of Appeal will not hear substantive motion.*

**Editor's Summary**

A dispute arose between the unions representing the employees of the East African Railways Corporation in all three partner states of the Community.

The Minister of Labour for Kenya referred the dispute to the East African Industrial Court under the provisions of s. 50A of the Trade Disputes Act (Cap. 234) of Kenya. The Court made an award and the appellant applied for leave to apply for an order of certiorari to issue against the Industrial Court. The judge refused leave holding that the High Court had no jurisdiction as the parties to the dispute before the Industrial Court included the unions from Tanzania and Uganda.

The appellant appealed, contending that the court had jurisdiction and also asking that the Court of Appeal should consider the merits of the application.

**Held** –

(i) the High Court has unlimited original jurisdiction in civil and criminal matters;

(ii) when the East African Industrial Court deals with an application under Kenya law its award has force and effect in Kenya;

(iii) the Court is therefore an inferior Court subject to the jurisdiction of the High Court of Kenya;

(iv) the Court would not hear the substantive motion as this would deprive parties their right to appeal (*R. v. Industrial Injuries Commissioner ex p. AEU* (1) considered).

Appeal allowed. Application remitted to High Court.

**Case referred to in judgment:**

(1) *R. v. Industrial Injuries Commissioner ex p. AEU*, [1962] 2 Q.B. 21; [1966], All E.R. 97.

**Judgment**

The considered judgment of the court was read by **Sir William Duffus P:** This is an appeal against an order of a judge of the High Court refusing leave to apply for an order of certiorari to issue directed against the East African Industrial Court. The application for the order was made by the East African Community. The judge refused leave as he held that the High Court of Kenya had no jurisdiction in the matter. This was an ex parte application but on its coming before us we ordered that the Railway African Union (Kenya) Railway African Union (Uganda), National Union of Tanganyika Workers and The East African Railways Corporation be added as parties to this appeal and we invited the Attorney General of Kenya to appear before us as an amicus curiae. At the hearing of the appeal the Railway African Union (Kenya) and the East African Railways Corporation appeared but there was no appearance from the Railway African Union (Uganda) and the National Union of Tanganyika Workers. Mr. Shields appeared for the Attorney General, Kenya.

The East African Community was established by the Treaty for East African Co-operation entered into on 6 June 1967 by the three sovereign states of Tanzania, Uganda and Kenya; the treaty continued an association existing between the three countries for many years and in particular continued certain matters and services of common interest. The treaty provided for the establishment of the East African Legislative Assembly but it is the parliament of each of the three partner States which is the supreme legislative body in each State, thus in Kenya the Treaty for East African Co-operation Act (Cap. 4) gives effect to certain of the provisions of the Treaty in Kenya. S. 8 of this Act provided that the Acts of the Community enacted with respect to any matter included in Annex X of the treaty have the force of law in Kenya. There were also several legislative enactments in Kenya and in the other two partner States carrying into effect other matters agreed in the treaty.

A short summary of the matters giving rise to this issue show that a dispute arose between the three trade unions and the East African Railways Corporation. The East African Railways Corporation is one of the common services shared by the three partner States referred to in the Treaty, and was established by the East African Railways Corporation Act 1967. Each of the partner States has its own separate trade unions and also its own trade union legislation. It is common knowledge that the Railways serves all three countries and has employees living and working in each country. A salaries commission was appointed and its report known as the Omari Commission Report led to a dispute between the three unions and the Railways Corporation. The matter was referred by the Minister for Labour in Kenya to the East African Industrial Court. An enquiry was held by the East African Industrial Court in Kenya and its award is now the subject of these proceedings. A copy of the award is attached to this record and in paragraph (3) states, inter alia:

> "The parties signed the Notification of Dispute Form 'A' on 25 October 1972 and the Minister for Labour, Republic of Kenya certified that the parties to the dispute have exhausted the disputes' machinery as provided in the Trade Disputes Act."

It might be noted here that the award was made to settle a dispute between the trade unions in each of the three partner States and the Railway Corporation and would therefore apply to the Railway Corporation employees in each country although in fact the dispute appears to have been referred to the Industrial Court only in Kenya and to have been dealt with under the Kenya Trade Disputes Act (Cap. 234).

The East African Industrial Court is a statutory body established under articles 84 and 85 of the treaty. Article 84 states:

"*ARTICLE* 84

*Settlement of trade disputes*

The law relating to the settlement of trade disputes in force in any Partner State shall apply to employment or service under the Community and the Corporations, and to persons in such employment or service, within that State; so however that any such law shall provide that:

(*a*) any power therein conferred upon any tribunal, court or other authority to make binding awards or orders in respect of the salaries or other conditions of service of persons in employment or service under the Community or the Corporations, and any power incidental thereto, shall be conferred upon, and be exercised by, the East African Industrial Court provided for in Article 85 of this Treaty; and

(*b*) any award or order made by the East African Industrial Court which accords with paragraph 2 of Article 85 of this Treaty shall be binding."

The relevant portions of article 85 states:

"*ARTICLE* 85

*The East African Industrial Court*

1. There shall be established a tribunal to be styled the East African Industrial Court, in this Article referred to as 'the Industrial Court', which shall be constituted by – . . .

2. The Industrial Court shall exercise the powers referred to in Article 84 of this Treaty in accordance with the principles laid down from time to time by the Authority. . . .

4. The Industrial Court shall regulate its own procedure."

Article 84 provides (i) that it is the law in each of the partner States that applies to the employment or service under the Community or its Corporations within that partner State, and (ii) that each partner State has by its own laws to provide for the settlement of disputes with employees of the Community or its Corporations to be made by the East African Industrial Court. The trade dispute between the Community or any of its Corporations and its employees in a partner State must be settled in accordance with the laws of that particular partner State.

The law as to trade disputes in Kenya is set out in the Trade Disputes Act (Cap. 234). This Act established an Industrial Court in Kenya to deal with trade disputes. S. 50A was enacted in 1967 and provides:

"50A (1) This Act applies to trade disputes in which the employees are those of the Community or of one of the Corporations and work in Kenya, except that an application under section 9 (4) of this Act shall not be made to the Court but shall be made to the East African Industrial Court, and that Court shall have power to hear and determine the dispute and make an award thereon.

(2) An award made by the East African Industrial Court under subsection (1) of this section shall have the same force and effect in Kenya as an award made by the Industrial Court."

It does appear therefore that this dispute was brought before the East African Industrial Court under the provisions of the Trade Disputes Act (Cap. 234) of Kenya. The procedure was under that Act and the reference was by the Minister of Labour in Kenya and the authority enabling the East African Industrial Court to act in the dispute is contained in s. 50A of the Trade Disputes

Act. The East African Industrial Court sat in Kenya but it does appear to have dealt with disputes that arose also with the Trade Unions in Uganda and Tanzania and to have made an award under Kenya Legislation which would also affect the employees under the Railways Corporation in Uganda and Tanzania. This is one of the grounds of complaint against the award which Mr. Sebalu, Counsel to the Community, states he will rely on.

There now remains the issue as to jurisdiction of the High Court to deal with this matter. We are indebted to Mr. Shields for his helpful submissions. He supported Mr. Sebalu's submissions that the High Court does have jurisdiction. The High Court of Kenya is established by s. 60 of the constitution of Kenya. It is a court of unlimited original jurisdiction in civil and criminal matters in Kenya. There are other statutory provisions to which we were referred but do not find it necessary to refer to these here.

This is an application for leave to apply for an order to issue against the decision of the East African Industrial Court. When this Industrial Court sits in Kenya and deals with an application under Kenya law it acts as a Kenya Industrial Court. Its powers and jurisdiction are provided by s. 50A and the other provisions of the Trade Disputes Act, Kenya and its award has the same force and effect in Kenya as an award made by the Industrial Court of Kenya. The difference between the two courts is that the East African Industrial Court sitting in Kenya deals with employees of the Community and the Corporations within Kenya, while the Kenya Industrial Court has no jurisdiction over them. The East African Industrial Court is of limited jurisdiction and is an inferior court subject to the jurisdiction of the High Court of Kenya.

The trial judge appears to have been influenced by the fact that the parties to the dispute before the East African Industrial Court included trade unions from Uganda and Tanzania and further that the award will affect not only the employees and employers in Kenya but also will affect those in Uganda and Tanzania. As we have said Counsel to the Community submits that this was wrong and he uses this as one of the reasons for the application for an order of certiorari: he submitted that the East African Industrial Court as constituted in this case had no power to deal with disputes outside Kenya.

We are of the view that the High Court did have jurisdiction to deal with this matter. We have not found it necessary to consider the merits of the application. Mr. Sebalu asked that we now deal with the application and grant leave to apply for the order of certiorari to issue and also submitted that this court has jurisdiction to hear the substantive application. This appears to be the practice in England (*R. v. Industrial Injuries Commissioner ex p. AEU*, [1966] 1 All E.R. 97). With respect we cannot agree. If this court had to take the substantive motion it would apart from anything else deprive the parties of the right to appeal. We are of the view that both the ex parte application for leave to apply for the order of certiorari and also, if leave is granted, the substantive motion should be heard by the High Court and that accordingly the present application for leave to apply for an order of certiorari should be returned to the High Court to be dealt with in accordance with the law.

We therefore allow the appeal and quash the order of the High Court refusing leave to apply for the order of certiorari and remit the application to the High Court to be heard.

Mr. Sebalu has not asked for costs, accordingly we make no order for costs.

*Appeal allowed.*

For the appellant:
*P. Sebalu* (Counsel to the Community) and *D. M. Wekesa* (Principal Assistant Counsel)

For the first respondent:
*S. A. Wako* (instructed by *Kaplan & Stratton*, Nairobi)

For the respondent:
*A. O. Ouma* (Corporation Secretary) and *E. H. Mbuya* (Assistant Corporation Secretary)
*J. F. Shields* (Senior State Counsel)

# Mohamed v Yasmin
## [1973] 1 EA 533 (CAN)

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|---|---|
| **Division:** | Court of Appeal at Nairobi |
| **Date of judgment:** | 16 November 1973 |
| **Case Number:** | 27/1973 (142/73) |
| **Before:** | Sir William Duffus P, Spry VP and Mustafa JA |
| **Sourced by:** | LawAfrica |
| **Appeal From** | The High Court of Kenya – Madan, J. |

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*[1] Infant – Custody – Not a proper subject for arbitration.*

*[2] Infant – Guardianship – Jurisdiction – Ismaili child – High Court has jurisdiction-Guardianship of Infants Act* (*Cap.* 144) (*K.*).

**Editor's Summary**

The appellant and respondent were married according to the laws of the Ismaili community to which they both belonged and they had a child. The marriage contract stated that all disputes in relation to the marriage or pertaining thereto would be referred to a Council in accordance with the Constitution.

The Constitution provided that all matters relation to the guardianship of an Ismaili infant would be referred to a Council.

The respondent applied to the High Court under the Guardianship of Infants Act (Cap. 144) for the custody of the infant. The appellant applied for a stay of the proceedings in the High Court and when this was refused he appealed.

For the appellant it was contended that the agreement to refer matters to the council was valid and binding and should have been given effect to by the judge. Further it was submitted that the reference was in the nature of a reference to arbitration, that the infant was not a party, and that a stay should have been granted.

For the respondent it was submitted that there was no reference to arbitration, and that the High Court had sole and exclusive jurisdiction over disputes relating to the custody of infants, and that the infant is the most important party to custody proceedings.

**Held** –

(i) the provision in the marriage contract is a reference to arbitration;

(ii) (Mustafa, J.A. dissenting) the custody of a child cannot be the subject of arbitration since an arbitration award is final and binding;

(by Mustafa, J.A.) the judge had a discretion to refuse a stay and exercised it correctly.

[Decision of the High Court sub. nom. *Yasmin v. Mohamed*, [1973] E.A. 370 upheld.]

Appeal dismissed.

**Case referred to in judgment:**

(1) *Bazmi v. Sultana*, [1960] E.A. 801.

**Judgment**

The following considered judgments were read. **Mustafa JA:** The respondent (who I shall refer to as the plaintiff) was married to the appellant (who I shall refer to as the defendant) in Nairobi in accordance with the religious and personal law of the members of H.H. The

Aga Khan Shia Imami Ismailia Community to which both of them belong. There was a child of the marriage.

The parties signed a marriage contract dated 19 December 1970 which stipulated inter alia:

> "In the event of any dispute arising between us at any time in future, in relation to our marriage or pertaining thereto we shall refer the same to H.H. The Aga Khan Shia Imami Ismailia Provincial Council in accordance with the Constitution applicable to Shia Imami Ismailis and the decision of the said Council . . . shall be conclusive . . ."

Articles 303 and 304 of the said Constitution provide:

> "303. All matters relating to guardianship of an Ismaili infant shall be referred to the Council within whose jurisdiction the infant resides.
>
> "304. In all such cases (whether arising out of matrimonial proceedings or otherwise) the Council shall decide the matter in accordance with the law relating to the guardianship of infants for the time being in force in which the infant resides."

The plaintiff instituted proceedings by way of originating summons in the High Court under the Guardianship of Infants Act (Cap. 144) asking for the legal custody together with maintenance of the infant child of the marriage.

The defendant in reply had filed a chamber summons supported by an affidavit asking for a stay of all further proceedings in the High Court. The defendant had deponed that by virtue of the provisions of the marriage contract the application relating to the custody and maintenance of the infant should be referred to the Ismailia Provincial Council for determination. The matter came before Madan, J. who dismissed the application for stay with costs. The defendant has now appealed to this Court.

Mr. Lakha for the defendant submitted that the agreement to refer to the Ismailia Provincial Council was a valid and binding agreement and that the trial judge had erred in failing to give effect to it. He submitted that it was for the plaintiff to show why effect should not have been given to that agreement, and that the plaintiff had failed to do so. He contended that the parties should have been obliged to refer the dispute to a forum or tribunal which they had them selves chosen, especially, as here, the tribunal would act in accordance with the provisions of the Guardianship of Infants Act. He submitted that this reference was in the nature of a reference to arbitration. He referred to s. 6 (1) of the Arbitration Act and opined that the word "may" there does not confer a discretion on the Court, but is only an empowering word. However, he submitted that if the trial judge had exercised a discretion, then he had given no valid reasons, or had given wrong reasons for the exercise of his discretion. He also submitted that the proceedings concerned only the plaintiff and the defendant and that the infant was not a party, but that in any event, the court could always intervene should it be moved to do so by the infant.

Mr. Khanna for the plaintiff submitted that there was no agreement to refer the dispute to arbitration, as the word "arbitration" was nowhere used in the marriage contract, and that in any event, the Ismailia Provincial Council, in the context of the contract, could not be considered as an arbitrator because its sanction would not lie in a Court enforcing its award but in its threat to excommunicate disobedient members, a moral or spiritual sanction as opposed to a legal one. He also submitted that in any case the Ismailia Provincial Council could not have jurisdiction over the matter in dispute, because if I understood him rightly, he stated that statute law, by the Guardianship of Infants Act, gave the Court, as defined in the Act, sole and exclusive jurisdiction over disputes

relating to custody of infants; and since this was a jurisdiction conferred by statute, the jurisdiction was exclusive and no delegation to anther or domestic tribunal could be made. He also submitted that custody of an infant was not a "dispute in relation to marriage or matters pertaining thereto" and was therefore not covered by the marriage contract. He also submitted that in custody proceedings, the infant is the most important party, not the spouses.

In my view the agreement by the parties to refer all disputes between them in relation to their marriage to the Ismailia Provincial Council as contained in the marriage contract is valid and binding, and is enforceable by a Court. It is perhaps open to argument whether the words "in relation to our marriage or pertaining thereto" would necessarily include a dispute over custody of an infant. In this connection Crashaw, J.A. in *Bazmi v. Sultana*, [1960] E.A. 801 at p. 805 would seem to doubt that custody of an infant would be a matrimonial matter or "pertaining to marriage". Be that as it may, as Mr. Lakha had rightly pointed out, the defendant had deponed that the custody of the infant was within the scope of the said marriage contract, and there was no counter affidavit to the contrary by the plaintiff; and from the High Court proceedings it would seem that that allegation was not challenged. I would therefore, for the purpose of this appeal, accept that custody of the infant was within the scope of the marriage contract. I do not accept Mr. Khanna's proposition that only the High Court has jurisdiction exclusively over disputes relating to custody of infants because that jurisdiction was created by statute. The provisions of the Arbitration Act are applicable to similar legislative enactments, as for instance the Contract Act. If the provisions of the Arbitration Act are to be excluded, that must be expressly so stated in the legislation itself, as for instance in the Trade Disputes Act (Cap. 234). S. 11 of the Trade Disputes Act reads:

> "The Arbitration Act shall not apply to any proceedings or award under this Act."

No such provision is contained in the Guardianship of Infants Act, and in my view, there is no reason why parties if they so wish, cannot agree to refer disputes over custody of infants to arbitration. There was also merit in Mr. Lakha's submission that the point of exclusive jurisdiction was not open to Mr. Khanna, as that argument was rejected by the trial judge, and there has been no cross appeal against that decision. I agree with Mr. Lakha that the marriage contract contains a provision which is analogous to a reference to arbitration, although the word "arbitration" is not used. I do not think that the use of such a word is necessary. I am of opinion that a reference to arbitration does not in any way oust the jurisdiction of a Court, nor that an arbitration award and a court order are so incompatible as to be mutually exclusive.

There was some dispute as to whether a decision of the Ismailia Provincial Council would be an award in terms of the Arbitration Act. There was little or no evidence adduced; Mr. Khanna contended that it would not be, while Mr. Lakha contended that it would be. However, whatever the nature of such a decision, there would be nothing to prevent a Court from interfering with it on the application of the infant, who in any event could not be bound by a decision of the Ismailia Provincial Council.

I believe that the trial judge, in refusing the application for a stay, was in effect exercising a discretion. I reject Mr. Lakha's contention that the word "may" in s. 6 (1) (*b*) of the Arbitration Act where it reads:

> "the Court, if it is satisfied . . . may make an order staying the proceedings"

does not confer a discretion on the Court. I would refer to s. 6 (2) (*b*) of the said Act which reads:

> "that Court unless satisfied . . . shall make an order staying the proceedings."

By using two different words "may" and "shall" in the same section, I think it can safely be assumed that the words bear different meanings.

I am of the view that the trial judge took sufficient relevant factors into consideration and concluded that because the welfare of the infant was of paramount importance, the best forum for the settlement of the dispute was the High Court, and not the Ismailia Provincial Council. I think that the trial judge was entitled to take the welfare of the infant as the primary consideration, in preference to the wishes of the spouse or spouses. That was what the trial judge meant when he said in his judgment:

> "This Court is especially endowed with jurisdiction to safeguard the interests of infants. As Mr. Khanna said the Court is the parent of all parents. The welfare of infants is paramount and it is dear to the heart of the Court. There could be no better tribunal to perform the task more wisely as well as affectionately . . . the Court is charged with the sacred duty of ensuring that their interests remain paramount and are duly preserved."

The trial judge obviously preferred the High Court to the Ismailia Provincial Council as the forum for determining the issue of custody of the infant, and he was entitled to that preference. The trial judge had exercised his discretion judicially in refusing to order a stay of proceedings and I do not see any reason to interfere. I would dismiss the appeal with costs and would certify for two advocates.

**Sir William Duffus P:** I have had the advantage of reading the judgment of Mustafa, J.A. and Spry, V.-P.

This is an application by the respondent, the mother of an infant girl of about two years of age seeking the custody of the child and an order for maintenance against her husband, the appellant, under the provisions of the Guardianship of Infants Act (Cap. 144). The appellant applied for a stay of the proceedings on the ground that his wife and himself had agreed by a marriage contract to refer any dispute arising from their marriage to the Aga Khan Shia Imami Ismailia Provincial Council. The trial judge refused to grant a stay and this is an appeal against his ruling.

The appellant whilst admitting that the judge had a discretion claimed that he was entitled to a stay in order that the issue be referred to the Provincial Council for a decision. Mr. Lakha for the appellant claimed that the Arbitration Act (Cap. 49), applied and that the appellant was entitled to a stay of these proceedings under s. 6 of that Act in order that the issue be determined by the Provincial Council.

I agree with Spry, V.-P. that the question of the custody of a child cannot properly be the subject of arbitration. The Provincial Council, or indeed any other body or person, can act between the father and mother and with their consent endeavour to arrive at an amicable settlement of the dispute but an arbitration is by way of a trial in that as Spry, V.-P. points out its award is final and binds the parties under s. 17 of the Arbitration Act and then by s. 27 the award can be enforced through the courts.

An infant has always been a matter of special concern to the Government and the Guardianship of Infants Act was enacted to protect the infant's welfare and ensure proper guardianship. This Act applies to all infants within the jurisdiction of the High Court in Kenya. In *Bazmi v. Sultana*, [1960] E.A. 801, at p. 807, Sir Kenneth O'connor, P. said:

> "In my opinion, the Legislature of Kenya, in enacting the Guardianship of Infants Ordinance, 1959, must be taken to have known the then state of the law. It did not see fit to make any exception from the provisions of that Ordinance regarding the custody of Mohamedan infants. In my view, that Ordinance applies with full force to Mohamedan, not less than to other, infants, and, under s. 17, the welfare of the infant and not the right under Mohamedan law of either parent is a paramount consideration in deciding questions of custody."

The High Court is the Court given jurisdiction to act under the Guardianship of Infants Act and I do not, with respect, see how any decision of the Provincial Council or of any other like body can in any way bind or restrict the High Court in exercising its jurisdiction. A High Court will, no doubt, give full consideration to any views or principles of any religious body connected with the matter in carrying out its duties under the Act but by s. 17 of the Act the first and paramount consideration is always the welfare of the child.

In my opinion the trial judge was entirely correct in refusing to stay the proceedings and as Mustafa, J.A. and Spry, V.-P. also agree the appeal is dismissed with costs and there will be a certificate for two advocates.

**Spry VP:** The facts giving rise to this appeal are set out in the judgment of Mustafa, J.A., and I shall not repeat them.

I agree with Mustafa, J.A., that the provision in the marriage contract providing for the reference of disputes to the Shia Imami Ismailia Provincial Council amounts to a reference to arbitration. This immediately raises the question whether the custody of a child can properly be the subject of an arbitration.

I have come to the conclusion that it cannot, though not precisely for the reasons put forward by Mr. Khanna. One of the characteristics of arbitration is its finality, as appears from s. 17 of the Arbitration Act. On the other hand an order made under the Guardianship of Infants Act regarding custody is always liable to be varied or discharged by a subsequent order (see s. 7 (5)). The two are incompatible and to recognise arbitration in relation to custody would involve a limitation of the jurisdiction of the High Court. I therefore agree with Mr. Khanna, though for a different reason, that the jurisdiction of the High Court must be exclusive.

It follows, though again for a different reason, that I think the decision of the judge was correct, and I would dismiss the appeal.

*Appeal dismissed.*

For the appellant:
*A. A. Lakha*

For the respondent:
*D. N. Khanna* and *B. J. Hawkes*

## Sagia v Republic
[1973] 1 EA 538 (CAN)

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| **Division:** | Court of Appeal at Nairobi |
| **Date of judgment:** | 20 November 1973 |
| **Case Number:** | 60/1973 (144/73) |

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| **Before:** | Sir William Duffus P, Law and Mustafa JJA |
| **Sourced by:** | LawAfrica |
| **Appeal from:** | The High Court of Kenya – Platt, J. |

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*[1] Criminal Practice and Procedure – Plea – Words used in answer to charge may not derogate from plea of not guilty.*

**Editor's Summary**

The appellant had been convicted of murder resulting from the reckless use of firearms.

The trial had proceeded against the appellant on a charge of murder although earlier with the consent of the prosecution the appellant may have pleaded guilty of a charge of manslaughter.

In the address to the assessors the judge, with reference to the firing of shots into the shops causing death stated:

> "It appears not to be seriously disputed by the defence because this man pleads guilty to manslaughter. . . ."

On appeal

**Held** –

(i) no admission made or words used by an accused person in answer to a charge can be considered in derogation of a plea of not guilty;

(ii) reference to the assessors constituted a serious and prejudicial misdirection.

Appeal allowed. Conviction of manslaughter substituted.

**No cases referred to in judgment.**

**Judgment**

The considered judgment of the court was read by **Law JA:** On 8 November 1973, we allowed the appellant's appeal against his conviction on a charge of murder. We quashed the conviction, set aside the sentence of death, and substituted a conviction for manslaughter, together with a sentence of 8 years imprisonment. We now give our reasons.

The facts of the case were that the appellant, a member of the Administration Police, intervened to stop a disturbance at Mbere Market, in South Nyanza District, on 8 October 1972. There was a scuffle, in the course of which three fingers of his right hand were cut. He ran to the Chief's camp nearby, obtained a rifle and ammunition, ran back to the market, and there fired a number of shots, probably six. Two of these shots wounded a man in one shop, and killed the deceased in another. The appellant's defence was that he was being stoned by an unruly mob, and that he fired six shots into the air, above the heads of the mob, in self defence and to disperse the mob. This defence was rejected by the judge, who held that the appellant deliberately fired into shops, which he knew to be occupied, with the intention at least of causing grievous harm to whoever might be therein, that this constituted malice aforethought within the meaning of s. 206 (*a*) of the Penal Code, and he accordingly convicted the appellant of murder. The evidence tended to support this view, and it would

have been difficult in the absence of other factors to hold that the judge came to a wrong conclusion. There were however irregularities in procedure, and an apparent misdirection in the address to the assessors which have made it necessary for this Court to interfere. The procedural irregularities are set out in the first three grounds of appeal, argued before us by Mr. A. R. Kapila, which are to the effect that as the appellant had originally offered a plea of guilty to manslaughter, which plea was accepted by the prosecution, it was improper to proceed to try him for murder, and to refer in the course of the trial to the plea of guilty to the lesser offence. A judge is of course not bound by the acceptance by the prosecution of a plea of guilty to a lesser offence; he can refuse to accept the plea, and proceed with the trial of the offence charged in the information. Unfortunately it is not clear from the record exactly what happened when the appellant was arraigned on 19 March 1973. The record reads as follows:

> "Accused is arraigned and pleads not guilty. Accused offers and the prosecution accepts a plea to manslaughter. Accused is charged contrary to section 205 of the Penal Code with unlawfully killing the deceased all details as before except 205 for 204 and unlawfully killed for murdered. And he pleas (sic) – Accused remanded in custody 20.3.73.
>
> (sgd) H. G. Platt J.
>
> 19.3.73"

It will be noted from the above that the appellant appears to have been charged on an information amended from murder to manslaughter. No amendments were recorded on the face of the original information. No plea was taken. If, as would appear, the information was ordered to be amended, then it is at least arguable that there did not remain in existence a charge of murder on which the appellant could be tried. On the following day trial resumed, and the following is taken from the record:

> "Kisebu for Republic
>
> Balongo for accused.
>
> Balongo – offers a plea.
>
> Kisebu – not accepted.
>
> Hearing 21.5.73. Accused remanded in custody to May Sessions.
>
> (Sgd) H. G. Platt J.
>
> 20.3.73"

On 21 May, the appellant was charged, presumably with murder, he pleaded not guilty, and the trial proceeded.

Miss Rattansi for the Republic shared our doubts as to what exactly was the effect of the proceedings of 19 March. If, as it would appear, it was then ordered that the information be amended to one of manslaughter, then she submitted that the proper course would have been to enter a nolle prosequi in respect of the amended charge, when the trial opened, and to file a fresh information charging murder. This is no doubt correct.

Whatever the exact position, the trial proceeded on the basis that the appellant had pleaded guilty to manslaughter but was being tried for murder, in respect of the same homicide. That this is so is clear from what the judge is recorded as having said to the assessors, with reference to the firing of shots into the shops:

> "It appears not to be seriously disputed by the defence because this man pleads guilty to manslaughter. . . ."

The use of the present tense "pleads" is significant. It would appear from this passage that the judge was under the impression that the appellant, who was being tried for murder, had effectively pleaded guilty to manslaughter in respect

of the same homicide. This is an impossible proposition. As Mr. Kapila put it, the appellant was being tried for murder, the starting point of the case against him being that he was guilty of manslaughter. This cannot be right. Once a plea of not guilty to murder has been entered, as was done here, the whole question of guilt is put in issue and the burden of proving guilt is on the prosecution. The fact that the appellant had pleaded guilty, or had offered a plea of guilty, to manslaughter (it is not clear what actually happened) was totally immaterial and no reference should have been made to it. It has been held by this Court on many occasions that no admission made or words used by an accused person in answer to a charge can be considered in derogation to a plea of not guilty. Informing the assessors that the appellant had admitted responsibility for the killing in the course of pleading constituted a serious and prejudicial misdirection.

For these reasons we allowed the appeal and substituted a conviction for manslaughter, an offence which was fully made out from clear evidence of the appellant's reckless misuse of a firearm.

*Order accordingly.*

For the appellant:
*A. R. Kapila* and *S. Dhanji* (instructed by *A. R. Kapila & Co*., Nairobi)

For the respondent:
*Miss P. H. Rattansi* (State Counsel)

## Kamundi v Republic
[1973] 1 EA 540 (CAN)

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| **Division:** | Court of Appeal at Nairobi |
| **Date of judgment:** | 23 October 1973 |
| **Case Number:** | 118/1972 (145/73) |
| **Before:** | Sir William Duffus P, Spry VP and Mustafa JA |
| **Sourced by:** | LawAfrica |
| **Appeal from:** | The High Court of Kenya – Sir James Wicks, C.J. and Nyarangi, J. |

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*[1] Criminal Practice and Procedure – Plea of guilty – Change of – May be allowed at any time before sentence.*

**Editor's Summary**

The appellant had been convicted of robbery with violence and other offences following purported pleas of guilty.

The trial magistrate recorded pleas of guilty and entered convictions without following the usual procedure of allowing the prosecution to state the facts and allowing the accused to answer to these facts before entering convictions.

After convicting, the magistrate adjourned to enable the prosecution to produce the criminal records of the accused persons.

On the resumption of the trial the appellant was represented by an advocate who submitted that the pleas of guilty were ambiguous. The magistrate held that the plea was unequivocal and that the court had no power to quash its own conviction and refused to allow the appellant to change his plea.

On second appeal it was argued that a magistrate should be able to alter a plea of guilty at any time before pronouncing sentence.

**Held –**

(i) the proper procedure before entering a conviction had not been followed;

(ii) a magistrate has a judicial discretion to allow a change of plea before passing sentence or making some order finally disposing of the case and in this case his discretion had not been judicially exercised (*Maumba v. Republic* (4)

considered; *S.* (*an infant*) *v. Manchester City Recorder* (6) followed; *Okello v Republic* (5) and *Kibilo v. Republic* (9) overruled).

Appeal allowed. Re-trial ordered.

**Cases referred to in judgment:**

(1) *Joseph Mugola v. R.* (1953), 20 E.A.C.A. 171.

(2) *Searle v. R.* (1955), 22 E.A.C.A. 443.

(3) *R. v. Guest*, [1964] 3 All E.R. 385.

(4) *Maumba v. Republic*, [1966] E.A. 167.

(5) *Okello v. Republic*, [1969] E.A. 378.

(6) *S.* (*an infant*) *v. Manchester City Recorder*, [1969] 3 All E.R. 1230.

(7) *Dodhia v. National & Grindlays Bank*, [1970] E.A. 195.

(8) *R. v. Mutford and Lothingland Justices*, [1971] 1 All E.R. 81.

(9) *Kibilo v. Republic*, [1971] E.A. 101.

(10) *Adan v. Republic*, [1973] E.A. 445.

[**Editorial Note**: Although not referred to by the court, *Kinyua v. Republic*, [1973] E.A. 201 is also overruled by this decision.]

**Judgment**

The considered judgment of the court was read by **Sir William Duffus P:** This is a second appeal from a conviction following a plea of guilty. Under s. 348 of the Criminal Procedure Code, no appeal shall be allowed in the case of an accused person who has pleaded guilty and has been convicted on such plea by a subordinate court except as to the extent or legality of the sentence.

An appeal lies, however, on the question as to whether there was in fact a plea of guilty on which the appellant was properly convicted. Mr. Waiyaki for the appellant based his submissions to this Court on the grounds that the plea of guilty was not unequivocal and further that the trial magistrate erred in not allowing the appellant to change his plea before sentence was passed.

This case arose out of an armed robbery by a gang of thieves at Juja farm Ruiru on the night of 1/2 October 1971. Resulting from this the appellant was charged along with four others at the resident magistrate's court at Thika in October 1971. There were four counts but one was withdrawn and the accused persons pleaded guilty to the other three counts. The magistrate made a note:

> "The charges read to the accused persons all the essential ingredients of the charges explained and they plead."

We are not told what language the accused persons spoke or whether the charges and the accuseds' replies had to be interpreted. The record then goes on to show in so far as this appellant, who was the 5th accused, is concerned:

> "*COUNT I*
>
> *5th Accused:* It is true I was one of the robbers as outlined in the charge sheet read to me. I plead guilty.
>
> *COUNT III*
>
> *5th Accused:* It is true I stole the vehicle and plead guilty to the charge.

*COUNT IV*

*5th Accused:* It is true I was found with those instruments as mentioned in the charge sheet."

The appellant more or less repeated what the other accused had said in their pleas. After these pleas were taken the magistrate then recorded:

> "Pleas of guilty entered against all the 5 accused on their own pleas and they are convicted accordingly."

It is to be noted here that the trial magistrate did not follow what we understood to be the usual practice of the prosecution stating the facts on which it based the prosecution and then allowing the accused person the opportunity to answer to these facts before convicting the accused on his plea of guilty. This court recently in *Adan v. Republic*, [1973] E.A. 445 dealt fully with the desirability of this practice being followed.

The case was then adjourned to enable the prosecutor to produce the criminal records of the accused persons. The court resumed on 15 October 1971. On this date the appellant was represented by an advocate, Mr. Waiyaki, who then applied to alter the appellant's plea of guilty on the ground that the plea was ambiguous. The court held that the plea was unequivocal and not ambiguous and further held that the court had no power to quash or set aside its own conviction and refused to allow the appellant's application to change his plea. After this ruling the advocate for the appellant then gave notice of his intention to appeal against this ruling but the magistrate refused to stay sentence until the appeal was heard and proceeded with the case.

It was at this stage that the prosecutor for the first time stated the facts on which the prosecution was based and the particular part taken by each accused. He then also gave particulars of the criminal records of the accused persons. Each accused was then apparently given the opportunity to address the court but when it came to the turn of the appellant his advocate stated that as he held that the case was a nullity, he preferred that the appellant address the court personally, and then the appellant said:

> "I accept the record of my previous conviction. I have nothing to tell the court because I did not wish to plead guilty from the start. That is all."

The magistrate then proceeded to pass sentence on the appellant. On the first appeal to the High Court, the court allowed the appeal on count 4, but maintained the conviction and sentence on counts 1 and 3.

We might observe that the first appeal court apparently misdirected itself on the facts in so far as this appellant was concerned when it said:

> "On a plea of guilty, where the facts are stated by the prosecution and that statement is not refuted, the accused is deemed to have assented to their accuracy, and the proof is not in issue."

Actually, as we have pointed out, the prosecution only stated the facts after the magistrate had convicted the appellant and had refused to allow the appellant to change his plea. The appellant never accepted the facts as stated by the prosecution.

This case directly concerns the issue as to what constitutes a plea of guilty and further as to whether the magistrate had the power to allow an accused to change his plea of guilty after conviction but before sentence.

The procedure and powers of subordinate courts in Kenya on this matter are set out in s. 207 of Part VI of the Criminal Procedure Code –"Procedure in trials before subordinate courts". A similar position appears to exist in Tanzania (see s. 203 of their Criminal Procedure Code (Cap. 20)) and also in Uganda (s. 122 of the Magistrates' Courts Act, 1970).

The relevant portion of s. 207 states:

> "207 (1) The substance of the charge shall be stated to the accused person

by the court, and he shall be asked whether he admits or denies the truth of the charge.

(2) If the accused person admits the truth of the charge his admission shall be recorded as nearly as possible in the words used by him, and the court shall convict him and pass sentence upon or make an order against him, unless there appears to it sufficient cause to the contrary."

As we pointed out in the *Adan* case, the courts are concerned not to convict an accused person on his plea unless it is certain that the accused understood the charge and intended to plead guilty and that he has no defence to the charge. This is especially so in East Africa where so many different languages are spoken and the charge has often to be interpreted from English to some other language and then the plea has to be interpreted back to the magistrate in English. A plea of guilty should only be entered when it is certain that the accused admits committing the offence charged, and in any case of doubt a plea of not guilty should be entered. It is a right of every person accused of a crime to plead not guilty and to have the prosecution establish his guilt. We have in the *Adan* case dealt at length with the correct method to be adopted in taking a plea and the desirability of the prosecution stating the facts on which the prosecution is based and of the accused being allowed to deal with these facts before a conviction on a plea of guilty is entered.

In *Joseph Mugola v. R.* (1953), 20 E.A.C.A. 171 this court had to consider whether the magistrate had wrongly exercised his judicial discretion in refusing to allow an accused person to change his plea of guilty, and they upheld the magistrate's decision and in doing so appeared to have recognized the principle that it was within the magistrate's discretion to have allowed a change of plea before sentence. In their judgment this court said:

> "The last ground of appeal which is the ground that Mr. Bhandari has most seriously argued is that the Magistrate erred in not allowing the appellant to change his plea from guilty to one of not guilty. From the record it appears he wished to do so just before the Magistrate was proceeding to pass sentence. The same submission was made in the Court below and was rejected on the ground that there was nothing to indicate that there had been any wrong exercise of the discretion vested in the Magistrate. Even if it be conceded that this is now a point of law which this Court can consider, we are certainly of the same opinion as the Court below. From the record it is clear that the appellant pleaded to the two counts in clear and unequivocal terms and in refusing to allow him to change his plea after a lengthy remand the Magistrate recorded his reasons. Those reasons clearly reveal that the Magistrate addressed his mind to the appellant's request judicially and the reasons he has given refusing it appear to us to be quite unexceptional."

In the case of *Searle v. R.* (1955), 22 E.A.C.A. 443 this court again recognized the fact that the magistrate had a discretion to allow a change of plea before sentence although their decision in that case was based on s. 348 of the Criminal Procedure Code as the court held that as there had been unequivocal plea of guilty, no appeal lay against conviction.

In the present case the trial magistrate and also the first court of appeal were no doubt influenced by our decision in the case of *Maumba v. Republic*, [1966] E.A. 167. This was an appeal in Tanzania but the law in that country on this issue is the same as that in Kenya. The facts in that case are quite different from the facts in this case. In the *Maumba* case the appellant had pleaded guilty to five counts. The trial magistrate convicted the appellant on these five counts but deferred sentence until after the trial of the sixth count. The

prosecution however, withdrew the sixth count and then applied to amend the other five counts to a more serious offence and the trial magistrate granted this amendment to these charges on which convictions had already been entered and still remained. The magistrate then proceeded after a further plea had been taken to sentence the appellant on the subsisting charges. The High Court upheld the magistrate's judgment in the first appeal but this Court allowed the appeal and inter alia said:

> "With respect, we think this misses the essential point. The trial magistrate had convicted the appellant and he had no power to quash that conviction, nor did he purport to do so. While that conviction remained in force, the appellant could not be charged with or convicted of what was substantially the same offence. Therefore the proceedings which followed the first conviction were without jurisdiction and are a nullity."

We have reconsidered this case but are still of the view that this Court was correct in its decision to allow the appeal and quash the second conviction. The trial court here was purporting to amend counts to which the accused persons had already been convicted and in respect of which offences the convictions still remained when the amendment was made. Apart from the technical aspect it would be highly prejudicial to an accused person to accept his plea of guilty to a lesser offence and convict him on this and then to change that lesser offence to a more serious offence and then proceed with the trial.

This Court, however, then went on in its judgment to expressly approve an English decision in *R. v. Guest*, [1964] 3 All E.R. 385 and said:

> "We are strengthened in our opinion by the case of *R. v. Guest*, [1964] 3 All E.R. 385, which shows that in England the court which has convicted an accused person is functus officio except as regards the power to pass sentence."

We consider that this further observation was unnecessary to our decision in the *Maumba* case and was obiter dictum. The courts have, however, in Kenya, we think with every justification, interpreted our judgment in the *Maumba* case as approving the decision in *R. v. Guest* which laid down the principle that a trial court cannot accept a change of plea once it has entered a conviction and further that the court is functus officio after conviction except in so far as sentence is concerned.

Our judgment has been the subject of comment in the High Court of Kenya and the case of *R. v. Guest* has been overruled by a House of Lords' decision in England and we have been especially asked by the advocates in this appeal, Mr. Rebelo for the Republic and Mr. Waiyaki for the appellant to reconsider our decision in the *Maumba* case, and we think it right that we should now do so.

We would refer to the judgments of the High Court sitting in its appellate jurisdiction in *Okello v. Republic*, [1969] E.A. 378 (Ainley, C.J. and Trevelyan, J.) and then to the judgment of Mosdell, J. in *Kibilo v. Republic*, [1971] E.A. 101. In the case of *R. v. Guest* the court held that once an unequivocal plea of guilty had been accepted by the magistrate, the court became functus officio in so far as conviction was concerned and could only proceed to sentence.

The principles in question were fully reviewed by the House of Lords in 1969 in the case of *S.* (*an infant*) *v. Manchester City Recorder*, [1969] 3 All E.R. 1230 and by the unanimous decision of that court the judgment in *R. v. Guest* was overruled and it was held that a court was not functus officio until sentence had been given and up to that stage a trial court had a discretion to allow the change of plea.

In his judgment Lord Reid said:

> "In my view *Guest's* case at p. 1234, was wrongly decided and ought to be overruled. I can find no reason for there being a different rule in magistrates' courts from the rule in cases tried on indictment that the accused can apply at any time before sentence to change his plea of guilty and that it is for the court then to decide whether justice requires that that should be permitted."

We would also like to refer to the following persuasive reasoning from the judgment of Lord Morris of Borth-y-Gest, at p. 1242:

> "If, before the court has completed its task in regard to the case, an application to withdraw the plea is made and if it is made for reasons which the court deems valid and which perhaps it had previously had no opportunity of considering, is the court powerless to accede to it? It would be lamentable if that were so. The court might feel that having regard to the reasons advanced it would be wholly wrong to hold a person to some previous acknowledgment of guilt. The desire of any court must be to ensure, so far as possible, that only those are punished who are in fact guilty. The duty of a court to clear the innocent must be equal of superior in importance to its duty to convict and punish the guilty. Guilt may be proved by evidence. But also it may be confessed. The court will, however, have great concern if any doubt exists as to whether a confession was intended or as to whether it ought really ever to have been made. . . . It would be a grave defect in our law and system if there is some rule which thwarts the course which the interests of justice prompts."

We would also refer to the judgment of Lord Parker, C.J. in *R. v. Mutford and Lothingland Justices*, [1971] 1 All E.R. 81 when he quoted this extract from the judgment of Lord MacDermott in the *Manchester City Recorder* case:

> " 'The evidence relevant to the commission of an offence is generally relevant to the sentence. And that part of the hearing which is directed to the sentence may well cast new light on the question of guilt or innocence . . . But if, as can happen, the truth comes to light during the second stage of the proceedings, when the question of what to do with the accused is under consideration, why should it not be acted on and a changed plea of not guilty allowed where the interests of justice so require?' "

The magistrates' courts are created by statute and we have set out the short provisions of the Criminal Procedure Code which in s. 207 provide for the taking of the plea and the passing of sentence. There are no provisions providing for a plea to be changed, but there are equally no provisions to prevent a plea being changed before the court becomes functus officio. The whole purpose and intention of the Criminal Procedure Code is to lay down provisions and procedure to see that justice is done, and justice cannot be effected if a plea of guilty is entered as the result of ignorance or misunderstanding. The court must have a judicial discretion to allow a change of plea before it has finally disposed of the case. It is common practice to allow the accused person during the course of trial to change his plea of not guilty to one of guilty and we can see no reason why the court should not have similar powers to change a plea of guilty to one of not guilty. A further question arises, when does a magistrate's court become functus officio and we agree with the reasoning in *Manchester City Recorder* case that this can only be when the court disposes of a case by a verdict of not guilty or by passing sentence or making some order finally disposing of the case.

We are therefore of the view that this court was wrong in our decision in the *Maumba* case in so far as it approved of the decision in *R. v. Guest*, and we are

satisfied that the magistrate in this case did have the power, first, to set aside the conviction he had entered and, then, to allow the plea of guilty to be changed to that of not guilty. We earlier pointed out that in our view, the approval of the *Guest* case was by way of obiter dictum but in any event, as we pointed out in *Dodhia v. National & Grindlays Bank,* [1970] E.A. 195 this Court whilst normally regarding a previous decision of its own as binding, considers itself free to depart from that decision when it appears right to do so, and clearly this is such a case.

The magistrate's power has however to be judicially exercised. In the *Joseph Mugola* case this court held that the magistrate had exercised his discretion judicially. In this case the appellant was not given the opportunity to state whether he agreed with the facts on which the prosecution based its case nor was his application to change his plea really considered by the trial magistrate who ruled that once he had recorded the conviction he had no power to change his verdict. We are of the view that it would be unsafe to allow his conviction to stand and that this is a proper case to order a new trial before another magistrate. We therefore allow this appeal, quash his conviction on the two remaining counts and set aside the sentence. We order that the appellant be re-tried on counts 1 and 3. He has already been acquitted on counts two and four.

*Order accordingly.*

For the appellant:
*K. Waiyaki*

For the respondent:
*A. R. Rebelo* (State Counsel)

## Olenja v Republic
[1973] 1 EA 546 (CAN)

| | |
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| **Division:** | Court of Appeal at Nairobi |
| **Date of judgment:** | 16 November 1973 |
| **Case Number:** | 37/1973 (146/73) |
| **Before:** | Sir William Duffus P, Spry VP and Mustafa JA |
| **Sourced by:** | LawAfrica |
| **Appeal from:** | The High Court of Kenya – Kneller, J. |

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*[1] Criminal Law – Murder – Malice aforethought – Whether established by intention to commit any felony – Penal Code, s.* 206 (*K.*).

**Editor's Summary**

A pregnant girl died as a direct result of an attempted abortion by the appellant who was unqualified and inexperienced in the obtaining of abortions. The facts are set out in the judgment. The trial judge convicted the appellant of murder, holding that malice aforethought was established by proof of an intent to commit a felony.

On appeal it was contended for the appellant that the required intention was not necessarily established merely by the intention to procure an abortion.

**Held –**

(i) the English case law has to be considered in interpreting the section;

(ii) malice aforethought is not necessarily established by proof of an intent to commit any felony (*Kimno Kipturji* (1) and *Sironga Gidi* (5) followed; *Mugenyi* (3) and *Petero Sentali* (4) not followed);

(iii) he who uses violent measures in committing a felony involving personal violence is guilty of murder if death results even inadvertently;

(iv) knowledge that the act will probably cause death or grievous harm is required before death as a result of abortion is murder.

Appeal allowed. Conviction of manslaughter substituted.

**Cases referred to in judgment:**

(1) *Kimno Kipturji* (1934), 1 E.A.C.A. 188.

(2) *R. v. Stone*, [1937] 3 All E.R. 920.

(3) *Mugenyi* (1939), 6 E.A.C.A. 159.

(4) *Petero Sentali* (1953), 20 E.A.C.A. 230.

(5) *Sironga Gidi* (1953), 20 E.A.C.A. 241.

(6) *Abdurabi* (1956), 23 E.A.C.A. 555.

**Judgment**

The considered judgment of the court was read by **Sir William Duffus P:** The appellant was convicted of the murder of a pregnant girl Rose Nanjala and sentenced to death. The trial judge found that the deceased died as a direct result of an attempted abortion by the appellant. The trial judge accepted the prosecution's case and there were undoubtedly sufficient established facts to prove that the appellant attempted to carry out an abortion on the deceased who died as a result.

The appellant in a short written statement to the police confessed, he said:

> "I admit the charge which took place on 28/5/72 but I did not wish to do so. The deceased asked for help from me to abort the pregnancy because she was still reading at school. I did not know that the deceased had taken some medicines from hospital which she has used before she had come over to me. If I had known this I would not have helped her because the medicines used for abortion is poisonous."

At the trial the appellant repudiated this statement but the trial judge was satisfied and found that he had made the statement voluntarily and that the statement gave a true account of what had occurred and the judge found corroboration of the statement in the fact that the appellant had pointed out to the police the place where he had hidden the deceased girl's clothing and other articles belonging to her.

The only real issue in this appeal is whether the appellant was guilty of murder or of manslaughter and the question is whether the prosecution had established malice aforethought as defined in s. 206 of the Penal Code. In his judgment the judge in his conclusion said:

> "The consequence is that the further findings of the court are as follows: The accused caused the death of this young woman by an unlawful act. He was unqualified. He was inexperienced.
>
> He was not prompted by any need to save the life of the girl or any need to try and induce an abortion. A felony is an unlawful act or omission. Her consent was immaterial, so were his motives and his intentions. There was no other defence open to him. He was doing a very dangerous act. He attempted to procure an abortion. Now this, in all the circumstances, was a felony: S. 158 of the Penal Code. Malice aforethought is deemed to be established by evidence proving an intent to commit a felony (s. 206 (*c*) (ibid)). He tried to procure a miscarriage and while and because he was doing it Rose died.
>
> I agree with the assessors and find the Republic proved, beyond a reasonable doubt, the accused guilty of the murder of this girl."

S. 206 of the Penal Code states:

> "206. Malice aforethought shall be deemed to be established by evidence proving any one or more of the following circumstances:

(*a*) an intention to cause the death of or to do grievous harm to any person, whether such person is the person actually killed or not;

(*b*) knowledge that the act or omission causing death will probably cause the death of or grievous harm to some person, whether such person is the person actually killed or not, although such knowledge is accompanied by indifference whether death or grievous bodily harm is caused or not, or by a wish that it may not be caused;

(*c*) an intent to commit a felony;

(*d*) an intention by the act or omission to facilitate the flight or escape from custody of any person who has committed or attempted to commit a felony."

This section and especially the meaning to be given to sub-section (*c*) "an intent to commit a felony" has been the subject of much consideration by the courts both here in East Africa and in England. In this respect the law in England, in so far as the Penal Code is concerned, directly affects the interpretation of our Penal Code as s. 3 of the Code states:

"3. This Code shall be interpreted in accordance with the principles of legal interpretation obtaining in England, and expressions used in it shall be presumed, so far as is consistent with their context, and except as may be otherwise expressly provided, to be used with the meaning attaching to them in English criminal law and shall be construed in accordance therewith."

Our Penal Code, although we follow the Penal Code of another Commonwealth country, is based on the English common law and a doubt existed in England as to whether the intent to commit a felony alone without any further qualification was in all cases sufficient to prove malice aforethought. We refer to the following extract from Kenny's Outline On Criminal Law (17th ed. p. 143):

"DEATH CAUSED BY AN ACT OF VIOLENCE DONE IN THE COURSE OF OR IN FURTHEANCE OF A FELONY INVOLVING VIOLENCE.

III. This is the second instance of the survival – although in a modified form – of the ancient doctrine of strict liability under which a subjective mental ingredient was not essential to guilt. Coke's (3 Inst. 36) alleviation of its severity by the requirement that the death at least should result from an unlawful act, and Foster's further qualification that the act must be felonious, were both regarded by Sir James Stephen as 'monstrous'. In another passage Stephen called the doctrine amazing, but added that it had been repeated so often that he amongst others had accepted and acted upon it, though with regret. Indeed the severity of the rule had previously led to its being doubted. Thus as early as 1773, in *R. v. Lad* (I Leach 96;) the judges hesitated to say whether it would be murder to cause a child's death by a rape. Some four years after his History had been published Stephen referred to the same doctrine when directing the jury in the case of *R. v. Serme* (1887), 16 Cox 311 and remarked: 'In my opinion the definition of the law which makes it murder to kill by an act done in the commission of a felony might and ought to be narrowed'. There has indeed been one line of decisions in which the courts did considerably narrow the definition: these were cases in which a woman had died as the result of an illegal operation to procure abortion. By the Offences against the Person Act, 1861, s. 58, to perform such an operation is a felony, and therefore, by the rule now under consideration, if the woman should die as the result of it, the person who performed it should be guilty of murder. But in a case where this happened in 1898 (*R. v. Whitmarsh*, 62 J.P. 711) Bigham, J.,

> told the jury: 'If you can think that though the prisoner may have administered the injection, he nevertheless could not have contemplated that it could have resulted in death, then he is not guilty of the graver charge, but is guilty of the lesser crime of manslaughter.' This direction to the jury was repeated in *R. v. Bottomley* in 1903, (115 L. T. 88) and was followed in 1911 (*R. v. Lumley* (1911), 22 Cox 635) by Avory, J., who told the jury: 'If you . . . thought that by his own skill as a medical man he could perform this operation without any risk of either death or grievous bodily harm, then you would be justified in convicting him of manslaughter.' It was this line of cases which led Professor Kenny, in earlier editions (from the first in 1902, p. 317, to the thirteenth in 1929, p. 140) of this book, to the conclusion that the common law, being a living system, had developed in this as in other branches, so that the rule should be restated, and should 'be limited to such felonious acts as involve violence against an unwilling victim'."

In the English case of *R. v. Stone*, [1937] 3 All E. R. 920, the Court of Criminal Appeal although dealing with a case where the death resulted in the course of a rape, said, inter alia:

> "By the law of this country, as is clear from several of the cases which Mr. Maurice Healy has submitted to our attention, it is clear that, if a man, intending to commit a rape upon a woman, but without the least wish to kill her, squeezed her by the throat to overpower her, and in doing so killed her, that would be murder. It was so said in 1887 in *R. v. Serne* (*sup*) by Stephen, J. It was repeated again in Director of *Public Prosecutions v. Beard*, [1920] A.C. 479, in 1920, by Lord Birkenhead, L.C., when he said this, at p.493:
>
> > 'The evidence established that the prisoner killed the child by an act of violence done in the course or in the furtherance of the crime of rape, a felony involving violence. The court held that by the law of England such an act was murder. No attempt has been made in your Lordships' House to displace this view of the law and there can be no doubt as to its soundness.'
>
> It has been said to us today that some guidance or assistance should be gathered from the cases which have been decided – *Whitmarsh's* case (*sup*) was one, and *Lumley's* case (*sup*) another – with reference to questions as to the liability of a person who had been concerned in an illegal operation for the purpose of procuring abortion when death resulted, but the distinction seems quite obvious. There, although an illegal and improper act was being done, there was no intention to do any harm; there was no intention to do anything against the wish of the person hurt; indeed the desire was to help or assist the person who was hurt. It may well be, in those circumstances, that a proper direction is that, if a jury thinks that no reasonable person could contemplate that death would result from the act, they may find a verdict of manslaughter. But how different are those from the case which has been brought into this court today."

The English common law on this matter has however now been amended by the Homicide Act, 1957 s. 1 (1) which states:

> "Where a person kills another in the course or furtherance of some other offence, the killing shall not amount to murder unless done with the same malice aforethought (express or implied) as is required for a killing to amount to murder when not done in the course or furtherance of another offence."

The law has not however been amended in Kenya, although it has been in Uganda.

We have been unable to trace any reported cases in East Africa on the question of death resulting from an abortion but there are numerous cases on the interpretation of sub-section (*c*) of s. 206 of the Penal Code in Kenya and of its equivalent sub-sections in Uganda and Tanzania. The matter came before this court in the case of *Kimno Kipturji* (1934), 1 E.A.C.A. 188. This is a case where death resulted from an act which was only done with the intention of wounding and not of killing. An unlawful wounding was then a felony in Kenya and the trial judge convicted of murder having in mind the provisions of sub-section (*c*) that "malice aforethought" was sufficiently established by proof of an intent to commit any felony. In the course of its judgment this court said:

> "Now, is there any authority in the English decisions for holding that any felonious act done as an end in itself and without any intention to cause death or grievous harm imports of necessity malice aforethought? If that were so, it would render superfluous sub-head (*a*) of section 189 of the Penal Code that is to say the establishment of malice aforethought by proof that the act causing death was done with the intention of causing death or grievous harm, since an act done with the intention at least of causing grievous harm would amount to a felony. But we have been unable to find any case which supports the view of the learned Acting Judge."

and the court reduced the offence to manslaughter.

Then followed the case of *Mugenyi* (1939), 6 E.A.C.A. 159 where this court referred to sub-section (*c*) as being a codification of the long established rule of English law that where a person commits or attempts to commit a felony likely to result in the use of violence such as robbery or rape and in so doing causes death the offence is "murder".

In the case of *Petero Sentali* (1953), 20 E.A.C.A. 230 and *Sironga Gidi* (1953), 20 E.A.C.A. 241 this court was inclined to follow the strict meaning of subsection (*c*) and held that the provision was wider than the corresponding rule of the common law in England which was limited to felonies involving personal violence. This court however in both cases did not appear to have considered the judgment in *Kimno Kipturji's* case or its effect on cases like those of an attempted abortion or unlawful wounding. In the *Sentali* case the felony committed appears to have been burglary and in their judgment this court said:

> "In this respect the law of Uganda would appear to be wider than the law of England. In *R. v. Jarman* (1946), L.R.K.B. 74, the Court of Criminal Appeal said:
>
> > 'We think . . . that he who uses violent measures in the commission of a felony involving personal violence does so at his own risk, and is guilty of murder if these violent measures result even inadvertently to death of the victim.'
>
> This was a restatement of the rule approved by the House of Lords in *R. v. Beard*, [1920] A. C. 479 at p. 493. In Uganda, however, it is sufficient if death be caused by an unlawful act or omission done in furtherance of an intention to commit any felony. In practice, however, the distinction may not be a very real one for it could only rarely happen that death would be attributable to an unlawful act done in furtherance of a felonious intent without the intended felony being one which itself involves personal violence."

In *Sironga Gidi* the felony was cattle stealing by an armed gang and the court

there held that the accused persons had the necessary felonious intent sufficient to come within the definition of "malice aforethought" even though the intention was only to steal and was not an offence involving personal violence.

We will then consider the case of *Abdurabi* (1956), 23 E.A.C.A. 555 in which this court, although again it did not have the *Kimno Kipturji* case before it threw some doubt on the generality of the *Sentali* judgment in its interpretation of sub-section (3). In the *Abdurabi* case the trial court held that the appellant had stabbed the deceased in her neck with the intention of killing her. This court upheld this decision but then went on to consider a passage in the judgment which read:

> "It may well be contended that even if the accused is to be believed, and that he intended to stab the deceased in the arm, this homicide would still constitute murder by section 200 of the Penal Code, as the accused intended to commit the felony of wounding."

This court then quoted that passage of the *Sentali* judgment that we quoted (*sup*) and said:

> "On the face of it this passage is a justification of the direction which we have cited above. It may, however, be that, though correct in reference to the facts of that case, it was expressed in too general terms."

We agree with this criticism of the *Sentali* judgment and the further passage that we quoted from that judgment which stated: "In practice however, the distinction may not be a very real one" would appear to show that the court then did in fact only have in mind the facts of that case and did not consider all the other possible felonies that could occur.

In the *Abdurabi* case the court then went on to consider the difficulties that could arise from giving a wide and literal interpretation to sub-section (3) and said:

> "We think that section 200 of the Tanganyika Penal Code was intended to be a codification of the law of England as to malice aforethought and, if that is so, then English decisions are relevant to its interpretation. So far as we are aware, in all the cases in England where a person has been convicted of murder because the deceased died in consequence of violence inflicted upon him in the course or in furtherance of a felony, the felony was not the act causing death, but a separate and distinct felony such as robbery or rape. It may well be, therefore, that the true construction to be put on paragraphs (*a*), (*b*) and (*c*) of section 200 is that where the essence of the offence is the intention to do bodily injury to the deceased, in those cases paragraphs (*a*) and (*b*) are exhaustive of the types of intention which will cause that act to amount to murder. Where, on the other hand, there is an intent to commit a felony other than one of causing personal injury, then paragraph (*c*) applies; in some such cases an intent to commit personal injury may be an element in the felony in question but it is not the gist of the offence. If that is not the correct construction, the consequences would be appalling. As unlawful wounding is a felony in Tanganyika and 'wound' by definition means 'any incision or puncture which divides or pierces any exterior membrane of the body, and any membrane is exterior for the purpose of this definition which can be touched without dividing or piercing any other membrane', a person who intentionally and unlawfully inflicted a minor cut would be guilty of murder if death resulted from that injury. It would surprise us if that were the intention of the legislature. The point, however, was not fully argued before us and a decision on it was not necessary for the determination of the appeal."

The definition of "malice aforethought" (as set out in our s. 206) has given rise to several different interpretations both in England and in East Africa and as a result the law has been amended in England and in Uganda (*supra*). The law has not however been amended in Kenya and at present the decisions of this court would not, on the face of it, appear to be as clear and as decisive as desirable.

We are of the view that it is not possible to lay down a general interpretation to be followed in all cases. The decision must depend on the facts and circumstances of each case. There are however certain definite and clear rules of interpretation which have been decided and in our view rightly decided in our courts. First there is the rule as laid down in the English case of *Jarman* which followed the House of Lords decision in the *Beard* case and has been approved by the decisions of this court to which we have referred. The rule is "that he who uses violent measures in the commission of a felony involving personal violence does so at his own risk and is guilty of murder if these violent measures result even inadvertently in the death of the victim". This rule has been applied in cases of rape, arson, burglary and stealing cattle when armed. An exception was however made in the *Kimno Kipturji* case and in the *Abdurabi* case to cases where the offence was unlawful wounding only. Unlawful wounding is no longer a felony in Kenya but in *Abdurabi's* case this court suggested that subsection (*c*) would not apply to cases where personal injury was the intended result of the offence as this would be already covered by sub-heads (*a*) and (*b*) of the section.

There is then this type of case where death results in an attempt to commit an abortion. An abortion is usually committed by the accused not only with the consent of the deceased but at her request and is done with an intention to assist and aid the deceased and not to harm her. The crime can vary from the giving of an abortifacient drug which may be a fairly common one, e.g. quinine, to an unskilled and bungled attempt by an unqualified person using instruments which damage a vital part of the woman.

S. 206 must be interpreted with the English law and definitions in view. It is apparent that the legislature in Kenya did not intend to give paragraph (*c*) of the section its literal meaning and had in mind that the meaning to be given to felonies as used in paragraph (*c*) should follow the interpretation given in similar circumstances in England. Thus paragraph (*c*) would only apply to the felony of an attempted abortion in those cases where death resulted under certain aggravated circumstances. We have already referred to the English cases which set out the law as it was applied in England. We are of the view that the test to be applied in Kenya would be somewhat different. We would again refer to our decision in the *Abdurabi* case (*supra*). Paragraph (*c*) of s. 206 of our Penal Code refers to felonies generally and would not include those felonies which are specifically dealt with in paragraphs (*a*) and (*b*). In our view an attempt to commit an abortion would be covered by paragraph (*b*):

> "(*b*) Knowledge that the act or omission causing death will probably cause the death of or grievous harm to some person, whether such person is the person actually killed or not, although such knowledge is accompanied by indifference whether death or grievous bodily harm is caused or not, or by a wish that it may not be caused:"

Paragraph (*b*) does in fact appear to be particularly appropriate to the case of death resulting from an attempt at an abortion. As we have stated, the legislature clearly did not intend that the mere attempt to commit an abortion should be of itself sufficient to form the requisite intent in a murder case without any further qualification.

In our view paragraph (*b*) sets out that qualification and the legislature intended that death resulting from an attempted abortion should only be murder if it happened in the circumstances set out in paragraph (*b*) of s. 206 and the trial judge should have so directed himself.

We have already set out the facts in this case and the extracts from the judge's conclusions. With respect it does not appear that the judge adequately directed himself or the assessors as to the possibility of this offence being manslaughter and not murder. The established facts show that the appellant attempted to procure the abortion by the insertion of some foreign matter into the vagina. There was no evidence to suggest what this article was; according to the medical evidence it could have been plastic, glass, wood, or anything. The only injury was a laceration to the hymen. We do not consider that there was sufficient evidence to justify the judge's findings that this was "a crude attempt at abortion done without the aid of anaesthetics, without any proper precautions, without any attempts at sterilization and in the small room of the accused at the hospital". There was really no evidence to show exactly how the abortion was attempted and under what circumstances the attempt was carried out.

It appears possible that on a proper direction to the assessors and to himself that the judge might have found that the appellant did not know that his act would probably cause death or grievous harm to the deceased.

It would be in our view unsafe to allow the conviction for murder to stand and we accordingly allow the appeal and quash the conviction for murder and set aside the sentence of death and substitute a verdict of manslaughter. We take into account the period that the appellant was in custody awaiting trial and order that the appellant be imprisoned for four years as from the date of his sentence in the High Court.

*Order accordingly.*

For the appellant:
*R. O. Kwach* (instructed by *Masime & Kwach*, Nairobi)

For the respondent:
*A. R. Rebelo* (State Counsel)

## Dipak Emporium v Bond's Clothing
[1973] 1 EA 553 (CAN)

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| **Division:** | Court of Appeal at Nairobi |
| **Date of judgment:** | 15 November 1973 |
| **Case Number:** | 64/1972 (143/73) |
| **Before:** | Sir William Duffus P, Spry VP and Mustafa JA |
| **Sourced by:** | LawAfrica |
| **Appeal From:** | The High Court of Kenya – Chanan Singh, J. |

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*[1] Trade Marks – Infringement – Mark subsequently sold – Right to damages not lost.*

*[2] Trade Marks – Infringement – Mark subsequently sold – Order for delivery up of infringing material properly made.*

*[3] Passing Off – Cessation of business – Goodwill may continue after cessation of business.*

*[4] Damages – Interest – Award assessed by court – No definite fixed and ascertainable loss – Interest from date of assessment of damages.*

**Editor's Summary**

The respondents owned the trade mark "Bonds" in respect of articles of clothing including men's trousers. The appellants manufactured and sold men's trousers under the mark "Bond". The High Court awarded the respondents damages for the infringement of their trade mark and for passing off, an order for the delivery up of the offending labels and interest on the damages awarded from the date of filing suit.

On appeal the appellants contended that the word was not likely to mislead in particular as the appellants sold to a different class of customer, that the respondents were not entitled to any relief as they had sold their business, and that interest on the damages should only have been awarded from the date of assessment.

**Held –**

(i) in view of the close relation of the words the judge correctly found both infringement of the trade mark and passing off;

(ii) a right to damages is not lost by the subsequent sale of a trade-mark;

(iii) good-will in a business may subsist for a period after a trader has ceased to carry on business (*Ad Lib Club v. Granville* (5) followed);

(iv) an order for delivery up of the offending labels was properly made even if this was being done for the new owner of the mark;

(v) as it was not shown that the respondents had suffered any definite fixed and ascertainable loss the award of interest should have been from the date of assessment.

Appeal allowed in part.

**Cases referred to in judgment:**

(1) *Norman Kark Publications v. Odhams Press*, [1962] 1 All E.R.636.

(2) *Prem Lata v. Mbiyu*, [1965] E.A. 592.

(3) *Jefford v. Gee*, [1970] 2 Q.B. 130; [1970] 1 All E.R. 1202.

(4) *Mukisa Biscuit v. West End Distributors* (*No.*2), [1970] E.A. 469.

(5) *Ad-Lib Club v. Granville*, [1971] 2 All E.R. 300.

(6) *Slater v. Hughes*, [1971] 3 All E.R. 1287.

**Judgment**

The following considered judgments were read. **Sir William Duffus P:** The plaintiffs Premchand Meghji Shah and Tarachand Jivraj Shah were partners trading as manufacturers and merchants under the name “Bonds Clothing”. They were the registered proprietors of the trade mark “Bonds” registered under part A Schedule III Class 25 as No. 13043 on 24 July 1965. The trade mark was in respect of articles of clothing including men’s clothing.

The plaintiffs brought this action in July 1970 against the defendants Premchand Raichand Shah, Sobhachand Premchand Shah and Suresh Premchand Shah trading as “Dipak Emporium” claiming an injunction and seeking damages or an account for an infringement of their trade mark and/or for having passed-off goods of the defendants as those of the plaintiffs.

The plaintiffs did not proceed with their claim for an injunction or for an account. The trial judge found for the plaintiffs and awarded them damages with interest and also ordered that the offending labels be delivered up to the plaintiffs for destruction and he then adjourned the hearing for further arguments as to how the damages were to be arrived at.

The defendants appeal against this decision and for convenience sake I will in this judgment continue to refer to the appellants as the defendants and the respondents as the plaintiffs.

The issue in this case concerns the manufacture and sale of men’s trousers. The plaintiffs claim that the defendants manufactured and sold men’s trousers

bearing labels with the word “Bond” printed on it which they claim amounted to an infringement of their trade mark “Bonds” and to a passing-off of the defendants’ trousers as being of the plaintiffs’ manufacture. Both the plaintiffs and the defendants explain the choice of the name “Bond” as being due to the glamour attached to James Bond, the hero of Ian Flemming’s books and whose exploits were the subject of several sensational films shown in the local cinemas.

The plaintiffs combine in this action a claim both for the infringement of their trade mark and for the passing-off of goods. The judge deals with both these causes of action together in his judgment. In the particular circumstances of this case I am of the view that the judge was correct in doing so, as the same damage, if any, would arise in each case. These are however, two separate causes of action. The action for an infringement of the trade mark is based on s. 7 (1) of the Trade Marks Act (Cap. 506) which states inter alia:

> “. . . the registration . . . of a person in Part A of the register as proprietor of a trade mark . . . in respect of any goods shall, if valid, give or be deemed to have given to that person the exclusive right to the use of the trade mark in relation to those goods, and, without prejudice to the generality of the foregoing words, that right shall be deemed to be infringed by any person who, . . . uses a mark identical with it or so nearly resembling it as to be likely to deceive or cause confusion, in the course of trade, in relation to any goods in respect of which it is registered, and in such manner as to render the use of the mark likely to be taken either –
>
> (*a*) as being used as a trade mark; . . .”

The action of passing-off was based on the fact that the defendants were using the name “Bond” in order to pass off their goods i.e. men’s trousers, as being goods manufactured and sold by the plaintiffs.

The facts in this case are relatively simple and largely admitted. The defendants admitted that they used the word “Bond” as describing the trousers made and sold by them to traders for re-sale to the public. Witnesses were called by both sides. The plaintiffs traded under the name “Bonds Clothing” and the clothing that they manufactured and sold was protected by registration under the Trade Marks Act in the name “Bonds”. The defendants raised various defences but the main issue was whether or not their use of the word “Bond” was likely to deceive or cause confusion. The defendants contended that the word “Bond” was quite different and has a different meaning from the word “Bonds” and that the words used were “Hatari Bond” and not “Bond” alone. They contended that the name “Bond” was associated with James Bond and that the trousers in question was of that type of close fitting trousers worn by James Bond in the various films shown locally. The defendants also contended that their trousers were made from inferior materials and were sold to a different class of persons at a much lower price. Witnesses were called by both sides and the offending labels of the defendants and the labels of the plaintiffs were put into evidence and considered by the judge. The judge rightly found that the plaintiffs were not complaining of any deception due to the similarity of the labels but their complaint was restricted to the use of the word “Bond” as infringing their registered trade mark “Bonds” and as such being likely to deceive. The judge considered all the evidence and also the fact that the defendants used the word “Hatari Bond” and not “Bond” alone but the judge rightly pointed out that on the defendants’ labels the word “Hatari” was printed in small letters whilst the word “Bond” was in large letters so that the emphasis on the labels was on the word “Bond” alone and not on the words “Hatari Bond”.

Mr. Gautama both in the High Court and before us laid much stress in the

difference in the quality and price of the trousers offered for sale by the defendants as against those of the plaintiffs. The judge dealt with this submission at length and in doing so also considered the various cases to which he was referred and decided that the differences were not so great as to materially affect the issue as to whether the customers would be misled by the use of the word "Bond". He also considered at some length the difference in the words themselves. The judge accepted the evidence of the three customers called by the plaintiffs, David Johnson Muhavi, Stephen Mbuvi and John Pondi to the effect that they bought the defendants' "Bond" trousers believing these to have been "Bonds" trousers of the plaintiffs.

Each case must be considered and decided on the evidence and the established facts in that particular case. In this case the main consideration is the close resemblance of the word "Bond" to the registered mark "Bonds". The issue to be decided is a question of fact and the judge fully considered all the facts before him and was in my view justified in his conclusion that there had been an infringement of the trade mark and also a passing off of the goods.

Mr. Gautama also raised the issue that the plaintiffs cannot maintain this action as they had dissolved their partnership and further had sold the trade mark. The defendants did not deny the plaintiffs title to the trade mark in their defence but during the course of the first plaintiff's cross-examination he said that (*a*) The Bonds business had been sold to Bonds Clothing Ltd. and (*b*) that the trade mark was also sold with it.

In his submission Mr. Gautama relied largely on the passages set out in paragraph 1001 Vol. 38 of the 3rd edition of Halsbury to the effect that the action for passing-off is based on an injury to good-will and cannot be maintained by a person who had ceased to carry on the business in question. This was fully considered by the trial judge who also considered the English case of *Norman Kark Publications v. Odhams Press*, [1962] 1 All E.R. 636. I would also refer to the more recent case of *Ad-Lib Club v. Granville*, [1971] 2 All E.R. 300. Although not directly relevant to this case I would quote a passage from the judgment of Pennycuick, V.-C. in the *Ad-Lib Club Ltd.* case at p. 303 which dealt with the principle on which Mr. Gautama relied

> "It seems to me clear on principle and on authority that where a trader ceases to carry on his business he may nonetheless retain for at any rate some period of time the goodwill attached to that business. Indeed it is obvious. He may wish to re-open the business or he may wish to sell it. It further seems to me clear in principle and on authority that so long as he does retain the goodwill in connection with his business he must also be able to enforce his rights in respect of any name which is attached to that goodwill. It must be a question of fact and degree at what point in time a trader who has either temporarily or permanently closed down his business should be treated as no longer having any goodwill in that business or in any name attached to it which he is entitled to have protected by law."

As I have stated this issue was not raised in the pleadings and perhaps for this reason the evidence given by the first plaintiff is not clear but it does appear that the various changes concerned with the proprietors of the Bonds Clothing business were caused in an attempt to avoid or to comply with the requirements of the trade licensing laws and that the plaintiffs as a family continued to trade in Bonds Clothing and at any rate the plaintiffs remained on the register as the proprietors of the trade mark "Bonds".

This issue may be considered under the two heads (i) damages; (ii) the order to deliver the offending labels.

I entirely agree with the trial judge that the plaintiffs did not lose their right

to damages by a subsequent sale of the trade mark. The owner of an article which has been damaged by a defendant's negligence or wilful act is still entitled to recover damages even if he has sold the article subsequent to the damage e.g. the owner of a motorcar who sells the car after an accident causing the damage. The original owner retains the right to recover the damage suffered, this right is not transferred to the new owner. Thus in this case there can be no doubt that a subsequent sale of the trade mark would not deprive the proprietors at the time that the damage was suffered of their right to recover compensation for the loss they sustained. The plaintiffs are entitled to damages.

The second consideration concerns the order for the delivery of any offending labels. This order now appears to be of little consequence, the defendants having ceased to use the word "Bond" in their manufacture of clothes and the plaintiffs having withdrawn their claim for an injunction. The plaintiffs however still remain as the registered proprietors of the trade mark and as such they are entitled to bring this action and obtain the order for the delivering up of any offending labels even if this is fact in being done on behalf of the new owners.

I will now consider one of the more difficult issues raised in this appeal. That of the award of interest on the amount of damages as from the date of the filing of the suit. This issue was only raised by Mr. Gautama at the hearing by means of an additional ground of appeal reading as follows:

> "The learned judge misdirected himself in ordering payment of interest on the unascertained general damages from the date of the filing of the suit. The interest should have been ordered as from the date of the assessment of such damages."

The court's right to award interest is based on s. 26 (1) of the Civil Procedure Act (Cap. 5) which states:

> "26(1) Where and in so far as a decree is for the payment of money, the court may, in the decree, order interest at such rate as the court deems reasonable to be paid on the principal sum adjudged from the date of the suit to the date of the decree in addition to any interest adjudged on such principal sum for any period prior to the institution of the suit, with further interest at such rate as the court deems reasonable on the aggregate sum so adjudged from the date of payment or to such earlier date as the court thinks fit."

This matter was not fully argued before us at the first hearing possibly because this additional ground of appeal was only brought in at the last moment. After consideration we decided to re-open the hearing for further argument on this issue and we did so. We are indebted to Mr. Gautama for the defendant, and to Mr. Salter for the plaintiffs for their further helpful submissions.

At this further hearing Mr. Gautama now based his arguments on the judgment of this court in *Mukisa Biscuit v. West End Distributors*, [1970] E.A. 469. In his previous submission Mr. Gautama had relied on our judgment in *Prem Lata v. Mbiyu*, [1965] E.A. 592. The case of *Mukisa* was based on a breach of contract and in delivering the leading judgment Spry, V.-P. said:

> "The principle that emerges is that where a person is entitled to a liquidated amount or to specific goods and has been deprived of them through the wrongful act of another person, he should be awarded interest from the date of filing suit. Where, however, damages have to be assessed by the court, the right to those damages does not arise until they are assessed and therefore interest is only given from the date of judgment. In the present case, West End did not prove that any specific sum was due as damages: the court had to make the best assessment it could on inadequate material.

> In these circumstances, I think that interest should only have been awarded on the general damages as from the date of judgment."

Mr. Gautama submitted that the present case came exactly within the principles laid down in this passage in that the plaintiffs had not proved that they were entitled to a liquidated amount or to specific goods and that interest should only commence as from the date that damages were assessed.

Mr. Salter relied really on the law and principles as laid down in England and he referred to the case of *Jefford v. Gee*, [1970] 1 All E.R. 1202 a judgment of the Court of Appeal in England. In this case Lord Denning, M.R., delivered the judgment of the court and dealt very fully with the historical background and the statutory reforms and the resultant principles on which interest was today payable in England. Mr. Salter supported the judgment that interest should be paid as from the date of the filing of the suit. He also referred to the case of *Slater v. Hughes*, [1971] 3 All E.R. 1287. In his judgment in this case Davies, L.J., quoted the following passages from the judgment in the *Jefford* case at p. 1291:

> "Interest should not be awarded as compensation for the damage done. It should only be awarded to a plaintiff for being kept out of money which ought to have been paid to him. . . . Interest should be awarded on this lump sum as from the time when a defendant ought to have paid it, but did not: for it is only from that time that a plaintiff can be said to have been kept out of the money. This time might in some cases be taken to be the date of letter before action, but at the latest it should be the date when the writ was served. In the words of Lord Herschell, L.C., interest should be awarded 'from the time of action brought at all events'. From that time onwards it can properly be said that a plaintiff has been out of the whole sum and a defendant has had the benefit of it."

The English cases are based on English law which is not the same as our law in Kenya. Our law on interest is based only on s. 26 (1) of the Civil Procedure Code. This section does, undoubtedly, give the trial court a very wide discretion in awarding interest and our judgments in the *Prem Lata* case and in the *Mukisa* case do not cover all the possible situations that might arise. They do however lay down certain general principles which should be followed.

In this case, with respect, the trial judge nowhere considered the question of interest and it appears possible that his award of interest on damages as from the date of the filing of the plaint may have been done per incuriam. The judge made no findings in his judgment on damages nor did he decide on what principles these were to be assessed, this question was reserved fro further argument. We are told from the Bar that these damages have now been assessed. This is the type of case where the plaintiffs may have been able to prove a definite, fixed and ascertainable loss which may have justified an award of interest as from the date the plaint was filed but there were no findings in the judgment to support such a decision. In my view the award of interest on damages as from the date the plaint was filed was wrong and cannot be supported either from the findings in the judgment nor from the ascertained facts on the record.

I would allow the appeal on the question of interest on the damages and strike out from the decree that portion of the judgment awarding the plaintiffs interest on damages and in lieu thereof order that interest be payable at the rate of 6 per cent per annum on the damages as from the date they were assessed. The plaintiffs have succeeded on the majority of the issues in this appeal. The defendants have only succeeded on the question of interest and in considering costs I take into account the fact that this ground of appeal was only raised on the day of the hearing of the appeal and that the further hearing on this question of interest was really caused by this late filing.

I would therefore dismiss this appeal on all the various issues affecting liability, and allow the appeal only on the question of interest on the damages, I would allow the plaintiffs respondents two-thirds of the costs of this appeal, and grant a certificate for two advocates, and as Spry, V.-P. and Mustafa, J.A. also agree it is so ordered.

**Mustafa JA:** I agree.

**Spry VP:** I agree.

*Appeal dismissed. Order for interest varied.*

For the appellants:
*S. C. Gautama* and *A. B. Shah* (instructed by *Shah & Parekh*, Nairobi)

For the respondents:
*C. Salter Q.C.* and *R. N. Khanna* (instructed by *Khanna & Co.*, Nairobi)

## Hunts Travel Services Ltd v Pioneer General Assurance Society Ltd
[1973] 1 EA 559 (CAK)

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| **Division:** | Court of Appeal at Kampala |
| **Date of judgment:** | 6 November 1973 |
| **Case Number:** | 32/1973 (148/73) |
| **Before:** | Sir William Duffus P, Spry VP and Law JA |
| **Sourced by:** | LawAfrica |
| **Appeal from:** | The High Court of Uganda – Wambuzi, C.J. |

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*[1] Insurance – Motor Insurance – Subrogation – Tortfeasor paying full judgment – No right of recovery against insurer of joint tortfeasor.*

**Editor's Summary**

The appellant was held to be jointly liable with one Okoti to a claimant in respect of a motor accident. The appellant was called on to satisfy the judgment in full and then sued the respondent, the insurers of Okoti. The High Court held that the appellant was a stranger to any contract between Okoti and the respondent and that subrogation could not apply.

The appellant appealed contending that subrogation did not only arise out of contract but also out of unjust enrichment and that it was the rights of the claimant to which the appellant sought to be subrogated.

For the respondent it was contended that while the respondent would have had no defence to an action by the claimant it would have had a defence to a claim by Okoti to an indemnity.

**Held** –

(i) the appellant paid a debt owed by it and not by another;

(ii) the appellant could not succeed to the rights of the claimant as she had no subsisting rights;

(iii) the appellant had no claim against the respondent.

Appeal dismissed.

**Cases referred to in judgment:**

(1) *Dering v. Earl of Winchelsea* (1787), 29 E.R. 1184.

**Judgment**

The following considered judgments were read. **Spry VP:** These proceedings arise out of an earlier suit, in which a Mrs. Mannheimer sued the appellant company (to which I shall refer as “Hunts”) and one Lt. S. Okoti, claiming damages for the death of her husband in a traffic accident which

involved two vehicles. She was awarded Shs. 120,000/- against Hunts, as the owner of one vehicle, and Okoti, as the driver of the other, jointly and severally, and liability was apportioned, as between the tortfeasors, at 75 per cent to Hunts and 25 per cent to Okoti. Mrs. Mannheimer called on Hunts to satisfy the decree in full, and this was done by Hunts' insurers (to whom I shall refer as "South British"). In the suit from which this appeal was brought, Hunts, as nominal plaintiffs for south British, claimed contribution from the respondents, (to whom I shall refer as "Pioneer"), as the insurers of the vehicle driven by Okoti.

At the hearing of the suit, counsel for Hunts relied on the principle of subrogation, rather than contribution. The Chief Justice held that subrogation could not apply, as Hunts was a stranger to the contract between Okoti and Pioneer. He held that no cause of action had been shown and dismissed the suit. It is from that decision that the present appeal is brought.

Mr. Kateera, for Hunts, claimed that the Chief Justice erred in regarding subrogation as arising only out of contract. He claimed that the principle is much wider and sought to invoke the concept of unjust enrichment. He complained also that the Chief Justice had erred in thinking that Hunts were seeking to be subrogated to the rights of Okoti, whereas it was really the rights of Mrs. Mannheimer to which it sought to succeed. In the main, his argument was a plea for the court to invoke broad principles of justice and morality to ensure that Pioneer should not be able to avoid contributing to the damages.

Mr. Wilkinson, for Pioneer, submitted that there was no question here of subrogation, which arises out of indemnity. Equally, there was no question of unjust enrichment, which is a principle applied in cases of double insurance. If any such action lay, which he denied, the plaintiff should be South British, not Hunts. Finally, Hunts could look to Okoti for contribution, but not to Pioneer. In this connection, Mr. Wilkinson Pointed out that while Pioneer could have had no defence to a suit by Mrs. Mannheimer, it might have, and, indeed, claimed to have, a good defence to a suit for indemnity by Okoti.

At first sight, Mr. Kateera's arguments appear attractive but I think Mr. Wilkinson is correct. Mrs. Mannheimer was injured by the wrongful conduct of two independent tortfeasors. She could sue either or both. As between the tortfeasors, there is by statute (Law Reform (Miscellaneous Provisions) Act (Cap. 74) s. 14 (1) (*c*)), a right of contribution. Each tortfeasor, if insured, then looks to his own insurers for indemnity. That is the basic position. In regard to claims arising out of traffic accidents, the legislature introduced two modifications. First, the injured person was given a direct right of recourse against the insurers of a tortfeasor against whom judgment has been obtained and, secondly, those insurers were deprived, as against the injured person, of the benefit of certain defences that might have been effective against their insured.

In practical terms, Mrs. Mannheimer could under s. 104 (1) of the Traffic Act (Cap. 342) (since repealed), have recovered the damages awarded her from Pioneer, but she did not do so and, having been paid in full by South British, has no subsisting right of action. Hunts could, in theory, recover Shs. 30,000/- from Okoti by way of contribution, under s. 14 (1) (*c*) of the Law Reform (Miscellaneous Provisions) Act, but his whereabouts are unknown. Hunts can have no right of action Pioneer in contract, since there was no privity of contract between them, and there is no statutory right of action. There is, so far as I am aware, no rule of common law or equity that assists. Indeed, I think this is shown by the fact that the legislature thought it necessary to enact s. 104. There can be no question of succeeding to the rights of Mrs. Mannheimer, as she has no subsisting right.

Mr. Kateera cited *Dering v. Earl of Winchelsea* (1787), 29 E.R. 1184 as authority

for saying that contribution springs not from contract but from general principles of justice. With respect, I think he was reading too much into that sentence. The case is authority for saying that there is a right of contribution between sureties who are separately bound by different instruments but for the same principal and the same engagement or, in other words, sharing a common interest and a common burden. That has no relevance to the present facts, and I do not think there is any broad principle to be extracted that would assist Hunts in the present appeal.

Mr. Kateera also referred to the principle of equity that a person who has paid the debt of another has a right to recover it, but that principle also appears to be irrelevant, because the debt paid by South British was a debt owed by Hunts.

There is one further observation that I would make. There was some discussion in the High Court as to the meaning of the words "persons entitled to the benefit of the judgment" in s. 104 (1). In my opinion, those words can only relate to a successful plaintiff of his assignee. The section does not say "any person deriving any benefit from the judgment". I do not think the section can reasonably be read as conferring a right on an unsuccessful defendant, merely because he obtains a finding of contributory negligence on the part of another defendant.

In my opinion, the decision of the Chief Justice was correct, and I would dismiss the appeal with costs. Mr. Wilkinson did not ask for a certificate for two advocates.

**Sir William Duffus P:** I agree with the judgment of the learned Vice President, and as Law, J.A. also agrees the appeal is dismissed with costs.

**Law JA:** I agree with the judgment prepared by Spry, V.-P. and with the Order proposed therein.

*Appeal dismissed.*

For the appellant:
*J. Kateera* (instructed by *Hunter & Greig*, Kampala)

For the respondent:
*P. J. Wilkinson Q.C.* and *G. P. M. Balikuddembe* (instructed by *Ibingira & Mulenga*, Kampala)

## Kiwanuka-Musisi v Seggane
[1973] 1 EA 561 (HCU)

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| **Division:** | High Court of Uganda at Kampala |
| **Date of judgment:** | 29 June 1973 |
| **Case Number:** | 87/1971 (150/73) |
| **Before:** | Nyamuchoncho, J |
| **Sourced by:** | LawAfrica |

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*[1] Landlord & Tenant – Lease – Re-entry – Application to cancel re-entry after reletting of land – Refused as it would cause injustice – Registration of Titles Act* (*Cap*. 205) (*U*.).

**Editor's Summary**

The respondent was the owner of land which he had leased to the applicant upon terms which allowed him to re-enter and terminate the lease on the breach of certain covenants. Upon notice the respondent re-entered, terminated the lease and registered notice of the re-entry on the title to the land. He then to the applicant's knowledge leased the land to a third party who commenced building.

Six months after its registration, the applicant applied for the cancellation of the re-entry.

**Held** –

(i) the application is for equitable relief which should be refused when it would cause injustice;

(ii) as the land had been relet the application would be refused.

Application dismissed.

**Cases referred to in judgment:**

(1) *Haji Musa v. Martin Ondowa*, H.C.C.C. 360 of 1971 (unreported).

**Judgment**

**Nyamuchoncho J:** This is an application for an order for the cancellation of a re-entry by the respondent registered on 18 June 1971 on the Leasehold Register, Volume 769 Folio 8, by the Registrar of Titles. The events which led to the filing of this application are as follows:

On 1 May 1970 the applicant and the respondent signed an agreement whereby the respondent leased to the applicant a piece of land for 99 years subject to the terms (covenants) set out in paras. 2-6 inclusive of the agreement.

On 31 October 1970 the lessor issued a warning to the lessee (applicant) alleging that the lessee was in breach of certain covenants specified in the letter, and demanding that the breaches be stopped or else legal proceedings would be instituted specially re-entry. On 18 June 1971 the lessor (respondent) registered re-entry because the lessee (applicant) defaulted in payment of rent due on 1 May 1971, and the breaches specified in his letter of 31 October 1970 were not remedied.

On 1 July 1971 the lessor (respondent) entered into a lease agreement with Serugunda in respect of the same piece of land. Serugunda then started demolishing old premises and putting up new ones. The applicant was informed of these transactions. Nevertheless, on 22 December 1971 the applicant filed an application for the cancellation of the re-entry registered on 18 July 1971. This application was filed six months after the registration of the re-entry and five months after the respondent and Serugunda had signed an agreement for the lease of that piece of land.

On 2 March 1972 the applicant applied for, and was granted an injunction against the respondent which was apparently not obeyed, and so the applicant applied for an order of committal to prison for contempt, this application was not pursued as it was, after a series of adjournments, dismissed on 30 May 1973, for want of prosecution. Earlier, on 15 March 1973 it is on record that the applicant tried to call witnesses to prove his case, which appears to me to have been a proper course to take, but this course was also abandoned. It is now sought to revive this application, filed on 22 December 1971. In their affidavits both the applicant and the respondent deny and breach of the agreement. The applicant does not admit breach of the covenants or default in payment of rent, while the respondent asserts that the applicant was in breach of the covenants and failed to tender the rent on the due date. S. 102 (*b*) of the Registration of Titles Act (Cap. 205) permits the lessor to re-enter in case of any breach or non-observance of any of the covenants expressed in the lease, if the non-observance continues for the space of thirty days. S. 113 of the said Act permits the Registrar of Titles to make an entry in his Register of such re-entry if he is satisfied that the re-entry was in conformity with the provisions of s. 102 (*b*) of the said Act. I have heard no evidence to suggest that ss. 102 (*b*) and 113 were not complied with, and so I make no finding on that. I am unable to decide which party is in breach.

Turning to the application itself, I note that the relief the applicant is seeking is an equitable relief. The provision for re-entry on non-payment of rent is

regarded in equity as merely a security for rent, and accordingly, provided that the landlord can be put in the same position as before, the tenant is entitled to be relieved against the forfeiture on payment of the rent and any expenses to which the landlord has been put: *Haji Musa v. Martin Ondowa*, H.C.C.C. 360 of 1971 (unreported). The court has a discretion to grant or refuse the relief, and it will not grant the relief if it would entail an injustice to the landlord, e.g. where the landlord has re-let the premises: Hill and Redman's Law of Landlord and Tenant, 15th ed., p. 539. In this case the piece of land in question was re-let on 1 July 1971 to Serugunda, and the applicant was informed. In filing this application on 22 December 1971 the applicant knew that the land had already been leased to Serugunda, whether rightly or wrongly, I cannot say. The effect of this application, if granted, would therefore entail injustice to the landlord. I agree with the submission of counsel for the respondent that applicant came too late to apply for the relief. For these reasons the application is dismissed with costs.

*Order accordingly.*

For the applicant:
*J. N. M. Kakooza* (instructed by *Sebunya & Co*., Kampala)

For the respondent:
*J. Sendege*

## Mfaume v Republic
[1973] 1 EA 563 (CAD)

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| **Division:** | Court of Appeal at Dar es Salaam |
| **Date of judgment:** | 30 October 1973 |
| **Case Number:** | 56/1973 (147/73) |
| **Before:** | Spry VP, Law and Mustafa JJA |
| **Sourced by:** | LawAfrica |
| **Appeal from:** | The High Court of Tanzania – Biron, J. |

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*[1] Criminal Practice and Procedure – Charge – Joinder of charges – Four counts of murder – Series of offences and founded on same facts – Whether joinder proper.*

**Editor's Summary**

At one trial the appellant was convicted of murder of four persons, the first two of whom were killed in a shop and the third and fourth some fifty yards away. The facts are set out in the judgment.

On appeal it was contended that four counts of murder should not have been joined in one information.

**Held** –

(i) the four counts were founded on the same facts and formed a series of offences of a similar

character;

(ii) while a separate trial in respect of the killing of persons one and two and a separate trial in respect of three and four could have been justified, the trial judge exercised his judicial discretion in allowing a singe trial for all killings;

(iii) the single trial had not caused prejudice or led to a failure of justice.

Appeal dismissed.

**Cases referred to in judgment:**

(1) *R. v. Odda Tore* (1934), 1 E.A.C.A. 114.

(2) *Yowana Sebuzukira v. Uganda*, [1965] E.A. 684.

**Judgment**

The considered judgment of the court was read by **Law JA:** The appellant was convicted in the High Court of Tanzania at Morogoro of the murder of four persons, his divorced wife Maua, Maua's lover Hengo,

a woman called Stamili and an elderly man called Ahamadi who was Maua's grandfather. The first two were killed in the Tubuyu Estate pombe shop, in which Maua sold pombe. The third and fourth victims died near the house of the fourth victim Ahamadi, which was about 50 yards from the pombe shop. Each killing formed the subject of a separate count in the same information.

The background of events appears to have been as follows – the appellant had been married to Maua, and had divorced her by "talak", the divorce being registered in the Morogoro Primary Court. Maua took her three children and went to live at the house of her grandfather Ahamadi. She worked at the near-by pombe shop, and Hengo her lover lived with her. This state of affairs seems to have upset the appellant. His own account of what happened is to be found in his voluntary extra-judicial statement made on 24 July 1971, the day after the killings, to a justice of the peace. The statement was admitted without objection, and material extracts are as follows:

> ". . . I found them (Maua and Hengo) co-operating in selling pombe. The boyfriend was seated at the drum of pombe while the lady was serving the pombe to some buyers. After that I held the hand of my wife asking her to go and give me some pombe to test. On getting near the pombe shop that wife freed herself and said that she was to bring me a bowl of some pombe. When that man saw me he stood up wanting to go away but I held his neck. I then struck Mr. Yakobi (Hengo) with the knife and when that lady noticed so, she held both my legs of the long trousers I was wearing and pulled me backwards. I inquired from her what she wanted but she continued this . . . I had no intention to injure her but did so due to the manner in which she held me and was afraid that people would come and kill me. I escaped in order to run away. . . ."

The medical evidence was to the effect that Maua and Hengo had died in each case from the results of three stab wounds, including deep abdominal wounds. On any view of the appellant's statement, the killing by him of Maua and Hengo amounted to murder. The possibility of insanity is ruled out by the certificate of Dr. Pendaeli who had the appellant under observation for several months at Isanga Institution. As regards the killing of Stamili and Ahamadi, this is what the appellant had to say:

> "I escaped to run away. Before I could do that I saw my aunt-in-law and her grand-father coming with an axe and her grand-father held a panga; on noticing that the aunt had drawn nearer I held her and stabbed her. Shortly her grand-father came and lifted up the panga in order to strike me with, but I managed to hold him and strike him with a knife."

There was abundant evidence that Stamili and Ahamadi were not armed when the appellant stabbed them, nor was any axe or panga found at the scene. The appellant's own statement, as confirmed by the evidence of eye-witnesses, leaves no room for doubt that he was properly convicted of murder on all four counts.

The main ground of appeal argued by Mr. M.A. Lakha for the appellant was that it was improper for four counts of murder to be joined in one information, and that this misjoinder has caused prejudice and has led to a failure of justice. No objection to this alleged misjoinder was taken by defence counsel at the trial. By s. 136 (1) of the Criminal Procedure Code:

> "Any offences, whether felonies or misdemeanours, may be charged together in the same charge or information if the offences charged are founded on the same facts or form or are a part of a series of offences of the same or a similar character."

On the face of it, the four counts against the appellant can be said to be founded

on the same facts and to form a series of offences of a similar character. The appellant killed two persons, and a very short time later at a distance of about 50 yards, killed two others who might have impeded his escape. But, as Mr. Lakha has shown, in capital cases this section is very strictly interpreted. Mr. Lakha took us through the cases, beginning with *R. v. Odda Tore* (1934), 1 E.A.C.A. 114 and ending with *Yowana Sebuzukira v. Uganda*, [1965] E.A. 684. The principle to be extracted from these authorities is that to justify the joinder of more than one capital count at the same trial, the overt act in each case must be the same and the facts must establish a single transaction with no interval of time or space. The classic example would be a single shot or blow causing more than one death at the same time and place. In this case there were four separate assaults, resulting in four separate deaths, within the space of some 50 yards. The trial judge gave consideration to this question in his judgment. He said:

> "My reason for departing from my usual practice is that apart from the fact that it is not disputed by the defence that the accused was responsible for the deaths of all four victims, their deaths at his hands are so inter-related, all springing from the same cause and each homicide impinging one on the other, that it would be difficult if not impossible to try each separately divorced from another, it would be most unrealistic to make such an attempt. And it should be noted there has been no request for separate trials by the defence."

Whether or not to order separate trials is a matter primarily for judicial discretion, and the judge has given weighty reasons in support of his exercise of discretion. It would have been impossible to have tried the appellant for the murder of Maua without admitting, as part of the res gestae, evidence of the contemporaneous killing of Hengo. The same applies to the killings of Stamili and Ahamadi. On the other hand, the particulars stated in the information gave some indication that the deaths of Maua and Hengo occurred in different places from the deaths of Stamili and Ahamadi, and that fact alone could well have justified ordering separate trials of the first two counts, the third and fourth counts being severed and left for subsequent trial if necessary. However, we are satisfied that the course adopted by the judge, in the peculiar circumstances of this case, has not caused prejudice or led to a failure of justice. This case is distinguishable from the authorities cited by Mr. Lakha in that responsibility for the killings was admitted by the appellant, and the only issue for the court to resolve was whether, in the circumstances disclosed by the evidence, the killings constituted murder or some lesser offence. The appellant's guilt on all four counts was abundantly proved, and his appeal is dismissed.

*Order accordingly.*

For the appellant:
*M. A. Lakha*

For the respondent:
*Mrs. A. Bubeshi* (State Counsel)

## Uganda v Mayombwe
## [1973] 1 EA 566 (HCU)

| | |
|---|---|
| **Division:** | High Court of Uganda at Kampala |
| **Date of judgment:** | 5 September 1973 |
| **Case Number:** | 221/1973 (149/73) |
| **Before:** | Saied J |

**Sourced by:** LawAfrica

*[1] Traffic – Failing to stop after accident – Not an offence when no one injured and no property damaged – Traffic & Road Safety Act, s.* 132 (*U.*).

*[2] Traffic – Failing to report accident – Not an offence when no one injured and no property damaged – Traffic & Road Safety Act, s.* 132 (*U.*).

*[3] Traffic – Driving licence – Suspension of – Court must ask accused whether he alleges special reasons exist.*

**Editor's Summary**

The accused was charged with failing to stop after an accident and failing to report an accident. He had hit an electric pole, and there was no indication that the pole had been damaged. On conviction he was disqualified for 12 months.

**Held** –

(i) there is no obligation either to stop or to report an accident when no one is injured and no other vehicle or property is damaged;

(ii) before disqualifying an accused, the court must ask him whether he wishes to make a plea that there are special reasons why disqualification should not be ordered.

Conviction quashed.

**Cases referred to in judgment:**

(1) *Jones v. English*, [1951] 2 All E.R. 853.

(2) *Uganda v. Silvesta Igumba* (1968), H.C.B. 103 (unreported).

(3) *R. v. Morris* (1971), 121 N.L.J. 1074.

**Judgment**

**Saied J:** The accused was charged in the court of a Magistrate Grade I with two traffic offences, failing to stop after an accident and failing to report an accident, respectively contrary to ss. 132 (1) and 132 (2) (*b*) of the Traffic and Road Safety Act. These offences were alleged to have been committed on 14 January 1973 at the Katwe roundabout.

The particulars of the charges were:

> "*Count* 1: The above accused person, being the driver of the said motor and an accident having occurred to another motor vehicle arising directly or indirectly from the use of his vehicle, did fail to stop and ascertain whether any person had been injured.
>
> *Count* 2: The above accused person, being the driver of the said vehicle and an accident having occurred to another vehicle arising directly or indirectly from the use of his vehicle, did fail to report the accident as soon as possible to the nearest police station or to a police officer."

When charged, the accused is recorded to have pleaded to these offences in the following terms:

> "*Count* 2: I admit that i failed to stop after an accident had occurred to another vehicle arising directly from my use of the vehicle. I also failed to ascertain whether any person had been injured as a result.

> *Count* 3: I admit that I did fail to report the accident which occurred to another vehicle as direct result of my use of vehicle."

These were accepted, rightly in my opinion, as pleas of guilty whereupon the trial magistrate proceeded to convict the accused of those offences. He was fined Shs. 600/- or three months imprisonment in default and Shs. 500/- or three months in default respectively. The trial magistrate also suspended his driving permit for a period of twelve months.

The facts which the prosecutor adduced after convictions had been entered were as follows:

> "On 14 January 1973 at about 6.00 p.m. on roundabout of Katwe in West Buganda District the accused was driving Volkswagen saloon car registration No. UVE 792. He stopped at the roundabout obstructed traffic from Entebbe-Masaka roads. This was noticed by passing patrol car. He the accused saw the police car, he reversed and hit an electric pole. There was no information that the pole was damaged or his vehicle was damaged. And if damaged to what extent. The accused drove and was followed by the police who got him at the clock tower. He was arrested and informed of the offence and charged accordingly. Accused has got no known previous conviction."

Upon inspection of the file, I felt that, in view of the facts as adduced by the prosecutor after conviction, those convictions could not be supported. The file was submitted to the Director of Public Prosecutions for his views and, in his letter, a Senior State Attorney, who did not wish to be heard, agreed that they be quashed.

S. 132 of the Act spells out various duties of a driver in the event of an accident. The duty of a driver to stop under sub-section (1) arises when an accident occurs to any person or to any vehicle for the purpose of ascertaining whether any person has been injured and to render all practicable assistance to the injured person. Where nobody is injured, the driver's duty under sub-section (3) is to give to the person concerned particulars of himself and the vehicle, and about the ownership of the vehicle. The duty to report the accident to any police officer or at the nearest police station is cast by sub-section (2) (*a*) and (*b*), but this is limited to accidents where someone is injured.

It seems manifest that the duties of drivers in the event of an accident are limited in scope, and do not cover every accident which may happen to a vehicle. The word "accident" is to be given its ordinary meaning of "an unintended occurrence which has an adverse physical result" *R. v. Morris* (1971), 121 N.L.J. 1074, but the operation of the section is limited to only certain types of accident. An accident may involve only one vehicle which may be damaged, or some other property damaged in the process. So long as nobody is injured and no other vehicle is damaged the driver is not under any statutory duty, in the state of the law as it is at present, to stop or to report the accident to the police. This may be said to be very convenient for drivers but, it does not, in my opinion, contribute towards the general effort of making the roads safer. It is not difficult to comprehend the general mischief which this section does not obliterate, that is, where, in an accident exempting the driver from the obligations of stopping and reporting under s. 132, the driver may escape prosecution for certain offences under the Act. The section leaves much to be desired and, rather than assisting in the control of errant drivers, it seems to offer them considerable protection from prosecution for certain offences which may be disclosed by the accident and for which all the evidence may be readily available. The scope of this section ought to be widened considerably.

In the instant case, nobody seems to have been injured. No other vehicle

was involved or damaged. There is nothing to indicate also whether the electric pole was damaged in any way. These were the facts upon which the prosecution was based, and they were inconsistent with the facts alleged in the particulars of the offences. For the reasons I have given, the accused was not obliged either to stop or to report the accident to the police under the provisions of s. 132 of the Act. In the circumstances, the accused could not be said to have failed in the observance of his duties under that section for the simple reason that those duties did not apply to the type of the accident in which he had been involved. He had thus not contravened the provisions of the law under which he was charged. After listening to the facts of the case, the trial magistrate who was not then functus officio should have allowed the accused to retract his original pleas. Those convictions are accordingly quashed, and the sentences including the suspension order set aside. The fine, if paid, is to be refunded to the accused.

Lastly, concerning the order of disqualification, presumably made under s. 65 (1) (*f*), the record indicates that after the accused had been fined, the learned trial magistrate proceeded to make his order: "Driving permit of the accused suspended for 12 months". Under this section disqualification for stated periods is compulsory on conviction for certain offences unless there are special reasons. The record does not disclose whether the accused was afforded an opportunity to make his plea of special reasons. In *Uganda v. Silvesta Igumba* (1968), H.C.B. 103 it was held that whenever facts are put forward which might amount to special reasons the accused should be required to adduce evidence of those facts. The necessity for this was stated by Lord Goddard, C.J., in *Jones v. English*, [1951] 2 All E.R. 853 at p. 854 as follows:

> ". . . . where, on a plea of guilty or after evidence has been heard, a defendant has been convicted of an offence for which the penalty of disqualification is laid down by Act of Parliament and he seeks to rely on special reasons for the non-imposition of disqualification, he ought to give evidence, and the justices ought to hear evidence on the point and not merely to accept statements. This is highly desirable because the onus is on the defendant to show special reasons why he should not be disqualified."

It is only after the convicting magistrate has heard this evidence that he can properly decide whether the reasons put forward by the accused amount to special reasons according to the law.

*Convictions quashed.*

No appearance for the parties.

## Kiggundu v Barclays Bank of Uganda Ltd

[1973] 1 EA 569 (HCU)

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|---|---|
| **Division:** | High Court of Uganda at Kampala |
| **Date of judgment:** | 29 June 1973 |
| **Case Number:** | 904/1971 (152/73) |
| **Before:** | Opu J |
| **Sourced by:** | LawAfrica |

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*[1] Master and Servant – Wrongful dismissal – Servant not convicted of any offence – Master may dismiss for misconduct.*

**Editor's Summary**

The plaintiff was employed by the defendant and was dismissed for issuing travellers' cheques contrary to the exchange control regulations. He had not been prosecuted for any offence. On his suit for wrongful dismissal, he contended that he had been wrongfully dismissed as he had not been convicted of any offence.

**Held** – a conviction is not necessary before an employee can be dismissed for misconduct.

Case dismissed.

**Cases referred to in judgment:**

(1) *Pearce v. Foster* (1886), 17 Q.B.D. 536.

(2) *Lulume v. Coffee Marketing Board*, [1970] E.A. 155.

(3) *Yakobo Kalemera v. Salaama Estates Ltd*., H.C.C.C. 157 of 1970 (unreported).

**Judgment**

**Opu J:** The plaintiff claims general damages for wrongful dismissal. In its defence, the defendant company claims that it was entitled to dismiss the plaintiff by virtue of the provisions of clause 13 of the written contract between the plaintiff and the company.

The plaintiff testified that at the time he was dismissed, he worked as a "B" signatory for the defendant. This means, he was entitled to sign certain documents on behalf of the company. He had worked for the company for 18 years at the time he was dismissed. He testified that on 7 August 1971, he was suspended by the defendant. The allegation against him was that he had contravened Exchange Control Regulations by selling travellers cheques to certain Arabs. The matter was referred to the Bank of Uganda whose officials interviewed the plaintiff. The plaintiff went on to testify that he was never informed of the results of the investigation. He told the court that subsequent to his suspension on 27 August 1971, he received a letter from the defendant company terminating his services. He was not paid any gratuity save one month's salary in lieu of notice. At the time of his dismissal, he earned Shs. 1,950/- a month plus Shs. 900/- a year leave allowance.

In reply to questions put to him by the defendant's counsel in cross-examination, the plaintiff told the court that he started working with the defendant on 2 November 1953. He signed a contract of service after completing a period of probation. At the time he was engaged, the company was known as Barclays Bank (D.C.O.). When the company was locally incorporated under the name of Barclays Bank of Uganda Limited; the plaintiff's services were transferred to the new Bank. The plaintiff told the court that on the incorporation of Barclays Bank of Uganda Limited, he signed a new agreement. The agreement was admitted as an exhibit by consent of both counsel and was marked Exh. D.1. The plaintiff identified Exh. D.1 and said it was the agreement he signed with the defendant company.

The plaintiff called Andrew Owiny as a witness. He testified that he is a Detective Assistant Inspector of Police. He is attached to the Exchange Control Investigation Branch of the Bank of Uganda. In August 1971, he was asked to investigate an allegation that employees of Barclays Bank of Uganda Ltd., had sold travellers cheques to the tune of £91,000 sterling to certain Arabs in contravention of Exchange Control Regulations. The plaintiff was one of the suspects. He interviewed the plaintiff who told him that one of the plaintiff's colleagues, Fred Wampanga asked him to assist the Arabs. The plaintiff told the witness he assisted more than one Arab and that he received tips from them for his services.

The witness went on to testify that his search for the Arabs ended in failure. However, his investigations revealed that there was definite contravention of Exchange Control Regulations. He was of the view that if the Arabs had been traced, the plaintiff would have been charged with an offence under the Exchange Control Act. He told the court that he made a verbal report of his investigations to the Bank.

Mr. Nsambu for the plaintiff submitted that the plaintiff was wrongfully dismissed. It was counsel's contention that the investigations were intended for instituting criminal proceedings in court of law. Since his client was not taken to court, the dismissal was wrongful. He went on to submit that the word "guilty" appearing in paragraph (13) of the contract of service means that any dismissal must be preceded with court action. He referred the court to the case of *Yakobo Kalemera v. Salaama Estates Ltd*., H.C.C.C. 157 of 1970. I will refer to this case later in the course of the judgment.

Mr. Kasibayo for the defendant submitted, that the present case can be distinguished from the case of *Yakobo Kalemera v. Salaama Estates Ltd*. Counsel contended that where the contract is silent on how an employee can be dismissed, the case quoted above could be relevant. In any case where the terms of the contract are clear, the relationship between the employee and the employer are governed by the terms of the contract. In support of his submission counsel referred the court to the cases of *Pearce v. Foster* (1886), 17 Q.B.D. 536 and *Lulume v. Coffee Marketing Board*, [1970] E.A. 155. He prayed that the suit be dismissed with costs.

The question for the court to decide is whether the dismissal of the plaintiff was unlawful. The relevant part of the contract of service under which the plaintiff was dismissed is paragraph 13 which reads as follows:

> "If after you have served your probationary period, your appointment is confirmed it will be that of a monthly servant, provided that should you at any time either during your probationary period or afterwards, commit any breach of the conditions herein contained or be guilty of unsatisfactory conduct inside or outside the Bank, the Bank reserves the right to dismiss you without notice."

In view of the provisions of paragraph 13 quoted above, in my view the question is whether the misconduct of the plaintiff in this case warranted his dismissal. It is common ground that the plaintiff did sell large amounts in form of travellers cheques in contravention of Exchange Control Regulations. This has been admitted by the plaintiff himself and has been confirmed by his own witness. The law in regard to what amounts to unsatisfactory conduct in relation between master and servant is clearly stated in the case of *Pearce v. Foster*. In that case the plaintiff had been employed as clerk by the defendants, who were merchants, for many years. At the end, the defendants agreed to retain the plaintiff in their employment for a period of ten years. Before the expiration of the ten years, the defendants found that the plaintiff had been

engaged in speculation on differences upon the Stock Exchange to the extent of many hundreds of thousands of pounds. The defendants dismissed the plaintiff. On considering whether the action of the plaintiff warranted dismissal Lord Esher, M.R. observed:

> "The rule of law is, that where a person has entered into the position of servant, if he does anything incompatible with the due or faithful discharge of his duty to his master, the latter has a right to dismiss him."

The plaintiff has himself admitted that in the course of his duties, he was authorised to sell travellers cheques. According to the plaintiff's own witness, he admitted selling travellers cheques to certain Arabs. He testified that in fact if the Arabs were traced, charges would have been brought against the plaintiff. The conduct of the plaintiff has made him unreliable and hence the defendants were entitled to terminate his services. It must be borne in mind that the illegal transactions involved, amounted to a staggering amount of £91,000 sterling. It would be unreasonable and in fact verging on stupidity if the defendant had continued to employ the plaintiff. The conduct of the plaintiff falls squarely under the provisions of paragraph 13 of the contract of service which he freely signed. The plaintiff is an educated man and there is no suggestion that he did not understand the terms of the contract into which he entered. The terms of the contract are clear and in my view they form the basis of the relationship between the plaintiff and the defendants.

Counsel for the plaintiff referred me to the case of *Yakobo Kalemera v. Salaama Estates Ltd*. I have no hesitation in saying that, that case can be distinguished from the present case. In that case the contract was verbal and not written as in the present case. Secondly, it was not conclusively proved that the plaintiff in the course of his employment was to handle the fertilizers which caused his dismissal. The plaintiff was not responsible for the store in which the fertilizers which got lost were kept. In contrast, in the present case the plaintiff was responsible for selling travellers cheques.

Let me comment on the submission by the counsel for the plaintiff that the word "guilty" appearing in paragraph 13 of the written contract of service implies that before dismissal the defendants had to take the plaintiff to court and if the court finds him guilty, then they would dismiss him; this submission is ridiculous. In my view if this interpretation were followed, then the defendants would have no control over their employees in case of unsatisfactory conduct. For example if the unsatisfactory conduct on part of the plaintiff consisted in coming late on duty repeatedly with what offence would the plaintiff be charged in a court of law? In conclusion, I hold that the plaintiff's dismissal was lawful. In fact, the plaintiff should consider himself lucky that he escaped prosecution and that he was paid one month's salary in lieu of notice. I cannot help saying that I am surprised that this action was ever brought at all. The suit is dismissed with costs.

*Order accordingly.*

For the plaintiff:
*Nsubuga-Nsambu* (instructed by *Nsambu & Luganda*, Kampala)

For the defendant:
*C. Kasibayo* (instructed *by Kateera & Kasibayo*, Kampala)

## Income Tax v I A Ltd
[1973] 1 EA 572 (HCK)

**Division:** High Court of Kenya at Nairobi

**Date of judgment:** 19 June 1973

**Case Number:** 95/1971 (155/73)

**Before:** Waiyaki J

**Sourced by:** LawAfrica

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*[1] Income Tax – Deduction – Investment allowance – Plant – Furniture for hotel – Whether installed in industrial building – East African Income Tax* (*Management*) *Act* 1958, 2*nd Schedule, para.* 27.

**Editor's Summary**

The respondent hotel company bought and placed certain furniture in its hotels and claimed an allowance for the capital expenditure as being on plant purchased and installed in the hotels.

The appellant contended that only objects which could be attached and become part of the structure of the industrial building could be installed. The respondent contended that in respect of furniture installation merely means placing the furniture as required.

**Held** –

(i) it is not necessary for plant to be fixed to the fabric in order to be installed (*Winnipeg v. Brian Investment* (1) not followed);

(ii) furniture merely requires to be positioned for use in order to be installed.

Appeal dismissed.

**Cases referred to in judgment:**

(1) *Winnipeg v. Brian Investment*, [1953] 1 D.L.R. 270.

(2) *Engineering Industry Training Board v. Foster Wheeler*, [1970] 2 All E.R. 616.

**Judgment**

**Waiyaki J:** In this case, the Commissioner General of Income Tax appeals against the decision of the Local Committee, Nairobi, given on 17 March 1971 in respect of two assessments for the years of income 1966 and 1967 made upon the Respondent.

The appeals have been consolidated. The Local Committee allowed an investment deduction of 20 per cent in respect of furniture and equipment which the respondent alleged to have been purchased and installed in accordance with paragraph 27 (*d*) – 2nd Schedule – Part V of the East African Income Tax (Management) Act 1958.

The respondent company contends that furniture and equipment installed by the company at Shanzu and Mtito Andei fall within the schedule to the Act, thereby entitling the company to 20 per cent investment deduction.

The Commissioner-General contends that the furniture and equipment referred to above was not installed within the meaning of the schedule.

Paragraph 27 (*d*) – 2nd Schedule provides:

> "Subject to this schedule, where – a person incurs capital expenditure to which this schedule applies on –
>
> (i) The construction or extension of a building subsequently in use as an hotel, where such construction or extension commenced after the

16th June, 1964, and such building or extension is certified as an industrial building under item (*c*) of subparagraph (1) of paragraph 5 of this Schedule; or

(ii) The construction or extension of such a building as is referred to in item (*l*) of this subparagraph and the purchase and installation therein of machinery for the purposes of the hotel; there shall be deducted in computing his gains or profits for the year of Income in which the ship or building or extension or machinery is first so used, a deduction (referred to as an investment deduction) equal – in the case of capital expenditure to which paragraphs (*b*), (*c*), (*d*), or (3) apply to twenty per cent of such expenditure."

"Machinery" includes ships and plant used in carrying on any trade. It was contended for the taxpayer and conceded by the Commissioner-General that furniture and equipment which form the subject matter of this action, fall within the definition of "Plant". Since "they had the requisite degree of durability to be regarded as appliances kept for permanent use in carrying on the business and were not stock-in-trade made for sale".

I agree, and I do not consider it necessary to review the authorities on this point. The parties are also in agreement that the buildings and machinery have been certified and therefore the only question left to be resolved is whether "furniture and equipment" was purchased and installed in accordance with the terms of the Schedule.

It was contended for the Commissioner-General that the word "installation' covers any chattel which is attached and becomes part of the structure of the industrial building and consequently, only fixed machinery to the fabric can enjoy the 20 per cent investment deduction. All portable items and movable equipment are excluded, as they do not form part of the building.

Counsel for the Commissioner-General cited among authorities *Winnipeg v. Brian Investment*, [1953] 1 D.L.R. 270 a decision of the Court of Appeal of Manitoba, to support his contention. The relevant passage is in these terms:

> "The word 'install', which in medieval times meant to perform a formal ceremony of induction to a position or office, has been taken in modern times for use in the mechanical and structural trades. There it means more than to bring in or merely to place an article somewhere for service, a part of the meaning which was sufficient for Martin, J.A. In those trades, the word is used in respect of a system of ventilation, lighting, plumbing, heating water or electrical service or a fire place etc. to be put into a building, or of an engine, steering gear or carburettor into a motor car; or other similar use. On the contrary it would seem that 'install' cannot properly be used where a chair or desk or ring is brought into a room and left there; nor does it apply to a portable electric heater or radio or to a stove, whether electric or other, which a tenant brings in and is entitled to take away again with him or to any other thing that remains personal property in the general acceptance of that term.
>
> 'Install' would seem to connote the doing of something of some complexity, difficulty and importance, probably requiring some skill, involving the integration of an article or articles into the building or machine in which the installing takes place, and causing change of some importance in the building or machine."

The word "installation" is defined in the "Shorter Oxford English Dictionary" as "The action of setting up or fixing in position for service or use (machinery, apparatus etc.)".

Counsel for the respondent on the other hand has argued that the word "installation" as defined by Coyne, J. in the case of *Winnipeg v. Brian Investment* should not be applied.

In *Engineering Industry Training Board v. Foster Wheeler*, [1970] 2 All E.R.616 in the Court of Appeal, Lord Denning says:

> "First installation – installation of machinery or plant. Now installation is a metaphorical word. It is not a word of any great precision."

It was well put in the Court of Appeal in Manitoba in *Winnipeg v. Brian Investments* by Coyne, J. when he said:

> "'Installed' is not a word of art nor a word of precision. Indefiniteness gives it, as gives any word, a chameleon-like character so that associate words show through and give their colour and meaning to it."

*It conveys putting in place something already made so that it can be used.* There may be an element of assembly required, but basically a thing installed is ready to work when it is put in its place and if necessary connected up. Mr. Salter for the respondent company, has urged that it is not necessary for the plant to be fixed to the fabric. Installation connotes putting into position, on the site for use in the business concerned. In the instant case, "installation" means, putting beds in a bedroom, chairs in sitting rooms and other items of furniture and equipment in position for use in the business of the hotel.

I agree. I think that the word "installation" was given a narrow, restricted and rather mechanical interpretation in the *Winnipeg* case. I accept the more liberal interpretation and for this reason, the appeal is dismissed with costs.

*Order accordingly.*

For the appellant:
*P. G. Ferro* (Principal Assistant Counsel)

For the respondent:
*C. Salter Q.C.* and *A. W. Robson* (instructed by *Robson Harris & Co*., Nairobi)

## Uganda v Rukwandura
[1973] 1 EA 574 (HCU)

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|---|---|
| **Division:** | High Court of Uganda at Kampala |
| **Date of judgment:** | 27 September 1973 |
| **Case Number:** | 228/1973 (153/73) |
| **Before:** | Saied J |
| **Sourced by:** | LawAfrica |

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*[1] Criminal Law – Elopement – Knowledge that party concerned married an essential ingredient of offence.*

*[2] Criminal Law – Mens rea – Knowledge – Elopement – Knowledge that party concerned married an essential ingredient of offence.*

**Editor's Summary**

The first accused was accused of eloping with a married woman.

The evidence set out in the judgment established that he did not know that she was married.

**Held** – knowledge that the other party is married is an essential of the offence of elopement.

Conviction quashed.

**Cases referred to in judgment:**

(1) *Uganda v. Dhafa Nakalyaku* (1971), H.C.B. 190 (unreported).

(2) *Uganda v. Solomon*, [1971] E.A. 46.

(3) *Uganda v. Wodada* (1972), H.C.B. 66 (unreported).

**Judgment**

**Saied J:** Both accused were charged in individual counts with the offence of elopement under s. 121A of the Penal Code, the male accused under sub.s. (1) and the female accused under sub.s. (2) thereof. Against the man it was alleged that he eloped with "a married woman not being his wife under the custody of her husband". Against the woman it was alleged that she eloped with the man "who is not her husband".

The trial magistrate convicted both after a full hearing. He fined the first accused Shs. 200/- (which was paid) and ordered him to pay compensation amounting to Shs. 600/- to the aggrieved party. The second accused was cautioned.

The complainant Kalisti Nyaheiru said that he married the second accused on 5 August 1970 under customary rites. The prosecution case was that the accused eloped on 5 March 1972. The defence of the first accused was that before he married the second accused, he had approached her sister Tereza to ascertain her marital status. It was only after he had been told that she was not married that he took her for his wife and paid Tereza Shs. 50/-, probably by way of bride price. The second accused maintained on oath in her defence that she had divorced the complainant after six months of their marriage. She said that she then joined her sister who found her another husband.

In convicting the accused persons, the trial magistrate said:

> "The mere fact that the accused No. 1 did not know that accused No. 2 was married to the complainant is not an excuse. He should have taken the initiative of ascertaining the situation as the accused No. 2 has a child."

It is now well settled, and the Director of Public Prosecutions agrees, that mens rea is just as much an ingredient of the offence of elopement under s. 121A as it is of the offence of adultery under s. 150A of the Penal Code. This means that it is a defence to the offence of elopement if the offender genuinely believes on reasonable grounds that the person with whom he or she elopes is married. I agree with the observations of Sir Udo Udoma, C.J. in *Uganda v. Nikolla*, [1966] E.A. 345 which was a case on the construction of s. 150A of the Penal Code. The same principle applies:

> "In my view it would be competent for an accused person charged with having committed adultery with a married woman to show by evidence that in fact at the time of the commission of the adultery he did not know that the woman was married to any person."

But, as was pointed out in *Uganda v. Solomon*, [1971] E.A. 46 at p. 48 "this would be difficult if he knew her surname or the matrimonial abode or even if he didn't bother to enquire her matrimonial status". This latter circumstance was further expounded by Fuad, J., in *Uganda v. Wodada* (1972), H.C.B. 66 (unreported) in the following terms:

> "However I would add that 'wilful blindness' to the married state of the woman would be no defence if, on the facts, the court is able to hold that it was equivalent to actual knowledge. If a man suspects that a woman is married and realises its probability, but refrains from obtaining the final confirmation because he wanted in the event to deny knowledge, this is wilful blindness which would not afford a defence."

It seems to me that although the trial magistrate directed himself correctly he erred in holding that the first accused had not taken the initiative because the

second accused had a child. The fact that a woman has a child does raise a strong presumption that she might be married but it is a rebuttable presumption of fact. What is required is the "final confirmation" of the woman's marital status and, notwithstanding the fact that the second accused had a child, her sister Tereza provided that final confirmation. This added to her evidence that she had divorced her husband adequately rebutted any presumption which might have arisen on account of the child. There was thus ample evidence which cast serious doubts regarding mens rea. The Director of Public Prosecutions agrees that his conviction ought to be quashed. I do so order and set aside the sentence including the order for the payment of compensation by him. The fine and any part of the compensation so paid will be returned to him.

Nor should the woman have been convicted, for it is clear that under s. 121A (2) of the Penal Code, a female only commits an offence if she elopes with a married man. The particulars in Count 2 were defective in omitting to state this fact. In *Uganda v. Dhafa Nakalyaku* (1971), H.C.B. 190 (unreported) where the female accused was charged with eloping with a man who was not her husband, Jones, J., held:

> "The charge against accused No. 2 was bad as the gravation of the charge was that the accused must elope with a *married man*. She was charged with eloping with a man who was not her husband. Section 121A (2) did not cover such a situation, and there was nothing anywhere on the record to hint or suggest that accused No. 1 was married or if he were married that accused No. 2 knew that he was married."

The conviction entered against the second accused is also quashed, and the caution set aside.

No appearance for the parties.

## Performing Right Society Ltd v Grand Theatres Ltd and another
[1970] 1 EA 576 (HCK)

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|---|---|
| **Division:** | High Court of Kenya at Nairobi |
| **Date of judgment:** | 24 July 1973 |
| **Case Number:** | 1539/1969 (156/73) |
| **Before:** | Simpson J |
| **Sourced by:** | LawAfrica |

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*[1] Copyright – Assignment – For limited period, of part of right and in future rights – Valid statutory assignment also transferring legal right to assignee – Copyright Act* (*Cap.* 130), *s.* 12 (*K.*).

*[2] Copyright – Licence – May be issued by owner of copyright.*

*[3] Copyright – Musical, literary or artistic work – Continues to exist in author even when work incorporated in film or sound recording – Copyright Act* (*Cap.* 130), *ss.* 2, 3 (*K.*).

**Editor's Summary**

The plaintiff is a society whose members are the authors of musical, literary and dramatic works. The authors transfer to the society that part of the copyright in their works, including future works, which concerns public performances, and the society protects this performing right and also issues licences

for the performance of such works.

The defendants refused to take a licence from the plaintiff and showed a film the soundtrack of which contained music of which the plaintiff was the owner of the performing right, and threatened to continue so to act.

On the plaintiff's suit for an injunction and damages, the defendants contended that the plaintiff had only an equitable assignment and could not sue without joining the legal owner of the copyright, that copyright was only given to the author of a cinematograph film or sound recording, the composer not being the author, that the plaintiff had no authority to issue licences, and that the plaintiff had no right to control the playing of the soundtrack of a film of which it is a part.

**Held** –

(i) an assignment in writing is effective even if only for some of the acts of the owner, for a period or for future works;

(ii) such a valid statutory assignment constitutes the assignee the owner of the copyright (*Performing Right Society v. London Theatre of Varieties* (1) distinguished);

(iii) the plaintiff is the legal owner of the performing right;

(iv) copyright continues to exist in the author of a musical, literary, or artistic work even after the work is incorporated in a cinematograph film or in a sound recording;

(v) the author retains the right to control public performance of the work;

(vi) the owner of a copyright has a right to issue licences for performances of the copyright work;

(vii) the plaintiff may control only the playing of copyright music incorporated in the soundtrack of a film, not of the whole soundtrack.

Judgment for the plaintiff.

**Case referred to in judgment:**

(1) *Performing Right Society v. London Theatre of Varieties*, [1924] A.C. 1.

**Judgment**

**Simpson J:** The plaintiff in this suit is the Performing Right Society Ltd., a company limited by guarantee and incorporated in the United Kingdom. It has a registered place of business and a resident representative in Nairobi.

The members of the Society are composers of musical works, authors of literary and dramatic works and other persons entitled to the benefit of copyright in such works. The objects of the Society may be briefly stated as the exercise and enforcement on behalf of members of all their rights and remedies by virtue of the Copyright Act 1956 or similar legislation in other countries which are parties to the Universal Copyright Convention in respect of any exploitation of their works by public performance, broadcasting or rediffusion. For this purpose the members assign to the Society during the continuance of their membership that part of the copyright in their works, including future works, which is commonly known as the performing right, the right to communicate to the public by means of public performance.

The first defendant is Grand Theatres Ltd., the owners of the Globe Cinema in Nairobi, and the second defendant is African Exhibitors Ltd., a sister company which ran the cinema as operators and exhibitors of films from February 1968 to 31 January 1972.

The plaintiff claims to be the owner of the performing rights in five musical works which the defendants admit were communicated to the public by means

of the loud speaker system of the cinema preceding and between the exhibition of films on 28 and 30 August 1969.

The plaintiff also claims to be the owner of the performing right in the music on the soundtrack of the motion picture "Carry on Nurse" which the defendants admit was exhibited in the cinema on these days.

It was not disputed that the defendants were aware of the plaintiff's claim to copyright in these and other musical works and had declined to take the plaintiff's licence.

The plaintiff eventually brought this action, claiming damages and an injunction restraining the defendants, their servants, agents or otherwise from infringing the plaintiff's copyright.

The issues were agreed by the parties' advocates and were subsequently reduced to four of which the following was argued as a preliminary point:

> "Is the plaintiff entitled to bring and continue this action in its own name without joining the authors or composers as co-plaintiffs?"

I ruled in the affirmative and now give my reasons.

Mr. Satish Gautama, who appeared with Mr. A. B. Shah for the defendants, argued that the assignments to the plaintiff by the authors or composers were only equitable assignments therefore the assignors must be joined. He relied heavily on *Performing Right Society v. London Theatre of Varieties*, [1924] A.C. 1 in which the House of Lords held that, the interest of the Society in the performing rights in question in that case being (admittedly) equitable only, it was not entitled to obtain a perpetual injunction against an infringement of its rights without joining the legal owners of the copyright as parties to the action.

The relevant legislation at that time was contained in the Copyright Act, 1911. It was apparently conceded that under the provisions of that Act the assignee of a future work did not become the owner of the copyright for the purpose of taking action for infringement. The House of Lords held that the Society had a right in equity to have the rights in such future works assigned to it but was not an assignee within the meaning of the statute. The assignment being good in equity the Society had a right to sue in respect of the interests so acquired but subject to the general rule that the owner of the legal estate should be joined as a party.

Mr. Gautama contended that an assignment which was not absolute could not be a legal assignment nor could one which purported to assign something not yet in existence. An assignment for the continuance of membership in the society he said was not absolute and the works in question in the instant case were future works in that none of them had been composed at the time of the general assignment by the composer to the Society of:

> "All performing rights which now belong to or shall hereafter be acquired by or be or become vested in the Assignor during the continuance of the Assignor's membership of the Society. . . ."

The 1911 Act was replaced in England by the Copyright Act 1956, by virtue of the provisions of which Mr. Gautama conceded the Society could sue in England without joining the composers.

The law of copyright in Kenya is embodied in the Copyright Act (Cap. 130) which came into force on 1 April 1966. Prior to that date the English Act of 1956 applied in Kenya. Although some of the assignments to the Society with which this case is concerned were executed before 1 April 1966, the legislation applicable to this suit is the Kenya Copyright Act.

This Act makes provision inter alia for the assignment of copyright and actions for infringement. If an assignment falls within the provisions of the Act it is I think a statutory assignment under the Act. It is not an equitable assignment even though it may contain features which but for the provisions of the Act would have made it an equitable assignment.

S. 12 of the Copyright Act so far as material to this issue reads as follows:

> "12(1) Subject to the provisions of this section, copyright shall be transmissible by assignment, by testamentary disposition, or by operation of law, as movable property.
>
> (2) An assignment or testamentary disposition of copyright may be limited so as to apply to some only of the acts which the owner of the copyright has the exclusive right to control, or to a part only of the period of the copyright, or to a specified country or other geographical area.
>
> (3) No assignment of copyright and no exclusive licence to do an act the doing of which is controlled by copyright shall have effect unless it is in writing signed by or on behalf of the assignor, or by or on behalf of the licensor, as the case may be.
>
> . . . . . .
>
> (6) An assignment, licence or testamentary disposition may be effectively granted or made in respect of a future work, or an existing work in which copyright does not yet subsist, and the prospective copyright in any such work shall be transmissible by operation of law as movable property."

Thus an assignment of the performing right for part of the period of a copyright, e.g. the period during which the composer remains a member of the Society, is valid under subs. (3) and an assignment of copyright in a future work is valid under subs. (6).

Under s. 13 infringements of copyright are actionable at the suit of the "owner of the copyright" and this expression is defined in subsection (6) of that section as meaning:

> "the first owner, an assignee or an exclusive licensee, as the case may be, of the relevant portion of the copyright."

The plaintiff is the assignee of the performing right in each of the musical works in question and the assignments in each case were statutory assignments within the provisions of s. 12. They were not equitable assignments. The plaintiff is the owner of the copyright as defined in s. 13 and such is entitled to sue without joining the composers.

It may be observed further that the general assignment which included future works was subsequently reinforced in each case by a specific assignment appended to a notification to the plaintiff of the coming into existence of each of the works in question.

Mr. Gautama contended that such an assignment not being absolute would still be an equitable assignment.

In *performing Right Society v. London Theatre of Varieties* (supra) Lord Finlay at p. 18 suggested:

> " . . . it would not be difficult for the society before suing to take from the member a special assignment conveying the legal interest in respect of any work which is about to become the subject of litigation."

It can be inferred from the judgments in that case that the form of assignment then in use was as now effective only for the period of membership in the

society. S. 5 (2) of the 1911 Act provided for assignments for "the whole term of the copyright or for any part thereof." If Lord Finlay had taken the view that an assignment for part only of the period of a copyright e.g. the duration of a composer's membership of the Society was only an equitable assignment he would not have suggested that a special assignment would obviate the need to join the composers as parties.

In my opinion the specific assignments also were sufficient to convey the legal interest in the performing rights to the plaintiff.

There remained three issues which were number (3), (4) and (6) and may be considered together:

(3) Is there an infringement (if any) of the alleged copyright under the Copyright Act of Kenya?

(4) Does the plaintiff have a right in law to issue licences?

(6) Does the plaintiff have a right to control playing soundtrack of a cinematograph film which soundtrack is part of the film?

Mr. Gautama contended that Kenya law recognised only the right to a copyright in the author of a cinematograph film or sound recording and vested it in the maker thereof. Unless there was an assignment by the film company or the gramophone company to him the composer was not the author. The film company or the gramophone company acquired first ownership to the work including the music and any purported assignment by the composers had no meaning.

As I understand Mr. Gautama's argument he relied on s. 11(1) of the Act and the definition of "author" in s. 2.

> "11(1) Copyright conferred by sections 4 and 5 of this Act shall vest initially in the author:
>
> Provided that, notwithstanding section 12 (6) of this Act, where a work:
>
> (i) is commissioned by a person who is not the author's employer under a contract of service; or
>
> (ii) not having been so commissioned, is made in the course of the author's employment,
>
> the copyright shall be deemed to be transferred to the person who commissioned the work or the author's employer, subject to any agreement between the parties excluding or limiting such transfer."

S. 2 provides:

> " 'author', in the case of a cinematograph film or sound recording, means the person by whom the arrangements for the making of the cinematograph film or recording were undertaken, or in the case of a broadcast transmitted from within any country, means the person by whom the arrangements for the making of the transmission from within that country were undertaken."

Mr. Gautama contended that by virtue of these provisions copyright vested initially in the maker of a cinematograph film or of a sound recording.

S. 3 of the Act however sets out the works which are eligible for copyright as follows:

(*a*) literary works;

(*b*) musical works;

(*c*) artistic works;

(*d*) cinematograph films;

(*e*) sound recordings;

(*f*) broadcasts.

The definition of "author" in s. 2 is applicable only to items (*d*) (*e*) and (*f*), In relation to the remaining items the term "author" has its ordinary meaning, that is the person who originates or gives existence to anything including the author of a book, the composer of a song or the painter of a picture. This is clear also from the terms of s. 4 which, dealing with the qualifications of an author for copyright in Kenya, lists separately literary, musical or artistic work and cinematograph films and photographs. There can be no doubt that the Act recognises the right to copyright in the composer of a musical work as well as the maker of a cinematograph film or sound recording.

S. 2 contains definitions of "cinematograph film" and "sound recording" as follows:

> " 'cinematograph film' means the first fixation on film or on any other medium of a sequence of visual images or electronic impulses capable of being seen as a moving picture and of being the subject of reproduction, and includes the recording of a soundtrack associated with the cinematograph film;
>
> 'sound recording' means the first fixation of a sequence of sounds capable of being perceived orally and of being reproduced, but does not include a soundtrack associated with a cinematograph film."

Neither of these definitions includes musical works recorded therein nor is there any other provision in the Act to the effect or from which it can even be inferred that a musical work once it is recorded on the soundtrack of a film or is incorporated in a sound recording merges with the film or with the sound recording for copyright purposes.

S.7 (1) of the Act provides:

> "Copyright in a literary, musical or artistic work or in a cinematograph film shall be the exclusive right to control the doing in Kenya of any of the following acts, namely the reproduction in any material form, the communication to the public and the broadcasting, of the whole work or a substantial part thereof, either in its original form or in any form recognizably derived from the original."

Thus copyright in a musical work includes control of communication to the public i.e. the performing right. Copyright in a cinematograph film includes a similar right but the one does not without assignment merge in the other so as to give the author of the cinematograph film control over communication to the public of any musical work embodied in the soundtrack of the film.

Ss. 4 and 5 of the Act restrict the conferment of copyright to authors who are citizens of or residents in Kenya and to works first published or made in Kenya. S. 15 however enables the Attorney-General to make regulations extending the application of the Act. The Copyright Regulations were duly made under the provisions of that section.

Reg. 2 reads as follows:

> "2. The application of the Act is extended, in respect of literary works, musical works, artistic works and cinematograph films, to –
>
> (*a*) individuals or bodies corporate who are citizens of, domiciled or resident in or incorporated under the laws of the countries named in the First Schedule to these Regulations; and
>
> (*b*) works, other than sound recordings, first published in the countries named in the First Schedule to these Regulations,
>
> being countries which are parties to the Universal Copyright Convention

> to which Kenya is also a party and which provides for copyright in works to which the application of the Act extends."

Included in the First Schedule is the United Kingdom of Great Britain and Northern Ireland.

The plaintiff is a limited company incorporated under the laws of the United Kingdom and the works in which it claims copyright are musical works first published in the United Kingdom.

The music for the film "Carry on Nurse" was commissioned by the film company to whom by virtue of the provisions of s. 11 (1) of the Act quoted above the copyright is deemed to be transferred subject however to any agreement between the parties.

In the agreement between the composer and Beaconsfield Films Ltd. the composer assigned to the company by way of partial assignment of copyright the exclusive right to reproduce the music in cinematograph films agreeing also that the company would be entitled to make records of the music in connection with (amongst other purposes) the exploitation of the film.

In addition Cl. 4 of the Agreement reads as follows:

> "4. The Composer, being a member of the Performing Right Society Ltd. (hereinafter called the P.R.S.) and having therefore vested in the P.R.S. the performing right in the said music in all parts of the world, hereby expressly declares, and the Company agrees, that this agreement shall not be construed as or deemed to be a licence to exercise the performing right in the said music anywhere in the world.
>
> In this clause 'performing right' means the right of (*a*) performing the said music in public; (*b*) broadcasting the said music; (*c*) causing the said music to be transmitted to subscribers to a diffusion service; and (*d*) authorising other persons to do any of the said acts in relation to the copyright in the said music."

Thus copyright in this musical work vested initially in the composer and was only partially transferred to the film company the performing rights having been assigned to the plaintiff.

It is I think quite clear that under the provisions of the Copyright Act (Cap. 130) the composer of a musical work which has been incorporated in the soundtrack of a film or in a sound recording can retain the performing right that is the right to control communication of the work to the public by means of public performance.

If a composer had no such right there would be no need to provide in s. 8 of the Act for the payment of fair compensation to a composer by a broadcasting authority which broadcasts a cinematograph film in which the musical work is incorporated.

Under s. 13(1) of the Act if a film exhibitor in the course of showing a film communicates a musical work to the public without the licence of the owner of that part of the copyright in the work known as the performing right he infringes the copyright. Similarly if any person by playing a record to the public communicates a musical work embodied in the recording to the public without the licence of the owner of the performing right he infringes the copyright.

The plaintiff being the owner of the copyright has a right in law to issue licences for the performance of the work. S. 14 of the Act contains provisions for overriding unreasonable decisions of a licensing body and defines such a body as an organisation which has as its main object, or one of its main objects, the negotiation or granting of licences in respect of copyright works. The plaintiff society is such an organisation.

Mr. Gautama made an alternative submission that by virtue of regulation 2 which expressly excludes sound recordings from the extended application of the Act the musical works which had been the subject of sound recordings were not protected.

I have already held however that a separate copyright exists in the musical work after its incorporation in a sound recording. The exclusion therefore does not affect such musical works.

Having regard to the foregoing issues (3) (4) and (6) are answered in the affirmative although the answer to issue (6) requires qualification. The plaintiff's right is not to control playing the sound track but to control the playing of music incorporated in the sound track. If it is technically possible exhibitors could show the film cutting out the sound of the musical work wherever it occurs on the sound track without infringing the plaintiff's copyright.

Evidence was given of subsequent infringements of the plaintiff's copyright in the same works in January, May and August 1970 and it is clear from the evidence of the first defendant's manager and from the agreed bundle of correspondence that unless restrained the first defendant and associated companies are likely to continue to infringe the plaintiff's rights. The plaintiff is entitled to an injunction.

Mr. V. A. Shah, the managing director of the first defendant company said that the second defendant ceased to run the cinema on 31 January 1972 and from 1 February 1972 the running of the cinema was entrusted to Asian Film Distributors Ltd. in which he is a director and which is the major shareholder in the first defendant company.

In view of this evidence Mr. Salter, who appeared with Mr. Dhanji for the plaintiff, submitted that should an injunction be granted it was desirable that the terms of such injunction be settled in chambers.

With regard to damages the plaintiff's representative in Kenya estimated the plaintiff's loss at Shs. 56,648/- being the annual royalty from July 1967 to July 1973 plus compound interest on arrears at 4 per cent. The royalty is calculated at 1 per cent of the box office takings, less entertainment tax, of films the music of which is controlled by the Society or 1/2 per cent of total takings less entertainment tax. The expression "total takings" was subsequently clarified from the Bar as takings from all films whether English or Asian. The plaintiff's figure was arrived at by the latter method the takings being calculated on the basis of a return of seating capacity furnished by the defendants. It was the practice to adjust this figure at the end of the year when audited accounts became available.

Mr. Shah said that if found liable to pay he would supply an audited account of takings and the plaintiff agreed to accept that as a basis for calculation of damages.

Such calculation should take into account the fact that in August 1971 the cinema ceased to show English films and to play music on gramophone records during intermissions.

The fact, if confirmed by the audited accounts, that for some time prior to that date English films were exhibited on Tuesdays, Wednesdays and Thursday only will be relevant only in the event of the defendants opting for payment at the rate of 1 per cent of the takings of films controlled by the Society.

S. 13 (4) of the Act provides as follows:

> "13(4) Where in an action under this section an infringement of copyright is proved or admitted, and the court, having regard (in addition to all other material considerations) to:

(*a*) the flagrancy of the infringement; and

(*b*) any benefit shown to have accrued to the defendant by reason of the infringement,

is satisfied that effective relief would not otherwise be available to the plaintiff, the court, in assessing damages for the infringement, shall have power to award such additional damages by virtue of this subsection as the court may consider appropriate in the circumstances."

The defendants were fully aware of the rights claimed by the plaintiff but after submitting a seating capacity return and paying a deposit of Shs. 5,000/- for the year to 5 July 1967 ignored all further demands and even letters from their own lawyers. Mr. V.A. Shah said he just sat tight waiting to see what the plaintiff would do. He regarded this in the nature of a test case, he said, but it is to be observed that up to the time of the filing of the original plaint on 5 December 1969, no letter was written to the plaintiff or its advocates by or on behalf of the defendants disputing their right to claim royalties.

There was undoubtedly, a degree of flagrancy in the infringement and considerable benefit accrued to the defendants by reason thereof. The plaintiff however did not appear to press for additional damages and I think that if 4 per cent compound interest is added to the royalties as calculated according to whichever method is selected by the defendants an appropriate figure will be arrived at.

There will be judgment for the plaintiff against the defendants jointly and severally as follows:

(*a*) An injunction against further infringement of the plaintiff's copyright in terms to be settled in chambers;

(*b*) Damages to be agreed by the parties or to be determined by the Court in the event of the parties failing to agree and to include compound interest on arrears at 4 per cent to date of judgment and thereafter interest at court rates;

(*c*) Costs and interest thereon;

(*d*) A certificate for two counsel.

With respect to damages the defendants will within six weeks of the date hereof exercise their option and produce duly audited accounts to the plaintiff's advocates with a view to reaching agreement on the quantum.

In the event of their failure so to do within six weeks or in the event of failure to reach agreement within 3 months of the date hereof the plaintiff will be at liberty to apply to the Court for the determination of the amount of damages to be paid by the defendants.

*Order accordingly.*

For the plaintiff:
*C. Salter*, *Q.C.* and *S. S. Dhanji* (instructed by *Archer & Wilcock*, Nairobi)

For the defendants:
*S. C. Gautama* and *A. B. Shah* (instructed by *Shah & Parekh*, Nairobi